

THE
WRITINGS
OF
THOMAS JEFFERSON:

BEING HIS

AUTOBIOGRAPHY, CORRESPONDENCE, REPORTS, MESSAGES,
ADDRESSES, AND OTHER WRITINGS, OFFICIAL
AND PRIVATE.

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FROM THE ORIGINAL MANUSCRIPTS,

DEPOSITED IN THE DEPARTMENT OF STATE.

WITH EXPLANATORY NOTES, TABLES OF CONTENTS, AND A COPIOUS INDEX
TO EACH VOLUME, AS WELL AS A GENERAL INDEX TO THE WHOLE,

BY THE EDITOR

H. A. WASHINGTON.

VOL. IV.

NEW YORK:
H. W. DERBY, 625 BROADWAY.
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The following possible inconsistencies/printer errors/archaic spellings/different names for different entities were pointed out by the proofers, and left as printed:

Page 291: Leblane should be Leblanc?

Page 311: Ciracchi and Carrachi (in the same letter)?

Page 332: Quixotte should be Quixote?

Page 396: A line (or lines) seem to be missing at the bottom of page 396 after "The compensations to collectors depend on you, and not on".

Page 435: Kosciugha should be Kosciusko?

Page 461: Mr. Pintency at Madrid should be Mr. Pinckney at Madrid?

Page 468: Browze Trist should possibly be Browse Trist?

Page 484: Ponchartrain should be Pontchartrain?

Page 486: Chace should possibly be Chase?

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PART III.—CONTINUED.

**LETTERS WRITTEN AFTER HIS RETURN TO THE U. S.
DOWN TO THE TIME OF HIS DEATH.**

1790-1826.

TO THE PRESIDENT OF THE UNITED STATES.

PHILADELPHIA, June 28, 1793.

DEAR SIR,—I should have taken time ere this to have considered the observations of Mr. Young, could I at this place have done it in such a way as would satisfy either him or myself. When I wrote the notes of the last year, I had never before thought of calculating what were the profits of a capital invested in Virginia agriculture. Yet that appeared to be what Mr. Young most desired. Lest therefore no other of those, whom you consulted for him, should attempt such a calculation, I did it; but being at such a distance from the country of which I wrote, and having been absent from that and from the subject in consideration many years, I could only, for my facts, recur to my own recollection, weakened by time and very different applications, and I had no means here of correcting my facts. I therefore hazarded the calculation rather as an essay of the mode of calculating the profits of a Virginia estate, than as an operation which was to be ultimately relied on. When I went last to Virginia I put the press-copy of those notes into the hands of the most skilful and successful farmer in the part of the country of which I wrote. He omitted to return them to me, which adds another impediment to my resuming the subject here; but indeed if I had

them, I could only present the same facts, with some corrections and some justifications of the principles of calculation. This would not and ought not to satisfy Mr. Young. When I return home I shall have time and opportunity of answering Mr. Young's enquiries fully. I will first establish the facts as adapted to the present times, and not to those to which I was obliged to recur by recollection, and I will make the calculation on rigorous principles. The delay necessary for this will I hope be compensated by giving something which no endeavors on my part shall be wanting to make it worthy of confidence. In the meantime Mr. Young must not pronounce too hastily on the impossibility of an annual production of £750 worth of wheat coupled with a cattle product of £125. My object was to state the produce of a *good* farm, under *good* husbandry as practised in my part of the country. Manure does not enter into this, because we can buy an acre of new land cheaper than we can manure an old acre. Good husbandry with us consists in abandoning Indian corn and tobacco, tending small grain, some red clover, following, and endeavoring to have, while the lands are at rest, a spontaneous cover of white clover. I do not present this as a culture judicious in itself, but as *good* in comparison with what most people there pursue. Mr. Young has never had an opportunity of seeing how slowly the fertility of the *original soil* is exhausted. With moderate management of it, I can affirm that the James river lowgrounds with the cultivation of small grain, will never be exhausted: because we know that under that cultivation we must now and then take them down with Indian corn, or they become, as they were originally, too rich to bring wheat. The highlands, where I live, have been cultivated about sixty years. The culture was tobacco and Indian corn as long as they would bring enough to pay the labor. Then they were turned out. After four or five years rest they would bring good corn again, and in double that time perhaps good tobacco. Then they would be exhausted by a second series of tobacco and corn. Latterly we have begun to cultivate small grain; and excluding Indian corn, and following, such of them as were originally good, soon rise up to fifteen or twenty bushels the acre. We allow that every laborer will manage ten acres of wheat, except at harvest. I have no doubt but the coupling cattle and sheep with this would prodigiously improve the produce. This improvement Mr. Young will be better able to calculate than anybody else. I am so well satisfied of it myself, that having engaged a good farmer from the head of Elk, (the style of farming there you know well,) I mean in a farm of about 500 acres of

cleared land and with a dozen laborers to try the plan of wheat, rye, potatoes, clover, with a mixture of some Indian corn with the potatoes, and to push the number of sheep. This last hint I have taken from Mr. Young's letters which you have been so kind as to communicate to me. I have never before considered with due attention the profit from that animal. I shall not be able to put the farm into that form exactly the ensuing autumn, but against another I hope I shall, and I shall attend with precision to the measures of the ground and of the product, which may perhaps give you something hereafter to communicate to Mr. Young which may gratify him, but I will furnish the ensuing winter what was desired in Mr. Young's letter of Jan. 17, 1793. I have the honor to be, with great and sincere esteem, dear Sir, your most obedient humble servant.

TO DR. GILMER.

PHILADELPHIA, June 25, 1793.

DEAR DOCTOR,—* * * * * Dumourier was known to be a scoundrel in grain. I mentioned this from the beginning of his being placed at the head of the armies; but his victories at length silenced me. His apostasy has now proved that an unprincipled man, let his other fitnesses be what they will, ought never to be employed. It has proved too that the French army, as well as nation, cannot be shaken in their republicanism. Dumourier's popularity put it to as severe a proof as could be offered. Their steadiness to their principles insures the issue of their revolution against every effort but by the way of famine. Should that take place the effect would be incalculable; because our machine, unsupported by food, is no longer under the control of reason. This crisis, however, is now nearly over, as their harvest is by this time beginning. As far as the last accounts come down, they were retiring to within their own limits; where their assignats would do for money, (except at Mentz,) England too is issuing her paper, not founded like the assignats, on land, but on pawns of thread, ribbons, &c. They will soon learn the science of depreciation, and their whole paper system vanish into nothing, on which it is bottomed. My affectionate respects to Mrs. Gilmer, and am, dear Doctor, yours, sincerely.

TO COLONEL MONROE.

PHILADELPHIA, June 28, 1793.

DEAR SIR,—I have to acknowledge your favor of May 28. I believe that through all America there has been but a single sentiment on the subject of peace and war, which was in favor of the former. The Executive here has cherished it with equal and unanimous desire. We have differed perhaps as to the conduct exactly adapted to the securing it. We have as yet no indirections of the intentions or even the wishes of the British government. I rather believe they mean to hold themselves up, and be led by events. In the meanwhile Spain is so evidently *picking a quarrel* with us, that we see a war absolutely inevitable with her. We are making a last effort to avoid it, but our cabinet is without any decision in their expectations of the result. This may not be known before the last of October, earlier than which I think you will meet. You should therefore calculate your domestic measures on this change of position. If France collected within her own limits shall maintain her ground there steadily, as I think she will, (barring the effect of famine which no one can calculate,) and if the bankruptcies of England proceed to the length of an universal crush of their paper, which I also think they will, she will leave Spain the bag to hold; she is emitting assignats also, that is to say exchequer bills, to the amount of five millions English, or one hundred and twenty-five millions French; and these are not founded on land as the French assignats are, but on pins, thread, buckles, hops, and whatever else you will pawn in the exchequer of double the estimated value. But we all know that five millions of such stuff forced for sale on the market of London, where there will be neither cash nor credit, will not pay storage. This paper must rest then ultimately on the credit of the nation as the rest of their public paper does, and will sink with that. If either this takes place, or the confederacy is unsuccessful, we may be clear of war with England. With respect to the increase of our shipping, our merchants have no need, you know, of a permission to buy up foreign bottoms. There is no law prohibiting it, and when bought they are American property, and as such entitled to pass freely by our treaties with some nations, and by the law of nations with all. Such accordingly, by a determination of the Executive, will receive American passports. They will not be entitled indeed to import goods on the low duties of *home-built* vessels, the laws having confined that privilege to these only. We have taken every possible method to guard

against fraudulent conveyances, which, if we can augment our shipping to the extent of our own carriage, it would not be our interest to cover. I enclose you a note from Freneau, explaining the interruption of your papers. I do not augur well of the mode of conduct of the new French minister; I fear he will enlarge the evils of those disaffected to his country. I am doing everything in my power to moderate the impetuosity of his movements, and to destroy the dangerous opinions which has been excited in him, that the people of the United States will disavow the acts of their government, and that he has an appeal from the Executive to Congress, and from both to the people. Affairs with the Creeks seem to present war there as inevitable, but that will await for you. We have no news from the northern commissioners, but of the delay likely to be attempted by the Indians; but as we never expected peace from the negotiation, I think no delay will be admitted which may defeat our preparations for a campaign. Crops here are likely to be good, though the beginning of the harvest has been a little wet. I forgot whether I informed you that I had chosen a house for you, and was determined in the choice by the southern aspect of the back buildings, the only circumstance of difference between the two presented to my choice. Give my best love to Mrs. Monroe, and be assured of the affectionate esteem of, dear Sir, your friend and servant.

TO J. MADISON.

June 29, 1793.

SIR,—I wrote you on the 23d, and yesterday I received yours of the 17th, which was the more welcome as it acknowledged mine of the 9th, about the safety of which I was anxious. I now risk some other papers, the sequel of those conveyed in that. The result I know not. We are sending a courier to Madrid to make a last effort for the preservation of honorable peace. The affairs of France are recovering their solidity, and from the steadiness of the people on the defection of so popular and capital a commander as Dumourier, we have a proof that nothing can shake this republicanism. Hunger is to be expected; but the silence of the late papers on that head, and the near approach of harvest, makes us hope they will weather that rock. I

do not find that there has been serious insurrection but in Brittany, and where the noblesse having been as numerous as the people, and indeed being almost the people, the counter-revolutionary spirit has been known always to have existed since the night in which titles were suppressed. The English are trying to stop the torrent of bankruptcies by an emission of five millions of exchequer bills, loaned on the pawn-broking plan, consequently much inferior to the assignats in value. But that paper will sink to an immediate level with their other public paper, and consequently can only complete the ruin of those who take it from government at par, and on a pledge of pins, buckles, &c., of little value, which will not sell so as to pay storage in a country where there is no specie, and we may say no paper of confidence. Every letter which comes expresses a firm belief that the whole paper system will now vanish into that nothing on which it is bottomed. For even the public faith is nothing as the mass of paper bottomed on it is known to be beyond its possible redemption. I hope this will be a wholesome lesson to our future Legislature. The war between France and England has brought forward the Republicans and Monocrats in every State, so that their relative numbers are perfectly visible.

TO MESSRS. CARMICHAEL AND SHORT.

PHILADELPHIA, June 30, 1793.

GENTLEMEN,—I have received from Messrs. Viar and Jaudenes the representatives of Spain at this place, a letter, which, whether considered in itself, or as the sequel of several others, conveys to us very disagreeable prospects of the temper and views of their court towards us. If this letter is a faithful expression of that temper, we presume it to be the effect of egregious misrepresentations by their agents in America. Revising our own dispositions and proceedings towards that power, we can find in them nothing but those of peace and friendship for them; and conscious that this will be apparent from a true statement of facts, I shall proceed to give you such a one, to be communicated to the court of Madrid. If they find it very different from that conveyed to them by others, they may think it prudent to

doubt, and to take and to give time for mutual inquiry and explanation. I shall proceed to give you this statement, beginning it from an early period.

At the commencement of the late war, the United States laid it down as a rule of their conduct, to engage the Indian tribes within their neighborhood to remain strictly neutral. They accordingly strongly pressed it on them, urging that it was a family quarrel with which they had nothing to do, and in which we wished them to take no part; and we strengthened these recommendations by doing them every act of friendship and good neighborhood, which circumstances left in our power. With some, these solicitations prevailed; but the greater part of them suffered themselves to be drawn into the war against us. They waged it in their usual cruel manner, murdering and scalping men, women and children, indiscriminately, burning their houses, and desolating the country. They put us to vast expense, as well by the constant force we were obliged to keep up in that quarter, as by the expeditions of considerable magnitude which we were under the necessity of sending into their country from time to time.

Peace being at length concluded with England, we had it also to conclude with them. They had made war on us without the least provocation or pretence of injury. They had added greatly to the cost of that war. They had insulted our feelings by their savage cruelties. They were by our arms completely subdued and humbled. Under all these circumstances, we had a right to demand substantial satisfaction and indemnification. We used that right, however, with real moderation. Their limits with us under the former government were generally ill defined, questionable, and the frequent cause of war. Sincerely desirous of living in their peace, of cultivating it by every act of justice and friendship, and of rendering them better neighbors by introducing among them some of the most useful arts, it was necessary to begin by a precise definition of boundary. Accordingly, at the treaties held with them, our mutual boundaries were settled; and notwithstanding our just right to concessions adequate to the circumstances of the case, we required such only as were inconsiderable; and for even these, in order that we might place them in a state of perfect conciliation, we paid them a valuable consideration, and granted them annuities in money which have been regularly paid, and were equal to the prices for which they have usually sold their lands.

Sensible, as they were, of the wrong they had done, they expected to make some indemnification, and were, for the most part, satisfied with the mode and measure of it. In one or two instances, where a dissatisfaction was observed to remain as to the boundaries agreed on, or doubts entertained of the authority of those with whom they were agreed, the United States invited the parties to new treaties, and rectified what appeared to be susceptible of it. This was particularly the case with the Creeks. They complained of an inconvenient cession of lands on their part, and by persons not duly representing their nation. They were therefore desired to appoint a proper deputation to revise their treaty; and that there might be no danger of any unfair practices, they were invited to come to the seat of the General Government, and to treat with that directly. They accordingly came. A considerable proportion of what had been ceded, was, on the revision, yielded back to them, and nothing required in lieu of it; and though they would have been better satisfied to have had the whole restored, yet they had obtained enough to satisfy them well. Their nation, too, would have been satisfied, for they were conscious of their aggression, and of the moderation of the indemnity with which we had been contented. But at that time came among them an adventurer of the name of Bowles, who, acting from an impulse with which we are unacquainted, flattered them with the hope of some foreign interference, which should undo what had been done, and force us to consider the naked grant of their peace as a sufficient satisfaction for their having made war on us. Of this adventurer the Spanish government rid us; but not of his principles, his practices, and his excitements against us. These were more than continued by the officers commanding at New Orleans and Pensacola, and by agents employed by them, and bearing their commission. Their proceedings have been the subject of former letters to you, and proofs of these proceedings have been sent to you. Those, with others now sent, establish the facts, that they called assemblies of the southern Indians, openly persuaded them to disavow their treaties, and the limits therein established, promised to support them with all the powers which depended on them, assured them of the protection of their sovereign, gave them arms in great quantities for the avowed purpose of committing hostilities on us, and promised them future supplies to their utmost need. The Chickasaws, the most steady and faithful friends of these States, have remained unshaken by these practices. So also have the Chocktaws, for the most part. The Cherokees have been teased into some

expressions of discontent, delivered only to the Spanish Governors, or their agents; while to us they have continued to speak the language of peace and friendship. One part of the nation only, settled at Cuckamogga and mixed with banditti and outcasts from the Shawanese and other tribes, acknowledging control from none, and never in a state of peace, have readily engaged in the hostilities against us to which they were encouraged. But what was much more important, great numbers of the Creeks, chiefly their young men, have yielded to these incitements, and have now, for more than a twelvemonth, been committing murders and desolations on our frontiers. Really desirous of living in peace with them, we have redoubled our efforts to produce the same disposition in them. We have borne with their aggressions, forbidden all returns of hostility against them, tied up the hands of our people, insomuch that few instances of retaliation have occurred even from our suffering citizens; we have multiplied our gratifications to them, fed them when starving, from the produce of our own fields and labor. No longer ago than the last winter, when they had no other resource against famine, and must have perished in great numbers, we carried into their country and distributed among them, gratuitously, ten thousand bushels of corn; and that too, at the same time, when their young men were daily committing murders on helpless women and children on our frontiers. And though these depredations now involve more considerable parts of the nation, we are still demanding punishment of the guilty individuals, and shall be contented with it. These acts of neighborly kindness and support on our part have not been confined to the Creeks, though extended to them in much the greatest degree. Like wants among the Chickasaws had induced us to send to them also, at first, five hundred bushels of corn, and afterwards, fifteen hundred more. Our language to all the tribes of Indians has constantly been, to live in peace with one another, and in a most especial manner, we have used our endeavors with those in the neighborhood of the Spanish colonies, to be peaceable towards those colonies. I sent you on a former occasion the copy of a letter from the Secretary of War to Mr. Seagrove, one of our agents with the Indians in that quarter, merely to convey to you the general tenor of the conduct marked out for those agents; and I desired you, in placing before the eyes of the Spanish ministry the very contrary conduct observed by their agents here, to invite them to a reciprocity of good offices with our Indian neighbors, each for the other, and to make our common peace the common object of both

nations. I can protest that such have hitherto been the candid and zealous endeavors of this government, and that if its agents have in any instance acted in another way, it has been equally unknown and unauthorized by us, and that were even probable proofs of it produced, there would be no hesitation to mark them with the disapprobation of the government. We expected the same friendly condescension from the court of Spain, in furnishing you with proofs of the practices of the Governor de Carondelet in particular practices avowed by him, and attempted to be justified in his letter.

In this state of things, in such dispositions towards Spain and towards the Indians, in such a course of proceedings with respect to them, and while negotiations were instituted at Madrid for arranging these and all other matters which might affect our friendship and good understanding, we received from Messrs. de Viar and Jaudenes their letter of May the 25th, which was the subject of mine of May the 31st to you; and now again we have received that of the 18th instant, a copy of which is enclosed. This letter charges us, and in the most disrespectful style, with

1. Exciting the Chickasaws to war on the Creeks.
2. Furnishing them with provisions and arms.
3. Aiming at the occupation of a post at the Ecores amargas.
4. Giving medals and marks of distinction to several Indians.
5. Meddling with the affairs of such as are allies of Spain.
6. Not using efficacious means to prevent these proceedings.

I shall make short observations on these charges.

1. Were the first true, it would not be unjustifiable. The Creeks have now a second time commenced against us a wanton and unprovoked war, and the present one in the face of a recent treaty, and of the most friendly and charitable offices on our part. There would be nothing out of the common course of proceeding then, for us to engage allies, if we needed any, for their punishment. But we neither need, nor have sought them. The fact itself is utterly false, and we defy the world to produce a single proof of it. The

declaration of war by the Chickasaws, as we are informed, was a very sudden thing, produced by the murder of some of their people by a party of Creeks, and produced so instantaneously as to give nobody time to interfere, either to promote or prevent a rupture. We had, on the contrary, most particularly exhorted that nation to preserve peace, because in truth we have a most particular friendship for them. This will be evident from a copy of the message of the President to them, among the papers now enclosed.

2. The gift of provisions was but an act of that friendship to them, when in the same distress, which had induced us to give five times as much to the less friendly nation of the Creeks. But we have given arms to them. We believe it is the practice of every white nation to give arms to the neighboring Indians. The agents of Spain have done it abundantly, and, we suppose, not out of their own pockets, and this for purposes of avowed hostility on us; and they have been liberal in promises of further supplies. We have given a few arms to a very friendly tribe, not to make war on Spain, but to defend themselves from the atrocities of a vastly more numerous and powerful people, and one which, by a series of unprovoked and even unrepelled attacks on us, is obliging us to look towards war as the only means left of curbing their insolence.

3. We are aiming, as is pretended, at an establishment on the Mississippi, at the Ecores amargas. Considering the measures of this nature with which Spain is going on, having, since the proposition to treat with us on the subject, established posts at the Walnut hills and other places for two hundred miles upwards, it would not have been wonderful if we had taken countervailing measures. But the truth is, we have not done it. We wished to give a fair chance to the negotiation going on, and thought it but common candor to leave things in *statu quo*, to make no innovation pending the negotiation. In this spirit we forbid, and deterred even by military force, a large association of our citizens, under the name of the Yazoo companies, which had formed to settle themselves at those very Walnut hills, which Spain has since occupied. And so far are we from meditating the particular establishment so boldly charged in this letter, that we know not what place is meant by the Ecores amargas. This charge then is false also.

4. Giving medals and marks of distinction to the Indian chiefs. This is but blindly hinted at in this letter, but was more pointedly complained of in the

former. This has been an ancient custom from time immemorial. The medals are considered as complimentary things, as marks of friendship to those who come to see us, or who do us good offices, conciliatory of their good will towards us, and not designed to produce a contrary disposition towards others. They confer no power, and seem to have taken their origin in the European practice, of giving medals or other marks of friendship to the negotiators of treaties and other diplomatic characters, or visitors of distinction. The British government, while it prevailed here, practised the giving medals, gorgets, and bracelets to the savages, invariably. We have continued it, and we did imagine, without pretending to know, that Spain also did it.

5. We meddle with the affairs of Indians in alliance with Spain. We are perfectly at a loss to know what this means. The Indians on our frontier have treaties both with Spain and us. We have endeavored to cultivate their friendship, to merit it by presents, charities, and exhortations to peace with their neighbors, and particularly with the subjects of Spain. We have carried on some little commerce with them, merely to supply their wants. Spain too has made them presents, traded with them, kept agents among them, though their country is within the limits established as ours at the general peace. However, Spain has chosen to have it understood that she has some claim to some parts of that country, and that it must be one of the subjects of our present negotiations. Out of respect for her then, we have considered her pretensions to the country, though it was impossible to believe them serious, as coloring pretensions to a concern with those Indians on the same ground with our own, and we were willing to let them go on till a treaty should set things to right between us.

6. Another article of complaint is, that we have not used efficacious means to suppress these practices. But if the charge is false, or the practice justifiable, no suppression is necessary.

And lastly, these gentlemen say that on a view of these proceedings of the United States with respect to Spain and the Indians, their allies, they foresee that our peace with Spain is very problematical in future. The principal object of the letter being *our* supposed excitements of the Chickasaws against the Creeks and *their* protection of the latter, are we to understand from this that if we arm to repulse the attacks of the Creeks on ourselves it

will disturb our peace with Spain? That if we will not fold our arms and let them butcher us without resistance, Spain will consider it as a cause of war? This is, indeed, so serious an intimation, that the President has thought it could no longer be treated with subordinate characters, but that his sentiments should be conveyed to the government of Spain itself, through you.

We love and we value peace; we know its blessings from experience. We abhor the follies of war, and are not untried in its distresses and calamities. Unmeddling with the affairs of other nations, we had hoped that our distance and our dispositions would have left us free, in the example and indulgence of peace with all the world. We had, with sincere and particular dispositions, courted and cultivated the friendship of Spain. We have made to it great sacrifices of time and interest, and were disposed to believe she would see her interests also in a perfect coalition and good understanding with us. Cherishing still the same sentiments, we have chosen, in the present instance, to ascribe the intimations in this letter to the particular character of the writers, displayed in the peculiarity of the style of their communications, and therefore, we have removed the cause from them to their sovereign, in whose justice and love of peace we have confidence. If we are disappointed in this appeal, if we are to be forced into a contrary order of things, our mind is made up. We shall meet it with firmness. The necessity of our position will supersede all appeal to calculation now, as it has done heretofore. We confide in our own strength, without boasting of it; we respect that of others, without fearing it. If we cannot otherwise prevail on the Creeks to discontinue their depredations, we will attack them in force. If Spain chooses to consider our defence against savage butchery as a cause of war to her, we must meet her also in war, with regret, but without fear; and we shall be happier, to the last moment, to repair with her to the tribunal of peace and reason.

The President charges you to communicate the contents of this letter to the court of Madrid, with all the temperance and delicacy which the dignity and character of that court render proper; but with all the firmness and self-respect which befit a nation conscious of its rectitude, and settled in its purpose.

I have the honor to be, with sentiments of the most perfect esteem and respect, Gentlemen, your most obedient, and most humble servant.

TO COLONEL MONROE.

PHILADELPHIA, July 14, 1793.

DEAR SIR,—Your favor of June 27th, has been duly received. You have most perfectly seized the *original* idea of the proclamation. When first proposed as a declaration of neutrality, it was opposed, first, because the Executive had no power to declare neutrality. Second, as such a declaration would be premature, and would lose us the benefit for which it might be bartered. It was urged that there was a strong impression in the minds of many that they were free to join in the hostilities on the side of France, others were unapprised of the danger they would be exposed to in carrying contraband goods, &c. It was therefore agreed that a proclamation should issue, declaring that we were in a state of peace, admonishing the people to do nothing contravening it, and putting them on their guard as to contraband. On this ground it was accepted or acquiesced in by all, and E. R., who drew it, brought it to me, the draught, to let me see there was no such word as *neutrality* in it. Circumstances forbid other verbal criticisms. The public, however, soon took it up as a declaration of neutrality, and it came to be considered at length as such. The arming privateers in Charleston, with our means entirely, and partly our citizens, was complained of in a memorial from Mr. Hammond. In our consultation it was agreed we were by treaty *bound* to prohibit the enemies of France from arming in our ports, and were free to prohibit France also, and that by the laws of neutrality we are bound to permit or forbid the same things to both, as far as our treaties would permit. All, therefore, were forbidden to arm within our ports, and the vessels armed before the prohibition were on the advice of a majority ordered to leave our ports. With respect to our citizens who had joined in hostilities against a nation with whom we are at peace, the subject was thus viewed. Treaties are law. By the treaty with England we are in a state of peace with her. He who breaks that peace, if within our jurisdiction, breaks the laws, and is punishable by them. And if he is punishable he ought to be

punished, because no citizen should be free to commit his country to war. Some vessels were taken within our bays. There, foreigners as well as natives are liable to punishment. Some were committed in the high seas. There, as the sea is a common jurisdiction to all nations, and divided by *persons*, each having a right to the jurisdiction over their own citizens only, our citizens only were punishable by us. But they were so, because within our jurisdiction. Had they gone into a *foreign land* and committed a hostility, they would have been clearly out of our jurisdiction and unpunishable by the existing laws. As the armament in Charleston had taken place before our citizens might have reflected on the case, only two were prosecuted, merely to satisfy the complaint made, and to serve as a warning to others. But others having attempted to arm another vessel in New York after this was known, all the persons concerned in the latter case, foreign as well as native, were directed to be prosecuted. The Attorney General gave an official opinion that the act was against law, and coincided with all our private opinions; and the lawyers of this State, New York and Maryland, who were applied to, were unanimously of the same opinion. Lately Mr. Rawle, Attorney of the United States in this district, on a conference with the District Judge, Peters, supposed the law more doubtful. New acts, therefore, of the same kind, are left unprosecuted till the question is determined by the proper court, which will be during the present week. If they declare the act no offence against the laws, the Executive will have acquitted itself towards the nation attacked by their citizens, by having submitted them to the sentence of the laws of their country, and towards those laws by an appeal to them in a case which interested the country, and which was at least doubtful. I confess I think myself that the case is punishable, and that, if found otherwise, Congress ought to make it so, or we shall be made parties in every maritime war in which the piratical spirit of the banditti in our ports can engage. I will write you what the judicial determination is. Our prospects with Spain appear to me, from circumstances taking place on this side the Atlantic, absolutely desperate. Measures are taken to know if they are equally so on the other side, and before the close of the year that question will be closed, and your next meeting must probably prepare for the new order of things. I fear the disgust of France is inevitable. We shall be to blame in past. But the new minister much more so. His conduct is indefensible by the most furious Jacobin. I only wish our countrymen may distinguish between him and his

nation, and if the case should ever be laid before them, may not suffer their affection to the nation to be diminished. H., sensible of the advantage they have got, is urging a full appeal by the Government to the people. Such an explosion would manifestly endanger a dissolution of the friendship between the two nations, and ought therefore to be deprecated by every friend to our liberty; and none but an enemy to it would wish to avail himself of the indiscretions of an individual to compromit two nations esteeming each other ardently. It will prove that the agents of the two people are either great bunglers or great rascals, when they cannot preserve that peace which is the universal wish of both. The situation of the St. Domingo fugitives (aristocrats as they are) calls aloud for pity and charity. Never was so deep a tragedy presented to the feelings of man. I deny the power of the general government to apply money to such a purpose, but I deny it with a bleeding heart. It belongs to the State governments. Pray urge ours to be liberal. The Executive should hazard themselves here on such an occasion, and the Legislature when it meets ought to approve and extend it. It will have a great effect in doing away the impression of other disobligations towards France. I become daily more convinced that all the West India islands will remain in the hands of the people of color, and a total expulsion of the whites sooner or later take place. It is high time we should pursue the bloody scenes which our children certainly, and possibly ourselves, (south of Potomac,) have to wade through, and try to avert them. We have no news from the continent of Europe later than the 1st of May. My love to Mrs. Monroe. Tell her they are paving the street before your new house. Adieu. Yours affectionately.

TO MESSRS. DE VIAR AND JAUDENES.

PHILADELPHIA, July 14, 1793.

GENTLEMEN,—I have laid before the President your letters of the 11th and 13th instant. Your residence in the United States has given you an opportunity of becoming acquainted with the extreme freedom of the press in these States. Considering its great importance to the public liberty, and the difficulty of subjecting it to very precise rules, the laws have thought it

less mischievous to give greater scope to its freedom, than to the restraint of it. The President has therefore no authority to prevent publications of the nature of those you complain of in your favor of the 11th. I can only assure you that the government of the United States has no part in them, and that all its expressions of respect towards his Catholic Majesty, public and private, have been as uniform as their desire to cultivate his friendship has been sincere.

With respect to the letters I have had the honor of receiving from you for some time past, it must be candidly acknowledged that their complaints were thought remarkable, as to the matters they brought forward as well as the manner of expressing them. A succession of complaints, some founded on small things taken up as great ones, some on suggestions contrary to our knowledge of things, yet treated as if true on very inconclusive evidence, and presented to view as rendering our peace very problematical, indicated a determination to find cause for breaking the peace. The President thought it was high time to come to an *eclaircissement* with your government directly, and has taken the measure of sending a courier to Madrid for this purpose. This of course transfers all explanation of the past to another place. But the President is well pleased to hope from your letters of the 11th and 13th, that all perhaps had not been meant which had been understood from your former correspondence, and will be still more pleased to find these and all other difficulties between the two countries settled in such a way as to insure their future friendship.

I beg you to accept assurances of my particular esteem, and of the real respect with which I have the honor to be, Gentlemen, your most obedient, and most humble servant.

**TO THE CHIEF JUSTICE AND JUDGES OF THE SUPREME
COURT OF THE UNITED STATES.**

PHILADELPHIA, July 18, 1793.

GENTLEMEN,—The war which has taken place among the powers of Europe, produces frequent transactions within our ports and limits, on which

questions arise of considerable difficulty, and of greater importance to the peace of the United States. These questions depend for their solution on the construction of our treaties, on the laws of nature and nations, and on the laws of the land; and are often presented under circumstances which do not give a cognizance of them to the tribunals of the country. Yet their decision is so little analogous to the ordinary functions of the executive, as to occasion much embarrassment and difficulty to them. The President would, therefore, be much relieved, if he found himself free to refer questions of this description to the opinions of the judges of the Supreme Court of the United States, whose knowledge of the subject would secure us against errors dangerous to the peace of the United States, and their authority insure the respect of all parties. He has therefore asked the attendance of such judges as could be collected in time for the occasion, to know, in the first place, their opinion, whether the public may with propriety be availed of their advice on these questions? And if they may, to present, for their advice, the abstract questions which have already occurred, or may soon occur, from which they will themselves strike out such as any circumstances might, in their opinion, forbid them to pronounce on.

I have the honor to be, with sentiments of great esteem and respect,
Gentlemen, your most obedient humble servant.

TO J. MADISON.

July 21, 1792.

I wrote you on the 14th, since which I have no letter from you. It appears that two considerable engagements took place between France and the combined armies on the 1st and 8th of May. In the former, the French have had rather the worst of it, as may be concluded by their loss of cannon and loss of ground. In the latter, they have had rather the best, as is proved by their remaining on the ground, and their throwing relief into Conde, which had been the object of both battles. The French attacked in both. They have sent commissioners to England to sound for peace. General Felix Wimpfen is one. There is a strong belief that the bankruptcies and demolitions of manufacturers through the three kingdoms, will induce the English to

accede to peace. E. R. is returned. The affair of the loan has been kept suspended, and is now submitted to him. He brings very flattering information of the loyalty of the people of Virginia to the general government, and thinks the whole indisposition there is directed against the Secretary of the Treasury *personally*, not against his measures. On the whole he has quieted uneasiness here. I have never been able to get a sight of Billy till yesterday. He has promised to bring me the bill of your ploughs, which shall be paid. Adieu. Yours affectionately.

TO MR. GENET.

PHILADELPHIA, July 24, 1793.

SIR,—Your favor of the 9th instant, covering the information of Silvat Ducamp, Pierre Nouvel, Chouquet de Savarence, Gaston de Nogere and G. Blustier, that being on their passage from the French West Indies to the United States, on board merchant vessels of the United States, with slaves and merchandise, of their property, these vessels were stopped by British armed vessels and their property taken out as lawful prize, has been received.

I believe it cannot be doubted, but that by the general law of nations, the goods of a friend found in the vessel of an enemy are free, and the goods of an enemy found in the vessel of a friend are lawful prize. Upon this principle, I presume, the British armed vessels have taken the property of French citizens found in our vessels, in the cases above mentioned, and I confess I should be at a loss on what principle to reclaim it. It is true that sundry nations, desirous of avoiding the inconveniences of having their vessels stopped at sea, ransacked, carried into port and detained, under pretence of having enemy goods aboard, have in many instances introduced by their special treaties another principle between them, that enemy bottoms shall make enemy goods, and friendly bottoms friendly goods; a principle much less embarrassing to commerce, and equal to all parties in point of gain and loss. But this is altogether the effect of particular treaty, controlling in special cases the general principle of the law of nations, and therefore taking effect between such nations only as have so agreed to control it.

England has generally determined to adhere to the rigorous principle, having, in no instance, as far as I recollect, agreed to the modification of letting the property of the goods follow that of the vessel, except in the single one of her treaty with France. We have adopted this modification in our treaties with France, the United Netherlands and Russia; and therefore, as to them, our vessels cover the goods of their enemies, and we lose our goods when in the vessels of their enemies. Accordingly, you will be pleased to recollect, that in the late case of Holland and Mackie, citizens of the United States, who had laden a cargo of flour on board a British vessel, which was taken by the French frigate l'Ambuscade and brought into this port, when I reclaimed the cargo it was only on the ground that they were ignorant of the declaration of war when it was shipped. You observed, however, that the 14th article of our treaty had provided that ignorance should not be pleaded beyond two months after the declaration of war, which term had elapsed in this case by some days, and finding that to be the truth, though their real ignorance of the declaration was equally true, I declined the reclamation, as it never was in my view to reclaim the cargo, nor apparently in yours, to offer to restore it, by questioning the rule established in our treaty, that enemy bottoms make enemy goods. With England, Spain, Portugal and Austria, we have no treaties; therefore, we have nothing to oppose to their acting according to the general law of nations, that enemy goods are lawful prize though found in the bottom of a friend. Nor do I see that France can suffer on the whole; for though she loses her goods in our vessels when found therein by England, Spain, Portugal, or Austria, yet she gains our goods when found in the vessels of England, Spain, Portugal, Austria, the United Netherlands, or Prussia; and I believe I may safely affirm that we have more goods afloat in the vessels of these six nations, than France has afloat in our vessels; and consequently, that France is the gainer, and we the loser by the principle of our treaty. Indeed, we are the losers in every direction of that principle; for when it works in our favor, it is to save the goods of our friends, when it works against us, it is to lose our own; and we shall continue to lose while the rule is only partially established. When we shall have established it with all nations, we shall be in a condition neither to gain nor lose, but shall be less exposed to vexatious searches at sea. To this condition we are endeavoring to advance; but as it depends on the will of other nations as well as our own, we can only obtain it when they shall be ready to concur.

I cannot, therefore, but flatter myself, that on revising the cases of Ducamp and others, you will perceive that their losses result from the state of war, which has permitted their enemies to take their goods, though found in our vessels; and consequently, from circumstances over which we have no control.

The rudeness to their persons, practised by their enemies, is certainly not favorable to the character of the latter. We feel for it as much as for the extension of it to our own citizens, then companions, and find in it a motive the more for requiring measures to be taken which may prevent repetitions of it.

I have the honor to be, with great respect, Sir, your most obedient humble servant.

TO THE PRESIDENT OF THE UNITED STATES.

PHILADELPHIA, July 31, 1793.

DEAR SIR,—When you did me the honor of appointing me to the office I now hold, I engaged in it without a view of continuing any length of time, and I pretty early concluded on the close of the first four years of our Republic as a proper period for withdrawing; which I had the honor of communicating to you. When the period, however, arrived, circumstances had arisen, which, in the opinion of some of my friends, rendered it proper to postpone my purpose for awhile. These circumstances have now ceased in such a degree as to leave me free to think again of a day on which I may withdraw without its exciting disadvantageous opinions or conjectures of any kind. The close of the present quarter seems to be a convenient period, because the quarterly accounts of the domestic department are then settled of course, and by that time, also, I may hope to receive from abroad the materials for bringing up the foreign account to the end of its third year. At the close, therefore, of the ensuing month of September, I shall beg leave to retire to scenes of greater tranquility, from those which I am every day more and more convinced that neither my talents, tone of mind, nor time of life fit me. I have thought it my duty to mention the matter thus early, that there

may be time for the arrival of a successor, from any part of the Union from which you may think proper to call one. That you may find one more able to lighten the burthen of your labors, I most sincerely wish; for no man living more sincerely wishes that your administration could be rendered as pleasant to yourself, as it is useful and necessary to our country, nor feels for you a more rational or cordial attachment and respect than, dear Sir, your most obedient, and most humble servant.

TO MR. GENET.

PHILADELPHIA, August 7, 1793.

SIR,—In a letter of June the 5th, I had the honor to inform you that the President, after reconsidering, at your request, the case of vessels armed within our ports to commit hostilities on nations at peace with the United States, had finally determined that it could not be admitted, and desired that all those which had been so armed should depart from our ports. It being understood afterwards, that these vessels either still remained in our ports, or had only left them to cruise on our coasts and return again with their prizes, and that another vessel, the Little Democrat, had been since armed at Philadelphia, it was desired, in my letter of the 12th of July, that such vessels, with their prizes, should be detained, till a determination should be had of what was to be done under these circumstances. In disregard, however, of this desire, the Little Democrat went out immediately on a cruise.

I have it now in charge to inform you, that the President considers the United States as bound, pursuant to positive assurances given in conformity to the laws of neutrality, to effectuate the restoration of or to make compensation for prizes, which shall have been made of any of the parties at war with France, subsequent to the fifth day of June last, by privateers fitted out of our ports.

That it is consequently expected, that you will cause restitution to be made of all prizes taken and brought into our ports subsequent to the above-mentioned day by such privateers, in defect of which, the President

considers it as incumbent upon the United States to indemnify the owners of those prizes; the indemnification to be reimbursed by the French nation.

That besides taking efficacious measures to prevent the future fitting out of privateers in the ports of the United States, they will not give asylum therein to any which shall have been at any time so fitted out, and will cause restitution of all such prizes as shall be hereafter brought within their ports by any of the said privateers.

It would have been but proper respect to the authority of the country, had that been consulted before these armaments were undertaken. It would have been satisfactory, however, if their sense of them, when declared, had been duly acquiesced in. Reparation of the injury to which the United States have been made so involuntarily instrumental is all which now remains, and in this your compliance cannot but be expected.

In consequence of the information given in your letter of the 4th instant, that certain citizens of St. Domingo, lately arrived in the United States, were associating for the purpose of undertaking a military expedition from the territory of the United States, against that island, the Governor of Maryland, within which State the expedition is understood to be preparing, is instructed to take effectual measures to prevent the same.

I have the honor to be, with great respect, Sir, your most obedient, and most humble servant.

TO THE PRESIDENT OF THE UNITED STATES.

August 11, 1793.

Thomas Jefferson, with his respects to the President, begs leave to express in writing more exactly what he meant to have said yesterday. A journey home in the autumn is of a necessity which he cannot control after the arrangements he has made, and when there, it would be his extreme wish to remain. But if the continuance in office to the last of December, as intimated by the President, would, by bringing the two appointments nearer together, enable him to marshal them more beneficially to the public, and

more to his own satisfaction, either motive will suffice to induce Thomas Jefferson to continue till that time; he submits it therefore to the President's judgment, which he will be glad to receive when convenient, as the arrangements he had taken may require some change.

TO —.

August 11, 1793.

DEAR SIR,—I wrote you last on the 3d instant. Yours of July 30th, came to hand yesterday. Besides the present which goes by post, I write you another to-day to go by Mr. D. Randolph, who sets out the day after to-morrow for Monticello, but whether by the direct route or via Richmond is not yet decided. I shall desire that letter to be sent to you by express from Monticello. I have not been able to lay my hands on the newspaper which gave a short but true view of the intention of the proclamation; however, having occasion to state it in a paper which I am preparing, I have done it in the following terms, and I give you the very words from the paper, because just as I had finished so far, 812.15. called on me. I read it to him. He said it presented fairly his view of the matter. He recalled to my mind that I had, at the time, opposed its being made a declaration of neutrality on the ground that the Executive was not the competent authority for that, and, therefore, that it was agreed the instrument should be drawn with great care. My statement is in these words: "On the declaration of war between France and England, the United States being at peace with both, their situation was so new and unexperienced by themselves, that their citizens were not, in the first instant, sensible of the new duties resulting therefrom, and of the laws it would impose *even on their dispositions* towards the belligerent powers. Some of them imagined (and chiefly their transient sea-faring citizens) that they were free to indulge those dispositions, to take side with either party, and enrich themselves by depredations on the commerce of the other, and were meditating enterprises of this nature, as was said. In this state of the public mind, and before it should take an erroneous direction difficult to be set right, and dangerous to themselves and their country, the President thought it expedient, by way of Proclamation, to remind our fellow-citizens

that we were in a state of peace with all the belligerent powers; that in that state it was our duty neither to aid nor injure any; to exhort and warn them against acts which might contravene this duty, and particularly those of positive hostility, for the punishment of which the laws would be appealed to, and to put them on their guard also as to the risks they would run if they should attempt to carry articles of contraband to any." Very soon afterwards we learnt that he was undertaking the fitting and arming vessels in that port, enlisting men, foreign and citizens, and giving them commissions to cruise and commit hostilities against nations at peace with us, that these vessels were taking and bringing prizes into our ports, that the consuls of France were assuming to hold courts of admiralty on them, to try, condemn and authorize their sale as legal prizes, and all this before Mr. Genet had presented himself or his credentials to the President, before he was received by him, without his consent or consultation, and directly in contravention of the state of peace existing and declared to exist in the President's proclamation, and which it was incumbent on him to preserve till the Constitutional authority should otherwise declare. These proceedings became immediately, as was naturally to be expected, the subject of complaint by the representative here of that power against whom they would chiefly operate, &c. This was the true sense of the proclamation in the view of the draughtsman and of the two signers; but H. had other views. The instrument was badly drawn, and made the P. go out of his line to declare things which, though true, it was not exactly his province to declare. The instrument was communicated to me after it was drawn, but I was busy, and only run an eye over it to see that it was not made a declaration of neutrality, and gave it back again, without, I believe, changing a tittle. Pacificus has now changed his signature to "no Jacobin." Three papers under this signature have been published in Dunlap. I suppose they will get into Fenno. They are commentaries on the laws of nations and on the different parts of our treaty with France. As yet they have presented no very important heresy. Congress will not meet till the legal day. It was referred to a meeting at my office to consider and advice on it. I was for calling them. Kin. against it. H. said his judgment was against it. But he would join any two who should concur so as to make a majority either way. R. was pointedly against it. We agreed to give our opinions separately, and though the P. was in his own judgment for calling them, he acquiesced in the majority. I pass on to the other letter; so adieu. Yours affectionately.

TO GOUVERNEUR MORRIS.

PHILADELPHIA, August 16, 1793.

SIR,—In my letter of January the 13th, I enclosed to you copies of several letters which had passed between Mr. Ternant, Mr. Genet and myself, on the occurrences to which the present war had given rise within our ports. The object of this communication was to enable you to explain the principle on which our government was conducting itself towards the belligerent parties; principles which might not in all cases be satisfactory to all, but were meant to be just and impartial to all. Mr. Genet had been then but a little time with us; and but a little more was necessary to develop in him a character and conduct so unexpected and so extraordinary, as to place us in the most distressing dilemma, between our regard for his nation, which is constant and sincere, and a regard for our laws, the authority of which must be maintained; for the peace of our country, which the executive magistrate is charged to preserve; for its honor, offended in the person of that magistrate; and for its character grossly traduced, in the conversations and letters of this gentleman. In the course of these transactions, it has been a great comfort to us to believe, that none of them were within the intentions or expectations of his employers. These had been too recently expressed in acts which nothing could discolor, in the letters of the Executive Council, in the letter and decrees of the National Assembly, and in the general demeanor of the nation towards us, to describe to them things of so contrary a character. Our first duty, therefore, was, to draw a strong line between their intentions and the proceedings of their minister; our second, to lay those proceedings faithfully before them.

On the declaration of war between France and England, the United States being at peace with both, their situation was so new and unexperienced by themselves, that their citizens were not, in the first instant, sensible of the new duties resulting therefrom, and of the restraints it would impose even *on their dispositions* towards the belligerent powers. Some of them imagined (and chiefly their transient sea-faring citizens) that they were free to indulge those dispositions, to take side with either party, and enrich themselves by depredations on the commerce of the other, and were meditating enterprises of this nature, as there was reason to believe. In this state of the public mind, and before it should take an erroneous direction,

difficult to be set right and dangerous to themselves and their country, the President thought it expedient, through the channel of a proclamation, to remind our fellow-citizens that we were in a state of peace with all the belligerent powers, that in that state it was our duty neither to aid nor injure any, to exhort and warn them against acts which might contravene this duty, and particularly those of positive hostility, for the punishment of which the laws would be appealed to; and to put them on their guard also, as to the risks they would run, if they should attempt to carry articles of contraband to any. This proclamation, ordered on the 19th and signed the 22d day of April, was sent to you in my letter of the 26th of the same month.

On the day of its publication, we received, through the channel of the newspapers, the first intimation that Mr. Genet had arrived on the 8th of the month at Charleston, in the character of Minister Plenipotentiary from his nation to the United States, and soon after, that he had sent on to Philadelphia the vessel in which he came, and would himself perform the journey by land. His landing at one of the most distant ports of the Union from his points both of departure and destination, was calculated to excite attention; and very soon afterwards, we learned that he was undertaking to authorize the fitting and arming vessels in that port, enlisting men, foreigners and citizens, and giving them commissions to cruise and commit hostilities on nations at peace with us; that these vessels were taking and bringing prizes into our ports; that the consuls of France were assuming to hold courts of admiralty on them, to try, condemn, and authorize their sale as legal prize, and all this before Mr. Genet had presented himself or his credentials to the President, before he was received by him, without his consent or consultation, and directly in contravention of the state of peace existing, and declared to exist in the President's proclamation, and incumbent on him to preserve till the constitutional authority should otherwise declare. These proceedings became immediately, as was naturally to be expected, the subject of complaint by the representative here of that power against whom they would chiefly operate. The British minister presented several memorials thereon, to which we gave the answer of May the 15th, heretofore enclosed to you, corresponding in substance with a letter of the same date written to Mr. Ternant, the minister of France then residing here, a copy of which I send herewith. On the next day Mr. Genet reached this place, about five or six weeks after he had arrived at

Charleston, and might have been at Philadelphia, if he had steered for it directly. He was immediately presented to the President, and received by him as the minister of the republic; and as the conduct before stated seemed to bespeak a design of forcing us into the war without allowing us the exercise of any free will in the case, nothing could be more assuaging than his assurance to the President at his reception, which he repeated to me afterwards in conversation, and in public to the citizens of Philadelphia in answer to an address from them, that on account of our remote situation and other circumstances, France did not expect that we should become a party to the war, but wished to see us pursue our prosperity and happiness in peace. In a conversation a few days after, Mr. Genet told me that M. de Ternant had delivered him my letter of May the 15th. He spoke something of the case of the Grange, and then of the armament at Charleston, explained the circumstances which had led him to it before he had been received by the government and had consulted its will, expressed a hope that the President had not so absolutely decided against the measure but that he would hear what was to be said in support of it, that he would write me a letter on the subject, in which he thought he could justify it under our treaty; but that if the President should finally determine otherwise, he must submit; for that assuredly his instructions were to do what would be agreeable to us. He accordingly wrote the letter of May the 27th. The President took the case again into consideration, and found nothing in that letter which could shake the grounds of his former decision. My letter of June the 5th notifying this to him, his of June the 8th and 14th, mine of the 17th, and his again of the 22d, will show what further passed on this subject, and that he was far from retaining his disposition to acquiesce in the ultimate will of the President.

It would be tedious to pursue this and our subsequent correspondence through all their details. Referring, therefore, for these to the letters themselves, which shall accompany this, I will present a summary view only of all the points of difference which have arisen, and the grounds on which they rest.

1. Mr. Genet asserts his right of arming in our ports and of enlisting our citizens, and that we have no right to restrain him or punish them. Examining this question under the law of nations, founded on the general sense and usage of mankind, we have produced proofs, from the most

enlightened and approved writers on the subject, that a neutral nation must, in all things relating to the war, observe an exact impartiality towards the parties, that favors to one to the prejudice of the other, would import a fraudulent neutrality, of which no nation would be the dupe; that no succor should be given to either, unless stipulated by treaty, in men, arms, or anything else directly serving for war; that the right of raising troops being one of the rights of sovereignty, and consequently appertaining exclusively to the nation itself, no foreign power or person can levy men within its territory without its consent; and he who does, may be rightfully and severely punished; that if the United States have a right to refuse the permission to arm vessels and raise men within their ports and territories, they are bound by the laws of neutrality to exercise that right, and to prohibit such armaments and enlistments. To these principles of the law of nations Mr. Genet answers, by calling them "diplomatic subtleties," and "aphorisms of Vattel and others." But something more than this is necessary to disprove them; and till they are disproved, we hold it certain that the law of nations and the rules of neutrality forbid our permitting either party to arm in our ports.

But Mr. Genet says, that the twenty-second article of our treaty allows him *expressly* to arm in our ports. Why has he not quoted the very words of that article *expressly* allowing it? For that would have put an end to all further question. The words of the article are, "it shall not be lawful for any foreign privateers not belonging to subjects of the M. C. King, nor citizens of the said United States, who have commissions from any foreign Prince or State in enmity with either nation, to fit their ships in the ports of either the one or the other of the aforesaid parties." Translate this from the general terms in which it here stands, into the special case produced by the present war. "Privateers not belonging to France or the United States, and having commissions from the enemies of one of them," are, in the present state of things, "British, Dutch and Spanish privateers." Substituting these, then, for the equivalent terms, it will stand thus, "it shall not be lawful for British, Dutch or Spanish privateers to fit their ships in the ports of the United States." Is this an *express* permission to France to do it? Does the negative to the enemies of France, and silence as to France herself, imply an affirmative to France? Certainly not; it leaves the question as to France open, and free to be decided according to circumstances. And if the parties

had meant an affirmative stipulation, they would have provided for it expressly; they would never have left so important a point to be inferred from mere silence or implications. Suppose they had desired to stipulate a refusal to their enemies, but nothing to themselves; what form of expression would they have used? Certainly the one they have used; an express stipulation as to their enemies, and silence as to themselves. And such an intention corresponds not only with the words, but with the circumstances of the times. It was of value to each party to exclude its enemies from arming in the ports of the other, and could in no case embarrass them. They therefore stipulated so far mutually. But each might be embarrassed by permitting the other to arm in its ports. They therefore would not stipulate to permit that. Let us go back to the state of things in France when this treaty was made, and we shall find several cases wherein France could not have permitted us to arm in her ports. Suppose a war between these States and Spain. We know, that by the treaties between France and Spain, the former could not permit the enemies of the latter to arm in her ports. It was honest in her, therefore, not to deceive us by such a stipulation. Suppose a war between these States and Great Britain. By the treaties between France and Great Britain, in force at the signature of ours, we could not have been permitted to arm in the ports of France. She could not then have meant in this article to give us such a right. She has manifested the same sense of it in her subsequent treaty with England, made eight years after the date of ours, stipulating in the sixteenth article of it, as in our twenty-second, that foreign privateers, *not being subjects of either crown*, should not arm against either in the ports of the other. If this had amounted to an affirmative stipulation that the subjects of the other crown might arm in her ports *against us*, it would have been in direct contradiction to her twenty-second article with us. So that to give to these negative stipulations an affirmative effect, is to render them inconsistent with each other, and with good faith; to give them only their negative and natural effect, is to reconcile them to one another and to good faith, and is clearly to adopt the sense in which France herself has expounded them. We may justly conclude, then, that the article only obliges us to refuse this right, in the present case, to Great Britain and the other enemies of France. It does not go on to give it to France, either expressly or by implication. We may then refuse it. And since we are bound by treaty to refuse it to the one party, and are free to refuse it to that other, we are bound by the laws of neutrality to

refuse it to the other. The aiding either party then with vessels, arms or men, being unlawful by the law of nations, and not rendered lawful by the treaty, it is made a question whether our citizens, joining in these unlawful enterprises, may be punished?

The United States being in a state of peace with most of the belligerent powers by treaty, and with all of them by the laws of nature, murders and robberies committed by our citizens within our territory, or on the high seas, on those with whom we are so at peace, are punishable equally as if committed on our own inhabitants. If I might venture to reason a little formally, without being charged with running into 'subtleties and aphorisms,' I would say that if one citizen has a right to go to war of his own authority, every citizen has the same. If every citizen has that right, then the nation (which is composed of all its citizens) has a right to go to war, by the authority of its individual citizen. But this is not true either on the general principles of society, or by our Constitution, which gives that power to Congress alone, and not to the citizens individually. Then the first position was not true; and no citizen has a right to go to war of his own authority; and for what he does without right, he ought to be punished. Indeed, nothing can be more obviously absurd than to say, that all the citizens may be at war, and yet the nation at peace.

It has been pretended, indeed, that the engagement of a citizen in an enterprise of this nature, was a divestment of the character of citizen, and a transfer of jurisdiction over him to another sovereign. Our citizens are certainly free to divest themselves of that character by emigration and other acts manifesting their intention, and may then become the subjects of another power, and free to do whatever the subjects of that power may do. But the laws do not admit that the bare commission of a crime amounts of itself to a divestment of the character of citizen, and withdraws the criminal from their coercion. They would never prescribe an illegal act among the legal modes by which a citizen might disfranchise himself; nor render treason, for instance, innocent by giving it the force of a dissolution of the obligation of the criminal to his country. Accordingly, in the case of Henfield, a citizen of these States, charged with having engaged in the port of Charleston, in an enterprise against nations at peace with us, and with having joined in the actual commission of hostilities, the Attorney General of the United States, in an official opinion, declared that the act with which

he was charged was punishable by law. The same thing has been unanimously declared by two of the circuit courts of the United States, as you will see in the charges of Chief Justice Jay, delivered at Richmond, and Judge Wilson, delivered at Philadelphia, both of which are herewith sent. Yet Mr. Genet, in the moment he lands at Charleston, is able to tell the Governor, and continues to affirm in his correspondence here, that no law of the United States authorizes their government to restrain either its own citizens or the foreigners inhabiting its territory, from warring against the enemies of France. It is true, indeed, that in the case of Henfeild, the jury which tried, absolved him. But it appeared on the trial, that the crime was not knowingly and wilfully committed; that Henfeild was ignorant of the unlawfulness of his undertaking; that in the moment he was apprised of it he showed real contrition; that he had rendered meritorious services during the late war, and declared he would live and die an American. The jury, therefore, in absolving him, did no more than the constitutional authority might have done, had they found him guilty: the Constitution having provided for the pardon of offences in certain cases, and there being no case where it would have been more proper than where no offence was contemplated. Henfeild, therefore, was still an American citizen, and Mr. Genet's reclamation of him was as unauthorized as the first enlistment of him.

2. Another doctrine, advanced by Mr. Genet is, that our courts can take no cognizance of questions whether vessels, *held by theirs* as prizes, are lawful prizes or not; that this jurisdiction belongs exclusively to their consulates here, which have been lately erected by the National Assembly into complete courts of admiralty.

Let us consider, first, what is the extent of jurisdiction which the consulates of France may rightfully exercise here. Every nation has of natural right, entirely and exclusively, all the jurisdiction which may be rightfully exercised in the territory it occupies. If it cedes any portion of that jurisdiction to judges appointed by another nation, the limits of their power must depend on the instrument of cession. The United States and France have, by their consular convention, given mutually to their consuls jurisdiction in certain cases especially enumerated. But that convention gives to neither the power of establishing complete courts of admiralty within the territory of the other, nor even of deciding the particular question

of prize or not prize. The consulates of France, then, cannot take judicial cognizance of those questions here. Of this opinion Mr. Genet was when he wrote his letter of May the 27th, wherein he promises to correct the error of the consul at Charleston, of whom, in my letters of the 15th instant, I had complained, as arrogating to himself that jurisdiction; though in his subsequent letters he has thought proper to embark in the errors of his consuls.

But the United States, at the same time, do not pretend any right to try the validity of captures made *on the high seas*, by France, or any other nation, over its enemies. These questions belong, of common usage, to the sovereign of the captor, and whenever it is necessary to determine them, resort must be had to his courts. This is the case provided for in the seventeenth article of the treaty, which says, that such prizes shall not be arrested, nor cognizance taken of the validity thereof; a stipulation much insisted on by Mr. Genet and the consuls, and which we never thought of infringing or questioning. As the validity of captures then, made *on the high seas* by France over its enemies, cannot be tried within the United States by their consuls, so neither can they by our own courts. Nor is this the question between us, though we have been misled into it.

The real question is, whether the United States have not a right to protect vessels within their waters and on their coasts? The Grange was taken within the Delaware, between the shores of Jersey and of the Delaware State, and several miles above its mouth. The seizing her was a flagrant violation of the jurisdiction of the United States. Mr. Genet, however, instead of apologizing, takes great merit in his letters for giving her up. The William is said to have been taken within two miles of the shores of the United States. When the admiralty declined cognizance of the case, she was delivered to the French consul according to my letter of June the 25th, to be kept till the executive of the United States should examine into the case; and Mr. Genet was desired by my letter of June the 29th, to have them furnished with the evidence on behalf of the captors, as to the place of capture. Yet to this day it has never been done. The brig Fanny was alleged to be taken within five miles from our shore; the Catharine within two miles and a half. It is an essential attribute of the jurisdiction of every country to preserve peace, to punish acts in breach of it, and to restore property taken by force within its limits. Were the armed vessel of any nation to cut away

one of our own from the wharves of Philadelphia, and to chose to call it a prize, would this exclude us from the right of redressing the wrong? Were it the vessel of another nation, are we not equally bound to protect it, while within our limits? Were it seized in any other of our waters, or on the shores of the United States, the right of redressing is still the same; and humble indeed would be our condition, were we obliged to depend for that on the will of a foreign consul, or on negotiation with diplomatic agents.

Accordingly, this right of protection within its waters and to a reasonable distance on its coasts, has been acknowledged by every nation, and denied to none; and if the property seized be yet within their power, it is their right and duty to redress the wrong themselves. France herself has asserted the right in herself and recognized it in us, in the sixth article of our treaty, where we mutually stipulate that we will, *by all the means in our power* (not by negotiation), protect and defend each other's vessels and effects in our ports or roads, or on the seas near our countries, and recover and restore the same to the right owners. The United Netherlands, Prussia and Sweden, have recognized it also in treaties with us; and, indeed, it is a standing formula, inserted in almost all the treaties of all nations, and proving the principle to be acknowledged by all nations.

How, and by what organ of the government, whether judiciary or executive, it shall be redressed, is not yet perfectly settled with us. One of the subordinate courts of admiralty has been of opinion, in the first instance, in the case of the ship *William*, that it does not belong to the judiciary.

Another, perhaps, may be of a contrary opinion. The question is still *sub judice*, and an appeal to the court of last resort will decide it finally. If finally the judiciary shall declare that it does not belong to the *civil* authority, it then results to the executive, charged with the direction of the *military* force of the Union, and the conduct of its affairs with foreign nations. But this is a mere question of internal arrangement between the different departments of the government, depending on the particular diction of the laws and Constitution; and it can in nowise concern a foreign nation to which department these have delegated it.

3. Mr. Genet, in his letter of July the 9th, requires that the ship *Jane*, which he calls an English privateer, shall be immediately ordered to depart; and to justify this, he appeals to the 22d article of our treaty, which provides that it shall not be lawful for any foreign *privateer* to fit their ships in our ports, to

sell *what they have taken*, or purchase victuals, &c. The ship Jane is an English merchant vessel, which has been many years employed in the commerce between Jamaica and these States. She brought here a cargo of produce from that island, and was to take away a cargo of flour. Knowing of the war when she left Jamaica, and that our coast was lined with small French privateers, she armed for her defence, and took one of those commissions usually called *letters of marque*. She arrived here safely without having had any rencounter of any sort. Can it be necessary to say that a merchant vessel is not a privateer? That though she has arms to defend herself in time of war, in the course of her regular commerce, this no more makes her a privateer, than a husbandman following his plough in time of war, with a knife or pistol in his pocket, is thereby made a soldier? The occupation of a privateer is attack and plunder, that of a merchant vessel is commerce and self-preservation. The article excludes the former from our ports, and from selling *what she has taken*, that is, what she has acquired by war, to show it did not mean the merchant vessel, and what she had acquired by commerce. Were the merchant vessels coming for our produce forbidden to have any arms for their defence, every adventurer who had a boat, or money enough to buy one, would make her a privateer, our coasts would swarm with them, foreign vessels must cease to come, our commerce must be suppressed, our produce remain on our hands, or at least that great portion of it which we have no vessels to carry away, our ploughs must be laid aside and agriculture suspended. This is a sacrifice no treaty could ever contemplate, and which we are not disposed to make out of mere complaisance to a false definition of the term *privateer*. Finding that the Jane had purchased new carriages to mount two or three additional guns, which she had brought in her hold, and that she had opened additional port-holes for them, the carriages were ordered to be re-landed, the additional port-holes stopped, and her means of defence reduced, to be exactly the same at her departure as at her arrival. This was done on the general principle of allowing no party to arm within our ports.

4. The seventeenth article of our treaty leaves armed vessels free to *conduct*, whithersoever they please, the ships and goods taken from their enemies without paying any duty, and to depart and be conducted freely to the places expressed in their commissions, which the captain shall be obliged to show. It is evident, that this article does not contemplate a freedom *to sell their*

prizes here; but on the contrary, a *departure* to some other place, always to be expressed in their commission, where their validity is to be finally adjudged. In such case, it would be as unreasonable to demand duties on the goods they had taken from an enemy, as it would be on the cargo of a merchant vessel touching in our ports for refreshment or advices; and against this the article provides. But the armed vessels of France have been also admitted to land and sell their prize goods here for consumption, in which case, it is as reasonable they should pay duties, as the goods of a merchantman landed and sold for consumption. They have however demanded, and as a matter of right, to sell them free of duty, a right, they say, given by this article of the treaty, though the article does not give the right to sell at all. Where a treaty does not give the principal right of selling, the additional one of selling duty free cannot be given; and the laws in admitting the principal right of selling, may withhold the additional one of selling duty free. It must be observed, that our revenues are raised almost wholly on imported goods. Suppose prize goods enough should be brought in to supply our whole consumption. According to their construction we are to lose our whole revenue. I put the extreme case to evince, more extremely, the unreasonableness of the claim. Partial supplies would affect the revenue but partially. They would lessen the evil, but not the error, of the construction; and I believe we may say, with truth, that neither party had it in contemplation, when penning this article, to abandon any part of its revenue for the encouragement of the sea robbers of the other.

5. Another source of complaint with Mr. Genet has been, that the English take French goods out of American vessels, which he says is against the law of nations and ought to be prevented by us. On the contrary, we suppose it to have been long an established principle of the law of nations, that the goods of a friend are free in an enemy's vessel, and an enemy's goods lawful prize in the vessel of a friend. The inconvenience of this principle which subjects merchant vessels to be stopped at sea, searched, ransacked, led out of their course, has induced several nations latterly to stipulate against it by treaty, and to substitute another in its stead, that free bottoms shall make free goods, and enemy bottoms enemy goods; a rule equal to the other in point of loss and gain, but less oppressive to commerce. As far as it has been introduced, it depends on the treaties stipulating it, and forms exceptions, in special cases, to the general operation of the law of nations.

We have introduced it into our treaties with France, Holland and Prussia; and French goods found by the two latter nations in American bottoms are not made prize of. It is our wish to establish it with other nations. But this requires their consent also, is a work of time, and in the meanwhile, they have a right to act on the general principle, without giving to us or to France cause of complaint. Nor do I see that France can lose by it on the whole. For though she loses *her* goods when found in our vessels by the nations with whom we have no treaties, yet she gains *our* goods, when found in the vessels of the same and all other nations; and we believe the latter mass to be greater than the former. It is to be lamented, indeed, that the general principle has operated so cruelly in the dreadful calamity which has lately happened in St. Domingo. The miserable fugitives, who, to save their lives, had taken asylum in our vessels, with such valuable and portable things as could be gathered in the moment out of the ashes of their houses and wrecks of their fortunes, have been plundered of these remains by the licensed sea rovers of their enemies. This has swelled, on this occasion, the disadvantages of the general principle, that "an enemy's goods are free prize in the vessels of a friend." But it is one of those deplorable and unforeseen calamities to which they expose themselves who enter into a state of war, furnishing to us an awful lesson to avoid it by justice and moderation, and not a cause or encouragement to expose our own towns to the same burning and butcheries, nor of complaint because we do not.

6. In a case like the present, where the missionary of one government construes differently from that to which he is sent, the treaties and laws which are to form a common rule of action for both, it would be unjust in either to claim an exclusive right of construction. Each nation has an equal right to expound the meaning of their common rules; and reason and usage have established, in such cases, a convenient and well-understood train of proceeding. It is the right and duty of the foreign missionary to urge his own constructions, to support them with reasons which may convince, and in terms of decency and respect which may reconcile the government of the country to a concurrence. It is the duty of that government to listen to his reasonings with attention and candor, and to yield to them when just. But if it shall still appear to them that reason and right are on their side, it follows of necessity, that exercising the sovereign powers of the country, they have a right to proceed on their own constructions and conclusions as to

whatever is to be done within their limits. The minister then refers the case to his own government, asks new instructions, and, in the meantime, acquiesces in the authority of the country. His government examines his constructions, abandons them if wrong, insists on them if right, and the case then becomes a matter of negotiation between the two nations. Mr. Genet, however, assumes a new and bolder line of conduct. After deciding for himself ultimately, and without respect to the authority of the country, he proceeds to do what even his sovereign could not authorize, to put himself within the country on a line with its government, to act as co-sovereign of the territory; he arms vessels, levies men, gives commissions of war, independently of them, and in direct opposition to their orders and efforts. When the government forbids their citizens to arm and engage in the war, he undertakes to arm and engage them. When they forbid vessels to be fitted in their ports for cruising on nations with whom they are at peace, he commissions them to fit and cruise. When they forbid an uncaded jurisdiction to be exercised within their territory by foreign agents, he undertakes to uphold that exercise, and to avow it openly. The privateers Citoyen Genet and Sans Culottes having been fitted out at Charleston (though without the permission of the government, yet before it was forbidden) the President only required they might leave our ports, and did not interfere with their prizes. Instead, however, of their quitting our ports, the Sans Culottes remains still, strengthening and equipping herself, and the Citoyen Genet went out only to cruise on our coast, and to brave the authority of the country by returning into port again with her prizes. Though in the letter of June the 5th, the final determination of the President was communicated, that no future armaments in our ports should be permitted, the Vainqueur de La Bastille was afterwards equipped and commissioned in Charleston, the Anti-George in Savannah, the Carmagnole in Delaware, a schooner and a sloop in Boston, and the Polly or Republican was attempted to be equipped in New York, and was the subject of reclamation by Mr. Genet, in a style which certainly did not look like relinquishing the practice. The Little Sarah or Little Democrat was armed, equipped and manned, in the port of Philadelphia, under the very eye of the government, as if meant to insult it. Having fallen down the river, and being evidently on the point of departure for a cruise, Mr. Genet was desired in my letter of July the 12th, on the part of the President, to detain her till some inquiry and determination on the case should be had. Yet within three or four days after,

she was sent out by orders from Mr. Genet himself, and is, at this time, cruising on our coasts, as appears by the protest of the master of one of our vessels maltreated by her.

The government thus insulted and set at defiance by Mr. Genet, and committed in its duties and engagements to others, determined still to see in these proceedings but the character of the individual, and not to believe, and it does not believe, that they are by instructions from his employers. They had assured the British minister here, that the vessels already armed to our ports should be obliged to leave them, and that no more should be armed in them. Yet more had been armed, and those before armed had either not gone away, or gone only to return with new prizes. They now informed him that the order for departure should be enforced, and the prizes made contrary to it should be restored or compensated. The same thing was notified to Mr. Genet in my letter of August the 7th, and that he might not conclude the promise of compensation to be of no concern to him, and go on in his courses, he was reminded that it would be a fair article of account against his nation.

Mr. Genet, not content with using our force, whether we will or not, in the military line against nations with whom we are at peace, undertakes also to direct the civil government; and particularly for the executive and legislative bodies, to pronounce what powers may or may not be exercised by the one or the other. Thus, in his letter of June the 8th, he promises to respect the political opinions of the President, *till the Representatives shall have confirmed or rejected them*; as if the President had undertaken to decide what belonged to the decision of Congress. In his letter of June the 4th, he says more openly, that the President ought not to have taken on himself to decide on the subject of the letter, but that it was of importance enough to have consulted Congress thereon; and in that of June the 22d, he tells the President in direct terms, that Congress ought already to have been occupied on certain questions which he had been too hasty in deciding; thus making himself, and not the President, the judge of the powers ascribed by the Constitution to the executive, and dictating to him the occasion when he should exercise the power of convening Congress at an earlier day than their own act had prescribed.

On the following expressions, no commentary shall be made:

July 9. "Les principes philosophiques proclamées par le Président."

June 22. "Les opinions privées ou publiques de M. le President, et cette égide ne paroissant, pas suffisante."

June 22. "Le gouvernement fédéral s'est empressé, poussé par je ne sais quelle influence."

June 22. "Je ne puis attribuer, des démarches de cette nature qu'à des impressions étrangères dont le tems et la vérité triompheront."

June 25. "On poursuit avec acharnement, en vertu des instructions de M. le Président, les armateurs Français."

June 14. "Ce refus tend à accomplir le système infernal du roi d'Angleterre, et des autres rois ses complices, pour faire périr par la famine les Républicains Français avec la liberté."

June 8. "La lache abandon de ses amis."

July 25. "En vain le désir de conserver la paix fait-il sacrifier les intérêts de la France à cet intérêt, du moment; en vain le soif des richesses l'emporte-t-elle sur l'honneur dans la balance politique de l'Amerique. Tous ces ménagemens, toute cette condescendance, toute cette humilité n'aboutissent à rien; nos ennemis on rient, et les Français trop confians sont punis pour avoir cru que la nation Americaine, avoit un pavillon, qu'elle avoit quelque égard pour ses loix, quelque conviction de ses forces, et qu'elle tenoit au sentiment de sa dignité. Il ne m'est pas possible de peindre toute ma sensibilité sur ce scandale qui tend à la diminution de votre commerce, à l'oppression du notre, et à l'abaissement, à l'avilissement des republiques. Si nos concitoyens ont été trompés, si vous n'êtes point en état de soutenir la souveraineté de votre peuple, parlez; nous l'avons garantié quand nous étions esclaves, nous saurons la rendre redoutable étant devenus libres."

We draw a veil over the sensations which these expressions excite. No words can render them; but they will not escape the sensibility of a friendly and magnanimous nation, who will do us justice. We see in them neither the portrait of ourselves, nor the pencil of our friends; but an attempt to embroil both; to add still another nation to the enemies of his country, and to draw on both a reproach, which it is hoped will never stain the history of either.

The written proofs, of which Mr. Genet himself was the bearer, were too unequivocal to leave a doubt that the French nation are constant in their friendship to us. The resolves of their National Convention, the letters of their Executive Council, attest this truth, in terms which render it necessary to seek in some other hypothesis the solution of Mr. Genet's machinations against our peace and friendship.

Conscious, on our part, of the same friendly and sincere dispositions, we can with truth affirm, both for our nation and government, that we have never omitted a reasonable occasion of manifesting them. For I will not consider as of that character, opportunities of sallying forth from our ports to waylay, rob and murder defenceless merchants and others, who have done us no injury, and who were coming to trade with us in the confidence of our peace and amity. The violation of all the laws of order and morality which bind mankind together, would be an unacceptable offering to a just nation. Recurring then only to recent things, after so afflicting a libel, we recollect with satisfaction, that in the course of two years, by unceasing exertions, we paid up seven years' arrearages and instalments of our debt to France, which the inefficiency of our first form of government had suffered to be accumulating; that pressing on still to the entire fulfilment of our engagements, we have facilitated to Mr. Genet the effect of the instalments of the present year, to enable him to send relief to his fellow citizens in France, threatened with famine; that in the first moment of the insurrection which threatened the colony of St. Domingo, we stepped forward to their relief with arms and money, taking freely on ourselves the risk of an unauthorized aid, when delay would have been denial; that we have received according to our best abilities the wretched fugitives from the catastrophe of the principal town of that colony, who, escaping from the swords and flames of civil war, threw themselves on us naked and houseless, without food or friends, money or other means, their faculties lost and absorbed in the depth of their distresses; that the exclusive admission to sell here the prizes made by France on her enemies, in the present war, though unstipulated in our treaties, and unfounded in her own practice, or in that of other nations, as we believe; the spirit manifested by the late grand jury in their proceedings against those who had aided the enemies of France with arms and implements of war, the expressions of attachment to his nation, with which Mr. Genet was welcomed on his

arrival and journey from south to north, and our long forbearance under his gross usurpations and outrages of the laws and authority of our country, do not bespeak the partialities intimated in his letters. And for these things he rewards us by endeavors to excite discord and distrust between our citizens and those whom they have entrusted with their government, between the different branches of our government, between our nation and his. But none of these things, we hope, will be found in his power. That friendship which dictates to us to bear with his conduct yet a while, lest the interests of his nation here should suffer injury, will hasten them to replace an agent whose dispositions are such a misrepresentation of theirs, and whose continuance here is inconsistent with order, peace, respect, and that friendly correspondence which we hope will ever subsist between the two nations. His government will see too that the case is pressing. That it is impossible for two sovereign and independent authorities to be going on within our territory at the same time without collision. They will foresee that if Mr. Genet perseveres in his proceedings, the consequences would be so hazardous to us, the example so humiliating and pernicious, that we may be forced even to suspend his functions before a successor can arrive to continue them. If our citizens have not already been shedding each other's blood, it is not owing to the moderation of Mr. Genet, but to the forbearance of the government. It is well known that if the authority of the laws had been resorted to, to stop the Little Democrat, its officers and agents were to have been resisted by the crew of the vessel, consisting partly of American citizens. Such events are too serious, too possible, to be left to hazard, or to what is more than hazard, the will of an agent whose designs are so mysterious.

Lay the case then immediately before his government. Accompany it with assurances, which cannot be stronger than true, that our friendship for the nation is constant and unabating; that, faithful to our treaties, we have fulfilled them in every point to the best of our understanding; that if in anything, however, we have construed them amiss, we are ready to enter into candid explanations, and to do whatever we can be convinced is right; that in opposing the extravagances of an agent, whose character they seem not sufficiently to have known, we have been urged by motives of duty to ourselves and justice to others, which cannot but be approved by those who are just themselves; and finally, that after independence and self-

government, there is nothing we more sincerely wish than perpetual friendship with them.

I have the honor to be, with great respect and esteem, Dear Sir, your most obedient, and most humble servant.^[1]

TO DUKE AND CO.

PHILADELPHIA, August 21, 1793.

GENTLEMEN,—Complaint having been made to the government of the United States of some instances of unjustifiable vexation and spoliation committed on our merchant vessels by the privateers of the powers at war, and it being possible that other instances may have happened of which no information has been given to the government, I have it in charge from the President to assure the merchants of the United States concerned in foreign commerce or navigation, that due attention will be paid to any injuries they may suffer on the high seas, or in foreign countries, contrary to the law of nations, or to existing treaties, and that on the forwarding hither well-authenticated evidence of the same, proper proceedings will be adopted for their relief. The just and friendly dispositions of the several belligerent powers afford well-founded expectation that they will not hesitate to take effectual measures for restraining their armed vessels from committing aggressions and vexations on our citizens or their property.

There being no particular portion or description of the mercantile body pointed out by the law for receiving communications of this nature, I take the liberty of addressing it to the merchants of Savannah for the State of Georgia, and of requesting that through them it may be made known to all those of their State whom it may concern. Information will be freely received either from the individuals aggrieved or from any associations of merchants who will be pleased to take the trouble of giving it in a case so interesting to themselves and their country.

I have the honor to be, with great respect, Gentlemen, your most obedient servant.

TO J. MADISON.

August 25, 1793.

SIR,—You will perceive by the enclosed papers that Genet has thrown down the gauntlet to the President by the publication of his letter and my answer, and is himself forcing that appeal to the people, and risking that disgust which I had so much wished should have been avoided. The indications from different parts of the continent are already sufficient to show that the mass of the republican interest has no hesitation to disapprove of this intermeddling by a foreigner, and the more readily as his object was evidently, contrary to his professions, to force us into the war. I am not certain whether some of the more furious republicans may not schismatize with him.

TO J. MADISON.

September 1, 1793.

SIR,—My last was of the 25th, since that I have received yours of the 20th, and Col. M's of the 21st. Nothing further has passed with Mr. Genet, but one of his consuls has committed a pretty serious deed at Boston, by going with an armed force taken from a French frigate in the harbor, and rescuing a vessel out of the hands of the marshal who had arrested her by process from a court of justice; in another instance he kept off the marshal by an armed force from serving a process on a vessel. He is ordered, consequently, to be arrested himself, prosecuted and punished for the rescue, and his exequatur will be revoked. You will see in the newspapers the attack made on our commerce by the British king in his *additional instruction* of June 8. Though we have only newspaper information of it, *provisional* instructions are going to Mr. Pinckney to require a revocation of them, and indemnification for all losses which individuals may sustain by them in the meantime. Of the revocation I have not the least expectation. I shall therefore be for laying the whole business (respecting both nations) before Congress. While I think it impossible they should not approve of what has been done disagreeable to the friendly nation, it will be in their

power to soothe them by strong commercial retaliation against the hostile one. Pinching their commerce will be just against themselves, advantageous to us, and conciliatory towards our friends of the hard necessities into which their agent has drawn us. His conduct has given room for the enemies of liberty and of France, to come forward in a state of acrimony against that nation, which they never would have dared to have done. The disapprobation of the agent mingles with the reprehension of his nation, and gives a toleration to that which it never had before. He has still some defenders in Freneau, and Greenlief's paper, and who they are I know not: for even Hutcheson and Dallas give him up. I enclose you a Boston paper, which will give you a specimen of what all the papers are now filled with. You will recognize Mr. A—— under the signature of Camillus. He writes in every week's paper, and generally under different names. This is the first in which he has omitted some furious incartade against me. Hutcheson says that Genet has totally overturned the republican interest in Philadelphia. However, the people going right themselves, if they always see their republican advocates with them, an accidental meeting with the monocrats will not be a coalescence. You will see much said, and again said, about G.'s threat to appeal to the people. I can assure you it is a fact. I received yesterday the MS. you mentioned to me from F——n. I have only got a dozen pages into it, and never was more charmed with anything. Profound arguments presented in the simplest point of view entitle him really to his ancient signature. In the papers received from you, I have seen nothing which ought to be changed, except a part of one sentence not necessary for its object, and running foul of something of which you were not apprized. A malignant fever has been generated in the filth of Water street, which gives great alarm. About 70 people had died of it two days ago, and as many more were ill of it. It has now got into most parts of the city, and is considerably infectious. At first 3 out of 4 died, now about 1 out of 3. It comes on with a pain in the head, sick stomach, then a little chill, fever, black vomiting and stools, and death from the 2d to the 8th day. Everybody who can, is flying from the city, and the panic of the country people is likely to add famine to disease. Though becoming less mortal, it is still spreading, and the heat of the weather is very unpropitious. I have withdrawn my daughter from the city, but am obliged to go to it every day myself. My threshing machine has arrived at New York. Mr. Pinckney writes me word that the original from which this model is copied, threshes 150 bushels of wheat in 8 hours, with 6

horses and 5 men. It may be moved either by water or horses. Fortunately the workman who made it (a millwright) is come in the same vessel to settle in America. I have written to persuade him to go on immediately to Richmond, offering him the use of my model to exhibit, and to give him letters to get him into immediate employ in making them. I expect an answer before I write to you again. I understand that the model is made mostly in brass, and in the simple form in which it was first ordered, to be worked by horses. It was to have cost 5 guineas, but Mr. Pinckney having afterwards directed it to be accommodated to water movement also, it has made it more complicated, and costs 13 guineas. It will thresh any grain from the Windsor bean down to the smallest. Adieu.

TO MR. GORE.

PHILADELPHIA, September 2, 1793.

SIR,—The President is informed through the channel of a letter from yourself to Mr. Lear, that M. Duplaine, consul of France at Boston, has lately, with an armed force, seized and rescued a vessel from the officer of a court of justice, by process from which she was under arrest in his custody: and that he has in like manner, with an armed force, opposed and prevented the officer, charged with process from a court against another vessel, from serving that process. This daring violation of the laws requires the more attention, as it is by a foreigner clothed with a public character, arrogating an unfounded right to admiralty jurisdiction, and probably meaning to assert it by this act of force. You know that by the law of nations, consuls are not diplomatic characters, and have no immunities whatever against the laws of the land. To put this altogether out of dispute, a clause was inserted in our consular convention with France, making them amenable to the laws of the land, as other inhabitants. Consequently, M. Duplaine is liable to arrest, imprisonment, and other punishments, even capital, as other foreign subjects resident here. The President therefore desires that you will immediately institute such a prosecution against him, as the laws will warrant. If there be any doubt as to the character of his offence, whether of a higher or lower grade, it will be best to prosecute for that which will

admit the least doubt, because an acquittal, though it might be founded merely on the opinion that the grade of offence with which he is *charged* is higher than his *act* would support, yet it might be construed by the uninformed to be a judiciary decision against his amenability to the law, or perhaps in favor of the jurisdiction these consuls are assuming. The process therefore, should be of the surest kind, and all the proceedings well grounded. In particular, if an arrest, as is probable, be the first step, it should be so managed as to leave room neither for escape nor rescue. It should be attended with every mark of respect, consistent with safe custody, and his confinement as mild and comfortable also, as that would permit. These are the distinctions to which a consul is entitled, that is to say, of a particular decorum of deportment towards him, indicative of respect to the sovereign whose officer he is.

The President also desires you will immediately obtain the best evidence it shall be in your power to procure, under oath or affirmation, of the transaction stated in your letter, and that in this, you consider yourself as acting as much on behalf of M. Duplaine as the public, the candid truth of the case being exactly that which is desired, as it may be the foundation of an act, the justice of which should be beyond all question. This evidence I shall be glad to receive within as few days, or even hours, of delay as possible.

I am also instructed to ask the favor of you to communicate copies of any memorials, representations or other written correspondence which may have passed between the Governor and yourself, with respect to the privateers and prizes which have been the subject of your letters to Mr. Lear.

I have the honor to be, with great respect, Sir, your most obedient servant.

TO MR. HAMMOND.

PHILADELPHIA, September 5, 1793.

SIR,—I am honored with yours of August the 30th. Mine of the 7th of that month assured you that measures were taking for excluding from all further asylum in our ports, vessels armed in them to cruise on nations with which we are at peace, and for the restoration of the prizes, the *Lovely Lass*, *Prince William Henry*, and the *Jane of Dublin*, and that should the measures for restitution fail in their effect, the President considers it as incumbent on the United States, to make compensation for the vessels.

We are bound by our treaties with three of the belligerent nations, *by all the means in our power* to protect and defend their vessels and effects in our ports or waters, or on the seas near our shores, and to recover and restore the same to the right owners, when taken from them. If all the means in our power are used, and fail in their effect, we are not bound by our treaties with those nations to make compensation.

Though we have no similar treaty with Great Britain, it was the opinion of the President that we should use towards that nation the same rule which, under this article, was to govern us with the other nations; and even to extend it to captures made on *the high seas* and brought into our ports, if done by vessels which had been armed within them.

Having, for particular reasons, forbore to use *all the measures in our power* for the restitution of the three vessels mentioned in my letter of August the 7th, the President thought it incumbent on the United States to make compensation for them; and though nothing was said in that letter of other vessels taken under like circumstances, and brought in after the 5th of June and *before the date of that letter*, yet where the same forbearance had taken place, it was and is his opinion that compensation would be equally due.

As to prizes made under the same circumstances, and brought in *after the date of that letter*, the President determined that all the means in our power should be used for their restitution. If these fail us, as we should not be bound by our treaties to make compensation to the other powers, in the analogous case, he did not mean to give an opinion that it ought to be done to Great Britain. But still, if any cases shall arise subsequent to that date, the circumstances of which shall place them on similar ground with those

before it, the President would think compensation equally incumbent on the United States.

Instructions are given to the Governors of the different States, to use all the means in their power for restoring prizes of this last description, found within their ports. Though they will, of course, take measures to be informed of them, and the General Government has given them the aid of the Custom House officers for this purpose, yet you will be sensible of the importance of multiplying the channels of their information, as far as shall depend on yourself or any person under your direction, in order that the government may use the means in their power, for making restitution. Without knowledge of the capture, they cannot restore it. It will always be best to give the notice to them directly; but any information which you shall be pleased to send to me also, at any time, shall be forwarded to them as quickly as the distance will permit.

Hence you will perceive, Sir, that the President contemplates restitution or *compensation*, in the cases *before* the seventh of August, and, *after* that date, *restitution*, if it can be effected by any means in our power; and that it will be important that you should substantiate the fact that such prizes are in our ports or waters.

Your list of the privateers illicitly armed in our ports, is, I believe, correct.

With respect to losses by detention, waste, spoliation, sustained by vessels taken as before mentioned between the dates of June the 5th and August the 7th, it is proposed, as a provisional measure, that the collector of the customs of the district, and the British consul, or any other person you please, shall appoint persons to establish the value of the vessel and cargo, at the times of her capture and of her arrival in the port into which she is brought, according to their value in that port. If this shall be agreeable to you, and you will be pleased to signify it to me, with the names of the prizes understood to be of this description, instructions will be given accordingly, to the collectors of the customs where the respective vessels are.

I have the honor to be, with great respect, Sir, your most obedient, and most humble servant.

TO MR. PINCKNEY.

PHILADELPHIA, September 7, 1793.

SIR,—We have received, through a channel which cannot be considered as authentic, the copy of a paper, styled "Additional Instructions to the Commanders of his Majesty's Ships of War and Privateers," &c., dated at St. James's, June 8, 1793. If this paper be authentic, I have little doubt but that you will have taken measures to forward it to me. But as your communication of it may miscarry, and time in the mean will be lost, it has been thought better that it should be supposed authentic; that on that supposition I should notice to you its very exceptionable nature, and the necessity of obtaining explanations on the subject from the British government; desiring at the same time, that you will consider this letter as provisionally written only, and as if never written, in the event that the paper which is the occasion of it be not genuine.

The first article of it permits all vessels, laden wholly or in part with corn, flour or meal, bound to any port in France, to be stopped and sent into any British port, to be purchased by that government, or to be released only on the condition of security given by the master, that he will proceed to dispose of his cargo in the ports of some country *in amity with his Majesty*.

This article is so manifestly contrary to the law of nations, that nothing more would seem necessary than to observe that it is so. Reason and usage have established that when two nations go to war, those who choose to live in peace retain their natural right to pursue their agriculture, manufactures, and other ordinary vocations, to carry the produce of their industry for exchange to all nations, belligerent or neutral, as usual, to go and come freely without injury or molestation, and in short, that the war among others shall be, for them, as if it did not exist. One restriction on their natural rights has been submitted to by nations at peace, that is to say, that of not furnishing to either party implements merely of war for the annoyance of the other, nor anything whatever to a place blockaded by its enemy. What these implements of war are, has been so often agreed and is so well understood as to leave little question about them at this day. There does not exist, perhaps, a nation in our common hemisphere, which has not made a particular enumeration of them in some or all of their treaties, under the name of contraband. It suffices for the present occasion, to say, that corn,

flour and meal, are not of the class of contraband, and consequently remain articles of free commerce. A culture which, like that of the soil, gives employment to such a proportion of mankind, could never be suspended by the whole earth, or interrupted for them, whenever any two nations should think proper to go to war.

The state of war then existing between Great Britain and France, furnishes no legitimate right either to interrupt the agriculture of the United States, or the peaceable exchange of its produce with all nations; and consequently, the assumption of it will be as lawful hereafter as now, in peace as in war. No ground, acknowledged by the common reason of mankind, authorizes this act now, and unacknowledged ground may be taken at any time, and at all times. We see then a practice begun, to which no time, no circumstances prescribe any limits, and which strikes at the root of our agriculture, that branch of industry which gives food, clothing and comfort to the great mass of the inhabitants of these States. If any nation whatever has a right to shut up to our produce all the ports of the earth except her own and those of her friends, she may shut up these also, and so confine us within our own limits. No nation can subscribe to such pretensions; no nation can agree, at the mere will or interest of another, to have its peaceable industry suspended, and its citizens reduced to idleness and want. The loss of our produce destined for foreign markets, or that loss which would result from an arbitrary restraint of our markets, is a tax too serious for us to acquiesce in. It is not enough for a nation to say, we and our friends will buy your produce. We have a right to answer, that it suits us better to sell to their enemies as well as their friends. Our ships do not go to France to return empty. They go to exchange the surplus of one produce which we can spare, for surplusses of other kinds which they can spare and we want; which they can furnish on better terms, and more to our mind, than Great Britain or her friends. We have a right to judge for ourselves what market best suits us, and they have none to forbid to us the enjoyment of the necessities and comforts which we may obtain from any other independent country.

This act, too, tends directly to draw us from that state of peace in which we are wishing to remain. It is an essential character of neutrality to furnish no aids (not stipulated by treaty) to one party, which we are not equally ready to furnish to the other. If we permit corn to be sent to Great Britain and her friends, we are equally bound to permit it to France. To restrain it would be

a partiality which might lead to war with France; and between restraining it ourselves, and permitting her enemies to restrain it unrightfully, is no difference. She would consider this as a mere pretext, of which she would not be the dupe; and on what honorable ground could we otherwise explain it? Thus we should see ourselves plunged by this unauthorized act of Great Britain into a war with which we meddle not, and which we wish to avoid if justice to all parties and from all parties will enable us to avoid it. In the case where we found ourselves obliged by treaty to withhold from the enemies of France the right of arming in our ports, we thought ourselves in justice bound to withhold the same right from France also, and we did it. Were we to withhold from her supplies of provisions, we should in like manner be bound to withhold them from her enemies also; and thus shut to ourselves all the ports of Europe where corn is in demand, or make ourselves parties in the war. This is a dilemma which Great Britain has no right to force upon us, and for which no pretext can be found in any part of our conduct. She may, indeed, feel the desire of starving an enemy nation; but she can have no right of doing it at our loss, nor of making us the instruments of it.

The President therefore desires, that you will immediately enter into explanations on this subject with the British government. Lay before them in friendly and temperate terms all the demonstrations of the injury done us by this act, and endeavor to obtain a revocation of it, and full indemnification to any citizens of these States who may have suffered by it in the meantime. Accompany your representations by every assurance of our earnest desire to live on terms of the best friendship and harmony with them, and to found our expectations of justice on their part, on a strict observance of it on ours.

It is with concern, however, I am obliged to observe, that so marked has been the inattention of the British court to every application which has been made to them on any subject, by this government, (not a single answer I believe having ever been given to one of them, except in the act of exchanging a minister) that it may become unavoidable, in certain cases, where an answer of some sort is necessary, to consider their silence as an answer. Perhaps this is their intention. Still, however, desirous of furnishing no color of offence, we do not wish you to name to them any term for giving an answer. Urge one as much as you can without commitment, and

on the first day of December be so good as to give us information of the state in which this matter is, that it may be received during the session of Congress.

The second article of the same instruction allows the armed vessels of Great Britain to seize for condemnation all vessels, on their first attempt to enter a blockaded port, except those of Denmark and Sweden, which are to be prevented only, but not seized, on their first attempt. Of the nations inhabiting the shores of the Atlantic ocean, and practising its navigation, Denmark, Sweden and the United States alone are neutral. To declare then all *neutral* vessels (for as to the vessels of the *belligerent* powers no order was necessary) to be legal prize, which shall attempt to enter a blockaded port, except those of *Denmark and Sweden*, is exactly to declare *that the vessels of the United States* shall be lawful prize, and those of Denmark and Sweden shall not. It is of little consequence that the article has avoided naming the United States, since it has used a description applicable to them, and to them alone, while it exempts the others from its operation by name. You will be pleased to ask an explanation of this distinction; and you will be able to say, in discussing its justice, that in every circumstance, we treat Great Britain on the footing of the most favored nation where our treaties do not preclude us, and that even these are just as favorable to her, as hers are to us. Possibly she may be bound by treaty to admit this exception in favor of Denmark and Sweden. But she cannot be bound by treaty to withhold it from us. And if it be withheld merely because not established with us by treaty, what might not we, on the same ground, have withheld from Great Britain during the short course of the present war, as well as the peace which preceded it?

Whether these explanations with the British government shall be verbal or in writing, is left to yourself. Verbal communications are very insecure; for it is only to deny them or to change their terms, in order to do away their effect at any time. Those in writing have as many and obvious advantages, and ought to be preferred, unless there be obstacles of which we are not apprized.

I have the honor to be, with great and sincere esteem, dear Sir, your most obedient humble servant.

TO J. MADISON.

September 8, 1793.

I have received and am charmed with No. 5. I thought the introduction an useful lesson to others as I found it to myself, for I had really, by constantly hearing the sound, been led into a pretty free use of it myself. I struck out the passage you desired in the page. I struck out also the words "and neutrality" in the following passage, "taking the proclamation *in its proper sense* as reminding all concerned, that as the United States were at peace, the laws of peace *and neutrality* were still obligatory," also a paragraph of four lines that a minister from France was hourly expected when the proclamation issued. There was one here at the time; the other did not arrive in six weeks. To have waited that time should have given full course to the evil.

I went through Franklin with enchantment; and what peculiarly pleased me was, that there was not a sentence from which it could be conjectured whether it came from north, south, east or west. At last a whole page of Virginia flashed on me. It was in the section on the state of parties, and was an apology for the continuance of slavery among us. However, this circumstance may be justly palliated, it had nothing to do with the state of parties, with the bank, encumbered a good cause with a questionable argument. Many readers who would have gone heart and hand with the author so far, would have flown off in a tangent from that paragraph. I struck it out. Justify this if you please to those concerned, and if it cannot be done, say so, and it may still be re-established. I mentioned to you in my last that a French consul at Boston had rescued a vessel out of the hands of a Marshal by military force. Genet has, at New York, forbidden a Marshal to arrest a vessel, and given orders to the French squadron to protect her by force. Was there ever an instance before of a diplomatic man overawing and obstructing the course of the law in a country by an armed force? The yellow fever increases. The week before last about three a day died. This last week about eleven a day have died; consequently, from known data about thirty-three a day are taken, and there are about three hundred and thirty patients under it. They are much scattered through the town, and it is the opinion of the physicians that there is no possibility of stopping it. They agree it is a nondescript disease, and no two agree in any one part of their

process of cure. The President goes off the day after to-morrow, as he had always intended. Knox then takes flight. Hamilton is ill of the fever, as is said. He had two physicians out at his house the night before last.

TO MR. HAMMOND.

PHILADELPHIA, September 9, 1793.

SIR,—I have the honor to acknowledge the receipt of your two memorials of the 4th and 6th instant, which have been duly laid before the President of the United States.

You cannot be uninformed of the circumstances which have occasioned the French squadron now in New York to seek asylum in the ports of the United States. Driven from those where they were on duty, by the superiority of the adverse party in the civil war which has so unhappily afflicted the colonies of France, filled with the wretched fugitives from the same scenes of distress and desolation, without water or provisions for the shortest voyage, their vessels scarcely in a condition to keep the sea at all, they were forced to seek the nearest ports in which they could be received and supplied with necessaries. That they have ever been out again to cruise, is a fact we have never learned, and which we believe to be impossible, from the information received of their wants and other impediments to active service. This case has been noted specially, to show that no inconvenience can have been produced to the trade of the other belligerent powers, by the presence of this fleet in our harbors. I shall now proceed to more general ground.

France, England and all other nations have a right to cruise on our coasts; a right not derived from our permission, but from the law of nature. To render this more advantageous, France has secured to herself, by a treaty with us, (as she has done also by a treaty with Great Britain, in the event of a war with us or any other nation) two special rights. 1. Admission for her prizes and privateers into our ports. This, by the seventeenth and twenty-second articles, is secured to her exclusively of her enemies, as is done for her in the like case by Great Britain, were her present war with us instead of Great Britain. 2. Admission for her public vessels of war into our ports, in cases of

stress of weather, pirates, enemies, or other urgent necessity, to refresh, victual, repair, &c. This is not exclusive. As then we are bound by treaty to receive the public armed vessels of France, and are not bound to exclude those of her enemies, the executive has never denied the same right of asylum in our ports to the public armed vessels of your nation. They, as well as the French, are free to come into them in all cases of weather, piracies, enemies, or other urgent necessity, and to refresh, victual, repair, &c. And so many are these urgent necessities, to vessels far from their own ports, that we have thought inquiries into the nature as well as the degree of the necessities which drive them hither, as endless as they would be fruitless, and therefore have not made them. And the rather, because there is a third right, secured to neither by treaty, but due to both on the principles of hospitality between friendly nations, that of coming into our ports, not *under the pressure of urgent necessity*, but whenever their comfort or convenience induces them. On this ground, also, the two nations are on a footing.

As it has never been conceived that either would detain their ships of war in our ports when they were in a condition for action, we have never conceived it necessary to prescribe any limits to the time of their stay. Nor can it be viewed as an injury to either party, to let their enemies lie still in our ports from year's end to year's end, if they choose it. Thus, then, the public ships of war of both nations enjoy a perfect equality in our ports; first, in cases of urgent necessity; secondly, in cases of comfort or convenience; and thirdly, in the time they choose to continue; and all a friendly power can ask from another is, to extend to her the same indulgences which she extends to other friendly powers. And though the admission of the prizes and privateers of France is exclusive, yet it is the effect of treaty made long ago, for valuable considerations, not with a view to the present circumstances, nor against any nation in particular, but all in general, and may, therefore, be faithfully observed without offence to any; and we mean faithfully to observe it. The same exclusive article has been stipulated, as was before observed, by Great Britain in her treaty with France, and indeed is to be found in the treaties between most nations.

With respect to the usurpation of admiralty jurisdiction by the consuls of France, within these States, the honor and rights of the States themselves were sufficient motives for the executive to take measures to prevent its

continuance, as soon as they were apprized of it. They have been led by particular considerations to await the effect of these measures, believing they would be sufficient; but finding at length they were not, such others have been lately taken as can no longer fail to suppress this irregularity completely.

The President is duly sensible of the character of the act of opposition made to the serving of legal process on the brig William Tell, and he presumes the representations made on that subject to the minister of France, will have the effect of opening a free access to the officer of justice, when he shall again present himself with the precept of his court.

I have the honor to be, with great respect, Sir, your most obedient, and most humble servant.

TO MR. GENET.

PHILADELPHIA, September 9, 1793.

SIR,—In my letter of June the 25th, on the subject of the ship William, and generally of vessels suggested to be taken within the limits of the protection of the United States by the armed vessels of your nation, I undertook to assure you it would be more agreeable to the President, that such vessels should be detained under the orders of yourself or the consul of France, than by a military guard, until the government of the United States should be able to inquire into and decide on the fact. In two separate letters of the 29th of the same month, I had the honor to inform you of the claims lodged with the executive for the same ship William and the brig Fanny, to enclose you the evidence on which they were founded, and to desire that if you found it just, you would order the vessels to be delivered to the owners; or, if overweighed in your judgment by any contradictory evidence which you might have or acquire, you would do me the favor to communicate that evidence; and that the consuls of France might retain the vessels in their custody, in the meantime, until the executive of the United States should consider and decide finally on the subject.

When that mode of proceeding was consented to for your satisfaction, it was by no means imagined it would have occasioned such delays of justice to the individuals interested. The President is still without information, either that the vessels are restored, or that you have any evidence to offer as to the place of capture. I am, therefore, Sir, to repeat the request of early information on this subject, in order that if any injury has been done those interested, it may be no longer aggravated by delay.

The intention of the letter of June the 25th having been to permit such vessels to remain in the custody of the consuls, instead of that of a military guard (which, in the case of the ship William, appeared to have been disagreeable to you), the indulgence was of course to be understood as going only to cases which the executive might take, or keep possession of, with a military guard, and not to interfere with the authority of the courts of justice in any case wherein they should undertake to act. My letter of June the 29th, accordingly, in the same case of the ship William, informed you that no power in this country could take a vessel out of the custody of the courts, and that it was only because they decided not to take cognizance of that case, that it resulted to the executive to interfere in it. Consequently, this alone put it in their power to leave the vessel in the hands of the consul. The courts of justice exercise the sovereignty of this country in judiciary matters; are supreme in these, and liable neither to control nor opposition from any other branch of the government. We learn, however, from the enclosed paper, that the consul of New York, in the first instance, and yourself in a subsequent one, forbid an officer of justice to serve the process with which he was charged from his court, on the British brig William Tell, taken by a French armed vessel within a mile of our shores, as has been deposed on oath, and brought into New York, and that you had even given orders to the French squadron there to protect the vessel against any person who should attempt to take her from their custody. If this opposition were founded, as is there suggested, on the indulgence of the letters before cited, it was extending that to a case not within their purview; and even had it been precisely the case to which they were to be applied, is it possible to imagine you might assert it within the body of the country by force of arms?

I forbear to make the observations which such a measure must suggest, and cannot but believe that a moment's reflection will evince to you the depth of

the error committed in this opposition to an officer of justice, and in the means proposed to be resorted to in support of it. I am therefore charged to declare to you expressly, that the President expects and requires that the officer of justice be not obstructed in freely and peaceably serving the process of his court, and that in the meantime the vessel and her cargo be not suffered to depart till the judiciary, if it will undertake it, or himself if not, shall decide whether the seizure has been made within the limits of our protection.

I have the honor to be, with great respect, Sir, your most obedient, and most humble servant.

TO MR. COXE.

September 10, 1793.

Thomas Jefferson presents his compliments to Mr. Coxe. He directed a census to be sent him in the moment of receiving his note of the 5th. With respect to the placing consuls in the British Islands, we are so far from being permitted that, that a common mercantile factor is not permitted by their laws. The experiment of establishing consuls in the colonies of the European nations has been going on for some time, but as yet we cannot say it has been formally and fully admitted by any. The French colonial authority has received them, but they have never yet been confirmed by the national authority.

TO MR. MORRIS.

PHILADELPHIA, September 11, 1793.

DEAR SIR,—My late letters to you have been of August 16, 23, and 26, and a duplicate of the two first will accompany this. Yours lately received are April 4, 5, 11, 19, May 20, and June 1, being Nos. 26 to 31. I have little

particulars to say to you by this opportunity which may be less certain than the last.

The north-western Indians have refused to meet our commissioners, unless they would agree to the Ohio as our boundary by way of preliminary article; and this being impossible on account of the army locations and particular sales on that side the river, the war will go on. We may shortly expect to hear that General Wayne is in motion. An infectious and mortal fever is broke out in this place. The deaths under it the week before last were about forty, the last week about fifty, this week they will probably be about two hundred, and it is increasing. Every one is getting out of the city who can. Colonel Hamilton is ill of the fever, but is on the recovery. The President, according to an arrangement of some time ago, set out for Mount Vernon on yesterday. The Secretary of War is setting out on a visit to Massachusetts. I shall go in a few days to Virginia. When we shall reassemble again may perhaps depend on the course of this malady, and on that may depend the date of my next letter.

I have the honor to be, with great and sincere esteem and respect, dear Sir,
your most obedient servant.

TO MR. GENET.

September 15, 1793.

SIR,—The correspondence which has taken place between the Executive and yourself, and the acts which you have thought proper to do, and to countenance, in opposition to the laws of the land, have rendered it necessary, in the opinion of the President, to lay a faithful statement of them before the government of France, to explain to them the reasons and the necessity which have dictated our measures, to renew assurances of that sincere friendship which has suffered no intermission during the course of these proceedings, and to express our extreme anxiety that none may be produced on their part. This has accordingly been directed to be done by the Minister Plenipotentiary of the United States at Paris, in a letter, a copy of which I now enclose to you;^[2] and, in order to bring to an end what cannot

be permitted to continue, there could be no hesitation to declare in it the necessity of their having a representation here, disposed to respect the laws and authorities of the country, and to do the best for their interest which these would permit. An anxious regard for those interests, and a desire that they may not suffer, will induce the executive in the meantime to receive your communications in writing, and to admit the continuance of your functions so long as they shall be restrained within the limits of the law, as heretofore announced to you, or shall be of the tenor usually observed towards independent nations by the representative of a friendly power residing with them.

The President thought it respectful to your nation as well as yourself, to leave to yourself the restraining certain proceedings of the consuls of France within the United States, which you were informed were contrary to the laws of the land, and therefore not to be permitted. He has seen with regret, however, that you have been far from restraining these proceedings, and that the duty has devolved on him of suppressing them by the authority of the country. I enclose to you the copy of a letter written to the several consuls and vice-consuls of France, warning them that this will be done if any repetition of these acts shall render it necessary. To the consul of France at Boston, no such letter has been written. A more serious fact is charged on him, which, if proved as there is reason to expect, will render the revocation of his Exequatur an act of immediate duty.

I have the honor to be, with great respect, Sir, your most obedient servant.

TO MR. GENET.

MONTICELLO, October 3, 1793.

SIR,—In a former letter which I had the honor of writing you, I mentioned that information had been received that M. Duplaine, vice-consul of France, at Boston, had been charged with an opposition to the laws of the land, of such a character, as if true would render it the duty of the President immediately to revoke the Exequatur, whereby he is permitted to exercise the functions of vice-consul in these United States. The fact has been since

inquired into, and I now enclose you copies of the evidence establishing it; whereby you will perceive how inconsistent with peace and order it would be, to permit, any longer, the exercise of functions in these United States by a person capable of mistaking their legitimate extent so far, as to oppose, by force of arms, the course of the laws within the body of the country. The wisdom and justice of the government of France, and their sense of the necessity in every government, of preserving the course of the laws free and unobstructed, render us confident that they will approve this necessary arrestation of the proceedings of one of their agents; as we would certainly do in the like case, were any consul or vice-consul of ours to oppose with an armed force, the course of their laws within their own limits. Still, however, indispensable as this act has been, it is with the most lively concern, the President has seen that the evil could not be arrested otherwise than by an appeal to the authority of the country.

I have the honor to be, with great esteem and respect, your most obedient, and most humble servant.

TO —.

MONTICELLO, October 17, 1793.

DEAR SIR,—I have carefully considered the question whether the President may call Congress to any other place than that to which they have adjourned themselves, and think he cannot have such a right unless it has been given him by the Constitution, or the laws, and that neither of these has given it. The only circumstance which he can alter as to their meeting, is that of *time* by calling them at an *earlier day* than that to which they stand adjourned, but no power to change the place is given. Mr. Madison happened to come here yesterday, after the receipt of your letter. I proposed the question to him, and he thinks there was particular caution intended and used in the direction of the Constitution, to avoid giving the President any power over the place of meeting; lest he should exercise it with local partialities. With respect to the Executive, the Residence law has fixed our office at Philadelphia till the year 1800, and therefore it seems necessary that we should get as near them as we may with safety. As to the place of

meeting for the Legislature, were we authorized to decide that question, I should think it right to have it in some place in Pennsylvania, in consideration of the principles of the Residence bill, and we might furnish no pretext to that state to infringe them hereafter. I am quite unacquainted with Reading and its means of accommodation. Its situation is perhaps as little objectionable as that of Lancaster, and less so than Trenton or perhaps Wilmington. However, I think we have nothing to do with the question, and that Congress must meet in Philadelphia, even if it be in the open fields, to adjourn themselves to some other place. I am extremely afraid something has happened to Mr. Bankson, on whom I relied for continuance at my office. For two posts past I have not received any letter from him, nor dispatches of any kind. This involves new fears for the duplicates of those to Mr. Morris. I have the honor to be, with sentiments of the most perfect esteem and attachment, dear Sir, your most obedient, and most humble servant.

TO ____.^[3]

GERMANTOWN, November 2, 1793.

I overtook the President at Baltimore, and we arrived here yesterday, myself fleeced of seventy odd dollars to get from Fredericksburg here, the stages running no further than Baltimore. I mention this to put yourself and Monroe on your guard. The fever in Philadelphia has so much abated as to have almost disappeared. The inhabitants are about returning. It has been determined that the President shall not interfere with the meeting of Congress. R. H. and K. were of opinion he had a right to call them to any place, but that the occasion did not call for it. I think the President inclined to the opinion. I proposed a proclamation notifying that the Executive business would be done here till further notice, which I believe will be agreed. H. R. Lewis, Rawle &c., all concur in the necessity that Congress should meet in Philadelphia, and vote there their own adjournment. If it shall then be necessary to change the place, the question will be between New York and Lancaster. The Pennsylvania members are very anxious for the latter, and will attend punctually to support it, as well as to support

much for Muhlenburg, and oppose the appointment of Smith (S. C.) speaker, which is intended by the Northern members. According to present appearances this place cannot lodge a single person more. As a great favor, I have got a bed in the corner of the public room of a tavern; and must continue till some of the Philadelphians make a vacancy by removing into the city. Then we must give him from four to six or eight dollars a week for cuddies without a bed, and sometimes without a chair or table. There is not a single lodging house in the place. Ross and Willing are alive. Hancock is dead. Johnson of Maryland has *refused* Rec. L. and McE. in contemplation; the last least. You will have seen Genet's letters to Moultree and to myself. Of the last I know nothing but from the public papers; and he published Moultree's letter and his answer the moment he wrote it. You will see that his inveteracy against the President leads him to meditate the embroiling him with Congress. They say he is going to be married to a daughter of Clinton's. If so, he is afraid to return to France. Hamilton is ill, and suspicious he has taken the fever again by returning to his house. He of course could not attend here to-day; but the President had showed me his letter on the right of calling Congress to another place. Adieu.

TO MR. GENET.

GERMANTOWN, November 8, 1793.

SIR,—I have now to acknowledge and answer your letter of September the 13th, wherein you desire that we may define the extent of the line of territorial protection on the coasts of the United States, observing that governments and jurisconsults have different views on this subject.

It is certain that, therefore, they have been much divided in opinion, as to the distance from their sea coast to which they might reasonably claim a right of prohibiting the commitment of hostilities. The greatest distance to which any respectable assent among nations has been at any time given, has been the extent of the human sight, estimated at upwards of twenty miles; and the smallest distance, I believe, claimed by any nation whatever, is the utmost range of a cannon ball, usually stated at one sea league. Some intermediate distance have also been insisted on, and that of three sea

leagues has some authority in its favor. The character of our coast, remarkable in considerable parts of it for admitting no vessels of size to pass the shores, would entitle us in reason to as broad a margin of protected navigation as any nation whatever. Not proposing, however, at this time, and without a respectful and friendly communication with the powers interested in this navigation, to fix on the distance to which we may ultimately insist on the right of protection, the President gives instructions to the officers acting under his authority, to consider those heretofore given them as restrained, for the present, to the distance of one sea league, or three geographical miles, from the sea shore. This distance can admit of no opposition, as it is recognized by treaties between some of the powers with whom we are connected in commerce and navigation, and is as little or less than is claimed by any of them on their own coasts.

Future occasions will be taken to enter into explanations with them, as to the ulterior extent to which we may reasonably carry our jurisdiction. For that of the rivers and bays of the United States, the laws of the several States are understood to have made provision, and they are moreover, as being land-locked, within the body of the United States.

Examining by this rule the case of the British brig *Fanny*, taken on the 8th of May last, it appears from the evidence that the capture was made four or five miles from the land; and consequently, without the line provisionally adopted by the President, as before mentioned.

I have the honor to be, with sentiments of respect and esteem, Sir, your most obedient, and most humble servant.

TO MR. HAMMOND.

GERMANTOWN, November 10, 1793.

SIR,—As in cases where vessels are reclaimed by the subjects or citizens of the belligerent powers as having been taken within the jurisdiction of the United States, it becomes necessary to ascertain that fact by testimony taken according to the laws of the United States. The Governors of the several

States to whom the application will be made in the first instance, are desired immediately to notify thereof the Attorney's of their respective districts. The Attorney is thereupon instructed to give notice to the principal agent of both parties who may have come in with the prize, and also to the consuls of the nations interested, and to recommend to them to appoint, by mutual consent, arbiters to decide whether the capture was made within the jurisdiction of the United States, as stated to you in my letter of the 8th instant; according to whose award the Governor may proceed to deliver the vessel to the one or the other party. But in case the parties or consuls shall not agree to name arbiters, then the Attorney, or some person substituted by him, is to notify them of the time and place, when and where he will be, in order to take the depositions of such witnesses as they may cause to come before him, which depositions he is to transmit for the information and decision of the President.

It has been thought best to put this business into such a train as that the examination of the fact may take place immediately, and before the witnesses may have again departed from the United States, which would too frequently happen, and especially in the distant States, if it should be deferred until information is sent to the Executive, and a special order awaited to take the depositions.

I take the liberty of requesting that you will be pleased to give such instructions to the consuls of your nation as may facilitate the object of this regulation. I urge it with the more earnestness because as the attorneys of the districts are for the most part engaged in much business of their own, they will rarely be able to attend more than one appointment, and consequently the party who should fail from negligence or other motive to produce his witnesses, at the time and place appointed, might lose the benefit of their testimony altogether. This prompt procedure is the more to be insisted on, as it will enable the President, by an immediate delivery of the vessel and cargo to the party having title, to prevent the injuries consequent on long delay.

I have the honor to be, with great respect, Sir, your most obedient, and most humble servant.

TO THE MINISTER PLENIPOTENTIARY TO GREAT BRITAIN.

GERMANTOWN, November 14th, 1793.

SIR,—I have to acknowledge the receipt of your letter of the 7th instant, on the subject of the British ship Rochampton, taken and sent into Baltimore by the French privateer the Industry, an armed schooner of St. Domingo, which is suggested to have augmented her force at Baltimore before the capture. On this circumstance a demand is granted that the prize she has made shall be restored.

Before I proceed to the matters of fact in this case, I will take the liberty of calling your attention to the rules which are to govern it. These are, I. That restitution of prizes has been made by the Executive of the United States only in the two cases, 1st, of capture within their jurisdiction, by armed vessels, originally constituted such without the limits of the United States; or 2d, of capture, either within or without their jurisdiction, by armed vessels, originally constituted such within the limits of the United States, which last have been called proscribed vessels.

II. That all *military equipments* within the ports of the United States are forbidden to the vessels of the belligerent powers, even where they have been constituted vessels of war before their arrival in our ports; and where such equipments have been made before detection, they are ordered to be suppressed when detected, and the vessel reduced to her original condition. But if they escape detection altogether, depart and make prizes, the Executive has not undertaken to restore the prizes.

With due care, it can scarcely happen that military equipments of any magnitude shall escape discovery. Those which are small may sometimes, perhaps, escape, but to pursue these so far as to decide that the smallest circumstance of military equipment to a vessel in our ports shall invalidate her prizes through all time, would be a measure of incalculable consequences. And since our interference must be governed by some general rule, and between great and small equipments no practicable line of

distinction can be drawn, it will be attended with less evil on the whole to rely on the efficacy of the means of prevention, that they will reach with certainty equipments of any magnitude, and the great mass of those of smaller importance also; and if some should in the event, escape all our vigilance, to consider these as of the number of cases which will at times baffle the restraints of the wisest and best-guarded rules which human foresight can devise. And I think we may safely rely that since the regulations which got into a course of execution about the middle of August last, it is scarcely possible that equipments of any importance should escape discovery.

These principles showing that no demand of restitution holds on the ground of a mere military alteration or an augmentation of force, I will consider your letter only as a complaint that the orders of the President prohibiting these, have not had their effect in the case of the Industry, and enquire whether if this be so, it has happened either from neglect or connivance in those charged with the execution of these orders. For this we must resort to facts which shall be taken from the evidence furnished by yourself and the British vice-consul at Baltimore, and from that which shall accompany this letter.

About the beginning of August the Industry is said to have arrived at Baltimore with the French fleet from St. Domingo; the particular state of her armament on her arrival is lately questioned, but it is not questioned that she was an armed vessel of some degree. The Executive having received an intimation that two vessels were equipping themselves at Baltimore for a cruise, a letter was on the 6th of August addressed by the Secretary of War to the Governor of Maryland, desiring an inquiry into the fact. In his absence the Executive Council of Maryland charged one of their own body, the honorable Mr. Killy, with the inquiring. He proceeded to Baltimore, and after two days' examination found no vessel answering the description of that which was the object of his inquiring. He then engaged the British vice-consul in the search, who was not able, any more than himself, to discover any such vessels. Captain Killy, however, observing a schooner, which appeared to have been making some equipments for a cruise, to have added to her guns, and made some alteration in her waist, thought these circumstances merited examination, though the rules of August had not yet appeared. Finding that his inquiries excited suspicion, and fearing the vessel

might be withdrawn, he had her seized, and proceeded in investigation. He found that she was the schooner Industry, Captain Carver, from St.

Domingo: that she had been an armed vessel for three years before her coming here, and as late as April last had mounted 16 guns; that she now mounted only 12, and he could not learn that she had procured any of these, or done anything else, essential to her as a privateer, at Baltimore. He therefore discharged her, and on the 23d of August the Executive Council made the report to the Secretary of War, of which I enclose you a copy. About a fortnight after this (Sep. 6) you added to a letter on other business a short paragraph, saying that you had lately received information that a vessel named the Industry had, within the last five or six weeks, been armed, manned and equipped in the port of Baltimore. The proceedings before mentioned having been in another department, were not then known to me. I therefore could only communicate this paragraph to the proper department. The separation of the Executive within a few weeks after, prevented any explanations on this subject, and without them it was not in my power to either controvert or admit the information you had received under these circumstances. I think you must be sensible, Sir, that your conclusion from my silence, that I regard the fact as proved, was a very necessary one.

New inquiries at that time could not have prevented the departure of the privateer, or the capture of the Rochampton; for the privateer had then been out some time. The Rochampton was already taken, and was arriving at Baltimore, which she did about the day of the date of your letter. After her arrival, new witnesses had come forward to prove that the Industry had made some military equipments at Baltimore before her cruise. The affidavits taken by the British vice-consul, are dated about nine or ten days after the date of your letter and arrival of the Rochampton, and we have only to lament that those witnesses had not given their information to the vice-consul when Mr. Killy engaged his aid in the enquiries he was making, and when it would have had the effect of our detaining the privateer till she should have reduced herself to the condition in which she was when she arrived in our ports, if she had really added anything to her then force. But supposing the testimony just and full, (though taken *ex parte*, and not under the legal sanction of our oath,) yet the Governor's refusal to restore the prize was perfectly proper, for, as has been before observed, restitution has never

been made by the Executive, nor can be made on a mere clandestine alteration or augmentation of military equipments, which was all that the new testimony tended to prove.

Notwithstanding, however, that the President thought the information obtained on the former occasion had cleared this privateer from any well-grounded cause of arrest, yet that which you have now offered opens the possibility that the former was defective. He has therefore desired new inquiry to be made before a magistrate legally authorized to administer an oath, and indifferent to both parties; and should the result be that the vessel did really make any military equipments in our ports, instructions will be given to reduce her to her original condition, whenever she shall again come into our ports.

On the whole, Sir, I hope you will perceive that on the first intimation through their own channel, and without waiting for information on your part, that a vessel was making military equipments at Baltimore, the Executive took the best measures for inquiring into the fact, in order to prevent or suppress such equipments; that an officer of high respectability was charged with the inquiry, and that he made it with great diligence himself, and engaged similar inquiries on the part of your vice-consul; that neither of them could find that the privateer had made such equipments, or, of course, that there was any ground for reducing or detaining her; that at the date of your letter of Sep. 6, (the first information received from you,) the privateer was departed, had taken her prize, and that prize was arriving in port; that the new evidence taken ten days after that arrival can produce no other effect than the institution of a new inquiry, and a reduction of the force of the privateer, should she appear to have made any military alterations or augmentation, on her return into our ports, and that in no part of this proceeding is there the smallest ground for imputing either negligence or connivance to any of the officers who have acted in it.

I have the honor to be, with much respect, Sir, your most obedient and most humble servant.

TO MR. CIRACCHI, AT MUNICH.

PHILADELPHIA, November 14, 1793.

DEAR SIR,—I have received the favor of your letter of May 29, at Munich, and it was not till then that I knew to what place or through what channel to direct a letter to you. The assurances you receive that the monument of the President would be ordered at the new election, were founded in the expectation that he meant then to retire. The turbid affairs of Europe, however, and the intercessions they produced, prevailed on him to act again, though with infinite reluctance. You are sensible that the moment of his retirement, kindling the enthusiasm for his character, the affections for his person, the recollection of his services, would be that in which such a tribute would naturally be resolved on. This, of course, is now put off to the end of the next bissextile; but whenever it arrives, your title to the execution is engraved in the minds of those who saw your works here. Your purpose, with respect to my bust, is certainly flattering to me. My family has entered so earnestly into it, that I must gratify them with the hope, and myself with the permission, to make a just indemnification to the author. I shall be happy at all times to hear from you, and to learn that your successes in life are as great as they ought to be. Accept assurances of my sincere respect and esteem.

TO MR. MADISON.

GERMANTOWN, November 17, 1793.

DEAR SIR,—I have got good lodgings for Monroe and yourself, that is to say, a good room with a fireplace and two beds, in a pleasant and convenient position, with a quiet family. They will breakfast you, but you must mess in a tavern; there is a good one across the street. This is the way in which all must do, and all I think will not be able to get even half beds. The President will remain here, I believe, till the meeting of Congress, merely to form a point of union for them before they can have acquired information and courage. For at present there does not exist a single subject in the disorder, no new infection having taken place since the great rains of the 1st of the month, and those before infected being dead or recovered. There is no doubt you will sit in Philadelphia, and therefore I have not

given Monroe's letter to Sehál. I do not write to him, because I know not whether he is at present moving by sea or by land, and if by the latter, I presume you can communicate to him. Wayne has had a convoy of twenty-two wagons of provisions, and seventy men cut off fifteen miles in his rear by the Indians. Six of the men were found on the spot scalped, the rest supposed taken. He had nearly reached Fort Hamilton. R. has given notice that he means to resign. Genet, by more and more denials of powers to the President and ascribing them to Congress, is evidently endeavoring to sow tares between them, and at any event to curry favor with the latter, to whom he means to turn his appeal, finding it was not likely to be well received by the people. Accept both of you my sincere affection.

TO MR. SODERSTROM, CONSUL OF SWEDEN.

GERMANTOWN, November 20, 1793.

SIR,—I received last night your favor of the 16th. No particular rules have been established by the President for the conduct of Consuls with respect to prizes. In one particular case where a prize is brought into our ports by any of the *belligerent* parties, and is reclaimed of the Executive, the President has hitherto permitted the Consul of the captor to hold the prize until his determinations is known. But in all cases respecting a neutral nation, their vessels are placed exactly on the same footing with our own, entitled to the same remedy from our courts of justice and the same protection from the Executive, as our own vessels in the same situation. The remedy in the courts of justice, the only one which they or our own can have access to, is slower than where it lies with the Executive, but it is more complete, as damages can be given by the Court but not by the Executive. The President will gladly avail himself of any information you can at any time give him where his interference may be useful to the vessels or subjects of his Danish Majesty, the desire of the United States being to extend to the vessels and subjects of that crown, as well as to those of his Swedish Majesty, the same protections as is given to those of our own citizens.

I have the honor to be, with much respect, Sir, your most obedient servant.

TO MR. GENET.

GERMANTOWN, November 22, 1793.

SIR,—In my letter of October the 2d, I took the liberty of noticing to you, that the commission of consul to M. Dannery, ought to have been addressed to the President of the United States. He being the only channel of communication between this country and foreign nations, it is from him alone that foreign nations or their agents are to learn what is or has been the will of the nation, and whatever he communicates as such, they have a right and are bound to consider as the expression of the nation, and no foreign agent can be allowed to question it, to interpose between him and any other branch of government, under the pretext of either's transgressing their functions, nor to make himself the umpire and final judge between them. I am, therefore, Sir, not authorized to enter into any discussions with you on the meaning of our Constitution in any part of it, or to prove to you that it has ascribed to him alone the admission or interdiction of foreign agents. I inform you of the fact by authority from the President. I had observed to you, that we were persuaded in the case of the consul Dannery, the error in the address had proceeded from no intention in the Executive Council of France to question the functions of the President, and therefore no difficulty was made in issuing the commissions. We are still under the same persuasion. But in your letter of the 14th instant, you *personally* question the authority of the President, and in consequence of that, have not addressed to him the commission of Messrs. Pennevert and Chervi. Making a point of this formality on your part, it becomes necessary to make a point of it on ours also; and I am therefore charged to return you those commissions, and to inform you, that bound to enforce respect to the order of things established by our Constitution, the President will issue no Exequatur to any consul or vice-consul, not directed to him in the usual form, after the party from whom it comes has been apprized that such should be the address.

I have the honor to be, with respect, Sir, your most obedient, and most humble servant.

TO MR. PINCKNEY.

GERMANTOWN, November 27, 1793.

DEAR SIR,—My last letters to you were of the 11th and 14th of September, since which I have received yours of July 5, 8, August 1, 15, 27, 28. The fever, which at that time had given alarm in Philadelphia, became afterwards far more destructive than had been apprehended, and continued much longer, from the uncommon drought and warmth of the autumn. On the first day of this month the President and heads of the department assembled here. On that day, also, began the first rains which had fallen for some months. They were copious, and from that moment the infection ceased, no new subject took it, and those before infected either died or got well, so that the disease terminated most suddenly. The inhabitants who had left the city, are now all returned, and business going on again as briskly as ever. The President will be established there in about a week, at which time Congress is to meet.

Our negotiations with the North-Western Indians have completely failed, so that war must settle our difference. We expected nothing else, and had gone into negotiations only to prove to all our citizens that peace was unattainable on terms which any one of them would admit.

You have probably heard of a great misunderstanding between Mr. Genet and us. On the meeting of Congress it will be made public. But as the details of it are lengthy, I must refer for them to my next letter, when possibly I may be able to send you the whole correspondence in print. We have kept it merely personal, convinced his nation will disapprove him. To them we have with the utmost assiduity given every proof of inviolate attachment. We wish to hear from you on the subject of Marquis de La Fayette, though we know that circumstances do not admit sanguine hopes.

The copper by the Sigon and the Mohawk is received. Our coinage of silver has been delayed by Mr. Cox's inability to give the security required by law.

I shall write to you again immediately after the meeting of Congress. I have the honor to be, with sentiments of great esteem and respect, dear Sir, your friend and servant.

TO MR. GENET.

PHILADELPHIA, November 30, 1793.

SIR,—I have laid before the President of the United States your letter of November 25th, and have now the honor to inform you, that most of its objects being beyond the powers of the Executive, they can only manifest their dispositions by acting on those which are within their powers. Instructions are accordingly sent to the district attorneys of the United States, residing within States wherein French consuls are established, requiring them to inform the consuls of the nature of the provisions made by the laws for preventing, as well as punishing, injuries to their persons, and to advise and assist them in calling these provisions into activity, whenever the occasions for them shall arise.

It is not permitted by the law to prohibit the departure of the emigrants to St. Domingo, according to the wish you now express, any more than it was to force them away, according to that expressed by you in a former letter. Our country is open to all men, to come and go peaceably, when they choose; and your letter does not mention that these emigrants meant to depart armed, and equipped for war. Lest, however, this should be attempted, the Governors of the States of Pennsylvania and Maryland are requested to have particular attention paid to the vessels named in your letter, and to see that no military expedition be covered or permitted under color of the right which the passengers have to depart from these States.

Provisions not being classed among the articles of contraband, in time of war, it is possible that American vessels may have carried them to the ports of Jeremie and La Mole, as they do to other dominions of the belligerent Powers; but, if they have carried arms also, these, as being contraband, might certainly have been stopped and confiscated.

In the letter of May 15th, to Mr. Ternant, I mentioned, that, in answer to the complaints of the British minister, against the exportation of arms from the United States, it had been observed that the manufacture of arms was the occupation and livelihood of some of our citizens; that it ought not to be expected that a war among other nations should produce such an internal derangement of the occupations of a nation at peace, as the suppression of a manufacture which is the support of some of its citizens; but that, if they

should export these arms to nations at war, they would be abandoned to the seizure and confiscation which the law of nations authorized to be made of them on the high seas. This letter was handed to you, and you were pleased, in yours of May 27th, expressly to approve of the answer which had been given. On this occasion, therefore, we have only to declare, that the same conduct will be observed which was announced on that.

The proposition to permit all our vessels destined for any port in the French West India islands to be stopped, unless furnished with passports from yourself, is so far beyond the powers of the Executive, that it will be unnecessary to enumerate the objections to which it would be liable. I have the honor to be, &c.

TO THE PRESIDENT OF THE UNITED STATES.

December 2, 1793.

Thomas Jefferson, with his respects to the President, has the honor to send him the letters and orders referred to in Mr. Morris' letter, except that of the 8th of April, which must be a mistake for some other date, as the records of the office perfectly establish that no letters were written to him in the months of March and April but those of March 12 and 15, and April 20 and 26, now enclosed. The enigma of Mr. Merlino is inexplicable by anything in his possession.

He encloses the message respecting France and Great Britain. He first wrote it fair as it was agreed the other evening at the President's. He then drew a line with a pen through the passages he proposes to alter, in consequence of subsequent information, (but so lightly as to leave the passages still legible for the President,) and interlined the alterations he proposes. The overtures mentioned in the first alteration, are in consequence of its having been agreed that they should be mentioned in general terms only to the two houses. The numerous alterations made the other evening in the clause respecting our corn trade, with the hasty amendments proposed in the moment, had so much broken the tissue of the paragraph, as to render it necessary to new mould it. In doing this, care has been taken to use the

same words as nearly as possible, and also to insert a slight reference to Mr. Pinckney's proceedings.

On a severe review of the question, whether the British communication should carry any such mark of being confidential, as to prevent the Legislature from publishing them, he is clearly of opinion they ought not. Will they be kept secret if secrecy is enjoined? certainly not, and all the offence will be given (if it be possible any should be given) which would follow their complete publication. If they would be kept secret, from whom would it be? from our own constituents only, for Great Britain is possessed of every tittle. Why, then, keep it secret from them? no ground of support for the Executive will ever be so sure as a complete knowledge of their proceedings by the people; and it is only in cases where the public good would be injured, and *because* it would be injured, that proceedings should be secret. In such cases it is the duty of the Executive to sacrifice their personal interests (which would be promoted by publicity) to the public interest. If the negotiations with England are at an end, if not given to the public now, when are they to be given? and what moment can be so interesting? If anything amiss should happen from the concealment, where will the blame *originate* at last? It may be said, indeed, that the President *puts it in the power* of the Legislature to communicate these proceedings to *their constituents*; but is it more their duty to communicate them to their constituents, than it is the President's to communicate them to *his constituents*? and if they were desirous of communicating them, ought the President to restrain them by making the communication confidential? I think no harm can be done by the publication, because it is impossible England, after doing us an injury, should *declare war* against us, merely because we tell our constituents of it; and I think good may be done, because while it puts it in the power of the Legislature to adopt peaceable measures of doing ourselves justice, it prepares the minds of our constituents to go cheerfully into an acquiescence under the measures, by impressing them with a thorough and enlightened conviction that they are founded in right. The motive, too, of proving to the people the impartiality of the Executive between the two nations of France and England, urges strongly that while they are to see the disagreeable things which have been going on as to France, we should not conceal from them what has been passing with England, and induce a belief that nothing has been doing.

TO MR. GENET.

PHILADELPHIA, December 9, 1793.

SIR,—I have to acknowledge the receipt of your letter of the 3d instant, which has been duly laid before the President.

We are very far from admitting your principle, that the government on either side has no other right, on the presentation of a consular commission, than to certify that, having examined it, they find it according to rule. The governments of both nations have a right, and that of yours has exercised it as to us, of considering the character of the person appointed; the place for which he is appointed, and other material circumstances; and of taking precautions as to his conduct, if necessary; and this does not defeat the general object of the convention, which, in stipulating that consuls shall be permitted on both sides, could not mean to supersede reasonable objections to particular persons, who might at the moment be obnoxious to the nation to which they were sent, or whose conduct might render them so at any time after. In fact, every foreign agent depends on the double will of the two governments, of that which sends him, and of that which is to permit the exercise of his functions within their territory; and when either of these wills is refused or withdrawn, his authority to act within that territory becomes incomplete. By what member of the government the right of giving or withdrawing permission is to be exercised here, is a question on which no foreign agent can be permitted to make himself the umpire. It is sufficient for him, under our government, that he is informed of it by the executive.

On an examination of the commissions from your nation, among our records, I find that before the late change in the form of our government, foreign agents were addressed sometimes to the United States, and sometimes to the Congress of the United States, that body being then executive as well as legislative. Thus the commissions of Messrs. L'Etombe, Holker, Daunemanis, Marbois, Creve-coeur, and Chateaufort, have all this clause: "Prions et requerons nos tres chers et grands amis et allies, les Etat Unis de l'Amerique septentrionale, leurs gouverneurs, et autres officiers, &c. de laisser jouir, &c. le dit sieur, &c. de la charge de notre consul," &c. On the change in the form of our government, foreign nations, not undertaking to decide to what member of the new government

their agents should be addressed, ceased to do it to Congress, and adopted the general address to the United States, before cited. This was done by the government of your own nation, as appears by the commissions of Messrs. Mangourit and La Forest, which have in them the clause before cited. So your own commission was, not as M. Gerond's and Luzerne's had been, "a nos tres chers, &c. le President et membres du Congres general des Etats Unis," &c., but "a nos tres chers, &c. les Etats Unis de l'Amerique," &c. Under this general address, the proper member of the government was included, and could take it up. When, therefore, it was seen in the commission of Messrs. Dupont and Hauterive, that your executive had returned to the ancient address to Congress, it was conceived to be an inattention, insomuch that I do not recollect (and I do not think it material enough to inquire) whether I noticed it to you either verbally or by letter. When that of M. Dannery was presented with the like address, being obliged to notice to you an inaccuracy of another kind, I then mentioned that of the address, not calling it an *innovation*, but expressing my satisfaction, which is still entire, that it was not from any design in your Executive Council. The Exequatur was therefore sent. That they will not consider our notice of it as an innovation, we are perfectly secure. No government can disregard formalities more than ours. But when formalities are attacked with a view to change principles, and to introduce an entire independence of foreign agents on the nation with whom they reside, it becomes material to defend formalities. They would be no longer trifles, if they could, in defiance of the national will, continue a foreign agent among us whatever might be his course of action. Continuing, therefore, the refusal to receive any commission from *yourself*, addressed to an improper member of the government, you are left free to use either the general one to the United States, as in the commissions of Messrs. Mangourit and La Forest, before cited, or the special one, to the President of the United States.

I have the honor to be, with respect, Sir, your most obedient, and most humble servant.

TO THE PRESIDENT.

December 11, 1793.

The President doubtless recollects the communications of Mr. Ternant expressing the dissatisfaction of the Executive Council of France with Mr. Morris, our Minister there, which, however, Mr. Ternant desired might be considered as informal; that Col. Smith also mentioned that dissatisfaction, and that Mr. Le Brun told him he would charge Mr. Genet expressly with their representations on this subject; and that all further consideration thereon lay over therefore for Mr. Genet's representations.

Mr. Genet, some time after his arrival (I cannot now recollect how long, but I think it was a month or more), coming to my house in the country one evening, joined me in a walk near the river. Our conversation was on various topics, and not at all of an official complexion. As we were returning to the house, being then I suppose on some subject relative to his country (though really I do not recall to mind what it was), he turned about to me, just in the passage of the gate, and said, "but I must tell you, we all depend on you to send us a good minister there, with whom we may do business confidentially, in the place of Mr. Morris." These are perhaps not the identical words, yet I believe they are nearly so; I am sure they are the substance, and he scarcely employed more in the expression. It was unexpected, and, to avoid the necessity of an extempore answer, I instantly said something resuming the preceding thread of conversation, which went on, and no more was said about Mr. Morris. From this, I took it for granted, he meant now to come forth formally with complaints against Mr. Morris, as we had been given to expect, and therefore I mentioned nothing of this little expression to the President. Time slipped along; I expecting his complaints, and he not making them. It was undoubtedly his office to bring forward his own business himself, and not at all mine, to hasten or call for it; and if it was not my duty, I could not be without reasons for not taking it on myself officiously. He at length went to New York, to wit, about the * * * * * of * * * * * without having done anything formally on this subject. I now became uneasy lest he should consider the little sentence he had uttered to me as effectually, though not regularly, a complaint; but the more I reflected on the subject, the more impossible it seemed that he could have viewed it as such; and the rather, because, if he had, he would naturally have asked from time to time, "Well, what are you doing with my complaint with Mr. Morris?" or some question equivalent. But he never did. It is

possible I may, at other times, have heard him speak unfavorably of Mr. Morris, though I do not recollect any particular occasion; but I am sure he never made to me any proposition to have him recalled. I believe I mentioned this matter to Mr. Randolph before I left Philadelphia: I know I did after my return; but I did not to the President till the receipt of Mr. Genet's letter of September 30, which, from some unaccountable delay of the post, never came to me in Virginia, though I remained there till October 25 (and received there three subsequent mails), and it never reached me in Philadelphia, till December 2.

The preceding is the state of this matter, as nearly as I can recollect it at this time, and I am sure it is not materially inaccurate in any point.

TO MR. CHURCH.

PHILADELPHIA, December 11, 1793.

SIR,—The President has received your letter of August 16, with its enclosures. It was with deep concern that he learnt the unhappy fortunes of M. de La Fayette, and that he still learns his continuance under them. His friendship for him could not fail to impress him with the desire of relieving him, and he was sure that in endeavoring to do this, he should gratify the sincere attachments of his fellow citizens. He has accordingly employed such means as appeared the most likely to effect his purpose; though, under the existing circumstances, he could not be sanguine in their obtaining very immediately the desired effect. Conscious, however, that his anxieties for the sufferer flow from no motives unfriendly to those who feel an interest in his confinement, he indulges their continuance, and will not relinquish the hope that the reasons for this security will at length yield to those of a more benign character.

I have the honor to be, with great respect, Sir, your most obedient, and most humble servant.

**TO MR. HAMMOND, MINISTER PLENIPOTENTIARY OF GREAT
BRITAIN.**

PHILADELPHIA, December 15, 1793.

SIR,—I am to acknowledge the honor of your letter of November 30th, and to express the satisfaction with which we learn, that you are instructed to discuss with us the measures, which reason and practicability may dictate, for giving effect to the stipulations of our treaty, yet remaining to be executed. I can assure you, on the part of the United States, of every disposition to lessen difficulties, by passing over whatever is of smaller concern, and insisting on those matters only, which either justice to individuals or public policy render indispensable; and in order to simplify our discussions, by defining precisely their objects, I have the honor to propose that we shall begin by specifying, on each side, the particular acts which each considers to have been done by the other, in contravention of the treaty. I shall set the example.

The provisional and definitive treaties, in their 7th article, stipulated that his "Britannic Majesty should, with all convenient speed, and without causing any destruction, or *carrying away any negroes, or other property*, of the American inhabitants, *withdraw all his armies, garrisons, and fleets, from the said United States*, and from every port, place, and harbor, within the same."

But the British garrisons were not withdrawn with all convenient speed, nor have ever yet been withdrawn from Machilimackinac, on Lake Michigan; Detroit, on the strait of Lakes Erie and Huron; Fort Erie, on Lake Erie; Niagara, Oswego, on Lake Ontario; Oswegatchie, on the river St. Lawrence; Point Au-fer, and Dutchman's Point, on Lake Champlain.

2d. The British officers have undertaken to exercise a jurisdiction over the country and inhabitants in the vicinities of those forts; and

3d. They have excluded the citizens of the United States from navigating, even on our side of the middle line of the rivers and lakes established as a boundary between the two nations.

By these proceedings, we have been intercepted entirely from the commerce of furs with the Indian nations, to the northward—a commerce

which had ever been of great importance to the United States, not only for its intrinsic value, but as it was the means of cherishing peace with those Indians, and of superseding the necessity of that expensive warfare we have been obliged to carry on with them, during the time that these posts have been in other hands.

On withdrawing the troops from New York, 1st. A large embarkation of negroes, of the property of the inhabitants of the United States, took place before the commissioners on our part, for inspecting and superintending embarkations, had arrived there, and without any account ever rendered thereof. 2d. Near three thousand others were publicly carried away by the avowed order of the British commanding officer, and under the view, and against the remonstrances of our commissioners. 3d. A very great number were carried off in private vessels, if not by the express permission, yet certainly without opposition on the part of the commanding officer, who alone had the means of preventing it, and without admitting the inspection of the American commissioners; and 4th. Of other species of property carried away, the commanding officer permitted no examination at all. In support of these facts, I have the honor to enclose you documents, a list of which will be subjoined, and in addition to them, I beg leave to refer to a roll signed by the joint commissioners, and delivered to your commanding officer for transmission to his court, containing a description of the negroes publicly carried away by his order as before mentioned, with a copy of which you have doubtless been furnished.

A difference of opinion, too, having arisen as to the river intended by the plenipotentiaries to be the boundary between us and the dominions of Great Britain, and by them called the St Croix, which name, it seems, is given to two different rivers, the ascertaining of this point becomes a matter of present urgency; it has heretofore been the subject of application from us to the Government of Great Britain.

There are other smaller matters between the two nations, which remain to be adjusted, but I think it would be better to refer these for settlement through the ordinary channel of our ministers, than to embarrass the present important discussions with them; they can never be obstacles to friendship and harmony.

Permit me now, sir, to ask from you a specification of the particular acts, which, being considered by his Britannic Majesty as a non-compliance on our part with the engagement contained in the 4th, 5th, and 6th articles of the treaty, induced him to suspend the execution of the 7th, and render a separate discussion of them inadmissible. And accept assurances, &c.

TO THE ATTORNEY GENERAL OF THE UNITED STATES.

PHILADELPHIA, December 18, 1793.

SIR,—The Minister Plenipotentiary of France has enclosed to me a copy of a letter of the 16th instant, which he addressed to you, stating that some libellous publications had been made against him by Mr. Jay, Chief Justice of the United States, and Mr. King, one of the Senators for the State of New York, and desiring that they might be prosecuted. This letter has been laid before the President, according to the request of the minister; and the President, never doubting your readiness on all occasions to perform the functions of your office, yet thinks it incumbent on him to recommend it specially on the present occasion, as it concerns a public character peculiarly entitled to the protection of the laws. On the other hand, as our citizens ought not to be vexed with groundless prosecutions, duty to them requires it to be added, that if you judge the prosecution in question to be of that nature, you consider this recommendation as not extending to it; its only object being to engage you to proceed in this case according to the duties of your office, the laws of the land, and the privileges of the parties concerned.

I have the honor to be, with great respect and esteem, Sir, your most obedient, and most humble servant.

TO THE GOVERNOR OF SOUTH CAROLINA.

PHILADELPHIA, December 23, 1793.

SIR,—It is my duty to communicate to you a piece of information, although I cannot say I have confidence in it myself. A French gentleman, one of the refugees from St. Domingo, informs me that two Frenchmen, from St. Domingo also, of the names of Castaing and La Chaise, are about setting out from this place for Charleston, with a design to excite an insurrection among the negroes. He says that this is in execution of a general plan, formed by the Brissotine party at Paris, the first branch of which has been carried into execution at St. Domingo. My informant is a person with whom I am well acquainted, of good sense, discretion and truth, and certainly believes this himself. I inquired of him the channel of his information. He told me it was one which had given them many pre-admonitions in St. Domingo, and which had never been found to be mistaken. He explained it to me; but I could by no means consider it as a channel meriting reliance; and when I questioned him what could be the impulse of these men, what their authority, what their means of execution, and what they could expect in result; he answered with conjectures which were far from sufficient to strengthen the fact. However, were anything to happen, I should deem myself inexcusable not to have made the communication. Your judgment will decide whether injury might not be done by making the suggestion public, or whether it ought to have any other effect than to excite attention to these two persons, should they come into South Carolina. Castaing is described as a small dark mulatto, and La Chaise as a Quarteron, of a tall fine figure.

I have the honor to be, with great respect, your Excellency's most obedient, and most humble servant.

TO DR. EDWARDS.

PHILADELPHIA, December 30, 1793.

DEAR SIR,—I have to acknowledge the receipt of your two favors of July 30th and August 16th, and thank you for the information they contained. We have now assembled a new Congress, being a fuller and more equal representation of the people, and likely, I think, to approach nearer to the sentiments of the people in the demonstration of their own. They have the

advantage of a very full communication from the Executive of the ground on which we stand with foreign nations. Some very unpleasant transactions have taken place here with Mr. Genet, of which the world will judge, as the correspondence is now in the press; as is also that with Mr. Hammond on our points of difference with his nation. Of these you will doubtless receive copies. Had they been out yet, I should have had the pleasure of sending them to you; but to-morrow I resign my office, and two days after set out for Virginia, where I hope to spend the remainder of my days in occupations infinitely more pleasing than those to which I have sacrificed eighteen years of the prime of my life; I might rather say twenty-four of them. Our campaign with the Indians has been lost by an unsuccessful effort to effect peace by treaty, which they protracted till the season for action was over. The attack brought on us from the Algerines is a ray from the same centre. I believe we shall endeavor to do ourselves justice in a peaceable and rightful way. We wish to have nothing to do in the present war; but if it is to be forced upon us, I am happy to see in the countenances of all but our paper men a mind ready made up to meet it, unwillingly, indeed, but perfectly without fear. No nation has strove more than we have done to merit the peace of all by the most rigorous impartiality to all. Sir John Sinclair's queries shall be answered from my retirement. I am, with great esteem, dear Sir, your most obedient servant.

TO MR. GENET.

PHILADELPHIA, December 31, 1793.

SIR,—I have laid before the President of the United States your letter of the 20th instant, accompanying translations of the instructions given you by the Executive Council of France to be distributed among the members of Congress, desiring that the President will lay them officially before both houses, and proposing to transmit successively other papers, to be laid before them in like manner; and I have it in charge to observe, that your functions as the missionary of a foreign nation here, are confined to the transactions of the affairs of your nation with the Executive of the United States; that the communications, which are to pass between the Executive

and Legislative branches, cannot be a subject for your interference, and that the President must be left to judge for himself what matters his duty or the public good may require him to propose to the deliberations of Congress. I have therefore the honor of returning you the copies sent for distribution, and of being, with great respect, Sir, your most obedient, and most humble servant.

TO THE PRESIDENT OF THE UNITED STATES.

PHILADELPHIA, December 31, 1793.

DEAR SIR,—Having had the honor of communicating to you in my letter of the last of July, my purpose of returning from the office of Secretary of State, at the end of the month of September, you were pleased, for particular reasons, to wish its postponement to the close of the year. That term being now arrived, and my propensities to retirement becoming daily more and more irresistible, I now take the liberty of resigning the office into your hands. Be pleased to accept with it my sincere thanks for all the indulgences which you have been so good as to exercise towards me in the discharge of its duties. Conscious that my need of them has been great, I have still ever found them greater, without any other claim on my part, than a firm pursuit of what has appeared to me to be right, and a thorough disdain of all means which were not as open and honorable, as their object was pure. I carry into my retirement a lively sense of your goodness, and shall continue gratefully to remember it. With very sincere prayers for your life, health and tranquillity, I pray you to accept the homage of the great and constant respect and attachment with which I have the honor to be, dear Sir, your most obedient, and most humble servant.

TO E. RANDOLPH.

MONTICELLO, February 3, 1794.

DEAR SIR,—I have to thank you for the transmission of the letters from General Gates, La Motte, and Hauterive. I perceive by the latter, that the partisans of the one or the other principle (perhaps of both) have thought my name a convenient cover for declarations of their own sentiments. What those are to which Hauterive alludes, I know not, having never seen a newspaper since I left Philadelphia (except those of Richmond), and no circumstances authorize him to expect that I should inquire into them, or answer him. I think it is Montaigne who has said, that ignorance is the softest pillow on which a man can rest his head. I am sure it is true as to everything political, and shall endeavor to estrange myself to everything of that character. I indulge myself on one political topic only, that is, in declaring to my countrymen the shameless corruption of a portion of the Representatives to the first and second Congresses, and their implicit devotion to the treasury. I think I do good in this, because it may produce exertions to reform the evil, on the success of which the form of the government is to depend.

I am sorry La Motte has put me to the expense of one hundred and forty livres for a French translation of an English poem, as I make it a rule never to read translations where I can read the original. However, the question now is, how to get the book brought here, as well as the communications with Mr. Hammond, which you were so kind as to promise me.

* * * * *

This is the first letter I have written to Philadelphia since my arrival at home, and yours the only ones I have received.

Accept assurances of my sincere esteem and respect. Yours affectionately.

TO JAMES MADISON.

MONTICELLO, April 3, 1794.

DEAR SIR,—Our post having ceased to ride ever since the inoculation began in Richmond, till now, I received three days ago, and all together, your friendly favors of March the 2d, 9th, 12th, 14th, and Colonel Monroe's of

March the 3d and 16th. I have been particularly gratified by the receipt of the papers containing yours and Smith's discussion of your regulating propositions. These debates had not been seen here but in a very short and mutilated form. I am at no loss to ascribe Smith's speech to its true father. Every tittle of it is Hamilton's except the introduction. There is scarcely anything there which I have not heard from him in our various private though official discussions. The very turn of the arguments is the same, and others will see as well as myself that the style is Hamilton's. The sophistry is too fine, too ingenious, even to have been comprehended by Smith, much less devised by him. His reply shows he did not understand his first speech; as its general inferiority proves its legitimacy, as evidently as it does the bastardy of the original. You know we had understood that Hamilton had prepared a counter report, and that some of his humble servants in the Senate were to move a reference to him in order to produce it. But I suppose they thought it would have a better effect if fired off in the House of Representatives. I find the report, however, so fully justified, that the anxieties with which I left it are perfectly quieted. In this quarter, all espouse your propositions with ardor, and without a dissenting voice.

The rumor of a declaration of war has given an opportunity of seeing, that the people here, though attentive to the loss of value of their produce in such an event, yet find in it a gratification of some other passions, and particularly of their ancient hatred to Great Britain. Still, I hope it will not come to that; but that the proposition will be carried, and justice be done ourselves in a peaceable way. As to the guarantee of the French islands, whatever doubts may be entertained of the moment at which we ought to interpose, yet I have no doubt but that we ought to interpose at a proper time, and declare both to England and France that these islands are to rest with France, and that we will make a common cause with the latter for that object. As to the naval armament, the land armament, and the marine fortifications which are in question with you, I have no doubt they will all be carried. Not that the monocrats and paper men in Congress want war; but they want armies and debts; and though we may hope that the sound part of Congress is now so augmented as to insure a majority in cases of general interest merely, yet I have always observed that in questions of expense, where members may hope either for offices or jobs for themselves or their friends, some few will be debauched, and that is sufficient to turn the

decision where a majority is, at most, but small. I have never seen a Philadelphia paper since I left it, till those you enclosed me; and I feel myself so thoroughly weaned from the interest I took in the proceedings there, while there, that I have never had a wish to see one, and believe that I never shall take another newspaper of any sort. I find my mind totally absorbed in my rural occupations.

* * * * *

Accept sincere assurances of affection.

TO THE PRESIDENT OF THE UNITED STATES.

MONTICELLO, April 25, 1794.

DEAR SIR,—I am to thank you for the book you were so good as to transmit me, as well as the letter covering it, and your felicitations on my present quiet. The difference of my present and past situation is such as to leave me nothing to regret, but that my retirement has been postponed four years too long. The principles on which I calculated the value of life, are entirely in favor of my present course. I return to farming with an ardor which I scarcely knew in my youth, and which has got the better entirely of my love of study. Instead of writing ten or twelve letters a day, which I have been in the habit of doing as a thing in course, I put off answering my letters now, farmer-like, till a rainy day, and then find them sometimes postponed by other necessary occupations. The case of the Pays de Vaud is new to me. The claims of both parties are on grounds which, I fancy, we have taught the world to set little store by. The rights of one generation will scarcely be considered hereafter as depending on the paper transactions of another. My countrymen are groaning under the insults of Great Britain. I hope some means will turn up of reconciling our faith and honor with peace. I confess to you I have seen enough of one war never to wish to see another. With wishes of every degree of happiness to you, both public and private, and with my best respects to Mrs. Adams, I am, your affectionate and humble servant.

TO TENCH COXE.

MONTICELLO, May 1, 1794.

DEAR SIR,—Your several favors of February the 22d, 27th, and March the 16th, which had been accumulating in Richmond during the prevalence of the small pox in that place, were lately brought to me, on the permission given the post to resume his communication. I am particularly to thank you for your favor in forwarding the Bee. Your letters give a comfortable view of French affairs, and later events seem to confirm it. Over the foreign powers I am convinced they will triumph completely, and I cannot but hope that that triumph, and the consequent disgrace of the invading tyrants, is destined, in order of events, to kindle the wrath of the people of Europe against those who have dared to embroil them in such wickedness, and to bring at length, kings, nobles and priests to the scaffolds which they have been so long deluging with human blood. I am still warm whenever I think of these scoundrels, though I do it as seldom as I can, preferring infinitely to contemplate the tranquil growth of my lucerne and potatoes. I have so completely withdrawn myself from these spectacles of usurpation and misrule, that I do not take a single newspaper, nor read one a month; and I feel myself infinitely the happier for it.

We are alarmed here with the apprehensions of war; and sincerely anxious that it may be avoided; but not at the expense either of our faith or honor. It seems much the general opinion here, the latter has been too much wounded not to require reparation, and to seek it even in war, if that be necessary. As to myself, I love peace, and I am anxious that we should give the world still another useful lesson, by showing to them other modes of punishing injuries than by war, which is as much a punishment to the punisher as to the sufferer. I love, therefore, Mr. Clarke's proposition of cutting off all communication with the nation which has conducted itself so atrociously. This, you will say, may bring on war. If it does, we will meet it like men; but it may not bring on war, and then the experiment will have been a happy one. I believe this war would be vastly more unanimously approved than any one we ever were engaged in; because the aggressions have been so wanton and bare-faced, and so unquestionably against our desire. I am sorry Mr. Cooper and Priestly did not take a more general survey of our country before they fixed themselves. I think they might have promoted their own

advantage by it, and have aided the introduction of improvement where it is more wanting. The prospect of wheat for the ensuing year is a bad one. This is all the sort of news you can expect from me. From you I shall be glad to hear all sort of news, and particularly any improvements in the arts applicable to husbandry or household manufacture.

I am, with very sincere affection, dear Sir, your friend and servant.

TO THE PRESIDENT.

MONTICELLO, May 14, 1794.

DEAR SIR,—I am honored with your favor of April the 24th, and received, at the same time, Mr. Bertrand's agricultural prospectus. Though he mentions my having seen him at a particular place, yet I remember nothing of it, and observing that he intimates an application for lands in America, I conceive his letter meant for me as Secretary of State, and therefore I now send it to the Secretary of State. He has given only the heads of his demonstrations, so that nothing can be conjectured of their details. Lord Kaimes once proposed an essence of dung, one pint of which should manure an acre. If he or Mr. Bertrand could have rendered it so portable, I should have been one of those who would have been greatly obliged to them. I find on a more minute examination of my lands than the short visits heretofore made to them permitted, that a ten years' abandonment of them to the ravages of overseers, has brought on them a degree of degradation far beyond what I had expected. As this obliges me to adopt a milder course of cropping, so I find that they have enabled me to do it, by having opened a great deal of lands during my absence. I have therefore determined on a division of my farm into six fields, to be put under this rotation: first year, wheat; second, corn, potatoes, peas; third, rye or wheat, according to circumstances; fourth and fifth, clover where the fields will bring it, and buckwheat dressings where they will not; sixth, folding, and buckwheat dressings. But it will take me from three to six years to get this plan underway. I am not yet satisfied that my acquisition of overseers from the head of Elk has been a happy one, or that much will be done this year towards rescuing my plantations from their wretched condition. Time, patience and perseverance

must be the remedy; and the maxim of your letter, "slow and sure," is not less a good one in agriculture than in politics. I sincerely wish it may extricate us from the event of a war, if this can be done saving our faith and our rights. My opinion of the British government is, that nothing will force them to do justice but the loud voice of their people, and that this can never be excited but by distressing their commerce. But I cherish tranquillity too much, to suffer political things to enter my mind at all. I do not forget that I owe you a letter for Mr. Young; but I am waiting to get full information. With every wish for your health and happiness, and my most friendly respects for Mrs. Washington, I have the honor to be, dear Sir, your most obedient, and most humble servant.

TO MR. MADISON.

MONTICELLO, May 15, 1794.

DEAR SIR,—I wrote you on the 3d of April, and since that have received yours of March 24, 26, 31, April 14 and 28, and yesterday I received Colonel Monroe's of the 4th instant, informing me of the failure of the Non-importation Bill in the Senate. This body was intended as a check on the will of the Representatives when too hasty. They are not only that, but completely so on the will of the people also; and in my opinion are heaping coals of fire, not only on their persons, but on their body, as a branch of the Legislature. I have never known a measure more universally desired by the people than the passage of that bill. It is not from my own observation of the wishes of the people that I would decide what they are, but from that of the gentlemen of the bar, who move much with them, and by their intercommunications with each other, have, under their view, a greater portion of the country than any other description of men. It seems that the opinion is fairly launched into public that they should be placed under the control of a more frequent recurrence to the will of their constituents. This seems requisite to complete the experiment, whether they do more harm or good. I wrote lately to Mr. Taylor for the pamphlet on the bank. Since that I have seen the "Definition of Parties," and must pray you to bring it for me. It is one of those things which merits to be preserved. The safe arrival of my

books at Richmond, and some of them at home, has relieved me from anxiety, and will not be indifferent to you. It turns out that our fruit has not been as entirely killed as was at first apprehended; some latter blossoms have yielded a small supply of this precious refreshment. I was so improvident as never to have examined at Philadelphia whether negro cotton and oznaburgs can be had there; if you do not already possess the information, pray obtain it before you come away. Our spring has, on the whole, been seasonable; and the wheat as much recovered as its thinness would permit; but the crop must still be a miserable one. There would not have been seed made but for the extraordinary rains of the last month. Our highest heat as yet has been 83, this was on the 4th instant. That Blake should not have been arrived at the date of your letter, surprises me; pray inquire into that fact before you leave Philadelphia. According to Colonel Monroe's letter this will find you on the point of departure. I hope we shall see you here soon after your return. Remember me affectionately to Colonel and Mrs. Monroe, and accept the sincere esteem of, dear Sir, your sincere friend and servant.

TO THE SECRETARY OF STATE.

MONTICELLO, September 7, 1794.

DEAR SIR,—Your favor of August the 28th finds me in bed, under a paroxysm of the rheumatism which has now kept me for ten days in constant torment, and presents no hope of abatement. But the express and the nature of the case requiring immediate answer, I write to you in this situation. No circumstances, my dear Sir, will ever more tempt me to engage in any thing public. I thought myself perfectly fixed in this determination when I left Philadelphia, but every day and hour since has added to its inflexibility. It is a great pleasure to me to retain the esteem and approbation of the President, and this forms the only ground of any reluctance at being unable to comply with every wish of his. Pray convey these sentiments, and a thousand more to him, which my situation does not permit me to go into. But however suffering by the addition of every single word to this letter, I must add a solemn declaration that neither Mr. J. nor

Mr. —— ever mentioned to me one word of any want of decorum in Mr. Carmichael, nor anything stronger or more special than stated in my notes of the conversation. Excuse my brevity, my dear Sir, and accept assurances of the sincere esteem and respect with which I have the honor to be, your affectionate friend and servant.

TO WILSON NICHOLAS, ESQ.

MONTICELLO, November 22, 1794.

SIR,—I take the liberty of enclosing for your perusal and consideration a proposal from a Mr. D'Ivernois, a Genevan, of considerable distinction for science and patriotism, and that, too, of the republican kind, though you will see that he does not carry it so far as our friends of the National Assembly of France. While I was at Paris, I knew him as an exile from his democratic principles, the aristocracy having then the upper hand in Geneva. He is now obnoxious to the democratic party. The sum of his proposition is to translate the academy of Geneva in a body to this country. You know well that the colleges of Edinburgh and Geneva, as seminaries of science, are considered as the two eyes of Europe; while Great Britain and America give the preference to the former, and all other countries give it to the latter. I am fully sensible that two powerful obstacles are in the way of this proposition. 1st. The expense: 2d. The communication of science in foreign languages; that is to say, in French and Latin; but I have been so long absent from my own country as to be an incompetent judge either of the force of the objections or of the dispositions of those who are to decide on them. The respectability of Mr. D'Ivernois' character, and that, too, of the proposition, require an answer from me, and that it should be given on due inquiry. He desires secrecy to a certain degree for the reasons which he explains. What I have to request of you, my dear Sir, is, that you will be so good as to consider his proposition, to consult on its expediency and practicability with such gentlemen of the Assembly as you think best, and take such other measures as you shall think best to ascertain what would be the sense of that body, were the proposition to be hazarded to them. If yourself and friends approve of it, and there is hope that the Assembly

would do so, your zeal for the good of our country in general, and the promotion of science, as an instrument towards that, will, of course, induce you to aid them to bring it forward in such a way as you shall judge best. If, on the contrary, you disapprove of it yourselves, or think it would be desperate with the Assembly, be so good as to return it to me with such information as I may hand forward to Mr. D'Ivernois, to put him out of suspense. Keep the matter by all means out of the public papers, and particularly, if you please, do not couple my name with the proposition if brought forward, because it is much my wish to be in nowise implicated in public affairs. It is necessary for me to appeal to all my titles for giving you this trouble, whether founded in representation, patriotism or friendship. The latter, however, as the broadest, is that on which I wish to rely, being with sentiments of very cordial esteem, dear Sir, your sincere friend and humble servant.

TO JAMES MADISON.

MONTICELLO, December 28, 1794.

DEAR SIR,—I have kept Mr. Jay's letter a post or two, with an intention of considering attentively the observation it contains; but I have really now so little stomach for anything of that kind, that I have not resolution enough even to endeavor to understand the observations. I therefore return the letter, not to delay your answer to it, and beg you in answering for yourself, to assure him of my respects and thankful acceptance of Chalmers' Treaties, which I do not possess, and if you possess yourself of the scope of his reasoning, make any answer to it you please for me. If it had been on the rotation of my crops, I would have answered myself, lengthily perhaps, but certainly *con gusto*.

The denunciation of the democratic societies is one of the extraordinary acts of boldness of which we have seen so many from the faction of monocrats. It is wonderful indeed, that the President should have permitted himself to be the organ of such an attack on the freedom of discussion, the freedom of writing, printing and publishing. It must be a matter of rare curiosity to get at the modifications of these rights proposed by them, and to see what line

their ingenuity would draw between democratical societies, whose avowed object is the nourishment of the republican principles of our Constitution, and the society of the Cincinnati, *a self-created* one, carving out for itself hereditary distinctions, lowering over our Constitution eternally, meeting together in all parts of the Union, periodically, with closed doors, accumulating a capital in their separate treasury, corresponding secretly and regularly, and of which society the very persons denouncing the democrats are themselves the fathers, founders and high officers. Their sight must be perfectly dazzled by the glittering of crowns and coronets, not to see the extravagance of the proposition to suppress the friends of general freedom, while those who wish to confine that freedom to the few, are permitted to go on in their principles and practices. I here put out of sight the persons whose misbehavior has been taken advantage of to slander the friends of popular rights; and I am happy to observe, that as far as the circle of my observation and information extends, everybody has lost sight of them, and views the abstract attempt on their natural and constitutional rights in all its nakedness. I have never heard, or heard of, a single expression or opinion which did not condemn it as an inexcusable aggression. And with respect to the transactions against the excise law, it appears to me that you are all swept away in the torrent of governmental opinions, or that we do not know what these transactions have been. We know of none which, according to the definitions of the law, have been anything more than riotous. There was indeed a meeting to consult about a separation. But to consult on a question does not amount to a determination of that question in the affirmative, still less to the acting on such a determination; but we shall see, I suppose, what the court lawyers, and courtly judges, and would-be ambassadors will make of it. The excise law is an infernal one. The first error was to admit it by the Constitution; the second, to act on that admission; the third and last will be, to make it the instrument of dismembering the Union, and setting us all afloat to choose what part of it we will adhere to. The information of our militia, returned from the westward, is uniform, that though the people there let them pass quietly, they were objects of their laughter, not of their fear; that one thousand men could have cut off their whole force in a thousand places of the Alleghany; that their detestation of the excise law is universal, and has now associated to it a detestation of the government; and that a separation which perhaps was a very distant and problematical event, is now near, and certain, and determined in the mind of every man. I expected

to have seen some justification of arming one part of the society against another; of declaring a civil war the moment before the meeting of that body which has the sole right of declaring war; of being so patient of the kicks and scoffs of our enemies, and rising at a feather against our friends; of adding a million to the public debt and deriding us with recommendations to pay it if we can &c., &c. But the part of the speech which was to be taken as a justification of the armament, reminded me of parson Saunders' demonstration why *minus* into *minus* make *plus*. After a parcel of shreds of stuff from Æsop's fables and Tom Thumb, he jumps all at once into his *ergo*, *minus* multiplied into *minus* make *plus*. Just so the fifteen thousand men enter after the fables, in the speech.

However, the time is coming when we shall fetch up the lee-way of our vessel. The changes in your House, I see, are going on for the better, and even the Augean herd over your heads are slowly purging off their impurities. Hold on then, my dear friend, that we may not shipwreck in the meanwhile. I do not see, in the minds of those with whom I converse, a greater affliction than the fear of your retirement; but this must not be, unless to a more splendid and a more efficacious post. There I should rejoice to see you; I hope I may say, I shall rejoice to see you. I have long had much in my mind to say to you on that subject. But double delicacies have kept me silent. I ought perhaps to say, while I would not give up my own retirement for the empire of the universe, how I can justify wishing one whose happiness I have so much at heart as yours, to take the front of the battle which is fighting for my security. This would be easy enough to be done, but not at the heel of a lengthy epistle.

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Present me respectfully to Mrs. Madison, and pray her to keep you where you are for her own satisfaction and the public good, and accept the cordial affections of us all. Adieu.

TO M. D'IVERNOIS.

MONTICELLO, February 6, 1795.

DEAR SIR,—Your several favors on the affairs of Geneva found me here, in the month of December last. It is now more than a year that I have withdrawn myself from public affairs, which I never liked in my life, but was drawn into by emergencies which threatened our country with slavery, but ended in establishing it free. I have returned, with infinite appetite, to the enjoyment of my farm, my family and my books, and had determined to meddle in nothing beyond their limits. Your proposition, however, for transplanting the college of Geneva to my own county, was too analogous to all my attachments to science, and freedom, the first-born daughter of science, not to excite a lively interest in my mind, and the essays which were necessary to try its practicability. This depended altogether on the opinions and dispositions of our State legislature, which was then in session. I immediately communicated your papers to a member of the legislature, whose abilities and zeal pointed him out as proper for it, urging him to sound as many of the leading members of the legislature as he could, and if he found their opinions favorable, to bring forward the proposition; but if he should find it desperate, not to hazard it; because I thought it best not to commit the honor either of our State or of your college, by an useless act of eclat. It was not till within these three days that I have had an interview with him, and an account of his proceedings. He communicated the papers to a great number of the members, and discussed them maturely, but privately, with them. They were generally well-disposed to the proposition, and some of them warmly; however, there was no difference of opinion in the conclusion, that it could not be effected. The reasons which they thought would with certainty prevail against it, were 1, that our youth, not familiarized but with their mother tongue, were not prepared to receive instructions in any other; 2, that the expense of the institution would excite uneasiness in their constituents, and endanger its permanence; and 3, that its extent was disproportioned to the narrow state of the population with us. Whatever might be urged on these several subjects, yet as the decision rested with others, there remained to us only to regret that circumstances were such, or were thought to be such, as to disappoint your and our wishes.

I should have seen with peculiar satisfaction the establishment of such a mass of science in my country, and should probably have been tempted to approach myself to it, by procuring a residence in its neighborhood, at those seasons of the year at least when the operations of agriculture are less active

and interesting. I sincerely lament the circumstances which have suggested this emigration. I had hoped that Geneva was familiarized to such a degree of liberty, that they might without difficulty or danger fill up the measure to its *maximum*; a term, which, though in the insulated man, bounded only by his natural powers, must, in society, be so far restricted as to protect himself against the evil passions of his associates, and consequently, them against him. I suspect that the doctrine, that small States alone are fitted to be republics, will be exploded by experience, with some other brilliant fallacies accredited by Montesquieu and other political writers. Perhaps it will be found, that to obtain a just republic (and it is to secure our just rights that we resort to government at all) it must be so extensive as that local egoisms may never reach its greater part; that on every particular question, a majority may be found in its councils free from particular interests, and giving, therefore, an uniform prevalence to the principles of justice. The smaller the societies, the more violent and more convulsive their schisms. We have chanced to live in an age which will probably be distinguished in history, for its experiments in government on a larger scale than has yet taken place. But we shall not live to see the result. The grosser absurdities, such as hereditary magistracies, we shall see exploded in our day, long experience having already pronounced condemnation against them. But what is to be the substitute? This our children or grand children will answer. We may be satisfied with the certain knowledge that none can ever be tried, so stupid, so unrighteous, so oppressive, so destructive of every end for which honest men enter into government, as that which their forefathers had established, and their fathers alone venture to tumble headlong from the stations they have so long abused. It is unfortunate, that the efforts of mankind to recover the freedom of which they have been so long deprived, will be accompanied with violence, with errors, and even with crimes. But while we weep over the means, we must pray for the end.

But I have been insensibly led by the general complexion of the times, from the particular case of Geneva, to those to which it bears no similitude. Of that we hope good things. Its inhabitants must be too much enlightened, too well experienced in the blessings of freedom and undisturbed industry, to tolerate long a contrary state of things. I should be happy to hear that their government perfects itself, and leaves room for the honest, the industrious and wise; in which case, your own talents, and those of the persons for

whom you have interested yourself, will, I am sure, find welcome and distinction. My good wishes will always attend you, as a consequence of the esteem and regard with which I am, Dear Sir, your most obedient and most humble servant.

TO JAMES MADISON.

MONTICELLO, April 27, 1795.

DEAR SIR,—Your letter of March the 23d came to hand the 7th of April, and notwithstanding the urgent reasons for answering a part of it immediately, yet as it mentioned that you would leave Philadelphia within a few days, I feared that the answer might pass you on the road. A letter from Philadelphia by the last post having announced to me your leaving that place the day preceding its date, I am in hopes this will find you in Orange. In mine, to which yours of March the 23d was an answer, I expressed my hope of the only change of position I ever wished to see you make, and I expressed it with entire sincerity, because there is not another person in the United States, who being placed at the helm of our affairs, my mind would be so completely at rest for the fortune of our political bark. The wish too was pure, and unmixed with anything respecting myself personally.

For as to myself, the subject had been thoroughly weighed and decided on, and my retirement from office had been meant from all office high or low, without exception. I can say, too, with truth, that the subject had not been presented to my mind by any vanity of my own. I know myself and my fellow citizens too well to have ever thought of it. But the idea was forced upon me by continual insinuations in the public papers, while I was in office. As all these came from a hostile quarter, I knew that their object was to poison the public mind as to my motives, when they were not able to charge me with facts. But the idea being once presented to me, my own quiet required that I should face it and examine it. I did so thoroughly, and had no difficulty to see that every reason which had determined me to retire from the office I then held, operated more strongly against that which was insinuated to be my object. I decided then on those general grounds which could alone be present to my mind at the time, that is to say, reputation,

tranquillity, labor; for as to public duty, it could not be a topic of consideration in my case. If these general considerations were sufficient to ground a firm resolution never to permit myself to think of the office, or to be thought of for it, the special ones which have supervened on my retirement, still more insuperably bar the door to it. My health is entirely broken down within the last eight months; my age requires that I should place my affairs in a clear state; these are sound if taken care of, but capable of considerable dangers if longer neglected; and above all things, the delights I feel in the society of my family, and in the agricultural pursuits in which I am so eagerly engaged. The little spice of ambition which I had in my younger days has long since evaporated, and I set still less store by a posthumous than present name. In stating to you the heads of reasons which have produced my determination, I do not mean an opening for future discussion, or that I may be reasoned out of it. The question is forever closed with me; my sole object is to avail myself of the first opening ever given me from a friendly quarter (and I could not with decency do it before), of preventing any division or loss of votes, which might be fatal to the republican interest. If that has any chance of prevailing, it must be by avoiding the loss of a single vote, and by concentrating all its strength on one object. Who this should be, is a question I can more freely discuss with anybody than yourself. In this I painfully feel the loss of Monroe. Had he been here, I should have been at no loss for a channel through which to make myself understood; if I have been misunderstood by anybody through the instrumentality of Mr. Fenno and his abettors. I long to see you. I am proceeding in my agricultural plans with a slow but sure step. To get under full way will require four or five years. But patience and perseverance will accomplish it. My little essay in red clover, the last year, has had the most encouraging success. I sowed then about forty acres. I have sowed this year about one hundred and twenty, which the rain now falling comes very opportunely on. From one hundred and sixty to two hundred acres, will be my yearly sowing. The seed-box described in the agricultural transactions of New York, reduces the expense of seeding from six shillings to two shillings and three pence the acre, and does the business better than is possible to be done by the human hand. May we hope a visit from you? If we may, let it be after the middle of May, by which time I hope to be returned from Bedford. I have had a proposition to meet Mr. Henry there this month, to confer on the subject of a convention, to the calling of which

he is now become a convert. The session of our district court furnished me a just excuse for the time; but the impropriety of my entering into consultation on a measure in which I would take no part, is a permanent one.

Present my most respectful compliments to Mrs. Madison, and be assured of the warm attachment of, Dear Sir, yours affectionately.

TO WILLIAM B. GILES.

MONTICELLO, April 27, 1795.

DEAR SIR,—Your favor of the 16th came to hand by the last post. I sincerely congratulate you on the great prosperities of our two first allies, the French and Dutch. If I could but see them now at peace with the rest of their continent, I should have little doubt of dining with Pichegru in London, next autumn; for I believe I should be tempted to leave my clover for awhile, to go and hail the dawn of liberty and republicanism in that island. I shall be rendered very happy by the visit you promise me. The only thing wanting to make me completely so, is the more frequent society of my friends. It is the more wanting, as I am become more firmly fixed to the globe. If you visit me as a farmer, it must be as a condisciple: for I am but a learner; an eager one indeed, but yet desperate, being too old now to learn a new art. However, I am as much delighted and occupied with it, as if I was the greatest adept. I shall talk with you about it from morning till night, and put you on very short allowance as to political aliment. Now and then a pious ejaculation for the French and Dutch republicans, returning with due despatch to clover, potatoes, wheat, &c. That I may not lose the pleasure promised me, let it not be till the middle of May, by which time I shall be returned from a trip I meditated to Bedford. Yours affectionately.

TO MANN PAGE.

MONTICELLO, August 30, 1795.

It was not in my power to attend at Fredericksburg according to the kind invitation in your letter, and in that of Mr. Ogilvie. The heat of the weather, the business of the farm, to which I have made myself necessary, forbade it; and to give one round reason for all, *mature sanus*, I have laid up my Rosinante in his stall, before his unfitness for the road shall expose him faltering to the world. But why did not I answer you in time? Because, in truth, I am encouraging myself to grow lazy, and I was sure you would ascribe the delay to anything sooner than a want of affection or respect to you, for this was not among the possible causes. In truth, if anything could ever induce me to sleep another night out of my own house, it would have been your friendly invitation and my solicitude for the subject of it, the education of our youth. I do most anxiously wish to see the highest degrees of education given to the higher degrees of genius, and to all degrees of it, so much as may enable them to read and understand what is going on in the world, and to keep their part of it going on right: for nothing can keep it right but their own vigilant and distrustful superintendence. I do not believe with the Rochefoucaults and Montaignes, that fourteen out of fifteen men are rogues: I believe a great abatement from that proportion may be made in favor of general honesty. But I have always found that rogues would be uppermost, and I do not know that the proportion is too strong for the higher orders, and for those who, rising above the swinish multitude, always contrive to nestle themselves into the places of power and profit. These rogues set out with stealing the people's good opinion, and then steal from them the right of withdrawing it, by contriving laws and associations against the power of the people themselves. Our part of the country is in considerable fermentation, on what they suspect to be a recent roguery of this kind. They say that while all hands were below deck mending sails, splicing ropes, and every one at his own business, and the captain in his cabin attending to his log book and chart, a rogue of a pilot has run them into an enemy's port. But metaphor apart, there is much dissatisfaction with Mr. Jay and his treaty. For my part, I consider myself now but as a passenger, leaving the world and its government to those who are likely to live longer in it. That you may be among the longest of these, is my sincere prayer. After begging you to be the bearer of my compliments and apologies to Mr. Ogilvie, I bid you an affectionate farewell, always wishing to hear from you.

TO H. TAZEWELL, ESQ.

MONTICELLO, September 13, 1795.

DEAR SIR,—I ought much sooner to have acknowledged your obliging attention in sending me a copy of the treaty. It was the first we received in this part of the country. Though I have interdicted myself all serious attention to political matters, yet a very slight notice of that in question sufficed to decide my mind against it. I am not satisfied we should not be better without treaties with any nation. But I am satisfied we should be better without such as this. The public dissatisfaction too and dissension it is likely to produce, are serious evils. I am not without hope that the operations on the 12th article may render a recurrence to the Senate yet necessary, and so give to the majority an opportunity of correcting the error into which their exclusion of public light has led them. I hope also that the recent results of the English will at length awaken in our Executive that sense of public honor and spirit, which they have not lost sight of in their proceedings with other nations, and will establish the eternal truth that acquiescence under insult is not the way to escape war. I am with great esteem, Dear Sir, your most obedient humble servant.

TO JAMES MADISON.

MONTICELLO, September 21, 1795.

I received about three weeks ago, a box containing six dozen volumes, of two hundred and eighty-three pages, 12 mo, with a letter from Lambert, Beckley's clerk, that they came from Mr. Beckley, and were to be divided between yourself, J. Walker, and myself. I have sent two dozen to J. Walker, and shall be glad of a conveyance for yours. In the meantime, I send you by post, the title page, table of contents, and one of the pieces, Curtius, lest it should not have come to you otherwise. It is evidently written by Hamilton, giving a first and general view of the subject, that the public mind might be kept a little in check, till he could resume the subject more at large from the beginning, under his second signature of Camillus. The piece called "The Features of the Treaty," I do not send, because you have seen it in the

newspapers. It is said to be written by Coxe, but I should rather suspect, by Beckley. The antidote is certainly not strong enough for the poison of Curtius. If I had not been informed the present came from Beckley, I should have suspected it from Jay or Hamilton. I gave a copy or two, by way of experiment, to honest, sound-hearted men of common understanding, and they were not able to parry the sophistry of Curtius. I have ceased therefore, to give them. Hamilton is really a colossus to the anti-republican party. Without numbers, he is an host within himself. They have got themselves into a defile, where they might be finished; but too much security on the republican part will give time to his talents and indefatigableness to extricate them. We have had only middling performances to oppose to him. In truth, when he comes forward, there is nobody but yourself who can meet him. His adversaries having begun the attack, he has the advantage of answering them, and remains unanswered himself. A solid reply might yet completely demolish what was too feebly attacked, and has gathered strength from the weakness of the attack. The merchants were certainly (except those of them who are English) as open mouthed at first against the treaty, as any. But the general expression of indignation has alarmed them for the strength of the government. They have feared the shock would be too great, and have chosen to tack about and support both treaty and government, rather than risk the government. Thus it is, that Hamilton, Jay, &c., in the boldest act they ever ventured on to undermine the government, have the address to screen themselves, and direct the hue and cry against those who wish to drag them into light. A bolder party-stroke was never struck. For it certainly is an attempt of a party, who find they have lost their majority in one branch of the Legislature, to make a law by the aid of the other branch and of the executive, under color of a treaty, which shall bind up the hands of the adverse branch from ever restraining the commerce of their patron-nation. There appears a pause at present in the public sentiment, which may be followed by a revulsion. This is the effect of the desertion of the merchants, of the President's chiding answer to Boston and Richmond, of the writings of Curtius and Camillus, and of the quietism into which people naturally fall after first sensations are over. For God's sake take up your pen, and give a fundamental reply to Curtius and Camillus. Adieu affectionately.

TO MONSIEUR ODIT.

MONTICELLO, October 14, 1795.

SIR,—I received with pleasure your letter of the 9th ult., by post, but should with greater pleasure have received it from your own hand, that I might have had an opportunity of testifying to you in person the great respect I bear for your character, which had come to us before you, and of expressing my obligations to Professor Pictet, for procuring me the honor of your acquaintance. It would have been a circumstance of still higher satisfaction and advantage to me, if fortune had timed the periods of our service together, so that the drudgery of public business, which I always hated, might have been relieved by conversations with you on subjects which I always loved, and particularly in learning from you the new advances of science on the other side the Atlantic. The interests of our two republics also could not but have been promoted by the harmony of their servants. Two people whose interests, whose principles, whose habits of attachment, founded on fellowship in war and mutual kindnesses, have so many points of union, cannot but be easily kept together. I hope you have accordingly been sensible, Sir, of the general interest which my countrymen take in all the successes of your republic. In this no one joins with more enthusiasm than myself, an enthusiasm kindled by our love of liberty, by my gratitude to your nation who helped us to acquire it, by my wishes to see it extended to all men, and first to those whom we love most. I am now a private man, free to express my feelings, and their expression will be estimated at neither more or less than they weigh, to wit, the expressions of a private man. Your struggles for liberty keep alive the only sparks of sensation which public affairs now excite in me. As to the concerns of my own country, I leave them willingly and safely to those who will have a longer interest in cherishing them. My books, my family, my friends, and my farm, furnish more than enough to occupy me the remainder of my life, and of that tranquil occupation most analogous to my physical and moral constitution. The correspondence you are pleased to invite me to on the natural history of my country, cannot but be profitable and acceptable to me. My long absence from it, indeed, has deprived me of the means of throwing any new lights on it; but I shall have the benefit of participating of your views of it, and occasions of expressing to you those sentiments of esteem and respect

with which I have the honor to be, Sir, your most obedient, and most humble servant.

TO EDWARD RUTLEDGE.

MONTICELLO, November 30, 1795.

MY DEAR SIR,—I received your favor of October the 12th by your son, who has been kind enough to visit me here, and from whose visit I have received all that pleasure which I do from whatever comes from you, and especially from a subject so deservedly dear to you. He found me in a retirement I doat on, living like an antediluvian patriarch among my children and grand children, and tilling my soil. As he had lately come from Philadelphia, Boston, &c., he was able to give me a great deal of information of what is passing in the world, and I pestered him with questions pretty much as our friends Lynch, Nelson, &c., will us, when we step across the Styx, for they will wish to know what has been passing above ground since they left us. You hope I have not abandoned entirely the service of our country. After five and twenty years' continual employment in it, I trust it will be thought I have fulfilled my tour, like a punctual soldier, and may claim my discharge. But I am glad of the sentiment from you, my friend, because it gives a hope you will practice what you preach, and come forward in aid of the public vessel. I will not admit your old excuse, that you are in public service though at home. The campaigns which are fought in a man's own house are not to be counted. The present situation of the President, unable to get the offices filled, really calls with uncommon obligation on those whom nature has fitted for them. I join with you in thinking the treaty an execrable thing. But both negotiators must have understood, that, as there were articles in it which could not be carried into execution without the aid of the Legislatures on both sides, therefore it must be referred to them, and that these Legislatures being free agents, would not give it their support if they disapproved of it. I trust the popular branch of our Legislature will disapprove of it, and thus rid us of this infamous act, which is really nothing more than a treaty of alliance between England and the Anglomen of this

country, against the Legislature and people of the United States. I am, my dear friend, yours affectionately.

TO WILLIAM B. GILES.

MONTICELLO, December 31, 1795.

DEAR SIR,—Your favors of December the 15th and 20th came to hand by the last post. I am well pleased with the manner in which your House have testified their sense of the treaty; while their refusal to pass the original clause of the reported answer proved their condemnation of it, the contrivance to let it disappear silently respected appearances in favor of the President, who errs as other men do, but errs with integrity. Randolph seems to have hit upon the true theory of our Constitution; that when a treaty is made, involving matters confided by the Constitution to the three branches of the Legislature conjointly, the Representatives are as free as the President and Senate were, to consider whether the national interest requires or forbids their giving the forms and force of law to the articles over which they have a power. I thank you much for the pamphlet. His narrative is so straight and plain, that even those who did not know him will acquit him of the charge of bribery. Those who knew him had done it from the first. Though he mistakes his own political character in the aggregate, yet he gives it to you in the detail. Thus, he supposes himself a man of no party (page 57); that his opinions not containing any systematic adherence to party, fell sometimes on one side and sometimes on the other (page 58). Yet he gives you these facts, which show that they fall generally on both sides, and are complete inconsistencies.

1. He never gave an opinion in the cabinet against the rights of the people (page 97); yet he advised the denunciation of the popular societies (page 67).
2. He would not neglect the overtures of a commercial treaty with France (page 79); yet he always opposed it while Attorney General, and never seems to have proposed it while Secretary of State.

3. He concurs in resorting to the militia to quell the pretended insurrections in the west (page 81), and proposes an augmentation from twelve thousand five hundred to fifteen thousand, to march against men at their ploughs (page 80); yet on the 5th of August he is against their marching (pages 83, 101), and on the 25th of August he is for it (page 84).

4. He concurs in the measure of a mission extraordinary to London (as is inferred from page 58), but objects to the men, to wit, Hamilton and Jay (page 50).

5. He was against granting commercial powers to Mr. Jay (page 58); yet he besieged the doors of the Senate to procure their advice to ratify.

6. He advises the President to a ratification on the merits of the treaty (page 97), but to a suspension till the provision order is repealed (page 98). The fact is, that he has generally given his principles to the one party, and his practice to the other, the oyster to one, the shell to the other. Unfortunately, the shell was generally the lot of his friends, the French and republicans, and the oyster of their antagonists. Had he been firm to the principles he professes in the year 1793, the President would have been kept from an habitual concert with the British and anti-republican party. But at that time, I do not know which R. feared most, a British fleet, or French disorganizers. Whether his conduct is to be ascribed to a superior view of things, an adherence to right without regard to party, as he pretends, or to an anxiety to trim between both, those who know his character and capacity will decide. Were parties here divided merely by a greediness for office, as in England, to take a part with either would be unworthy of a reasonable or moral man. But where the principle of difference is as substantial, and as strongly pronounced as between the republicans and the monocrats of our country, I hold it as honorable to take a firm and decided part, and as immoral to pursue a middle line, as between the parties of honest men and rogues, into which every country is divided.

A copy of the pamphlet came by this post to Charlottesville. I suppose we shall be able to judge soon what kind of impression it is likely to make. It has been a great treat to me, as it is a continuation of that cabinet history, with the former part of which I was intimate. I remark, in the reply of the President a small travestie of the sentiment contained in the answer of the

Representatives. They acknowledge that he has *contributed* a great share to the national happiness by his services. He thanks them for ascribing to his *agency* a great share of those benefits. The former keeps in view the co-operation of others towards the public good. The latter presents to view his sole agency. At a time when there would have been less anxiety to publish to the people a strong approbation from your House, this strengthening of your expression would not have been noticed.

Our attentions have been so absorbed by the first manifestation of the sentiments of your House, that we have lost sight of our own Legislature; insomuch, that I do not know whether they are sitting or not. The rejection of Mr. Rutledge by the Senate is a bold thing; because they cannot pretend any objection to him but his disapprobation of the treaty. It is, of course, a declaration that they will receive none but tories hereafter into any department of the government. I should not wonder if Monroe were to be re-called, under the idea of his being of the partisans of France, whom the President considers as the partisans of *war and confusion*, in his letter of July the 31st, and as disposed to excite them to hostile measures, or at least to unfriendly sentiments; a most infatuated blindness to the true character of the sentiments entertained in favor of France. The bottom of my page warns me that it is time to end my commentaries on the facts you have furnished me. You would of course, however, wish to know the sensations here on those facts.

My friendly respects to Mr. Madison, to whom the next week's dose will be directed. Adieu affectionately.

TO G. WYTHE.

MONTICELLO, January 16, 1796.

In my letter which accompanied the box containing my collection of printed laws, I promised to send you by post a statement of the contents of the box. On taking up the subject I found it better to take a more general review of the whole of the laws I possessed, as well manuscript as printed, as also of those which I do not possess, and suppose to be no longer extant. This

general view you will have in the enclosed paper, whereof the articles stated to be printed constitute the contents of the box I sent you. Those in manuscript were not sent, because not supposed to have been within your view, and because some of them will not bear removal, being so rotten, that in turning over a leaf it sometimes falls into powder. These I preserve by wrapping and sewing them up in oil cloth, so that neither air nor moisture can have access to them. Very early in the course of my researches into the laws of Virginia, I observed that many of them were already lost, and many more on the point of being lost, as existing only in single copies in the hands of careful or curious individuals, on whose death they would probably be used for waste paper. I set myself therefore to work, to collect all which were then existing, in order that when the day should come in which the public should advert to the magnitude of their loss in these precious monuments of our property, and our history, a part of their regret might be spared by information that a portion had been saved from the wreck, which is worthy of their attention and preservation. In searching after these remains, I spared neither time, trouble, nor expense; and am of opinion that scarcely any law escaped me, which was in being as late as the year 1790 in the middle or southern parts of the State. In the northern parts, perhaps something might still be found. In the clerk's offices in the ancient counties, some of these manuscript copies of the laws may possibly still exist, which used to be furnished at the public expense to every county, before the use of the press was introduced; and in the same places, and in the hands of ancient magistrates or of their families, some of the fugitive sheets of the laws of separate sessions, which have been usually distributed since the practice commenced of printing them. But recurring to what we actually possess, the question is, what means will be the most effectual for preserving these remains from future loss? All the care I can take of them, will not preserve them from the worm, from the natural decay of the paper, from the accidents of fire, or those of removal when it is necessary for any public purposes, as in the case of those now sent you. Our experience has proved to us that a single copy, or a few, deposited in manuscript in the public offices, cannot be relied on for any great length of time. The ravages of fire and of ferocious enemies have had but too much part in producing the very loss we are now deploring. How many of the precious works of antiquity were lost while they were preserved only in manuscript! has there ever been one lost since the art of printing has rendered it practicable to

multiply and disperse copies? This leads us then to the only means of preserving those remains of our laws now under consideration, that is, a multiplication of printed copies. I think therefore that there should be printed at public expense, an edition of all the laws ever passed by our legislatures which can now be found; that a copy should be deposited in every public library in America, in the principal public offices within the State, and some perhaps in the most distinguished public libraries of Europe, and the rest should be sold to individuals, towards reimbursing the expenses of the edition. Nor do I think that this would be a voluminous work. The MSS. would furnish matter for one printed volume in folio, would comprehend all the laws from 1624 to 1701, which period includes Pervis. My collection of fugitive sheets forms, as we know, two volumes, and comprehends all the extant laws from 1734 to 1783; and the laws which can be gleaned up from the Revivals to supply the chasm between 1701 and 1734, with those from 1783 to the close of the present century, (by which term the work might be completed,) would not be more than the matter of another volume. So that four volumes in folio, would give every law ever passed which is now extant; whereas those who wish to possess as many of them as can be procured, must now buy the six folio volumes of Revivals, to wit, Pervis and those of 1732, 1784, 1768, 1783, and 1794, and in all of them possess not one half of which they wish. What would be the expense of the edition I cannot say, nor how much would be reimbursed by the sales; but I am sure it would be moderate, compared with the rates which the public have hitherto paid for printing their laws, provided a sufficient latitude be given as to printers and places. The first step would be to make out a single copy from the MSS., which would employ a clerk about a year or something more, to which expense about a fourth should be added for collation of the MSS., which would employ three persons at a time about half a day, or a day in every week. As I have already spent more time in making myself acquainted with the contents and arrangement of these MSS. than any other person probably ever will, and their condition does not admit their removal to a distance, I will cheerfully undertake the direction and superintendence of this work, if it can be done in the neighboring towns of Charlottesville or Milton, farther than which I could not undertake to go from home. For the residue of the work, my printed volumes might be delivered to the printer.

I have troubled you with these details, because you are in the place where they may be used for the public service, if they admit of such use, and because the order of assembly, which you mention, shows they are sensible of the necessity of preserving such of these laws as relate to our landed property; and a little further consideration will perhaps convince them that it is better to do the whole work once for all, than to be recurring to it by piece-meal, as particular parts of it shall be required, and that too perhaps when the materials shall be lost. You are the best judge of the weight of these observations, and of the mode of giving them any effect they may merit. Adieu affectionately.

TO JAMES MADISON.

MONTICELLO, March 6, 1796.

DEAR SIR,—I wrote you February the 21st, since which I have received yours of the same day. Indeed, mine of that date related only to a single article in yours of January the 31st and February the 7th. I do not at all wonder at the condition in which the finances of the United States are found. Hamilton's object from the beginning, was to throw them into forms which should be utterly undecypherable. I ever said he did not understand their condition himself, nor was able to give a clear view of the excess of our debts beyond our credits, nor whether we were diminishing or increasing the debt. My own opinion was, that from the commencement of this government to the time I ceased to attend to the subject, we had been increasing our debt about a million of dollars annually. If Mr. Gallatin would undertake to reduce this chaos to order, present us with a clear view of our finances, and put them into a form as simple as they will admit, he will merit immortal honor. The accounts of the United States ought to be, and may be made as simple as those of a common farmer, and capable of being understood by common farmers.

Disapproving, as I do, of the unjustifiable largess to the demands of the Count de Grasse, I will certainly not propose to rivet it by a second example on behalf of M. de Chastellux's son. It will only be done in the event of such a repetition of the precedent, as will give every one a right to share in

the plunder. It is, indeed, surprising you have not yet received the British treaty in form. I presume you would never receive it were not your co-operation on it necessary. But this will oblige the formal notification of it to you.

My salutations to Mrs. Madison, friendly esteem to Mr. Giles, Page, &c. I am, with sincere affection, yours.

P. S. Have you considered all the consequences of your proposition respecting post roads? I view it as a source of boundless patronage to the executive, jobbing to members of Congress and their friends, and a bottomless abyss of public money. You will begin by only appropriating the surplus of the post office revenues; but the other revenues will soon be called into their aid, and it will be a source of eternal scramble among the members, who can get the most money wasted in their State; and they will always get most who are meanest. We have thought, hitherto, that the roads of a State could not be so well administered even by the State legislature as by the magistracy of the county, on the spot. How will they be when a member of New Hampshire is to mark out a road for Georgia? Does the power to *establish* post roads, given you by the Constitution, mean that you shall *make* the roads, or only *select* from those already made, those on which there shall be a post? If the term be equivocal, (and I really do not think it so,) which is the safest construction? That which permits a majority of Congress to go to cutting down mountains and bridging of rivers, or the other, which if too restricted may be referred to the States for amendment, securing still due measures and proportion among us, and providing some means of information to the members of Congress tantamount to that ocular inspection, which, even in our county determinations, the magistrate finds cannot be supplied by any other evidence? The fortification of harbors was liable to great objection. But national circumstances furnished some color. In this case there is none. The roads of America are the best in the world except those of France and England. But does the state of our population, the extent of our internal commerce, the want of sea and river navigation, call for such expense on roads here, or are our means adequate to it? Think of all this, and a great deal more which your good judgment will suggest, and pardon my freedom.

TO WILLIAM B. GILES.

March 19, 1796.

I know not when I have received greater satisfaction than on reading the speech of Dr. Leib, in the Pennsylvania Assembly. He calls himself a new member. I congratulate honest republicanism on such an acquisition, and promise myself much from a career which begins on such elevated ground. We are in suspense here to see the fate and effect of Mr. Pitt's bill against democratic societies. I wish extremely to get at the true history of this effort to suppress freedom of meeting, speaking, writing and printing. Your acquaintance with Sedgwick will enable you to do it. Pray get the outlines of the bill he intended to have brought in for this purpose. This will enable us to judge whether we have the merit of the invention; whether we were really beforehand with the British minister on this subject; whether he took his hint from our proposition, or whether the concurrence in the sentiment is merely the result of the general truth that great men will think alike and act alike, though without intercommunication. I am serious in desiring extremely the outlines of the bill intended for us. From the debates on the subject of our seamen, I am afraid as much harm as good will be done by our endeavors to arm our seamen against impressments. It is proposed to register them and give them certificates. But these certificates will be lost in a thousand ways; a sailor will neglect to take his certificate; he is wet twenty times in a voyage; if he goes ashore without it, he is impressed; if with it, he gets drunk, it is lost, stolen from him, taken from him, and then the want of it gives authority to impress, which does not exist now. After ten years' attention to the subject, I have never been able to devise anything effectual, but that the circumstance of an American bottom be made *ipso facto*, a protection for a number of seamen proportioned to her tonnage; that American captains be obliged, when called on by foreign officers, to parade the men on deck, which would show whether they exceeded their own quota, and allow the foreign officer to send two or three persons aboard and hunt for any suspected to be concealed. This, Mr. Pinckney was instructed to insist upon with Great Britain; to accept of nothing short of it; and, most especially, not to agree that a certificate of citizenship should be requirable from our seamen; because it would be made a ground for the authorized impressment of them. I am still satisfied that such a protection will place them in a worse situation than they are at present. It is true, the British

minister has not shown any disposition to accede to my proposition: but it was not totally rejected: and if he still refuses, lay a duty of one penny sterling a yard on British oznaburgs, to make a fund for paying the expenses of the agents you are obliged to employ to seek out our suffering seamen. I congratulate you on the arrival of Mr. Ames and the British treaty. The newspapers had said they would arrive together. We have had a fine winter. Wheat looks well. Corn is scarce and dear. Twenty-two shillings here, thirty shillings in Amherst. Our blossoms are but just opening. I have begun the demolition of my house, and hope to get through its re-edification in the course of the summer. We shall have the eye of a brick-kiln to poke you into, or an octagon to air you in. Adieu affectionately.

TO COLONEL MONROE.

MONTICELLO, March 21, 1796.

DEAR SIR,—I wrote you on the 2d instant, and now take the liberty of troubling you, in order to have the enclosed letter to M. Gautier safely handed to him. I will thank you for information that it gets safely to hand, as it is of considerable importance to him, to the United States, to the State of Virginia, and to myself, by conveying to him the final arrangement of the accounts of Grand and Company with all those parties.

* * * * *

The British treaty has been formally, at length, laid before Congress. All America is a tiptoe to see what the House of Representatives will decide on it. We conceive the constitutional doctrine to be, that though the President and Senate have the general power of making treaties, yet wherever they include in a treaty matters confided by the Constitution to the three branches of Legislature, an act of legislation will be requisite to confirm these articles, and that the House of Representatives, as one branch of the Legislature, are perfectly free to pass the act or to refuse it, governing themselves by their own judgment whether it is for the good of their constituents to let the treaty go into effect or not. On the precedent now to be set will depend the future construction of our Constitution, and whether

the powers of legislation shall be transferred from the President, Senate, and House of Representatives, to the President and Senate, and Piamingo or any other Indian, Algerine, or other chief. It is fortunate that the first decision is to be in a case so palpably atrocious, as to have been predetermined by all America. The appointment of Elsworth Chief Justice, and Chase one of the judges, is doubtless communicated to you. My friendly respects to Mrs. Monroe. Adieu affectionately.

TO JAMES MADISON.

MONTICELLO, March 27, 1796.

DEAR SIR,—I am much pleased with Mr. Gallatin's speech in Bache's paper of March the 14th. It is worthy of being printed at the end of the Federalist, as the only rational commentary on the part of the Constitution to which it relates. Not that there may not be objections, and difficult ones, to it, and which I shall be glad to see his answers to; but if they are never answered, they are more easily to be gulped down than those which lie to the doctrines of his opponents, which do in fact annihilate the whole of the powers given by the Constitution to the Legislature. According to the rule established by usage and common sense, of construing one part of the instrument by another, the objects on which the President and Senate may exclusively act by treaty are much reduced, but the field on which they may act with the sanction of the Legislature, is large enough; and I see no harm in rendering their sanction necessary, and not much harm in annihilating the whole treaty-making power, except as to making peace. If you decide in favor of your right to refuse co-operation in any case of treaty, I should wonder on what occasion it is to be used, if not in one where the rights, the interest, the honor and faith of our nation are so grossly sacrificed; where a faction has entered into a conspiracy with the enemies of their country to chain down the Legislature at the feet of both; where the whole mass of your constituents have condemned this work in the most unequivocal manner, and are looking to you as their last hope to save them from the effects of the avarice and corruption of the first agent, the revolutionary machinations of others, and the incomprehensible acquiescence of the only honest man who

has assented to it. I wish that his honesty and his political errors may not furnish a second occasion to exclaim, "curse on his virtues, they have undone his country." Cold weather, mercury at twenty degrees in the morning. Corn fallen at Richmond to twenty shillings; stationary here; Nicholas sure of his election; R. Jouett and Jo. Monroe in competition for the other vote of the county. Affection to Mrs. M. and yourself. Adieu.

TO JAMES MADISON.

MONTICELLO, April 19, 1796.

DEAR SIR,—Yours of the 4th instant came to hand the day before yesterday. I have turned to the conventional history, and enclose you an exact copy of what is there on the subject you mentioned. I have also turned to my own papers, and send you some things extracted from them, which show that the recollection of the President has not been accurate, when he supposed his own opinion to have been uniformly that declared in his answer of March the 30th. The records of the Senate will vouch for this. My respects to Mrs. Madison. Adieu affectionately.

[The papers referred to in the preceding.]

Extract, verbatim, from last page but one and the last page.

"Mr. King suggested that the journals of the Convention should be either destroyed, or deposited in the custody of the President. He thought, if suffered to be made public, a bad use would be made of them by those who would wish to prevent the adoption of the Constitution.

"Mr. Wilson preferred the second expedient. He had at one time liked the first best; but as false suggestions may be propagated, it should not be made impossible to contradict them.

"A question was then put on depositing the journals and other papers of the Convention in the hands of the President, on which New Hampshire, aye, Massachusetts, aye, Connecticut, aye, New Jersey, aye, Pennsylvania, aye, Delaware, aye, Maryland, no, Virginia, aye, North Carolina, aye, South

Carolina, aye, and Georgia, aye. This negative of Maryland was occasioned by the language of the instructions to the Deputies of that State, which required them to report to the State the *proceedings* of the Convention.

"The President having asked what the Convention meant should be done with the journals, &c., whether copies were to be allowed to the members, if applied for, it was resolved *nem. con.* that he retain the journal and other papers subject to the order of the Congress, if ever formed under the Constitution."

"The members then proceeded to sign the instrument," &c.

"In the Senate, February 1, 1791.

"The committee, to whom was referred that part of the speech of the President of the United States, at the opening of the session, which relates to the commerce of the Mediterranean, and also the letter from the Secretary of State, dated the 20th of January, 1791, with the papers accompanying the same, reported: whereupon,

"*Resolved*, That the Senate do advise and consent, that the President of the United States take such measures as he may think necessary for the redemption of the citizens of the United States, now in captivity at Algiers, provided the expense shall not exceed forty thousand dollars, and also, that measures be taken to confirm the treaty now existing between the United States and the Emperor of Morocco."

The above is a copy of a resolve of the Senate, referred to me by the President, to propose an answer to, and I find immediately following this, among my papers, a press copy, from an original written fairly in my own hand, ready for the President's signature, and to be given in to the Senate, of the following answer:

"*Gentlemen of the Senate,—*

"I will proceed to take measures for the ransom of our citizens in captivity at Algiers, in conformity with your resolution of advice of the 1st instant, so soon as the moneys necessary shall be appropriated *by the Legislature*, and shall be in readiness.

"The recognition of our treaty with the new Emperor of Morocco requires also previous appropriation and provision. The importance of this last to the liberty and

property of our citizens, induces me to urge it on your earliest attention."

Though I have no memorandum of the delivery of this to the Senate, yet I have not the least doubt it was given in to them, and will be found among their records.

I find, among my press copies, the following in my hand writing:

"The committee to report, that the President does not think that circumstances will justify, in the present instance, his entering into *absolute* engagements for the ransom of our captives in Algiers, nor calling for money from the treasury, nor raising it by loan, without previous authority from *both branches* of the Legislature."

April 9, 1792.

I do not recollect the occasion of the above paper with certainty; but I think there was a committee appointed by the Senate to confer with the President on the subject of the ransom, and to advise what is there declined, and that a member of the committee advising privately with me as to the report they were to make to the House, I minuted down the above, as the substance of what he observed to be the proper report, after what had passed with the President, and gave the original to the member, preserving the press copy. I think the member was either Mr. Izard or Mr. Butler, and have no doubt such a report will be found on the files of the Senate.

On the 8th of May following, in consequence of questions proposed by the President to the Senate, they came to a resolution, on which a mission was founded.

TO P. MAZZEI. [\[4\]](#)

MONTICELLO, April 24, 1796.

MY DEAR FRIEND,—

* * * * *

The aspect of our politics has wonderfully changed since you left us. In place of that noble love of liberty and republican government which carried us triumphantly through the war, an Anglican monarchical aristocratical party has sprung up, whose avowed object is to draw over us the substance, as they have already done the forms, of the British government. The main

body of our citizens, however, remain true to their republican principles; the whole landed interest is republican, and so is a great mass of talents. Against us are the Executive, the Judiciary, two out of three branches of the Legislature, all the officers of the government, all who want to be officers, all timid men who prefer the calm of despotism to the boisterous sea of liberty, British merchants and Americans trading on British capitals, speculators and holders in the banks and public funds, a contrivance invented for the purposes of corruption, and for assimilating us in all things to the rotten as well as the sound parts of the British model. It would give you a fever were I to name to you the apostates who have gone over to these heresies, men who were Samsons in the field and Solomons in the council, but who have had their heads shorn by the harlot England. In short, we are likely to preserve the liberty we have obtained only by unremitting labors and perils. But we shall preserve it; and our mass of weight and wealth on the good side is so great, as to leave no danger that force will ever be attempted against us. We have only to awake and snap the Lilliputian cords with which they have been entangling us during the first sleep which succeeded our labors.

I will forward the testimonial of the death of Mrs. Mazzei, which I can do the more incontrovertibly as she is buried in my grave yard, and I pass her grave daily. The formalities of the proof you require, will occasion delay. I begin to feel the effects of age. My health has suddenly broken down, with symptoms which give me to believe I shall not have much to encounter of the *tedium vita*. While it remains, however, my heart will be warm in its friendships, and among these, will always foster the affections with which I am, dear Sir, your friend and servant.

TO COLONEL MONROE.

MONTICELLO, June 12, 1796.

DEAR SIR,—

* * * * *

Congress have risen. You will have seen by their proceedings the truth of what I always observed to you, that one man outweighs them all in the influence over the people, who have supported his judgment against their own and that of their representatives. Republicanism must lie on its oars, resign the vessel to its pilot, and themselves to the course he thinks best for them. I had always conjectured, from such facts as I could get hold of, that our public debt was increasing about a million of dollars a year. You will see by Gallatin's speeches that the thing is proved. You will see further, that we are completely saddled and bridled, and that the bank is so firmly mounted on us that we must go where they will guide. They openly publish a resolution, that the national property being increased in value, they must by an increase of circulating medium furnish an adequate representation of it, and by further additions of active capital promote the enterprises of our merchants. It is supposed that the paper in circulation in and around Philadelphia, amounts to twenty millions of dollars, and that in the whole Union, to one hundred millions. I think the last too high. All the imported commodities are raised about fifty per cent. by the depreciation of the money. Tobacco shares the rise, because it has no competition abroad. Wheat has been extraordinarily high from other causes. When these cease, it must fall to its ancient nominal price, notwithstanding the depreciation of that, because it must contend in market with foreign wheats. Lands had risen within the vortex of the paper, and as far out as that can influence. They have not risen at all here. On the contrary, they are lower than they were twenty years ago. Those I had mentioned to you, to wit, Carter's and Colle, were sold before your letter came. Colle at two dollars the acre. Carter's had been offered me for two French crowns (13s. 2d). Mechanics here get from a dollar to a dollar and a half a day, yet are much worse off than at the old prices.

Volney is with me at present. He is on his way to the Illinois. Some late appointments, judiciary and diplomatic, you will have heard, and stared at. The death of R. Jouett is the only small news in our neighborhood.

Our best affections attend Mrs. Monroe, Eliza and yourself. Adieu affectionately.

TO THE PRESIDENT.

MONTICELLO, June 19, 1796.

In Bache's Aurora, of the 9th instant, which came here by the last post, a paper appears, which, having been confided, as I presume, to but few hands, makes it truly wonderful how it should have got there. I cannot be satisfied as to my own part, till I relieve my mind by declaring, and I attest everything sacred and honorable to the declaration, that it has got there neither through me nor the paper confided to me. This has never been from under my own lock and key, or out of my own hands. No mortal ever knew from me, that these questions had been proposed. Perhaps I ought to except one person, who possesses all my confidence, as he has possessed yours. I do not remember, indeed, that I communicated it even to him. But as I was in the habit of unlimited trust and council with him, it is possible I may have read it to him; no more: for the quire of which it makes a part was never in any hand but my own, nor was a word ever copied or taken down from it, by any body. I take on myself, without fear, any divulcation on his part. We both know him incapable of it. From myself, then, or my papers, this publication has never been derived. I have formerly mentioned to you, that from a very early period of my life, I had laid it down as a rule of conduct, never to write a word for the public papers. From this, I have never departed in a single instance; and on a late occasion, when all the world seemed to be writing, besides a rigid adherence to my own rule, I can say with truth, that not a line for the press was ever communicated to me, by any other, except a single petition referred for my correction; which I did not correct, however, though the contrary, as I have heard, was said in a public place, by one person through error, through malice by another. I learn that this last has thought it worth his while to try to sow tares between you and me, by representing me as still engaged in the bustle of politics, and in turbulence and intrigue against the government. I never believed for a moment that this could make any impression on you, or that your knowledge of me would not overweigh the slander of an intriguer, dirtily employed in sifting the conversations of my table, where alone he could hear of me; and seeking to atone for his sins against you by sins against another, who had never done him any other injury than that of declining his confidences. Political conversations I really dislike, and therefore avoid where I can without affectation. But when urged by others, I have never

conceived that having been in public life requires me to belie my sentiments, or even to conceal them. When I am led by conversation to express them, I do it with the same independence here which I have practiced everywhere, and which is inseparable from my nature. But enough of this miserable tergiversator, who ought indeed either to have been of more truth, or less trusted by his country.^[5]

While on the subject of papers, permit me to ask one from you. You remember the difference of opinion between Hamilton and Knox on the one part, and myself on the other, on the subject of firing on the little Sarah, and that we had exchanged opinions and reasons in writing. On your arrival in Philadelphia I delivered you a copy of my reasons, in the presence of Colonel Hamilton. On our withdrawing, he told me he had been so much engaged that he had not been able to prepare a copy of his and General Knox's for you, and that if I would send you the one he had given me, he would replace it in a few days. I immediately sent it to you, wishing you should see both sides of the subject together. I often after applied to both the gentlemen but could never obtain another copy. I have often thought of asking this one, or a copy of it, back from you, but have not before written on subjects of this kind to you. Though I do not know that it will ever be of the least importance to me, yet one loves to possess arms, though they hope never to have occasion for them. They possess my paper in my own handwriting. It is just I should possess theirs. The only thing amiss is, that they should have left me to seek a return of the paper, or a copy of it, from you.

I put away this disgusting dish of old fragments, and talk to you of my peas and clover. As to the latter article, I have great encouragement from the friendly nature of our soil. I think I have had, both the last and present year, as good clover from common grounds, which had brought several crops of wheat and corn without ever having been manured, as I ever saw on the lots around Philadelphia. I verily believe that a yield of thirty-four acres, sowed on wheat April was twelvemonth, has given me a ton to the acre at its first cutting this spring. The stalks extended, measured three and a half feet long very commonly. Another field, a year older, and which yielded as well the last year, has sensibly fallen off this year. My exhausted fields bring a clover not high enough for hay, but I hope to make seed from it. Such as these, however, I shall hereafter put into peas in the broadcast, proposing

that one of my sowings of wheat shall be after two years of clover, and the other after two years of peas. I am trying the white boiling pea of Europe (the Albany pea) this year, till I can get the hog pea of England, which is the most productive of all. But the true winter vetch is what we want extremely. I have tried this year the Carolina drill. It is absolutely perfect. Nothing can be more simple, nor perform its office more perfectly for a single row. I shall try to make one to sow four rows at a time of wheat or peas, at twelve inches distance. I have one of the Scotch threshing machines nearly finished. It is copied exactly from a model Mr. Pinckney sent me, only that I have put the whole works (except the horse wheel) into a single frame, movable from one field to another on the two axles of a wagon. It will be ready in time for the harvest which is coming on, which will give it a full trial. Our wheat and rye are generally fine, and the prices talked of bid fair to indemnify us for the poor crops of the two last years.

I take the liberty of putting under your cover a letter to the son of the Marquis de la Fayette, not exactly knowing where to direct to him.

With very affectionate compliments to Mrs. Washington, I have the honor to be, with great and sincere esteem and respect, Dear Sir, your most obedient and most humble servant.

TO M. DE LA FAYETTE.

MONTICELLO, June 19, 1796.

DEAR SIR,—The inquiries of Congress were the first intimation which reached my retirement of your being in this country, and from M. Volney, now with me, I first learned where you are. I avail myself of the earliest moments of this information, to express to you the satisfaction with which I learn that you are in a land of safety, where you will meet in every person the friend of your worthy father and family. Among these, I beg leave to mingle my own assurances of sincere attachment to him, and my desire to prove it by every service I can render you. I know, indeed, that you are already under too good a patronage to need any other, and that my distance and retirement render my affections unavailing to you. They exist,

nevertheless, in all their purity and warmth towards your father and every one embraced by his love; and no one has wished with more anxiety to see him once more in the bosom of a nation, who, knowing his works and his worth, desire to make him and his family forever their own. You were, perhaps, too young to remember me personally when in Paris. But I pray you to remember, that should any occasion offer wherein I can be useful to you, there is no one on whose friendship and zeal you may more confidently count. You will, some day perhaps, take a tour through these States. Should anything in this part of them attract your curiosity, it would be a circumstance of great gratification to me to receive you here, and to assure you in person of those sentiments of esteem and attachment, with which I am, Dear Sir, your friend and humble servant.

TO MR. HITE.

MONTICELLO, June 29, 1796.

SIR,—The bearer hereof is the Duke de Liancourt, one of the principal noblemen of France, and one of the richest. All this he has lost in the revolutions of his country, retaining only his virtue and good sense, which he possesses in a high degree. He was President of the National Assembly of France in its earliest stage, and forced to fly from the proscriptions of Marat. Being a stranger, and desirous of acquiring some knowledge of the country he passes through, he has asked me to introduce him to some person in or near Winchester, but I too am a stranger after so long an absence from my country. Some apology then is necessary for my undertaking to present this gentleman to you. It is the general interest of our country that strangers of distinction passing through it, should be made acquainted with its best citizens, and those most qualified to give favorable impressions of it. He well deserves any attentions you will be pleased to show him. He would have had a letter from Mr. Madison to you, as he was to have visited Mr. Madison at his own house, being well acquainted with him, but the uncertainty whether he has returned home, and his desire to see Staunton, turns him off the road at this place. I beg leave to add my acknowledgments to his for any civilities you will be pleased to show him,

and to assure you of the sentiments of esteem with which I am, Sir, your most obedient, and most humble servant.

TO JONATHAN WILLIAMS.

MONTICELLO, July 3, 1796.

DEAR SIR,—I take shame to myself for having so long left unanswered your valuable favor on the subject of the mountains. But in truth, I am become lazy as to everything except agriculture. The preparations for harvest, and the length of the harvest itself, which is not yet finished, would have excused the delay however, at all times and under all dispositions. I examined, with great satisfaction, your barometrical estimate of the heights of our mountains; and with the more, as they corroborated conjectures on this subject which I had made before. My estimates had made them a little higher than yours (I speak of the Blue Ridge). Measuring with a very nice instrument the angle subtended vertically by the highest mountain of the Blue Ridge opposite to my own house, a distance of about eighteen miles south westward, I made the highest about two thousand feet, as well as I remember, for I can no longer find the notes I made. You make the south side of the mountain near Rockfish Gap, one thousand seven hundred and twenty-two feet above Woods'. You make the other side of the mountain seven hundred and sixty-seven feet. Mr. Thomas Lewis deceased, an accurate man, with a good quadrant, made the north side of the highest mountain opposite my house something more (I think) than one thousand feet; but the mountain estimated by him and myself is probably higher than that next Rockfish Gap. I do not remember from what principles I estimated the Peaks of Otter at four thousand feet; but some late observations of Judge Tucker's coincided very nearly with my estimate. Your measures confirm another opinion of mine, that the Blue Ridge, on its south side, is the highest ridge in our country compared with its base. I think your observations on these mountains well worthy of being published, and hope you will not scruple to let them be communicated to the world.

You wish me to present to the Philosophical Society the result of my philosophical researches since my retirement. But, my good Sir, I have

made researches into nothing but what is connected with agriculture. In this way, I have a little matter to communicate, and will do it ere long. It is the form of a mould-board *of least resistance*. I had some years ago conceived the principles of it, and I explained them to Mr. Rittenhouse. I have since reduced the thing to practice, and have reason to believe the theory fully confirmed. I only wish for one of those instruments used in England for measuring the force exerted in the draughts of different ploughs, &c., that I might compare the resistance of my mould-board with that of others. But these instruments are not to be had here. In a letter of this date to Mr. Rittenhouse, I mention a discovery in animal history, very signal indeed, of which I shall lay before the Society the best account I can, as soon as I shall have received some other materials collecting for me.

I have seen, with extreme indignation, the blasphemies lately vended against the memory of the father of American philosophy. But his memory will be preserved and venerated as long as the thunder of heaven shall be heard or feared.

With good wishes to all of his family, and sentiments of great respect and esteem for yourself, I am, dear Sir, your most obedient, and most humble servant.

TO COLONEL MONROE.

MONTICELLO, July 10, 1796.

DEAR SIR,—* * * * *

The campaign of Congress has closed. Though the Anglomen have in the end got their treaty through, and so far have triumphed over the cause of republicanism, yet it has been to them a dear-bought victory. It has given the most radical shock to their party which it has ever received; and there is no doubt, they would be glad to be replaced on the ground they possessed the instant before Jay's nomination extraordinary. They see that nothing can support them but the colossus of the President's merits with the people, and the moment he retires, that his successor, if a monocrat, will be overborne

by the republican sense of his constituents; if a republican, he will, of course, give fair play to that sense, and lead things into the channel of harmony between the governors and governed. In the meantime, patience.

Among your neighbors there is nothing new. Mr. Rittenhouse is lately dead. We have had the finest harvest ever known in this part of the country. Both the quantity and quality of wheat are extraordinary. We got fifteen shillings a bushel for the last crop, and hope two-thirds of that at least for the present one.

Most assiduous court is paid to Patrick Henry. He has been offered everything which they knew he would not accept. Some impression is thought to be made, but we do not believe it is radical. If they thought they could count upon him, they would run him for their Vice President; their first object being to produce a schism in this State. As it is, they will run Mr. Pinckney; in which they regard his southern position rather than his principles. Mr. Jay and his advocate Camillus are completely treaty-foundered.

We all join in love to Mrs. Monroe; and accept for yourself assurances of sincere and affectionate friendship. Adieu.

TO COLONEL J. STUART.

MONTICELLO, November 10, 1796.

DEAR SIR,—I have to acknowledge the receipt of your last favor, together with the bones of the great claw, which accompanied it. My anxiety to obtain a thigh bone is such, that I defer communicating what we have to the Philosophical Society, in the hope of adding that bone to the collection. We should then be able to fix the stature of the animal, without going into conjecture and calculation, as we should possess a whole limb, from the haunch bone to the claw inclusive. However, as you announce to me that the recovery of a thigh bone is desperate, I shall make the communication to the Philosophical Society. I think it happy that this incident will make known to them a person so worthy as yourself to be taken into their body,

and without whose attention to these extraordinary remains, the world might have been deprived of the knowledge of them. I cannot, however, help believing that this animal, as well as the mammoth, are still existing. The annihilation of any species of existence, is so unexampled in any parts of the economy of nature which we see, that we have a right to conclude, as to the parts we do not see, that the probabilities against such annihilation are stronger than those for it. In hopes of hearing from you, as soon as you can form a conclusion satisfactory to yourself, that the thigh bone will or will not be recovered, I remain, with great respect and esteem, Dear Sir, your most obedient servant.

TO JAMES MADISON.

MONTICELLO, December 17, 1796.

Your favor of the 5th came to hand last night. The first wish of my heart was, that you should have been proposed for the administration of the government. On your declining it, I wish any body rather than myself; and there is nothing I so anxiously hope, as that my name may come out either second or third. These would be indifferent to me; as the last would leave me at home the whole year, and the other two-thirds of it. I have no expectation that the Eastern States will suffer themselves to be so much outwitted, as to be made the tools for bringing in P. instead of A. I presume they will throw away their second vote. In this case, it begins to appear possible, that there may be an equal division where I had supposed the republican vote would have been considerably minor. It seems also possible, that the Representatives may be divided. This is a difficulty from which the Constitution has provided no issue. It is both my duty and inclination, therefore, to relieve the embarrassment, should it happen; and in that case, I pray you and authorize you fully, to solicit on my behalf that Mr. Adams may be preferred. He has always been my senior, from the commencement of our public life, and the expression of the public will being equal, this circumstance ought to give him the preference. And when so many motives will be operating to induce some of the members to change their vote, the addition of my wish may have some effect to

preponderate the scale. I am really anxious to see the speech. It must exhibit a very different picture of our foreign affairs from that presented in the adieu, or it will little correspond with my views of them. I think they never wore so gloomy an aspect since the year 1783. Let those come to the helm who think they can steer clear of the difficulties. I have no confidence in myself for the undertaking.

We have had the severest weather ever known in November. The thermometer was at twelve degrees here and in Goochland and I suppose generally. It arrested my buildings very suddenly, when eight days more would have completed my walls, and permitted us to cover in. The drought is excessive. From the middle of October to the middle of December, not rain enough to lay the dust. A few days ago there fell a small rain but the succeeding cold has probably prevented it from sprouting the grain sown during the drought.

Present me in friendly terms to Messrs. Giles, Venable, and Page. Adieu affectionately.

TO EDWARD RUTLEDGE.

MONTICELLO, December 27, 1796.

MY DEAR SIR,—* * * * *

You have seen my name lately tacked to so much of eulogy and of abuse, that I dare say you hardly thought it meant your old acquaintance of '76. In truth, I did not know myself under the pens either of my friends or foes. It is unfortunate for our peace, that unmerited abuse wounds, while unmerited praise has not the power to heal. These are hard wages for the services of all the active and healthy years of one's life. I had retired after five and twenty years of constant occupation in public affairs, and total abandonment of my own. I retired much poorer than when I entered the public service, and desired nothing but rest and oblivion. My name, however, was again brought forward, without concert or expectation on my part; (on my salvation I declare it.) I do not as yet know the result, as a matter of fact; for

in my retired canton we have nothing later from Philadelphia than of the second week of this month. Yet I have never one moment doubted the result. I knew it was impossible Mr. Adams should lose a vote north of the Delaware, and that the free and moral agency of the South would furnish him an abundant supplement. On principles of public respect I should not have refused; but I protest before my God, that I shall, from the bottom of my heart, rejoice at escaping. I know well that no man will ever bring out of that office the reputation which carries him into it. The honey moon would be as short in that case as in any other, and its moments of ecstasy would be ransomed by years of torment and hatred. I shall highly value, indeed, the share which I may have had in the late vote, as an evidence of the share I hold in the esteem of my countrymen. But in this point of view, a few votes more or less will be little sensible, and in every other, the minor will be preferred by me to the major vote. I have no ambition to govern men; no passion which would lead me to delight to ride in a storm. *Flumina amo, sylvasque, inglorius*. My attachment to my home has enabled me to make the calculation with rigor, perhaps with partiality, to the issue which keeps me there. The newspapers will permit me to plant my corn, peas, &c., in hills or drills as I please (and my oranges, by-the-bye, when you send them), while our eastern friend will be struggling with the storm which is gathering over us; perhaps be shipwrecked in it. This is certainly not a moment to covet the helm.

I have often doubted whether most to praise or to blame your line of conduct. If you had lent to your country the excellent talents you possess, on you would have fallen those torrents of abuse which have lately been poured forth on me. So far, I praise the wisdom which has descried and steered clear of a water-spout ahead. But now for the blame. There is a debt of service due from every man to his country, proportioned to the bounties which nature and fortune have measured to him. Counters will pay this from the poor of spirit; but from you, my friend, coin was due. There is no bankrupt law in heaven, by which you may get off with shillings in the pound; with rendering to a single State what you owed to the whole confederacy. I think it was by the Roman law that a father was denied sepulture, unless his son would pay his debts. Happy for you and us, that you have a son whom genius and education have qualified to pay yours. But as you have been a good father in everything else, be so in this also. Come

forward and pay your own debts. Your friends, the Mr. Pinckneys, have at length undertaken their tour. My joy at this would be complete if you were in gear with them. I love to see honest and honorable men at the helm, men who will not bend their politics to their purses, nor pursue measures by which they may profit, and then profit by their measures. *Au diable les Bougres!* I am at the end of my curse and bottom of my page, so God bless you and yours. Adieu affectionately.

Statement from memory, of a letter I wrote to John Adams; copy omitted to be retained.

MONTICELLO, December 28, 1796.

DEAR SIR,—The public, and the public papers, have been much occupied lately in placing us in a point of opposition to each other. I confidently trust we have felt less of it ourselves. In the retired canton where I live, we know little of what is passing. Our last information from Philadelphia is of the 16th instant. At that date the issue of the late election seems not to have been known as a matter of fact. With me, however, its issue was never doubted. I knew the impossibility of your losing a single vote north of the Delaware; and even if you should lose that of Pennsylvania in the mass, you would get enough south of it to make your election sure. I never for a single moment expected any other issue; and though I shall not be believed, yet it is not the less true, that I never wished any other. My neighbors, as my compurgators, could aver this fact, as seeing my occupations and my attachment to them. It is possible, indeed, that even you may be cheated of your succession by a trick worthy the subtlety of your arch friend of New York, who has been able to make of your real friends tools for defeating their and your just wishes. Probably, however, he will be disappointed as to you; and my inclinations put me out of his reach. I leave to others the sublime delights of riding in the storm, better pleased with sound sleep and a warmer berth below it, encircled with the society of my neighbors, friends, and fellow laborers of the earth, rather than with spies and sycophants. Still, I shall value highly the share I may have had in the late vote, as a measure of the share I hold in the esteem of my fellow citizens. In

this point of view, a few votes less are but little sensible, while a few more would have been in their effect very sensible and oppressive to me. I have no ambition to govern men. It is a painful and thankless office. And never since the day you signed the treaty of Paris, has our horizon been so overcast. I devoutly wish you may be able to shun for us this war, which will destroy our agriculture, commerce, and credit. If you do, the glory will be all your own. And that your administration may be filled with glory and happiness to yourself, and advantage to us, is the sincere prayer of one, who, though in the course of our voyage, various little incidents have happened or been contrived to separate us, yet retains for you the solid esteem of the times when we were working for our independence, and sentiments of sincere respect and attachment.

Statement from memory, of a letter I wrote to James Madison; copy omitted to be retained.

MONTICELLO, January 1, 1797.

DEAR SIR,—Yours of December the 19th is safely received. I never entertained a doubt of the event of the election. I knew that the eastern troops were trained in the schools of their town meetings to sacrifice little differences of opinion to the solid advantages of operating in phalanx, and that the more free and moral agency of the other States would fully supply their deficiency. I had no expectation, indeed, that the vote would have approached so near an equality. It is difficult to obtain full credit to declarations of disinclination to honors, and most so with those who still remain in the world. But never was there a more solid unwillingness, founded on rigorous calculation, formed in the mind of any man, short of peremptory refusal. No arguments, therefore, were necessary to reconcile me to a relinquishment of the first office, or acceptance of the second. No motive could have induced me to undertake the first, but that of putting our vessel upon her republican tack, and preventing her being driven too far to leeward of her true principles. And the second is the only office in the world about which I cannot decide in my own mind, whether I had rather have it or not have it. Pride does not enter into the estimate. For I think with the

Romans of old, that the General of to-day should be a common soldier to-morrow, if necessary. But as to Mr. Adams, particularly, I could have no feelings which would revolt at being placed in a secondary station to him. I am his junior in life, I was his junior in Congress, his junior in the diplomatic line, and lately his junior in our civil government. I had written him the enclosed letter before the receipt of yours. I had intended it for some time, but had put it off, from time to time, from the discouragement of despair to make him believe me sincere. As the information by the last post does not make it necessary to change anything in the letter, I enclose it open for your perusal, as well that you may be possessed of the true state of dispositions between us, as that if there be any circumstance which might render its delivery ineligible, you may return it to me. If Mr. Adams could be induced to administer the government on its true principles, quitting his bias for an English constitution, it would be worthy consideration whether it would not for the public good, to come to a good understanding with him as to his future elections. He is the only sure barrier against Hamilton's getting in.

* * * * *

The Political Progress is a work of value and of a singular complexion. The author's eye seems to be a natural achromatic, divesting every object of the glare of color. The former work of the same title possessed the same kind of merit. They disgust one, indeed, by opening to his view the ulcerated state of the human mind. But to cure an ulcer you must go to the bottom of it, which no author does more radically than this. The reflections into which it leads us are not very flattering to the human species. In the whole animal kingdom I recollect no family but man, steadily and systematically employed in the destruction of itself. Nor does what is called civilization produce any other effect, than to teach him to pursue the principle of the *bellum omnium in omnia* on a greater scale, and instead of the little contest between tribe and tribe, to comprehend all the quarters of the earth in the same work of destruction. If to this we add, that as to other animals, the lions and tigers are mere lambs compared with man as a destroyer, we must conclude that nature has been able to find in man alone a sufficient barrier against the too great multiplication of other animals and of man himself, an equilibrating power against the fecundity of generation. While in making these observations, my situation points my attention to the warfare of man

in the physical world, yours may perhaps present him as equally warring in the moral one. Adieu. Yours affectionately.

TO MR. VOLNEY.

MONTICELLO, January 8, 1797.

DEAR SIR,—I received yesterday your two favors of December the 26th and 29th. Your impatience to receive your valise and its key was natural; and it is we who have been to blame; Mr. Randolph, for not taking information of the vessel and address to which your valise was committed, and myself for having waited till I heard of your being again immersed into the land of newspapers before I forwarded your key. However, as you have at length got them safe, I claim absolution under the proverb, that "all is well which ends well."

About the end of 1793, I received from Mr. Dombey (then at Lyons) a letter announcing his intention to come here. And in May, 1794, I received one from a M. L'Epine, dated from New York, and stating himself to be master of the brig de Boon, Captain Brown, which had sailed from Havre with Mr. Dombey on board, who had sealed up his baggage and wrote my address on them, to save them in case of capture; and that when they were taken, the address did in fact protect them. He mentioned then the death of Mr. Dombey, and that he had delivered his baggage to the Custom House at New York. I immediately wrote to M. L'Epine, disclaiming any right or interest in the packages under my address, and authorizing, as far as depended on me, the consul at New York, or any person the representative of Mr. Dombey, to open the packages and dispose of them according to right. I enclosed this letter open to Mr. Randolph, then Secretary of State, to get his interference for the liberation of the effects. It may have happened that he failed to forward the letter, or that M. L'Epine may have gone before it reached New York. In any event, I can do no more than repeat my disclaimer of any right to Mr. Dombey's effects, and add all the authority which I can give to yourself, or the consul of France at New York, to do with those effects whatever I might do. Certainly, it would be a great gratification to me to receive the Metre and Grave committed to Mr.

Dombey for me, and that you would be so good as to be the channel of my acknowledgments to Bishop Gregoire, or any one else to whom I should owe this favor.

You wish to know the state of the air here during the late cold spell, or rather the present one, for it is at this moment so cold that the ink freezes in my pen, so that my letter will scarcely be legible.

The following is copied from my diary.

	Sun rise.	3 P. M.	
Nov. 22	60	69	
23	32½	44	
24	23	28	
25	21	35	
26	12	26	
27	15	29	
28	18	"	
29	25	36	
30	22	43	
Dec. 19	50	48	
20	19	"	
21	24	"	
22	12	"	
23	5 below 0	11	
24	0	20	
25	18	32	
26	21	30	
27	15	29	
28	18	34	
29	30	39	
30	31	34 }	a snow 1½ inches deep.
31	34	39 }	
Jan. 1 0	30	43	
2	28	33	
3	23	30 }	a snow 3 inches

4	23	30	} deep.
5	21	35	
6	27	38	
7	25	22	
8	12		

In the winter of 1779-80, the mercury in Fahrenheits thermometer fell at Williamsburg once to six degrees above zero. In 1783-84, I was at Annapolis without a thermometer, and I do not know that there was one in that State; I heard from Virginia, that the mercury was again down to six degrees. In 1789-90, I was at Paris. The mercury here was as low as eighteen degrees below zero, of Fahrenheit. These have been the most remarkably cold winters ever known in America. We are told, however, that in 1762, at Philadelphia, it was twenty-two degrees below zero; in December, 1793, it was three degrees below zero there by my thermometer. On the 31st of January, 1796, it was one and three-fourth degrees above zero at Monticello. I shall therefore have to change the maximum of our cold, if ever I revise the Notes on Virginia; as six degrees above zero was the greatest which had ever been observed.

It seems possible, from what we hear of the votes at the late election, that you may see me in Philadelphia about the beginning of March, exactly in that character which, if I were to reappear at Philadelphia, I would prefer to all others; for I change the sentiment of Clorinda to "L'Alte temo, l'humile non sdegno." I have no inclination to govern men. I should have no views of my own in doing it; and as to those of the governed, I had rather that their disappointment (which must always happen) should be pointed to any other cause, real or supposed, than to myself. I value the late vote highly; but it is only as the index of the place I hold in the esteem of my fellow citizens. In this point of view, the difference between sixty-eight and seventy-one votes is little sensible, and still less that between the real vote, which was sixty-nine and seventy; because one real elector in Pennsylvania was excluded from voting by the miscarriage of the votes, and one who was not an elector was admitted to vote. My farm, my family, my books and my building, give me much more pleasure than any public office would, and, especially, one which would keep me constantly from them. I had hoped, when you were here, to have finished the walls of my house in the autumn,

and to have covered it early in winter. But we did not finish them at all. I have to resume the work, therefore, in the spring, and to take off the roof of the old part during the summer, to cover the whole. This will render it necessary for me to make a very short stay in Philadelphia, should the late vote have given me any public duty there. My visit there will be merely out of respect to the public, and to the new President.

I am sorry you have received so little information on the subject of our winds. I had once (before our revolution war) a project on the same subject. As I had then an extensive acquaintance over this State, I meant to have engaged some person in every county of it, giving them each a thermometer, to observe that and the winds twice a day, for one year, to wit, at sun-rise and at four P. M., (the coldest and the warmest point of the twenty-four hours,) and to communicate their observations to me at the end of the year. I should then have selected the days in which it appeared that the winds blew to a centre within the State, and have made a map of them, and seen how far they had analogy with the temperature of the air. I meant this to be merely a specimen to be communicated to the Philosophical Society at Philadelphia, in order to engage them, by means of their correspondents, to have the same thing done in every State, and through a series of years. By seizing the days when the winds centred in any part of the United States, we might, in time, have come to some of the causes which determine the direction of the winds, which I suspect to be very various. But this long-winded project was prevented by the war which came upon us, and since that I have been far otherwise engaged. I am sure you will have viewed the subject from much higher ground, and I shall be happy to learn your views in some of the hours of *délassement*, which I hope we are yet to pass together. To this must be added your observations on the new character of man, which you have seen in your journey, as he is in all his shapes a curious animal, on whom no one is better qualified to judge than yourself; and no one will be more pleased to participate of your views of him than one, who has the pleasure of offering you his sentiments of sincere respect and esteem.

TO HENRY TAZEWELL.

MONTICELLO, January 16, 1797.

DEAR SIR,—As far as the public papers are to be credited, I may suppose that the choice of Vice President has fallen on me. On this hypothesis I trouble you, and only pray, if it be wrong, that you will consider this letter as not written. I believe it belongs to the Senate to notify the Vice President of his election. I recollect to have heard, that on the first election of President and Vice President, gentlemen of considerable office were sent to notify the parties chosen. But this was the inauguration of our new government, and ought not to be drawn into example. At the second election, both gentlemen were on the spot and needed no messengers. On the present occasion, the President will be on the spot, so that what is now to be done respects myself alone; and considering that the season of notification will always present one difficulty, that the distance in the present case adds a second, not inconsiderable, and which may in future happen to be sometimes much more considerable, I hope the Senate will adopt that method of notification, which will always be least troublesome and most certain. The channel of the post is certainly the least troublesome, is the most rapid, and, considering also that it may be sent by duplicates and triplicates, is unquestionably the most certain. Indorsed to the postmaster at Charlottesville, with an order to send it by express, no hazard can endanger the notification. Apprehending, that should there be a difference of opinion on this subject in the Senate, my ideas of self-respect might be supposed by some to require something more formal and inconvenient, I beg leave to avail myself of your friendship to declare, if a different proposition should make it necessary, that I consider the channel of the post-office as the most eligible in every respect, and that it is to me the most desirable; which I take the liberty of expressing, not with a view of encroaching on the respect due to that discretion which the Senate have a right to exercise on the occasion, but to render them the more free in the exercise of it, by taking off whatsoever weight the supposition of a contrary desire in me might have on the mind of any member.

I am, with sincere respect, dear Sir, your friend and servant.

TO JAMES MADISON.

MONTICELLO, January 22, 1797.

DEAR SIR,—Yours of the 8th came to hand yesterday. I was not aware of any necessity of going on to Philadelphia immediately, yet I had determined to do it, as a mark of respect to the public, and to do away the doubts which have spread, that I should consider the second office as beneath my acceptance. The journey, indeed, for the month of February, is a tremendous undertaking for me, who have not been seven miles from home since my re-settlement. I will see you about the rising of Congress; and presume I need not stay there a week. Your letters written before the 7th of February will still find me here. My letters inform me that Mr. Adams speaks of me with great friendship, and with satisfaction in the prospect of administering the government in concurrence with me. I am glad of the first information, because though I saw that our ancient friendship was affected by a little leaven, produced partly by his constitution, partly by the contrivance of others, yet I never felt a diminution of confidence in his integrity, and retained a solid affection for him. His principles of government I knew to be changed, but conscientiously changed. As to my participating in the administration, if by that he meant the executive cabinet, both duty and inclination will shut that door to me. I cannot have a wish to see the scenes of 1793 revived as to myself, and to descend daily into the arena like a gladiator, to suffer martyrdom in every conflict. As to duty, the Constitution will know me only as the member of a legislative body; and its principle is, that of a separation of legislative, executive and judiciary functions, except in cases specified. If this principle be not expressed in direct terms, yet it is clearly the spirit of the Constitution, and it ought to be so commented and acted on by every friend to free government.

I sincerely deplore the situation of our affairs with France. War with them, and consequent alliance with Great Britain, will completely compass the object of the executive council, from the commencement of the war between France and England; taken up by some of them from that moment, by others, more latterly. I still, however, hope it will be avoided. I do not believe Mr. Adams wishes war with France; nor do I believe he will truckle to England as servilely as has been done. If he assumes this front at once, and shows that he means to attend to self-respect and national dignity with both the nations, perhaps the depredations of both on our commerce may be amicably arrested. I think we should begin first with those who first began

with us, and, by an example on them, acquire a right to re-demand the respect from which the other party has departed.

I suppose you are informed of the proceeding commenced by the legislature of Maryland, to claim the south branch of the Potomac as their boundary, and thus of Albemarle, now the central county of the State, to make a frontier. As it is impossible, upon any consistent principles, and after such a length of undisturbed possession, that they can expect to establish their claim, it can be ascribed to no other than an intention to irritate and divide; and there can be no doubt from what bow the shaft is shot. However, let us cultivate Pennsylvania, and we need not fear the universe. The Assembly have named me among those who are to manage this controversy. But I am so averse to motion and contest, and the other members are so fully equal to the business, that I cannot undertake to act in it. I wish you were added to them. Indeed, I wish and hope you may consent to be added to our Assembly itself. There is no post where you can render greater services, without going out of your State. Let but this block stand firm on its basis, and Pennsylvania do the same, our Union will be perpetual, and our General Government kept within the bounds and form of the Constitution. Adieu affectionately.

TO G. WYTHE.

MONTICELLO, January 22, 1797.

It seems probable that I will be called on to preside in a legislative chamber. It is now so long since I have acted in the legislative line, that I am entirely rusty in the Parliamentary rules of procedure. I know they have been more studied and are better known by you than by any man in America, perhaps by any man living. I am in hopes that while inquiring into the subject you made notes on it. If any such remain in your hands, however informal, in books or in scraps of paper, and you will be so good as to trust me with them a little while, they shall be most faithfully returned. If they lie in small compass they might come by post, without regard to expense. If voluminous, Mr. Randolph will be passing through Richmond on his way from Varina to this place about the 10th of February, and could give them a

safe conveyance. Did the Assembly do anything for the preservation by publication of the laws? With great affection, adieu.

TO JOHN LANGDON.

MONTICELLO, January 22, 1797.

DEAR SIR,—Your friendly letter of the 2d instant, never came to hand till yesterday, and I feel myself indebted for the solicitude you therein express for my undertaking the office to which you inform me I am called. I know not from what source an idea has spread itself, which I have found to be generally spread, that I would accept the office of President of the United States, but not of Vice President. When I retired from the office I last held, no man in the Union less expected than I did, ever to have come forward again; and, whatever has been insinuated to the contrary, to no man in the Union was the share which my name bore in the late contest, more unexpected than it was to me. If I had contemplated the thing beforehand, and suffered my will to enter into action at all on it, it would have been in a direction exactly the reverse of what has been imputed to me; but I had no right to a will on the subject, much less to control that of the people of the United States in arranging us according to our capacities. Least of all could I have any feelings which would revolt at taking a station secondary to Mr. Adams. I have been secondary to him in every situation in which we ever acted together in public life for twenty years past. A contrary position would have been the novelty, and his the right of revolting at it. Be assured then, my dear Sir, that if I had had a fibre in my composition still looking after public office, it would have been gratified precisely by the very call you are pleased to announce to me, and no other. But in truth I wish for neither honors nor offices. I am happier at home than I can be elsewhere. Since, however, I am called out, an object of great anxiety to me is that those with whom I am to act, shutting their minds to the unfounded abuse of which I have been the subject, will view me with the same candor with which I shall certainly act. An acquaintance of many long years ensures to me your just support, as it does to you the sentiments of sincere respect and attachment with which I am, dear Sir, your friend and servant.

TO DOCTOR JOHN EDWARDS.

MONTICELLO, January 22, 1797.

DEAR SIR,—I was yesterday gratified with the receipt of your favor of December 15th, which gave me the first information of your return from Europe. On the 20th of October I received a letter of July 30th from Colonel Monroe, but did not know through what channel it came. I should be glad to see the defence of his conduct which you possess, though no paper of that title is necessary for me. He was appointed to an office during pleasure merely to get him out of the Senate, and with an intention to seize the first pretext for exercising the pleasure of recalling him. As I shall be at Philadelphia the first week in March, perhaps I may have an opportunity of seeing the paper there in Mr. Madison's hands. I think with you it will be best to publish nothing concerning Colonel Monroe till his return, that he may accommodate the complexion of his publication to times and circumstances. When you left America you had not a good opinion of the train of our affairs. I dare say you do not find that they have got into better train. It will never be easy to convince me that by a firm yet just conduct in 1793, we might not have obtained such a respect for our neutral rights from Great Britain, as that her violations of them and use of our means to all her wars, would not have furnished any pretence to the other party to do the same. War with both would have been avoided, commerce and navigation protected and enlarged. We shall now either be forced into a war, or have our commerce and navigation at least totally annihilated, and the produce of our farms for some years left to rot on our hands. A little time will unfold these things, and show which class of opinions would have been most friendly to the firmness of our government, and to the interests of those for whom it was made. I am, with great respect, dear Sir, your most obedient servant.

TO DOCTOR RUSH.

MONTICELLO, January 22, 1797.

DEAR SIR,—I received yesterday your kind favor of the 4th instant, and the eulogium it covered on the subject of our late invaluable friend Rittenhouse, and I perused it with the avidity and approbation which the matter and manner of everything from your pen has long taught me to feel. I thank you too for your congratulations on the public call on me to undertake the second office in the United States, but still more for the justice you do me in viewing as I do the *escape* from the first. I have no wish to meddle again in public affairs, being happier at home than I can be anywhere else. Still less do I wish to engage in an office where it would be impossible to satisfy either friends or foes, and least of all at a moment when the storm is about to burst, which has been conjuring up for four years past. If I am to act however, a more tranquil and unoffending station could not have been found for me, nor one so analogous to the dispositions of my mind. It will give me philosophical evenings in the winter, and rural days in summer. I am indebted to the Philosophical Society a communication of some bones of an animal of the lion kind, but of most exaggerated size. What are we to think of a creature whose claws were eight inches long, when those of the lion are not 1½ inches; whose thigh-bone was 6¼ diameter; when that of the lion is not 1½ inches? Were not the things within the jurisdiction of the rule and compass, and of ocular inspection, credit to them could not be obtained. I have been disappointed in getting the femur as yet, but shall bring on the bones I have, if I can, for the Society, and have the pleasure of seeing you for a few days in the first week of March. I wish the usual delays of the publications of the Society may admit the addition to our new volume, of this interesting article, which it would be best to have first announced under the sanction of their authority. I am, with sincere esteem, dear Sir, your friend and servant.

TO JAMES MADISON.

MONTICELLO, January 30, 1797.

Yours of the 18th came to hand yesterday. I am very thankful for the discretion you have exercised over the letter. That has happened to be the case, which I knew to be possible, that the honest expression of my feelings

towards Mr. Adams might be rendered *mal-apropos* from circumstances existing, and known at the seat of government, but not known by me in my retired situation. Mr. Adams and myself were cordial friends from the beginning of the revolution. Since our return from Europe, some little incidents have happened, which were capable of affecting a jealous mind like his. His deviation from that line of politics on which we had been united, has not made me less sensible of the rectitude of his heart; and I wished him to know this, and also another truth, that I am sincerely pleased at having escaped the late draught for the helm, and have not a wish which he stands in the way of. That he should be convinced of these truths, is important to our mutual satisfaction, and perhaps to the harmony and good of the public service. But there was a difficulty in conveying them to him, and a possibility that the attempt might do mischief there or somewhere else; and I would not have hazarded the attempt, if you had not been in place to decide upon its expediency. It has now become unnecessary to repeat it by a letter.

* * * * *

I have turned to the Constitution and laws, and find nothing to warrant the opinion that I might not have been qualified here, or wherever else I could meet with a Senator; any member of that body being authorized to administer the oath, without being confined to time or place, and consequently to make a record of it, and to deposit it with the records of the Senate. However, I shall come on, on the principle which had first determined me,—respect to the public. I hope I shall be made a part of no ceremony whatever. I shall escape into the city as covertly as possible. If Governor Mifflin should show any symptoms of ceremony, pray contrive to parry them. We have now fine mild weather here. The thermometer is above the point which renders fires necessary. Adieu affectionately.

TO JAMES SULLIVAN.

MONTICELLO, February 9, 1797.

DEAR SIR,—I have many acknowledgments to make for the friendly anxiety you are pleased to express in your letter of January the 12th, for my undertaking the office to which I have been elected. The idea that I would accept the office of President, but not that of Vice President of the United States, had not its origin with me. I never thought of questioning the free exercise of the right of my fellow citizens, to marshal those whom they call into their service according to their fitness, nor ever presumed that they were not the best judges of that. Had I indulged a wish in what manner they should dispose of me, it would precisely have coincided with what they have done. Neither the splendor, nor the power, nor the difficulties, nor the fame or defamation, as may happen, attached to the first magistracy, have any attractions for me. The helm of a free government is always arduous, and never was ours more so, than at a moment when two friendly people are like to be committed in war by the ill temper of their administrations. I am so much attached to my domestic situation, that I would not have wished to leave it at all. However, if I am to be called from it, the shortest absences and most tranquil station suit me best. I value highly, indeed, the part my fellow citizens gave me in their late vote, as an evidence of their esteem, and I am happy in the information you are so kind as to give, that many in the eastern quarter entertain the same sentiment.

Where a constitution, like ours, wears a mixed aspect of monarchy and republicanism, its citizens will naturally divide into two classes of sentiment, according as their tone of body or mind, their habits, connections and callings, induce them to wish to strengthen either the monarchical or the republican features of the Constitution. Some will consider it as an elective monarchy, which had better be made hereditary, and therefore endeavor to lead towards that all the forms and principles of its administration. Others will view it as an energetic republic, turning in all its points on the pivot of free and frequent elections. The great body of our native citizens are unquestionably of the republican sentiment. Foreign education, and foreign connections of interest, have produced some exceptions in every part of the Union, north and south, and perhaps other circumstances in your quarter, better known to you, may have thrown into the scale of exceptions a greater number of the rich. Still there, I believe, and here, I am sure, the great mass is republican. Nor do any of the forms in which the public disposition has been pronounced in the last half dozen years, evince the contrary. All of

them, when traced to their true source, have only been evidences of the preponderant popularity of a particular great character. That influence once withdrawn, and our countrymen left to the operation of their own unbiassed good sense, I have no doubt we shall see a pretty rapid return of general harmony, and our citizens moving in phalanx in the paths of regular liberty, order, and a sacrosanct adherence to the constitution. Thus I think it will be, if war with France can be avoided. But if that untoward event comes athwart us in our present point of deviation, nobody, I believe, can foresee into what port it will drive us.

I am always glad of an opportunity of inquiring after my most ancient and respected friend Mr. Samuel Adams. His principles, founded on the immovable basis of equal right and reason, have continued pure and unchanged. Permit me to place here my sincere veneration for him, and wishes for his health and happiness; and to assure yourself of the sentiments of esteem and respect with which I am, Dear Sir, your most obedient and most humble servant.

TO PEREGRINE FITZHUGH, ESQ.

MONTICELLO, April 9, 1797.

DEAR SIR,—Your favor of March 25th came safely to hand with the —— of —— covered, for which accept my thanks. A nephew of mine, Mr. S., who married a daughter of Mr. Carr, near Georgetown, setting out this day for that place, I have sent him some of the peas you desired, which he will enclose under cover to you, and lodge in the care of Mr. Thompson Mason. This letter goes separately by post, to notify you that you may call for them in time for the present season. I wish it were in my power to satisfy you with respect to the sentiments expressed by my friend Mr. Madison in the general Convention. But the papers in my possession are under a seal which I have not broken yet, and wish not to break, till I have time to give them a thorough perusal and consideration. Two things may be safely said; 1st. When a man whose life has been marked by its candor, has given a latter opinion contrary to a former one, it is probably the result of further inquiry, reflection and conviction. This is a sound answer, if the contrariety of

sentiment as to the treaty-making power were really expressed by him on the former and latter occasion, as was alleged to you. But, 2d. As no man weighs more maturely than Mr. Madison before he takes a side on any question, I do not expect he has changed either his opinion on that subject, or the expressions of it, and therefore I presume the allegation founded in some misconception or misinformation. I have just received a summons to *Congress* for the 15th of next month. I am sorry for it, as everything pacific could have been done without *Congress*, and I hope nothing is contemplated which is not pacific. I wish I may be as fortunate in my travelling companions as I was the last trip. I hope you found your father and family well; present him, if you please, the respectful homage of one who knew him when too young probably to have been known by him, and accept yourself assurances of the great esteem of, Dear Sir, your most obedient humble servant.

TO ELBRIDGE GERRY.

PHILADELPHIA, May 13, 1797.

MY DEAR FRIEND,—Your favor of the 4th instant came to hand yesterday. That of the 4th of April, with the one for Monroe, has never been received. The first, of March 27th, did not reach me till April the 21st, when I was within a few days of setting out for this place, and I put off acknowledging it till I should come here. I entirely commend your dispositions towards Mr. Adams; knowing his worth as intimately and esteeming it as much as any one, and acknowledging the preference of his claims, if any I could have had, to the high office conferred on him. But in truth, I had neither claims nor wishes on the subject, though I know it will be difficult to obtain belief of this. When I retired from this place and the office of Secretary of State, it was in the firmest contemplation of never more returning here. There had indeed been suggestions in the public papers, that I was looking towards a succession to the President's chair, but feeling a consciousness of their falsehood, and observing that the suggestions came from hostile quarters, I considered them as intended merely to excite public odium against me. I never in my life exchanged a word with any person on the subject, till I

found my name brought forward generally, in competition with that of Mr. Adams. Those with whom I then communicated, could say, if it were necessary, whether I met the call with desire, or even with a ready acquiescence, and whether from the moment of my first acquiescence, I did not devoutly pray that the very thing might happen which has happened. The second office of the government is honorable and easy, the first is but a splendid misery.

You express apprehensions that stratagems will be used, to produce a misunderstanding between the President and myself. Though not a word having this tendency has ever been hazarded to me by any one, yet I consider as a certainty that nothing will be left untried to alienate him from me. These machinations will proceed from the Hamiltonians by whom he is surrounded, and who are only a little less hostile to him than to me. It cannot but damp the pleasure of cordiality, when we suspect that it is suspected. I cannot help thinking, that it is impossible for Mr. Adams to believe that the state of my mind is what it really is; that he may think I view him as an obstacle in my way. I have no supernatural power to impress truth on the mind of another, nor he any to discover that the estimate which he may form, on a just view of the human mind as generally constituted, may not be just in its application to a special constitution. This may be a source of private uneasiness to us; I honestly confess that it is so to me at this time. But neither of us is capable of letting it have effect on our public duties. Those who may endeavor to separate us, are probably excited by the fear that I might have influence on the executive councils; but when they shall know that I consider my office as constitutionally confined to legislative functions, and that I could not take any part whatever in executive consultations, even were it proposed, their fears may perhaps subside, and their object be found not worth a machination.

I do sincerely wish with you, that we could take our stand on a ground perfectly neutral and independent towards all nations. It has been my constant object through my public life; and with respect to the English and French, particularly, I have too often expressed to the former my wishes, and made to them propositions verbally and in writing, officially and privately, to official and private characters, for them to doubt of my views, if they would be content with equality. Of this they are in possession of several written and formal proofs, in my own hand writing. But they have

wished a monopoly of commerce and influence with us; and they have in fact obtained it. When we take notice that theirs is the workshop to which we go for all we want; that with them centre either immediately or ultimately all the labors of our hands and lands; that to them belongs either openly or secretly the great mass of our navigation; that even the factorage of their affairs here, is kept to themselves by factitious citizenships; that these foreign and false citizens now constitute the great body of what are called our merchants, fill our sea ports, are planted in every little town and district of the interior country, sway everything in the former places by their own votes, and those of their dependants, in the latter, by their insinuations and the influence of their ledgers; that they are advancing fast to a monopoly of our banks and public funds, and thereby placing our public finances under their control; that they have in their alliance the most influential characters in and out of office; when they have shown that by all these bearings on the different branches of the government, they can force it to proceed in whatever direction they dictate, and bend the interests of this country entirely to the will of another; when all this, I say, is attended to, it is impossible for us to say we stand on independent ground, impossible for a free mind not to see and to groan under the bondage in which it is bound. If anything after this could excite surprise, it would be that they have been able so far to throw dust in the eyes of our own citizens, as to fix on those who wish merely to recover self-government the charge of subserving one foreign influence, because they resist submission to another. But they possess our printing presses, a powerful engine in their government of us. At this very moment, they would have drawn us into a war on the side of England, had it not been for the failure of her bank. Such was their open and loud cry, and that of their gazettes till this event. After plunging us in all the broils of the European nations, there would remain but one act to close our tragedy, that is, to break up our Union; and even this they have ventured seriously and solemnly to propose and maintain by arguments in a Connecticut paper. I have been happy, however, in believing, from the stifling of this effort, that that dose was found too strong, and excited as much repugnance there as it did horror in other parts of our country, and that whatever follies we may be led into as to foreign nations, we shall never give up our Union, the last anchor of our hope, and that alone which is to prevent this heavenly country from becoming an arena of gladiators. Much as I abhor war, and view it as the greatest scourge of mankind, and

anxiously as I wish to keep out of the broils of Europe, I would yet go with my brethren into these, rather than separate from them. But I hope we may still keep clear of them, notwithstanding our present thralldom, and that time may be given us to reflect on the awful crisis we have passed through, and to find some means of shielding ourselves in future from foreign influence, political, commercial, or in whatever other form it may be attempted. I can scarcely withhold myself from joining in the wish of Silas Deane, that there were an ocean of fire between us and the old world.

A perfect confidence that you are as much attached to peace and union as myself, that you equally prize independence of all nations, and the blessings of self-government, has induced me freely to unbosom myself to you, and let you see the light in which I have viewed what has been passing among us from the beginning of the war. And I shall be happy, at all times, in an intercommunication of sentiments with you, believing that the dispositions of the different parts of our country have been considerably misrepresented and misunderstood in each part, as to the other, and that nothing but good can result from an exchange of information and opinions between those whose circumstances and morals admit no doubt of the integrity of their views.

I remain, with constant and sincere esteem, Dear Sir, your affectionate friend and servant.

TO COLONEL BELL.

PHILADELPHIA, May 18, 1797.

DEAR SIR,—I enclose you a copy of the President's speech at the opening of Congress, from which you will see what were the objects in calling us together. When we first met, our information from the members from all parts of the Union, were that peace was the universal wish. Whether they will now raise their tone to that of the Executive, and embark in all the measures indicative of war, and, by taking a threatening posture, provoke hostilities from the opposite party, is far from being certain. There are many who think, that, not to support the Executive, is to abandon Government. As

far as we can judge as yet, the changes in the late election have been unfavorable to the Republican interest; still, we hope they will neither make nor provoke war. There appears no probability of any embargo, general or special; the bankruptcy of the English Bank is admitted to be complete, and nobody scarcely will venture to buy or draw bills, lest they should be paid there in depreciated currency. They prefer remitting dollars, for which they will get an advanced price; but this will drain us of our specie. Good James river tobacco is $8\frac{1}{2}$ to 9 dollars, flour $8\frac{1}{2}$ to 9 dollars, wheat not saleable. The bankruptcies have been immense, but are rather at a stand. Be so good as to make known to our commercial friends of your place and Milton, the above commercial intelligence. Adieu.

P. S.—Take care that nothing from my letter gets into the newspapers.

TO MR. GIROUD.

PHILADELPHIA, May 22, 1797.

SIR,—I received at this place, from Mr. Bache, the letter of 20th Germinal, with the seeds of the bread-tree which you were so kind as to send me. I am happy that the casual circumstances respecting Oglethorpe's affairs, has led to this valuable present, and I shall take immediate measures to improve the opportunity it gives us of introducing so precious a plant into our Southern States. The successive supplies of the same seeds which you are kind enough to give me expectations of receiving from you, will, in like manner, be thankfully received, and distributed to those persons and places most likely to render the experiment successful. One service of this kind rendered to a nation, is worth more to them than all the victories of the most splendid pages of their history, and becomes a source of exalted pleasure to those who have been instrumental to it. May that pleasure be yours, and your name be pronounced with gratitude by those who will at some future time be tasting the sweets of the blessings you are now procuring them. With my thanks for this favor, accept assurances of the sentiments of esteem and regard with which I am, &c.

TO THOMAS PINCKNEY.

PHILADELPHIA, May 29, 1797.

DEAR SIR,—I received from you, before you left England, a letter enclosing one from the Prince of Parma. As I learnt soon after that you were shortly to return to America, I concluded to join my acknowledgments of it with my congratulations on your arrival; and both have been delayed by a blameable spirit of procrastination, forever suggesting to our indolence that we need not do to-day what may be done to-morrow. Accept these now, in all the sincerity of my heart. It is but lately I have answered the Prince's letter. It required some time to establish arrangements which might effect his

purpose, and I wished also to forward a particular article or two of curiosity. You have found on your return a higher style of political difference than you had left here. I fear this is inseparable from the different constitutions of the human mind, and that degree of freedom which permits unrestrained expression. Political dissension is doubtless a less evil than the lethargy of despotism, but still it is a great evil, and it would be as worthy the efforts of the patriot as of the philosopher, to exclude its influence, if possible, from social life. The good are rare enough at best. There is no reason to subdivide them by artificial lines. But whether we shall ever be able so far to perfect the principles of society, as that political opinions shall, in its intercourse, be as inoffensive as those of philosophy, mechanics, or any other, may be well doubted. Foreign influence is the present and just object of public hue and cry, and, as often happens, the most guilty are foremost and loudest in the cry. If those who are truly independent, can so trim our vessel as to beat through the waves now agitating us, they will merit a glory the greater as it seems less possible. When I contemplate the spirit which is driving us on here, and that beyond the water which will view us as but a mouthful the more, I have little hope of peace. I anticipate the burning of our sea ports, havoc of our frontiers, household insurgency, with a long train of et ceteras, which is enough for a man to have met once in his life. The exchange, which is to give us new neighbors in Louisiana (probably the present French armies when disbanded) has opened us to a combination of enemies on that side where we are most vulnerable. War is not the best engine for us to resort to, nature has given us one in our commerce, which, if properly managed, will be a better instrument for obliging the interested nations of Europe to treat us with justice. If the commercial regulations had been adopted which our Legislature were at one time proposing, we should at this moment have been standing on such an eminence of safety and respect as ages can never recover. But having wandered from that, our object should now be to get back, with as little loss as possible, and, when peace shall be restored to the world, endeavor so to form our commercial regulations as that justice from other nations shall be their mechanical result. I am happy to assure you that the conduct of Gen. Pinckney has met universal approbation. It is marked with that coolness, dignity, and good sense which we expected from him. I am told that the French government had taken up an unhappy idea, that Monroe was recalled for the candor of his conduct in what related to the British Treaty, and Gen. Pinckney was

sent as having other dispositions towards them. I learn further, that some of their well-informed citizens here are setting them right as to Gen. Pinckney's dispositions, so well known to have been just towards them; and I sincerely hope, not only that he may be employed as Envoy Extraordinary to them, but that their minds will be better prepared to receive him. I candidly acknowledge, however, that I do not think the speech and addresses of Congress as conciliatory as the preceding irritations on both sides would have rendered wise. I shall be happy to hear from you at all times, to make myself useful to you whenever opportunity offers, and to give every proof of the sincerity of the sentiments of esteem and respect with which I am, Dear Sir, your most obedient and most humble servant.

TO GENERAL GATES.

PHILADELPHIA, May 30, 1797.

DEAR GENERAL,—I thank you for the pamphlet of Erskine enclosed in your favor of the 9th instant, and still more for the evidence which your letter affords me of the health of your mind, and I hope of your body also. Erskine has been reprinted here, and has done good. It has refreshed the memory of those who had been willing to forget how the war between France and England had been produced; and who, apeing St. James', called it a defensive war on the part of England. I wish any events could induce us to cease to copy such a model, and to assume the dignity of being original. They had their paper system, stockjobbing, speculations, public debt, moneyed interest, &c., and all this was contrived for us. They raised their cry against jacobinism and revolutionists, we against democratic societies and anti-federalists; their alarmists sounded insurrection, ours marched an army to look for one, but they could not find it. I wish the parallel may stop here, and that we may avoid, instead of imitating, a general bankruptcy and disastrous war.

Congress, or rather the Representatives, have been a fortnight debating between a more or less irritating answer to the President's speech. The latter was lost yesterday, by forty-eight against fifty-one or fifty-two. It is believed, however, that when they come to propose measures leading

directly to war, they will lose some of their numbers. Those who have no wish but for the peace of their country, and its independence of all foreign influence, have a hard struggle indeed, overwhelmed by a cry as loud and imposing as if it were true, of being under French influence, and this raised by a faction composed of English subjects residing among us, or such as are English in all their relations and sentiments. However, patience will bring all to rights, and we shall both live to see the mask taken from their faces, and our citizens sensible on which side true liberty and independence are sought. Should any circumstance draw me further from home, I shall with great cordiality pay my respects to you at Rose Hill, and am not without hope of meeting you here some time.

Here, there, and everywhere else, I am with great and sincere attachment and respect, your friend and servant.

TO JAMES MADISON.

PHILADELPHIA, June 1, 1797.

DEAR SIR,—I wrote you on the 18th of May. The address of the Senate was soon after that. The first draught was responsive to the speech, and higher toned. Mr. Henry arrived the day it was reported; the addressers had not yet their strength around them. They listened therefore to his objections, recommitted the papers, added him and Tazewell to the committee, and it was reported with considerable alterations; but one great attack was made on it, which was to strike out the clause approving everything heretofore done by the executive. This clause was retained by a majority of four. They received a new accession of members, held a caucus, took up all the points recommended in the speech, except the raising money, agreed the list of every committee, and on Monday passed the resolutions and appointed the committees, by an uniform vote of seventeen to eleven. (Mr. Henry was accidentally absent; Ross not then come.) Yesterday they took up the nomination of John Quincy Adams to Berlin, which had been objected to as extending our diplomatic establishment. It was approved by eighteen to fourteen. (Mr. Tatnall accidentally absent.) From the proceedings we are able to see, that eighteen on the one side and ten on the other, with two

wavering votes, will decide every question. Schuyler is too ill to come this session, and Gunn has not yet come. Pinckney (the General), John Marshall and Dana are nominated Envoys Extraordinary to France. Chas. Lee consulted a member from Virginia to know whether Marshall would be agreeable. He named you, as more likely to give satisfaction. The answer was, "Nobody of Mr. Madison's way of thinking will be appointed."

The representatives have not yet got through their addresses. An amendment of Mr. Nicholas', which you will have seen in the papers, was lost by a division of forty-six to fifty-two. A clause by Mr. Dayton, expressing a wish that France might be put on an equal footing with other nations, was inserted by fifty-two against forty-seven. This vote is most worthy of notice, because the moderation and justice of the proposition being unquestionable, it shows that there are forty-seven decided to go to all lengths to^[6] * * * * * They have received a new orator from the district of Mr. Ames. He is the son of the Secretary of the Senate. They have an accession from South Carolina also, that State being exactly divided. In the House of Representatives I learned the following facts, which give me real concern. When the British treaty arrived at Charleston, a meeting, as you know, was called, and a committee of seventeen appointed, of whom General Pinckney was one. He did not attend. They waited for him, sent for him; he treated the mission with great hauteur, and disapproved of their meddling. In the course of the subsequent altercations, he declared that his brother, T. Pinckney, approved of every article of the treaty, under the existing circumstances, and since that time, the politics of Charleston have been assuming a different hue. Young Rutledge joining Smith and Harper, is an ominous fact as to that whole interest.

Tobacco is at nine dollars, and flour very dull of sale. A great stagnation in commerce generally. During the present bankruptcy in England, the merchants seem disposed to lie on their oars. It is impossible to conjecture the rising of Congress, as it will depend on the system they decide on; whether of preparation for war, or inaction. In the vote of forty-six to fifty-two, Morgan, Machir and Evans were of the majority, and Clay kept his seat, refusing to vote with either. In that of forty-seven to fifty-two, Evans was the only one of our delegation who voted against putting France on an equal footing with other nations.

P. M. So far, I had written in the morning. I now take up my pen to add, that the addresses having been reported to the House, it was moved to disagree to so much of the amendment as went to the putting France on an equal footing with other nations, and Morgan and Machir turning tail, (in consequence, as is said, of having been closeted last night by Charles Lee,) the vote was forty-nine to fifty. So the principle was saved by a single vote. They then proposed that compensations for spoliations shall be a *sine qua non*, and this will be decided on to-morrow. Yours affectionately.

TO FRENCH STROKER, ESQ.

PHILADELPHIA, June 8, 1797.

DEAR SIR,—In compliance with the desire you expressed in the few short moments I had the pleasure of being with you at Fredericksburg, I shall give you some account of what is passing here. The President's speech you will have seen; and how far its aspects was turned towards war. Our opinion here is that the Executive had that in contemplation, and were not without expectation that the Legislature might catch the flame. A powerful part of that has shown a disposition to go all lengths with the Executive; and they have been able to persuade some of more moderate principles to go so far with them as to join them in a very sturdy address. They have voted the completing and manning the three frigates, and going on with the fortifications. The Senate have gone much further, they have brought in bills for buying more armed vessels, sending them and the frigates out as convoys to our trade, raising more cavalry, more artillerists, and providing a great army, to come into active service only, if necessary. They have not decided whether they will permit the merchants to arm. The hope and belief is that the Representatives will concur in none of these measures, though their divisions hitherto have been so equal as to leave us under doubt and apprehension. The usual majorities have been from one to six votes, and these sometimes one way, sometimes the other. Three of the Virginia members dividing from their colleagues occasion the whole difficulty. If they decline these measures, we shall rise about the 17th instant. It appears that the dispositions of the French government towards us wear a very

angry cast indeed, and this before Pickering's letter to Pinckney was known to them. We do not know what effect that may produce. We expect Paine every day in a vessel from Havre, and Colonel Monroe in one from Bordeaux. Tobacco keeps up at a high price and will still rise; flour is dull at \$7 50. I am, with great esteem, dear Sir, your friend and servant.

TO MR. MADISON.

PHILADELPHIA, June 15, 1797.—A. M.

My last was of the 8th instant. I had enclosed you separately a paper giving you an account of Bonaparte's last great victory. Since which, we receive information that the preliminaries of peace were signed between France and Austria. Mr. Hammond will have arrived at Vienna too late to influence terms. The victories lately obtained by the French on the Rhine, were as splendid as Bonaparte's. The mutiny on board the English fleet, though allayed for the present, has impressed that country with terror. King has written letters to his friends recommending a pacific conduct towards France, notwithstanding the continuance of her injustices? Volney is convinced France will not make peace with England, because it is such an opportunity of sinking her as she never had and may not have again. Bonaparte's army would have to march seven hundred miles to Calais. Therefore, it is imagined that the armies of the Rhine will be destined for England. The Senate yesterday rejected on its second reading their own bill for raising four more companies of light dragoons, by a vote of 15 to 13. Their cost would have been about \$120,000 a year. To-day the bill for manning the frigates and buying nine vessels (about \$60,000 each,) comes to its third reading. Some flatter us we may throw it out. The trial will be in time to mention the issue herein. The bills for preventing our citizens from engaging in armed vessels of either party, and for prohibiting exportation of arms and ammunition, have passed both Houses. The fortification bill is before the Representatives still. It is thought by many that with all the mollifying clauses they can give it, it may perhaps be thrown out. They have a separate bill for manning the three frigates, but its fate is uncertain. These are probably the ultimate measures which will be adopted, if even

these will be adopted. The folly of the convocation of Congress at so inconvenient a season and an expense of \$60,000, is now palpable to everybody; or rather it is palpable that war was the object, since, that being out of the question, it is evident there is nothing else. However, nothing less than the miraculous string of events which have taken place, to wit, the victories of the Rhine and Italy, peace with Austria, bankruptcy of England, mutiny in her fleet, and King's writing letters recommending peace, could have cooled the fury of the British faction. Even all that will not prevent considerable efforts still in both parties to show our teeth to France. We had hoped to have risen this week. It is now talked of for the 24th, but it is impossible yet to affix a time. I think I cannot omit being at our court (July 3,) whether Congress rises or not. If so, I shall be with you on the Friday or Saturday preceding. I have a couple of pamphlets for you, (*Utrum Horum*, and Paine's *Agrarian Justice*,) being the only things since Erskine which have appeared worth notice. Besides Bache's paper there are two others now accommodated to country circulation. Grile's (successor of Oswald) twice a week without advertisements at four dollars. His debates in Congress are the same with Claypole's. Also Smith proposes to issue a paper once a week, of news only, and an additional sheet while Congress shall be in session, price four dollars. The best daily papers now are Bradford's compiled by Loyd, and Marshland and Cary's. Claypole's you know. Have you remarked the pieces signed Fabius? they are written by John Dickinson.

P. M. The bill before the Senate for equipping the three frigates, and buying nine vessels of not more than twenty guns, has this day passed on its third reading by 16 against 13. The fortification bill before the Representatives as amended in committee of the whole, passed to its third reading by 48 against 41. Adieu affectionately, with my best respects to Mrs. Madison.

TO COLONEL BURR.

PHILADELPHIA, June 17, 1797.

DEAR SIR,—The newspapers give so minutely what is passing in Congress, that nothing of detail can be wanting for your information. Perhaps,

however, some general view of our situation and prospects, since you left us, may not be unacceptable. At any rate, it will give me an opportunity of recalling myself to your memory, and of evidencing my esteem for you. You well know how strong a character of division had been impressed on the Senate by the British treaty. Common error, common censure, and common efforts of defence had formed the treaty majority into a common band, which feared to separate even on other subjects. Towards the close of the last Congress, however, it had been hoped that their ties began to loosen, and their phalanx to separate a little. This hope was blasted at the very opening of the present session, by the nature of the appeal which the President made to the nation; the occasion for which had confessedly sprung from the fatal British treaty. This circumstance rallied them again to their standard, and hitherto we have had pretty regular treaty votes on all questions of principle. And indeed I fear, that as long as the same individuals remain, so long we shall see traces of the same division. In the House of Representatives the republican body has also lost strength. The non-attendance of five or six of that description, has left the majority very equivocal indeed. A few individuals of no fixed system at all, governed by the panic or the prowess of the moment, flap as the breeze blows against the republican or the aristocratic bodies, and give to the one or the other a preponderance entirely accidental. Hence the dissimilar aspect of the address, and of the proceedings subsequent to that. The inflammatory composition of the speech excited sensations of resentment which had slept under British injuries, threw the wavering into the war scale, and produced the war address. Bonaparte's victories and those on the Rhine, the Austrian peace, British bankruptcy, mutiny of the seamen, and Mr. King's exhortations to pacific measures, have cooled them down again, and the scale of peace preponderates. The threatening propositions therefore, founded in the address, are abandoned one by one, and the cry begins now to be, that we have been called together to do nothing. The truth is, there is nothing to do, the idea of war being scouted by the events of Europe; but this only proves that war was the object for which we were called. It proves that the executive temper was for war; and that the convocation of the Representatives was an experiment of the temper of the nation, to see if it was in unison. Efforts at negotiation indeed were promised; but such a promise was as difficult to withhold, as easy to render nugatory. If negotiation alone had been meant, that might have been pursued without so

much delay, and without calling the Representatives; and if strong and earnest negotiation had been meant, the additional nomination would have been of persons strongly and earnestly attached to the alliance of 1778. War then was intended. Whether abandoned or not, we must judge from future indications and events; for the same secrecy and mystery are affected to be observed by the present, which marked the former administration. I had always hoped, that the popularity of the late President being once withdrawn from active effect, the natural feelings of the people towards liberty would restore the equilibrium between the executive and legislative departments, which had been destroyed by the superior weight and effect of that popularity; and that their natural feelings of moral obligation would discountenance the ungrateful predilection of the executive in favor of Great Britain. But unfortunately, the preceding measures had already alienated the nation who were the object of them, had excited reaction from them, and this reaction has on the minds of our citizens an effect which supplies that of the Washington popularity. This effect was sensible on some of the late congressional elections, and this it is which has lessened the republican majority in Congress. When it will be reinforced, must depend on events, and these are so incalculable, that I consider the future character of our republic as in the air; indeed its future fortune will be in the air, if war is made on us by France, and if Louisiana becomes a Gallo-American colony.

I have been much pleased to see a dawn of change in the spirit of your State. The late elections have indicated something, which, at a distance, we do not understand. However, what with the English influence in the lower, and the Patroon influence in the upper part of your State, I presume little is to be hoped. If a prospect could be once opened upon us of the penetration of truth into the eastern States; if the people there, who are unquestionably republicans, could discover that they have been duped into the support of measures calculated to sap the very foundations of republicanism, we might still hope for salvation, and that it would come, as of old, from the east. But will that region ever awake to the true state of things? Can the middle, southern and western States hold on till they awake? These are painful and doubtful questions; and if, in assuring me of your health, you can give me a comfortable solution of them, it will relieve a mind devoted to the preservation of our republican government in the true form and spirit in

which it was established, but almost oppressed with apprehensions that fraud will at length effect what force could not, and that what with currents and counter-currents, we shall, in the end, be driven back to the land from which we launched twenty years ago. Indeed, my dear Sir, we have been but a sturdy fish on the hook of a dexterous angler, who, letting us flounce till we have spent our force, brings us up at last.

I am tired of the scene, and this day se'nnight shall change it for one, where, to tranquillity of mind may be added pursuits of private utility, since none public are admitted by the state of things.

I am, with great and sincere esteem, dear Sir, your friend and servant.

P. S. Since writing the above, we have received a report that the French Directory has proposed a declaration of war against the United States to the Council of Ancients, who have rejected it. Thus we see two nations who love one another affectionately, brought by the ill temper of their executive administrations, to the very brink of a necessity to imbrue their hands in the blood of each other.

TO ELBRIDGE GERRY.

PHILADELPHIA, June 21, 1797.

MY DEAR FRIEND,—It was with infinite joy to me, that you were yesterday announced to the Senate, as Envoy Extraordinary, jointly with General Pinckney and Mr. Marshall, to the French Republic. It gave me certain assurance that there would be a preponderance in the mission, sincerely disposed to be at peace with the French government and nation. Peace is undoubtedly at present the first object of our nation. Interest and honor are also national considerations. But interest, duly weighed, is in favor of peace even at the expense of spoliations past and future; and honor cannot now be an object. The insults and injuries committed on us by both the belligerent parties, from the beginning of 1793 to this day, and still continuing, cannot now be wiped off by engaging in war with one of them. As there is great

reason to expect this is the last campaign in Europe, it would certainly be better for us to rub through this year, as we have done through the four preceding ones, and hope that on the restoration of peace, we may be able to establish some plan for our foreign connections more likely to secure our peace, interest and honor, in future. Our countrymen have divided themselves by such strong affections, to the French and the English, that nothing will secure us internally but a divorce from both nations; and this must be the object of every real American, and its attainment is practicable without much self-denial. But for this, peace is necessary. Be assured of this, my dear Sir, that if we engage in a war during our present passions, and our present weakness in some quarters, our Union runs the greatest risk of not coming out of that war in the shape in which it enters it. My reliance for our preservation is in your acceptance of this mission. I know the tender circumstances which will oppose themselves to it. But its duration will be short, and its reward long. You have it in your power, by accepting and determining the character of the mission, to secure the present peace and eternal union of your country. If you decline, on motives of private pain, a substitute may be named who has enlisted his passions in the present contest, and by the preponderance of his vote in the mission may entail on us calamities, your share in which, and your feelings, will outweigh whatever pain a temporary absence from your family could give you. The sacrifice will be short, the remorse would be never ending. Let me, then, my dear Sir, conjure your acceptance, and that you will, by this act, seal the mission with the confidence of all parties. Your nomination has given a spring to hope, which was dead before.

I leave this place in three days, and therefore shall not here have the pleasure of learning your determination. But it will reach me in my retirement, and enrich the tranquillity of that scene. It will add to the proofs which have convinced me that the man who loves his country on its own account, and not merely for its trappings of interest or power, can never be divorced from it, can never refuse to come forward when he finds that she is engaged in dangers which he has the means of warding off. Make then an effort, my friend, to renounce your domestic comforts for a few months, and reflect that to be a good husband and good father at this moment, you must be also a good citizen. With sincere wishes for your acceptance and

success, I am, with unalterable esteem, dear Sir, your affectionate friend and servant.

TO MR. MADISON.

PHILADELPHIA, June 22, 1797.

The Senate have this day rejected their own bill for raising a provisional army of 15,000 men. I think they will reject that for permitting private vessels to arm. The Representatives have thrown out the bill of the Senate for raising artillery. They (Wednesday) put off one forbidding our citizens to serve in foreign vessels of war till November, by a vote of fifty-two to forty-four. This day they came to a resolution proposing to the Senate to adjourn on Wednesday, the 28th, by a majority of four. Thus it is now perfectly understood that the convocation of Congress is substantially condemned by their several decisions that nothing is to be done. I may be with you somewhat later than I expected, say from the 1st to the 4th. Preliminaries of peace between Austria and France are signed. *Wane* has declined the mission to France. Gerry is appointed in his room, being supported in Senate by the republican vote; six nays of the opposite description of Monroe or Payne. Adieu.

TO EDWARD RUTLEDGE.

PHILADELPHIA, June 24, 1797.

MY DEAR SIR,—I have to acknowledge your two favors of May the 4th and 19th, and to thank you for your attentions to the commissions for the peas and oranges, which I learn have arrived in Virginia. Your draft I hope will soon follow on Mr. John Barnes, merchant, here; who, as I before advised you, is directed to answer it.

When Congress first met, the assemblage of facts presented in the President's speech, with the multiplied accounts of spoliations by the

French West Indians, appeared by sundry votes on the address, to incline a majority to put themselves in a posture of war. Under this influence the address was formed, and its spirit would probably have been pursued by corresponding measures, had the events of Europe been of an ordinary train. But this has been so extraordinary, that numbers have gone over to those, who, from the first, feeling with sensibility the French insults, as they had felt those of England before, thought now as they thought then, that war measures should be avoided, and those of peace pursued. Their favorite engine, on the former occasion, was *commercial regulations*, in preference to negotiations, to war preparations and increase of debt. On the latter, as we have no commerce with France, the restriction of which could press on them, they wished for negotiation. Those of the opposite sentiment had, on the former occasion, preferred negotiation, but at the same time voted for great war preparations, and increase of debt; now also they were for negotiation, war preparations and debt. The parties have in debate mutually charged each other with inconsistency, and with being governed by an attachment to this or that of the belligerent nations, rather than the dictates of reason and pure Americanism. But, in truth, both have been consistent; the same men having voted for war measures who did before, and the same against them now who did before. The events of Europe coming to us in astonishing and rapid succession, to wit, the public bankruptcy of England, Buonaparte's successes, the successes on the Rhine, the Austrian peace, mutiny of the British fleet, Irish insurrection, a demand of forty-three millions for the current services of the year, and, above all, the warning voice, as is said, of Mr. King, to abandon all thought of connection with Great Britain, that she is going down irrecoverably, and will sink us also, if we do not clear ourselves, have brought over several to the pacific party, so as, at present, to give majorities against all threatening measures. They go on with frigates and fortifications, because they were going on with them before. They direct eighty thousand of their militia to hold themselves in readiness for service. But they reject the propositions to raise cavalry, artillery, and a provisional army, and to trust private ships with arms in the present combustible state of things. They believe the present is the last campaign of Europe, and wish to rub through this fragment of a year as they have through the four preceding ones, opposing patience to insult, and interest to honor. They will, therefore, immediately adjourn. This is, indeed, a most humiliating state of things, but it commenced in 1793. Causes have

been adding to causes, and effects accumulating on effects, from that time to this. We had, in 1793, the most respectable character in the universe. What the neutral nations think of us now, I know not; but we are low indeed with the belligerents. Their kicks and cuffs prove their contempt. If we weather the present storm, I hope we shall avail ourselves of the calm of peace, to place our foreign connections under a new and different arrangement. We must make the interest of every nation stand surety for their justice, and their own loss to follow injury to us, as effect follows its cause. As to everything except commerce, we ought to divorce ourselves from them all. But this system would require time, temper, wisdom, and occasional sacrifice of interest; and how far all of these will be ours, our children may see, but we shall not. The passions are too high at present, to be cooled in our day. You and I have formerly seen warm debates and high political passions. But gentlemen of different politics would then speak to each other, and separate the business of the Senate from that of society. It is not so now. Men who have been intimate all their lives, cross the streets to avoid meeting, and turn their heads another way, lest they should be obliged to touch their hats. This may do for young men with whom passion is enjoyment. But it is afflicting to peaceable minds. Tranquillity is the old man's milk. I go to enjoy it in a few days, and to exchange the roar and tumult of bulls and bears, for the prattle of my grand-children and senile rest. Be these yours, my dear friend, through long years, with every other blessing, and the attachment of friends as warm and sincere, as yours affectionately.

TO E. RANDOLPH.

PHILADELPHIA, June 27, 1797.

DEAR SIR,—I have to acknowledge the receipt of your two favors of May 26th and 29th, which came to hand in due time, and relieved my mind considerably, though it was not finally done. During the vacation we may perhaps be able to hunt up the letters which are wanting, and get this tornado which has been threatening us, dissipated.

You have seen the speech and the address, so nothing need be said on them. The spirit of both has been so whittled down by Bonaparte's victories, the victories on the Rhine, the Austrian peace, Irish insurgency, English bankruptcy, insubordination of the fleet, &c., that Congress is rejecting one by one the measures brought in on the principles of their own address. But nothing less than such miraculous events as have been pouring in on us from the first of our convening could have assuaged the fermentation produced in men's minds. In consequence of these events, what was the majority at first, is by degrees become the minority, so that we may say that in the Representatives moderation will govern. But nothing can establish firmly the republican principles of our government but an establishment of them in England. France will be the apostle for this. We very much fear that Gerry will not accept the mission to Paris. The delays which have attended this measure have left a dangerous void in our endeavors to preserve peace, which can scarcely be reconciled to a wish to preserve it. I imagine we shall rise from the 1st to the 3d of July. I am, Dear Sir, your friend and servant.

P. S. The interruption of letters is becoming so notorious, that I am forming a resolution of declining correspondence with my friends through the channels of the Post Office altogether.

TO JAMES MADISON.

MONTICELLO, August 3, 1797.

I scribbled you a line on the 24th ultimo; it missed of the post, and so went by a private hand. I perceive from yours by Mr. Bringhurst, that you had not received it. In fact, it was only an earnest exhortation to come here with Monroe, which I still hope you will do. In the meantime, I enclose you a letter from him, and wish your opinion on its principal subject. The variety of other topics the day I was with you, kept out of sight the letter to Mazzei imputed to me in the papers, the general substance of which is mine, though the diction has been considerably altered and varied in the course of its translations from English into Italian, from Italian into French, and from French into English. I first met with it at Bladensburg, and for a moment conceived I must take the field of the public papers. I could not disavow it

wholly, because the greatest part was mine, in substance though not in form. I could not avow it as it stood, because the form was not mine, and, in one place, the substance very materially falsified. This, then, would render explanations necessary; nay, it would render proofs of the whole necessary, and draw me at length into a publication of all (even the secret) transactions of the administration while I was in it; and embroil me personally with every member of the executive, with the judiciary, and with others still. I soon decided in my own mind, to be entirely silent. I consulted with several friends at Philadelphia, who, every one of them, were clearly against my avowing or disavowing, and some of them conjured me most earnestly to let nothing provoke me to it. I corrected, in conversation with them, a substantial misrepresentation in the copy published. The original has a sentiment like this (for I have it not before me), "they are endeavoring to submit us to the substance, as they already have to the *forms* of the British government;" meaning by *forms*, the birth-days, levees, processions to parliament, inauguration pomposities, &c. But the copy published says, "as they have already submitted us to the *form* of the British," &c., making me express hostility to the form of our government, that is to say, to the Constitution itself. For this is really the difference of the word *form*, used in the singular or plural, in that phrase, in the English language. Now it would be impossible for me to explain this publicly, without bringing on a personal difference between General Washington and myself, which nothing before the publication of this letter has ever done. It would embroil me also with all those with whom his character is still popular, that is to say, nine tenths of the people of the United States; and what good would be obtained by avowing the letter with the necessary explanations? Very little indeed, in my opinion, to counterbalance a good deal of harm. From my silence in this instance, it cannot be inferred that I am afraid to own the general sentiments of the letter. If I am subject to either imputation, it is to that of avowing such sentiments too frankly both in private and public, often when there is no necessity for it, merely because I disdain everything like duplicity. Still, however, I am open to conviction. Think for me on the occasion, and advise me what to do, and confer with Colonel Monroe on the subject.

Let me entreat you again to come with him; there are other important things to consult on. One will be his affair. Another is the subject of the petition

now enclosed you, to be proposed to our district, on the late presentment of our representative by the grand jury: the idea it brings forward is still confined to my own breast. It has never been mentioned to any mortal, because I first wish your opinion on the expediency of the measure. If you approve it, I shall propose to * * * * * or some other, ^[Z] to father it, and to present it to the counties at their general muster. This will be in time for our Assembly. The presentment going in the public papers just at the moment when Congress was together, produced a great effect both on its friends and foes in that body, very much to the disheartening and mortification of the latter. I wish this petition, if approved, to arrive there under the same circumstances, to produce the counter effect so wanting for their gratification. I could have wished to receive it from you again at our court on Monday, because * * * * * and * * * * * will be there, and might also be consulted, and commence measures for putting it into motion. If you can return it then, with your opinion, it will be of importance. Present me affectionately to Mrs. Madison, and convey to her my entreaties to interpose her good offices and persuasives with you to bring her here, and before we uncover our house, which will yet be some weeks.

Salutations and adieu.

TO COL. JOHN STUART.

MONTICELLO, August 15, 1797.

DEAR SIR,—With great pleasure I forward to you the Diploma of the American Philosophical Society, adopting you into their body. The attention on your part, to which they are indebted for the knowledge that such an animal has existed as the Megalonyx, as we have named him, gives them reason to hope that the same attention continued will enrich us with other objects of science, which your part of the country may yet, we hope, furnish. On my arrival at Philadelphia, I met with an account published in Spain of the skeleton of an enormous animal from Paraguay, of the clawed kind, but not of the lion class at all; indeed, it is classed with the sloth, ant-eater, &c., which are not of the carnivorous kinds; it was dug up 100 feet below the surface, near the river La Plata. The skeleton is now mounted at

Madrid, is 12 feet long and 6 feet high. There are several circumstances which lead to a supposition that our megalonyx may have been the same animal with this. There are others which still induce us to class him with the lion. Since this discovery has led to questioning the Indians as to this animal, we have received some of their traditions which confirm his classification with the lion. As soon as our 4th volume of transactions, now in the press, shall be printed, I will furnish you with the account given in to the Society. I take for granted that you have little hope of recovering any more of the bones. Those sent me are delivered to the society. I am, with great esteem, dear Sir, your most obedient servant.

TO ST. GEORGE TUCKER.

MONTICELLO, August 28, 1797.

DEAR SIR,—I have to acknowledge the receipt of your two favors of the 2d and 22d instant, and to thank you for the pamphlet covered by the former. You know my subscription to its doctrines; and as to the mode of emancipation, I am satisfied that that must be a matter of compromise between the passions, the prejudices, and the real difficulties which will each have their weight in that operation. Perhaps the first chapter of this history, which has begun in St. Domingo, and the next succeeding ones, which will recount how all the whites were driven from all the other islands, may prepare our minds for a peaceable accommodation between justice, policy and necessity; and furnish an answer to the difficult question, whither shall the colored emigrants go? and the sooner we put some plan under way, the greater hope there is that it may be permitted to proceed peaceably to its ultimate effect. But if something is not done, and soon done, we shall be the murderers of our own children. The "*murmura venturos nautis prudentia ventos*" has already reached us; the revolutionary storm, now sweeping the globe, will be upon us, and happy if we make timely provision to give it an easy passage over our land. From the present state of things in Europe and America, the day which begins our combustion must be near at hand; and only a single spark is wanting to make that day to-morrow. If we had begun sooner, we might probably have

been allowed a lengthier operation to clear ourselves, but every day's delay lessens the time we may take for emancipation. Some people derive hope from the aid of the confederated States. But this is a delusion. There is but one State in the Union which will aid us sincerely, if an insurrection begins, and that one may, perhaps, have its own fire to quench at the same time. The facts stated in yours of the 22d, were not identically known to me, but others like them were. From the General Government no interference need be expected. Even the merchant and navigator, the immediate sufferers, are prevented by various motives from wishing to be redressed. I see nothing but a State procedure which can vindicate us from the insult. It is in the power of any single magistrate, or of the Attorney for the Commonwealth, to lay hold of the commanding officer, whenever he comes ashore, for the breach of the peace, and to proceed against him by indictment. This is so plain an operation, that no power can prevent its being carried through with effect, but the want of will in the officers of the State. I think that the matter of finances, which has set the people of Europe to thinking, is now advanced to that point with us, that the next step, and it is an unavoidable one, a land tax, will awaken our constituents, and call for inspection into past proceedings. I am, with great esteem, dear Sir, your friend and servant.

TO COLONEL ARTHUR CAMPBELL.

MONTICELLO, September 1, 1797.

DEAR SIR,—I have to acknowledge the receipt of your favor of July the 4th, and to recognize in it the sentiments you have ever held, and worthy of the day on which it is dated. It is true that a party has risen up among us, or rather has come among us, which is endeavoring to separate us from all friendly connection with France, to unite our destinies with those of Great Britain, and to assimilate our government to theirs. Our lenity in permitting the return of the old tories, gave the first body to this party; they have been increased by large importations of British merchants and factors, by American merchants dealing on British capital, and by stock dealers and banking companies, who, by the aid of a paper system, are enriching themselves to the ruin of our country, and swaying the government by their

possession of the printing presses, which their wealth commands, and by other means, not always honorable to the character of our countrymen. Hitherto, their influence and their system have been irresistible, and they have raised up an executive power which is too strong for the Legislature. But I flatter myself they have passed their zenith. The people, while these things were doing, were lulled into rest and security from a cause which no longer exists. No prepossessions now will shut their ears to truth. They begin to see to what port their leaders were steering during their slumbers, and there is yet time to haul in, if we can avoid a war with France. All can be done peaceably, by the people confining their choice of Representatives and Senators to persons attached to republican government and the principles of 1776, not office-hunters, but farmers, whose interests are entirely agricultural. Such men are the true representatives of the great American interest, and are alone to be relied on for expressing the proper American sentiments. We owe gratitude to France, justice to England, good will to all, and subservience to none. All this must be brought about by the people, using their elective rights with prudence and self-possession, and not suffering themselves to be duped by treacherous emissaries. It was by the sober sense of our citizens that we were safely and steadily conducted from monarchy to republicanism, and it is by the same agency alone we can be kept from falling back. I am happy in this occasion of reviving the memory of old things, and of assuring you of the continuance of the esteem and respect of, dear Sir, your friend and servant.

TO JOHN F. MERCER, ESQ.

MONTICELLO, September 5, 1797.

DEAR SIR,—We have now with us our friend Monroe. He is engaged in stating his conduct for the information of the public. As yet, however, he has done little, being too much occupied with re-arranging his household. His preliminary skirmish with the Secretary of State has, of course, bespoke a suspension of the public mind, till he can lay his statement before them. Our Congressional district is fermenting under the presentiment of their representative by the Grand Jury; and the question of a Convention for

forming a State Constitution will probably be attended to in these parts. These are the news of our Canton. Those of a more public nature you know before we do. My best respects to Mrs. Mercer, and assurances to yourself of the affectionate esteem of, dear Sir, your friend and servant.

TO JAMES MONROE.

MONTICELLO, September 7, 1797.

The doubt which you suggest as to our jurisdiction over the case of the Grand Jury vs. Cabell, had occurred to me, and naturally occurs on first view of the question. But I knew, that to send the petition to the House of Representatives in Congress, would make bad worse; that a majority of that House would pass a vote of approbation. On examination of the question, too, it appeared to me that we could maintain the authority of our own government over it.

A right of free correspondence between citizen and citizen, on their joint interests, whether public or private, and under whatsoever laws these interests arise, (to wit, of the State, of Congress, of France, Spain, or Turkey), is a natural right; it is not the gift of any municipal law, either of England, or Virginia, or of Congress; but in common with all our other natural rights, it is one of the objects for the protection of which society is formed, and municipal laws established.

The courts of this commonwealth (and among them the General Court, as a court of impeachment) are originally competent to the cognizance of all infractions of the rights of one citizen by another citizen; and they still retain all their judiciary cognizances not expressly alienated by the federal Constitution.

The federal Constitution alienates from them all cases arising 1st, under the constitution; 2dly, under the laws of Congress; 3dly, under treaties, &c. But this right of free correspondence, whether with a public representative in General Assembly, in Congress, in France, in Spain, or with a private one charged with pecuniary trust, or with a private friend the object of our

esteem, or any other, has not been given to us under, 1st, the federal Constitution; 2dly, any law of Congress; or 3dly, any treaty; but as before observed, by nature. It is therefore not alienated, but remains under the protection of our courts.

Were the question even doubtful, that is no reason for abandoning it. The system of the General Government, is to seize all doubtful ground. We must join in the scramble, or get nothing. Where first occupancy is to give right, he who lies still loses all. Besides, it is not right for those who are only to act in a preliminary form, to let their own doubts preclude the judgment of the court of ultimate decision. We ought to let it go to the House of Delegates for their consideration, and they, unless the contrary be palpable, ought to let it to go to the General Court, who are ultimately to decide on it.

It is of immense consequence that the States retain as complete authority as possible over their own citizens. The withdrawing themselves under the shelter of a foreign jurisdiction, is so subversive of order and so pregnant of abuse, that it may not be amiss to consider how far a law of *præmunire* should be revised and modified, against all citizens who attempt to carry their causes before any other than the State courts, in cases where those other courts have no right to their cognizance. A plea to the jurisdiction of the courts of their State, or a reclamation of a foreign jurisdiction, if adjudged valid, would be safe; but if adjudged invalid, would be followed by the punishment of *præmunire* for the attempt.

Think further of the preceding part of this letter, and we will have further conference on it. Adieu.

P. S. Observe, that it is not the breach of Mr. Cabell's privilege which we mean to punish: that might lie with Congress. It is the wrong done to the citizens of our district. Congress gave no authority to punish that wrong. They can only take cognizance of it in vindication of their member.

TO ALEXANDER WHITE, ESQ.

MONTICELLO, September 10, 1797.

DEAR SIR,—So many persons have of late found an interest or a passion gratified by imputing to me sayings and writings which I never said or wrote, or by endeavoring to draw me into newspapers to harass me personally, that I have found it necessary for my quiet and my other pursuits to leave them in full possession of the field, and not to take the trouble of contradicting them even in private conversation. If I do it now, it is out of respect to your application, made by private letter and not through the newspapers, and under the perfect assurance that what I write to you will not be permitted to get in a newspaper, while you are at full liberty to assert it in conversation under my authority.

I never gave an opinion that the Government would not remove to the federal city. I never entertained that opinion; but on the contrary, whenever asked the question, I have expressed my full confidence that they would remove there. Having had frequent occasion to declare this sentiment, I have endeavored to conjecture on what a contrary one could have been ascribed to me. I remember that in Georgetown, where I passed a day in February in conversation with several gentlemen on the preparations there for receiving the government, an opinion was expressed by some, and not privately, that there would be few or no private buildings erected in Washington this summer, and that the prospect of there being a sufficient number in time, was not flattering. This they grounded on the fact that the persons holding lots, from a view to increase their means of building, had converted their money at low prices, into Morris and Nicholson's notes, then possessing a good degree of credit, and that having lost these by the failure of these gentlemen, they were much less able to build than they would have been. I then observed, and I did it with a view to excite exertion, that if there should not be private houses in readiness sufficient for the accommodation of Congress and the persons annexed to the Government, it could not be expected that men should come there to lodge, like cattle, in the fields, and that it highly behoved those interested in the removal to use every exertion to provide accommodations. In this opinion, I presume I shall be joined by yourself and every other. But delivered, as it was, only on the hypothesis of a fact stated by others, it could not authorize the assertion of an absolute opinion, separated from the statement of facts on which it was hypothetically grounded. I have seen no reason to believe

that Congress have changed their purpose with respect to the removal. Every public indication from them, and every sentiment I have heard privately expressed by the members, convinces me they are steady in the purpose. Being on this subject, I will suggest to you, what I did privately at Georgetown to a particular person, in confidence that it should be suggested to the managers, if in event it should happen that there should not be a sufficiency of private buildings erected within the proper time, would it not be better for the commissioners to apply for a suspension of the removal for one year, than to leave it to the hazard which a contrary interest might otherwise bring on it? Of this however you have yet two summers to consider, and you have the best knowledge of the circumstances on which a judgment may be formed whether private accommodations will be provided. As to the public buildings, every one seems to agree that they will be in readiness.

I have for five or six years been encouraging the opening a direct road from the Southern part of this State, leading through this county to Georgetown. The route proposed is from Georgetown by Colonel Alexander's, Elk-run Church, Norman's Ford, Stevensburg, the Raccoon Ford, the Marquis's Road, Martin Key's Ford on the Rivanna, the mouth of Slate River, the high bridge on Appomattox, Prince Edward Courthouse, Charlotte Courthouse, Cole's ferry on Stanton, Dix's ferry on Dan, Guilford Courthouse, Salisbury, Crosswell's ferry on Saluda, Ninety-six, Augusta. It is believed this road will shorten the distance along the continent one hundred miles. It will be to open anew only from Georgetown to Prince Edward Courthouse. An actual survey has been made from Stevensburg to Georgetown, by which that much of the road will be shortened twenty miles, and be all a dead level. The difficulty is to get it first through Fairfax and Prince William. The counties after that will very readily carry it on. We consider it as opening to us a direct road to the market of the federal city, for all the beef and mutton we could raise, for which we have no market at present. I am in possession of the survey, and had thought of getting the Bridge company at Georgetown to undertake to get the road carried through Fairfax and Prince William, either by those counties or by themselves. But I have some apprehension that by pointing our road to the bridge, it might get out of the level country, and be carried over the hills, which will be but a little above it. This would be inadmissible. Perhaps you could suggest some means of

our getting over the obstacle of those two counties. I shall be very happy to concur in any measure which can effect all our purposes. I am with esteem, dear Sir, your most obedient servant.

TO MANN PAGE, ESQ.

PHILADELPHIA, January 2, 1798.

DEAR SIR,—I do not know whether you have seen some very furious abuse of me in the Baltimore papers by a Mr. Luther Martin, on account of Logan's speech, published in the "Notes on Virginia." He supposes both the speech and story made by me to support an argument against Buffon. I mean not to enter into a newspaper contest with Mr. Martin; but I wish to collect, as well as the lapse of time will permit, the evidence on which we received that story. It was brought to us I remember by Lord Dunmore and his officers on the return from the expedition of 1776. I am sure it was from them I got it. As you were very much in the same circle of society in Williamsburg with myself, I am in hopes your memory will be able to help out mine, and recall some facts which have escaped me. I ask it as a great favor of you to endeavor to recollect, and to communicate to me all the circumstances you possibly can relative to this matter, particularly the authority on which we received it, and the names of any persons who you think can give me information. I mean to fix the fact with all possible care and truth, and either to establish or correct the former statement in an appendix to the "Notes on Virginia," or in the first republication of the work.

Congress have done nothing interesting except postponing the Stamp Act. An act continuing the currency of the foreign coins three years longer has passed the Representatives, but was lost in the Senate. We have hopes that our envoys will be received decently at Paris, and some compromise agreed on. There seems to be little appearance of peace in Europe. Those among us who were so timid when they apprehended war with England, are now bold in propositions to arm. I do not think however that the Representatives will change the policy pursued by them at their summer session. The land tax will not be brought forward this year. Congress of course have no real

business to be employed on. We may expect in a month or six weeks to hear so far from our commissioners at Paris as to judge what will be the aspect of our situation with France. If peaceable, as we hope, I know of nothing which should keep us together. In my late journey to this place, I came through Culpeper and Prince William to Georgetown. When I return, it will be through the eastern shore (a country I have never seen), by Norfolk and Petersburg; so that I shall fail then also of the pleasure of seeing you. Present respectful compliments to Mrs. Page, and accept assurances of the sincere esteem of, dear Sir, your friend and servant.

TO JAMES MADISON.

PHILADELPHIA, January 3, 1798.

DEAR SIR,—Your favor of the 25th came to hand yesterday. I shall observe your directions with respect to the post day. I have spoken with the Deputy Post Master General on the subject of our Fredericksburg post. He never knew before that the Fredericksburg printer had taken the contract of the rider. He will be glad, if either in your neighborhood or ours, some good person will undertake to ride from April next. The price given this year is three hundred and thirty dollars, and it will go to the lowest bidder who can be depended on. I understand (though not from him) that Wyatt will be changed; and in general they determine that printers shall not be postmasters or riders.

Our weather has been here, as with you, cold and dry. The thermometer has been at eight degrees. The river closed here the first week of December, which has caught a vast number of vessels destined for departure. It deadens also the demand for wheat. The price at New York is one dollar seventy-five cents, and of flour eight dollars fifty cents to nine dollars; tobacco eleven to twelve dollars; there need be no doubt of greater prices. The bankruptcies here continue: the prison is full of the most reputable merchants, and it is understood that the scene has not yet got to its height. Prices have fallen greatly. The market is cheaper than it has been for four years. Labor and house rent much reduced. Dry goods somewhat. It is

expected that they will fall till they get nearly to old prices. Money scarce beyond all example.

The Representatives have rejected the President's proposition for enabling him to prorogue them. A law has passed putting off the stamp act till July next. The land tax will not be brought on. The Secretary of the Treasury says he has money enough. No doubt these two measures may be taken up more boldly at the next session, when most of the elections will be over. It is imagined the stamp act will be extended or attempted on every possible object. A bill has passed the Representatives to suspend for three years the law arresting the currency of foreign coins. The Senate propose an amendment, continuing the currency of the foreign gold only. Very possibly the bill may be lost. The object of opposing the bill is to make the French crowns a subject of speculation (for it seems they fell on the President's proclamation to a dollar in most of the States), and to force bank paper (for want of other medium) through all the States generally. Tench Coxe is displaced, and no reason ever spoken of. It is therefore understood to be for his activity during the late election. It is said, that the people from hence quite to the eastern extremity are beginning to be sensible that their government has been playing a foul game. In Vermont, Chipman was elected Senator by a majority of one, against the republican candidate. In Maryland, Lloyd by a majority of one, against Winder the republican candidate. Tichenor chosen Governor of Vermont by a very small majority. The House of Representatives of this State has become republican by a firm majority of six. Two counties, it is said, have come over generally to the republican side. It is thought the republicans have also a majority in the New York House of Representatives. Hard elections are expected there between Jay and Livingston, and here between Ross and M'Kean. In the House of Representatives of Congress, the republican interest has at present, on strong questions, a majority of about half a dozen, as is conjectured, and there are as many of their firmest men absent; not one of the anti-republicans is from his post. The bill for permitting private vessels to arm, was put off to the first Monday in February by a sudden vote, and a majority of five. It was considered as an index of their dispositions on that subject, though some voted both ways on other ground. It is most evident, that the anti-republicans wish to get rid of Blount's impeachment. Many metaphysical niceties are handing about in conversation, to show that it

cannot be sustained. To show the contrary, it is evident must be the task of the republicans, or of nobody. Monroe's book is considered as masterly by all those who are not opposed in principle, and it is deemed unanswerable. An answer, however, is commenced in Fenno's paper of yesterday, under the signature of Scipio. The real author not yet conjectured. As I take these papers merely to preserve them, I will forward them to you, as you can easily return them to me on my arrival at home; for I shall not see you on my way, as I mean to go by the Eastern Shore and Petersburg. Perhaps the paragraphs in some of these abominable papers may draw from you now and then a squib. A pamphlet of Fauchet's appeared yesterday. I send you a copy under another cover. A handbill has just arrived here from New York, where they learn from a vessel which left Havre about the 9th of November, that the Emperor had signed the definitive articles, given up Mantua, evacuated Mentz, agreed to give passage to the French troops to Hanover, and that the Portuguese ambassador had been ordered to quit Paris, on account of the seizure of fort St. Julian's by the English, supposed with the connivance of Portugal. Though this is ordinary mercantile news, it looks like truth. The latest official intelligence from Paris, is from Talleyrand to the French consul here, (Lastombe,) dated September the 28th, saying that our Envoys were arrived, and would find every disposition on the part of his government to accommodate with us.

My affectionate respects to Mrs. Madison; to yourself, health and friendship. Adieu.

TO JAMES MADISON.

PHILADELPHIA, January 25, 1798.

DEAR SIR,—I wrote you last on the 2d instant, on which day I received yours of December 25th. I have not resumed my pen, because there has really been nothing worth writing about, but what you would see in the newspapers. There is, as yet, no certainty what will be the aspect of our affairs with France. Either the Envoys have not written to the government, or their communications are hushed up. This last is suspected, because so many arrivals have happened from Bordeaux and Havre. The letters from

American correspondents in France have been always to Boston; and the experience we had last summer of their adroitness in counterfeiting this kind of intelligence, inspires doubts as to their late paragraphs. A letter is certainly received here by an individual from Talleyrand, which says our Envoys have been heard, that their pretensions are high, that possibly no arrangement may take place, but that there will be no declaration of war by France. It is said that Bournonville has written that he has hopes of an accommodation (three audiences having then, November, been had), and to be himself a member of a new diplomatic mission to this country. On the whole, I am entirely suspended as to what is to be expected. The Representatives have been several days in debate on the bill for foreign intercourse. A motion has been made to reduce it to what it was before the extension of 1796. The debate will probably have good effects, in several ways, on the public mind, but the advocates for the reformation expect to lose the question. They find themselves deceived in the expectation entertained in the beginning of the session, that they had a majority. They now think the majority is on the other side by two or three, and there are moreover two or three of them absent. Blount's affair is to come on next. In the mean time the Senate have before them a bill for regulating proceedings in impeachment. This will be made the occasion of offering a clause for the introduction of juries into these trials. (Compare the paragraph in the Constitution which says, that all crimes, *except in cases of impeachment*, shall be by jury, with the eighth amendment, which says, that in *all* criminal prosecutions the trial shall be by jury.) There is no expectation of carrying this; because the division in the Senate is of two to one, but it will draw forth the principles of the parties, and concur in accumulating proofs on which side all the sound principles are to be found.

Very acrimonious altercations are going on between the Spanish minister and the executive, and at the Natchez something worse than mere altercation. If hostilities have not begun there, it has not been for want of endeavors to bring them on by our agents. Marshall, of Kentucky, this day proposed in Senate some amendments to the Constitution. They were barely read just as we were adjourning, and not a word of explanation given. As far as I caught them in my ear, they went only to modifications of the elections of President and Vice President, by authorizing voters to add the office for which they name each, and giving to the Senate the decision of a

disputed election of President, and to the Representatives that of Vice President. But I am apprehensive I caught the thing imperfectly, and probably incorrectly. Perhaps this occasion may be taken of proposing again the Virginia amendments, as also to condemn elections by the legislatures, themselves to transfer the power of trying impeachments from the Senate to some better constituted court, &c., &c.

Good tobacco here is thirteen dollars, flour eight dollars and fifty cents, wheat one dollar and fifty cents, but dull, because only the millers buy. The river, however, is nearly open, and the merchants will now come to market and give a spur to the price. But the competition will not be what it has been. Bankruptcies thicken, and the height of them has by no means yet come on. It is thought this winter will be very trying.

Friendly salutations to Mrs. Madison. Adieu affectionately.

January 28. I enclose Marshall's propositions. They have been this day postponed to the 1st of June, chiefly by the vote of the anti-republicans, under the acknowledged fear that other amendments would be also proposed, and that this is not the time for agitating the public mind.

TO JAMES MADISON.

PHILADELPHIA, February 8, 1798.

DEAR SIR,—I wrote you last on the 25th ultimo; since which yours of the 21st has been received. Bache had put five hundred copies of Monroe's book on board a vessel, which was stopped by the early and unexpected freezing of the river. He tried in vain to get them carried by fifties at a time, by the stage. The river is now open here, the vessels are falling down, and if they can get through the ice below, the one with Bache's packet will soon be at Richmond. It is surmised here that Scipio is written by C. Lee. Articles of impeachment were yesterday given in against Blount. But many great preliminary questions will arise. Must not a *formal law* settle the oath of the Senators, form of pleadings, process against person or goods, &c.? May he

not appear by attorney? Must he not be tried by a jury? Is a Senator impeachable? Is an ex-Senator impeachable? You will readily conceive that these questions, to be settled by twenty-nine lawyers, are not likely to come to speedy issue. A very disagreeable question of privilege has suspended all other proceedings for some days. You will see this in the newspapers. The question of arming vessels came on, on Monday last; that morning, the President sent in an inflammatory message about a vessel taken and burnt by a French privateer, near Charleston. Of this he had been possessed some time, and it had been through all the newspapers. It seemed to come in now *apropos* for spurring on the disposition to arm. However, the question has not come on. In the meantime, the general spirit, even of the merchants, is becoming adverse to it. In New Hampshire and Rhode Island they are unanimously against arming; so in Baltimore. This place is becoming more so. Boston divided and desponding. I know nothing of New York; but I think there is no danger of the question being carried, unless something favorable to it is received from our Envoys. From them we hear nothing. Yet it seems reasonably believed that the executive has heard, and that it is something which would not promote their views of arming. For every action of theirs shows they are panting to come to blows. Giles has arrived.

My friendly salutations to Mrs. Madison. Adieu affectionately.

TO JAMES MADISON.

PHILADELPHIA, February 15, 1798.

DEAR SIR,—I wrote you last on the 8th. We have still not a word from our Envoys. This long silence (if they have been silent) proves things are not going on very roughly. If they have not been silent, it proves their information, if made public, would check the disposition to arm. I had flattered myself, from the progress of the public sentiment against arming, that the same progress had taken place in the Legislature. But I am assured by those who have better opportunities of forming a good judgment, that if the question against arming is carried at all, it will not be by more than a majority of two; and particularly, that there will not be more than four votes against it from the five eastern States, or five votes at the utmost. You will

have perceived that Dayton has gone over completely. He expects to be appointed Secretary of War, in the room of M'Henry, who, it is said, will retire. He has been told, as report goes, that they would not have confidence enough in him to appoint him. The desire of inspiring them with more, seems the only way to account for the eclat which he chooses to give to his conversion. You will have seen the disgusting proceedings in the case of Lyon: if they would have accepted even of a commitment to the serjeant, it might have been had. But to get rid of his vote was the most material object. These proceedings must degrade the General Government, and lead the people to lean more on their State governments, which have been sunk under the early popularity of the former. This day, the question of the jury in cases of impeachment comes on. There is no doubt how it will go. The general division of the Senate is twenty-two and ten; and under the probable prospect of what it will forever be, I see nothing in the mode of proceeding by impeachment but the most formidable weapon for the purposes of dominant faction that ever was contrived. It would be the most effectual one of getting rid of any man whom they consider as dangerous to their views, and I do not know that we could count on one-third in an emergency. All depends then on the House of Representatives, who are the impeachers; and there the majorities are of one, two, or three only; and these sometimes one way and sometimes another: in a question of pure party they have the majority, and we do not know what circumstances may turn up to increase that majority temporarily, if not permanently. I know of no solid purpose of punishment which the courts of law are not equal to, and history shows, that in England, impeachment has been an engine more of passion than justice. A great ball is to be given here on the 22d, and in other great towns of the Union. This is, at least, very indelicate, and probably excites uneasy sensations in some. I see in it, however, this useful deduction, that the birth days which have been kept, have been, not those of the President, but of the General. I enclose with the newspapers, the two acts of parliament passed on the subject of our commerce, which are interesting. The merchants here say, that the effect of the countervailing tonnage on American vessels, will throw them completely out of employ as soon as there is peace. The eastern members say nothing but among themselves. But it is said that it is working like gravel in their stomachs. Our only comfort is, that they have brought it on themselves. My respectful salutation to Mrs. Madison; and to yourself, friendship and adieu.

TO GENERAL GATES.

PHILADELPHIA, February 21, 1798.

DEAR GENERAL,—I received duly your welcome favor of the 15th, and had an opportunity of immediately delivering the one it enclosed to General Kosciusko. I see him often, and with great pleasure mixed with commiseration. He is as pure a son of liberty as I have ever known, and of that liberty which is to go to all, and not to the few or the rich alone. We are here under great anxiety to hear from our Envoys. * * * * * I agree with you, that some of our merchants have been milking the cow: yet the great mass of them have become deranged; they are daily falling down by bankruptcies, and on the whole, the condition of our commerce far less firm and really prosperous, than it would have been by the regular operations and steady advances which a state of peace would have occasioned. Were a war to take place, and throw our agriculture into equal convulsions with our commerce, our business would be done at both ends. But this I hope will not be. The good news from the Natchez has cut off the fear of a breach in that quarter, where a crisis was brought on which has astonished every one. How this mighty duel is to end between Great Britain and France, is a momentous question. The sea which divides them makes it a game of chance; but it is narrow, and all the chances are not on one side. Should they make peace, still our fate is problematical.

The countervailing acts of Great Britain, now laid before Congress, threaten, in the opinion of merchants, the entire loss of our navigation to England. It makes a difference, from the present state of things, of five hundred guineas on a vessel of three hundred and fifty tons. If, as the newspapers have told us, France has renewed her *Arret* of 1789, laying a duty of seven livres a hundred on all tobacco brought in foreign bottoms (even our own), and should extend it to rice and other commodities, we are done, as navigators, to that country also. In fact, I apprehend that those two great nations will think it their interest not to permit us to be navigators. France had thought otherwise, and had shown an equal desire to encourage our navigation as her own, while she hoped its weight would at least not be thrown into the scale of her enemies. She sees now that that is not to be relied on, and will probably use her own means, and those of the nations under her influence, to exclude us from the ocean. How far it may lessen

our happiness to be rendered merely agricultural, how far that state is more friendly to principles of virtue and liberty, are questions yet to be solved. Kosciusko has been disappointed by the sudden peace between France and Austria. A ray of hope seemed to gleam on his mind for a moment, that the extension of the revolutionary spirit through Italy and Germany, might so have occupied the remnants of monarchy there, as that his country might have risen again. I sincerely rejoice to find that you preserve your health so well. That you may so go on to the end of the chapter, and that it may be a long one, I sincerely pray. Make my friendly salutations acceptable to Mrs. Gates, and accept yourself assurances of the great and constant esteem and respect of, dear Sir, your friend and servant.

TO JAMES MADISON.

PHILADELPHIA, February 22, 1798.

DEAR SIR,—Yours of the 12th is received. I wrote you last on the 15th, but the letter getting misplaced, will only go by this post. We still hear nothing from our Envoys. Whether the executive hear, we know not. But if war were to be apprehended, it is impossible our Envoys should not find means of putting us on our guard, or that the executive should hold back their information. No news, therefore, is good news. The countervailing act, which I sent you by the last post, will, confessedly, put American bottoms out of employ in our trade with Great Britain. So say well-informed merchants. Indeed, it seems probable, when we consider that hitherto, with the advantage of our foreign tonnage, our vessels could only share with the British, and the countervailing duties will, it is said, make a difference of five hundred guineas to our prejudice on a ship of three hundred and fifty tons. Still the eastern men say nothing. Every appearance and consideration render it probable, that on the restoration of peace, both France and Britain will consider it their interest to exclude us from the ocean, by such peaceable means as are in their power. Should this take place, perhaps it may be thought just and politic to give to our *native capitalists* the monopoly of our internal commerce. This may at once relieve us from the dangers of wars abroad and British thralldom at home. The news from the

Natchez, of the delivery of the posts, which you will see in the papers, is to be relied on. We have escaped a dangerous crisis there. The great contest between Israel and Morgan, of which you will see the papers full, is to be decided this day. It is snowing fast at this time, and the most sloppy walking I ever saw. This will be to the disadvantage of the party which has the most invalids. Whether the event will be known this evening, I am uncertain. I rather presume not, and therefore, that you will not learn it till next post.

You will see in the papers, the ground on which the introduction of the jury into the trial by impeachment was advocated by Mr. Tazewell, and the fate of the question. Reader's motion, which I enclosed you, will probably be amended and established, so as to declare a Senator unimpeachable, absolutely; and yesterday an opinion was declared, that not only officers of the State governments, but every private citizen of the United States, are impeachable. Whether they will think this the time to make the declaration, I know not; but if they bring it on, I think there will be not more than two votes north of the Potomac against the universality of the impeaching power. The system of the Senate may be inferred from their transactions heretofore, and from the following declaration made to me personally by their oracle.^[8] "No republic can ever be of any duration, without a Senate, and a Senate deeply and strongly rooted, strong enough to bear up against all popular storms and passions. The only fault in the Constitution of our Senate is, that their term of office is not durable enough. Hitherto they have done well, but probably they will be forced to give way in time." I suppose their having done well hitherto, alluded to the stand they made on the British treaty. This declaration may be considered as their text; that they consider themselves as the bulwarks of the government, and will be rendering that the more secure, in proportion as they can assume greater powers. The foreign intercourse bill is set for to-day; but the parties are so equal on that in the House of Representatives, that they seem mutually to fear the encounter.

My friendly salutations to Mrs. Madison and the family. To yourself, friendly adieus.

TO PEREGRINE FITZHUGH, ESQ.

PHILADELPHIA, February 23, 1798.

DEAR SIR,—I have yet to acknowledge your last favor which I received at Monticello, and therefore cannot now refer to the date. The perversion of the expressions of a former letter to you which you mention to have been made in the newspapers, I had not till then heard of. Yet the spirit of it was not new. I have been for some time used as the property of the newspapers, a fair mark for every man's dirt. Some, too, have indulged themselves in this exercise who would not have done it, had they known me otherwise than through these impure and injurious channels. It is hard treatment, and for a singular kind of offence, that of having obtained by the labors of a life the indulgent opinions of a part of one's fellow citizens. However, these moral evils must be submitted to, like the physical scourges of tempest, fire, &c. We are waiting with great anxiety to hear from our envoys at Paris. But the very circumstance of silence speaks, I think, plain enough. If there were danger of war we should certainly hear from them. It is impossible, if that were the aspect of their negotiations, that they should not find or make occasion of putting us on our guard, and of warning us to prepare. I consider therefore their silence as a proof of peace. Indeed I had before imagined that when France had thrown down the gauntlet to England, and was pointing all her energies to that object, her regard for the subsistence of her islands would keep her from cutting off our resources from them. I hope, therefore, we shall rub through the war, without engaging in it ourselves, and that when in a state of peace our Legislature and executive will endeavor to provide peaceable means of obliging foreign nations to be just to us, and of making their injustice recoil on themselves. The advantages of our commerce to them may be made the engine for this purpose, provided we shall be willing to submit to occasional sacrifices, which will be nothing in comparison with the calamities of war. Congress has nothing of any importance before them, except the bill on foreign intercourse, and the proposition to arm our merchant vessels. These will be soon decided, and if we then get peaceable news from our envoys, I know of nothing which ought to prevent our immediate separation. It had been expected that we must have laid a land tax this session. However, it is thought we can get along another year without it. Some very disagreeable differences have taken place in Congress. They cannot fail to lessen the

respect of the public for the general government, and to replace their State governments in a greater degree of comparative respectability. I do not think it for the interest of the general government itself, and still less of the Union at large, that the State governments should be so little respected as they have been. However, I dare say that in time all these as well as their central government, like the planets revolving round their common sun, acting and acted upon according to their respective weights and distances, will produce that beautiful equilibrium on which our Constitution is founded, and which I believe it will exhibit to the world in a degree of perfection, unexampled but in the planetary system itself. The enlightened statesman, therefore, will endeavor to preserve the weight and influence of every part, as too much given to any member of it would destroy the general equilibrium. The ensuing month will probably be the most eventful ever yet seen in modern Europe. It may probably be the season preferred for the projected invasion of England. It is indeed a game of chances. The sea which divides the combatants gives to fortune as well as to valor its share of influence on the enterprise. But all the chances are not on one side. The subjugation of England would be a general calamity. But happily it is impossible. Should it end in her being only republicanized, I know not on what principle a true republican of our country could lament it, whether he considers it as extending the blessings of a purer government to other portions of mankind, or strengthening the cause of liberty in our own country by the influence of that example. I do not indeed wish to see any nation have a form of government forced on them; but if it is to be done, I should rejoice at its being a free one. Permit me to place here the tribute of my regrets for the affecting loss lately sustained within your wall, and to add that of the esteem and respect with which I am, dear Sir, your friend and servant.

TO JAMES MADISON.

PHILADELPHIA, March 2, 1798.

DEAR SIR,—I wrote to you last on the 22d ultimo; since which I have received yours without date, but probably of April the 18th or 19th. An

arrival to the eastward brings us some news, which you will see detailed in the papers. The new partition of Europe is sketched, but how far authentic we know not. It has some probability in its favor. The French appear busy in their preparations for the invasion of England; nor is there any appearance of movements on the part of Russia and Prussia which might divert them from it.

The late birth-night has certainly sown tares among the exclusive federalists. It has winnowed the grain from the chaff. The sincerely Adamites did not go. The Washingtonians went religiously, and took the secession of the others in high dudgeon. The one sect threatens to desert the levees, the other the parties. The whigs went in number, to encourage the idea that the birth-nights hitherto kept had been for the General and not the President, and of course that time would bring an end to them. Goodhue, Tracy, Sedgewick, &c., did not attend; but the three Secretaries and Attorney General did.

We were surprised, the last week, with a symptom of a disposition to repeal the stamp act. Petitions for that purpose had come from Rhode Island and Virginia, and had been committed to rest with the Ways and Means. Mr. Harper, the chairman, in order to enter on the law for amending it, observed it would be necessary first to put the petitions for repeal out of the way, and moved an immediate decision on this. The Rhode Islanders begged and prayed for a postponement; that not knowing that this was the next question to be called up, they were not at all prepared; but Harper would show no mercy; not a moment's delay would be allowed. It was taken up, and, on question without debate, determined in favor of the petitions by a majority of ten. Astonished and confounded, when an order to bring in a bill for revisal was named, they began in turn to beg for time; two weeks, one week, three days, one day; not a moment would be yielded. They made three attempts for adjournment. But the majority appeared to grow. It was decided, by a majority of sixteen, that the bill should be brought in. It was brought in the next day, and on the day after passed and was sent up to the Senate, who instantly sent it back rejected by a vote of fifteen to twelve. Rhode Island and New Hampshire voted for the repeal in Senate. The act will therefore go into operation July the 1st, but probably without amendments. However, I am persuaded it will be short-lived. It has already excited great commotion in Vermont, and grumblings in Connecticut. But

they are so priest-ridden, that nothing is expected from them, but the most bigoted passive obedience.

No news yet from our commissioners; but their silence is admitted to augur peace. There is no talk yet of the time of adjourning, though it is admitted we have nothing to do, but what could be done in a fortnight or three weeks. When the spring opens, and we hear from our commissioners, we shall probably draw pretty rapidly to a conclusion. A friend of mine here wishes to get a copy of Mazzei's *Recherches Historiques et Politiques*. Where are they? Salutations and adieu.

TO JAMES MADISON.

PHILADELPHIA, March 15, 1798.

DEAR SIR,—I wrote you last on the 2d instant. Yours of the 4th is now at hand. The public papers will give you the news of Europe. The French decree making the vessel friendly or enemy, according to the hands by which the cargo was manufactured, has produced a great sensation among the merchants here. Its operation is not yet perhaps well understood; but probably it will put our shipping out of competition, because British bottoms, which can come under convoy, will alone be trusted with return cargoes. Ours, losing this benefit, would need a higher freight out, in which, therefore, they will be underbid by the British. They must then retire from the competition. Some no doubt will try other channels of commerce, and return cargoes from other countries. This effect would be salutary. A very well-informed merchant, too, (a Scotchman, entirely in the English trade,) told me, he thought it would have another good effect, by checking and withdrawing our extensive commerce and navigation (the fruit of our natural position) within those bounds to which peace must necessarily bring them. That this being done by degrees, will probably prevent those numerous failures produced generally by a peace coming on suddenly. Notwithstanding this decree, the sentiments of the merchants become more and more cooled and settled down against arming. Yet it is believed the Representatives do not cool; and though we think the question against arming will be carried, yet probably by a majority of only four or five. Their

plan is, to have convoys furnished for our vessels going to Europe, and smaller vessels for the coasting defence. On this condition, they will agree to fortify southern harbors, and build some galleys. It has been concluded among them, that if war takes place, Wolcott is to be retained in office, that the President must give up M'Henry, and as to Pickering they are divided, the eastern men being determined to retain him, their middle and southern brethren wishing to get rid of him. They have talked of General Pinckney as successor to M'Henry. This information is certain. However, I hope we shall avoid war, and save them the trouble of a change of ministry. The President has nominated John Quincy Adams Commissioner Plenipotentiary to renew the treaty with Sweden. Tazewell made a great stand against it, on the general ground that we should let our treaties drop, and remain without any. He could only get eight votes against twenty. A trial will be made to-day in another form, which he thinks will give ten or eleven against sixteen or seventeen, declaring the renewal inexpedient. In this case, notwithstanding the nomination has been confirmed, it is supposed the President would perhaps not act under it, on the probability that more than the third would be against the ratification. I believe, however, that he would act, and that a third could not be got to oppose the ratification. It is acknowledged we have nothing to do but to decide the question about arming. Yet not a word is said about adjourning; and some even talk of continuing the session permanently; others talk of July and August. An effort, however, will soon be made for an early adjournment.

My friendly salutations to Mrs. Madison; to yourself an affectionate adieu.

TO JAMES MADISON.

PHILADELPHIA, March 21, 1798.

DEAR SIR,—I wrote you last on the 15th; since that, yours of the 12th has been received. Since that, too, a great change has taken place in the appearance of our political atmosphere. The merchants, as before, continue, a respectable part of them, to wish to avoid arming. The French decree operated on them as a sedative, producing more alarm than resentment; on the Representatives, differently. It excited indignation highly in the war

party, though I do not know that it had added any new friends to that side of the question. We still hoped a majority of about four; but the insane message which you will see in the public papers has had great effect. Exultation on the one side and a certainty of victory; while the other is petrified with astonishment. Our Evans, though his soul is wrapt up in the sentiments of this message, yet afraid to give a vote openly for it, is going off to-morrow, as is said. Those who count, say there are still two members of the other side who will come over to that of peace. If so, the members will be for war measures, fifty-two, against them fifty-three; if all are present except Evans. The question is, what is to be attempted, supposing we have a majority? I suggest two things: 1. As the President declares he has withdrawn the executive prohibition to arm, that Congress should pass a legislative one. If that should fail in the Senate, it would heap coals of fire on their heads. 2. As, to do nothing and to gain time is everything with us, I propose that they shall come to a resolution of adjournment, "in order to go home and consult their constituents on the great crisis of American affairs now existing." Besides gaining time enough by this, to allow the descent on England to have its effect here as well as there, it will be a means of exciting the whole body of the people from the state of inattention in which they are; it will require every member to call for the sense of his district by petition or instruction; it will show the people with which side of the House their safety as well as their rights rest, by showing them which is for war and which for peace; and their representatives will return here invigorated by the avowed support of the American people. I do not know, however, whether this will be approved, as there has been little consultation on the subject. We see a new instance of the inefficiency of constitutional guards. We had relied with great security on that provision, which requires two-thirds of the Legislature to declare war. But this is completely eluded by a majority's taking such measures as will be sure to produce war. I wrote you in my last, that an attempt was to be made on that day in Senate, to declare the inexpediency of renewing our treaties. But the measure is put off under the hope of its being attempted under better auspices. To return to the subject of war, it is quite impossible, when we consider all the existing circumstances, to find any reason in its favor resulting from views either of interest or honor, and plausible enough to impose even on the weakest mind; and especially, when it would be undertaken by a majority of one or two only. Whatever then be our stock of charity or liberality, we must resort

to other views. And those so well known to have been entertained at Annapolis, and afterwards at the grand convention, by a particular set of men, present themselves as those alone which can account for so extraordinary a degree of impetuosity. Perhaps, instead of what was then in contemplation, a separation of the Union, which has been so much the topic to the eastward of late, may be the thing aimed at. I have written so far, two days before the departure of the post. Should anything more occur to-day or to-morrow, it shall be added. Adieu affectionately.

TO ——. [\[9\]](#)

PHILADELPHIA, March 23, 1798.

DEAR SIR,—I have to acknowledge the receipt of your favors of August 16th and 18th, together with the box of seed accompanying the former, which has just come to hand. The letter of the 4th of June, which you mention to have committed to Mr. King, has never been received. It has most likely been intercepted on the sea, now become a field of lawless and indiscriminate rapine and violence. The first box which came through Mr. Donald, arrived safely the last year, but being a little too late for that season, its contents have been divided between Mr. Randolph and myself, and will be committed to the earth now immediately. The peas and the vetch are most acceptable indeed. Since you were here, I have tried that species of your field pea which is cultivated in New York, and begin to fear that that plant will scarcely bear our sun and soil. A late acquisition too of a species of our country pea, called the cow pea, has pretty well supplied the place in my husbandry which I had destined for the European field pea. It is very productive, excellent food for man and beast, awaits without loss our leisure for gathering, and shades the ground very closely through the hottest months of the year. This with the loosening of the soil, I take to be the chief means by which the pea improves the soil. We know that the sun in our cloudless climate is the most powerful destroyer of fertility in naked ground, and therefore that the perpetual fallows will not do here, which are so beneficial in a cloudy climate. Still I shall with care try all the several kinds of pea you have been so good as to send me, and having tried all hold

fast that which is good. Mr. Randolph is peculiarly happy in having the barleys committed to him, as he had been desirous of going considerably into that culture. I was able at the same time to put into his hands Siberian barley, sent me from France. I look forward with considerable anxiety to the success of the winter vetch, for it gives us a good winter crop, and helps the succeeding summer one. It is something like doubling the produce of the field. I know it does well in Italy, and therefore have the more hope here. My experience leaves me no fear as to the success of clover. I have never seen finer than in some of my fields which have never been manured. My rotation is triennial; to wit, one year of wheat and two of clover in the stronger fields, or two of peas in the weaker, with a crop of Indian corn and potatoes between every other rotation, that is to say once in seven years. Under this easy course of culture, aided with some manure, I hope my fields will recover their pristine fertility, which had in some of them been completely exhausted by perpetual crops of Indian corn and wheat alternately. The atmosphere is certainly the great workshop of nature for elaborating the fertilizing principles and insinuating them into the soil. It has been relied on as the sole means of regenerating our soil by most of the land-holders in the canton I inhabit, and where rest has been resorted to before a total exhaustion, the soil has never failed to recover. If, indeed, it be so run down as to be incapable of throwing weeds or herbage of any kind, to shade the soil from the sun, it either goes off in gullies, and is entirely lost, or remains exhausted till a growth springs up of such trees as will rise in the poorest soils. Under the shade of these and the cover soon formed of their deciduous leaves, and a commencing herbage, such fields sometimes recover in a long course of years; but this is too long to be taken into a course of husbandry. Not so however is the term within which the atmosphere alone will reintegrate a soil rested in due season. A year of wheat will be balanced by one, two, or three years of rest and atmospheric influence, according to the quality of the soil. It has been said that no rotation of crops will keep the earth in the same degree of fertility without the aid of manure. But it is well known here that a space of rest greater or less in spontaneous herbage, will restore the exhaustion of a single crop. This then is a rotation; and as it is not to be believed that spontaneous herbage is the only or best covering during rest, so may we expect that a substitute for it may be found which will yield profitable crops. Such perhaps are clover, peas, vetches, &c. A rotation then may be found, which

by giving time for the slow influence of the atmosphere, will keep the soil in a constant and equal state of fertility. But the advantage of manuring, is that it will do more in one than the atmosphere would require several years to do, and consequently enables you so much the oftener to take exhausting crops from the soil, a circumstance of importance where there is more labor than land. I am much indebted.

TO MR. PATTERSON.

PHILADELPHIA, March 27, 1798.

DEAR SIR,—In the lifetime of Mr. Rittenhouse, I communicated to him the description of a mould-board of a plough which I had constructed, and supposed to be what we might term the *mould-board of least resistance*. I asked not only his opinion, but that he would submit it to you also. After he had considered it, he gave me his own opinion that it was demonstrably what I had supposed, and I think he said he had communicated it to you. Of that however I am not sure, and therefore now take the liberty of sending you a description of it and a model, which I have prepared for the board of Agriculture of England at their request. Mr. Strickland, one of their members, had seen the model, and also the thing itself in use in my farms, and thinking favorably of it, had mentioned it to them. My purpose in troubling you with it, is to ask the favor of you to examine the description rigorously, and suggest to me any corrections or alterations which you may think necessary, and would wish to have the ideas go as correct as possible out of my hands. I had sometimes thought of giving it into the Philosophical Society, but I doubted whether it was worth their notice, and supposed it not exactly in the line of their ordinary publications. I had therefore contemplated the sending it to some of our agricultural societies, in whose way it was more particularly, when I received the request of the English board. The papers I enclose you are the latter part of a letter to Sir John Sinclair, their president. It is to go off by the packet, wherefore I will ask the favor of you to return them with the model in the course of the present week, with any observations you will be so good as to favor me with. I am with great esteem, Dear Sir, your most obedient servant.

TO JAMES MADISON.

PHILADELPHIA, March 29, 1798.

DEAR SIR,—I wrote you last on the 21st. Yours of the 12th, therein acknowledged, is the last received. The measure I suggested in mine, of adjourning for consultation with their constituents, was not brought forward; but on Tuesday three resolutions were moved, which you will see in the public papers. They were offered in committee, to prevent their being suppressed by the previous question, and in the committee on the state of the Union, to put it out of their power, by the rising of the committee and not sitting again, to get rid of them. They were taken by surprise, not expecting to be called to vote on such a proposition as "that it is inexpedient to resort to war against the French republic." After spending the first day in seeking on every side some hole to get out at, like an animal first put into a cage, they gave up their resource. Yesterday they came forward boldly, and openly combated the proposition. Mr. Harper and Mr. Pinckney pronounced bitter philippics against France, selecting such circumstances and aggravations as to give the worst picture they could present. The latter, on this, as in the affair of Lyon and Griswold, went far beyond that moderation he has on other occasions recommended. We know not how it will go. Some think the resolution will be lost, some, that it will be carried; but neither way, by a majority of more than one or two. The decision of the Executive, of two-thirds of the Senate, and half the House of Representatives, is too much for the other half of that House. We therefore fear it will be borne down, and are under the most gloomy apprehensions. In fact, the question of war and peace depends now on a toss of cross and pile. If we could but gain this season, we should be saved. The affairs of Europe would of themselves save us. Besides this, there can be no doubt that a revolution of opinion in Massachusetts and Connecticut is working. Two whig presses have been set up in each of those States. There has been for some days a rumor, that a treaty of alliance, offensive and defensive with Great Britain, has arrived. Some circumstances have occasioned it to be listened to; to wit, the arrival of Mr. King's secretary, which is affirmed, the departure of Mr. Liston's secretary, which I know is to take place on Wednesday next, the high tone of the executive measures at the last and present session, calculated to raise things to the unison of such a compact, and supported so desperately in both Houses in opposition to the pacific wishes of the people,

and at the risk of their approbation at the ensuing election. Langdon yesterday, in debate, mentioned this current report. Tracy, in reply, declared he knew of no such thing, did not believe it, nor would be its advocate.

An attempt has been made to get the Quakers to come forward with a petition, to aid with the weight of their body the feeble band of peace. They have, with some effort, got a petition signed by a few of their society; the main body of their society refuse it. M'LAY's peace motion in the Assembly of Pennsylvania was rejected with an unanimity of the Quaker vote, and it seems to be well understood, that their attachment to England is stronger than to their principles or their country. The revolution war was a first proof of this. Mr. White, from the federal city, is here, soliciting money for the buildings at Washington. A bill for two hundred thousand dollars has passed the House of Representatives, and is before the Senate, where its fate is entirely uncertain. He has become perfectly satisfied that Mr. Adams is radically against the government's being there. Goodhue (his oracle) openly said in committee, in presence of White, that he knew the government was obliged to go there, but they would not be obliged to stay there. Mr. Adams said to White, that it would be better that the President should rent a common house there, to live in; that no President would live in the one now building. This harmonizes with Goodhue's idea of a short residence. I wrote this in the morning, but need not part with it till night. If anything occurs in the day it shall be added. Adieu.

TO MR. PENDLETON.

PHILADELPHIA, April 2, 1798.

DEAR SIR,—I have to acknowledge the receipt of your favor of January 29th, and as the rising of Congress seems now to be contemplated for about the last of this month, and it is necessary that I settle Mr. Short's matter with the Treasury before my departure, I take the liberty of saying a word on that subject. The sum you are to pay is to go to the credit of a demand which Mr. Short has on the treasury of the United States, and for which they consider Mr. Randolph as liable to them, so that the sum he pays to Short directly lessens so much the balance to be otherwise settled. Mr. Short, by a letter

received a few days ago, has directed an immediate employment of the whole sum in a particular way. I wish your sum settled, therefore, that I may call on the Treasury for the exact balance. I should have thought your best market for stock would have been here, and, I am convinced, the quicker sold the better; for, should the war measures recommended by the Executive, and taken up by the Legislature, be carried through, the fall of stock will be very sudden, war being then more than probable. Mr. Short holds some stock here, and, should the first of Mr. Sprigg's resolutions, now under debate in the lower house, be rejected, I shall, within 24 hours from the rejection, sell out the whole of Mr. Short's stock. How that resolution will be disposed of (to wit, that against the expediency of war with the French Republic), is very doubtful. Those who count votes vary the issue from a majority of 4 against the resolution to 2 or 3 majority in its favor. So that the scales of peace and war are very nearly in equilibrio. Should the debate hold many days, we shall derive aid from the delay. Letters received from France by a vessel just arrived, concur in assuring us, that, as all the French measures bear equally on the Swedes and Danes as on us, so they have no more purpose of declaring war against us than against them. Besides this, a wonderful stir is commencing in the eastern States. The dirty business of Lyon and Griswold was of a nature to fly through the newspapers, both Whig and Tory, and to excite the attention of all classes. It, of course, carried to their attention, at the same time, the debates out of which that affair springs. The subject of these debates was, whether the representatives of the people were to have no check on the expenditure of the public money, and the Executive to squander it at their will, leaving to the Legislature only the drudgery of furnishing the money. They begin to open their eyes on this to the eastward, and to suspect they have been hoodwinked. Two or three Whig presses have set up in Massachusetts, and as many more in Connecticut. The late war message of the President has added new alarm. Town meetings have begun in Massachusetts, and are sending on their petitions and remonstrances by great majorities, against war measures, and these meetings are likely to spread. The present debate, as it gets abroad, will further show them, that it is their members who are for war measures. It happens, fortunately, that these gentlemen are obliged to bring themselves forward exactly in time for the eastern elections to Congress, which come on in the course of the ensuing summer. We have, therefore, great reason to expect some favorable changes in the

representatives from that quarter. The same is counted on with confidence from Jersey, Pennsylvania, and Maryland; perhaps one or two also in Virginia; so that, after the next election, the Whigs think themselves certain of a very strong majority in the House of Representatives; and though against the other branches they can do nothing good, yet they can hinder them from doing ill. The only source of anxiety, therefore, is to avoid war for the present moment. If we can defeat the measures leading to that during this session, so as to gain this summer, time will be given, as well for the public mind to make itself felt, as for the operations of France to have their effect in England as well as here. If, on the contrary, war is forced on, the Tory interest continues dominant, and to them alone must be left, as they alone desire to ride on the whirlwind, and direct the storm. The present period, therefore, of two or three weeks, is the most eventful ever known since that of 1775, and will decide whether the principles established by that contest are to prevail, or give way to those they subverted. Accept the friendly salutations and prayers for your health and happiness, of, dear Sir, your sincere and affectionate friend.

TO JAMES MADISON.

PHILADELPHIA, April 5, 1798.

DEAR SIR,—I wrote you last on the 29th ultimo; since which I have no letter from you. These acknowledgments regularly made and attended to, will show whether any of my letters are intercepted, and the impression of my seal on wax (which shall be constant hereafter) will discover whether they are opened by the way. The nature of some of my communications furnishes ground of inquietude for their safe conveyance. The bill for the federal buildings labors hard in Senate, though, to lessen opposition, the Maryland Senator himself proposed to reduce the two hundred thousand dollars to one-third of that sum. Sedgewick and Hillhouse violently oppose it. I conjecture that the votes will be either thirteen for and fifteen against it, or fourteen and fourteen. Every member declares he means to go there, but though charged with an intention to come away again, not one of them disavow it. This will engender incurable distrust. The debate on Mr.

Sprigg's resolutions has been interrupted by a motion to call for papers. This was carried by a great majority. In this case, there appeared a separate squad, to wit, the Pinckney interest, which is a distinct thing, and will be seen sometimes to lurch the President. It is in truth the Hamilton party, whereof Pinckney is only made the stalking horse. The papers have been sent in and read, and it is now under debate in both Houses, whether they shall be published. I write in the morning, and if determined in the course of the day in favor of publication, I will add in the evening a general idea of their character. Private letters from France, by a late vessel which sailed from Havre, February the 5th, assure us that France, classing us in her measures with the Swedes and Danes, has no more notion of declaring war against us than them. You will see a letter in Bache's paper of yesterday, which came addressed to me. Still the fate of Sprigg's resolutions seems in perfect equilibrio. You will see in Fenno two numbers of a paper signed Marcellus. They promise much mischief, and are ascribed, without any difference of opinion, to Hamilton. You must, my dear Sir, take up your pen against this champion. You know the ingenuity of his talents; and there is not a person but yourself who can foil him. For heaven's sake, then, take up your pen, and do not desert the public cause altogether.

Thursday evening. The Senate have, to-day, voted the publication of the communications from our Envoys. The House of Representatives decided against the publication by a majority of seventy-five to twenty-four. The Senate adjourned, over to-morrow (good Friday), to Saturday morning; but as the papers cannot be printed within that time, perhaps the vote of the House of Representatives may induce the Senate to reconsider theirs. For this reason, I think it my duty to be silent on them. Adieu.

TO JAMES MADISON.

PHILADELPHIA, April 6, 1798.

DEAR SIR,—So much of the communications from our Envoys has got abroad, and so partially, that there can now be no ground for reconsideration with the Senate. I may therefore, consistently with duty, do what every member of the body is doing. Still, I would rather you would

use the communication with reserve till you see the whole papers. The first impressions from them are very disagreeable and confused. Reflection, however, and analysis resolve them into this. Mr. Adams' speech to Congress in May is deemed such a national affront, that no explanation on other topics can be entered on till that, as a preliminary, is wiped away by humiliating disavowals or acknowledgments. This working hard with our Envoys, and indeed seeming impracticable for want of that sort of authority, submission to a heavy amendment (upwards of a million sterling) was, at an after meeting, suggested as an alternative, which might be admitted if proposed by us. These overtures had been through informal agents; and both the alternatives bringing the Envoys to their *ne plus*, they resolve to have no more communication through unofficial characters, but to address a letter directly to the government, to bring forward their pretensions. This letter had not yet, however, been prepared. There were, interwoven with these overtures some base propositions on the part of Talleyrand, through one of his agents, to sell his interest and influence with the Directory towards soothing difficulties with them, in consideration of a large sum (fifty thousand pounds sterling); and the arguments to which his agent resorted to induce compliance with this demand, were very unworthy of a great nation, (could they be imputed to them,) and calculated to excite disgust and indignation in Americans generally, and alienation in the republicans particularly, whom they so far mistake, as to presume an attachment to France and hatred to the federal party, and not the love of their country, to be their first passion. No difficulty was expressed towards an adjustment of all differences and misunderstandings, or even ultimately a payment for spoliations, if the insult from our Executive should be first wiped away. Observe, that I state all this from only a single hearing of the papers, and therefore it may not be rigorously correct. The little slanderous imputation before mentioned, has been the bait which hurried the opposite party into this publication. The first impressions with the people will be disagreeable, but the last and permanent one will be, that the speech in May is now the only obstacle to accommodation, and the real cause of war, if war takes place. And how much will be added to this by the speech of November, is yet to be learned. It is evident, however, on reflection, that these papers do not offer one motive the more for our going to war. Yet such is their effect on the minds of wavering characters, that I fear, that to wipe off the imputation of being French partisans, they will go over to the war

measures so furiously pushed by the other party. It seems, indeed, as if they were afraid they should not be able to get into war till Great Britain shall be blown up, and the prudence of our countrymen from that circumstance, have influence enough to prevent it. The most artful misrepresentations of the contents of these papers were published yesterday, and produced such a shock in the republican mind, as had never been seen since our independence. We are to dread the effects of this dismay till their fuller information. Adieu.

TO JAMES MADISON.

PHILADELPHIA, April 12, 1798.

DEAR SIR,—I wrote you two letters on the 5th and 6th instant; since which I have received yours of the 2d. I send you, in a separate package, the instructions to our Envoys and their communications. You will find that my representation of their contents from memory, was substantially just. The public mind appears still in a state of astonishment. There never was a moment in which the aid of an able pen was so important to place things in their just attitude. On this depend the inchoate movement in the eastern mind, and the fate of the elections in that quarter, now beginning and to continue through the summer. I would not propose to you such a task on any ordinary occasion. But be assured that a well-digested analysis of these papers would now decide the future turn of things, which are at this moment on the creen. The merchants here are meeting under the auspices of Fitzsimmons, to address the President and approve his propositions. Nothing will be spared on that side. Sprigg's first resolution against the expediency of war, proper at the time it was moved, is now postponed as improper, because to declare that, after we have understood it has been proposed to us to try peace, would imply an acquiescence under that proposition. All, therefore, which the advocates of peace can now attempt, is to prevent war measures *externally*, consenting to every rational measure of *internal* defence and preparation. Great expenses will be incurred; and it will be left to those whose measures render them necessary, to provide to meet them. They already talk of stopping all payments of interest, and of a

land tax. These will probably not be opposed. The only question will be, how to modify the land tax. On this there may be a great diversity of sentiment. One party will want to make it a new source of patronage and expense. If this business is taken up, it will lengthen our session. We had pretty generally, till now, fixed on the beginning of May for adjournment. I shall return by my usual routes, and not by the eastern shore, on account of the advance of the season. Friendly salutations to Mrs. Madison and yourself. Adieu.

TO P. CARR.

PHILADELPHIA, April 12, 1798.

As the instruction to our Envoys and their communications have excited a great deal of curiosity, I enclose you a copy. You will perceive that they have been assailed by swindlers, whether with or without the participation of Talleyrand is not very apparent. The known corruption of his character renders it very possible he may have intended to share largely in the £50,000 demanded. But that the Directory know anything of it is neither proved nor probable. On the contrary, when the Portuguese ambassador yielded to like attempts of swindlers, the conduct of the Directory in imprisoning him for an attempt at corruption, as well as their general conduct really magnanimous, places them above suspicion. It is pretty evident that Mr. A.'s speech is in truth the only obstacle to negotiation. That humiliating disavowals of that are demanded as a preliminary, or as a commutation for that a heavy sum of money, about a million sterling. This obstacle removed, they seem not to object to an arrangement of all differences, and even to settle and acknowledge themselves debtors for spoliations. Nor does it seem that negotiation is at an end, as the President's message says, but that it is in its commencement only. The instructions comply with the wishes expressed in debate in the May session to place France on as good footing as England, and not to make a *sine qua non* of the indemnification for spoliation; but they declare the war in which France is engaged is not a defensive one, they reject the naturalization of French ships, that is to say the exchange of naturalization which France had

formerly proposed to us, and which would lay open to us the unrestrained trade of her West Indies and all her other possessions; they declare the 10th article of the British treaty, against sequestering debts, money in the funds, bank stock, &c., to be founded in morality, and therefore of perpetual obligation, and some other heterodoxies.

You will have seen in the newspapers some resolutions proposed by Mr. Sprigg, the first of which was, that it was inexpedient under existing circumstances to resort to war with France. Whether this could have been carried before is doubtful, but since it is known that a sum of money has been demanded, it is thought that this resolution, were it now to be passed, would imply a willingness to avoid war even by purchasing peace. It is therefore postponed. The peace party will agree to all reasonable measures of internal defence, but oppose all external preparations. Though it is evident that these communications do not present one motive the more for going to war, yet it may be doubted whether we are strong enough to keep within the defensive line. It is thought the expenses contemplated will render a land tax necessary before we separate. If so, it will lengthen the session. The first impressions from these communications are disagreeable; but their ultimate effect on the public mind will not be favorable to the war party. They may have some effect in the first moment in stopping the movement in the Eastern States, which were on the creen, and were running into town meetings, yet it is believed this will be momentary only, and will be over before their elections. Considerable expectations were formed of changes in the Eastern delegations favorable to the Whig interest. Present my best respects to Mrs. Carr, and accept yourself assurance of affectionate esteem.

TO JAMES MADISON.

PHILADELPHIA, April 26, 1798.

DEAR SIR,—

* * * * *

The bill for the naval armament (twelve vessels) passed by a majority of about four to three in the House of Representatives; all restrictions on the objects for which the vessels should be used were struck out. The bill for establishing a department of Secretary of the Navy was tried yesterday, on its passage to the third reading, and prevailed by forty-seven against forty-one. It will be read the third time to-day. The provisional army of twenty-thousand men will meet some difficulty. It would surely be rejected if our members were all here. Giles, Clopton, Cabell and Nicholas have gone, and Clay goes to-morrow. He received here news of the death of his wife. Parker has completely gone over to the war party. In this state of things they will carry what they please. One of the war party, in a fit of unguarded passion, declared sometime ago they would pass a citizen bill, an alien bill, and a sedition bill; accordingly, some days ago, Coit laid a motion on the table of the House of Representatives for modifying the citizen law. Their threats pointed at Gallatin, and it is believed they will endeavor to reach him by this bill. Yesterday Mr. Hillhouse laid on the table of the Senate a motion for giving power to send away suspected aliens. This is understood to be meant for Volney and Collot. But it will not stop there when it gets into a course of execution. There is now only wanting, to accomplish the whole declaration before mentioned, a sedition bill, which we shall certainly soon see proposed. The object of that, is the suppression of the Whig presses. Bache's has been particularly named. That paper and also Carey's totter for want of subscriptions. We should really exert ourselves to procure them, for if these papers fall, republicanism will be entirely brow beaten. Carey's paper comes out three times a week, at five dollars. The meeting of the people which was called at New York, did nothing. It was found that the majority would be against the address. They therefore chose to circulate it individually. The committee of Ways and Means have voted a land tax. An additional tax on salt will certainly be proposed in the House, and probably prevail to some degree. The stoppage of interest on the public debt will also, perhaps, be proposed, but not with effect. In the meantime, that paper cannot be sold. Hamilton is coming on as Senator from New York. There have been so much contrivance and combination in that, as to show there is some great object in hand. Troup, the district judge of New York, resigns towards the close of the session of their Assembly. The appointment of Mr. Hobart, then Senator, to succeed Troup, is not made by the President till after the Assembly had risen. Otherwise, they would have

chosen the Senator in place of Hobart. Jay then names Hamilton, Senator, but not till a day or two before his own election as Governor was to come on, lest the unpopularity of the nomination should be in time to effect his own election. We shall see in what all this is to end; but surely in something. The popular movement in the eastern States is checked, as we expected, and war addresses are showering in from New Jersey and the great trading towns. However, we still trust that a nearer view of war and a land tax will oblige the great mass of the people to attend. At present, the war hawks talk of septembrizing, deportation, and the examples for quelling sedition set by the French executive. All the firmness of the human mind is now in a state of requisition.

Salutations to Mrs. Madison; and to yourself, friendship and adieu.

TO JAMES MADISON.

PHILADELPHIA, May 3, 1798.

DEAR SIR,—I wrote you last on the 26th; since which yours of the 22d of April has been received, acknowledging mine of the 12th; so that all appear to have been received to that date. The spirit kindled up in the towns is wonderful. These and New Jersey are pouring in their addresses, offering life and fortune. Even these addresses are not the worst things. For indiscreet declarations and expressions of passion may be pardoned to a multitude acting from the impulse of the moment. But we cannot expect a foreign nation to show that apathy to the answers of the President, which are more thrasonic than the addresses. Whatever chance for peace might have been left us after the publication of the despatches, is completely lost by these answers. Nor is it France alone, but his own fellow citizens, against whom his threats are uttered. In Fenno, of yesterday, you will see one, wherein he says to the address from Newark, "the delusions and misrepresentations which have misled so many citizens, must be discountenanced by authority as well as by the citizens at large;" evidently alluding to those letters from the Representatives to their constituents, which they have been in the habit of seeking after and publishing; while those sent by the Tory part of the House to their constituents, are ten times

more numerous, and replete with the most atrocious falsehoods and calumnies. What new law they will propose on this subject, has not yet leaked out. The citizen bill sleeps. The alien bill, proposed by the Senate, has not yet been brought in. That proposed by the House of Representatives has been so moderated, that it will not answer the passionate purposes of the war gentlemen. Whether, therefore, the Senate will push their bolder plan, I know not. The provisional army does not go down so smoothly in the House as it did in the Senate. They are whitling away some of its choice ingredients; particularly that of transferring their own constitutional discretion over the raising of armies to the President. A committee of the Representatives have struck out his discretion, and hang the raising of the men on the contingencies of invasion, insurrection, or declaration of war. Were all our members here, the bill would not pass. But it will, probably, as the House now is. Its expense is differently estimated, from five to eight millions of dollars a year. Their purposes before voted, require two millions above all the other taxes, which, therefore, are voted to be raised on lands, houses and slaves. The provisional army will be additional to this. The threatening appearances from the alien bills have so alarmed the French who are among us, that they are going off. A ship, chartered by themselves for this purpose, will sail within about a fortnight for France, with as many as she can carry. Among these I believe will be Volney, who has in truth been the principal object aimed at by the law.

Notwithstanding the unfavorableness of the late impressions, it is believed the New York elections, which are over, will give us two or three republicans more than we now have. But it is supposed Jay is re-elected. It is said Hamilton declines coming to the Senate. He very soon stopped his Marcellus. It was rather the sequel which was feared than what actually appeared. He comes out on a different plan in his Titus Manlius, if that be really his. The appointments to the Mississippi were so abominable that the Senate could not swallow them. They referred them to a committee to inquire into characters, and the President withdrew the nomination. * * * *

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As there is nothing material now to be proposed, we generally expect to rise in about three weeks. However, I do not venture to order my horses.

My respectful salutations to Mrs. Madison. To yourself affectionate friendship, and adieu.

P. S. Perhaps the President's expression before quoted, may look to the sedition bill which has been spoken of, and which may be meant to put the printing presses under the *imprimatur* of the executive. Bache is thought a main object of it. Cabot, of Massachusetts, is appointed Secretary of the Navy.

TO JAMES LEWIS, JUNIOR.

PHILADELPHIA, May 9, 1798.

DEAR SIR,—I am much obliged by your friendly letter of the 4th instant. As soon as I saw the first of Mr. Martin's letters, I turned to the newspapers of the day, and found Logan's speech, as translated by a common Indian interpreter. The version I had used, had been made by General Gibson. Finding from Mr. Martin's style, that his object was not merely truth, but to gratify party passions, I never read another of his letters. I determined to do my duty by searching into the truth, and publishing it to the world, whatever it should be. This I shall do at a proper season. I am much indebted to many persons, who, without any acquaintance with me, have voluntarily sent me information on the subject. Party passions are indeed high. Nobody has more reason to know it than myself. I receive daily bitter proofs of it from people who never saw me, nor know anything of me but through Porcupine and Fenno. At this moment all the passions are boiling over, and one who keeps himself cool and clear of the contagion, is so far below the point of ordinary conversation, that he finds himself insulated in every society. However, the fever will not last. War, land tax and stamp tax, are sedatives which must cool its ardor. They will bring on reflection, and that, with information, is all which our countrymen need, to bring themselves and their affairs to rights. They are essentially republicans. They retain unadulterated the principles of '75, and those who are conscious of no change in themselves have nothing to fear in the long run. It is our duty still to endeavor to avoid war; but if it shall actually take place, no matter by whom brought on, we must defend ourselves. If our house be on fire,

without inquiring whether it was fired from within or without, we must try to extinguish it. In that, I have no doubt, we shall act as one man. But if we can ward off actual war till the crisis of England is over, I shall hope we may escape it altogether.

I am, with much esteem, dear Sir, your most obedient humble servant.

TO COLONEL MONROE.

PHILADELPHIA, May 21, 1798.

Yours of April 8th and 14th, and May 4th and 14th, have been received in due time. I have not written to you since the 19th ult., because I knew you would be out on a circuit, and would receive the letters only when they would be as old almanacs. The bill for the provisional army has got through the lower House, the regulars reduced to 10,000, and the volunteers unlimited. It was carried by a majority of 14. The land tax is now on the carpet to raise two millions of dollars; yet I think they must at least double it, as the expenses of the provisional army were not provided for in it, and will require of itself four millions a year. I presume, therefore, the tax on lands, houses, and negroes, will be a dollar a head on the population of each State. There are alien bills, sedition bills, &c., also before both Houses. The severity of their aspect determines a great number of French to go off. A ship-load sails on Monday next; among them Volney. If no new business is brought on, I think they may get through the tax bill in three weeks. You will have seen, among numerous addresses and answers, one from Lancaster in this State, and its answer. The latter travelling out of the topics of the address altogether, to mention you in a most injurious manner. Your feelings have no doubt been much implicated by it, as in truth it had all the characters necessary to produce irritation. What notice you should take of it is difficult to say. But there is one step in which two or three with whom I have spoken concur with me, that feeble as the hand is from which this shaft is thrown, yet with a great mass of our citizens, strangers to the leading traits of the character from which it came, it will have considerable effect; and that in order to replace yourself on the high ground you are entitled to, it is absolutely necessary that you should re-appear on the public

theatre, and take an independent stand, from which you can be seen and known to your fellow citizens. The House of Representatives appears the only place which can answer this end, as the proceedings of the other House are too obscure. Cabell has said he would give way to you, should you choose to come in, and I really think it would be expedient for yourself as well as the public, that you should not wait until another election, but come to the next session. No interval should be admitted between this last attack of enmity and your re-appearance with the approving voice of your constituents, and your taking a commanding attitude. I have not before been anxious for your return to public life, lest it should interfere with a proper pursuit of your private interests, but the next session will not at all interfere with your courts, because it must end March 4th, and I verily believe the next election will give us such a majority in the House of Representatives as to enable the republican party to shorten the alternate unlimited session, as it is evident that to shorten the sessions is to lessen the evils and burthens of the government on our country. The present session has already cost 200,000 dollars, besides the wounds it has inflicted on the prosperity of the Union. I have no doubt Cabell can be induced to retire immediately, and that a writ may be issued at once. The very idea of this will strike the public mind, and raise its confidence in you. If this be done, I should think it best you should take no notice at all of the answer to Lancaster. Because, were you to show a personal hostility against the answer, it would deaden the effect of everything you should say or do in your public place hereafter. All would be ascribed to an enmity to Mr. A., and you know with what facility such insinuations enter the minds of men. I have not seen Dawson since this answer has appeared, and therefore have not yet learnt his sentiments on it. My respectful salutations to Mrs. Monroe; and to yourself, affectionately adieu.

TO JAMES MADISON.

PHILADELPHIA, May 31, 1798.

DEAR SIR,—I wrote to you last on the 24th, since which yours of the 20th has been received. I must begin by correcting two errors in my last. It was

false arithmetic to say, that two measures therein mentioned to have been carried by majorities of eleven, would have failed if the fourteen absentees (wherein a majority of six is ours) had been present. Six coming over from the other side would have turned the scale, and this was the idea floating in my mind, which produced the mistake. The second error was in the version of Mr. Adams' expression, which I stated to you. His real expression was "that he would not unbrace a single nerve for any treaty France could offer; such was their entire want of faith, morality, &c."

The bill from the Senate for capturing French armed vessels found hovering on our coast was passed in two days by the lower House, without a single alteration; and the *Ganges*, a twenty gun sloop, fell down the river instantly to go on a cruise. She has since been ordered to New York, to convoy a vessel from that to this port. The alien bill will be ready to day, probably, for its third reading in the Senate. It has been considerably mollified, particularly by a proviso saving the rights of treaties. Still, it is a most detestable thing. I was glad, in yesterday's discussion, to hear it admitted on all hands, that laws of the United States, subsequent to a treaty, control its operation, and that the Legislature is the only power which can control a treaty. Both points are sound beyond doubt. This bill will unquestionably pass the House of Representatives, the majority there being very decisive, consolidated, and bold enough to do anything. I have no doubt from the hints dropped, they will pass a bill to declare the French treaty void. I question if they will think a declaration of war prudent, as it might alarm, and all its effects are answered by the act authorizing captures. A bill is brought in for suspending all communication with the dominions of France, which will no doubt pass. It is suspected that they mean to borrow money of individuals in London, on the credit of our land tax, and perhaps the guarantee of Great Britain. The land tax was yesterday debated, and a majority of six struck out the thirteenth section of the classification of houses, and taxed them by a different scale from the lands. Instead of this, is to be proposed a valuation of the houses and lands together. Macon yesterday laid a motion on the table for adjourning on the 14th. Some think they do not mean to adjourn; others, that they wait first the return of the Envoys, for whom it is now avowed the brig *Sophia* was sent. It is expected she would bring them off about the middle of this month. They may, therefore, be expected here about the second week of July. Whatever be

their decision as to adjournment I think it probable my next letter will convey orders for my horses, and that I shall leave this place from the 20th to the 25th of June; for I have no expectation they will actually adjourn sooner. Volney and a ship-load of others sail on Sunday next. Another ship-load will go off in about three weeks. It is natural to expect they go under irritations calculated to fan the flame. Not so Volney. He is most thoroughly impressed with the importance of preventing war, whether considered with reference to the interests of the two countries, of the cause of republicanism, or of man on the broad scale. But an eagerness to render this prevention impossible, leaves me without any hope. Some of those who have insisted that it was long since war on the part of France, are candid enough to admit that it is now begun on our part also. I enclose for your perusal a poem on the alien bill, written by Mr. Marshall. I do this, as well for your amusement, as to get you to take care of this copy for me till I return; for it will be lost in lending it, if I retain it here, as the publication was suppressed after the sale of a few copies, of which I was fortunate enough to get one. Your locks, hinges, &c., shall be immediately attended to.

My respectful salutations and friendship to Mrs. Madison, to the family, and to yourself. Adieu.

P. S. The President, it is said, has refused an Exequatur to the consul general of France, Dupont.

TO JOHN TAYLOR.

PHILADELPHIA, June 1, 1798.

* * * * *

Mr. New showed me your letter on the subject of the patent, which gave me an opportunity of observing what you said as to the effect, with you, of public proceedings, and that it was not unwise now to estimate the separate mass of Virginia and North Carolina, with a view to their separate existence. It is true that we are completely under the saddle of

Massachusetts and Connecticut, and that they ride us very hard, cruelly insulting our feelings, as well as exhausting our strength and subsistence. Their natural friends, the three other eastern States, join them from a sort of family pride, and they have the art to divide certain other parts of the Union, so as to make use of them to govern the whole. This is not new, it is the old practice of despots; to use a part of the people to keep the rest in order. And those who have once got an ascendancy, and possessed themselves of all the resources of the nation, their revenues and offices, have immense means for retaining their advantage. But our present situation is not a natural one. The republicans, through every part of the Union, say, that it was the irresistible influence and popularity of General Washington played off by the cunning of Hamilton, which turned the government over to anti-republican hands, or turned the republicans chosen by the people into anti-republicans. He delivered it over to his successor in this state, and very untoward events since, improved with great artifice, have produced on the public mind the impressions we see. But still I repeat it, this is not the natural state. Time alone would bring round an order of things more correspondent to the sentiments of our constituents. But are there no events impending, which will do it within a few months? The crisis with England, the public and authentic avowal of sentiments hostile to the leading principles of our Constitution, the prospect of a war, in which we shall stand alone, land tax, stamp tax, increase of public debt, &c. Be this as it may, in every free and deliberating society, there must, from the nature of man, be opposite parties, and violent dissensions and discords; and one of these, for the most part, must prevail over the other for a longer or shorter time. Perhaps this party division is necessary to induce each to watch and delate to the people the proceedings of the other. But if on a temporary superiority of the one party, the other is to resort to a scission of the Union, no federal government can ever exist. If to rid ourselves of the present rule of Massachusetts and Connecticut, we break the Union, will the evil stop there? Suppose the New England States alone cut off, will our nature be changed? Are we not men still to the south of that, and with all the passions of men? Immediately, we shall see a Pennsylvania and a Virginia party arise in the residuary confederacy, and the public mind will be distracted with the same party spirit. What a game too will the one party have in their hands, by eternally threatening the other that unless they do so and so, they will join their northern neighbors. If we reduce our Union to Virginia and North

Carolina, immediately the conflict will be established between the representatives of these two States, and they will end by breaking into their simple units. Seeing, therefore, that an association of men who will not quarrel with one another is a thing which never yet existed, from the greatest confederacy of nations down to a town meeting or a vestry; seeing that we must have somebody to quarrel with, I had rather keep our New England associates for that purpose, than to see our bickerings transferred to others. They are circumscribed within such narrow limits, and their population so full, that their numbers will ever be the minority, and they are marked, like the Jews, with such a perversity of character, as to constitute, from that circumstance, the natural division of our parties. A little patience, and we shall see the reign of witches pass over, their spells dissolved, and the people recovering their true sight, restoring their government to its true principles. It is true, that in the meantime, we are suffering deeply in spirit, and incurring the horrors of a war, and long oppressions of enormous public debt. But who can say what would be the evils of a scission, and when and where they would end? Better keep together as we are, haul off from Europe as soon as we can, and from all attachments to any portions of it; and if they show their power just sufficiently to hoop us together, it will be the happiest situation in which we can exist. If the game runs sometimes against us at home, we must have patience till luck turns, and then we shall have an opportunity of winning back the *principles* we have lost. For this is a game where principles are the stake. Better luck, therefore, to us all, and health, happiness and friendly salutations to yourself. Adieu.

P. S. It is hardly necessary to caution you to let nothing of mine get before the public; a single sentence got hold of by the Porcupines, will suffice to abuse and persecute me in their papers for months.

TO GENERAL KOSCIUSKO.

PHILADELPHIA, June 1, 1798.

DEAR SIR,—Mr. Volney's departure for France gives me an opportunity of writing to you. I was happy in observing, for many days after your departure, that our winds were favorable for you. I hope, therefore, you

quickly passed the cruising grounds on our coast, and have safely arrived at the term of your journey. Your departure is not yet known, or even suspected.^[10] Niemsevioz was much affected. He is now at the federal city. He desired me to have some things taken care of for you. There were some kitchen furniture, backgammon table and chess men, and a pelise of fine fur. The latter I have taken to my own apartment and had packed in hops, and sewed up; the former are put into a warehouse of Mr. Barnes; all subject to your future orders. Some letters came for you soon after your departure: the person who delivered them said there were enclosed in them some for your friend whom you left here, and desired I would open them. I did so in his presence, found only one letter for your friend, took it out and sealed the letters again in the presence of the same person, without reading a word or looking who they were from. I now forward them to you, as I do this to my friend Jacob Van Staphorst, at Paris. Our alien bill struggles hard for a passage. It has been considerably mollified. It is not yet through the Senate. We are proceeding further and further in war measures. I consider that event as almost inevitable. I am extremely anxious to hear from you, to know what sort of a passage you had, how you find yourself, and the state and prospect of things in Europe. I hope I shall not be long without hearing from you. The first dividend which will be drawn for you and remitted, will be in January, and as the winter passages are dangerous, it will not be forwarded till April; after that, regularly, from six months to six months. This will be done by Mr. Barnes. I shall leave this place in three weeks. The times do not permit an indulgence in political disquisitions. But they forbid not the effusion of friendship, and not my warmest toward you, which no time will alter. Your principles and dispositions were made to be honored, revered and loved. True to a single object, the freedom and happiness of man, they have not veered about with the changelings and apostates of our acquaintance. May health and happiness ever attend you. Accept sincere assurances of my affectionate esteem and respect. Adieu.

TO JAMES MADISON.

PHILADELPHIA, June 21, 1798.

DEAR SIR,—Yours of the 10th instant is received. I expected mine of the 14th would have been my last from hence, as I had proposed to set out on the 20th; but on the morning of the 19th, we heard of the arrival of Marshall at New York, and I concluded to stay and see whether that circumstance would produce any new projects. No doubt he there received more than hints from Hamilton as to the tone required to be assumed. Yet I apprehend he is not hot enough for his friends. Livingston came with him from New York. Marshall told him they had no idea in France of a war with us. That Talleyrand sent passports to him and Pinckney, but none to Gerry. Upon this, Gerry staid, without explaining to them the reason. He wrote, however, to the President by Marshall, who knew nothing of the contents of the letter. So that there must have been a previous understanding between Talleyrand and Gerry. Marshall was received here with the utmost eclat. The Secretary of State and many carriages, with all the city cavalry, went to Frankfort to meet him, and on his arrival here in the evening, the bells rung till late in the night, and immense crowds were collected to see and make part of the show, which was circuitously paraded through the streets before he was set down at the City tavern. All this was to secure him to their views, that he might say nothing which would oppose the game they have been playing. Since his arrival I can hear of nothing directly from him, while they are disseminating through the town things, as from him, diametrically opposite to what he said to Livingston. Doctor Logan, about a fortnight ago, sailed for Hamburg. Though for a twelvemonth past he had been intending to go to Europe as soon as he could get money enough to carry him there, yet when he had accomplished this, and fixed a time for going, he very unwisely made a mystery of it: so that his disappearance without notice excited conversation. This was seized by the war hawks, and given out as a secret mission from the Jacobins here to solicit an army from France, instruct them as to their landing, &c. This extravagance produced a real panic among the citizens; and happening just when Bache published Talleyrand's letter, Harper, on the 18th, gravely announced to the House of Representatives, that there existed a traitorous correspondence between the Jacobins here and the French Directory; that he had got hold of some threads and clues of it, and would soon be able to develop the whole. This increased the alarm; their libelists immediately set to work, directly and indirectly to implicate whom they pleased. Porcupine gave me a principal share in it, as I am told, for I never read his papers. This state of things

added to my reasons for not departing at the time I intended. These follies seem to have died away in some degree already. Perhaps I may renew my purpose by the 25th. Their system is, professedly, to keep up an alarm. Tracy, at the meeting of the joint committee for adjournment, declared it necessary for Congress to stay together to keep up the inflammation of the public mind; and Otis has expressed a similar sentiment since. However, they will adjourn. The opposers of an adjournment in Senate, yesterday agreed to adjourn on the 10th of July. But I think the 1st of July will be carried. That is one of the objects which detain myself, as well as one or two more of the Senate, who had got leave of absence. I imagine it will be decided to-morrow or next day. To separate Congress now, will be withdrawing the fire from under a boiling pot.

My respectful salutations to Mrs. Madison, and cordial friendship to yourself.

P. M. A message to both Houses this day from the President, with the following communications.

March 23. Pickering's letter to the Envoys, directing them, if they are not actually engaged in negotiation with authorized persons, or if it is not conducted *bonâ fide*, and not merely for procrastination, to break up and come home, and at any rate to consent to no loan.

April 3. Talleyrand to Gerry. He supposes the other two gentlemen, perceiving that their known principles are an obstacle to negotiation, will leave there public, and proposes to renew the negotiations with Gerry immediately.

April 4. Gerry to Talleyrand. Disclaims a power to conclude anything separately, can only confer informally and as an unaccredited person or individual, reserving to lay everything before the government of the United States for approbation.

April 14. Gerry to the President. He communicates the preceding, and hopes the President will send other persons instead of his colleagues and himself, if it shall appear that anything can be done.

The President's message says, that as the instructions were not to consent to any loan, he considers the negotiations as at an end, and that he will never

send another minister to France, until he shall be assured that he will be received and treated with the respect due to a great, powerful, free and independent nation.

A bill was brought in the Senate this day, to declare the treaties with France void, prefaced by a list of grievances in the style of a manifesto. It passed to the second reading by fourteen to five.

A bill for punishing forgeries of bank paper, passed to the third reading by fourteen to six. Three of the fourteen (Laurence, Bingham and Read) bank directors.

TO MR. NOLAN.

PHILADELPHIA, June 24, 1798.

SIR,—It is sometime since I have understood that there are large herds of horses in a wild state, in the country west of the Mississippi, and have been desirous of obtaining details of their history in that State. Mr. Brown, Senator from Kentucky, informs me it would be in your power to give interesting information on this subject, and encourages me to ask it. The circumstances of the old world have, beyond the records of history, been such as admitted not that animal to exist in a state of nature. The condition of America is rapidly advancing to the same. The present then is probably the only moment in the age of the world, and the herds above mentioned the only subjects, of which we can avail ourselves to obtain what has never yet been recorded, and never can be again in all probability. I will add that your information is the sole reliance, as far as I can at present see, for obtaining this desideratum. You will render to natural history a very acceptable service, therefore, if you will enable our Philosophical society to add so interesting a chapter to the history of this animal. I need not specify to you the particular facts asked for; as your knowledge of the animal in his domesticated, as well as his wild state, will naturally have led your attention to those particulars in the manners, habits, and laws of his existence, which are peculiar to his wild state. I wish you not to be anxious about the form of your information, the exactness of the substance alone is material; and if,

after giving in a first letter all the facts you at present possess, you would be so good, on subsequent occasions, as to furnish such others in addition, as you may acquire from time to time, your communications will always be thankfully received, if addressed to me at Monticello; and put into any post office in Kentucky or Tennessee, they will reach me speedily and safely, and will be considered as obligations on, sir, your most obedient, humble servant.

TO SAMUEL SMITH.

MONTICELLO, August 22, 1798.

DEAR SIR,—Your favor of August the 4th came to hand by our last post, together with the "extract of a letter from a gentleman of Philadelphia, dated July the 10th," cut from a newspaper stating some facts which respect me. I shall notice these facts. The writer says that "the day after the last despatches were communicated to Congress, Bache, Leib, &c., and a Dr. Reynolds, were *closeted* with me." If the receipt of visits in my public room, the door continuing free to every one who should call at the same time, may be called *closeting*, then it is true that I was *closeted* with every person who visited me; in no other sense is it true as to any person. I sometimes received visits from Mr. Bache and Dr. Leib. I received them always with pleasure, because they are men of abilities, and of principles the most friendly to liberty and our present form of government. Mr. Bache has another claim on my respect, as being the grandson of Dr. Franklin, the greatest man and ornament of the age and country in which he lived. Whether I was visited by Mr. Bache or Dr. Leib the day after the communication referred to, I do not remember. I know that all my motions in Philadelphia, here, and everywhere, are watched and recorded. Some of these spies, therefore, may remember better than I do, the dates of these visits. If they say that these two gentlemen visited me on the day after the communication, as their trade proves their accuracy, I shall not contradict them, though I affirm that I do not recollect it. However, as to Dr. Reynolds I can be more particular, because I never saw him but once, which was on an introductory visit he was so kind as to pay me. This, I well remember,

was before the communication alluded to, and that during the short conversation I had with him, not one word was said on the subject of any of the communications. Not that I should not have spoken freely on their subject to Dr. Reynolds, as I should also have done to the letter writer, or to any other person who should have introduced the subject. I know my own principles to be pure, and therefore am not ashamed of them. On the contrary, I wish them known, and therefore willingly express them to every one. They are the same I have acted on from the year 1775 to this day, and are the same, I am sure, with those of the great body of the American people. I only wish the real principles of those who censure mine were also known. But warring against those of the people, the delusion of the people is necessary to the dominant party. I see the extent to which that delusion has been already carried, and I see there is no length to which it may not be pushed by a party in possession of the revenues and the legal authorities of the United States, for a short time indeed, but yet long enough to admit much particular mischief. There is no event, therefore, however atrocious, which may not be expected. I have contemplated every event which the Maratists of the day can perpetrate, and am prepared to meet every one in such a way, as shall not be derogatory either to the public liberty or my own personal honor. The letter writer says, I am "for peace; but it is only with France." He has told half the truth. He would have told the whole, if he had added England. I am for peace with both countries. I know that both of them have given, and are daily giving, sufficient cause of war; that in defiance of the laws of nations, they are every day trampling on the rights of the neutral powers, whenever they can thereby do the least injury, either to the other. But, as I view a peace between France and England the ensuing winter to be certain, I have thought it would have been better for us to continue to bear from France through the present summer, what we have been bearing both from her and England these four years, and still continue to bear from England, and to have required indemnification in the hour of peace, when I verily believe it would have been yielded by both. This seems to have been the plan of the other neutral nations; and whether this, or the commencing war on one of them, as we have done, would have been wisest, time and events must decide. But I am quite at a loss on what ground the letter writer can question the opinion, that France had no intention of making war on us, and was willing to treat with Mr. Gerry, when we have this from Talleyrand's letter, and from the written and verbal

information of our Envoys. It is true then, that, as with England, we might of right have chosen either war or peace, and have chosen peace, and prudently in my opinion, so with France, we might also of right have chosen either peace or war, and we have chosen war. Whether the choice may be a popular one in the other States, I know not. Here it certainly is not; and I have no doubt the whole American people will rally ere long to the same sentiment, and rejudge those who, at present, think they have all judgment in their own hands.

These observations will show you, how far the imputations in the paragraph sent me approach the truth. Yet they are not intended for a newspaper. At a very early period of my life, I determined never to put a sentence into any newspaper. I have religiously adhered to the resolution through my life, and have great reason to be contented with it. Were I to undertake to answer the calumnies of the newspapers, it would be more than all my own time, and that of twenty aids could effect. For while I should be answering one, twenty new ones would be invented. I have thought it better to trust to the justice of my countrymen, that they would judge me by what they see of my conduct on the stage where they have placed me, and what they knew of me *before* the epoch since which a particular party has supposed it might answer some view of theirs to vilify me in the public eye. Some, I know, will not reflect how apocryphal is the testimony of enemies so palpably betraying the views with which they give it. But this is an injury to which duty requires every one to submit whom the public think proper to call into its councils. I thank you, my dear Sir, for the interest you have for me on this occasion. Though I have made up my mind not to suffer calumny to disturb my tranquillity, yet I retain all my sensibilities for the approbation of the good and just. That is, indeed, the chief consolation for the hatred of so many, who, without the least personal knowledge, and on the sacred evidence of Porcupine and Fenno alone, cover me with their implacable hatred. The only return I will ever make them, will be to do them all the good I can, in spite of their teeth.

I have the pleasure to inform you that all your friends in this quarter are well, and to assure you of the sentiments of sincere esteem and respect with which I am, dear Sir, your friend and servant.

TO A. H. ROWAN.

MONTICELLO, September 26, 1798.

SIR,—To avoid the suspicions and curiosity of the post office, which would have been excited by seeing your name and mine on the back of a letter, I have delayed acknowledging the receipt of your favor of July last, till an occasion to write to an inhabitant of Wilmington gives me an opportunity of putting my letter under cover to him. The system of alarm and jealousy which has been so powerfully played off in England, has been mimicked here, not entirely without success. The most long-sighted politician could not, seven years ago, have imagined that the people of this wide-extended country could have been enveloped in such delusion, and made so much afraid of themselves and their own power, as to surrender it spontaneously to those who are manœuvring them into a form of government, the principal branches of which may be beyond their control. The commerce of England, however, has spread its roots over the whole face of our country. This is the real source of all the obliquities of the public mind; and I should have had doubts of the ultimate term they might attain; but happily, the game, to be worth the playing of those engaged in it, must flush them with money. The authorized expenses of this year are beyond those of any year in the late war for independence, and they are of a nature to beget great and constant expenses. The purse of the people is the real seat of sensibility. It is to be drawn upon largely, and they will then listen to truths which could not excite them through any other organ. In this State, however, the delusion has not prevailed. They are sufficiently on their guard to have justified the assurance, that should you choose it for your asylum, the laws of the land, administered by upright judges, would protect you from any exercise of power unauthorized by the Constitution of the United States. The Habeas Corpus secures every man here, alien or citizen, against everything which is not law, whatever shape it may assume. Should this, or any other circumstance, draw your footsteps this way, I shall be happy to be among those who may have an opportunity of testifying, by every attention in our power, the sentiments of esteem and respect which the circumstances of your history have inspired, and which are peculiarly felt by, Sir, your most obedient, and most humble servant.

TO STEPHENS THOMPSON MASON.

MONTICELLO, October 11, 1798.

DEAR SIR,—I have to thank you for your favor of July the 6th, from Philadelphia. I did not immediately acknowledge it, because I knew you would have come away. The X. Y. Z. fever has considerably abated through the country, as I am informed, and the alien and sedition laws are working hard. I fancy that some of the State legislatures will take strong ground on this occasion. For my own part, I consider those laws as merely an experiment on the American mind, to see how far it will bear an avowed violation of the Constitution. If this goes down, we shall immediately see attempted another act of Congress, declaring that the President shall continue in office during life, reserving to another occasion the transfer of the succession to his heirs, and the establishment of the Senate for life. At least, this may be the aim of the Oliverians, while Monk and the Cavaliers (who are perhaps the strongest) may be playing their game for the restoration of his most gracious Majesty George the Third. That these things are in contemplation, I have no doubt; nor can I be confident of their failure, after the dupery of which our countrymen have shown themselves susceptible.

You promised to endeavor to send me some tenants. I am waiting for them, having broken up two excellent farms with twelve fields in them of forty acres each, some of which I have sowed with small grain. Tenants of any size may be accommodated with the number of fields suited to their force. Only send me good people, and write me what they are. Adieu. Yours affectionately.

TO JAMES MADISON.

MONTICELLO, November 17, 1798.

I enclose you a copy of the draught of the Kentucky resolutions. I think we should distinctly affirm all the important principles they contain, so as to hold to that ground in future, and leave the matter in such a train as that we

may not be committed absolutely to push the matter to extremities, and yet may be free to push as far as events will render prudent. I think to set out so as to arrive at Philadelphia the Saturday before Christmas. My friendly respects to Mrs. Madison, to your father and family; health, happiness and adieu to yourself.

TO JOHN TAYLOR.

MONTICELLO, November 26, 1798.

DEAR SIR,—We formerly had a debtor and creditor account of letters on farming; but the high price of tobacco, which is likely to continue for some short time, has tempted me to go entirely into that culture, and in the meantime, my farming schemes are in abeyance, and my farming fields at nurse against the time of my resuming them. But I owe you a political letter. Yet the infidelities of the post office and the circumstances of the times are against my writing fully and freely, whilst my own dispositions are as much against mysteries, innuendos and half-confidences. I know not which mortifies me most, that I should fear to write what I think, or my country bear such a state of things. Yet Lyon's judges, and a jury of all nations, are objects of national fear. We agree in all the essential ideas of your letter. We agree particularly in the necessity of some reform, and of some better security for civil liberty. But perhaps we do not see the existing circumstances in the same point of view. There are many considerations *dehors* of the State, which will occur to you without enumeration. I should not apprehend them, if all was sound within. But there is a most respectable part of our State who have been enveloped in the X. Y. Z. delusion, and who destroy our unanimity for the present moment. This disease of the imagination will pass over, because the patients are essentially republicans. Indeed, the Doctor is now on his way to cure it, in the guise of a tax gatherer. But give time for the medicine to work, and for the repetition of stronger doses, which must be administered. The principle of the present majority is *excessive expense*, money enough to fill all their maws, or it will not be worth the risk of their supporting. They cannot borrow a dollar in Europe, or above two or three millions in America. This is not the fourth of

the expenses of this year, unprovided for. Paper money would be perilous even to the paper men. Nothing then but excessive taxation can get us along; and this will carry reason and reflection to every man's door, and particularly in the hour of election.

I wish it were possible to obtain a single amendment to our Constitution. I would be willing to depend on that alone for the reduction of the administration of our government to the genuine principles of its Constitution; I mean an additional article, taking from the federal government the power of borrowing. I now deny their power of making paper money or anything else a legal tender. I know that to pay all proper expenses within the year, would, in case of war, be hard on us. But not so hard as ten wars instead of one. For wars would be reduced in that proportion; besides that the State governments would be free to lend *their credit* in borrowing quotas. For the present, I should be for resolving the alien and sedition laws to be against the Constitution and merely void, and for addressing the other States to obtain similar declarations: and I would not do anything at this moment which should commit us further, but reserve ourselves to shape our future measures or no measures, by the events which may happen. It is a singular phenomenon, that while our State governments are the *very best in the world*, without exception or comparison, our General Government has, in the rapid course of nine or ten years, become more arbitrary, and has swallowed more of the public liberty than even that of England. I enclose you a column, cut out of a London paper, to show you that the English, though charmed with our making their enemies our enemies, yet blush and weep over our sedition law. But I enclose you something more important. It is a petition for a reformation in the manner of appointing our juries, and a remedy against the *jury of all nations*, which is handing about here for signature, and will be presented to your House. I know it will require but little ingenuity to make objections to the details of its execution; but do not be discouraged by small difficulties; make it as perfect as you can at a first essay, and depend on amending its defects as they develop themselves in practice. I hope it will meet with your approbation and patronage. It is the only thing which can yield us a little present protection against the dominion of a faction, while circumstances are maturing for bringing and keeping the government in real unison with the spirit of their constituents. I am aware that the act of Congress has

directed that juries shall be appointed by lot or otherwise, as the laws *now* (at the date of the act) in force in the several States provide. The New England States have always had them elected by their select men, who are elected by the people. Several or most of the other States have a large number appointed (I do not know how) to attend, out of whom twelve for each cause are taken by lot. This provision of Congress will render it necessary for our Senators or Delegates to apply for an amendatory law, accommodated to that prayed for in the petition. In the meantime, I would pass the law as if the amendatory one existed, in reliance, that our select jurors attending, the federal judge will, under a sense of right, direct the juries to be taken from among them. If he does not, or if Congress refuses to pass the amendatory law, it will serve as eye-water for their constituents. Health, happiness, *safety* and esteem to yourself and my ever-honored and ancient friend, Mr. Pendleton. Adieu.

TO JAMES MADISON.

PHILADELPHIA, January 3, 1799.

DEAR SIR,—I have suffered the post hour to come so nearly on me, that I must huddle over what I have more than appears in the public papers. I arrived here on Christmas day, not a single bill or other article of business having yet been brought into Senate. The President's speech, so unlike himself in point of moderation, is supposed to have been written by the military conclave, and particularly Hamilton. When the Senate gratuitously hint Logan to him, you see him in his reply come out in his genuine colors. The debates on that subject and Logan's declaration you will see in the papers. The republican spirit is supposed to be gaining ground in this State and Massachusetts. The tax gatherer has already excited discontent. Gerry's correspondence with Talleyrand, promised by the President at the opening of the session, is still kept back. It is known to show France in a very conciliatory attitude, and to contradict some executive assertions. Therefore, it is supposed they will get their war measures well taken before they will produce this damper. Vans Murray writes them, that the French

government is sincere in their overtures for reconciliation, and have agreed, if these fail, to admit the mediation offered by the Dutch government.

* * * * *

General Knox has become bankrupt for four hundred thousand dollars, and has resigned his military commission. He took in General Lincoln for one hundred and fifty thousand dollars, which breaks him. Colonel Jackson also sunk with him. It seems generally admitted, that several cases of the yellow fever still exist in the city, and the apprehension is, that it will re-appear early in the spring. You promised me a copy of McGee's bill of prices. Be so good as to send it on to me here. Tell Mrs. Madison her friend Madame d'Yrujo, is as well as one can be so near to a formidable crisis. Present my friendly respects to her, and accept yourself my sincere and affectionate salutations. Adieu.

P. S. I omitted to mention that a petition has been presented to the President, signed by several thousand persons in Vermont, praying a remittment of Lyon's fine. He asked the bearer of the petition if Lyon himself had petitioned, and being answered in the negative, said, "penitence must precede pardon."

TO JAMES MADISON.

PHILADELPHIA, January 16, 1799.

DEAR SIR,—The forgery lately attempted to be played off by Mr. H. on the House of Representatives, of a pretended memorial presented by Logan to the French government, has been so palpably exposed, as to have thrown ridicule on the whole of the clamors they endeavored to raise as to that transaction. Still, however, their majority will pass the bill. The real views in the importance they have given to Logan's enterprise are mistaken by nobody. Mr. Gerry's communications relative to his transactions after the departure of his colleagues, though he has now been returned five months, and they have been promised to the House six or seven weeks, are still kept

back. In the meantime, the paper of this morning promises them from the Paris papers. It is said, they leave not a possibility to doubt the sincerity and the anxiety of the French government to avoid the spectacle of a war with us. Notwithstanding this is well understood, the army and a great addition to our navy, are steadily intended. A loan of five millions is opened at eight per cent. interest!

* * * * *

In a society of members, between whom and myself are great mutual esteem and respect, a most anxious desire is expressed that you would publish your debates of the convention. That these measures of the army, navy and direct tax will bring about a revolution of public sentiment is thought certain, and that the Constitution will then receive a different explanation. Could those debates be ready to appear critically, their effect would be decisive. I beg of you to turn this subject in your mind. Tho arguments against it will be personal; those in favor of it moral; and something is required from you as a set off against the sin of your retirement. Your favor of December the 29th came to hand January the 5th; seal sound. I pray you always to examine the seals of mine to you, and the strength of the impression. The suspicions against the government on this subject are strong. I wrote you January the 5th. Accept for yourself and Mrs. Madison my affectionate salutations. Adieu.

TO COLONEL MONROE.

January 23, 1799.

DEAR SIR,—The newspapers furnish you with the articles of common news as well as the Congressional. You observe the addition proposed to be made to our Navy, and the loan of five millions, opened at eight per cent., to equip it. The papers say that our agents abroad are purchasing vessels for this purpose. The following is as accurate a statement of our income and expense annual, as I can form, after divesting the Treasury reports of such articles as are incidental, and properly *annual*:

1798 —Imports	\$7,405,420 76.
Excise Auctions, Libraries, Carriages	585,879 67.
Postage	57,000
Patents	1,050
Coinage	10,202
Dividends of Bank Stock	79,920
Fines	<u>8</u>
	\$8,139,520 43.
1799 —Direct Tax, } Clear of Stamp Tax } expense	<u>2,000,000</u>
	\$10,139,520

Interest and reimbursement of domestic debt	\$2,987,145 48	
Interest on domestic loans	238,637 50	
Dutch debt	586,829 58	— \$3,812,612 56
Civil list		524,206 83
Loan office		13,000
Mint		13,300
Light-houses		44,281 58
Annuities and Grants		1,603 33
Military Pensions		93,400
Miscellaneous expenses		19,000
Contingent expenses of Government		20,000
Amount of Civil Government property	728,191 24	
Indians		110,000
Foreign intercourse	93,000	

Treaties with G. Britain, Spain and Mediterranean	187,500	—280,500
Annual expense of existing Navy	2,424,261 10	
Annual expense of existing Army (2,038 officers and privates)	1,461,173	
Annual expense of existing Officers of additional Army (actually commissioned)	217,372	—4,112,811 10
		9,044,714 90
Annual expense of privates of do. (about ——)	2,523,458	
Annual expense of privates of Navy	2,949,278 96	—5,472,733 96
Eight per cent. interest on five millions new loan		400,000
		\$14,917,448 86

By this you will perceive that our income for 1799, being ten millions, and expenses nine millions, we have a surplus of one million, which, with the five millions to be borrowed, it is expected, will build the Navy and raise the Army. When they are complete, we shall have to raise by new taxes about five millions more, making in the whole fifteen millions, which if our population be five millions, will be three dollars a head. But these additional taxes will not be wanting, till the session after the next. The majority in Congress being as in the last session, matters will go on now as then. I shall send you Gerry's correspondence and Pickering's report on it, by which you will perceive the willingness of France to treat with us, and our determination not to believe it, and therefore to go to war with them. For in this light must be viewed our surrounding their islands with our armed vessels instead of their cruising on our coasts as the law directs.

According to information, there is real reason to believe that the X. Y. Z. delusion is wearing off, and the public mind beginning to take the same

direction it was getting into before that measure. Gerry's dispatches will tend strongly to open the eyes of the people. Besides this several other impressive circumstances will all be bearing on the public mind. The alien and sedition laws as before, the direct tax, the additional army and navy, an usurious loan to set these follies on foot, a prospect of heavy additional taxes as soon as they are completed, still heavier taxes if the government forces on the war, recruiting officers lounging at every court-house and decoying the laborer from his plough. A clause in a bill now under debate for opening commerce with Toussaint and his black subjects now in open rebellion with France, will be a circumstance of high aggravation to that country, and in addition to our cruising around their islands will put their patience to a great proof. One fortunate circumstance is that, annihilated as they are on the ocean, they cannot get at us for some time, and this will give room for the popular sentiment to correct the imprudence. Nothing is believed of the stories about Bonaparte. Those about Ireland have a more serious aspect. I delivered the letter from you of which I was the bearer. No use was made of the paper, because that poor creature had already fallen too low even for contempt. It seems that the representative of our district is attached to his seat. Mr. Bachley tells me you have the collection of a sum of money for him, which is destined for me. What is the prospect of getting it, and how much? I do not know whether I have before informed you that Mr. Madison paid to Mr. Barnes \$240 or \$250 in your name to be placed to your credit with Mr. Short, I consequently squared that account, and debited you to myself for the balance. This with another article or two of account between us, stands therefore against the books for which I am indebted to you, and for which I know not the cost. A very important measure is under contemplation here, which, if adopted, will require a considerable sum of money *on loan*. The thing being beyond the abilities of those present, they will possibly be obliged to assess their friends also. I may perhaps be forced to score you for fifty or one hundred dollars, to be paid at convenience, but as yet it is only talked of. I shall rest my justification on the importance of the measure, and the sentiments I know you to entertain on such subjects. We consider the elections on the whole as rather in our favor, and particularly believe those of North Carolina will immediately come right. J. Nicholas and Brent, both offer again. My friendly respects to Mrs. Monroe, and to yourself affectionate salutations and adieu.

TO ELBRIDGE GERRY.

PHILADELPHIA, January 26, 1799.

MY DEAR SIR,—Your favor of November the 12th was safely delivered to me by Mr. Binney; but not till December the 28th, as I arrived here only three days before that date. It was received with great satisfaction. Our very long intimacy as fellow laborers in the same cause, the recent expressions of mutual confidence which had preceded your mission, the interesting course which that had taken, and particularly and personally as it regarded yourself, made me anxious to hear from you on your return. I was the more so too, as I had myself, during the whole of your absence, as well as since your return, been a constant butt for every shaft of calumny which malice and falsehood could form, and the presses, public speakers, or private letters disseminate. One of these, too, was of a nature to touch yourself; as if, wanting confidence in your efforts, I had been capable of usurping powers committed to you, and authorizing negotiations private and collateral to yours. The real truth is, that though Doctor Logan, the pretended missionary, about four or five days before he sailed for Hamburgh, told me he was going there, and thence to Paris, and asked and received from me a certificate of his citizenship, character, and circumstances of life, merely as a protection, should he be molested on his journey, in the present turbulent and suspicious state of Europe, yet I had been led to consider his object as relative to his private affairs; and though, from an intimacy of some standing, he knew well my wishes for peace and my political sentiments in general, he nevertheless received then no particular declaration of them, no authority to communicate them to any mortal, nor to speak to any one in my name, or in anybody's name, on that, or on any other subject whatever; nor did I write by him a scrip of a pen to any person whatever. This he has himself honestly and publicly declared since his return; and from his well-known character and every other circumstance, every candid man must perceive that his enterprise was dictated by his own enthusiasm, without consultation or communication with any one; that he acted in Paris on his own ground, and made his own way. Yet to give some color to his proceedings, which might implicate the republicans in general, and myself particularly, they have not been ashamed to bring forward a suppositious paper, drawn by one of their own party in the name of Logan, and falsely pretended to have been presented by him to

the government of France; counting that the bare mention of my name therein, would connect that in the eye of the public with this transaction. In confutation of these and all future calumnies, by way of anticipation, I shall make to you a profession of my political faith; in confidence that you will consider every future imputation on me of a contrary complexion, as bearing on its front the mark of falsehood and calumny.

I do then, with sincere zeal, wish an inviolable preservation of our present federal Constitution, according to the true sense in which it was adopted by the States, that in which it was advocated by its friends, and not that which its enemies apprehended, who therefore became its enemies; and I am opposed to the monarchising its features by the forms of its administration, with a view to conciliate a first transition to a President and Senate for life, and from that to an hereditary tenure of these offices, and thus to worm out the elective principle. I am for preserving to the States the powers not yielded by them to the Union, and to the legislature of the Union its constitutional share in the division of powers; and I am not for transferring all the powers of the States to the General Government, and all those of that government to the executive branch. I am for a government rigorously frugal and simple, applying all the possible savings of the public revenue to the discharge of the national debt; and not for a multiplication of officers and salaries merely to make partisans, and for increasing, by every device, the public debt, on the principle of its being a public blessing. I am for relying, for internal defence, on our militia solely, till actual invasion, and for such a naval force only as may protect our coasts and harbors from such depredations as we have experienced; and not for a standing army in time of peace, which may overawe the public sentiment; nor for a navy, which, by its own expenses and the eternal wars in which it will implicate us, will grind us with public burthens, and sink us under them. I am for free commerce with all nations; political connection with none; and little or no diplomatic establishment. And I am not for linking ourselves by new treaties with the quarrels of Europe; entering that field of slaughter to preserve their balance, or joining in the confederacy of kings to war against the principles of liberty. I am for freedom of religion, and against all manœuvres to bring about a legal ascendancy of one sect over another: for freedom of the press, and against all violations of the Constitution to silence by force and not by reason the complaints or criticisms, just or unjust, of

our citizens against the conduct of their agents. And I am for encouraging the progress of science in all its branches; and not for raising a hue and cry against the sacred name of philosophy; for awing the human mind by stories of raw-head and bloody bones to a distrust of its own vision, and to repose implicitly on that of others; to go backwards instead of forwards to look for improvement; to believe that government, religion, morality, and every other science were in the highest perfection in ages of the darkest ignorance, and that nothing can ever be devised more perfect than what was established by our forefathers. To these I will add, that I was a sincere well-wisher to the success of the French revolution, and still wish it may end in the establishment of a free and well-ordered republic; but I have not been insensible under the atrocious depredations they have committed on our commerce. The first object of my heart is my own country. In that is embarked my family, my fortune, and my own existence. I have not one farthing of interest, nor one fibre of attachment out of it, nor a single motive of preference of any one nation to another, but in proportion as they are more or less friendly to us. But though deeply feeling the injuries of France, I did not think war the surest means of redressing them. I did believe, that a mission sincerely disposed to preserve peace, would obtain for us a peaceable and honorable settlement and retribution; and I appeal to you to say, whether this might not have been obtained, if either of your colleagues had been of the same sentiment with yourself.

These, my friend, are my principles; they are unquestionably the principles of the great body of our fellow citizens, and I know there is not one of them which is not yours also. In truth, we never differed but on one ground, the funding system; and as, from the moment of its being adopted by the constituted authorities, I became religiously principled in the sacred discharge of it to the uttermost farthing, we are united now even on that single ground of difference.

I now turn to your inquiries. The enclosed paper will answer one of them. But you also ask for such political information as may be possessed by me, and interesting to yourself in regard to your embassy. As a proof of my entire confidence in you, I shall give it fully and candidly. When Pinckney, Marshall, and Dana, were nominated to settle our differences with France, it was suspected by many, from what was understood of their dispositions, that their mission would not result in a settlement of differences, but would

produce circumstances tending to widen the breach, and to provoke our citizens to consent to a war with that nation, and union with England. Dana's resignation and your appointment gave the first gleam of hope of a peaceable issue to the mission. For it was believed that you were sincerely disposed to accommodation; and it was not long after your arrival there, before symptoms were observed of that difference of views which had been suspected to exist. In the meantime, however, the aspect of our government towards the French republic had become so ardent, that the people of America generally took the alarm. To the southward, their apprehensions were early excited. In the eastern States also, they at length began to break out. Meetings were held in many of your towns, and addresses to the government agreed on in opposition to war. The example was spreading like a wildfire. Other meetings were called in other places, and a general concurrence of sentiment against the apparent inclinations of the government was imminent; when, most critically for the government, the despatches of October 22d, prepared by your colleague Marshall, with a view to their being made public, dropped into their laps. It was truly a God-send to them, and they made the most of it. Many thousands of copies were printed and dispersed gratis, at the public expense; and the zealots for war co-operated so heartily, that there were instances of single individuals who printed and dispersed ten or twelve thousand copies at their own expense. The odiousness of the corruption supposed in those papers excited a general and high indignation among the people. Unexperienced in such manœuvres, they did not permit themselves even to suspect that the turpitude of private swindlers might mingle itself unobserved, and give its own hue to the communications of the French government, of whose participation there was neither proof nor probability. It served, however, for a time, the purpose intended. The people, in many places, gave a loose to the expressions of their warm indignation, and of their honest preference of war to dishonor. The fever was long and successfully kept up, and in the meantime, war measures as ardently crowded. Still, however, as it was known that your colleagues were coming away, and yourself to stay, though disclaiming a separate power to conclude a treaty, it was hoped by the lovers of peace, that a project of treaty would have been prepared, *ad referendum*, on principles which would have satisfied our citizens, and overawed any bias of the government towards a different policy. But the expedition of the Sophia, and, as was supposed, the suggestions of the

person charged with your despatches, and his probable misrepresentations of the real wishes of the American people, prevented these hopes. They had then only to look forward to your return for such information, either through the executive, or from yourself, as might present to our view the other side of the medal. The despatches of October 22d, 1797, had presented one face. That information, to a certain degree, is now received, and the public will see from your correspondence with Talleyrand, that France, as you testify, "was sincere and anxious to obtain a reconciliation, not wishing us to break the British treaty, but only to give her equivalent stipulations; and in general was disposed to a liberal treaty." And they will judge whether Mr. Pickering's report shows an inflexible determination to believe no declarations the French government can make, nor any opinion which you, judging on the spot and from actual view, can give of their sincerity, and to meet their designs of peace with operations of war. The alien and sedition acts have already operated in the south as powerful sedatives of the X. Y. Z. inflammation. In your quarter, where violations of principle are either less regarded or more concealed, the direct tax is likely to have the same effect, and to excite inquiries into the object of the enormous expenses and taxes we are bringing on. And your information supervening, that we might have a liberal accommodation if we would, there can be little doubt of the reproduction of that general movement which had been changed, for a moment, by the despatches of October 22d. And though small checks and stops, like Logan's pretended embassy, may be thrown in the way from time to time, and may a little retard its motion, yet the tide is already turned, and will sweep before it all the feeble obstacles of art. The unquestionable republicanism of the American mind will break through the mist under which it has been clouded, and will oblige its agents to reform the principles and practices of their administration.

You suppose that you have been abused by both parties. As far as has come to my knowledge, you are misinformed. I have never seen or heard a sentence of blame uttered against you by the republicans; unless we were so to construe their wishes that you had more boldly co-operated in a project of a treaty, and would more explicitly state, whether there was in your colleagues that flexibility, which persons earnest after peace would have practised? Whether, on the contrary, their demeanor was not cold, reserved, and distant, at least, if not backward? And whether, if they had yielded to

those informal conferences which Talleyrand seems to have courted, the liberal accommodation you suppose might not have been effected, even with their agency? Your fellow-citizens think they have a right to full information, in a case of such great concernment to them. It is their sweat which is to earn all the expenses of the war, and their blood which is to flow in expiation of the causes of it. It may be in your power to save them from these miseries by full communications and unrestrained details, postponing motives of delicacy to those of duty. It rests with you to come forward independently; to make your stand on the high ground of your own character; to disregard calumny, and to be borne above it on the shoulders of your grateful fellow citizens; or to sink into the humble oblivion, to which the federalists (self-called) have secretly condemned you; and even to be happy if they will indulge you oblivion, while they have beamed on your colleagues meridian splendor. Pardon me, my dear Sir, if my expressions are strong. My feelings are so much more so, that it is with difficulty I reduce them even to the tone I use. If you doubt the dispositions towards you, look into the papers, on both sides, for the toasts which were given throughout the States on the fourth of July. You will there see whose hearts were with you, and whose were ulcerated against you. Indeed, as soon as it was known that you had consented to stay in Paris, there was no measure observed in the execrations of the war party. They openly wished you might be guillotined, or sent to Cayenne, or anything else. And these expressions were finally stifled from a principle of policy only, and to prevent you from being urged to a justification of yourself. From this principle alone proceed the silence and cold respect they observe towards you. Still, they cannot prevent at times the flames bursting from under the embers, as Mr. Pickering's letters, report, and conversations testify, as well as the indecent expressions respecting you, indulged by some of them in the debate on these despatches. These sufficiently show that you are never more to be honored or trusted by them, and that they wait to crush you for ever, only till they can do it without danger to themselves.

When I sat down to answer your letter, but two courses presented themselves, either to say nothing or everything; for half confidences are not in my character. I could not hesitate which was due to you. I have unbosomed myself fully; and it will certainly be highly gratifying if I receive like confidence from you. For even if we differ in principle more

than I believe we do, you and I know too well the texture of the human mind, and the slipperiness of human reason, to consider differences of opinion otherwise than differences of form or feature. Integrity of views more than their soundness, is the basis of esteem. I shall follow your direction in conveying this by a private hand; though I know not as yet when one worthy of confidence will occur. And my trust in you leaves me without a fear that this letter, meant as a confidential communication of my impressions, will ever go out of your own hand, or be suffered in anywise to commit my name. Indeed, besides the accidents which might happen to it even under your care, considering the accident of death to which you are liable, I think it safest to pray you, after reading it as often as you please, to destroy at least the second and third leaves. The first contains principles only, which I fear not to avow; but the second and third contain facts stated for your information, and which, though sacredly conformable to my firm belief, yet would be galling to some, and expose me to illiberal attacks. I therefore repeat my prayer to burn the second and third leaves. And did we ever expect to see the day, when, breathing nothing but sentiments of love to our country and its freedom and happiness, our correspondence must be as secret as if we were hatching its destruction! Adieu, my friend, and accept my sincere and affectionate salutations. I need not add my signature.

TO EDMUND PENDLETON.

PHILADELPHIA, January 29, 1799.

DEAR SIR,—Your patriarchal address to your country is running through all the republican papers, and has a very great effect on the people. It is short, simple, and presents things in a view they readily comprehend. The character and circumstances too of the writer leave them without doubts of his motives. If, like the patriarch of old, you had but one blessing to give us, I should have wished it directed to a particular object. But I hope you have one for this also. You know what a wicked use has been made of the French negotiation; and particularly the X. Y. Z. dish cooked up by * * * * *, where the swindlers are made to appear as the French government. Art and industry combined, have certainly wrought out of this business a wonderful effect on the people. Yet they have been astonished more than they have understood it, and now that Gerry's correspondence comes out, clearing the French government of that turpitude, and showing them "sincere in their dispositions for peace, not wishing us to break the British treaty, and willing to arrange a liberal one with us," the people will be disposed to suspect they have been duped. But these communications are too voluminous for them, and beyond their reach. A recapitulation is now wanting of the whole story, stating every thing according to what we may now suppose to have been the truth, short, simple and levelled to every capacity. Nobody in America can do it so well as yourself, in the same character of the father of your country, or any form you like better, and so concise, as omitting nothing material, may yet be printed in hand bills, of which we could print and disperse ten or twelve thousand copies under letter covers, through all the United States, by the members of Congress when they return home. If the understanding of the people could be rallied to the truth on this subject, by exposing the dupery practised on them, there are so many other things about to bear on them favorably for the resurrection of their republican spirit, that a reduction of the administration to constitutional principles cannot fail to be the effect. These are the alien and sedition laws, the vexations of the stamp act, the disgusting particularities of the direct tax, the additional army

without an enemy, and recruiting officers lounging at every Court House to decoy the laborer from his plough, a navy of fifty ships, five millions to be raised to build it, on the usurious interest of eight per cent., the perseverance in war on our part, when the French government shows such an anxious desire to keep at peace with us, taxes of ten millions now paid by four millions of people, and yet a necessity, in a year or two, of raising five millions more for annual expenses. These things will immediately be bearing on the public mind, and if it remain not still blinded by a supposed necessity, for the purposes of maintaining our independence and defending our country, they will set things to rights. I hope you will undertake this statement. If anybody else had possessed your happy talent for this kind of recapitulation, I would have been the last to disturb you with the application; but it will really be rendering our country a service greater than it is in the power of any other individual to render. To save you the trouble of hunting the several documents from which this statement is to be taken, I have collected them here completely, and enclose them to you.

Logan's bill has passed. On this subject, it is hardly necessary for me to declare to you, on everything sacred, that the part they ascribed to me was entirely a calumny. Logan called on me, four or five days before his departure, and asked and received a certificate (in my private capacity) of his citizenship and circumstances of life, merely as a protection, should he be molested in the present turbulent state of Europe. I have given such to an hundred others, and they have been much more frequently asked and obtained by tories than whigs.

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Accept my sincere prayers for long and happy years to you still, and my affectionate salutations and adieu.

TO COLONEL N. LEWIS.

DEAR SIR,—Believing that the letters of Messrs. Gerry and Talleyrand, will give you pleasure to peruse, I send you a copy; you will perceive by them the anxiety of the Government of France for a reconciliation with us, and

Mr. Gerry's belief of their sincerity, and that they were ready to have made a liberal treaty with us. You will also see by Mr. Pickering's report that we are determined to believe no declarations they can make, but to meet their peaceable professions with acts of war. An act has passed the House of Representatives by a majority of twenty, for continuing the law cutting off intercourse with France, but allowing the President by proclamation, to except out of this such parts of their dominions as disavow the depredations committed on us. This is intended for St. Domingo, where Toussaint has thrown off dependence on France. He has an agent here on this business. Yesterday, the House of Representatives voted six ships of 74 guns and six of 18, making 552 guns. These would cost in England \$5,000 a gun. They would cost here \$10,000, so the whole will cost five and a half millions of dollars. Their annual expense is stated at £1,000 Virginia money a gun, being a little short of two millions of dollars. And this is only a part of what is proposed; the whole contemplated being twelve 74's, 12 frigates and about 25 smaller vessels. The state of our income and expense is (in round numbers) nearly as follows:

Imports seven and a half millions of dollars; excise, auctions, licenses, carriages half a million; postage, patents, and bank stock, one-eighth of a million, making eight and one-eighth millions. To these the direct tax and stamp tax will add two millions clear of expense, making in the whole ten and one-eighth millions. The expenses on the civil list, three-fourths of a million, foreign intercourse half a million, interest on the public debt four millions, the present navy two and a half millions, the present army one and a half millions, making nine and one-quarter millions. The additional army will be two and a half millions, the additional navy three millions, and interest on the new loan near one-half a million, in all, fifteen and one-quarter millions; so in about a year or two there will be five millions annually to be raised by taxes in addition to the ten millions we now pay. Suppose our population is now five millions, this would be three dollars a head. This is exclusive of the outfit of the navy, for which a loan is opened to borrow five millions at eight per cent. If we can remain at peace, we have this in our favor, that these projects will require time to execute; that in the meantime, the sentiments of the people in the middle States are visibly turning back to their former direction, the X. Y. Z. delusion being abated, and their minds become sensible to the circumstances surrounding them, to

wit: the alien and sedition acts, the vexations of the stamp act, the direct tax, the follies of the additional army and navy money borrowed for these at the usurious interest of eight per cent., and Mr. Gerry's communications showing that peace is ours unless we throw it away. But if the joining the revolted subjects (negroes) of France, and surrounding *their* islands with our armed vessels, instead of their merely cruising on our own coasts to protect our own commerce, should provoke France to a declaration of war, these measures will become irremediable.

The English and German papers are killing and eating Bonaparte every day. He is, however, safe; has effected a peaceable establishment of government in Egypt, the inhabitants of which have preferred him to their mameluke Governors, and the expectation is renewed of his march to India. In that country great preparations are made for the overthrow of the English power. The insurrection of Ireland seems to be reduced low. The peace between France and the Empire seems also to be doubtful. Very little is apprehended for them from anything which the Turks and Russians can do against them. I wish I could have presented you with a more comfortable view of our affairs. However, that will come if the friends of reform, while they remain firm, avoid every act and threat against the peace of the Union, that would check the favorable sentiments of the Middle States, and rally them again around the measures which are ruining us. Reason, not rashness, is the only means of bringing our fellow citizens to their true minds. Present my best complements to Mrs. Lewis, and accept yourself assurances of the sincere and affectionate esteem with which I am, dear Sir, your friend and servant.

TO MR. MADISON.

PHILADELPHIA, January 30, 1799.

My last to you was of the 16th, since which yours of the 12th is received, and its contents disposed of properly. These met such approbation as to have occasioned an extraordinary impression of that day's paper. Logan's bill is passed. The lower house, by a majority of twenty, passed yesterday a bill continuing the suspension of intercourse with France, with a new clause enabling the President to admit intercourse with the rebellious negroes

under Toussaint, who has an agent here, and has thrown off dependence on France. The House of Representatives have also voted six 74's and six 18's, in part of the additional navy, say 552 guns, which in England would cost \$5,000, and here \$10,000, consequently more than the whole five millions for which a loan is now opened at eight per cent. The maintenance is estimated at £1,000 (lawful) a gun annually. A bill has been this day brought into the Senate for authorizing the President *in case of a declaration of war or danger of invasion by any European power*, to raise an *eventual* army of thirty regiments, infantry, cavalry, and artillery in addition to the additional army, the provisional army, and the corps of volunteers, which last he is authorized to brigade, officer, exercise, and pay during the time of exercise. And all this notwithstanding Gerry's correspondence received, and demonstrating the aversion of France to consider us as enemies. All depends on her patiently standing the measures of the present session, and the surrounding *her* islands with our cruisers, and capturing their armed vessels on her own coasts. If this is borne awhile, the public opinion is most manifestly wavering in the middle States, and was even before the publication of Gerry's correspondence. In New York, Jersey, and Pennsylvania, every one attests them, and General Sumpter, just arrived, assures me the republicans of South Carolina have gained fifty per cent. in numbers since the election, which was in the moment of the X. Y. Z. fever. I believe there is no doubt the Republican Governor would be elected here now, and still less for next October. The gentleman of North Carolina seems to be satisfied that their new delegation will furnish but three, perhaps only two anti-republicans; if so, we shall be gainer on the whole. But it is on the progress of public opinion we are to depend for rectifying the proceedings of the next Congress. The only question is whether this will not carry things beyond the reach of rectification. Petitions and remonstrances against the alien and sedition laws are coming from various parts of New York, Jersey, and Pennsylvania: some of them very well drawn. I am in hopes Virginia will stand so countenanced by those States as to express the wishes of the Government to coerce her, which they might venture on if they supposed she would be left alone. Firmness on our part, but a passive firmness, is the true course. Anything rash or threatening might check the favorable dispositions of these middle States, and rally them again around the measures which are ruining us. Bonaparte appears to have settled Egypt peacefully, and with the consent of those inhabitants, and seems to be

looking towards the East Indies, where a most formidable co-operation has been prepared for demolishing the British power. I wish the affairs of Ireland were as hopeful, and the peace with the north of Europe. Nothing new here as to the price of tobacco, the river not having yet admitted the bringing any to this market. Spain being entirely open for ours, and depending on it for her supplies during the cutting off of her intercourse with her own colonies by the superiority of the British at sea, is much in our favor. I forgot to add that the bill for the *eventual* army, authorizes the President to borrow two millions more. Present my best respects to Mrs. Madison, health and affectionate salutations to yourself. Adieu.

TO JAMES MADISON.

PHILADELPHIA, February 5, 1799.

DEAR SIR,—I wrote you last on the 30th of January; since which yours of the 25th has been received.

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The bill for continuing the suspension of intercourse with France and her dependencies, is still before the Senate, but will pass by a very great vote. An attack is made on what is called the Toussaint's clause, the object of which, as is charged by the one party and *admitted* by the other, is to facilitate the separation of the island from France. The clause will pass, however, by about nineteen to eight, or perhaps eighteen to nine. Rigaud, at the head of the people of color, maintains his allegiance. But they are only twenty-five thousand souls, against five hundred thousand, the number of the blacks. The treaty made with them by Maitland is (if they are to be separated from France) the best thing for us. They must get their provisions from us. It will indeed be in English bottoms, so that we shall lose the carriage. But the English will probably forbid them the ocean, confine them to their island, and thus prevent their becoming an American Algiers. It must be admitted too, that they may play them off on us when they please. Against this there is no remedy but timely measures on our part, to clear ourselves, by degrees, of the matter on which that lever can work.

* * * * *

A piece published in Bache's paper on *foreign influence*, has the greatest currency and effect. To an extraordinary first impression, they have been obliged to make a second, and of an extraordinary number. It is such things as these the public want. They say so from all quarters, and that they wish to hear reason instead of *disgusting blackguardism*. The public sentiment being now on the creen, and many heavy circumstances about to fall into the republican scale, we are sensible that this summer is the season for systematic energies and sacrifices. The engine is the press. Every man must lay his purse and his pen under contribution. As to the former, it is possible I may be obliged to assume something for you. As to the latter, let me pray and beseech you to set apart a certain portion of every post day to write what may be proper for the public. Send it to me while here, and when I go away I will let you know to whom you may send, so that your name shall be sacredly secret. You can render such incalculable services in this way, as to lessen the effect of our loss of your presence here. I shall see you on the 5th or 6th of March.

Affectionate salutations to Mrs. Madison and yourself. Adieu.

TO COLONEL MONROE.

PHILADELPHIA, February 11, 1799.

I wrote you last on the 22d of January, since which yours of January 26th is received. A bill will pass the Senate to day for enabling the President to retaliate rigorously on any French citizens who now are or hereafter may be in our power, should they put to death any sailors of ours *forced* on board British vessels and taken by the French. This is founded expressly on their *Arret* of October 29th, 1798, communicated by the President by message. It is known (from the Secretary of State himself) that he received, immediately after, a letter from Rufus King informing him the *Arret* was suspended, and it has been known a week that we were passing a retaliating act founded expressly on that *Arret*, yet the President has not communicated it, and the supporters of the bill, who themselves told the secret of the

suspension in debate, (for it was otherwise unknown,) will yet pass the bill. We have already an existing army of 5,000 men, and the additional army of 9,000 now going into execution. We have a bill on its progress through the Senate for authorizing the President to raise thirty regiments (30,000 men) called an *eventual* army, in case of war with any European power, or of imminent danger of invasion from them *in his opinion*. And also to call out and exercise at times the *volunteer* army, the number of which we know not. Six 74's and six 18's, making up 500 guns (in part of the fleet of twelve 74's, twelve frigates, and 20 or 30 smaller vessels proposed to be built or bought as soon as we can), are now to be begun. One million of dollars is voted. The Government estimate of their cost is about 4,500 dollars (£1000 sterling) a gun. But there cannot be a doubt they will cost 10,000 dollars a gun, and consequently the 550 guns will be 5½ millions. A loan is now opened for five millions at eight per cent., and the *eventual* army bill authorizes another of two millions. King is appointed to negotiate a treaty of commerce with Russia, in London. Phocion Smith is *proposed* to go to Constantinople to make a treaty with the Turks. Under two other covers you will receive a copy of the French originals of Gerry's communications for yourself, and a dozen of G. N's pamphlets on the laws of the last session. I wish you to give these to the most influential characters among our countrymen, who are only misled, are candid enough to be open to conviction, and who may have most effect on their neighbors. It would be useless to give them to persons already sound. Do not let my name be connected in the business. It is agreed on all hands that the British depredations have greatly exceeded the French during the last six months. The insurance companies at Boston, this place and Baltimore, prove this from their books. I have not heard how it is at New York. The Senate struck out of the bill continuing the suspension of intercourse with France, the clauses which authorized the President to do it with certain other countries (say Spanish and Dutch), which clauses had passed the House of Representatives by a majority of, I believe, twenty. They agreed, however, to the amendment of the Senate. But Toussaint's clause was retained by both Houses. Adieu affectionately.

Feb. 12th. The vessel called the Retaliation, formerly French property taken by us, armed and sent to cruise on them, retaken by them and carried into Guadaloupe, arrived here this morning with her own captain and crew, &c.

They say that new commissioners from France arrived at Guadaloupe, sent Victor Hughes home in irons, liberated the crew, said to the captain that they found him to be an officer bearing a regular commission from the United States, possessed of a vessel called the Retaliation, then in their port; that they should inquire into no preceding fact, and that he was free with his vessel and crew to depart; that as to differences with the United States, commissioners were coming out from France to settle them; in the meantime, no injury should be done to us or our citizens. This was known to every Senator when we met. The Retaliation bill came on, on its passage, and was passed with only two dissenting voices, two or three who would have dissented happening to be absent.

TO MR. STEWART.

PHILADELPHIA, February 13, 1799.

DEAR SIR,—I avoid writing to my friends because the fidelity of the post office is very much doubted. I will give you briefly a statement of what we have done and are doing. The following is a view of our finances in round numbers. The import brings in the last year seven and a half millions of dollars, the excise, carriages, auctions, and licenses, half a million, the residuary small articles one-eighth of a million. It is expected that the stamp act may pay the expense of the direct tax, so that the two may be counted at two millions, making in the whole ten and one-eighth millions. Our expenses for the civil list three-quarters of a million, foreign intercourse half a million (this includes Indian and Algerine expenses, the Spanish and British treaties), interest of the public debt four millions, the existing navy two and a half millions, the existing army, 5,000 men, one and a half millions, making nine and a quarter millions, so that we have a surplus of near a million. But the additional army, 9,000 men, now raising, will add two and a half millions annually, the additional navy proposed three millions, and the interest of the new loans half a million, making six millions more, so that as soon as the army and navy shall be ready, our whole expenses will be fifteen millions; consequently, there will be five millions annually more to be raised by taxes. Our present taxes of ten

millions are two dollars a head on our present population, and the future five millions will make it three dollars. Our whole exports (native) this year are 28,192, so that our taxes are now a third and will soon be half of our whole exports; and when you add the expenses of the State Governments we shall be found to have got to the plenum of taxation in ten short years of peace. Great Britain, after centuries of wars and revolutions, had at the commencement of the present war taxed only to the amount of two-thirds of her exports. We have opened a loan for five millions, at eight per cent. interest, and another is proposed of two millions. These are to build six seventy-fours and six eighteens, in part of additional navy, for which a bill passed the House of Representatives two days ago, by fifty-four against forty-two. Besides the existing army of 5,000 and additional army of 9,000, an *eventual* army of 30,000 is proposed to be raised by the President, in case of invasion by any European power, or danger of invasion, *in his opinion*, and the *volunteer* army, the amount of which we know not, is to be immediately called out and exercised at the public expense. For these purposes a bill has been twice read and committed in the Senate. You have seen by Gerry's communications that France is *sincerely anxious* for reconciliation, willing to give us a *liberal* treaty, and does not wish us to break the British treaty, but only to put her on an equal footing. A further proof of her sincerity turned up yesterday. We had taken an armed vessel from her, had refitted and sent her to cruise against them, under the name of the Retaliation, and they re-captured and sent her into Guadaloupe. The new commissioners arriving there from France, sent Victor Hughes off in irons, and said to our captain, that as they found him bearing a regular commission as an officer of the United States, with his vessel in their port, and his crew, they would inquire into no fact respecting the vessel preceding their arrival, but that he, his vessel and crew, were free to depart. They arrived here yesterday. The federal papers call her a *cartel*. It is whispered that the executive means to return an equal number of the French prisoners, and this may give a color to call her a cartel, but she was liberated freely and without condition. The commissioners further said to the captain that, as to the differences with the United States, new commissioners were coming out from France to settle them, and in the meantime they should do us no injury. The President has appointed Rufus King to make a commercial treaty with the Russians in London, and William Smith, of South Carolina, to go to Constantinople to make one with

the Turks. Both appointments are confirmed by the Senate. A little dissatisfaction was expressed by some that we should never have treated with them till the moment when they had formed a coalition with the English against the French. You have seen that the Directory had published an arret declaring they would treat as pirates any neutrals they should take in the ships of their enemies. The President communicated this to Congress as soon as he received it. A bill was brought into Senate reciting that arret, and authorizing retaliation. The President received information almost in the same instant that the Directory had suspended the arret (which fact was privately declared by the Secretary of State to two of the Senate), and, though it was known we were passing an act founded on that arret, yet the President has never communicated the suspension. However the Senate, informed indirectly of the fact, still passed the act yesterday, an hour after we had heard of the return of our vessel and crew before mentioned. It is acknowledged on all hands, and declared by the insurance companies that the British depredations during the last six months have greatly exceeded the French, yet not a word is said about it officially. However, all these things are working on the public mind. They are getting back to the point where they were when the X. Y. Z. story was passed off on them. A wonderful and rapid change is taking place in Pennsylvania, Jersey, and New York. Congress is daily plied with petitions against the alien and sedition laws and standing armies. Several parts of this State are so violent that we fear an insurrection. This will be brought about by some if they can. It is the only thing we have to fear. The appearance of an attack of force against the government would check the present current of the middle States, and rally them around the government; whereas, if suffered to go on, it will pass on to a reformation of abuses. The materials now bearing on the public mind will infallibly restore it to its republican soundness in the course of the present summer, if the knowledge of facts can only be disseminated among the people. Under separate cover you will receive some pamphlets written by George Nicholas on the acts of the last session. These I would wish you to distribute, not to sound men who have no occasion for them, but to such as have been misled, are candid and will be open to the conviction of truth, and are of influence among their neighbors. It is the sick who need medicine, and not the well. Do not let my name appear in the matter. Perhaps I shall forward you some other things to be distributed in the same way. Present me respectfully to Mrs. Stuart, and

accept assurances of the sincere esteem of, dear Sir, your affectionate friend and servant.

TO EDMUND PENDLETON.

PHILADELPHIA, February 14, 1799.

DEAR SIR,—I wrote you a petition on the 29th of January. I know the extent of this trespass on your tranquillity, and how indiscreet it would have been under any other circumstances. But the fate of this country, whether it shall be irretrievably plunged into a form of government rejected by the makers of the Constitution, or shall get back to the true principles of that instrument, depends on the turn which things may take within a short period of time ensuing the present moment. The violations of the Constitution, propensities to war, to expense, and to a particular foreign connection, which we have lately seen, are becoming evident to the people, and are dispelling that mist which X. Y. Z. had spread before their eyes. This State is coming forward with a boldness not yet seen. Even the German counties of York and Lancaster, hitherto the most devoted, have come about, and by petitions with four thousand signers remonstrate against the alien and sedition laws, standing armies, and discretionary powers in the President. New York and Jersey are also getting into great agitation. In this State, we fear that the ill designing may produce insurrection. Nothing could be so fatal. Anything like force would check the progress of the public opinion and rally them round the government. This is not the kind of opposition the American people will permit. But keep away all show of force, and they will bear down the evil propensities of the government, by the constitutional means of election and petition. If we can keep quiet, therefore, the tide now turning will take a steady and proper direction. Even in New Hampshire there are strong symptoms of a rising inquietude. In this state of things, my dear Sir, it is more in your power than any other man's in the United States, to give the *coup de grace* to the ruinous principles and practices we have seen. In hopes you have consented to it, I shall furnish to you some additional matter which has arisen since my last.

I enclose you a part of a speech of Mr. Gallatin on the naval bill. The views he takes of our finances, and of the policy of our undertaking to establish a great navy, may furnish some hints. I am told something on the same subject from Mr. J. Nicholas will appear in the Richmond and Fredericksburg papers. I mention the real author, that you may respect it duly, for I presume it will be anonymous. The residue of Gallatin's speech shall follow when published. A recent fact, proving the anxiety of France for a reconciliation with us, is the following. You know that one of the armed vessels which we took from her was refitted by us, sent to cruise against her, recaptured, and carried into Guadaloupe under the name of the *Retaliation*. On the arrival there of Desfourneaux, the new commissioner, he sent Victor Hughes home in irons; called up our captain; told him that he found he had a regular commission as an officer of the United States; that his vessel was then lying in the harbor; that he should inquire into no fact preceding his own arrival (by this he avoided noticing that the vessel was really French property) and that therefore, himself and crew were free to depart with their vessel; that as to the differences between France and the United States, commissioners were coming out to settle them, and in the meantime, no injury should be done on their part. The captain insisted on being a prisoner; the other disclaimed; and so he arrived here with vessel and crew the day before yesterday. Within an hour after this was known to the Senate, they passed a retaliation bill, of which I enclose you a copy. This was the more remarkable, as the bill was founded expressly on the *Arret* of October the 29th, which had been communicated by the President as soon as received, and he remarked, "that it could not be too soon communicated to the two Houses and the public." Yet he almost in the same instant received, through the same channel, Mr. King's information that that *Arret* was suspended, and though he knew we were making it the foundation of a retaliation bill, he has never yet communicated it. But the Senate knew the fact informally from the Secretary of State, and knowing it, passed the bill.

The President has appointed, and the Senate approved Rufus King, to enter into a treaty of commerce with the Russians, at London, and William Smith, (Phocion) Envoy Extraordinary and Minister Plenipotentiary, to go to Constantinople to make one with the Turks. So that as soon as there is a coalition of Turks, Russians and English, against France, we seize that

moment to countenance it as openly as we dare, by treaties, which we never had with them before. All this helps to fill up the measure of provocation towards France, and to get from them a declaration of war, which we are afraid to be the first in making. It is certain the French have behaved atrociously towards neutral nations, and us particularly; and though we might be disposed not to charge them with all the enormities committed in their name in the West Indies, yet they are to be blamed for not doing more to prevent them. A just and rational censure ought to be expressed on them, while we disapprove the constant billingsgate poured on them *officially*. It is at the same time true, that their enemies set the first example of violating neutral rights, and continue it to this day; insomuch, that it is declared on all hands, and particularly by the insurance companies and denied by none, that the British spoiliations have considerably exceeded the French during the last six months. Yet not a word of these things is said officially to the Legislature.

Still further, to give the devil his due, (the French) it should be observed that it has been said without contradiction, and the people made to believe, that their refusal to receive our Envoys was contrary to the law of nations, and a sufficient cause of war; whereas, every one who ever read a book on the law of nations knows, that it is an unquestionable right in every power to refuse to receive any minister who is personally disagreeable. Martens, the latest and a very respected writer, has laid this down so clearly and shortly in his "summary of the law of nations," B. 7. ch. 2. sec. 9, that I will transcribe the passage verbatim. "Section 9. Of choice in the person of the minister. The choice of the person to be sent as minister depends of right on the sovereign who sends him, leaving the right, however, of him to whom he is sent, of refusing to acknowledge any one, to whom he has a personal dislike, or who is inadmissible by the laws and usages of the country." And he adds notes proving by instances, &c. This is the whole section.

Notwithstanding all these appearances of peace from France, we are, besides our *existing* army of five thousand men, and an *additional* army of nine thousand (now officered and levying), passing a bill for an *eventual* army of thirty regiments (thirty thousand) and for regimenting, brigading, officering and exercising *at the public expense* our *volunteer* army, the amount of which we know not. I enclose you a copy of the bill, which has been twice read and committed in Senate. To meet this expense, and that of

the six seventy-four's and six eighteen's, part of the proposed fleet, we have opened a loan of five millions at eight per cent., and authorize another of two millions; and at the same time, every man voting for these measures acknowledges there is no probability of an invasion by France. While speaking of the restoration of our vessel, I omitted to add, that it is said that our government contemplate restoring the Frenchmen taken originally in the same vessel, and kept at Lancaster as prisoners. This has furnished the idea of calling her a *cartel* vessel, and pretending that she came as such for an exchange of prisoners, which is false. She was delivered free and without condition, but it does not suit to let any new evidence appear of the desire of conciliation in France.

I believe it is now certain that the commissioners on the British debts can proceed together no longer. I am told that our two have prepared a long report, which will perhaps be made public. The result will be, that we must recur again to negotiation, to settle the principles of the British claims. You know that Congress rises on the 3d of March, and that if you have acceded to my prayers, I should hear from you at least a week before our rising. Accept my affectionate salutations, and assurances of the sincere esteem with which I am, dear Sir, your friend and servant.

TO JAMES MADISON.

PHILADELPHIA, February 19, 1799.

DEAR SIR,—I wrote you last on the 11th; yesterday the bill for the *eventual* army of thirty regiments (thirty thousand) and seventy-five thousand volunteers, passed the Senate. By an amendment, the President was authorized to use the volunteers for every purpose for which he can use militia, so that the militia are rendered completely useless. The friends of the bill acknowledged that the volunteers are a *militia*, and agreed that they might properly be called the "Presidential militia." They are not to go out of their State without their own consent. Consequently, all service out of the State is thrown on the constitutional militia, the Presidential militia being exempted from doing duty with them. Leblane, an agent from Desfourneaux of Guadaloupe, came in the Retaliation. You will see in the

papers Desfourneaux's letter to the President, which will correct some immaterial circumstances of the statement in my last. You will see the truth of the main fact, that the vessel and crew were liberated without condition. Notwithstanding this, they have obliged Leblanc to receive the French prisoners, and to admit, in the papers, the terms, "in *exchange* for *prisoners* taken from us," he denying at the same time that they consider them as *prisoners*, or had any idea of *exchange*. The object of his mission was not at all relative to that; but they choose to keep up the idea of a cartel, to prevent the transaction from being used as evidence of the sincerity of the French government towards a reconciliation. He came to assure us of a discontinuance of all irregularities in French privateers from Guadaloupe. He has been received very cavalierly. In the meantime, a *consul general* is named to St. Domingo; who may be considered as our minister to Toussaint.

But the event of events was announced to the Senate yesterday. It is this: it seems that soon after Gerry's departure, overtures must have been made by Pichon, French charge d'affaires at the Hague, to Murray. They were so soon matured, that on the 28th of September, 1798, Talleyrand writes to Pichon, approving what had been done, and particularly of his having assured Murray that *whatever* Plenipotentiary the government of the United States should send to France to end our differences would undoubtedly be received with the respect due to the representative of a *free, independent and powerful nation*; declaring that the President's instructions to his Envoys at Paris, if they contain the whole of the American government's intentions, announce dispositions which have been always entertained by the Directory; and desiring him to communicate these expressions to Murray, in order to convince him of the sincerity of the French government, and to prevail on him to transmit them to his government. This is dated September the 28th, and may have been received by Pichon October the 1st; and nearly five months elapse before it is communicated. Yesterday, the President nominated to the Senate William Vans Murray Minister Plenipotentiary to the French republic, and added, that he shall be instructed not to go to France, without direct and unequivocal assurances from the French government that he shall be received in character, enjoy the due privileges, and a minister of equal rank, title and power, be appointed to discuss and conclude our controversy by a new treaty. This had evidently

been kept secret from the federalists of both Houses, as appeared by their dismay. The Senate have passed over this day without taking it up. It is said they are graveled and divided; some are for opposing, others do not know what to do. But in the meantime, they have been permitted to go on with all the measures of war and patronage, and when the close of the session is at hand it is made known. However, it silences all arguments against the sincerity of France, and renders desperate every further effort towards war. I enclose you a paper with more particulars. Be so good as to keep it till you see me, and then return it, as it is the copy of one I sent to another person, and is the only copy I have. Since I began my letter I have received yours of February the 7th and 8th, with its enclosures; that referred to my discretion is precious, and shall be used accordingly.

Affectionate salutations to Mrs. Madison and yourself, and adieu.

TO E. PENDLETON.

PHILADELPHIA, February 19, 1799.

DEAR SIR,—Since my last, which was of the 14th, a Monsieur Leblane, agent from Desfourneaux, has come to town. He came in the Retaliation, and a letter of Desfourneaux, of which he was the bearer, now enclosed, will correct some circumstances in my statement relative to that vessel which were not very material. It shows, at the same time, that she was liberated without condition; still it is said (but I have no particular authority for it) that he has been obliged to receive French prisoners here, and to admit in the paper that the terms in exchange for *prisoners taken* from us, should be used, he declaring, at the same time, that they had never considered ours as prisoners, nor had an idea of *exchange*. The object of his mission was to assure the government against any future irregularities by privateers from Guadaloupe, and to open a friendly intercourse. He has been treated very cavalierly. I enclose you the President's message to the House of Representatives relative to the suspension of the *Arret*, on which our retaliation bill is founded.

A great event was presented yesterday. The President communicated a letter from Talleyrand to Pichon, French chargé des affaires at the Hague, approving of some overtures which had passed between him and Mr. Murray, and particularly of his having undertaken to assure Murray that *whatever* Plenipotentiary we might send to France to negotiate differences, should be received with the respect due to the representative of a *free independent and powerful nation*, and directing him to *prevail on Murray* to transmit these assurances to his government. In consequence of this, a nomination of Mr. Murray, minister Plenipotentiary to the French republic, was yesterday sent to the Senate. This renders their efforts for war desperate, and silences all further denials of the sincerity of the French government. I send you extracts from these proceedings for your more special information. I shall leave this the 2d day of March. Accept my affectionate salutations. Adieu.

P. S. I should have mentioned that a nomination is before the Senate of a *consul general* to St. Domingo. It is understood that he will present himself to Toussaint, and is, in fact, our minister to him.

( This is upon the margin of this letter.)

The face they will put on this business is, that they have frightened France into a respectful treatment. Whereas, in truth, France has been sensible that her measures to prevent the scandalous spectacle of war between the two republics, from the known impossibility of our injuring her, would not be imputed to her as a humiliation.

TO GENERAL KOSCIUSKO.

PHILADELPHIA, February 21, 1799.

DEAR FRIEND, * * * * *

On politics I must write sparingly, lest it should fall into the hands of persons who do not love either you or me. The wonderful irritation produced in the minds of our citizens by the X. Y. Z. story, has in a great

measure subsided. They begin to suspect and to see it coolly in its true light. Mr. Gerry's communications, with other information, prove to them that France is sincere in her wishes for reconciliation; and a recent proposition from that country, through Mr. Murray, puts the matter out of doubt. What course the government will pursue, I know not. But if we are left in peace, I have no doubt the wonderful turn in the public opinion now manifestly taking place and rapidly increasing, will, in the course of this summer, become so universal and so weighty, that friendship abroad and freedom at home will be firmly established by the influence and constitutional powers of the people at large. If we are forced into war, we must give up political differences of opinion, and unite as one man to defend our country. But whether at the close of such a war, we should be as free as we are now, God knows. In fine, if war takes place, republicanism has everything to fear; if peace, be assured that your forebodings and my alarms will prove vain; and that the spirit of our citizens now rising as rapidly as it was then running crazy, and rising with a strength and majesty which show the loveliness of freedom, will make this government in practice, what it is in principle, a model for the protection of man in a state of *freedom* and *order*. May heaven have in store for your country a restoration of these blessings, and you be destined as the instrument it will use for that purpose. But if this be forbidden by fate, I hope we shall be able to preserve here an asylum where your love of liberty and disinterested patriotism will be forever protected and honored, and where you will find, in the hearts of the American people, a good portion of that esteem and affection which glow in the bosom of the friend who writes this; and who, with sincere prayers for your health, happiness and success, and cordial salutations, bids you, for this time, adieu.

TO CHANCELLOR LIVINGSTON.

PHILADELPHIA, February 23, 1799.

DEAR SIR,—I have received with great pleasure your favor on the subject of the steam engine. Though deterred by the complexity of that hitherto known, from making myself minutely acquainted with it, yet I am

sufficiently acquainted with it to be sensible of the superior simplicity of yours, and its superior economy. I particularly thank you for the permission to communicate it to the Philosophical Society; and though there will not be another session before I leave town, yet I have taken care, by putting it into the hands of one of the Vice Presidents to-day, to have it presented at the next meeting. I lament the not receiving it a fortnight sooner, that it might have been inserted in a volume now closed, and to be published in a few days, before it would be possible for this engraving to be ready. There is one object to which I have often wished a steam engine could be adopted. You know how desirable it is both in town and country to be able to have large reservoirs of water on the top of our houses, not only for use (by pipes) in the apartments, but as a resource against fire. This last is most especially a desideratum in the country. We might indeed have water carried from time to time in buckets to cisterns on the top of the house, but this is troublesome, and therefore we never do it,—consequently are without resource when a fire happens. Could any agent be employed which would be little or no additional expense or trouble except the first purchase, it would be done. Every family has such an agent, its kitchen fire. It is small indeed, but if its small but constant action could be accumulated so as to give a stroke from time to time which might throw ever so small a quantity of water from the bottom of a well to the top of the house (say one hundred feet), it would furnish more than would waste by evaporation, or be used by the family. I know nobody who must better know the value of such a machine than yourself, nor more equal to the invention of it, and especially with your familiarity with the subject. I have imagined that the iron back of the chimney might be a cistern for holding the water, which should supply steam and would be constantly kept in a boiling state by the ordinary fire. I wish the subject may appear as interesting to you as it does to me, it would then engage your attention, and we might hope this desideratum would be supplied.

A want of confidence in the post office deters me from writing to my friends on subject of politics. Indeed I am tired of writing Jeremiads on that subject. What person, who remembers the times and tempers we have seen, would have believed that within so short a period, not only the jealous spirit of liberty which shaped every operation of our revolution, but even the common principles of English whigism would be scouted, and the tory

principle of passive obedience under the new-fangled names of *confidence* and *responsibility*, become entirely triumphant? That the tories, whom in mercy we did not crumble to dust and ashes, could so have entwined us in their scorpion tails, that we cannot now move hand or foot. But the spell is dissolving. The public mind is recovering from the delirium into which it had been thrown, and we may still believe with security that the great body of the American people must for ages yet be substantially republican. You have heard of the nomination of Mr. Murray. Not being in the secret of this juggle, I am not yet able to say how it is to be played off. Respectful and affectionate salutations from, dear Sir, your sincere friend and servant.

TO JAMES MADISON.

PHILADELPHIA, February 26, 1799.

DEAR SIR,—My last to you was of the 19th; it acknowledged yours of the 8th. In mine, I informed you of the nomination of Murray. There is evidence that the letter of Talleyrand was known to one of the Secretaries, therefore probably to all; the nomination, however, is declared by one of them to have been kept secret from them all. He added, that he was glad of it, as, had they been consulted, the advice would have been against making the nomination. To the rest of the party, however, the whole was a secret till the nomination was announced. Never did a party show a stronger mortification, and consequently, that war had been their object. Dana declared in debate (as I have from those who were present,) that we had done everything which might provoke France to war; that we had given her insults which no nation ought to have borne; and yet she would not declare war. The conjecture as to the executive is, that they received Talleyrand's letter before or about the meeting of Congress; that not meaning to meet the overture effectually, they kept it secret, and let all the war measures go on; but that just before the separation of the Senate, the President, not thinking he could justify the concealing such an overture, nor indeed that it could be concealed, made a nomination, hoping that his friends in the Senate would take on their own shoulders the odium of rejecting it; but they did not choose it. The Hamiltonians would not, and the others could not, alone. The

whole artillery of the phalanx, therefore, was played secretly on the President, and he was obliged himself to take a step which should parry the overture while it wears the face of acceding to it. (Mark that I state this as conjecture; but founded on workings and indications which have been under our eyes.) Yesterday, therefore, he sent in a nomination of Oliver Ellsworth, Patrick Henry and William Vans Murray, Envoys Extraordinary and Ministers Plenipotentiary to the French Republic, but declaring the two former should not leave this country till they should receive from the French Directory assurances that they should be received with the respect due by the law of nations to their character, &c. This, if not impossible, must at least keep off the day so hateful and so fatal to them, of reconciliation, and leave more time for new projects of provocation. Yesterday witnessed a scandalous scene in the House of Representatives. It was the day for taking up the report of their committee against the alien and sedition laws, &c. They held a caucus and determined that not a word should be spoken on their side, in answer to anything which should be said on the other. Gallatin took up the alien, and Nicholas the sedition law; but after a little while of common silence, they began to enter into loud conversations, laugh, cough, &c., so that for the last hour of these gentlemen's speaking, they must have had the lungs of a vendue master to have been heard. Livingston, however, attempted to speak. But after a few sentences, the Speaker called him to order, and told him what he was saying was not to the question. It was impossible to proceed. The question was taken and carried in favor of the report, fifty-two to forty-eight; the real strength of the two parties is fifty-six to fifty. But two of the latter have not attended this session. I send you the report of their committee. I still expect to leave this on the 1st, and be with you on the 7th of March. But it is possible I may not set out till the 4th, and then shall not be with you till the 10th. Affectionately adieu.

TO BISHOP MADISON.

PHILADELPHIA, February 27, 1799.

DEAR SIR,—Your favor of February 10th came safely to hand. We were for a moment flattered with the hope of a friendly accommodation of our differences with France, by the President's nomination of Mr. Murray our Minister at the Hague to proceed to Paris for that purpose. But our hopes have been entirely dashed by his revoking that and naming Mr. Ellsworth, Mr. Patrick Henry and Murray; the two former not to embark from America till *they* shall receive assurances from the French Government, that they will be received with the respect due to their character by the law of nations; and this too after the French Government had already given assurances that whatever Minister the President should send should be received with the respect due to the representative of a *great, free and independent* nation. The effect of the new nomination is completely to parry the advances made by France towards a reconciliation. A great change is taking place in the public mind in these Middle States, and they are rapidly resuming the Republican ground which they had for a moment relinquished. The tables of Congress are loaded with petitions proving this. Thirteen of the twenty-two counties of this State have already petitioned against the proceedings of the late Congress. Many also from New York and New Jersey, and before the summer is over, these three States will be in unison with the Southern and Western. I take the liberty of putting under your cover a letter for a young gentleman known to you, and to whom I know not how otherwise to direct it. I am, with great esteem, dear Sir, your friend and servant.

TO T. LOMAX.

MONTICELLO, March 12, 1799.

DEAR SIR,—Your welcome favor of last month came to my hands in Philadelphia. So long a time has elapsed since we have been separated by events, that it was like a letter from the dead, and recalled to my memory very dear recollections. My subsequent journey through life has offered nothing which, in comparison with those, is not cheerless and dreary. It is a rich comfort sometimes to look back on them.

I take the liberty of enclosing a letter to Mr. Baylor, open, because I solicit your perusal of it. It will, at the same time, furnish the apology for my not answering you from Philadelphia. You ask for any communication I may be able to make, which may administer comfort to you. I can give that which is solid. The spirit of 1776 is not dead. It has only been slumbering. The body of the American people is substantially republican. But their virtuous feelings have been played on by some fact with more fiction; they have been the dupes of artful manœuvres, and made for a moment to be willing instruments in forging chains for themselves. But time and truth have dissipated the delusion, and opened their eyes. They see now that France has sincerely wished peace, and their seducers have wished war, as well for the loaves and fishes which arise out of war expenses, as for the chance of changing the Constitution, while the people should have time to contemplate nothing but the levies of men and money. Pennsylvania, Jersey and New York are coming majestically round to the true principles. In Pennsylvania, thirteen out of twenty-two counties had already petitioned on the alien and sedition laws. Jersey and New York had begun the same movement, and though the rising of Congress stops that channel for the expression of their sentiment, the sentiment is going on rapidly, and before their next meeting those three States will be solidly embodied in sentiment with the six southern and western ones. The atrocious proceedings of France towards this country, had well nigh destroyed its liberties. The Anglomen and monocrats had so artfully confounded the cause of France with that of freedom, that both went down in the same scale. I sincerely join you in abjuring all political connection with every foreign power; and though I cordially wish well to the progress of liberty in all nations, and would forever give it the weight of our countenance, yet they are not to be touched without contamination from their other bad principles. Commerce with all nations, alliance with none, should be our motto.

Accept assurances of the constant and unaltered affection of, dear Sir, your sincere friend and servant.

TO EDMUND RANDOLPH.

MONTICELLO, August 18, 1799.

DEAR SIR,—I received only two days ago your favor of the 12th, and as it was on the eve of the return of our post, it was not possible to make so prompt a despatch of the answer. Of all the doctrines which have ever been broached by the federal government, the novel one, of the common law being in force and cognizable as an existing law in their courts, is to me the most formidable. All their other assumptions of un-given powers have been in the detail. The bank law, the treaty doctrine, the sedition act, alien act, the undertaking to change the State laws of evidence in the State courts by certain parts of the stamp act, &c., &c., have been solitary, un consequential, timid things, in comparison with the audacious, barefaced and sweeping pretension to a system of law for the United States, without the adoption of their Legislature, and so infinitively beyond their power to adopt. If this assumption be yielded to, the State courts may be shut up, as there will then be nothing to hinder citizens of the same State suing each other in the federal courts in every case, as on a bond for instance, because the common law obliges payment of it, and the common law they say is their law. I am happy you have taken up the subject; and I have carefully perused and considered the notes you enclosed, and find but a single paragraph which I do not approve. It is that wherein (page two) you say, that laws being emanations from the legislative department, and, when once enacted, continuing in force from a presumption that their will so continues, that that presumption fails and the laws of course fall, on the destruction of that legislative department. I do not think this is the true bottom on which laws and the administering them rest. The whole body of the nation is the sovereign legislative, judiciary and executive power for itself. The inconvenience of meeting to exercise these powers in person, and their inaptitude to exercise them, induce them to appoint special organs to declare their legislative will, to judge and to execute it. It is the will of the nation which makes the law obligatory; it is their will which creates or annihilates the organ which is to declare and announce it. They may do it by a single person, as an Emperor of Russia, (constituting his declarations evidence of their will,) or by a few persons, as the aristocracy of Venice, or by a complication of councils, as in our former regal government, or our present republican one. The law being law because it is the will of the nation, is not changed by their changing the organ through which they choose to announce their future will; no more than the acts I have done by

one attorney lose their obligation by my changing or discontinuing that attorney. This doctrine has been, in a certain degree, sanctioned by the federal executive. For it is precisely that on which the continuance of obligation from our treaty with France was established, and the doctrine was particularly developed in a letter to Gouverneur Morris, written with the approbation of President Washington and his cabinet. Mercer once prevailed on the Virginia Assembly to declare a different doctrine in some resolutions. These met universal disapprobation in this, as well as the other States, and if I mistake not, a subsequent Assembly did something to do away the authority of their former unguarded resolutions. In this case, as in all others, the true principle will be quite as effectual to establish the just deductions. Before the revolution, the nation of Virginia had, by the organs they then thought proper to constitute, established a system of laws, which they divided into three denominations of 1, common law; 2, statute law; 3, chancery: or if you please, into two only, of 1, common law; 2, chancery. When, by the Declaration of Independence, they chose to abolish their former organs of declaring their will, the acts of will already formally and constitutionally declared, remained untouched. For the nation was not dissolved, was not annihilated; its will, therefore, remained in full vigor; and on the establishing the new organs, first of a convention, and afterwards a more complicated legislature, the old acts of national will continued in force, until the nation should, by its new organs, declare its will changed. The common law, therefore, which was not in force when we landed here, nor till we had formed ourselves into a nation, and had manifested by the organs we constituted that the common law was to be our law, continued to be our law, because the nation continued in being, and because though it changed the organs for the future declarations of its will, yet it did not change its former declarations that the common law was its law. Apply these principles to the present case. Before the revolution there existed no such nation as the United States; they then first associated as a nation, but for special purposes only. They had all their laws to make, as Virginia had on her first establishment as a nation. But they did not, as Virginia had done, proceed to adopt a whole system of laws ready made to their hand. As their association as a nation was only for special purposes, to wit, for the management of their concerns with one another and with foreign nations, and the States composing the association chose to give it powers for those purposes and no others, they could not adopt any general system, because it

would have embraced objects on which this association had no right to form or declare a will. It was not the organ for declaring a national will in these cases. In the cases confided to them, they were free to declare the will of the nation, the law; but till it was declared there could be no law. So that the common law did not become, *ipso facto*, law on the new association; it could only become so by a positive adoption, and so far only as they were authorized to adopt.

I think it will be of great importance, when you come to the proper part, to portray at full length the consequences of this new doctrine, that the common law is the law of the United States, and that their courts have, of course, jurisdiction co-extensive with that law, that is to say, general over all cases and persons. But, great heavens! Who could have conceived in 1789, that within ten years we should have to combat such windmills. Adieu. Yours affectionately.

TO WILSON C. NICHOLAS.

MONTICELLO, August 26, 1799.

DEAR SIR,—I am deeply impressed with the importance of Virginia and Kentucky pursuing the same tract at the ensuing sessions of their Legislatures. Your going thither furnishes a valuable opportunity of effecting it, and as Mr. Madison will be at our Assembly as well as yourself, I thought it important to procure a meeting between you. I therefore wrote to propose to him to ride to this place on Saturday or Sunday next; supposing that both he and yourself might perhaps have some matter of business at our court, which might render it less inconvenient for you to be here together on Sunday. I took for granted that you would not set off to Kentucky pointedly at the time you first proposed, and hope and strongly urge your favoring us with a visit at the time proposed. Mrs. Madison, who was the bearer of my letter, assured me I might count on Mr. M.'s being here. Not that I mentioned to her the object of my request, or that I should propose the same to you, because, I presume, the less said of such a meeting the better. I shall take care that Mrs. Monroe shall dine with us. In hopes of seeing you, I bid you affectionately adieu.

TO WILSON C. NICHOLAS.

MONTICELLO, September 5, 1799.

DEAR SIR,—Yours of August 30th came duly to hand. It was with great regret we gave up the hope of seeing you here, but could not but consider the obstacle as legitimate. I had written to Mr. Madison, as I had before informed you, and had stated to him some general ideas for consideration and consultation when we should meet. I thought something essentially necessary to be said, in order to avoid the inference of acquiescence; that a resolution or declaration should be passed, 1, answering the reasonings of such of the States as have ventured into the field of reason, and that of the committee of Congress, taking some notice too of those States who have either not answered at all, or answered without reasoning. 2. Making firm protestation against the precedent and principle, and *reserving* the right to make this palpable violation of the federal compact the ground of doing in future whatever we might now rightfully do, should repetitions of these and other violations of the compact render it expedient. 3. Expressing in affectionate and conciliatory language our warm attachment to union with our sister States, and to the instrument and principles by which we are united; that we are willing to sacrifice to this everything but the rights of self-government in those important points which we have never yielded, and in which alone we see liberty, safety, and happiness; that not at all disposed to make every measure of error or of wrong, a cause of scission, we are willing to look on with indulgence, and to wait with patience till those passions and delusions shall have passed over, which the federal government have artfully excited to cover its own abuses and conceal its designs, fully confident that the good sense of the American people, and their attachment to those very rights which we are now vindicating, will, before it shall be too late, rally with us round the true principles of our federal compact. This was only meant to give a general idea of the complexion and topics of such an instrument. Mr. M. who came, as had been proposed, does not concur in the *reservation* proposed above; and from this I recede readily, not only in deference to his judgment, but because, as we should never think of separation but for repeated and enormous violations, so these, when they occur, will be cause enough of themselves.

To these topics, however, should be added animadversions on the new pretensions to a *common law* of the United States. I proposed to Mr. M. to write to you, but he observed that you knew his sentiments so perfectly from a former conference, that it was unnecessary. As to the preparing anything, I must decline it, to avoid suspicions (which were pretty strong in some quarters on the late occasion), and because there remains still (after their late loss) a mass of talents in Kentucky sufficient for every purpose. The only object of the present communication is to procure a concert in the general plan of action, as it is extremely desirable that Virginia and Kentucky should pursue the same track on this occasion. Besides, how could you better while away the road from hence to Kentucky, than in meditating this very subject, and preparing something yourself, than whom nobody will do it better. The loss of your brother, and the visit of the apostle * * * * * to Kentucky, excite anxiety.^[11] However, we doubt not that his poisons will be effectually counterworked. Wishing you a pleasant journey and happy return, I am with great and sincere esteem, dear Sir, your affectionate friend and servant.

TO JAMES MADISON.

MONTICELLO, November 22, 1799.

DEAR SIR,—I have never answered your letter by Mr. Polk, because I expected to have paid you a visit. This has been prevented by various causes, till yesterday. That being the day fixed for the departure of my daughter Eppes, my horses were ready for me to have set out to see you: an accident postponed her departure to this day, and my visit also. But Colonel Monroe dined with me yesterday, and on my asking his commands for you, he entered into the subject of the visit and dissuaded it entirely, founding the motives on the *espionage* of the little * * * * * in * * * * * who would make it a subject of some political slander, and perhaps of some political injury. I have yielded to his representations, and therefore shall not have the pleasure of seeing you till my return from Philadelphia. I regret it sincerely, not only on motives of attention but of affairs. Some late circumstances changing considerably the aspect of our situation, must affect the line of

conduct to be observed. I regret it the more too, because from the commencement of the ensuing session, I shall trust the post offices with nothing confidential, persuaded that during the ensuing twelve months they will lend their inquisitorial aid to furnish matter for newspapers. I shall send you as usual printed communications, without saying anything confidential on them. You will of course understand the cause.

In your new station^[12] let me recommend to you the jury system: as also the restoration of juries in the court of chancery, which a law not long since repealed, because "the trial by jury is troublesome and expensive." If the reason be good, they should abolish it at common law also. If Peter Carr is elected in the room of * * * * * he will undertake the proposing this business, and only need your support. If he is not elected, I hope you will get it done otherwise. My best respects to Mrs. Madison, and affectionate salutations to yourself.

TO COLONEL MONROE.

PHILADELPHIA, January 12, 1800.

DEAR SIR,—Yours of January the 4th was received last night. I had then no opportunity of communicating to you confidentially information of the state of opinions here; but I learn to-night that two Mr. Randolphs will set out to-morrow morning for Richmond. If I can get this into their hands I shall send it, otherwise it may wait longer. On the subject of an election by a general ticket, or by districts, most persons here seem to have made up their minds. All agree that an election by districts would be best, if it could be general; but while ten States choose either by their legislatures or by a general ticket, it is folly and worse than folly for the other six not to do it. In these ten States the minority is certainly unrepresented; and their majorities not only have the weight of their whole State in their scale, but have the benefit of so much of our minorities as can succeed at a district election. This is, in fact, ensuring to our minorities the appointment of the government. To state it in another form; it is merely a question whether we will divide the United States into sixteen or one hundred and thirty-seven districts. The latter being more chequered, and representing the people in smaller sections, would be

more likely to be an exact representation of their diversified sentiments. But a representation of a part by great, and part by small sections, would give a result very different from what would be the sentiment of the whole people of the United States, were they assembled together. I have to-day had a conversation with * * * * * who has taken a flying trip here from New York. He says, they have now really a majority in the House of Representatives, but for want of some skilful person to rally round, they are disjointed, and will lose every question. In the Senate there is a majority of eight or nine against us. But in the new election which is to come on in April, three or four in the Senate will be changed in our favor; and in the House of Representatives the county elections will still be better than the last; but still all will depend on the city election, which is of twelve members. At present there would be no doubt of our carrying our ticket there; nor does there seem to be time for any events arising to change that disposition. There is therefore the best prospect possible of a great and decided majority on a joint vote of the two Houses. They are so confident of this, that the republican party there will not consent to elect either by districts or a general ticket. They choose to do it by their legislature. I am told the republicans of New Jersey are equally confident, and equally anxious against an election either by districts or a general ticket. The contest in this State will end in a separation of the present legislature without passing any election law, (and their former one has expired), and in depending on the new one, which will be elected October the 14th, in which the republican majority will be more decided in the Representatives, and instead of a majority of five against us in the Senate, will be of one for us. They will, from the necessity of the case, choose the electors themselves. Perhaps it will be thought I ought in delicacy to be silent on this subject. But you, who know me, know that my private gratifications would be most indulged by that issue, which should leave me most at home. If anything supersedes this propensity, it is merely the desire to see this government brought back to its republican principles. Consider this as written to Mr. Madison as much as yourself; and communicate it, if you think it will do any good, to those possessing our joint confidence, or any others where it may be useful and safe. Health and affectionate salutations.

TO MR. PARKER.

SENATE CHAMBER, January 13th, 1800.

SIR,—In answer to the several inquiries in your letter of this day, I have the honor to inform you that the marble statue of General Washington in the Capitol in Richmond, with its pedestal, cost in Paris 24,000 livres or 1,000 Louis d'ors. It is of the size of life, and made by Houdon, reckoned one of the first statuaries in Europe. Besides this, we paid Houdon's expenses coming to and returning from Virginia to take the General's likeness, which as well as I recollect were about 500 guineas, and the transportation of the statue to Virginia with a workman to put it up, the amount of which I never heard.

The price of an equestrian statue of the usual size, which is considerably above that of life, whether in marble or bronze, costs in Paris 40,000 Louis d'ors from the best hand. Houdon asked that price for one that had been thought of for General Washington; but I do not recollect whether this included the pedestal of marble, which is a considerable piece of work. These were the prices in 1785 in Paris. I believe that in Rome or Florence, the same thing may be had from the best artists for about two-thirds of the above prices, executed in the marble of Carrara, the best now known. But unless Ciracchi's busts of General Washington are, any of them, there, it would be necessary to send there one of Houdon's figures in plaster, which, packed properly for safe transportation, would probably cost 20 or 30 guineas. I do not know that any of Carracchi's busts of the General are to be had anywhere. I am, with great consideration Sir, your very humble servant.

TO MR. MORGAN BROWN, PALMYRA.

PHILADELPHIA, January 16, 1800.

SIR,—Your letter of October 1, has been duly received, and I have to make you my acknowledgments for the offer of the two Indian busts found on the Cumberland, and in your possession. Such monuments of the state of the arts among the Indians, are too singular not to be highly esteemed, and I

shall preserve them as such with great care. They will furnish new and strong proofs how far the patience and perseverance of the Indian artist supplied the very limited means of execution which he possessed. Accept therefore, I pray you, my sincere thanks for your kind offer, and assurances of the gratification these curiosities will yield here. As such objects cannot be conveyed without injury but by water, I will ask the favor of you to forward them by some vessel going down the river to Orleans, to the address of Mr. Daniel Clarke, junior, of that place, to whom I wrote to have them forwarded round by sea, and to answer for me the expenses of transportation, package, &c. I am, with many acknowledgments for this mark of your attention, Sir, your most obedient humble servant.

TO DOCTOR PRIESTLY.

PHILADELPHIA, January 18, 1800.

DEAR SIR,—I have to thank you for the pamphlets you were so kind as to send me. You will know what I thought of them by my having before sent a dozen sets to Virginia to distribute among my friends. Yet I thank you not the less for these, which I value the more as they came from yourself. The stock of them which Campbell had was, I believe, exhausted the first or second day of advertising them. The papers of political arithmetic, both in yours and Mr. Cooper's pamphlets, are the most precious gifts that can be made to us; for we are running navigation mad, and commerce mad, and navy mad, which is worst of all. How desirable is it that you could pursue that subject for us. From the Porcupines of our country you will receive no thanks; but the great mass of our nation will edify and thank you. How deeply have I been chagrined and mortified at the persecutions which fanaticism and monarchy have excited against you, even here! At first I believed it was merely a continuance of the English persecution. But I observe that on the demise of Porcupine and division of his inheritance between Fenno and Brown, the latter (though succeeding only to the *federal* portion of Porcupinism, not the *Anglican*, which is Fenno's part) serves up for the palate of his sect, dishes of abuse against you as high seasoned as Porcupine's were. You have sinned against church and king, and can

therefore never be forgiven. How sincerely have I regretted that your friend, before he fixed his choice of a position, did not visit the valleys on each side of the ridge in Virginia, as Mr. Madison and myself so much wished. You would have found there equal soil, the finest climate and most healthy one on the earth, the homage of universal reverence and love, and the power of the country spread over you as a shield. But since you would not make it your country by adoption, you must now do it by your good offices. I have one to propose to you which will produce their good, and gratitude to you for ages, and in the way to which you have devoted a long life, that of spreading light among men.

We have in that State a College (William and Mary) just well enough endowed to draw out the miserable existence to which a miserable constitution has doomed it. It is moreover eccentric in its position, exposed to all bilious diseases as all the lower country is, and therefore abandoned by the public care, as that part of the country itself is in a considerable degree by its inhabitants. We wish to establish in the upper country, and more centrally for the State, an University on a plan so broad and liberal and *modern*, as to be worth patronizing with the public support, and be a temptation to the youth of other States to come and drink of the cup of knowledge and fraternize with us. The first step is to obtain a good plan; that is, a judicious selection of the sciences, and a practicable grouping of some of them together, and ramifying of others, so as to adopt the professorships to our uses and our means. In an institution meant chiefly for use, some branches of science, formerly esteemed, may be now omitted; so may others now valued in Europe, but useless to us for ages to come. As an example of the former, the oriental learning, and of the latter, almost the whole of the institution proposed to Congress by the Secretary of War's report of the 5th inst. Now there is no one to whom this subject is so familiar as yourself. There is no one in the world who, equally with yourself, unites this full possession of the subject with such a knowledge of the state of our existence, as enables you to fit the garment to him who is to *pay* for it and to *wear* it. To you therefore we address our solicitations, and to lessen to you as much as possible the ambiguities of our object, I will venture even to sketch the sciences which seem useful and practicable for us, as they occur to me while holding my pen. Botany, chemistry, zoology, anatomy, surgery, medicine, natural philosophy, agriculture, mathematics,

astronomy, geography, politics, commerce, history, ethics, law, arts, fine arts. This list is imperfect because I make it hastily, and because I am unequal to the subject. It is evident that some of these articles are too much for one professor and must therefore be ramified; others may be ascribed in groups to a single professor. This is the difficult part of the work, and requires a head perfectly knowing the extent of each branch, and the limits within which it may be circumscribed, so as to bring the whole within the powers of the fewest professors possible, and consequently within the degree of expense practicable for us. We should propose that the professors follow no other calling, so that their whole time may be given to their academical functions; and we should propose to draw from Europe the first characters in science, by considerable temptations, which would not need to be repeated after the first set should have prepared fit successors and given reputation to the institution. From some splendid characters I have received offers most perfectly reasonable and practicable.

I do not propose to give you all this trouble merely of my own head, that would be arrogance. It has been the subject of consultation among the ablest and highest characters of our State, who only wait for a plan to make a joint and I hope a successful effort to get the thing carried into effect. They will receive your ideas with the greatest deference and thankfulness. We shall be here certainly for two months to come; but should you not have leisure to think of it before Congress adjourns, it will come safely to me afterwards by post, the nearest post office being Milton.

Will not the arrival of Dupont tempt you to make a visit to this quarter? I have no doubt the alarmists are already whetting their shafts for him also, but their gas is nearly run out, and the day I believe is approaching when we shall be as free to pursue what is true wisdom as the effects of their follies will permit; for some of them we shall be forced to wade through because we are emerged in them.

Wishing you that pure happiness which your pursuits and circumstances offer, and which I am sure you are too wise to suffer a diminution of by the pigmy assaults made on you, and with every sentiment of affectionate esteem and respect, I am, dear Sir, your most humble, and most obedient servant.

TO HENRY INNIS, ESQ.

PHILADELPHIA, January 23, 1800.

DEAR SIR,—Your favor of December 6th I received here on the 30th of same month, and have to thank you for the papers it contained. They serve to prove that if Cressap was not of the party of Logan's murderers, yet no injury was done his character by believing it. I shall, while here this winter, publish such material testimony on the subject as I have received; which by the kindness of my friends will be amply sufficient. It will appear that the deed was generally imputed to Cressap by both whites and Indians, that his character was justly stained with their blood, perhaps that he ordered this transaction, but that he was not himself present at the time. I shall consequently make a proper change in the text of the Notes on Virginia, to be adopted, if any future edition of that work should be printed.

With respect to the judiciary district to be established for the Western States, nothing can be wilder than to annex to them any State on the Eastern waters. I do not know what may be the dispositions of the House of Representatives on that subject, but I should hope from what I recollect of those manifested by the Senate on the same subject at the former session, that they may be induced to set off the Western country in a district. And I expect that the reason of the thing must bring both Houses into the measure.

The Mississippi Territory has petitioned to be placed at once in what is called the second stage of government. Surely, such a government as the first form prescribed for the Territories is a despotic oligarchy without one rational object.

I had addressed the enclosed letters to the care of the postmaster at Louisville; but not knowing him, I have concluded it better to ask the favor of you to avail them of any passage which may offer down the river. I presume the boats stop of course at those places.

We have wonderful rumors here at this time. One that the King of England is dead. As this would ensure a general peace, I do not know that it would be any misfortune to humanity. The other is that Bonaparte, Sieyes and Ducos have usurped the French government. This is *West India* news, and shows that after killing Bonaparte a thousand times, they have still a variety

of parts to be acted by him. Were it really true——. While I was writing the last word a gentleman enters my room and brings a confirmation that something has happened at Paris. This is arrived at New York by a ship from Cork. The particulars differ from the West India account. We are therefore only to believe that a revolution of some kind has taken place, and that Bonaparte is at the head of it, but what are the particulars and what the object, we must wait with patience to learn. In the meantime we may speak hypothetically. If Bonaparte declares for Royalty, either in his own person, or of Louis XVIII., he has but a few days to live. In a nation of so much enthusiasm, there must be a million of Brutuses who will devote themselves to death to destroy him. But, without much faith in Bonaparte's heart, I have so much in his head, as to indulge another train of reflection. The republican world has been long looking with anxiety on the two experiments going on of a *single* elective Executive here, and a plurality there. Opinions have been considerably divided on the event in both countries. The greater opinion there has seemed to be heretofore in favor of a plurality, here it has been very generally, though not universally, in favor of a single elective Executive. After eight or nine years experience of perpetual broils and factions in their Directory, a standing division (under all changes) of three against two, which results in a government by a single opinion, it is possible they may think the experiment decided in favor of our form, and that Bonaparte may be for a single executive, limited in time and power, and flatter himself with the election to that office; and that to this change the nation may rally itself; perhaps it is the only one to which all parties could be rallied. In every case it is to be feared and deplored that, that nation has yet to wade through half a century of disorder and convulsions. These, however, are conjectures only, which you will take as such, and accept assurances of the great esteem and attachment of, dear Sir, your friend and servant.

TO DR. PRIESTLY.

PHILADELPHIA, January 27, 1800.

DEAR SIR,—In my last letter of the 18th, I omitted to say any thing of the languages as part of our proposed University. It was not that I think, as some do, that they are useless. I am of a very different opinion. I do not think them very essential to the obtaining eminent degrees of science; but I think them very useful towards it. I suppose there is a portion of life during which our faculties are ripe enough for this, and for nothing more useful. I think the Greeks and Romans have left us the present models which exist of fine composition, whether we examine them as works of reason, or of style and fancy; and to them we probably owe these characteristics of modern composition. I know of no composition of any other ancient people, which merits the least regard as a model for its matter or style. To all this I add, that to read the Latin and Greek authors in their original, is a sublime luxury; and I deem luxury in science to be at least as justifiable as in architecture, painting, gardening, or the other arts. I enjoy Homer in his own language infinitely beyond Pope's translation of him, and both beyond the dull narrative of the same events by Dares Phrygius; and it is an innocent enjoyment. I thank on my knees, Him who directed my early education, for having put into my possession this rich source of delight; and I would not exchange it for anything which I could then have acquired, and have not since acquired. With this regard for those languages, you will acquit me of meaning to omit them. About twenty years ago, I drew a bill for our legislature, which proposed to lay off every county into hundreds or townships of five or six miles square, in the centre of each of them was to be a free English school; the whole State was further laid off into ten districts, in each of which was to be a college for teaching the languages, geography, surveying, and other useful things of that grade; and then a single University for the sciences. It was received with enthusiasm; but as I had proposed that William and Mary, under an improved form, should be the University, and that was at that time pretty highly Episcopal, the dissenters after awhile began to apprehend some secret design of a preference to that sect. About three years ago they enacted that part of my bill which related to English schools, except that instead of obliging, they left it optional in the court of every county to carry it into execution or not. I think it probable the part of the plan for the middle grade of education, may also be brought forward in due time. In the meanwhile, we are not without a sufficient number of good country schools, where the languages, geography, and the first elements of mathematics, are taught. Having omitted this

information in my former letter, I thought it necessary now to supply it, that you might know on what base your superstructure was to be reared. I have a letter from Mr. Dupont, since his arrival at New York, dated the 20th, in which he says he will be in Philadelphia within about a fortnight from that time; but only on a visit. How much would it delight me if a visit from you at the same time, were to show us two such illustrious foreigners embracing each other in my country, as the asylum for whatever is great and good. Pardon, I pray you, the temporary delirium which has been excited here, but which is fast passing away. The Gothic idea that we are to look backwards instead of forwards for the improvement of the human mind, and to recur to the annals of our ancestors for what is most perfect in government, in religion and in learning, is worthy of those bigots in religion and government, by whom it has been recommended, and whose purposes it would answer. But it is not an idea which this country will endure; and the moment of their showing it is fast ripening; and the signs of it will be their respect for you, and growing detestation of those who have dishonored our country by endeavors to disturb our tranquillity in it. No one has felt this with more sensibility than, my dear Sir, your respectful and affectionate friend and servant.

TO JOHN BRACKENRIDGE.

PHILADELPHIA, January 29, 1800.

DEAR SIR,—Your favor of the 13th has been duly received, as had been that containing the resolutions of your legislature on the subject of the former resolutions. I was glad to see the subject taken up, and done with so much temper, firmness and propriety. From the reason of the thing I cannot but hope that the western country will be laid off into a separate judiciary district. From what I recollect of the dispositions on the same subject at the last session, I should expect that the partiality to a general and uniform system would yield to geographical and physical impracticabilities. I was once a great advocate for introducing into chancery *vivâ voce* testimony, and trial by jury. I am still so as to the latter, but have retired from the former opinion on the information received from both your State and ours,

that it worked inconveniently. I introduced it into the Virginia law, but did not return to the bar, so as to see how it answered. But I do not understand how the *vivâ voce* examination comes to be practiced in the Federal court with you, and not in your own courts; the Federal courts being decided by law to proceed and decide by the laws of the States. * * * * *

TO N. R——.

PHILADELPHIA, February 2, 1800.

My letters to yourself and my dear Martha have been of January 13th, 21st, and 28th. I now enclose a letter lately received for her. You will see in the newspapers all the details we have of the proceedings of Paris. I observe that Lafayette is gone there. When we see him, Volney, Sieyes, Talleyrand, gathering round the new powers, we may conjecture from thence their views and principles. Should it be really true that Bonaparte has usurped the government with an intention of making it a free one, whatever his talents may be for war, we have no proofs that he is skilled in forming governments friendly to the people. Wherever he has meddled we have seen nothing but fragments of the old Roman government stuck into materials with which they can form no cohesion: we see the bigotry of an Italian to the ancient splendor of his country, but nothing which bespeaks a luminous view of the organization of rational government. Perhaps however this may end better than we augur; and it certainly will if his head is equal to true and solid calculations of glory. It is generally hoped here that peace may take place. There was before no union of views between Austria and the members of the triple coalition; and the defeats of Suwarrow appear to have completely destroyed the confidence of Russia in that power, and the failure of the Dutch expedition to have weaned him from the plans of England. The withdrawing his armies we hope is the signal for the entire dissolution of the coalition, and for every one seeking his separate peace. We have great need of this event, that foreign affairs may no longer bear so heavily on ours. We have great need for the ensuing twelve months to be left to ourselves. The enemies of our Constitution are preparing a fearful operation, and the dissensions in this State are too likely to bring things to

the situation they wish, when our Bonaparte, surrounded by his comrades in arms, may step in to give us political salvation in his way. It behoves our citizens to be on their guard, to be firm in their principles, and full of confidence in themselves. We are able to preserve our self-government if we will but think so. I think the return of Lafayette to Paris ensures a reconciliation between them and us. He will so entwist himself with the Envoys that they will not be able to draw off. Mr. C. Pinckney has brought into the Senate a bill for the uniform appointment of juries. A tax on Public stock, Bank stock, &c., is to be proposed. This would bring one hundred and fifty millions into contribution with the lands, and levy a sensible proportion of the expenses of a war on those who are so anxious to engage us in it. Robins' affair is perhaps to be inquired into. However, the majority against these things leave no hope of success. It is most unfortunate that while Virginia and North Carolina were steady, the Middle States drew back; now that these are laying their shoulders to the draught, Virginia and North Carolina baulk; so that never drawing together, the Eastern States, steady and unbroken, draw all to themselves. I was mistaken last week in saying no more failures had happened. New ones have been declaring every day in Baltimore, others here and at New York. The last here have been Nottmagil, Montmollin and Co., and Peter Blight. These sums are enormous. I do not know the firms of the bankrupt houses in Baltimore, but the crush will be incalculable. In the present stagnation of commerce, and particularly that in tobacco, it is difficult to transfer money from hence to Richmond. Government bills on their custom house at Bermuda can from time to time be had. I think it would be best for Mr. Barnes always to keep them bespoke, and to remit in that way your instalments as fast as they are either due or within the discountable period. The 1st is due the middle of March, and so from two months to two months in five equal instalments. I am looking out to see whether such a difference of price here may be had as will warrant our bringing our tobacco from New York here, rather than take eight dollars there. We have been very unfortunate in this whole business. First in our own miscalculations of the effect of the non-intercourse law; and where we had corrected our opinions, that our instructions were from good, but mistaken views, not executed. My constant love to my dear Martha, kisses to her young ones, and affectionate esteem to yourself.

TO SAMUEL ADAMS.

PHILADELPHIA, February 26, 1800.

DEAR SIR,—Mr. Erving delivered me your favor of January 31st, and I thank you for making me acquainted with him. You will always do me a favor in giving me an opportunity of knowing gentlemen as estimable in their principles and talents as I find Mr. Erving to be. I have not yet seen Mr. Winthrop. A letter from you, my respectable friend, after three and twenty years of separation, has given me a pleasure I cannot express. It recalls to my mind the anxious days we then passed in struggling for the cause of mankind. Your principles have been tested in the crucible of time, and have come out pure. You have proved that it was monarchy, and not merely British monarchy, you opposed. A government by representatives, elected by the people at *short* periods, was our object; and our maxim at that day was, "where annual election ends, tyranny begins;" nor have our departures from it been sanctioned by the happiness of their effects. A debt of an hundred millions growing by usurious interest, and an artificial paper phalanx overruling the agricultural mass of our country, with other *et ceteras*, have a portentous aspect.

I fear our friends on the other side of the water, laboring in the same cause, have yet a great deal of crime and misery to wade through. My confidence has been placed in the head, not in the heart of Bonaparte. I hoped he would calculate truly the difference between the fame of a Washington and a Cromwell. Whatever his views may be, he has at least transferred the destinies of the republic from the civil to the military arm. Some will use this as a lesson against the practicability of republican government. I read it as a lesson against the danger of standing armies.

Adieu, my ever respected and venerable friend. May that kind overruling providence which has so long spared you to our country, still foster your remaining years with whatever may make them comfortable to yourself and soothing to your friends. Accept the cordial salutations of your affectionate friend.

TO JAMES MADISON.

PHILADELPHIA, March 4, 1800.

DEAR SIR,—I have never written to you since my arrival here, for reasons which were explained. Yours of December 29th, January the 4th, 9th, 12th, 18th, and February the 14th, have therefore remained unacknowledged. I have at different times enclosed to you such papers as seemed interesting. To-day I forward Bingham's amendment to the election bill formerly enclosed to you, Mr. Pinckney's proposed amendment to the Constitution, and the report of the Ways and Means. Bingham's amendment was lost by the usual majority of two to one. A very different one will be proposed, containing the true sense of the minority, viz. that the two Houses, voting by heads, shall decide such questions as the Constitution authorizes to be raised. This may probably be taken up in the other House under better auspices, for though the federalists have a great majority there, yet they are of a more moderate temper than for some time past. The Senate, however, seem determined to yield to nothing which shall give the other House greater weight in the decision on elections than they have.

Mr. Pinckney's motion has been supported, and is likely to have some votes which were not expected. I rather believe he will withdraw it, and propose the same thing in the form of a bill; it being the opinion of some that such a regulation is not against the present Constitution. In this form it will stand a better chance to pass, as a majority only in both Houses will be necessary. By putting off the building of the seventy-fours and stopping enlistments, the loan will be reduced to three and a half millions. But I think it cannot be obtained. For though no new bankruptcies have happened here for some weeks, or in New York, yet they continue to happen in Baltimore, and the whole commercial race are lying on their oars, and gathering in their affairs, not knowing what new failures may put their resources to the proof. In this state of things they cannot lend money. Some foreigners have taken asylum among us, with a good deal of money, who may perhaps choose that deposit. Robbins' affair has been under agitation for some days. Livingston made an able speech of two and a half hours yesterday. The advocates of the measure feel its pressure heavily; and though they may be able to repel Livingston's motion of censure, I do not believe they can carry Bayard's of approbation. The landing of our Envoys at Lisbon will risk a very

dangerous consequence, insomuch as the news of Truxton's aggression will perhaps arrive at Paris before our commissioners will. Had they gone directly there, they might have been two months ahead of that news. We are entirely without further information from Paris. By letters from Bordeaux, of December the 7th, tobacco was then from twenty-five to twenty-seven dollars per hundred. Yet did Marshall maintain on the non-intercourse bill, that its price at other markets had never been affected by that law. While the navigating and provision States, who are the majority, can keep open all the markets, or at least sufficient ones for their objects, the cries of the tobacco makers, who are the minority, and not at all in favor, will hardly be listened to. It is truly the fable of the monkey pulling the nuts out of the fire with the cat's paw; and it shows that G. Mason's proposition in the Convention was wise, that on laws regulating commerce, two-thirds of the votes should be requisite to pass them. However, it would have been trampled under foot by a triumphant majority.

March 8. My letter has lain by me till now, waiting Mr. Trist's departure. The question has been decided to-day on Livingston's motion respecting Robbins; thirty-five for it, about sixty against it. Livingston, Nicholas, and Gallatin distinguished themselves on one side, and J. Marshall greatly on the other. Still it is believed they will not push Bayard's motion of approbation. We have this day also decided in Senate on the motion for over-hauling the editor of the Aurora. It was carried, as usual, by about two to one; H. Marshall voting of course with them, as did, and frequently does * * * * of * * * * *, who is perfectly at market. It happens that the other party are so strong, that they do not think either him or * * * * * worth buying. As the conveyance is confidential, I can say something on a subject which, to those who do not know my real dispositions respecting it, might seem indelicate. The federalists begin to be very seriously alarmed about their election next fall. Their speeches in private, as well as their public and private demeanor to me, indicate it strongly. This seems to be the prospect. Keep out Pennsylvania, Jersey, and New York, and the rest of the States are about equally divided; and in this estimate it is supposed that North Carolina and Maryland added together are equally divided. Then the event depends on the three middle States before mentioned. As to them, Pennsylvania passes no law for an election at the present session. They confide that the next election gives a decided majority in the two Houses,

when joined together. M'Kean, therefore, intends to call the legislature to meet immediately after the new election, to appoint electors themselves. Still you may be sensible there may arise a difficulty between the two Houses about voting by heads or by Houses. The republican members here from Jersey are entirely confident that their two Houses, joined together, have a majority of republicans; their Council being republican by six or eight votes, and the lower House federal by only one or two; and they have no doubt the approaching election will be in favor of the republicans. They appoint electors by the two Houses voting together. In New York all depends on the success of the city election, which is of twelve members, and of course makes a difference of twenty-four, which is sufficient to make the two Houses, joined together, republican in their vote. Governor Clinton, General Gates, and some other old revolutionary characters, have been put on the republican ticket. Burr, Livingston, &c., entertain no doubt on the event of that election. Still these are the ideas of the republicans only in these three States, and we must make great allowance for their sanguine views. Upon the whole, I consider it as rather more doubtful than the last election, in which I was not deceived in more than a vote or two. If Pennsylvania votes, then either Jersey or New York giving a republican vote, decides the election. If Pennsylvania does not vote, then New York determines the election. In any event, we may say that if the *city* election of New York is in favor of the republican ticket, the issue will be republican; if the federal ticket for the city of New York prevails, the probabilities will be in favor of a federal issue, because it would then require a republican vote both from Jersey and Pennsylvania to preponderate against New York, on which we could not count with any confidence. The election of New York being in April, it becomes an early and interesting object. It is probable the landing of our Envoys in Lisbon will add a month to our session; because all that the eastern men are anxious about, is to get away before the possibility of a treaty's coming in upon us.

Present my respectful salutations to Mrs. Madison, and be assured of my constant and affectionate esteem.

TO COLONEL HAWKINS.

PHILADELPHIA, March 14, 1800.

DEAR SIR,—I had twice before attempted to open a correspondence by writing unto you, but receiving no answer, I took it for granted my letters did not reach you, and consequently that no communication could be found. Yesterday, however, your nephew put into my hands your favor of January 23d, and informs me that a letter sent by post by way of Fort Wilkinson, will be certain of getting safely to you. Still, I expect your long absence from this part of the States, has rendered occurrences here but little interesting to you. Indeed, things have so much changed their aspect, it is like a new world. Those who know us only from 1775 to 1793 can form no better idea of us now than of the inhabitants of the moon; I mean as to political matters. Of these, therefore, I shall not say one word, because nothing I could say, would be any more intelligible to you, if said in English, than if said in Hebrew. On your part, however, you have interesting details to give us. I particularly take great interest in whatever respects the Indians, and the present state of the Creeks, mentioned in your letter, is very interesting. But you must not suppose that your official communications will ever be seen or known out of the offices. Reserve as to all their proceedings is the fundamental maxim of the Executive department. I must, therefore, ask from you one communication to be made to me separately, and I am encouraged to it by that part of your letter which promises me something on the Creek language. I have long believed we can never get any information of the ancient history of the Indians, of their descent and filiation, but from a knowledge and comparative view of their languages. I have, therefore, never failed to avail myself of any opportunity which offered of getting their vocabularies. I have now made up a large collection, and afraid to risk it any longer, lest by some accident it might be lost, I am about to print it. But I still want the great southern languages, Cherokee, Creeks, Choctaw, Chickasaw. For the Cherokee, I have written to another, but for the three others, I have no chance but through yourself. I have indeed an imperfect vocabulary of the Choctaw, but it wants all the words marked in the enclosed vocabulary^[13] with either this mark (*) or this (†). I therefore throw myself on you to procure me the Creek, Choctaw, and Chickasaw; and I enclose you a vocabulary of the particular words I want. You need not take the trouble of having any others taken, because all my other vocabularies are confined to these words, and my object is only a comparative view. The Creek column I expect you will be able to fill up at

once, and when done I should wish it to come on without waiting for the others. As to the Choctaw and Chickasaw, I know your relations are not very direct, but as I possess no means at all of getting at them, I am induced to pray your aid. All the despatch which can be conveniently used is desirable to me, because this summer I propose to arrange all my vocabularies for the press, and I wish to place every tongue in the column adjacent to its kindred tongues. Your letters, addressed by post to me at Monticello, near Charlottesville, will come safely, and more safely than if put under cover to any of the offices, where they may be mislaid or lost.

Your old friend, Mrs. Trist, is now settled at Charlottesville, within two and a half miles of me. She lives with her son, who married here, and removed there. She preserves her health and spirits fully, and is much beloved with us, as she deserves to be. As I know she is a favorite correspondent of yours, I shall observe that the same channel will be a good one to her as I have mentioned for myself. Indeed, if you find our correspondence worth having, it can now be as direct as if you were in one of these States. Mr. Madison is well. I presume you have long known of his marriage. He is not yet a father. Mr. Giles is happily and wealthily married to a Miss Tabb. This I presume is enough for a first dose; after hearing from you, and knowing how it agrees with you, it may be repeated. With sentiments of constant and sincere esteem, I am, dear Sir, your affectionate friend and servant.

TO P. N. NICHOLAS.

PHILADELPHIA, April 7, 1800.

DEAR SIR,—It is too early to think of a declaratory act as yet, but the time is approaching and not distant. Two elections more will give us a solid majority in the House of Representatives, and a sufficient one in the Senate. As soon as it can be depended on, we must have "a Declaration of the principles of the Constitution" in nature of a Declaration of rights, in all the points in which it has been violated. The people in the middle States are almost rallied to Virginia already; and the eastern States are commencing the vibration which has been checked by X. Y. Z. North Carolina is at present in the most dangerous state. The lawyers all tories, the people

substantially republican, but uninformed and deceived by the lawyers, who are elected of necessity because few other candidates. The medicine for that State must be very mild and secretly administered. But nothing should be spared to give them true information. I am, dear Sir, yours affectionately.

TO E. LIVINGSTON, ESQ.

PHILADELPHIA, April 30, 1800.

DEAR SIR,—I received with great pleasure your favor of the 11th instant. By this time I presume the result of your labors is known with you, though not here. Whatever it may be, and my experience of the art, industry, and resources of the other party has not permitted me to be prematurely confident, yet I am entirely confident that ultimately the great body of the people are passing over from them. This may require one or two elections more; but it will assuredly take place. The madness and extravagance of their career is what ensures it. The people through all the States are for republican forms; republican principles, simplicity, economy, religious and civil freedom.

I have nothing to offer you but Congressional news. The Judiciary bill is postponed to the next session; so the Militia; so the Military Academy. The bill for the election of the President and Vice President has undergone much revolution. Marshall made a dexterous manœuvre; he declares against the constitutionality of the Senate's bill, and proposed that the right of decision of their grand committee should be controllable by the *concurrent* votes of the two houses of Congress; but to stand good if not rejected by a concurrent vote. You will readily estimate the amount of this sort of control. The Committee of the House of Representatives, however, took from the Committee the right of giving any opinion, requiring them to report facts only, and that the votes returned by the States should be counted, unless reported by a concurrent vote of both houses. In what form it will pass them or us, cannot be foreseen. Our Jury bill in Senate will pass so as merely to accommodate New York and Vermont. The House of Representatives sent us yesterday a bill for incorporating a company to work Roosewell's copper mines in New Jersey. I do not know whether it is understood that the

Legislature of Jersey was incompetent to this, or merely that we have concurrent legislation under the sweeping clause. Congress are authorized to defend the nation. Ships are necessary for defence; copper is necessary for ships; mines necessary for copper; a company necessary to work mines; and who can doubt this reasoning who has ever played at "This is the House that Jack built?" Under such a process of filiation of necessities the sweeping clause makes clean work. We shall certainly rise on the 12th. There is nothing to do now but to pass the Ways and Means, and to settle some differences of opinion of the two houses on the Georgia bill, the bill for dividing the North-Western Territory, and that for the sale of the Western lands. Salutations and affectionate esteem. Adieu.

TO JAMES MADISON.

PHILADELPHIA, May 12, 1800.

DEAR SIR,—Congress will rise to-day or to-morrow. Mr. Nicholas proposing to call on you, you will get from him the Congressional news. On the whole, the federalists have not been able to carry a single strong measure in the lower House the whole session. When they met, it was believed they had a majority of twenty; but many of these were new and moderate men, and soon saw the true character of the party to which they had been well disposed while at a distance. This tide, too, of public opinion sets so strongly against the federal proceedings, that this melted off their majority, and dismayed the heroes of the party. The Senate alone remained undismayed to the last. Firm to their purpose, regardless of public opinion, and more disposed to coerce than to court it, not a man of their majority gave way in the least; and on the election bill they *adhered* to John Marshall's amendment, by their whole number; and if there had been a full Senate, there would have been but eleven votes against it, which include H. Marshall, who has voted with the republicans this session. * * * * *

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Accept assurances of constant and affectionate esteem to Mrs. Madison and yourself from, dear Sir, your sincere friend and servant.

TO GIDEON GRANGER.

MONTICELLO, August 13, 1800.

DEAR SIR,—I received with great pleasure your favor of June the 4th, and am much comforted by the appearance of a change of opinion in your State; for though we may obtain, and I believe shall obtain, a majority in the Legislature of the United States, attached to the preservation of the federal Constitution according to its obvious principles, and those on which it was known to be received; attached equally to the preservation to the States of those rights unquestionably remaining with them; friends to the freedom of religion, freedom of the press, trial by jury and to economical government; opposed to standing armies, paper systems, war, and all connection, other than commerce, with any foreign nation; in short, a majority firm in all those principles which we have espoused and the federalists have opposed uniformly; still, should the whole body of New England continue in opposition to these principles of government, either knowingly or through delusion, our government will be a very uneasy one. It can never be harmonious and solid, while so respectable a portion of its citizens support principles which go directly to a change of the federal Constitution, to sink the State governments, consolidate them into one, and to monarchize that. Our country is too large to have all its affairs directed by a single government. Public servants at such a distance, and from under the eye of their constituents, must, from the circumstance of distance, be unable to administer and overlook all the details necessary for the good government of the citizens, and the same circumstance, by rendering detection impossible to their constituents, will invite the public agents to corruption, plunder and waste. And I do verily believe, that if the principle were to prevail, of a common law being in force in the United States, (which principle possesses the General Government at once of all the powers of the State governments, and reduces us to a single consolidated government,) it would become the most corrupt government on the earth. You have seen the practises by which the public servants have been able to cover their conduct, or, where that could not be done, delusions by which they have varnished it for the eye of their constituents. What an augmentation of the field for jobbing, speculating, plundering, office-building and office-hunting would be produced by an assumption of all the State powers into the hands of the General Government. The true theory of our Constitution is

surely the wisest and best, that the States are independent as to everything within themselves, and united as to everything respecting foreign nations. Let the General Government be reduced to foreign concerns only, and let our affairs be disentangled from those of all other nations, except as to commerce, which the merchants will manage the better, the more they are left free to manage for themselves, and our General Government may be reduced to a very simple organization, and a very unexpensive one; a few plain duties to be performed by a few servants. But I repeat, that this simple and economical mode of government can never be secured, if the New England States continue to support the contrary system. I rejoice, therefore, in every appearance of their returning to those principles which I had always imagined to be almost innate in them. In this State, a few persons were deluded by the X. Y. Z. duperies. You saw the effect of it in our last Congressional representatives, chosen under their influence. This experiment on their credulity is now seen into, and our next representation will be as republican as it has heretofore been. On the whole, we hope, that by a part of the Union having held on to the principles of the Constitution, time has been given to the States to recover from the temporary frenzy into which they had been decoyed, to rally round the Constitution, and to rescue it from the destruction with which it had been threatened even at their own hands. I see copied from the American Magazine two numbers of a paper signed Don Quixotte, most excellently adapted to introduce the real truth to the minds even of the most prejudiced.

I would, with great pleasure, have written the letter you desired in behalf of your friend, but there are existing circumstances which render a letter from me to that magistrate as improper as it would be unavailing. I shall be happy, on some more fortunate occasion, to prove to you my desire of serving your wishes.

I sometime ago received a letter from a Mr. M'Gregory of Derby, in your State; it is written with such a degree of good sense and appearance of candor, as entitles it to an answer. Yet the writer being entirely unknown to me, and the stratagems of the times very multifarious, I have thought it best to avail myself of your friendship, and enclose the answer to you. You will see its nature. If you find from the character of the person to whom it is addressed, that no improper use would probably be made of it, be so good as to seal and send it. Otherwise suppress it.

How will the vote of your State and Rhode Island be as to A. and P.?

I am, with great and sincere esteem, dear Sir, your friend and servant.

TO URIAH M'GREGORY.

MONTICELLO, August 13, 1800.

SIR,—Your favor of July the 19th has been received, and received with the tribute of respect due to a person, who, unurged by motives of personal friendship or acquaintance, and unaided by particular information, will so far exercise his justice as to advert to the proofs of approbation given a public character by his own State and by the United States, and weigh them in the scale against the fatherless calumnies he hears uttered against him. These public acts are known even to those who know nothing of my private life, and surely are better evidence to a mind disposed to truth, than slanders which no man will affirm on his own knowledge, or ever saw one who would. From the moment that a portion of my fellow citizens looked towards me with a view to one of their highest offices, the floodgates of calumny have been opened upon me; not where I am personally known, where their slanders would be instantly judged and suppressed, from a general sense of their falsehood; but in the remote parts of the Union, where the means of detection are not at hand, and the trouble of an inquiry is greater than would suit the hearers to undertake. I know that I might have filled the courts of the United States with actions for these slanders, and have ruined perhaps many persons who are not innocent. But this would be no equivalent to the loss of character. I leave them, therefore, to the reproof of their own consciences. If these do not condemn them, there will yet come a day when the false witness will meet a judge who has not slept over his slanders. If the reverend Cotton Mather Smith of Shena believed this as firmly as I do, he would surely never have affirmed that "I had obtained my property by fraud and robbery; that in one instance, I had defrauded and robbed a widow and fatherless children of an estate to which I was executor, of ten thousand pounds sterling, by keeping the property and paying them in money at the nominal rate, when it was worth no more than forty for one; and that all this could be proved." Every tittle of it is fable;

there not having existed a single circumstance of my life to which any part of it can hang. I never was executor but in two instances, both of which having taken place about the beginning of the revolution, which withdrew me immediately from all private pursuits, I never meddled in either executorship. In one of the cases only, were there a widow and children. She was my sister. She retained and managed the estate in her own hands, and no part of it was ever in mine. In the other, I was a copartner, and only received on a division the equal portion allotted me. To neither of these executorships therefore, could Mr. Smith refer. Again, my property is all patrimonial, except about seven or eight hundred pounds' worth of lands, purchased by myself and paid for, not to widows and orphans, but to the very gentleman from whom I purchased. If Mr. Smith, therefore, thinks the precepts of the gospel intended for those who preach them as well as for others, he will doubtless some day feel the duties of repentance, and of acknowledgment in such forms as to correct the wrong he has done. Perhaps he will have to wait till the passions of the moment have passed away. All this is left to his own conscience.

These, Sir, are facts, well known to every person in this quarter, which I have committed to paper for your own satisfaction, and that of those to whom you may choose to mention them. I only pray that my letter may not go out of your own hands, lest it should get into the newspapers, a bear-garden scene into which I have made it a point to enter on no provocation.

I am, Sir, your most obedient humble servant.

TO DOCTOR RUSH.

MONTICELLO, September 23, 1800.

DEAR SIR,—I have to acknowledge the receipt of your favor of August the 22d, and to congratulate you on the healthiness of your city. Still Baltimore, Norfolk and Providence admonish us that we are not clear of our new scourge. When great evils happen, I am in the habit of looking out for what good may arise from them as consolations to us, and Providence has in fact so established the order of things, as that most evils are the means of

producing some good. The yellow fever will discourage the growth of great cities in our nation, and I view great cities as pestilential to the morals, the health and the liberties of man. True, they nourish some of the elegant arts, but the useful ones can thrive elsewhere, and less perfection in the others, with more health, virtue and freedom, would be my choice.

I agree with you entirely, in condemning the mania of giving names to objects of any kind after persons still living. Death alone can seal the title of any man to this honor, by putting it out of his power to forfeit it. There is one other mode of recording merit, which I have often thought might be introduced, so as to gratify the living by praising the dead. In giving, for instance, a commission of Chief Justice to Bushrod Washington, it should be in consideration of his integrity, and science in the laws, and of the services rendered to our country by his illustrious relation, &c. A commission to a descendant of Dr. Franklin, besides being in consideration of the proper qualifications of the person, should add that of the great services rendered by his illustrious ancestor, Benjamin Franklin, by the advancement of science, by inventions useful to man, &c. I am not sure that we ought to change all our names. And during the regal government, sometimes, indeed, they were given through adulation; but often also as the reward of the merit of the times, sometimes for services rendered the colony. Perhaps, too, a name when given, should be deemed a sacred property.

I promised you a letter on Christianity, which I have not forgotten. On the contrary, it is because I have reflected on it, that I find much more time necessary for it than I can at present dispose of. I have a view of the subject which ought to displease neither the rational Christian nor Deists, and would reconcile many to a character they have too hastily rejected. I do not know that it would reconcile the *genus irritabile vatum* who are all in arms against me. Their hostility is on too interesting ground to be softened. The delusion into which the X. Y. Z. plot showed it possible to push the people; the successful experiment made under the prevalence of that delusion on the clause of the Constitution, which, while it secured the freedom of the press, covered also the freedom of religion, had given to the clergy a very favorite hope of obtaining an establishment of a particular form of Christianity through the United States; and as every sect believes its own form the true one, every one perhaps hoped for his own, but especially the Episcopalians

and Congregationalists. The returning good sense of our country threatens abortion to their hopes, and they believe that any portion of power confided to me, will be exerted in opposition to their schemes. And they believe rightly: for I have sworn upon the altar of God, eternal hostility against every form of tyranny over the mind of man. But this is all they have to fear from me: and enough too in their opinion. And this is the cause of their printing lying pamphlets against me, forging conversations for me with Mazzei, Bishop Madison, &c., which are absolute falsehoods without a circumstance of truth to rest on; falsehoods, too, of which I acquit Mazzei and Bishop Madison, for they are men of truth.

But enough of this: it is more than I have before committed to paper on the subject of all the lies that have been preached and printed against me. I have not seen the work of Sonnoni which you mention, but I have seen another work on Africa, (Parke's,) which I fear will throw cold water on the hopes of the friends of freedom. You will hear an account of an attempt at insurrection in this State. I am looking with anxiety to see what will be its effect on our State. We are truly to be pitied. I fear we have little chance to see you at the federal city or in Virginia, and as little at Philadelphia. It would be a great treat to receive you here. But nothing but sickness could effect that; so I do not wish it. For I wish you health and happiness, and think of you with affection. Adieu.

TO ROBERT R. LIVINGSTON.

WASHINGTON, December 14, 1800.

DEAR SIR,—Your former communications on the subject of the steam engine, I took the liberty of laying before the American Philosophical Society, by whom they will be printed in their volume of the present year. I have heard of the discovery of some large bones, supposed to be of the mammoth, at about thirty or forty miles distance from you; and among the bones found, are said to be some of which we have never been able to procure. The first interesting question is, whether they are the bones of the mammoth? The second, what are the particular bones, and could I possibly procure them? The bones I am most anxious to obtain, are those of the head

and feet, which are said to be among those found in your State, as also the ossa innominata, and the scapula. Others would also be interesting, though similar ones may be possessed, because they would show by their similarity that the set belong to the mammoth. Could I so far venture to trouble you on this subject, as to engage some of your friends near the place, to procure for me the bones above mentioned? If they are to be bought I will gladly pay for them whatever you shall agree to as reasonable; and will place the money in New York as instantaneously after it is made known to me, as the post can carry it, as I will all expenses of package, transportation, &c., to New York and Philadelphia, where they may be addressed to John Barnes, whose agent (he not being on the spot) will take care of them for me.

But I have still a more important subject whereon to address you. Though our information of the votes of the several States be not official, yet they are stated on such evidence as to satisfy both parties that the republican vote has been successful. We may, therefore, venture to hazard propositions on that hypothesis without being justly subjected to raillery or ridicule. The Constitution to which we are all attached was meant to be republican, and we believe to be republican according to every candid interpretation. Yet we have seen it so interpreted and administered, as to be truly what the French have called, a *monarchie masque*. Yet so long has the vessel run on this way and been trimmed to it, that to put her on her republican tack will require all the skill, the firmness and the zeal of her ablest and best friends. It is a crisis which calls on them, to sacrifice all other objects, and repair to her aid in this momentous operation. Not only their skill is wanting, but their names also. It is essential to assemble in the outset persons to compose our administration, whose talents, integrity and revolutionary name and principles may inspire the nation at once, with unbounded confidence, and impose an awful silence on all the maligners of republicanism; as may suppress in embryo the purpose avowed by one of their most daring and effective chiefs, of beating down the administration. These names do not abound at this day. So few are they, that yours, my friend, cannot be spared among them without leaving a blank which cannot be filled. If I can obtain for the public the aid of those I have contemplated, I fear nothing. If this cannot be done, then are we unfortunate indeed! We shall be unable to realize the prospects which have been held out to the people, and we must fall back into monarchism, for want of heads, not hands to help us out of it.

This is a common cause, my dear Sir, common to all republicans. Though I have been too honorably placed in front of those who are to enter the breach so happily made, yet the energies of every individual are necessary, and in the very place where his energies can most serve the enterprise. I can assure you that your colleagues will be most acceptable to you; one of them, whom you cannot mistake, peculiarly so. The part which circumstances constrain us to propose to you is, the secretaryship of the navy. These circumstances cannot be explained by letter. Republicanism is so rare in those parts which possess nautical skill, that I cannot find it allied there to the other qualifications. Though you are not nautical by profession, yet your residence and your mechanical science qualify you as well as a gentleman can possibly be, and sufficiently to enable you to choose under-agents perfectly qualified, and to superintend their conduct. Come forward then, my dear Sir, and give us the aid of your talents and the weight of your character towards the new establishment of republicanism: I say, for its new establishment; for hitherto we have only seen its travestie. I have urged thus far, on the belief that your present office would not be an obstacle to this proposition. I was informed, and I think it was by your brother, that you wished to retire from it, and were only restrained by the fear that a successor of different principles might be appointed. The late change in your council of appointment will remove this fear. It will not be improper to say a word on the subject of expense. The gentlemen who composed General Washington's first administration took up, too universally, a practice of general entertainment, which was unnecessary, obstructive of business, and so oppressive to themselves, that it was among the motives for their retirement. Their successors profited by the experiment, and lived altogether as private individuals, and so have ever continued to do. Here, indeed, it cannot be otherwise, our situation being so rural, that during the vacations of the Legislature we shall have no society but of the officers of the government, and in time of sessions the Legislature is become and becoming so numerous, that for the last half dozen years nobody but the President has pretended to entertain them. I have been led to make the application before official knowledge of the result of our election, because the return of Mr. Van Benthuyzen, one of your electors and neighbors, offers me a safe conveyance at a moment when the post offices will be peculiarly suspicious and prying. Your answer may come by post without

danger, if directed in some other hand writing than your own; and I will pray you to give me an answer as soon as you can make up your mind.

Accept assurances of cordial esteem and respect, and my friendly salutations.

TO COLONEL BURR.

WASHINGTON, December 15, 1800.

DEAR SIR,—Although we have not official information of the votes for President and Vice President, and cannot have until the first week in February, yet the state of the votes is given on such evidence, as satisfies both parties that the two republican candidates stand highest. From South Carolina we have not even heard of the actual vote; but we have learned who were appointed electors, and with sufficient certainty how they would vote. It is said they would withdraw from yourself one vote. It has also been said that a General Smith, of Tennessee, had declared that he would give his second vote to Mr. Gallatin, not from any indisposition towards you, but extreme reverence to the character of Mr. Gallatin. It is also surmised that the vote of Georgia will not be entire. Yet nobody pretends to know these things of a certainty, and we know enough to be certain that what it is surmised will be withheld, will still leave you four or five votes at least above Mr. Adams. However, it was badly managed not to have arranged with certainty what seems to have been left to hazard. It was the more material, because I understand several of the high-flying federalists have expressed their hope that the two republican tickets may be equal, and their determination in that case to prevent a choice by the House of Representatives, (which they are strong enough to do,) and let the government devolve on a President of the Senate. Decency required that I should be so entirely passive during the late contest that I never once asked whether arrangements had been made to prevent so many from dropping votes intentionally, as might frustrate half the republican wish; nor did I doubt, till lately, that such had been made.

While I must congratulate you, my dear Sir, on the issue of this contest, because it is more honorable, and doubtless more grateful to you than any station within the competence of the chief magistrate, yet for myself, and for the substantial service of the public, I feel most sensibly the loss we sustain of your aid in our new administration. It leaves a chasm in my arrangements, which cannot be adequately filled up. I had endeavored to compose an administration whose talents, integrity, names, and dispositions, should at once inspire unbounded confidence in the public mind, and insure a perfect harmony in the conduct of the public business. I lose you from the list, and am not sure of all the others. Should the gentlemen who possess the public confidence decline taking a part in their affairs, and force us to take persons unknown to the people, the evil genius of this country may realize his avowal that "he will beat down the administration." The return of Mr. Van Benthuyzen, one of your electors, furnishes me a confidential opportunity of writing this much to you, which I should not have ventured through the post office at this prying season. We shall of course see you before the 4th of March. Accept my respectful and affectionate salutations.

TO JUDGE BRECKENRIDGE.

WASHINGTON, December 18, 1800.

DEAR SIR,—I received, while at home, the letter you were so kind as to write me. The employments of the country have such irresistible attractions for me, that while I am at home, I am not very punctual in acknowledging the letters of my friends. Having no refuge here from my room and writing-table, it is my regular season for fetching up the lee-way of my correspondence.

Before you receive this, you will have understood that the State of South Carolina (the only one about which there was uncertainty) has given a republican vote, and saved us from the consequences of the annihilation of Pennsylvania. But we are brought into dilemma by the probable equality of the two republican candidates. The federalists in Congress mean to take advantage of this, and either to prevent an election altogether, or reverse

what has been understood to have been the wishes of the people, as to the President and Vice President; wishes which the Constitution did not permit them specially to designate. The latter alternative still gives us a republican administration. The former, a suspension of the federal government, for want of a head. This opens to us an abyss, at which every sincere patriot must shudder. General Davie has arrived here with the treaty formed (under the name of a convention) with France. It is now before the Senate for ratification, and will encounter objections. He believes firmly that a continental peace in Europe will take place, and that England also may be comprehended.

Accept assurances of the great respect of, dear Sir, your most obedient servant.

TO JAMES MADISON.

WASHINGTON, December 19, 1800.

DEAR SIR,—Mr. Brown's departure for Virginia enables me to write confidentially what I could not have ventured by the post at this prying season. The election in South Carolina has in some measure decided the great contest. Though as yet we do not know the actual votes of Tennessee, Kentucky, and Vermont, yet we believe the votes to be on the whole, J. seventy-three, B. seventy-three, A. sixty-five, P. sixty-four. Rhode Island withdrew one from P. There is a possibility that Tennessee may withdraw one from B., and Burr writes that there may be one vote in Vermont for J. But I hold the latter impossible, and the former not probable; and that there will be an absolute parity between the two republican candidates. This has produced great dismay and gloom on the republican gentlemen here, and exultation in the federalists, who openly declare they will prevent an election, and will name a President of the Senate, *pro tem.* by what they say would only be a *stretch* of the Constitution. The prospect of preventing this, is as follows: Georgia, North Carolina, Tennessee, Kentucky, Vermont, Pennsylvania, and New York, can be counted on for their vote in the House of Representatives, and it is thought by some that Baer of Maryland, and Linn of New Jersey will come over. Some even count on Morris of

Vermont. But you must know the uncertainty of such a dependence under the operation of caucuses and other federal engines. The month of February, therefore, will present us storms of a new character. Should they have a particular issue, I hope you will be here a day or two, at least, before the 4th of March. I know that your appearance on the scene before the departure of Congress, would assuage the minority, and inspire in the majority confidence and joy unbounded, which they would spread far and wide on their journey home. Let me beseech you then to come with a view of staying perhaps a couple of weeks, within which time things might be put into such a train, as would permit us both to go home for a short time, for removal. I wrote to R. R. L. by a confidential hand three days ago. The person proposed for the Treasury has not come yet.

Davie is here with the Convention, as it is called; but it is a real treaty, and without limitation of time. It has some disagreeable features, and will endanger the compromising us with Great Britain. I am not at liberty to mention its contents, but I believe it will meet with opposition from both sides of the House. It has been a bungling negotiation. Ellsworth remains in France for the benefit of his health. He has resigned his office of Chief Justice. Putting these two things together, we cannot misconstrue his views. He must have had great confidence in Mr. Adams' continuance to risk such a certainty as he held. Jay was yesterday nominated Chief Justice. We were afraid of something worse. A scheme of government for the territory is cooking by a committee of each House, under separate authorities, but probably a voluntary harmony. They let out no hints. It is believed that the judiciary system will not be pushed, as the appointments, if made by the present administration, could not fall on those who create them. But I very much fear the road system will be urged. The mines of Peru would not supply the moneys which would be wasted on this object, nor the patience of any people stand the abuses which would be uncontrollably committed under it. I propose, as soon as the state of the election is perfectly ascertained, to aim at a candid understanding with Mr. Adams. I do not expect that either his feelings or his views of interest will oppose it. I hope to induce in him dispositions liberal and accommodating. Accept my affectionate salutations.

TO JAMES MADISON.

WASHINGTON, December 26, 1800.

DEAR SIR,—All the votes have now come in, except of Vermont and Kentucky, and there is no doubt that the result is a perfect parity between the two republican characters. The federalists appear determined to prevent an election, and to pass a bill giving the government to Mr. Jay, appointed Chief Justice, or to Marshall as Secretary of State. Yet I am rather of opinion that Maryland and Jersey will give the seven republican majorities. The French treaty will be violently opposed by the federalists; the giving up the vessels is the article they cannot swallow. They have got their judiciary bill forwarded to commitment. I dread this above all the measures meditated, because appointments in the nature of freehold render it difficult to undo what is done. We expect a report for a territorial government which is to pay little respect to the rights of man.

* * * * *

Cordial and affectionate salutations. Adieu.

TO TENCHE COXE, ESQ.

December 31, 1800.

I shall neither frank nor subscribe my letter, because I do not choose to commit myself to the fidelity of the post-office. For the same reason, I have avoided putting pen to paper through the whole summer, except on mere business, because I knew it was a prying season. I received from time to time papers under your superscription, which showed that our friends were not inattentive to the great operation which was agitating the nation. You are by this time apprised of the embarrassment produced by the equality of votes between the two republican candidates. The contrivance in the Constitution for marking the votes works badly, because it does not enounce precisely the true expression of the public will. We do not see what is to be the issue of the present difficulty. The federalists, among whom those of the republican section are not the strongest, propose to prevent an

election in Congress, and to transfer the government by an act to the C. J. (Jay) or Secretary of State, or to let it devolve on the President *pro tem.* of the Senate, till next December, which gives them another year's predominance, and the chances of future events. The republicans propose to press forward to an election. If they fail in this, a concert between the two higher candidates may prevent the dissolution of the government and danger of anarchy, by an operation, bungling indeed and imperfect, but better than letting the Legislature take the nomination of the Executive entirely from the people. Excuse the infrequency of my acknowledgments of your kind attentions. The danger of interruption makes it prudent for me not to indulge my personal wishes in that way. I pray you to accept assurances of my great esteem.

TO DR. WILLIAMSON.

WASHINGTON, January 10, 1801.

DEAR SIR,—I should sooner have acknowledged your favor of December 8th, but for a growing and pressing correspondence which I can scarcely manage. I was particularly happy to receive the diary of Quebec, as about the same time I happened to receive one from the Natchez, so as to be able to make a comparison of them. The result was a wonder that any human being should remain in a cold country who could find room in a warm one, —should prefer 32° to 55°. Harry Hill has told me that the temperature of Madeira is generally from 55° to 65°, its extreme about 50° and 70°. If I ever change my climate for health, it should be for that Island. I do not know that the coincidence has ever been remarked between the new moon and the greater degrees of cold, or the full moon and the lesser degrees; or that the reflected beams of the moon attemper the weather at all. On the contrary, I think I have understood that the most powerful concave mirror presented to the moon, and throwing its focus on the bulb of a thermometer, does not in the least effect it. I suppose the opinion to be universal that the turkey is a native of America. Nobody, as far as I know, has ever contradicted it but Daines Barrington; and the arguments he produces are such as none but a head, entangled and kinked as his is, would ever have urged. Before the

discovery of America, no such bird is mentioned in a single author, all those quoted by Barrington, by description referring to the crane, hen, pheasant or peacock; but the book of every traveller, who came to America soon after its discovery, is full of accounts of the turkey and its abundance; and immediately after that discovery we find the turkey served up at the feasts of Europe, as their most extraordinary rarity. Mr. William Strickland, the eldest son of St. George Strickland, of York, in England, told me the anecdote. Some ancestor of his commanded a vessel in the navigations of Cabot. Having occasion to consult the Herald's office concerning his family, he found a petition from that ancestor to the crown, stating that Cabot's circumstances being slender, he had been rewarded by the bounties he needed from the crown; that as to himself, he asked nothing in that way, but that as a consideration for his services in the same way, he might be permitted to assume for the crest of his family arms, the turkey, an American bird; and Mr. Strickland observed that their crest is actually a turkey. You ask whether we may be quoted. In the first place, I now state the thing from memory, and may be inexact in some small circumstances. Mr. Strickland too, stated it to me in a conversation, and not considering it of importance, might be inexact too. We should both dislike to be questioned before the public for any little inaccuracy of style or recollection. I think if you were to say that the Herald's office may be referred to in proof of the fact, it would be authority sufficient, without naming us. I have at home a note of Mr. Strickland's information, which I then committed to paper. My situation does not allow me to refresh my memory from this. I shall be glad to see your book make its appearance; and I am sure it will be well received by the Philosophical part of the world, for I still dare to use the word philosophy, notwithstanding the war waged against it by bigotry and despotism. Health, respect and friendly salutations.

TO WILLIAM DUNBAR, ESQ.

WASHINGTON, January 12, 1801.

DEAR SIR,—Your favor of July 14th, with the papers accompanying it, came safely to hand about the last of October. That containing remarks on the line

of demarcation I perused according to your permission, and with great satisfaction, and then enclosed to a friend in Philadelphia, to be forwarded to its address. The papers addressed to me, I took the liberty of communicating to the Philosophical Society. That on the language by signs is quite new. Soon after receiving your meteorological diary, I received one of Quebec; and was struck with the comparison between -32 and $19\frac{3}{4}$ the lowest depression of the thermometer at Quebec and the Natchez. I have often wondered that any human being should live in a cold country who can find room in a warm one. I have no doubt but that cold is the source of more sufferance to all animal nature than hunger, thirst, sickness, and all the other pains of life and of death itself put together. I live in a temperate climate, and under circumstances which do not expose me often to cold. Yet when I recollect on one hand all the sufferings I have had from cold, and on the other all my other pains, the former preponderate greatly. What then must be the sum of that evil if we take in the vast proportion of men who are obliged to be out in all weather, by land and by sea, all the families of beasts, birds, reptiles, and even the vegetable kingdom! for that too has life, and where there is life there may be sensation. I remark a rainbow of a great portion of the circle observed by you when on the line of demarcation. I live in a situation which has given me an opportunity of seeing more than the semicircle often. I am on a hill five hundred feet perpendicularly high. On the west side it breaks down abruptly to the base, where a river passes through. A rainbow, therefore, about sunset, plunges one of its legs down to the river, five hundred feet below the level of the eye on the top of the hill. I have twice seen bows formed by the moon. They were of the color of the common circle round the moon, and were very near, being within a few paces of me in both instances. I thank you for the little vocabularies of Bedais, Tankawis and Teghas. I have it much at heart to make as extensive a collection as possible of the Indian tongues. I have at present about thirty tolerably full, among which the number radically different, is truly wonderful. It is curious to consider how such handfuls of men, came by different languages, and how they have preserved them so distinct. I at first thought of reducing them all to one orthography, but I soon become sensible that this would occasion two sources of error instead of one. I therefore think it best to keep them in the form of orthography in which they were taken, only noting whether that were English, French, German, or what. I have never been a very punctual correspondent, and it is possible that new

duties may make me less so. I hope I shall not on that account lose the benefit of your communications. Philosophical vedette at the distance of one thousand miles, and on the verge of the terra incognita of our continent, is precious to us here. I pray you to accept assurances of my high consideration and esteem, and friendly salutations.

TO COLONEL BURR.

WASHINGTON, February 1, 1801.

DEAR SIR,—It was to be expected that the enemy would endeavor to sow tares between us, that they might divide us and our friends. Every consideration satisfies me you will be on your guard against this, as I assure you I am strongly. I hear of one stratagem so imposing and so base that it is proper I should notice it to you. Mr. Munford, who is here, says he saw at New York before he left it, an original letter of mine to Judge Breckenridge, in which are sentiments highly injurious to you. He knows my hand writing, and did not doubt that to be genuine. I enclose you a copy taken from the press copy of the only letter I ever wrote to Judge Breckenridge in my life: the press copy itself has been shown to several of our mutual friends here. Of consequence, the letter seen by Mr. Munford must be a forgery, and if it contains a sentiment unfriendly or disrespectful to you, I affirm it solemnly to be a forgery; as also if it varies from the copy enclosed. With the common trash of slander I should not think of troubling you; but the forgery of one's handwriting is too imposing to be neglected. A mutual knowledge of each other furnishes us with the best test of the contrivances which will be practised by the enemies of both.

Accept assurances of my high respect and esteem.

TO GOVERNOR M'KEAN.

WASHINGTON, February 2d, 1801.

DEAR SIR,—I have long waited for an opportunity to acknowledge the receipt of your favor of December the 15th, as well as that by Dr. Mendenhall. None occurring, I shall either deliver the present to General Muhlenburg or put it under cover to Doctor Wistar, to whom I happen to be writing, to be sent to your house in Philadelphia, or forwarded confidentially to Lancaster.

The event of the election is still *in dubio*. A strong portion in the House of Representatives will prevent an election if they can. I rather believe they will not be able to do it, as there are six individuals of moderate character, any one of whom coming over to the republican vote will make a ninth State. Till this is known, it is too soon for me to say what should be done in such atrocious cases as those you mention of federal officers obstructing the operation of the State governments. One thing I will say, that as to the future, interferences with elections, whether of the State or General Government, by officers of the latter, should be deemed cause of removal; because the constitutional remedy by the elective principle becomes nothing, if it may be smothered by the enormous patronage of the General Government. How far it may be practicable, prudent or proper, to look back, is too great a question to be decided but by the united wisdom of the whole administration when formed. Our situation is so different from yours, that it may render proper some differences in the practice. Your State is a single body, the majority clearly one way. Ours is of sixteen integral parts, some of them all one way, some all the other, some divided. Whatever may be decided as to the past, they shall give no trouble to the State governments in future, if it shall depend on me; and be assured, particularly as to yourself, that I should consider the most perfect harmony and interchange of accommodations and good offices with those governments as among the first objects.

Accept assurances of my high consideration, respect and esteem.

TO DR. WISTAR.

WASHINGTON, February 3, 1801.

DEAR SIR,—According to your desire I wrote to Chancellor Livingston on the subject of the bones. The following is an extract from his letter dated January 7th. "I have paid the earliest attention to your request relative to the bones found at Shawangun, and have this day written to a very intelligent friend in that neighborhood. I fear however that till they have finished their search, there will be some difficulty in procuring any part of the bones, because when I first heard of the discovery I made some attempts to possess myself of them, but found they were a kind of common property, the whole town having joined in digging for them till they were stopped by the autumnal rains. They entertain well-grounded hopes of discovering the whole skeleton, since these bones are not, like all those they have hitherto found in that county, placed within the vegetable world, but are covered with a stratum of clay,—that being sheltered from the air and water they are more perfectly preserved. Among the bones I have heard mentioned, are the vertebra, part of the jaw, with two of the grinders, the tusks, which some have called the horns, the sternum, the scapula, the tibia and fibula, the tarsus and metatarsus. Whether any of the phalanges or innominata are found, I have not heard. A part of the head, containing the socket of the tusks, is also discovered. From the bones of the feet, it is evidently a claw-footed animal, and from such parts of the shoulder bones as have been discovered, it appears that the arm or fore-leg, had a greater motion than can possibly belong to the elephant or any of the large quadrupeds with which we are acquainted. Since bog-earth has been used by the farmers of Ulster county for a manure, which is subsequent to the war, fragments of at least eight or ten have been found, but in a very decayed state in the same bog."

From this extract, and the circumstance that the bones belong to the town, you will be sensible of the difficulty of obtaining any considerable portion of them. I refer to yourself to consider whether it would not be better to select such only of which we have no specimens, and to ask them only. It is not unlikely they would with common consent yield a particular bone or bones, provided they may keep the mass for their own town. If you will make the selection and communicate it to me, I will forward it to the Chancellor, and the sooner the better.

Accept assurances of my high consideration and attachment.

TO TENCHE COXE.

WASHINGTON, February 11, 1801.

DEAR SIR,—Your favor of January the 25th came to hand some days ago, and yesterday a gentleman put into my hand, at the door of the Senate chamber, the volume of the American Museum for 1798. As no letter accompanied it, I took it for granted it was to bring under my eye some of its contents. I have gone over it with satisfaction.

This is the morning of the election by the House of Representatives. For some time past a single individual had declared he would by his vote make up the ninth State. On Saturday last he changed, and it stands at present eight one way, six the other, and two divided. Which of the two will be elected, and whether either, I deem perfectly problematical: and my mind has long been equally made up for either of the three events. If I can find out the person who brought me the volume from you, I shall return it by him, because I presume it makes one of a set. If not by him, I will find some other person who may convey it to Philadelphia if not to Lancaster. Very possibly it may go by a different conveyance from this letter. Very probably you will learn before the receipt of either, the result, or progress at least, of the election. We see already at the threshold, that if it falls on me, I shall be embarrassed by finding the offices vacant, which cannot be even temporarily filled but with advice of Senate, and that body is called on the fourth of March, when it is impossible for the new members of Kentucky, Georgia and South Carolina to receive notice in time to be here. The summons for Kentucky, dated, as all were, January the 31st, could not go hence till the 5th, and that for Georgia did not go till the 6th. If the difficulties of the election, therefore, are got over, there are more and more behind, until new elections shall have regenerated the constituted authorities. The defects of our Constitution under circumstances like the present, appear very great. Accept assurances of the esteem and respect of, dear Sir, your most obedient servant.

TO DR. B. S. BARTON.

WASHINGTON, February 14, 1801.

DEAR SIR,—Your favor of January 18th is duly received. The subject of it did not need apology. On the contrary, should I be placed in office, nothing would be more desirable to me than the recommendations of those in whom I have confidence, of persons fit for office; for if the good withhold their testimony, we shall be at the mercy of the bad. If the question relative to Mr. Zantzinger had been merely that of remaining in office, your letter would have placed him on very safe ground. Besides that, no man who has conducted himself according to his duties would have anything to fear from me, as those who have done ill would have nothing to hope, be their political principles what they might. The obtaining an appointment presents more difficulties. The republicans have been excluded from all offices from the first origin of the division into Republican and Federalist. They have a reasonable claim to vacancies till they occupy their due share. My hope however is that the distinction will be soon lost, or at most that it will be only of republican and monarchist: that the body of the nation, even that part which French excesses forced over to the federal side, will rejoin the republicans, leaving only those who were pure monarchists, and who will be too few to form a sect. This is the fourth day of the ballot, and nothing done; nor do I see any reason to suppose the six and a half States here will be less firm, as they call it, than your thirteen Senators; if so, and the government should expire on the 3d of March by the loss of its head, there is no regular provision for reorganizing it, nor any authority but in the people themselves. They may authorize a convention to reorganize and even amend the machine. There are ten individuals in the House of Representatives, any one of whom changing his vote may save us this troublesome operation. Be pleased to present my friendly respects to Mrs. Barton, Mrs. Sarjeant, and Mrs. Waters, and to accept yourself my affectionate salutations.

TO JAMES MONROE.

WASHINGTON, February 15, 1801.

DEAR SIR,—I have received several letters from you which have not been acknowledged. By the post I dare not, and one or two confidential opportunities have passed me by surprise. I have regretted it the less, because I know you could be more safely and fully informed by others. Mr. Tyler, the bearer of this, will give you a great deal more information personally than can be done by letter. Four days of balloting have produced not a single change of a vote. Yet it is confidently believed by most that tomorrow there is to be a coalition. I know of no foundation for this belief. However, as Mr. Tyler waits the event of it, he will communicate it to you. If they could have been permitted to pass a law for putting the government into the hands of an officer, they would certainly have prevented an election. But we thought it best to declare openly and firmly, one and all, that the day such an act passed, the middle States would arm, and that no such usurpation, even for a single day, should be submitted to. This first shook them; and they were completely alarmed at the resource for which we declared, to wit, a convention to re-organize the government, and to amend it. The very word convention gives them the horrors, as in the present democratical spirit of America, they fear they should lose some of the favorite morsels of the Constitution. Many attempts have been made to obtain terms and promises from me. I have declared to them unequivocally, that I would not receive the government on capitulation, that I would not go into it with my hands tied. Should they yield the election, I have reason to expect in the outset the greatest difficulties as to nominations. The late incumbents running away from their offices and leaving them vacant, will prevent my filling them without the *previous* advice of Senate. How this difficulty is to be got over I know not. Accept for Mrs. Monroe and yourself my affectionate salutations. Adieu.

TO JAMES MADISON.

WASHINGTON, February 18, 1801.

DEAR SIR,—Notwithstanding the suspected infidelity of the post, I must hazard this communication. The minority in the House of Representatives, after seeing the impossibility of electing Burr, the certainty that a legislative

usurpation would be resisted by arms, and a recourse to a convention to re-organize and amend the government, held a consultation on this dilemma, whether it would be better for them to come over in a body and go with the tide of the times, or by a negative conduct suffer the election to be made by a bare majority, keeping their body entire and unbroken, to act in phalanx on such ground of opposition as circumstances shall offer; and I know their determination on this question only by their vote of yesterday. Morris of Vermont withdrew, which made Lyon's vote that of his State. The Maryland federalists put in four blanks, which made the positive ticket of their colleagues the vote of the State. South Carolina and Delaware put in six blanks. So there were ten States for one candidate, four for another, and two blanks. We consider this, therefore, as a declaration of war, on the part of this band. But their conduct appears to have brought over to us the whole body of federalists, who, being alarmed with the danger of a dissolution of the government, had been made most anxiously to wish the very administration they had opposed, and to view it when obtained, as a child of their own. * * * * * Mr. A. embarrasses us. He keeps the offices of State and War vacant, but has named Bayard Minister Plenipotentiary to France, and has called an unorganized Senate to meet the fourth of March. As you do not like to be here on that day, I wish you would come within a day or two after. I think that between that and the middle of the month we can so far put things under way, as that we may go home to make arrangements for our final removal. Come to Conrad's, where I will bespeak lodgings for you. Yesterday Mr. A. nominated Bayard to be Minister Plenipotentiary of the United States to the French republic; to-day, Theophilus Parsons, Attorney General of the United States in the room of C. Lee, who, with Keith Taylor *cum multis aliis*, are appointed judges under the new system. H. G. Otis is nominated a district attorney. A vessel has been waiting for some time in readiness to carry the new minister to France. My affectionate salutations to Mrs. Madison.

TO LIEUTENANT DEARBORN.

WASHINGTON, February 18, 1801.

DEAR SIR,—The House of Representatives having yesterday concluded their choice of a person for the chair of the United States and willed me that office, it now becomes necessary to provide an administration composed of persons whose qualifications and standing have possessed them of the public confidence, and whose wisdom may ensure to our fellow-citizens the advantages they sanguinely expect. On a review of the characters in the different States proper for the different departments, I have had no hesitation in considering you as the person to whom it would be most advantageous to the public to confide the Department of War. May I therefore hope, Sir, that you will give your country the aid of your talents as Secretary of War? The delay which has attended the election has very much abridged our time, and rendered the call more sudden and pressing than I could have wished. I am in hopes our administration may be assembled during the first week of March, except yourself, and that you can be with us in a few days after. Indeed it is probable we shall be but a few days together (perhaps to the middle of the month) to make some general and pressing arrangements, and then go home, for a short time, to make our final removal hither. I mention these circumstances that you may see the urgency of setting out for this place with the shortest delay possible, which may be the shorter as you can return again to your family, as we shall, to make your final arrangements for removal. I hope we shall not be disappointed in counting on your aid, and that you will favor us with an answer by return of post. Accept assurances of sincere esteem and high respect from, dear Sir, your most obedient, and most humble servant.

TO MAJOR WILLIAM JACKSON.

WASHINGTON, February 18, 1801.

DEAR SIR,—Your favor of the 3d instant has been duly received. I perceive in it that frankness which I ever found in your character, and which honors every character in which it is found. I feel indebted also for the justice you do me as to opinions which others, with less candor, have imputed to me. I have received many letters stating to me in the spirit of prophesy, caricatures which the writers, it seems, know are to be the principles of my

administration. To these no answer has been given, because the prejudiced spirit in which they have been written proved the writers not in a state of mind to yield to truth or reason. To the friendly style of your letter I would gladly answer in detail were it in my power; but I have thought that I ought not to permit myself to form opinions in detail, until I can have the counsel of those, of whose services I wish to avail the public in the administration of their affairs. Till this can be done, you have justly resorted to the only proper ground, that of estimating my future by my past conduct. Upwards of thirty years passed on the stage of public life and under the public eye, may surely enable them to judge whether my future course is likely to be marked with those departures from reason and moderation, which the passions of men have been willing to foresee. One imputation in particular has been remarked till it seems as if some at least believe it: that I am an enemy to commerce. They admit me as a friend to agriculture, and suppose me an enemy to the only means of disposing of its produce. I might appeal too to evidences of my attention to the commerce and navigation of our country in different stations connected with them, but this would lead to details not to be expected. I have deferred answering your letter till this day lest the motives for these explanations should be mistaken. You will be so good as to consider this communication so far confidential as not to put it in the power of any person committing it to the press. I am with great esteem, dear Sir, your most obedient servant.

TO N. R——.

WASHINGTON, February 19, 1801.

After exactly a week's balloting there at length appeared ten States for me, four for Burr, and two voted blanks. This was done without a single vote coming over. Morris of Vermont withdrew, so that Lyon's vote became that of the State. The four Maryland federalists put in blanks, so then the vote of the four Republicans became that of their State. Mr. Hager of South Carolina (who had constantly voted for me) withdrew by agreement, his colleagues agreeing in that case to put in blanks. Bayard, the sole member of Delaware, voted blank. They had before deliberated whether they would

come over in a body, when they saw they could not force Burr on the republicans, or keep their body entire and unbroken to act in phalanx on such ground of opposition as they shall hereafter be able to conjure up. Their vote showed what they had decided on, and is considered as a declaration of perpetual war; but their conduct has completely left them without support. Our information from all quarters is that the whole body of federalists concurred with the republicans in the last elections, and with equal anxiety. They had been made to interest themselves so warmly for the very choice, which while before the people they opposed, that when obtained it came as a thing of their own wishes, and they find themselves embodied with the republicans, and their quondam leaders separated from them, and I verily believe they will remain embodied with us, so that this conduct of the minority has done in one week what very probably could hardly have been effected by years of mild and impartial administration. A letter from Mr. Eppes informs me that Maria is in a situation which induces them not to risk a journey to Monticello, so we shall not have the pleasure of meeting them here. I begin to hope I may be able to leave this place by the middle of March. My tenderest love to my ever dear Martha, and kisses to the little ones. Accept yourself sincere and affectionate salutation. Adieu.

**TO THE HON. SAMUEL DEXTER, SECRETARY OF THE
TREASURY.**

WASHINGTON, Feb. 20, 1801.

DEAR SIR,—The liberality of the conversation you honored me with yesterday evening has given me great satisfaction, and demands my sincere thanks. It is certain that those of the Cabinet Council of the President should be of his bosom confidence. Our geographical position has been an impediment to that, while I can with candor declare that the imperfect opportunities I have had of acquaintance with you, have inspired an entire esteem for your character, and that you will carry with you that esteem and sincere wish to be useful to you. The accommodation you have been so kind as to offer as to the particular date of retiring from office, is thankfully accepted, and shall be the subject of a particular letter to you, as soon as

circumstances shall enable me to speak with certainty. In the meantime accept assurances of my high respect and consideration.

**TO THE HON. BENJAMIN STODDART, SECRETARY OF THE
NAVY.**

WASHINGTON, Feb. 21, 1801.

SIR,—Your favor of the 18th did not get to my hand till yesterday. I thank you for the accommodation in point of time therein offered. Circumstances may render it a convenience; in which case I will avail myself of it, without too far encroaching on your wishes. At this instant it is not in my power to say anything certain on the subject of time. The declarations of support to the administration of our government are such as were to be expected from your character and attachment to our Constitution. I wish support from no quarter longer than my object candidly scanned, shall merit it; and especially, not longer than I shall rigorously adhere to the Constitution. I am with respect, Sir, your most obedient humble servant.

TO CHANCELLOR LIVINGSTON.

WASHINGTON, Feb. 24, 1801.

DEAR SIR,—It has occurred to me that possibly you might be willing to undertake the mission as Minister Plenipotentiary to France. If so, I shall most gladly avail the public of your services in that office. Though I am sensible of the advantages derived from your talent to your particular State, yet I cannot suppress the desire of adding them to the mass to be employed on the broader scale of the nation at large. I will ask the favor of an immediate answer, that I may give in the nomination to the Senate, observing at the same time, that the period of your departure can't be settled until we get our administration together, and may perhaps be delayed till we receive the ratification of the Senate, which would probably be four months; consequently, the commission would not be made out before then.

This will give you ample time to make your departure convenient. In hopes of hearing from you as speedily as you can form your resolution, and hoping it will be favorable, I tender you my respectful and affectionate salutations.

TO THOMAS LOMAX, ESQ.

WASHINGTON, Feb. 25, 1801.

DEAR SIR,—Your favor of the 5th came to hand on the 20th, and I have but time to acknowledge it under the present pressure of business. I recognize in it those sentiments of virtue and patriotism which you have ever manifested. The suspension of public opinion from the 11th to the 17th, the alarm into which it threw all the patriotic part of the federalists, the danger of the dissolution of our Union, and unknown consequences of that, brought over the great body of them to wish with anxiety and solicitation for a choice to which they had before been strenuously opposed. In this state of mind they separated from their congressional leaders, and came over to us; and the manner in which the last ballot was given, has drawn a fixed line of separation between them and their leaders. When the election took effect, it was as the most desirable of events to them. This made it a thing of their choice, and finding themselves aggregated with us accordingly, they are in a state of mind to be consolidated with us, if no intemperate measures on our part revolt them again. I am persuaded that weeks of ill-judged conduct here, has strengthened us more than years of prudent and conciliatory administration could have done. If we can once more get social intercourse restored to its pristine harmony, I shall believe we have not lived in vain; and that it may, by rallying them to true republican principles, which few of them had thrown off, I sanguinely hope. Accept assurances of the high esteem and respect of, dear Sir, your friend and servant.

TO GENTLEMEN OF THE SENATE.

To give the usual opportunity of appointing a President *pro tempore*, I now propose to retire from the chair of the Senate; and, as the time is near at hand when the relations will cease which have for some time subsisted between this honorable house and myself, I beg leave before I withdraw, to return them my grateful thanks for all the instances of attention and respect with which they have been pleased to honor me. In the discharge of my functions here, it has been my conscientious endeavor to observe impartial justice, without regard to persons or subjects, and if I have failed in impressing this on the mind of the Senate, it will be to me a circumstance of the deepest regret. I may have erred at times—no doubt I have erred; this is the law of human nature. For honest errors, however, indulgence may be hoped. I owe to truth and justice at the same time to declare that the habits of order and decorum, which so strongly characterize the proceedings of the Senate, have rendered the umpirage of their President an office of little difficulty, that in times and on questions which have severely tried the sensibilities of the house, calm and temperate discussion has rarely been disturbed by departures from order.

Should the support which I have received from the Senate, in the performance of my duties here, attend me into the new station to which the public will has transferred me, I shall consider it as commencing under the happiest auspices.

With these expressions of my dutiful regard to the Senate, as a body, I ask leave to mingle my particular wishes for the health and happiness of the individuals who compose it, and to tender them my cordial and respectful adieus.

TO M. DE LA FAYETTE.

WASHINGTON, March 1, 1801.

MY DEAR FRIEND,—I received a letter from you the last year, and it has been long since I wrote one to you. During the earlier part of the period it would never have got to your hands, and during the latter, such has been the state of politics on both sides of the water, that no communications were safe.

Nevertheless, I have never ceased to cherish a sincere friendship for you, and to take a lively interest in your sufferings and losses. It would make me happy to learn that they are to have an end. We have passed through an awful scene in this country. The convulsion of Europe shook even us to our centre. A few hardy spirits stood firm to their post, and the ship has breasted the storm. The details of this cannot be put on paper. For the astonishing particulars I refer you to the bearer of this, Mr. Dorson, my friend, fully possessed of everything, as being a Member of Congress, and worthy of confidence. From him you must learn what America is now, or was, and what it has been; for now I hope it is getting back to the state in which you knew it. I will only add that the storm we have passed through proves our vessel indestructible. I have heard with great concern of the delicacy of Mrs. de La Fayette's health, and with anxiety to learn that it is getting better. Having been at Monticello all the time your son was in America, I had not an opportunity of seeing him and of proving my friendship to one in whom I have an interest. Present the homage of my respects and attachment to Mrs. La Fayette, and accept yourself assurances of my constant and affectionate friendship.

P. S. *March 18.* This moment Mr. Pickon arrived, and delivered me your letter, of which he was the bearer.

TO THE PRESIDENT PRO TEMPORE OF THE SENATE.

WASHINGTON, March 2, 1801.

SIR,—I beg leave through you to inform the Honorable the Senate of the United States, that I propose to take the oath which the Constitution prescribes to the President of the United States, before he enters on the execution of his office, on Wednesday, the 4th inst., at twelve o'clock, in the Senate chamber.

I have the honor to be, with the greatest respect, Sir, your most obedient, and most humble servant.

TO THE HONORABLE JOHN MARSHALL.

WASHINGTON, March 2, 1801.

I was desired two or three days ago to sign some sea letters, to be dated on or after the 4th of March, but in the meantime to be forwarded to the different ports; and I understood you would countersign them as the person appointed to perform the duties of Secretary of State, but that you thought a re-appointment, to be dated the 4th of March, would be necessary. I shall with pleasure sign such a re-appointment *nunc pro tunc*, if you can direct it to be made out, not being able to do it myself for want of a knowledge of the form.

I propose to take the oath or oaths of office as President of the United States, on Wednesday the 4th inst., at 12 o'clock, in the Senate chamber. May I hope the favor of your attendance to administer the oath? As the two Houses have notice of the hour, I presume a precise punctuality to it will be expected from me. I would pray you in the meantime to consider whether the oath prescribed in the Constitution be not the only one necessary to take? It seems to comprehend the substance of that prescribed by the Act of Congress to all officers, and it may be questionable whether the Legislature can require any new oath from the President. I do not know what has been done in this heretofore; but I presume the oaths administered to my predecessors are recorded in the Secretary of State's office.

Not being yet provided with a private secretary, and needing some person on Wednesday to be the bearer of a message or messages to the Senate, I presume the chief clerk of the department of State might be employed with propriety. Permit me through you to ask the favor of his attendance on me to my lodgings on Wednesday, after I shall have been qualified.

I have the honor to be with great respect, Sir, your most obedient, humble servant.

TO THE SPEAKER OF THE HOUSE OF REPRESENTATIVES.

WASHINGTON, March 3, 1801.

SIR,—I beg leave through you to inform the Honorable the House of Representatives of the United States, that I shall take the oath which the Constitution prescribes to the President of the United States, before he enters on the execution of his office, on Wednesday, the 4th inst., at twelve o'clock, in the Senate chamber.

I have the honor to be, with the greatest respect, Sir, your most obedient, and most humble servant.

TO JOHN DICKINSON.

WASHINGTON, March 6, 1801.

DEAR SIR,—No pleasure can exceed that which I received from reading your letter of the 21st ultimo. It was like the joy we expect in the mansions of the blessed, when received with the embraces of our forefathers, we shall be welcomed with their blessing as having done our part not unworthily of them. The storm through which we have passed, has been tremendous indeed. The tough sides of our Argosie have been thoroughly tried. Her strength has stood the waves into which she was steered, with a view to sink her. We shall put her on her republican tack, and she will now show by the beauty of her motion the skill of her builders. Figure apart, our fellow citizens have been led hood-winked from their principles, by a most extraordinary combination of circumstances. But the band is removed, and they now see for themselves. I hope to see shortly a perfect consolidation, to effect which, nothing shall be spared on my part, short of the abandonment of the principles of our revolution. A just and solid republican government maintained here, will be a standing monument and example for the aim and imitation of the people of other countries; and I join with you in the hope and belief that they will see, from our example, that a free government is of all others the most energetic; that the inquiry which has been excited among the mass of mankind by our revolution and its consequences, will ameliorate the condition of man over a great portion of the globe. What a satisfaction have we in the contemplation of the benevolent effects of our efforts, compared with those of the leaders on the other side, who have discountenanced all advances in science as dangerous

innovations, have endeavored to render philosophy and republicanism terms of reproach, to persuade us that man cannot be governed but by the rod, &c. I shall have the happiness of living and dying in the contrary hope. Accept assurances of my constant and sincere respect and attachment, and my affectionate salutations.

TO COLONEL MONROE.

WASHINGTON, March 7, 1801.

DEAR SIR,—I had written the enclosed letter to Mrs. Trist, and was just proceeding to begin one to you, when your favor of the 6th was put into my hands. I thank you sincerely for it, and consider the views of it so sound, that I have communicated it to my coadjutors as one of our important evidences of the public sentiment, according to which we must shape our course. I suspect, partly from this, but more from a letter of J. Taylor's which has been put into my hands, that an incorrect idea of my views has got abroad. I am in hopes my inaugural address will in some measure set this to rights, as it will present the leading objects to be conciliation and adherence to sound principle. This I know is impracticable with the leaders of the late faction, whom I abandon as incurables, and will never turn an inch out of my way to reconcile them. But with the main body of the federalists, I believe it very practicable. You know that the manœuvres of the year X. Y. Z. carried over from us a great body of the people, real republicans, and honest men under virtuous motives. The delusion lasted a while. At length the poor arts of tub plots, &c. were repeated till the designs of the party became suspected. From that moment those who had left us began to come back. It was by their return to us that we gained the victory in November, 1800, which we should not have gained in November, 1799. But during the suspension of the public mind from the 11th to the 17th of February, and the anxiety and alarm lest there should be no election, and anarchy ensue, a wonderful effect was produced on the mass of federalists who had not before come over. Those who had before become sensible of their error in the former change, and only wanted a decent excuse for coming back, seized that occasion for doing so. Another body, and a large

one it is, who from timidity of constitution had gone with those who wished for a strong executive, were induced by the same timidity to come over to us rather than risk anarchy: so that, according to the evidence we receive from every direction, we may say that the whole of that portion of the people which were called federalists, were made to desire anxiously the very event they had just before opposed with all their energies, and to receive the election which was made, as an object of their earnest wishes, a child of their own. These people (I always exclude their leaders) are now aggregated with us, they look with a certain degree of affection and confidence to the administration, ready to become attached to it, if it avoids in the outset acts which might revolt and throw them off. To give time for a perfect consolidation seems prudent. I have firmly refused to follow the counsels of those who have desired the giving offices to some of their leaders, in order to reconcile. I have given, and will give only to republicans, under existing circumstances. But I believe with others, that deprivations of office, if made on the ground of political principles alone, would revolt our new converts, and give a body to leaders who now stand alone. Some, I know, must be made. They must be as few as possible, done gradually, and bottomed on some malversation or inherent disqualification. Where we shall draw the line between retaining all and none, is not yet settled, and will not be till we get our administration together; and perhaps even then, we shall proceed *à talons*, balancing our measures according to the impression we perceive them to make.

This may give you a general view of our plan. Should you be in Albemarle the first week in April, I shall have the pleasure of seeing you there, and of developing things more particularly, and of profiting by an intercommunication of views. Dawson sails for France about the 15th, as the *bearer* only of the treaty to Elsworth and Murray. He has probably asked your commands, and your introductory letters.

Present my respects to Mrs. Monroe, and accept assurances of my high and affectionate consideration and attachment.

TO GOVERNOR M'KEAN.

WASHINGTON, March 9, 1801.

DEAR SIR,—I have to acknowledge the receipt of your favor of February the 20th, and to thank you for your congratulations on the event of the election. Had it terminated in the elevation of Mr. Burr, every republican would, I am sure, have acquiesced in a moment; because, however it might have been variant from the intentions of the voters, yet it would have been agreeable to the Constitution. No man would more cheerfully have submitted than myself, because I am sure the administration would have been republican, and the chair of the Senate permitting me to be at home eight months in the year, would, on that account, have been much more consonant to my real satisfaction. But in the event of an usurpation, I was decidedly with those who were determined not to permit it. Because that precedent once set, would be artificially reproduced, and end soon in a dictator. Virginia was bristling up I believe. I shall know the particulars from Governor Monroe, whom I expect to meet in a short visit I must make home, to select some books, &c. necessary here, and make other domestic arrangements.

* * * * *

Accept assurances of my high esteem and regard.

TO JOEL BARLOW.

WASHINGTON, March 14, 1801.

DEAR SIR,—Not having my papers here, it is not in my power to acknowledge the receipt of your letters by their dates, but I am pretty certain I have received two in the course of the last twelve months, one of them covering your excellent second letter. Nothing can be sounder than the principles it inculcates, and I am not without hopes they will make their way. You have understood that the revolutionary movements in Europe had, by industry and artifice, been wrought into objects of terror even to this country, and had really involved a great portion of our well-meaning citizens in a panic which was perfectly unaccountable, and during the prevalence of which they were led to support measures the most insane. They are now pretty thoroughly recovered from it, and sensible of the

mischief which was done, and preparing to be done, had their minds continued a little longer under that derangement. The recovery bids fair to be complete, and to obliterate entirely the line of party division which had been so strongly drawn. Not that their late leaders have come over, or ever can come over. But they stand, at present, almost without followers. The principal of them have retreated into the judiciary as a strong hold, the tenure of which renders it difficult to dislodge them. For all the particulars I must refer you to Mr. Dawson, a member of Congress, fully informed and worthy of entire confidence. Give me leave to ask for him your attentions and civilities, and a verbal communication of such things on your side the water as you know I feel a great interest in, and as may not with safety be committed to paper. I am entirely unable to conjecture the issue of things with you.

Accept assurances of my constant esteem and high consideration.

TO THOMAS PAINE.

WASHINGTON, March 18, 1801.

DEAR SIR,—Your letters of October the 1st, 4th, 6th and 16th, came duly to hand, and the papers which they covered were, according to your permission, published in the newspapers and in a pamphlet, and under your own name. These papers contain precisely our principles, and I hope they will be generally recognized here. Determined as we are to avoid, if possible, wasting the energies of our people in war and destruction, we shall avoid implicating ourselves with the powers of Europe, even in support of principles which we mean to pursue. They have so many other interests different from ours, that we must avoid being entangled in them. We believe we can enforce those principles, as to ourselves, by peaceable means, now that we are likely to have our public councils detached from foreign views. The return of our citizens from the phrenzy into which they had been wrought, partly by ill conduct in France, partly by artifices practised on them, is almost entire, and will, I believe, become quite so. But these details, too minute and long for a letter, will be better developed by Mr. Dawson, the bearer of this, a member of the late Congress, to whom I refer

you for them. He goes in the Maryland, a sloop of war, which will wait a few days at Havre to receive his letters, to be written on his arrival at Paris. You expressed a wish to get a passage to this country in a public vessel. Mr. Dawson is charged with orders to the captain of the Maryland to receive and accommodate you with a passage back, if you can be ready to depart at such short warning. Robert R. Livingston is appointed Minister Plenipotentiary to the republic of France, but will not leave this till we receive the ratification of the convention by Mr. Dawson. I am in hopes you will find us returned generally to sentiments worthy of former times. In these it will be your glory to have steadily labored, and with as much effect as any man living. That you may long live to continue your useful labors, and to reap their reward in the thankfulness of nations, is my sincere prayer.

Accept assurances of my high esteem and affectionate attachment.

TO M. DE REYNEVAL.

WASHINGTON, March 20, 1801.

DEAR SIR,—Mr. Pichon, who arrived two days ago, delivered me your favor of January the 1st, and I had before received one by Mr. Dupont, dated August the 24th, 1799, both on the subject of lands, claimed on behalf of your brother, Mr. Girard, and that of August the 24th, containing a statement of the case. I had verbally explained to Mr. Dupont, at the time, what I presumed to have been the case, which must, I believe, be very much mistaken in the statement sent with that letter; and I expected he had communicated it to you.

During the regal government, two companies, called the Loyal and the Ohio companies, had obtained grants from the crown for eight hundred thousand, or one million of acres of land, each, on the Ohio, on condition of settling them in a given number of years. They surveyed some, and settled them; but the war of 1755 came on, and broke up the settlements. After it was over, they petitioned for a renewal. Four other large companies then formed themselves, called the Mississippi, the Illinois, the Wabash, and the Indiana companies, each praying for immense quantities of land, some amounting

to two hundred miles square; so that they proposed to cover the whole country north between the Ohio and Mississippi, and a great portion of what is south. All these petitions were depending, without any answer whatever from the crown, when the Revolutionary war broke out. The petitioners had associated to themselves some of the nobility of England, and most of the characters in America of great influence. When Congress assumed the government, they took some of their body in as partners, to obtain their influence; and I remember to have heard, at the time, that one of them took Mr. Girard as a partner, expecting by that to obtain the influence of the French court, to obtain grants of those lands which they had not been able to obtain from the British government. All these lands were within the limits of Virginia, and that State determined, peremptorily, that they never should be granted to large companies, but left open equally to all; and when they passed their land law, (which I think was in 1778,) they confirmed only so much of the lands of the Loyal company as they had actually surveyed, which was a very small proportion, and annulled every other pretension. And when that State conveyed the lands to Congress, (which was not till 1784,) so determined were they to prevent their being granted to these or any other large companies, that they made it an express condition of the cession, that they should be applied first towards the soldiers' bounties, and the residue sold for the payment of the national debt, and for no other purpose. This disposition has been, accordingly, rigorously made, and is still going on; and Congress considers itself as having no authority to dispose of them otherwise.

* * * * *

I sincerely wish, Sir, it had been in my power to have given you a more agreeable account of this claim. But as the case actually is, the most substantial service is to state it exactly, and not to foster false expectations. I remember with great sensibility all the attentions you were so good as to render me while I resided in Paris, and shall be made happy by every occasion which can be given me of acknowledging them; and the expressions of your friendly recollection are particularly soothing to me.

Accept, I pray you, the assurances of my high consideration and constant esteem.

TO DOCTOR JOSEPH PRIESTLEY.

WASHINGTON, March 21, 1801.

DEAR SIR,—I learned some time ago that you were in Philadelphia, but that it was only for a fortnight; and I supposed you were gone. It was not till yesterday I received information that you were still there, had been very ill, but were on the recovery. I sincerely rejoice that you are so. Yours is one of the few lives precious to mankind, and for the continuance of which every thinking man is solicitous. Bigots may be an exception. What an effort, my dear Sir, of bigotry in politics and religion have we gone through! The barbarians really flattered themselves they should be able to bring back the times of Vandalism, when ignorance put everything into the hands of power and priestcraft. All advances in science were proscribed as innovations. They pretended to praise and encourage education, but it was to be the education of our ancestors. We were to look backwards, not forwards, for improvement; the President himself declaring, in one of his answers to addresses, that we were never to expect to go beyond them in real science. This was the real ground of all the attacks on you. Those who live by mystery and *charlatanerie*, fearing you would render them useless by simplifying the Christian philosophy,—the most sublime and benevolent, but most perverted system that ever shone on man,—endeavored to crush your well-earned and well-deserved fame. But it was the Lilliputians upon Gulliver. Our countrymen have recovered from the alarm into which art and industry had thrown them; science and honesty are replaced on their high ground; and you, my dear Sir, as their great apostle, are on its pinnacle. It is with heartfelt satisfaction that, in the first moments of my public action, I can hail you with welcome to our land, tender to you the homage of its respect and esteem, cover you under the protection of those laws which were made for the wise and good like you, and disdain the legitimacy of that libel on legislation, which, under the form of a law, was for some time placed among them. [\[14\]](#)

As the storm is now subsiding, and the horizon becoming serene, it is pleasant to consider the phenomenon with attention. We can no longer say there is nothing new under the sun. For this whole chapter in the history of man is new. The great extent of our Republic is new. Its sparse habitation is new. The mighty wave of public opinion which has rolled over it is new.

But the most pleasing novelty is, its so quietly subsiding over such an extent of surface to its true level again. The order and good sense displayed in this recovery from delusion, and in the momentous crisis which lately arose, really bespeak a strength of character in our nation which augurs well for the duration of our Republic; and I am much better satisfied now of its stability than I was before it was tried. I have been, above all things, solaced by the prospect which opened on us, in the event of a non-election of a President; in which case, the federal government would have been in the situation of a clock or watch run down. There was no idea of force, nor of any occasion for it. A convention, invited by the republican members of Congress, with the virtual President and Vice President, would have been on the ground in eight weeks, would have repaired the Constitution where it was defective, and wound it up again. This peaceable and legitimate resource, to which we are in the habit of implicit obedience, superseding all appeal to force, and being always within our reach, shows a precious principle of self-preservation in our composition, till a change of circumstances shall take place, which is not within prospect at any definite period.

But I have got into a long disquisition on politics, when I only meant to express my sympathy in the state of your health, and to tender you all the affections of public and private hospitality. I should be very happy indeed to see you here. I leave this about the 30th instant, to return about the 25th of April. If you do not leave Philadelphia before that, a little excursion hither would help your health. I should be much gratified with the possession of a guest I so much esteem, and should claim a right to lodge you, should you make such an excursion.

Accept the homage of my high consideration and respect, and assurances of affectionate attachment.

TO GENERAL WARREN.

WASHINGTON, March 21, 1801.

I am much gratified by the receipt of your favor of the 4th instant, and by the expressions of friendly sentiment it contains. It is pleasant for those who have just escaped threatened shipwreck, to hail one another when landed in unexpected safety. The resistance which our republic has opposed to a course of operation, for which it was not destined, shows a strength of body which affords the most flattering presage of duration. I hope we shall now be permitted to steer her in her natural course, and to show by the smoothness of her motion the skill with which she has been formed for it. I have seen with great grief yourself and so many other venerable patriots, retired and weeping in silence over the rapid subversion of those principles for the attachment of which you had sacrificed the ease and comforts of life; but I rejoice that you have lived to see us revindicate our rights, and regain manfully the ground from which fraud, not force, had for a moment driven us. The character which our fellow-citizens have displayed on this occasion, gives us everything to hope for the permanence of our government. Its extent has saved us. While some parts were laboring under the paroxysm of delusion, others retained their senses, and time was thus given to the affected parts to recover their health. Your portion of the Union is longest recovering, because the deceivers there wear a more imposing form; but a little more time, and they too will recover. I pray you to present the homage of my great respect to Mrs. Warren. I have long possessed evidences of her high station in the ranks of genius; and have considered her silence as a proof that she did not go with the current. Accept yourself, assurances of my high consideration and respect.

TO NATHANIEL NILES, ESQ.

WASHINGTON, March 22, 1801.

DEAR SIR,—Your favor of February 12th, which did not get to my hands till March 2d, is entitled to my acknowledgments. It was the more agreeable as it proved that the esteem I had entertained for you while we were acting together on the public stage, had not been without reciprocated effect. What wonderful scenes have passed since that time! The late chapter of our history furnishes a lesson to man perfectly new. The times have been awful, but they have proved an useful truth, that the good citizen must never despair of the commonwealth. How many good men abandoned the deck, and gave up the vessel as lost. It furnishes a new proof of the falsehood of Montesquieu's doctrine, that a republic can be preserved only in a small territory. The reverse is the truth. Had our territory been even a third only of what it is, we were gone. But while frenzy and delusion like an epidemic, gained certain parts, the residue remained sound and untouched, and held on till their brethren could recover from the temporary delusion; and that circumstance has given me great comfort. There was general alarm during the pending of the election in Congress, lest no President should be chosen, the government be dissolved and anarchy ensue. But the cool determination of the really patriotic to call a convention in that case, which might be on the ground in eight weeks, and wind up the machine again which had only run down, pointed out to my mind a perpetual and peaceable resource against * * * * * in whatever extremity might befall us; and I am certain a convention would have commanded immediate and universal obedience. How happy that our army had been disbanded! What might have happened otherwise seems rather a subject of reflection than explanation. You have seen your recommendation of Mr. Willard duly respected. As to yourself, I hope we shall see you again in Congress. Accept assurances of my high respect and attachment.

TO J. PAGE.

WASHINGTON, March 22, 1801.

MY DEAR FRIEND,—Yours of February 1st did not reach me till February 28th, and a pressing business has retarded my acknowledging it. I sincerely thank you for your congratulations on my election; but this is only the first

verse of the chapter. What the last may be nobody can tell. A consciousness that I feel no desire but to do what is best, without passion or predilection, encourages me to hope for an indulgent construction of what I do. I had in General Washington's time proposed you as director of the mint, and therefore should the more readily have turned to you, had a vacancy now happened; but that institution continuing at Philadelphia, because the Legislature have not taken up the subject in time to decide on it, it will of course remain there until this time twelvemonths. Should it then be removed, the present Director would probably, and the Treasurer certainly resign. It would give me great pleasure to employ the talents and integrity of Dr. Foster, in the latter office.

I am very much in hopes we shall be able to restore union to our country. Not indeed that the federal leaders can be brought over. They are invincibles; but I really hope their followers may. The bulk of these last were real republicans, carried over from us by French excesses. This induced me to offer a political creed, and to invite to conciliation first; and I am pleased to hear, that these principles are recognized by them, and considered as no bar of separation. A moderate conduct throughout, which may not revolt our new friends, and which may give them tenets with us, must be observed.

* * * * *

Present my respects to Mrs. Page, and accept evidences of my constant and affectionate esteem.

TO BENJAMIN WARING, ESQ., AND OTHERS.

WASHINGTON, March 23, 1801.

GENTLEMEN,—The reliance is most flattering to me which you are pleased to express in the character of my public conduct, as is the expectation with which you look forward to the inviolable preservation of our national Constitution, deservedly the boast of our country. That peace, safety, and concord may be the portion of our native land, and be long enjoyed by our

fellow-citizens, is the most ardent wish of my heart, and if I can be instrumental in procuring or preserving them, I shall think I have not lived in vain. In every country where man is free to think and to speak, differences of opinion will arise from difference of perception, and the imperfection of reason; but these differences, when permitted, as in this happy country, to purify themselves by free discussion, are but as passing clouds overspreading our land transiently, and leaving our horizon more bright and serene. That love of order and obedience to the laws, which so remarkably characterize the citizens of the United States, are sure pledges of internal tranquillity; and the elective franchise, if guarded as the act of our safety, will peaceably dissipate all combinations to subvert a Constitution dictated by the wisdom, and resting on the will of the people. That will is the only legitimate foundation of any government, and to protect its free expression should be our first object. I offer my sincere prayers to the Supreme ruler of the Universe, that he may long preserve our country in freedom and prosperity, and to yourselves, Gentlemen, and the citizens of Columbia and its vicinity, the assurances of my profound consideration and respect.

TO MOSES ROBINSON.

WASHINGTON, March 23, 1801.

DEAR SIR,—I have to acknowledge the receipt of your favor of the 3d instant, and to thank you for the friendly expressions it contains. I entertain real hope that the whole body of your fellow citizens (many of whom had been carried away by the X. Y. Z. business) will shortly be consolidated in the same sentiments. When they examine the real principles of both parties, I think they will find little to differ about. I know, indeed, that there are some of their leaders who have so committed themselves, that pride, if no other passion, will prevent their coalescing. We must be easy with them. The eastern States will be the last to come over, on account of the dominion of the clergy, who had got a smell of union between Church and State, and began to indulge reveries which can never be realized in the present state of science. If, indeed, they could have prevailed on us to view all advances in

science as dangerous innovations, and to look back to the opinions and practices of our forefathers, instead of looking forward, for improvement, a promising groundwork would have been laid. But I am in hopes their good sense will dictate to them, that since the mountain will not come to them, they had better go to the mountain; that they will find their interest in acquiescing in the liberty and science of their country, and that the Christian religion, when divested of the rags in which they have enveloped it, and brought to the original purity and simplicity of its benevolent institutor, is a religion of all others most friendly to liberty, science, and the freest expansion of the human mind.

I sincerely wish with you, we could see our government so secured as to depend less on the character of the person in whose hands it is trusted. Bad men will sometimes get in, and with such an immense patronage, may make great progress in corrupting the public mind and principles. This is a subject with which wisdom and patriotism should be occupied.

I pray you to accept assurances of my high respect and esteem.

TO WILLIAM B. GILES.

WASHINGTON, March 23, 1801.

DEAR SIR,—I received two days ago your favor of the 16th, and thank you for your kind felicitations on my election; but whether it will be a subject of felicitation, permanently, will be for the chapters of future history to say. The important subjects of the government I meet with some degree of courage and confidence, because I do believe the talents to be associated with me, the honest line of conduct we will religiously pursue at home and abroad, and the confidence of my fellow citizens dawning on us, will be equal to these objects.

But there is another branch of duty which I must meet with courage too, though I cannot without pain; that is, the appointments and disappointments as to offices. Madison and Gallatin being still absent, we have not yet decided on our rules of conduct as to these. That some ought to be removed

from office, and that all ought not, all mankind will agree. But where to draw the line, perhaps no two will agree. Consequently, nothing like a general approbation on this subject can be looked for. Some principles have been the subject of conversation, but not of determination; *e. g.* 1, all appointments to *civil* offices *during pleasure*, made after the event of the election was certainly known to Mr. Adams, are considered as nullities. I do not view the persons appointed as even candidates for the office, but make others without noticing or notifying them. Mr. Adams' best friends have agreed this is right. 2. Officers who have been guilty of *official* mal-conduct are proper subjects of removal. 3. Good men, to whom there is no objection but a difference of political principle, practised on only as far as the right of a private citizen will justify, are not proper subjects of removal, except in the case of attorneys and marshals. The courts being so decidedly federal and irremovable, it is believed that republican attorneys and marshals, being the doors of entrance into the courts, are indispensably necessary as a shield to the republican part of our fellow citizens, which, I believe, is the main body of the people.

These principles are yet to be considered of, and I sketch them to you in confidence. Not that there is objection to your mooted them as subjects of conversation, and as proceeding from yourself, but not as matters of executive determination. Nay, farther, I will thank you for your own sentiments and those of others on them. If received before the 20th of April, they will be in time for our deliberation on the subject. You know that it was in the year X. Y. Z. that so great a transition from us to the other side took place, and with as real republicans as we were ourselves; that these, after getting over that delusion, have been returning to us, and that it is to that return we owe a triumph in 1800, which in 1799 would have been the other way. The week's suspension of the election before Congress, seems almost to have completed that business, and to have brought over nearly the whole remaining mass. They now find themselves with us, and separated from their quondam leaders. If we can but avoid shocking their feelings by unnecessary acts of severity against their late friends, they will in a little time cement and form one mass with us, and by these means harmony and union be restored to our country, which would be the greatest good we could effect. It was a conviction that these people did not differ from us in principle, which induced me to define the principles which I deemed

orthodox, and to urge a reunion on those principles; and I am induced to hope it has conciliated many. I do not speak of the desperadoes of the quondam faction in and out of Congress. These I consider as incurables, on whom all attentions would be lost, and therefore will not be wasted. But my wish is, to keep their flock from returning to them.

On the subject of the marshal of Virginia, I refer you confidentially to Major Egglestone for information. I leave this about this day se'nnight, to make some arrangements at home preparatory to my final removal to this place, from which I shall be absent about three weeks.

Accept assurances of my constant esteem and high consideration and respect.

TO DOCTOR RUSH.

WASHINGTON, March 24, 1801

DEAR SIR,—I have to acknowledge the receipt of your friendly favor of the 12th, and the pleasing sensations produced in my mind by its affectionate contents. I am made very happy by learning that the sentiments expressed in my inaugural address gave general satisfaction, and holds out a ground on which our fellow citizens can once more unite. I am the more pleased, because these sentiments have been long and radically mine, and therefore will be pursued honestly and conscientiously. I know there is an obstacle which very possibly may check the confidence which would otherwise have been more generally reposed in my observance of these principles. This obstacle does not arise from the measures to be pursued, as to which I am in no fear of giving satisfaction, but from appointments and disappointments as to office. With regard to appointments, I have so much confidence in the justice and good sense of the federalists, that I have no doubt they will concur in the fairness of the position, that after they have been in the exclusive possession of all offices from the very first origin of party among us, to the 3d of March, at 9 o'clock in the night, no republican ever admitted, and this doctrine newly avowed, it is now perfectly just that the republicans should come in for the vacancies which may fall in, until

something like an equilibrium in office be restored. But the great stumbling block will be removals, which though made on those just principles only on which my predecessor ought to have removed the same persons, will nevertheless be ascribed to removal on party principles. 1st. I will expunge the effects of Mr. A.'s indecent conduct, in crowding nominations after he knew they were not for himself, till 9 o'clock of the night, at 12 o'clock of which he was to go out of office. So far as they are during pleasure, I shall not consider the persons named, even as candidates for the office, nor pay the respect of notifying them that I consider what was done as a nullity. 2d. Some removals must be made for misconduct. One of these is of the marshal in your city, who being an officer of justice, intrusted with the function of choosing impartial judges for the trial of his fellow citizens, placed at the awful tribunal of God and their country, selected judges who either avowed, or were known to him to be predetermined to condemn; and if the lives of the unfortunate persons were not cut short by the sword of the law, it was not for want of *his* good-will. In another State I have to perform the same act of justice on the dearest connection of my dearest friend, for similar conduct, in a case not capital. The same practice of packing juries, and prosecuting their fellow citizens with the bitterness of party hatred, will probably involve several other marshals and attorneys. Out of this line I see but very few instances where past misconduct has been in a degree to call for notice. Of the thousands of officers therefore, in the United States, a very few individuals only, probably not twenty, will be removed; and these only for doing what they ought not to have done. Two or three instances indeed where Mr. A. removed men because they would not sign addresses, &c., to him, will be rectified—the persons restored. The whole world will say this is just. I know that in stopping thus short in the career of removal, I shall give great offence to many of my friends. That torrent has been pressing me heavily, and will require all my force to bear up against; but my maxim is "*fiat justitia, ruat cælum.*" After the first unfavorable impressions of doing too much in the opinion of some, and too little in that of others, shall be got over, I should hope a steady line of conciliation very practicable, and that without yielding a single republican principle. A certainty that these principles prevailed in the breasts of the main body of federalists, was my motive for stating them as the ground of reunion. I have said thus much for your private satisfaction, to be used even in private conversation, as the presumptive principles on which we shall act, but not

as proceeding from myself declaredly. Information lately received from France gives a high idea of the progress of science there; it seems to keep pace with their * * * * *. I have^[15] just received from the A. P. Society, two volumes of Comparative Anatomy, by Cuvier, probably the greatest work in that line that has ever appeared. His comparisons embrace every organ of the animal carcass; and from man to the * * * * *. Accept assurances of my sincere friendship, and high consideration and respect.

TO DON JOSEPH YZNARDI.

WASHINGTON, March 26, 1801.

DEAR SIR,—The Secretary of State is proceeding in the consideration of the several matters which have been proposed to us by you, and will prepare answers to them, and particularly as to our vessels taken by French cruisers, and carried into the ports of Spain, contrary, as we suppose, to the tenor of the convention with France. Though ordinary business will be regularly transacted with you by the Secretary of State, yet considering what you mentioned as to our minister at Madrid to have been private and confidential, I take it out of the official course, and observe to you myself that under an intimate conviction of long standing in my mind, of the importance of an honest friendship with Spain, and one which shall identify her American interests with our own, I see in a strong point of view the necessity that the organ of communication which we establish near the King should possess the favor and confidence of that government. I have therefore destined for that mission a person whose accommodating and reasonable conduct, which will be still more fortified by instructions, will render him agreeable there, and an useful channel of communication between us. I have no doubt the new appointment by that government to this, in the room of the Chevalier d'Yrujo, has been made under the influence of the same motives; but still, the Chevalier d'Yrujo being intimately known to us, the integrity, sincerity, and reasonableness of his conduct having established in us a perfect confidence, in nowise diminished by the bickerings which took place between him and a former Secretary of State, whose irritable temper drew on more than one affair of the same kind,

it will be a subject of regret if we lose him. However, if the interests of Spain require that his services should be employed elsewhere, it is the duty of a friend to acquiesce; and we shall certainly receive any successor the King may choose to send, with every possible degree of favor and friendship. Our administration will not be collected till the end of the ensuing month; and consequently, till then, no other of the mutual interests of the two nations will be under our views, except those general assurances of friendship which I have before given you verbally, and now repeat. Accept, I pray you, assurances of my high consideration and respect.

TO GENERAL KNOX.

WASHINGTON, March 27, 1801.

DEAR SIR,—I received with great pleasure your favor of the 16th, and it is with the greatest satisfaction I learn from all quarters that my inaugural address is considered as holding out a ground for conciliation and union. I am the more pleased with this, because the opinion therein stated as to the real ground of difference among us (to wit: the measures rendered most expedient by French enormities), is that which I have long entertained. I was always satisfied that the great body of those called federalists were real republicans as well as federalists. I know, indeed, there are monarchists among us. One character of these is in theory only, and perfectly acquiescent in our form of government as it is, and not entertaining a thought of destroying it merely on their theoretical opinions. A second class, at the head of which is our quondam colleague, are ardent for introduction of monarchy, eager for armies, making more noise for a great naval establishment than better patriots, who wish it on a rational scale only, commensurate to our wants and our means. This last class ought to be tolerated, but not trusted. Believing that (excepting the ardent monarchists) all our citizens agreed in ancient whig principles, I thought it advisable to define and declare them, and let them see the ground on which we could rally. And the fact proving to be so, that they agree in these principles, I shall pursue them with more encouragement. I am aware that the necessity of a few removals for legal oppressions, delinquencies, and other official

malversations, may be misconstrued as done for political opinions, and produce hesitation in the coalition so much to be desired; but the extent of these will be too limited to make permanent impressions. In the class of removals, however, I do not rank the new appointments which Mr. A. crowded in with whip and spur from the 12th of December, when the event of the election was known, and, consequently, that he was making appointments, not for himself, but his successor, until 9 o'clock of the night, at 12 o'clock of which he was to go out of office. This outrage on decency should not have its effect, except in the life appointments which are irremovable; but as to the others I consider the nominations as nullities, and will not view the persons appointed as even candidates for *their* office, much less as possessing it by any title meriting respect. I mention these things that the grounds and extent of the removals may be understood, and may not disturb the tendency to union. Indeed that union is already effected, from New York southwardly, almost completely. In the New England States it will be slower than elsewhere, from particular circumstances better known to yourself than me. But we will go on attending with the utmost solicitude to their interests, doing them impartial justice, and I have no doubt they will in time do justice to us. I have opened myself frankly, because I wish to be understood by those who mean well, and are disposed to be just towards me, as you are, and because I know you will use it for good purposes only, and for none unfriendly to me. I leave this place in a few days to make a short excursion home, but some domestic arrangements are necessary previous to my final removal here, which will be about the latter end of April. Be so good as to present my respects to Mrs. Knox, and accept yourself assurances of my high consideration and esteem.

**TO MESSRS. EDDY, RUSSEL, THURBER, WHEATON, AND
SMITH.**

WASHINGTON. March 27, 1801.

GENTLEMEN,—I return my sincere thanks for your kind congratulations on my elevation to the first magistracy of the United States. I see with pleasure every evidence of the attachment of my fellow citizens to elective

government, calculated to promote their happiness, peculiarly adapted to their genius, habits, and situation, and the best permanent corrective of the errors or abuses of those interests with power. The Constitution on which our union rests, shall be administered by me according to the safe and honest meaning contemplated by the plain understanding of the people of the United States, at the time of its adoption,—a meaning to be found in the explanations of those who advocated, not those who opposed it, and who opposed it merely lest the constructions should be applied which they denounced as possible. These explanations are preserved in the publications of the time, and are too recent in the memories of most men to admit of question. The energies of the nation, as depends on me, shall be reserved for improvement of the condition of man, not wasted in his distinction. The lamentable resource of war is not authorized for evils of imagination, but for those actual injuries only, which would be more destructive of our well-being than war itself. Peace, justice, and liberal intercourse with all the nations of the world, will, I hope, with all nations, characterize this commonwealth. Accept for yourselves, gentlemen, and the respectable citizens of the town of Providence, assurances of my high consideration and respect.

TO MR. GEORGE JEFFERSON.

WASHINGTON, March 27, 1801.

DEAR SIR,—I have to acknowledge the receipt of yours of March 4th, and to express to you the delight with which I found the just, disinterested, and honorable point of view in which you saw the proposition it covered. The resolution you so properly approved had long been formed in my mind. The public will never be made to believe that an appointment of a relative is made on the ground of merit alone, uninfluenced by family views; nor can they ever see with approbation offices, the disposal of which they entrust to their Presidents for public purposes, divided out as family property. Mr. Adams degraded himself infinitely by his conduct on this subject, as General Washington had done himself the greatest honor. With two such examples to proceed by, I should be doubly inexcusable to err. It is true that

this places the relations of the President in a worse situation than if he were a stranger, but the public good, which cannot be affected if its confidence be lost, requires this sacrifice. Perhaps, too, it is compensated by sharing in the public esteem. I could not be satisfied till I assured you of the increased esteem with which this transaction fills me for you. Accept my affectionate expressions of it.

TO SAMUEL ADAMS.

WASHINGTON, March 29, 1801.

I addressed a letter to you, my very dear and ancient friend, on the 4th of March: not indeed to you by name, but through the medium of some of my fellow citizens, whom occasion called on me to address. In meditating the matter of that address, I often asked myself, is this exactly in the spirit of the patriarch, Samuel Adams? Is it as he would express it? Will he approve of it? I have felt a great deal for our country in the times we have seen. But individually for no one so much as yourself. When I have been told that you were avoided, insulted, frowned on, I could but ejaculate, 'Father, forgive them, for they know not what they do.' I confess I felt an indignation for you, which for myself I have been able, under every trial, to keep entirely passive. However, the storm is over, and we are in port. The ship was not rigged for the service she was put on. We will show the smoothness of her motions on her republican tack. I hope we shall once more see harmony restored among our citizens, and an entire oblivion of past feuds. Some of the leaders who have most committed themselves cannot come into this. But I hope the great body of our fellow citizens will do it. I will sacrifice everything but principle to procure it. A few examples of justice on officers who have perverted their functions to the oppression of their fellow citizens, must, in justice to those citizens, be made. But opinion, and the just maintenance of it, shall never be a crime in my view: nor bring injury on the individual. Those whose misconduct in office ought to have produced their removal even by my predecessor, must not be protected by the delicacy due only to honest men. How much I lament that time has deprived me of your aid. It would have been a day of glory which should

have called you to the first office of the administration. But give us your counsel my friend, and give us your blessing; and be assured that there exists not in the heart of man a more faithful esteem than mine to you, and that I shall ever bear you the most affectionate veneration and respect.

TO ELBRIDGE GERRY.

WASHINGTON, March 29, 1801.

MY DEAR SIR,—Your two letters of January the 15th and February the 24th, came safely to hand, and I thank you for the history of a transaction which will ever be interesting in our affairs. It has been very precisely as I had imagined. I thought, on your return, that if you had come forward boldly, and appealed to the public by a full statement, it would have had a great effect in your favor personally, and that of the republican cause then oppressed almost unto death. But I judged from a tact of the southern pulse. I suspect that of the north was different and decided your conduct; and perhaps it has been as well. If the revolution of sentiment has been later, it has perhaps been not less sure. At length it has arrived. What with the natural current of opinion which has been setting over to us for eighteen months, and the immense impetus which was given it from the 11th to the 17th of February, we may now say that the United States from New York southwardly, are as unanimous in the principles of '76, as they were in '76. The only difference is, that the leaders who remain behind are more numerous and bolder than the apostles of toryism in '76. The reason is, that we are now justly more tolerant than we could safely have been then, circumstanced as we were. Your part of the Union though as absolutely republican as ours, had drunk deeper of the delusion, and is therefore slower in recovering from it. The ægis of government, and the temples of religion and of justice, have all been prostituted there to toll us back to the times when we burnt witches. But your people will rise again. They will awake like Sampson from his sleep, and carry away the gates and posts of the city. You, my friend, are destined to rally them again under their former banner, and when called to the post, exercise it with firmness and with inflexible adherence to your own principles. The people will support you,

notwithstanding the howlings of the ravenous crew from whose jaws they are escaping. It will be a great blessing to our country if we can once more restore harmony and social love among its citizens. I confess, as to myself, it is almost the first object of my heart, and one to which I would sacrifice everything but principle. With the people I have hopes of effecting it. But their Coryphæi are incurables. I expect little from them.

I was not deluded by the eulogiums of the public papers in the first moments of change. If they could have continued to get all the loaves and fishes, that is, if I would have gone over to them, they would continue to eulogise. But I well knew that the moment that such removals should take place, as the justice of the preceding administration ought to have executed, their hue and cry would be set up, and they would take their old stand. I shall disregard that also. Mr. Adams' last appointments, when he knew he was naming counsellors and aids for me and not for himself, I set aside as far as depends on me. Officers who have been guilty of gross abuses of office, such as marshals packing juries, &c., I shall now remove, as my predecessor ought in justice to have done. The instances will be few, and governed by strict rule, and not party passion. The right of opinion shall suffer no invasion from me. Those who have acted well have nothing to fear, however they may have differed from me in opinion: those who have done ill, however, have nothing to hope; nor shall I fail to do justice lest it should be ascribed to that difference of opinion. A coalition of sentiments is not for the interest of the printers. They, like the clergy, live by the zeal they can kindle, and the schisms they can create. It is contest of opinion in politics as well as religion which makes us take great interest in them, and bestow our money liberally on those who furnish aliment to our appetite. The mild and simple principles of the Christian philosophy would produce too much calm, too much regularity of good, to extract from its disciples a support from a numerous priesthood, were they not to sophisticate it, ramify it, split it into hairs, and twist its texts till they cover the divine morality of its author with mysteries, and require a priesthood to explain them. The Quakers seem to have discovered this. They have no priests, therefore no schisms. They judge of the text by the dictates of common sense and common morality. So the printers can never leave us in a state of perfect rest and union of opinion. They would be no longer useful, and would have to go to the plough. In the first moments of quietude which have succeeded

the election, they seem to have aroused their lying faculties beyond their ordinary state, to re-agitate the public mind. What appointments to office have they detailed which had never been thought of, merely to found a text for their calumniating commentaries. However, the steady character of our countrymen is a rock to which we may safely moor; and notwithstanding the efforts of the papers to disseminate early discontents, I expect that a just, dispassionate and steady conduct, will at length rally to a proper system the great body of our country. Unequivocal in principle, reasonable in manner, we shall be able I hope to do a great deal of good to the cause of freedom and harmony. I shall be happy to hear from you often, to know your own sentiments and those of others on the course of things, and to concur with you in efforts for the common good. Your letters through the post will not come safely. Present my best respects to Mrs. Gerry, and accept yourself assurances of my constant esteem and high consideration.

TO DOCTOR WALTER JONES.

WASHINGTON, March 31, 1801.

DEAR SIR,—I was already almost in the act of mounting my horse for a short excursion home, when your favor of the 14th was put into my hands. I stop barely to acknowledge it, and to thank you for your kind congratulations, and still more for your interesting observations on the course of things. I am sensible how far I should fall short of effecting all the reformation which reason would suggest, and experience approve, were I free to do whatever I thought best; but when we reflect how difficult it is to move or inflect the great machine of society, how impossible to advance the notions of a whole people suddenly to ideal right, we see the wisdom of Solon's remark, that no more good must be attempted than the nation can bear, and that all will be chiefly to reform the waste of public money, and thus drive away the vultures who prey upon it, and improve some little on old routines. Some new fences for securing constitutional rights may, with the aid of a good legislature, perhaps be attainable. I am going home for three weeks, to make some final arrangements there for my removal hither. Mr. Madison and Mr. Gallatin will be here by the last of the month. Dearborne and Lincoln

remain here; and General Smith entered yesterday on the naval department, but only *pro tempore*, and to give me time to look for what cannot be obtained—a prominent officer, equal and willing to undertake the duties. Accept assurances of my constant and affectionate respect.

TO A. STUART, ESQ.

MONTICELLO, April 8, 1801.

DEAR SIR,—I arrived here on the 4th, and expect to stay a fortnight, in order to make some arrangements preparatory to my final removal to Washington. You know that the last Congress established a Western judiciary district in Virginia, comprehending chiefly the Western counties. Mr. Adams, who continued filling all the offices till nine o'clock of the night, at twelve of which he was to go out of office himself, took care to appoint for this district also. The judge, of course, stands till the law shall be repealed, which we trust will be at the next Congress. But as to all others, I made it immediately known that I should consider them as nullities, and appoint others, as I think I have a preferable right to name agents for my own administration, at least to the vacancies falling after it was known that Mr. Adams was not naming for himself. Consequently, we want an attorney and marshal for the Western district. I have thought of Mr. Coalter, but I am told he has a clerkship incompatible with it by our laws. I thought also of Hugh Holmes; but I fear he is so far off, he would not attend the court, which is to be in Rockbridge, I believe. This is the extent of my personal knowledge. Pray recommend one to me, as also a marshal; and let them be the most respectable and unexceptionable possible, and especially let them be republicans. The only shield for our republican citizens against the federalism of the courts is to have the attorneys and marshals republicans. There is nothing I am so anxious about as good nominations, conscious that the merit as well as reputation of an administration depends as much on that as on its measures.

Accept assurances of my constant esteem and high consideration and respect.

TO HUGH WHITE, ESQ.

WASHINGTON, May 2, 1801.

SIR,—The satisfaction which, in the name of the foreigners residing in Beaver County, you are pleased to express in my appointment to the Presidency of the United States, the expectations you form of the character of my administration, and your kind wishes for my happiness, demand my sincere thanks. Born in other countries, yet believing you could be happy in this, our laws acknowledge, as they should do, your right to join us in society, conforming, as I doubt not you will do, to our established rules. That these rules shall be as equal as prudential considerations will admit, will certainly be the aim of our legislatures, general and particular. To unequal privileges among members of the same society the spirit of our nation is, with one accord, adverse. If the *unexample* state of the world has in any instance occasioned among us temporary departures from the system of equal rule, the restoration of tranquillity will doubtless produce reconsideration; and your own knowledge of the liberal conduct heretofore observed towards strangers settling among us will warrant the belief that what is right will be done. Accept a reciprocation of wishes for your present and future welfare, and assurances of my high consideration and respect.

TO GIDEON GRANGER.

WASHINGTON, May 3, 1801.

DEAR SIR,—I wrote you on the 29th of March. Yours of the 25th of that month, with the address it covered, had not reached this place on the 1st of April, when I set out on a short visit to my residence in Virginia, where some arrangements were necessary previous to my settlement here. In fact, your letter came to me at Monticello only the 24th of April, two days before my departure from thence. This, I hope, will sufficiently apologize for the delay of the answer, which those unapprised of these circumstances will have thought extraordinary.

A new subject of congratulation has arisen. I mean the regeneration of Rhode Island. I hope it is the beginning of that resurrection of the genuine spirit of New England which rises for life eternal. According to natural order, Vermont will emerge next, because least, after Rhode Island, under the yoke of hierocracy. I have never dreamed that all opposition was to cease. The clergy, who have missed their union with the State, the Anglomen, who have missed their union with England, and the political adventurers, who have lost the chance of swindling and plunder in the waste of public money, will never cease to bawl, on the breaking up of their sanctuary. But among the people, the schism is healed, and with tender treatment the wound will not re-open. Their quondam leaders have been astounded with the suddenness of the desertion; and their silence and appearance of acquiescence have proceeded not from a thought of joining us, but the uncertainty what ground to take. The very first acts of the administration, the nominations, have accordingly furnished something to yelp on; and all our subsequent acts will furnish them fresh matter, because there is nothing against which human ingenuity will not be able to find something to say.

Accept assurances of my sincere attachment and high respect.

TO NATHANIEL MACON.

WASHINGTON, May 14, 1801.

DEAR SIR,—Your favors of April the 20th and 23d had been received, and the commission made out for Mr. Potts, before I received the letter of the 1st instant. I have still thought it better to forward the commission, in the hope that reconsideration, or the influence of yourself and friends, might induce an acceptance of it. Should it be otherwise, you must recommend some other good person, as I had rather be guided by your opinion than that of the person you refer me to. Perhaps Mr. Potts may be willing to stop the gap till you meet and repeal the law. If he does not, let me receive a recommendation from you as quickly as possible. And in all cases, when an office becomes vacant in your State, as the distance would occasion a great delay were you to wait to be regularly consulted, I shall be much obliged to

you to recommend the best characters. There is nothing I am so anxious about as making the best possible appointments, and no case in which the best men are more liable to mislead us, by yielding to the solicitations of applicants. For this reason your own spontaneous recommendation would be desirable. Now to answer your particulars, *seriatim*,—

Levees are done away.

The first communication to the next Congress will be, like all subsequent ones, by message, to which no answer will be expected.

The diplomatic establishment in Europe will be reduced to three ministers.

The compensations to collectors depend on you, and not on

The army is undergoing a chaste reformation.

The navy will be reduced to the legal establishment by the last of this month.

Agencies in every department will be revised.

We shall push you to the uttermost in economising.

A very early recommendation had been given to the Post Master General to employ no printer, foreigner, or revolutionary tory in any of his offices. This department is still untouched.

The arrival of Mr. Gallatin yesterday, completed the organization of our administration.

Accept assurances of my sincere esteem and high respect.

**TO THE GENERAL ASSEMBLY OF RHODE ISLAND AND
PROVIDENCE PLANTATIONS.**

WASHINGTON, May 26, 1801.

I return my grateful thanks to the General Assembly of the State of Rhode Island and Providence Plantations, for the congratulations which, on behalf of themselves and their constituents, they have been pleased to express on my election to the Chief Magistracy of the United States; and I learn with pleasure their approbation of the principles declared by me on that occasion; principles which flowed sincerely from the heart and judgment, and which, with sincerity, will be pursued. While acting on them, I ask only to be judged with truth and candor.

To preserve the peace of our fellow citizens, promote their prosperity and happiness, reunite opinion, cultivate a spirit of candor, moderation, charity, and forbearance towards one another, are objects calling for the efforts and sacrifices of every good man and patriot. Our religion enjoins it; our happiness demands it; and no sacrifice is requisite but of passions hostile to both.

It is a momentous truth, and happily of universal impression on the public mind, that our safety rests on the preservation of our Union. Our citizens have wisely formed themselves into one nation as to others, and several States as among themselves. To the united nation belongs our external and mutual relations, to each State severally the care of our persons, our property, our reputation, and religious freedom. This wise distribution, if carefully preserved, will prove, I trust from example, that while smaller governments are better adapted to the ordinary objects of society, larger confederations more effectually secure independence and the preservation of republican government.

I am sensible of the great interest which your State justly feels in the prosperity of commerce. It is of vital interest also to States more agricultural, whose produce, without commerce, could not be exchanged. As the handmaid of agriculture therefore, commerce will be cherished by me both from principle and duty.

Accept, I beseech you, for the General Assembly of the State of Rhode Island and Providence Plantations, the homage of my high consideration and respect, and I pray God to have them always in his safe and holy keeping.

TO LEVI LINCOLN.

WASHINGTON, July 11, 1801.

DEAR SIR,—Your favor of the 15th came to hand on the 25th of June, and conveyed a great deal of that information which I am anxious to receive. The consolidation of our fellow citizens in general is the great object we ought to keep in view, and that being once obtained, while we associate with us in affairs, to a certain degree, the federal sect of republicans, we must strip of all the means of influence the Essex junto, and their associate monarchs in every part of the Union. The former differ from us only in the shades of power to be given to the executive, being, with us, attached to republican government. The latter wish to sap the republic by fraud, if they cannot destroy it by force, and to erect an English monarchy in its place; some of them (as Mr. Adams) thinking its corrupt parts should be cleansed away, others (as Hamilton) thinking that would make it an impracticable machine. We are proceeding gradually in the regeneration of offices, and introducing republicans to some share in them. I do not know that it will be pushed further than was settled before you went away, except as to Essex men. I must ask you to make out a list of those in office in yours and the neighboring States, and to furnish me with it. There is little of this spirit south of the Hudson. I understand that Jackson is a very determined one, though in private life amiable and honorable. But amiable monarchists are not safe subjects of republican confidence. What will be the effect of his removal? How should it be timed? Who his successor? What place can General Lyman properly occupy? Our gradual reformation seems to produce good effects everywhere except in Connecticut. Their late session of legislature has been more intolerant than all others. We must meet them with equal intolerance. When they will give a share in the State offices, they shall be replaced in a share of the General offices. Till then we must follow their example. Mr. Goodrich's removal has produced a bitter *remonstrance*, with much personality against the two Bishops. I am sincerely sorry to see the inflexibility of the *federal* spirit there, for I cannot believe they are *all monarchists*.

I observe your tory papers make much of the Berceau. As that is one of the subjects to be laid before Congress, it is material to commit to writing, while fresh in memory, the important circumstances. You possess more of

these than any other person. I pray you, therefore, immediately to state to me all the circumstances you recollect. I will aid you with the following hints, which you can correct and incorporate. Pichon, I think, arrived about the 12th of March. I do not remember when he first proposed the question about the Insurgente and Berceau. On the 20th of March, Mr. Stoddart wrote to his agent at Boston to put the Berceau into handsome order to be restored, but whether he did that of his own accord, or after previous consultation with you or myself, I do not recollect. I set out for Monticello April the 1st. About that time General Smith sent new directions to put her precisely into the state in which she was before the capture. Do you recollect from what fund it was contemplated to do this? I had trusted for this to Stoddart, who was familiar with all the funds, being myself entirely new in office at that time. What will those repairs have cost? Did we not leave to Le Tombe to make what allowance he thought proper to the officers, we only advancing money on his undertaking repayment? I shall hope to receive from you as full a statement as you can make. It may be useful to inquire into the time and circumstances of her being dismantled. When you shall have retraced the whole matter in your memory, would it not be well to make a summary statement of the important circumstances for insertion in the Chronicle, in order to set the minds of the candid part of the public to rights? Mr. Madison has had a slight bilious attack. I am advising him to get off by the middle of this month. We who have stronger constitutions shall stay to the end of it. But during August and September, we also must take refuge in climates rendered safer by our habits and confidence. The post will be so arranged as that letters will go hence to Monticello, and the answer return here in a week. I hope I shall continue to hear from you there.

Accept assurances of my affectionate esteem and high respect.

P. S. The French convention was laid before the Senate December the 16th. I think the Berceau arrived afterwards. If so, she was dismantled, when it was known she was to be restored. When did she arrive? By whose orders was she dismantled?

TO GOVERNOR MONROE.

WASHINGTON, July 11, 1801.

DEAR SIR,—As to the mode of correspondence between the general and particular executives, I do not think myself a good judge. Not because my position gives me any prejudice on the occasion; for if it be possible to be certainly conscious of anything, I am conscious of feeling no difference between writing to the highest and lowest being on earth; but because I have ever thought that forms should yield to whatever should facilitate business. Comparing the two governments together, it is observable that in all those cases where the independent or reserved rights of the States are in question, the two executives, if they are to act together, must be exactly co-ordinate; they are, in these cases, each the supreme head of an independent government. In other cases, to wit, those transferred by the Constitution to the General Government, the general executive is certainly pre-ordinate; *e. g.* in a question respecting the militia, and others easily to be recollected. Were there, therefore, to be a stiff adherence to etiquette, I should say that in the former cases the correspondence should be between the two heads, and that in the latter, the Governor must be subject to receive orders from the war department as any other subordinate officer would. And were it observed that either party set up unjustifiable pretensions, perhaps the other might be right in opposing them by a tenaciousness of his own rigorous rights. But I think the practice in General Washington's administration was most friendly to business, and was absolutely equal; sometimes he wrote to the Governors, and sometimes the heads of departments wrote. If a letter is to be on a general subject, I see no reason why the President should not write; but if it is to go into details, these being known only to the head of the department, it is better he should write directly. Otherwise, the correspondence must involve circuities. If this be practised promiscuously in both classes of cases, each party setting examples of neglecting etiquette, both will stand on equal ground, and convenience alone will dictate through whom any particular communication is to be made. On the whole, I think a free correspondence best, and shall never hesitate to write myself to the Governors, in every federal case, where the occasion presents itself to me particularly. Accept assurances of my sincere and constant affection and respect.

TO ELIAS SHIPMAN AND OTHERS, A COMMITTEE OF THE MERCHANTS OF NEW HAVEN.

WASHINGTON, July 12, 1801.

GENTLEMEN,—I have received the remonstrance you were pleased to address to me, on the appointment of Samuel Bishop to the office of collector of New Haven, lately vacated by the death of David Austin. The right of our fellow citizens to represent to the public functionaries their opinion on proceedings interesting to them, is unquestionably a constitutional right, often useful, sometimes necessary, and will always be respectfully acknowledged by me.

Of the various executive duties, no one excites more anxious concern than that of placing the interests of our fellow citizens in the hands of honest men, with understandings sufficient for their stations. No duty, at the same time, is more difficult to fulfil. The knowledge of characters possessed by a single individual is, of necessity, limited. To seek out the best through the whole Union, we must resort to other information, which, from the best of men, acting disinterestedly and with the purest motives, is sometimes incorrect. In the case of Samuel Bishop, however, the subject of your remonstrance, time was taken, information was sought, and such obtained as could leave no room for doubt of his fitness. From private sources it was learned that his understanding was sound, his integrity pure, his character unstained. And the offices confided to him within his own State, are public evidences of the estimation in which he is held by the State in general, and the city and township particularly in which he lives. He is said to be the town clerk, a justice of the peace, mayor of the city of New Haven, an office held at the will of the legislature, chief judge of the court of common pleas for New Haven county, a court of high criminal and civil jurisdiction wherein most causes are decided without the right of appeal or review, and sole judge of the court of probates, wherein he singly decides all questions of wills, settlement of estates, testate and intestate, appoints guardians, settles their accounts, and in fact has under his jurisdiction and care all the property real and personal of persons dying. The two last offices, in the annual gift of the legislature, were given to him in May last. Is it possible that the man to whom the legislature of Connecticut has so recently committed trusts of such difficulty and magnitude, is 'unfit to be the

collector of the district of New Haven,' though acknowledged in the same writing, to have obtained all this confidence 'by a long life of usefulness?' It is objected, indeed, in the remonstrance, that he is seventy-seven years of age; but at a much more advanced age, our Franklin was the ornament of human nature. He may not be able to perform in person, all the details of his office; but if he gives us the benefit of his understanding, his integrity, his watchfulness, and takes care that all the details are well performed by himself or his necessary assistants, all public purposes will be answered. The remonstrance, indeed, does not allege that the office *has been* illy conducted, but only apprehends that it *will be* so. Should this happen in event, be assured I will do in it what shall be just and necessary for the public service. In the meantime, he should be tried without being prejudged.

The removal, as it is called, of Mr. Goodrich, forms another subject of complaint. Declarations by myself in favor of *political tolerance*, exhortations to *harmony* and affection in social intercourse, and to respect for the *equal rights* of the minority, have, on certain occasions, been quoted and misconstrued into assurances that the tenure of offices was to be undisturbed. But could candor apply such a construction? It is not indeed in the remonstrance that we find it; but it leads to the explanations which that calls for. When it is considered, that during the late administration, those who were not of a particular sect of politics were excluded from all office; when, by a steady pursuit of this measure, nearly the whole offices of the United States were monopolized by that sect; when the public sentiment at length declared itself, and burst open the doors of honor and confidence to those whose opinions they more approved, was it to be imagined that this monopoly of office was still to be continued in the hands of the minority? Does it violate their *equal rights*, to assert some rights in the majority also? Is it *political intolerance* to claim a proportionate share in the direction of the public affairs? Can they not *harmonize* in society unless they have everything in their own hands? If the will of the nation, manifested by their various elections, calls for an administration of government according with the opinions of those elected; if, for the fulfilment of that will, displacements are necessary, with whom can they so justly begin as with persons appointed in the last moments of an administration, not for its own aid, but to begin a career at the same time with their successors, by whom they had never been approved, and who could scarcely expect from them a

cordial co-operation? Mr. Goodrich was one of these. Was it proper for him to place himself in office, without knowing whether those whose agent he was to be would have confidence in his agency? Can the preference of another, as the successor to Mr. Austin, be candidly called a removal of Mr. Goodrich? If a due participation of office is a matter of right, how are vacancies to be obtained? Those by death are few; by resignation, none. Can any other mode than that of removal be proposed? This is a painful office; but it is made my duty, and I meet it as such. I proceed in the operation with deliberation and inquiry, that it may injure the best men least, and effect the purposes of justice and public utility with the least private distress; that it may be thrown, as much as possible, on delinquency, on oppression, on intolerance, on ante-revolutionary adherence to our enemies.

The remonstrance laments "that a change in the administration must produce a change in the subordinate officers;" in other words, that it should be deemed necessary for all officers to think with their principal? But on whom does this imputation bear? On those who have excluded from office every shade of opinion which was not theirs? Or on those who have been so excluded? I lament sincerely that unessential differences of opinion should ever have been deemed sufficient to interdict half the society from the rights and the blessings of self-government, to proscribe them as unworthy of every trust. It would have been to me a circumstance of great relief, had I found a moderate participation of office in the hands of the majority. I would gladly have left to time and accident to raise them to their just share. But their total exclusion calls for prompter corrections. I shall correct the procedure; but that done, return with joy to that state of things, when the only questions concerning a candidate shall be, is he honest? Is he capable? Is he faithful to the Constitution?

I tender you the homage of my high respect.

TO LEVI LINCOLN.

MONTICELLO, August 26, 1801.

DEAR SIR,—Your favor of July the 28th was received here on the 20th instant. The superscription of my letter of July the 11th by another hand was to prevent danger to it from the curious. Your statement respecting the Berceau coincided with my own recollection, in the circumstances recollected by me, and I concur with you in supposing it may not now be necessary to give any explanations on the subject in the papers. The purchase was made by our predecessors, and the repairs begun by them. Had she been to continue ours, we were authorized to put and keep her in good order out of the fund of the naval contingencies; and when in good order, we obeyed a law of the land, the treaty, in giving her up. It is true the treaty was not ratified; but when ratified, it is validated retrospectively. We took on ourselves this risk, but France had put more into our hands on the same risk. I do not know whether the clamor, as to the allowance to the French officers of their regular pay, has been rectified by a statement that it was on the request of the French consul, and his promise to repay it. So that they cost the United States, on this arrangement, nothing.

I am glad to learn from you that the answer to New Haven had a good effect in Massachusetts on the republicans, and no ill effects on the sincere federalists. I had foreseen, years ago, that the first republican President who should come into office after all the places in the government had become exclusively occupied by federalists, would have a dreadful operation to perform. That the republicans would consent to a continuation of everything in federal hands, was not to be expected, because neither just nor politic. On him, then, was to devolve the office of an executioner, that of lopping off. I cannot say that it has worked harder than I expected. You know the moderation of our views in this business, and that we all concurred in them. We determined to proceed with deliberation. This produced impatience in the republicans, and a belief we meant to do nothing. Some occasion of public explanation was eagerly desired, when the New Haven remonstrance offered us that occasion. The answer was meant as an explanation to our friends. It has had on them, everywhere, the most wholesome effect. Appearances of schismatizing from us have been entirely done away. I own I expected it would check the current with which the republican federalists were returning to their brethren, the republicans. I extremely lamented this effect; for the moment which should convince me that a healing of the nation into one is impracticable, would be the last moment of my wishing to

remain where I am. (Of the monarchical federalists I have no expectations. They are incurables, to be taken care of in a mad house, if necessary, and on motives of charity.) I am much pleased, therefore, with your information that the republican federalists are still coming in to the desired union. The Eastern newspapers had given me a different impression, because I supposed the printers knew the taste of their customers, and cooked their dishes to their palates. The Palladium is understood to be the *clerical* paper, and from the clergy I expect no mercy. They crucified their Saviour, who preached that their kingdom was not of this world; and all who practise on that precept must expect the extreme of their wrath. The laws of the present day withhold their hands from blood; but lies and slander still remain to them.

I am satisfied that the heaping of abuse on me, personally, has been with the design and the hope of provoking me to make a general sweep of all federalists out of office. But as I have carried no passion into the execution of this disagreeable duty, I shall suffer none to be excited. The clamor which has been raised will not provoke me to remove one more, nor deter me from removing one less, than if not a word had been said on the subject. In Massachusetts, you may be assured, great moderation will be used. Indeed, Connecticut, New York, New Jersey, Pennsylvania and Delaware, are the only States where anything considerable is desired. In the course of the summer all which is necessary will be done; and we may hope that this cause of offence being at an end, the measures we shall pursue and propose for the amelioration of the public affairs will be so confessedly salutary as to unite all men not monarchists in principle.

We have considerable hopes of republican senators from South Carolina, Maryland and Delaware, and some as to Vermont. In any event, we are secure of a majority in the Senate; and consequently that there will be a concert of action between the Legislature and executive. The removal of excrescences from the judiciary is the universal demand. We propose to re-assemble at Washington on the last day of September. Accept assurances of my affectionate esteem and high respect.

TO ROBERT R. LIVINGSTON.

MONTICELLO, September 9, 1801.

DEAR SIR,—You will receive, probably by this post, from the Secretary of State, his final instructions for your mission to France. We have not thought it necessary to say anything in them on the great question of the maritime law of nations, which at present agitates Europe; that is to say, whether free ships shall make free goods; because we do not mean to take any side in it during the war. But, as I had before communicated to you some loose thoughts on that subject, and have since considered it with somewhat more attention, I have thought it might be useful that you should possess my ideas in a more matured form than that in which they were before given. Unforeseen circumstances may perhaps oblige you to hazard an opinion, on some occasion or other, on this subject, and it is better that it should not be at variance with ours. I write this, too, myself, that it may not be considered as official, but merely my individual opinion, unadvised by those official counsellors whose opinions I deem my safest guide, and should unquestionably take in form, were circumstances to call for a solemn decision of the question.

When Europe assumed the general form in which it is occupied by the nations now composing it, and turned its attention to maritime commerce, we found among its earliest practices, that of taking the goods of an enemy from the ship of a friend; and that into this practice every maritime State went sooner or later, as it appeared on the theatre of the ocean. If, therefore, we are to consider the practice of nations as the sole and sufficient evidence of the law of nature among nations, we should unquestionably place this principle among those of the natural laws. But its inconveniences, as they affected neutral nations peaceably pursuing their commerce, and its tendency to embroil them with the powers happening to be at war, and thus to extend the flames of war, induced nations to introduce by special compacts, from time to time, a more convenient rule; that "free ships should make free goods;" and this latter principle has by every maritime nation of Europe been established, to a greater or less degree, in its treaties with other nations; insomuch, that all of them have, more or less frequently, assented to it, as a rule of action in particular cases. Indeed, it is now urged, and I think with great appearance of reason, that this is the genuine principle

dictated by national morality; and that the first practice arose from accident, and the particular convenience of the States^[16] which first figured on the water, rather than from well-digested reflections on the relations of friend and enemy, on the rights of territorial jurisdiction, and on the dictates of moral law applied to these. Thus it had never been supposed lawful, in the territory of a friend to seize the goods of an enemy. On an element which nature has not subjected to the jurisdiction of any particular nation, but has made common to all for the purposes to which it is fitted, it would seem that the particular portion of it which happens to be occupied by the vessel of any nation, in the course of its voyage, is for the moment, the exclusive property of that nation, and, with the vessel, is exempt from intrusion by any other, and from its jurisdiction, as much as if it were lying in the harbor of its sovereign. In no country, we believe, is the rule otherwise, as to the subjects of property common to all. Thus the place occupied by an individual in a highway, a church, a theatre, or other public assembly, cannot be intruded on, while its occupant holds it for the purposes of its institution. The persons on board a vessel traversing the ocean, carrying with them the laws of their nation, have among themselves a jurisdiction, a police, not established by their individual will, but by the authority of their nation, of whose territory their vessel still seems to compose a part, so long as it does enter the exclusive territory of another. No nation ever pretended a right to govern by their laws the ship of another nation navigating the ocean. By what law then can it enter that ship while in peaceable and orderly use of the common element? We recognize no natural precept for submission to such a right; and perceive no distinction between the movable and immovable jurisdiction of a friend, which would authorize the entering the one and not the other, to seize the property of an enemy.

It may be objected that this proves too much, as it proves you cannot enter the ship of a friend to search for contraband of war. But this is not proving too much. We believe the practice of seizing what is called contraband of war, is an abusive practice, not founded in natural right. War between two nations cannot diminish the rights of the rest of the world remaining at peace. The doctrine that the rights of nations remaining quietly in the exercise of moral and social duties, are to give way to the convenience of those who prefer plundering and murdering one another, is a monstrous doctrine; and ought to yield to the more rational law, that "the wrong which

two nations endeavor to inflict on each other, must not infringe on the rights or conveniences of those remaining at peace." And what is *contraband*, by the law of nature? Either everything which may aid or comfort an enemy, or nothing. Either all commerce which would accommodate him is unlawful, or none is. The difference between articles of one or another description, is a difference in degree only. No line between them can be drawn. Either all intercourse must cease between neutrals and belligerents, or all be permitted. Can the world hesitate to say which shall be the rule? Shall two nations turning tigers, break up in one instant the peaceable relations of the whole world? Reason and nature clearly pronounce that the neutral is to go on in the enjoyment of all its rights, that its commerce remains free, not subject to the jurisdiction of another, nor consequently its vessels to search, or to enquiries whether their contents are the property of an enemy, or are of those which have been called contraband of war.

Nor does this doctrine contravene the right of preventing vessels from entering a blockaded port. This right stands on other ground. When the fleet of any nation actually beleaguers the port of its enemy, no other has a right to enter their line, any more than their line of battle in the open sea, or their lines of circumvallation, or of encampment, or of battle array on land. The space included within their lines in any of those cases, is either the property of their enemy, or it is common property assumed and possessed for the moment, which cannot be intruded on, even by a neutral, without committing the very trespass we are now considering, that of intruding into the lawful possession of a friend.

Although I consider the observance of these principles as of great importance to the interests of peaceable nations, among whom I hope the United States will ever place themselves, yet in the present state of things they are not worth a war. Nor do I believe war the most certain means of enforcing them. Those peaceable coercions which are in the power of every nation, if undertaken in concert and in time of peace, are more likely to produce the desired effect.

The opinions I have here given are those which have generally been sanctioned by our government. In our treaties with France, the United Netherlands, Sweden and Prussia, the principle of free bottom, free goods, was uniformly maintained. In the instructions of 1784, given by Congress to

their ministers appointed to treat with the nations of Europe generally, the same principle, and the doing away contraband of war, were enjoined, and were acceded to in the treaty signed with Portugal. In the late treaty with England, indeed, that power perseveringly refused the principle of free bottoms, free goods; and it was avoided in the late treaty with Prussia, at the instance of our then administration, lest it should seem to take side in a question then threatening decision by the sword. At the commencement of the war between France and England, the representative of the French republic then residing in the United States, complaining that the British armed ships captured French property in American bottoms, insisted that the principle of "free bottoms, free goods," was of the acknowledged law of nations; that the violation of that principle by the British was a wrong committed on us, and such an one as we ought to repel by joining in the war against that country. We denied his position, and appealed to the universal practice of Europe, in proof that the principle of "free bottoms, free goods," was not acknowledged as of the natural law of nations, but only of its conventional law. And I believe we may safely affirm, that not a single instance can be produced where any nation of Europe, acting professedly under the law of nations alone, unrestrained by treaty, has, either by its executive or judiciary organs, decided on the principle of "free bottoms, free goods." Judging of the law of nations by what has been *practised* among nations, we were authorized to say that the contrary principle was their rule, and this but an exception to it, introduced by special treaties in special cases only; that having no treaty with England substituting this instead of the ordinary rule, we had neither the right nor the disposition to go to war for its establishment. But though we would not then, nor will we now, engage in war to establish this principle, we are nevertheless sincerely friendly to it. We think that the nations of Europe have originally set out in error; that experience has proved the error oppressive to the rights and interests of the peaceable part of mankind; that every nation but one has acknowledged this, by consenting to the change, and that one has consented in particular cases; that nations have a right to correct an erroneous principle, and to establish that which is right as their rule of action; and if they should adopt measures for effecting this in a peaceable way, we shall wish them success, and not stand in their way to it. But should it become, at any time, expedient for us to co-operate in the establishment of this principle, the opinion of the executive, on the advice of its constitutional

counsellors, must then be given; and that of the legislature, an independent and essential organ in the operation, must also be expressed; in forming which, they will be governed, every man by his own judgment, and may, very possibly, judge differently from the executive. With the same honest views, the most honest men often form different conclusions. As far, however, as we can judge, the principle of "free bottoms, free goods," is that which would carry the wishes of our nation.

Wishing you smooth seas and prosperous gales, with the enjoyment of good health, I tender you the assurances of my constant friendship and high consideration and respect.

TO WILLIAM SHORT.

WASHINGTON, October 3, 1801.

DEAR SIR,—* * * * *

I trusted to Mr. Dawson to give you a full explanation, verbally, on a subject which I find he has but slightly mentioned to you. I shall therefore now do it. When I returned from France, after an absence of six or seven years, I was astonished at the change which I found had taken place in the United States in that time. No more like the same people; their notions, their habits and manners, the course of their commerce, so totally changed, that I, who stood in those of 1784, found myself not at all qualified to speak their sentiments, or forward their views in 1790. Very soon, therefore, after entering on the office of Secretary of State, I recommended to General Washington to establish as a rule of practice, that no person should be continued on foreign mission beyond an absence of six, seven, or eight years. He approved it. On the only subsequent missions which took place in my time, the persons appointed were notified that they could not be continued beyond that period. All returned within it except Humphreys. His term was not quite out when General Washington went out of office. The succeeding administration had no rule for anything; so he continued. Immediately on my coming to the administration, I wrote to him myself, reminded him of the rule I had communicated to him on his departure; that

he had then been absent about eleven years, and consequently must return. On this ground solely he was superseded. Under these circumstances, your appointment was impossible after an absence of seventeen years. Under any others, I should never fail to give to yourself and the world proofs of my friendship for you, and of my confidence in you. Whenever you shall return, you will be sensible in a greater, of what I was in a smaller degree, of the change in this nation from what it was when we both left it in 1784. We return like foreigners, and, like them, require a considerable residence here to become Americanized.

The state of political opinions continues to return steadily towards republicanism. To judge from the opposition papers, a stranger would suppose that a considerable check to it had been produced by certain removals of public officers. But this is not the case. All offices were in the hands of the federalists. The injustice of having totally excluded republicans was acknowledged by every man. To have removed one half, and to have placed republicans in their stead, would have been rigorously just, when it was known that these composed a very great majority of the nation. Yet such was their moderation in most of the States, that they did not desire it. In these, therefore, no removals took place but for malversation. In the middle States the contention had been higher, spirits were more sharpened and less accommodating. It was necessary in these to practise a different treatment, and to make a few changes to tranquillize the injured party. A few have been made there, a very few still remain to be made. When this painful operation shall be over, I see nothing else ahead of us which can give uneasiness to any of our citizens, or retard that consolidation of sentiment so essential to our happiness and our strength. The tory papers will still find fault with everything. But these papers are sinking daily, from their dissonance with the sentiments of their subscribers, and very few will shortly remain to keep up a solitary and ineffectual barking.

There is no point in which an American, long absent from his country, wanders so widely from its sentiments as on the subject of its foreign affairs. We have a perfect horror at everything like connecting ourselves with the politics of Europe. It would indeed be advantageous to us to have neutral rights established on a broad ground; but no dependence can be placed in any European coalition for that. They have so many other by-interests of greater weight, that some one or other will always be bought

off. To be entangled with them would be a much greater evil than a temporary acquiescence in the false principles which have prevailed. Peace is our most important interest, and a recovery from debt. We feel ourselves strong, and daily growing stronger. The census just now concluded, shows we have added to our population a third of what it was ten years ago. This will be a duplication in twenty-three or twenty-four years. If we can delay but for a few years the necessity of vindicating the laws of nature on the ocean, we shall be the more sure of doing it with effect. The day is within my time as well as yours, when we may say by what laws other nations shall treat us on the sea. And we will say it. In the meantime, we wish to let every treaty we have drop off without renewal. We call in our diplomatic missions, barely keeping up those to the most important nations. There is a strong disposition in our countrymen to discontinue even these; and very possibly it may be done. Consuls will be continued as usual. The interest which European nations feel, as well as ourselves, in the mutual patronage of commercial intercourse, is a sufficient stimulus on both sides to insure that patronage. A treaty, contrary to that interest, renders war necessary to get rid of it.

I send this by Chancellor Livingston, named to the Senate the day after I came into office, as our Minister Plenipotentiary to France. I have taken care to impress him with the value of your society. You will find him an amiable and honorable man; unfortunately, so deaf that he will have to transact all his business by writing. You will have known long ago that Mr. Skipworth is reinstated in his consulship, as well as some others who had been set aside. I recollect no domestic news interesting to you. Your letters to your brother have been regularly transmitted, and I lately forwarded one from him, to be carried you by Mr. Livingston.

Present my best respects to our amiable and mutual friend, and accept yourself assurances of my sincere and constant affection.

**CIRCULAR TO THE HEADS OF THE DEPARTMENTS, AND
PRIVATE.**

WASHINGTON, November 6, 1801.

DEAR SIR,—Coming all of us into executive office, new, and unfamiliar with the course of business previously practised, it was not to be expected we should, in the first outset, adopt in every part a line of proceeding so perfect as to admit no amendment. The mode and degrees of communication, particularly between the President and heads of departments, have not been practised exactly on the same scale in all of them. Yet it would certainly be more safe and satisfactory for ourselves as well as the public, that not only the best, but also an uniform course of proceeding as to manner and degree, should be observed. Having been a member of the first administration under General Washington, I can state with exactness what our course then was. Letters of business came addressed sometimes to the President, but most frequently to the heads of departments. If addressed to himself, he referred them to the proper department to be acted on: if to one of the secretaries, the letter, if it required no answer, was communicated to the President, simply for his information. If an answer was requisite, the secretary of the department communicated the letter and his proposed answer to the President. Generally they were simply sent back after perusal, which signified his approbation. Sometimes he returned them with an informal note, suggesting an alteration or a query. If a doubt of any importance arose, he reserved it for conference. By this means, he was always in accurate possession of all facts and proceedings in every part of the Union, and to whatsoever department they related; he formed a central point for the different branches; preserved an unity of object and action among them; exercised that participation in the suggestion of affairs which his office made incumbent on him; and met himself the due responsibility for whatever was done. During Mr. Adams' administration, his long and habitual absences from the seat of government, rendered this kind of communication impracticable, removed him from any share in the transaction of affairs, and parceled out the government, in fact, among four independent heads, drawing sometimes in opposite directions. That the former is preferable to the latter course, cannot be doubted. It gave, indeed, to the heads of departments the trouble of making up, once a day, a packet of all their communications for the perusal of the President; it commonly also retarded one day their despatches by mail. But in pressing cases, this injury was prevented by presenting that case singly for immediate attention; and it produced us in return the benefit of his sanction for every act we did. Whether any change of circumstances may render a change in this

procedure necessary, a little experience will show us. But I cannot withhold recommending to heads of departments, that we should adopt this course for the present, leaving any necessary modifications of it to time and trial. I am sure my conduct must have proved, better than a thousand declarations would, that my confidence in those whom I am so happy as to have associated with me, is unlimited, unqualified and unabated. I am well satisfied that everything goes on with a wisdom and rectitude which I could not improve. If I had the universe to choose from, I could not change one of my associates to my better satisfaction. My sole motives are those before expressed, as governing the first administration in chalking out the rules of their proceeding; adding to them only a sense of obligation imposed on me by the public will, to meet personally the duties to which they have appointed me. If this mode of proceeding shall meet the approbation of the heads of departments, it may go into execution without giving them the trouble of an answer; if any other can be suggested which would answer our views and add less to their labors, that will be a sufficient reason for my preferring it to my own proposition, to the substance of which only, and not the form, I attach any importance.

Accept for yourself particularly, my dear Sir, assurances of my constant and sincere affection and respect.

TO AMOS MARSH, ESQUIRE.

WASHINGTON, November 20, 1801.

SIR,—I receive with great satisfaction the address you have been pleased to enclose me from the House of Representatives, of the freemen of the State of Vermont. The friendly and favorable sentiments they are so good as to express towards myself personally, are high encouragement to perseverance in duty, and call for my sincere thanks.

With them I join cordially in admiring and revering the Constitution of the United States,—the result of the collected wisdom of our country. That wisdom has committed to us the important task of proving by example that a government, if organized in all its parts on the Representative principle,

unadulterated by the infusion of spurious elements, if founded, not in the fears and follies of man, but on his reason, on his sense of right, on the predominance of the social over his dissocial passions, may be so free as to restrain him in no moral right, and so firm as to protect him from every moral wrong. To observe our fellow citizens gathering daily under the banners of this faith, devoting their powers to its establishment, and strengthening with their confidence the instruments of their selection, cannot but give new animation to the zeal of those who, steadfast in the same belief, have seen no other object worthy the labors and losses we have all encountered.

To draw around the whole nation the strength of the general government, as a barrier against foreign foes, to watch the borders of every State, that no external hand may intrude, or disturb the exercise of self-government reserved to itself, to equalize and moderate the public contributions, that while the requisite services are invited by due remuneration, nothing beyond this may exist to attract the attention of our citizens from the pursuits of useful industry, nor unjustly to burthen those who continue in those pursuits—these are functions of the general government on which you have a right to call. They are in unison with those principles which have met the approbation of the Representatives of Vermont, as announced by myself on the former and recent occasions alluded to. These shall be faithfully pursued according to the plain and candid import of the expressions in which they were announced. No longer than they are so, will I ask that support which, through you, has been so respectfully tendered me. And I join in addressing Him, whose Kingdom ruleth over all, to direct the administration of their affairs to their own greatest good.

Praying you to be the channel of communicating these sentiments to the House of Representatives of the freemen of the State of Vermont, I beseech you to accept for yourself personally, as well as for them, the homage of my high respect and consideration.

TO GOVERNOR MONROE.

WASHINGTON, November 24, 1801.

DEAR SIR,—I had not been unmindful of your letter of June 15th, covering a resolution of the House of Representatives of Virginia, and referred to in yours of the 17th inst. The importance of the subject, and the belief that it gave us time for consideration till the next meeting of the Legislature, have induced me to defer the answer to this date. You will perceive that some circumstances connected with the subject, and necessarily presenting themselves to view, would be improper but for yours' and the legislative ear. Their publication might have an ill effect in more than one quarter. In confidence of attention to this, I shall indulge greater freedom in writing.

Common malefactors, I presume, make no part of the object of that resolution. Neither their numbers, nor the nature of their offences, seem to require any provisions beyond those practised heretofore, and found adequate to the repression of ordinary crimes. Conspiracy, insurgency, treason, rebellion, (among that description of persons who brought on us the alarm, and on themselves the tragedy, of 1800,) were doubtless within the view of every one; but many perhaps contemplated, and one expression of the resolution might comprehend, a much larger scope. Respect to both opinions makes it my duty to understand the resolution in all the extent of which it is susceptible.

The idea seems to be to provide for these people by a purchase of lands; and it is asked whether such a purchase can be made of the United States in their western territory? A very great extent of country, north of the Ohio, has been laid off into townships, and is now at market, according to the provisions of the acts of Congress, with which you are acquainted. There is nothing which would restrain the State of Virginia either in the purchase or the application of these lands; but a purchase, by the acre, might perhaps be a more expensive provision than the House of Representatives contemplated. Questions would also arise whether the establishment of such a colony within our limits, and to become a part of our union, would be desirable to the State of Virginia itself, or to the other States—especially those who would be in its vicinity?

Could we procure lands beyond the limits of the United States to form a receptacle for these people? On our northern boundary, the country not occupied by British subjects, is the property of Indian nations, whose title would be to be extinguished, with the consent of Great Britain; and the new

settlers would be British subjects. It is hardly to be believed that either Great Britain or the Indian proprietors have so disinterested a regard for us, as to be willing to relieve us, by receiving such a colony themselves; and as much to be doubted whether that race of men could long exist in so rigorous a climate. On our western and southern frontiers, Spain holds an immense country, the occupancy of which, however, is in the Indian natives, except a few insulated spots possessed by Spanish subjects. It is very questionable, indeed, whether the Indians would sell? whether Spain would be willing to receive these people? and nearly certain that she would not alienate the sovereignty. The same question to ourselves would recur here also, as did in the first case: should we be willing to have such a colony in contact with us? However our present interests may restrain us within our own limits, it is impossible not to look forward to distant times, when our rapid multiplication will expand itself beyond those limits, and cover the whole northern, if not the southern continent, with a people speaking the same language, governed in similar forms, and by similar laws; nor can we contemplate with satisfaction either blot or mixture on that surface. Spain, France, and Portugal hold possessions on the southern continent, as to which I am not well enough informed to say how far they might meet our views. But either there or in the northern continent, should the constituted authorities of Virginia fix their attention, of preference, I will have the dispositions of those powers sounded in the first instance.

The West Indies offer a more probable and practicable retreat for them. Inhabited already by a people of their own race and color; climates congenial with their natural constitution; insulated from the other descriptions of men; nature seems to have formed these islands to become the receptacle of the blacks transplanted into this hemisphere. Whether we could obtain from the European sovereigns of those islands leave to send thither the persons under consideration, I cannot say; but I think it more probable than the former propositions, because of their being already inhabited more or less by the same race. The most promising portion of them is the island of St. Domingo, where the blacks are established into a sovereignty *de facto*, and have organized themselves under regular laws and government. I should conjecture that their present ruler might be willing, on many considerations, to receive over that description which would be exiled for acts deemed criminal by us, but meritorious, perhaps, by him. The

possibility that these exiles might stimulate and conduct vindictive or predatory descents on our coasts, and facilitate concert with their brethren remaining here, looks to a state of things between that island and us not probable on a contemplation of our relative strength, and of the disproportion daily growing; and it is outweighed by the humanity of the measures proposed, and the advantages of disembarassing ourselves of such dangerous characters. Africa would offer a last and undoubted resort, if all others more desirable should fail us. Whenever the Legislature of Virginia shall have brought its mind to a point, so that I may know exactly what to propose to foreign authorities, I will execute their wishes with fidelity and zeal. I hope, however, they will pardon me for suggesting a single question for their own consideration. When we contemplate the variety of countries and of sovereigns towards which we may direct our views, the vast revolutions and changes of circumstances which are now in a course of progression, the possibilities that arrangements now to be made, with a view to any particular plea, may, at no great distance of time, be totally deranged by a change of sovereignty, of government, or of other circumstances, it will be for the Legislature to consider whether, after they shall have made all those general provisions which may be fixed by legislative authority, it would be reposing too much confidence in their Executive to leave the place of relegation to be decided on by *them*. They could accommodate their arrangements to the actual state of things, in which countries or powers may be found to exist at the day; and may prevent the effect of the law from being defeated by intervening changes. This, however, is for them to decide. Our duty will be to respect their decision.

Accept assurances of my constant affection, and high consideration and respect.

TO THE REVEREND ISAAC STORY.

WASHINGTON, December 5th, 1801.

SIR,—Your favor of October 27 was received some time since, and read with pleasure. It is not for me to pronounce on the hypothesis you present of

a transmigration of souls from one body to another in certain cases. The laws of nature have withheld from us the means of physical knowledge of the country of spirits, and revelation has, for reasons unknown to us, chosen to leave us in the dark as we were. When I was young I was fond of the speculations which seemed to promise some insight into that hidden country, but observing at length that they left me in the same ignorance in which they had found me, I have for very many years ceased to read or to think concerning them, and have reposed my head on that pillow of ignorance which a benevolent Creator has made so soft for us, knowing how much we should be forced to use it. I have thought it better, by nourishing the good passions and controlling the bad, to merit an inheritance in a state of being of which I can know so little, and to trust for the future to Him who has been so good for the past. I perceive too that these speculations have with you been only the amusement of leisure hours; while your labors have been devoted to the education of your children, making them good members of society, to the instructing men in their duties, and performing the other offices of a large parish. I am happy in your approbation of the principles I avowed on entering on the government. Ingenious minds, availing themselves of the imperfection of language, have tortured the expressions out of their plain meaning in order to infer departures from them in practice. If revealed language has not been able to guard itself against misinterpretations, I could not expect it. But if an administration quadrating with the obvious import of my language can conciliate the affections of my opposers, I will merit that conciliation. I pray you to accept assurances of my respect and best wishes.

TO PRESIDENT OF THE SENATE.

December, 8, 1801.

SIR,—The circumstances under which we find ourselves at this place rendering inconvenient the mode heretofore practised of making, by personal address, the first communications between the legislative and executive branches, I have adopted that by message, as used on all subsequent occasions through the session. In doing this, I have had

principal regard to the convenience of the Legislature, to the economy of their time, to their relief from the embarrassment of immediate answers, on subjects not yet fully before them, and to the benefits thence resulting to the public affairs. Trusting that a procedure, founded on these motives, will meet their approbation, I beg leave through you, Sir, to communicate the enclosed copy, with the documents accompanying it, to the honorable the Senate, and pray you to accept for yourself and them, the homage of my high regard and consideration.

TO JOHN DICKINSON.

WASHINGTON, December 19, 1801.

DEAR SIR,—The approbation of my ancient friends is, above all things, the most grateful to my heart. They know for what objects we relinquished the delights of domestic society, tranquillity and science, and committed ourselves to the ocean of revolution, to wear out the only life God has given us here in scenes the benefits of which will accrue only to those who follow us. Surely we had in view to obtain the theory and practice of good government; and how any, who seemed so ardent in this pursuit, could as shamelessly have apostatized, and supposed we meant only to put our government into other hands, but not other forms, is indeed wonderful. The lesson we have had will probably be useful to the people at large, by showing to them how capable they are of being made the instruments of their own bondage. A little more prudence and moderation in those who had mounted themselves on their fears, and it would have been long and difficult to unhorse them. Their madness had done in three years what reason alone, acting against them, would not have effected in many; and the more, as they might have gone on forming new entrenchments for themselves from year to year. My great anxiety at present is, to avail ourselves of our ascendancy to establish good principles and good practices; to fortify republicanism behind as many barriers as possible, that the outworks may give time to rally and save the citadel, should that be again in danger. On their part, they have retired into the judiciary as a stronghold. There the remains of federalism are to be preserved and fed

from the treasury, and from that battery all the works of republicanism are to be beaten down and erased. By a fraudulent use of the Constitution, which has made judges irremovable, they have multiplied useless judges merely to strengthen their phalanx.

You will perhaps have been alarmed, as some have been, at the proposition to abolish the whole of the internal taxes. But it is perfectly safe. They are under a million of dollars, and we can economize the government two or three millions a year. The impost alone gives us ten or eleven millions annually, increasing at a compound ratio of six and two-thirds per cent. per annum, and consequently doubling in ten years. But leaving that increase for contingencies, the present amount will support the government, pay the interest of the public debt, and discharge the principal in fifteen years. If the increase proceeds, and no contingencies demand it, it will pay off the principal in a shorter time. Exactly one half of the public debt, to wit, thirty-seven millions of dollars, is owned in the United States. That capital, then, will be set afloat, to be employed in rescuing our commerce from the hands of foreigners, or in agriculture, canals, bridges, or other useful enterprises. By suppressing at once the whole internal taxes, we abolish three-fourths of the offices now existing, and spread over the land. Seeing the interest you take in the public affairs, I have indulged myself in observations flowing from a sincere and ardent desire of seeing our affairs put into an honest and advantageous train. Accept assurances of my constant and affectionate esteem and high respect.

TO DOCTOR RUSH.

WASHINGTON, December 20, 1801.

DEAR SIR,—I have received your favor of November 27, with your introductory lecture, which I have read with the pleasure and edification I do everything from you. I am happy to see that vaccination is introduced, and likely to be kept up, in Philadelphia; but I shall not think it exhibits all its utility until experience shall have hit upon some mark or rule by which the popular eye may distinguish genuine from spurious virus. It was with this view that I wished to discover whether time could not be made the

standard, and supposed, from the little experience I had, that matter, taken at eight times twenty-four hours from the time of insertion, could always be in the proper state. As far as I went I found it so; but I shall be happy to learn what the immense field of experience in Philadelphia will teach us on that subject.

Our winter campaign has opened with more good humor than I expected. By sending a message, instead of making a speech at the opening of the session, I have prevented the bloody conflict to which the making an answer would have committed them. They consequently were able to set into real business at once, without losing ten or twelve days in combating an answer. Hitherto there has been no disagreeable altercations. The suppression of useless offices, and lopping off the parasitical plant engrafted at the last session on the judiciary body, will probably produce some. Bitter men are not pleased with the suppression of taxes. Not daring to condemn the measure, they attack the motive; and too disingenuous to ascribe it to the honest one of freeing our citizens from unnecessary burthens and unnecessary systems of office, they ascribe it to a desire of popularity. But every honest man will suppose honest acts to flow from honest principles, and the rogues may rail without intermission.

My health has been always so uniformly firm, that I have for some years dreaded nothing so much as the living too long. I think, however, that a flaw has appeared which ensures me against that, without cutting short any of the period during which I could expect to remain capable of being useful. It will probably give me as many years as I wish, and without pain or debility. Should this be the case, my most anxious prayers will have been fulfilled by Heaven.

I have said as much to no mortal breathing, and my florid health is calculated to keep my friends as well as foes quiet, as they should be. Accept assurances of my constant esteem and high respect.

TO MR. LINCOLN.

January 1, 1802.

Averse to receive addresses, yet unable to prevent them, I have generally endeavored to turn them to some account, by making them the occasion, by way of answer, of sowing useful truths and principles among the people, which might germinate and become rooted among their political tenets. The Baptist address, now enclosed, admits of a condemnation of the alliance between Church and State, under the authority of the Constitution. It furnishes an occasion, too, which I have long wished to find, of saying why I do not proclaim fastings and thanksgivings, as my predecessors did. The address, to be sure, does not point at this, and its introduction is awkward. But I foresee no opportunity of doing it more pertinently. I know it will give great offence to the New England clergy; but the advocate of religious freedom is to expect neither peace nor forgiveness from them. Will you be so good as to examine the answer, and suggest any alterations which might prevent an ill effect, or promote a good one, among the people? You understand the temper of those in the North, and can weaken it, therefore, to their stomachs: it is at present seasoned to the Southern taste only. I would ask the favor of you to return it, with the address, in the course of the day or evening. Health and affection.

TO ALBERT GALLATIN.

WASHINGTON, April 1, 1802.

DEAR SIR,—I have read and considered your report on the operations of the sinking fund, and entirely approve of it, as the best plan on which we can set out. I think it an object of great importance, to be kept in view and to be undertaken at a fit season, to simplify our system of finance, and bring it within the comprehension of every member of Congress. Hamilton set out on a different plan. In order that he might have the entire government of his machine, he determined so to complicate it as that neither the President or Congress should be able to understand it, or to control him. He succeeded in doing this, not only beyond their reach, but so that he at length could not unravel it himself. He gave to the debt, in the first instance, in funding it, the most artificial and mysterious form he could devise. He then moulded up his appropriations of a number of scraps and remnants, many of which

were nothing at all, and applied them to different objects in reversion and remainder, until the whole system was involved in impenetrable fog; and while he was giving himself the airs of providing for the payment of the debt, he left himself free to add to it continually, as he did in fact, instead of paying it. I like your idea of kneading all his little scraps and fragments into one batch, and adding to it a complementary sum, which, while it forms it into a single mass from which everything is to be paid, will enable us, should a breach of appropriation ever be charged on us, to prove that the sum appropriated, and more, has been applied to its specific object.

But there is a point beyond this on which I should wish to keep my eye, and to which I should aim to approach by every tack which previous arrangements force on us. That is, to form into one consolidated mass all the moneys received into the treasury, and to the several expenditures, giving them a preference of payment according to the order in which they should be arranged. As for example. 1. The interest of the public debt. 2. Such portion of principal as are exigible. 3. The expenses of government. 4. Such other portions of principal as, though not exigible, we are still free to pay when we please. The last object might be made to take up the residuum of money remaining in the treasury at the end of every year, after the three first objects were complied with, and would be the barometer whereby to test the economy of the administration. It would furnish a simple measure by which every one could mete their merit, and by which every one could decide when taxes were deficient or superabundant. If to this can be added a simplification of the form of accounts in the treasury department, and in the organization of its officers, so as to bring everything to a single centre, we might hope to see the finances of the Union as clear and intelligible as a merchant's books, so that every member of Congress, and every man of any mind in the Union, should be able to comprehend them, to investigate abuses, and consequently to control them. Our predecessors have endeavored by intricacies of system, and shuffling the investigator over from one officer to another, to cover everything from detection. I hope we shall go in the contrary direction, and that by our honest and judicious reforms, we may be able, within the limits of our time, to bring things back to that simple and intelligible system on which they should have been organized at first.

I have suggested only a single alteration in the report, which is merely verbal and of no consequence. We shall now get rid of the commissioner of the internal revenue, and superintendent of stamps. It remains to amalgamate the comptroller and auditor into one, and reduce the register to a clerk of accounts; and then the organization will consist, as it should at first, of a keeper of money, a keeper of accounts, and the head of the department. This constellation of great men in the treasury department was of a piece with the rest of Hamilton's plans. He took his own stand as a Lieutenant General, surrounded by his Major Generals, and stationing his Brigadiers and Colonels under the name of Supervisors, Inspectors, &c., in the different States. Let us deserve well of our country by making her interests the end of all our plans, and not our own pomp, patronage and irresponsibility. I have hazarded these hasty and crude ideas, which occurred on contemplating your report. They may be the subject of future conversation and correction. Accept my affectionate salutations.

TO GENERAL KOSCIUSKO.

WASHINGTON, April 2, 1802.

DEAR GENERAL,—It is but lately that I have received your letter of the 25th Frimaire (December 15) wishing to know whether some officers of your country could expect to be employed in this country. To prevent a suspense injurious to them, I hasten to inform you, that we are now actually engaged in reducing our military establishment one-third, and discharging one-third of our officers. We keep in service no more than men enough to garrison the small posts dispersed at great distances on our frontiers, which garrisons will generally consist of a captain's company only, and in no cases of more than two or three, in not one, of a sufficient number to require a field officer; and no circumstance whatever can bring these garrisons together, because it would be an abandonment of their forts. Thus circumstanced, you will perceive the entire impossibility of providing for the persons you recommend. I wish it had been in my power to give you a more favorable answer; but next to the fulfilling your wishes, the most grateful thing I can do is to give a faithful answer. The session of the first Congress convened

since republicanism has recovered its ascendancy, is now drawing to a close. They will pretty completely fulfil all the desires of the people. They have reduced the army and navy to what is barely necessary. They are disarming executive patronage and preponderance, by putting down one-half the offices of the United States, which are no longer necessary. These economies have enabled them to suppress all the internal taxes, and still to make such provision for the payment of their public debt as to discharge that in eighteen years. They have lopped off a parasite limb, planted by their predecessors on their judiciary body for party purposes; they are opening the doors of hospitality to fugitives from the oppressions of other countries; and we have suppressed all those public forms and ceremonies which tended to familiarize the public eye to the harbingers of another form of government. The people are nearly all united; their quondam leaders, infuriated with the sense of their impotence, will soon be seen or heard only in the newspapers, which serve as chimneys to carry off noxious vapors and smoke, and all is now tranquil, firm and well, as it should be. I add no signature because unnecessary for you. God bless you, and preserve you still for a season of usefulness to your country.

TO ROBERT R. LIVINGSTON.

WASHINGTON, April 18, 1802.

DEAR SIR,—A favorable and confidential opportunity offering by M. Dupont de Nemours, who is revisiting his native country, gives me an opportunity of sending you a cypher to be used between us, which will give you some trouble to understand, but once understood, is the easiest to use, the most indecypherable, and varied by a new key with the greatest facility, of any I have ever known. I am in hopes the explanation enclosed will be sufficient.

* * * * *

But writing by Mr. Dupont, I need use no cypher. I require from him to put this into your own and no other hand, let the delay occasioned by that be what it will.

The cession of Louisiana and the Floridas by Spain to France, works most sorely on the United States. On this subject the Secretary of State has written to you fully, yet I cannot forbear recurring to it personally, so deep is the impression it makes on my mind. It completely reverses all the political relations of the United States, and will form a new epoch in our political course. Of all nations of any consideration, France is the one which, hitherto, has offered the fewest points on which we could have any conflict of right, and the most points of a communion of interests. From these causes, we have ever looked to her as our *natural friend*, as one with which we never could have an occasion of difference. Her growth, therefore, we viewed as our own, her misfortunes ours. There is on the globe one single spot, the possessor of which is our natural and habitual enemy. It is New Orleans, through which the produce of three-eighths of our territory must pass to market, and from its fertility it will ere long yield more than half of our whole produce, and contain more than half of our inhabitants. France, placing herself in that door, assumes to us the attitude of defiance. Spain might have retained it quietly for years. Her pacific dispositions, her feeble state, would induce her to increase our facilities there, so that her possession of the place would be hardly felt by us, and it would not, perhaps, be very long before some circumstance might arise, which might make the cession of it to us the price of something of more worth to her. Not so can it ever be in the hands of France: the impetuosity of her temper, the energy and restlessness of her character, placed in a point of eternal friction with us, and our character, which, though quiet and loving peace and the pursuit of wealth, is high-minded, despising wealth in competition with insult or injury, enterprising and energetic as any nation on earth; these circumstances render it impossible that France and the United States can continue long friends, when they meet in so irritable a position. They, as well as we, must be blind if they do not see this; and we must be very improvident if we do not begin to make arrangements on that hypothesis. The day that France takes possession of New Orleans, fixes the sentence which is to restrain her forever within her low-water mark. It seals the union of two nations, who, in conjunction, can maintain exclusive possession of the ocean. From that moment, we must marry ourselves to the British fleet and nation. We must turn all our attention to a maritime force, for which our resources place us on very high ground; and having formed and connected together a power which may render reinforcement of her

settlements here impossible to France, make the first cannon which shall be fired in Europe the signal for the tearing up any settlement she may have made, and for holding the two continents of America in sequestration for the common purposes of the United British and American nations. This is not a state of things we seek or desire. It is one which this measure, if adopted by France, forces on us as necessarily, as any other cause, by the laws of nature, brings on its necessary effect. It is not from a fear of France that we deprecate this measure proposed by her. For however greater her force is than ours, compared in the abstract, it is nothing in comparison of ours, when to be exerted on our soil. But it is from a sincere love of peace, and a firm persuasion, that bound to France by the interests and the strong sympathies still existing in the minds of our citizens, and holding relative positions which insure their continuance, we are secure of a long course of peace. Whereas, the change of friends, which will be rendered necessary if France changes that position, embarks us necessarily as a belligerent power in the first war of Europe. In that case, France will have held possession of New Orleans during the interval of a peace, long or short, at the end of which it will be wrested from her. Will this short-lived possession have been an equivalent to her for the transfer of such a weight into the scale of her enemy? Will not the amalgamation of a young, thriving nation, continue to that enemy the health and force which are at present so evidently on the decline? And will a few years' possession of New Orleans add equally to the strength of France? She may say she needs Louisiana for the supply of her West Indies. She does not need it in time of peace, and in war she could not depend on them, because they would be so easily intercepted. I should suppose that all these considerations might, in some proper form, be brought into view of the government of France. Though stated by us, it ought not to give offence; because we do not bring them forward as a menace, but as consequences not controllable by us, but inevitable from the course of things. We mention them, not as things which we desire by any means, but as things we deprecate; and we beseech a friend to look forward and to prevent them for our common interest.

If France considers Louisiana, however, as indispensable for her views, she might perhaps be willing to look about for arrangements which might reconcile it to our interests. If anything could do this, it would be the ceding to us the island of New Orleans and the Floridas. This would certainly, in a

great degree, remove the causes of jarring and irritation between us, and perhaps for such a length of time, as might produce other means of making the measure permanently conciliatory to our interests and friendships. It would, at any rate, relieve us from the necessity of taking immediate measures for countervailing such an operation by arrangements in another quarter. But still we should consider New Orleans and the Floridas as no equivalent for the risk of a quarrel with France, produced by her vicinage.

I have no doubt you have urged these considerations, on every proper occasion, with the government where you are. They are such as must have effect, if you can find means of producing thorough reflection on them by that government. The idea here is, that the troops sent to St. Domingo, were to proceed to Louisiana after finishing their work in that island. If this were the arrangement, it will give you time to return again and again to the charge. For the conquest of St. Domingo will not be a short work. It will take considerable time, and wear down a great number of soldiers. Every eye in the United States is now fixed on the affairs of Louisiana. Perhaps nothing since the revolutionary war, has produced more uneasy sensations through the body of the nation. Notwithstanding temporary bickerings have taken place with France, she has still a strong hold on the affections of our citizens generally. I have thought it not amiss, by way of supplement to the letters of the Secretary of State, to write you this private one, to impress you with the importance we affix to this transaction. I pray you to cherish Dupont. He has the best disposition for the continuance of friendship between the two nations, and perhaps you may be able to make a good use of him.

Accept assurances of my affectionate esteem and high consideration.

TO M. DUPONT DE NEMOURS.

WASHINGTON, April 25, 1802.

DEAR SIR,—The week being now closed, during which you had given me a hope of seeing you here, I think it safe to enclose you my letters for Paris, lest they should fail of the benefit of so desirable a conveyance. They are

addressed to Kosciugha, Madame de Corny, Mrs. Short, and Chancellor Livingston. You will perceive the unlimited confidence I repose in your good faith, and in your cordial dispositions to serve both countries, when you observe that I leave the letters for Chancellor Livingston open for your perusal. The first page respects a cypher, as do the loose sheets folded with the letter. These are interesting to him and myself only, and therefore are not for your perusal. It is the second, third, and fourth pages which I wish you to read to possess yourself of completely, and then seal the letter with wafers stuck under the flying seal, that it may be seen by nobody else if any accident should happen to you. I wish you to be possessed of the subject, because you may be able to impress on the government of France the inevitable consequences of their taking possession of Louisiana; and though, as I here mention, the cession of New Orleans and the Floridas to us would be a palliation, yet I believe it would be no more, and that this measure will cost France, and perhaps not very long hence, a war which will annihilate her on the ocean, and place that element under the despotism of two nations, which I am not reconciled to the more because my own would be one of them. Add to this the exclusive appropriation of both continents of America as a consequence. I wish the present order of things to continue, and with a view to this I value highly a state of friendship between France and us. You know too well how sincere I have ever been in these dispositions to doubt them. You know, too, how much I value peace, and how unwillingly I should see any event take place which would render war a necessary resource; and that all our movements should change their character and object. I am thus open with you, because I trust that you will have it in your power to impress on that government considerations, in the scale against which the possession of Louisiana is nothing. In Europe, nothing but Europe is seen, or supposed to have any right in the affairs of nations; but this little event, of France's possessing herself of Louisiana, which is thrown in as nothing, as a mere make-weight in the general settlement of accounts,—this speck which now appears as an almost invisible point in the horizon, is the embryo of a tornado which will burst on the countries on both sides of the Atlantic, and involve in its effects their highest destinies. That it may yet be avoided is my sincere prayer; and if you can be the means of informing the wisdom of Bonaparte of all its consequences, you have deserved well of both countries. Peace and abstinence from European interferences are our objects, and so will

continue while the present order of things in America remain uninterrupted. There is another service you can render. I am told that Talleyrand is personally hostile to us. This, I suppose, has been occasioned by the X Y Z history. But he should consider that that was the artifice of a party, willing to sacrifice him to the consolidation of their power. This nation has done him justice by dismissing them; that those in power are precisely those who disbelieved that story, and saw in it nothing but an attempt to deceive our country; that we entertain towards him personally the most friendly dispositions; that as to the government of France, we know too little of the state of things there to understand what it is, and have no inclination to meddle in their settlement. Whatever government they establish, we wish to be well with it. One more request,—that you deliver the letter to Chancellor Livingston with your own hands, and, moreover, that you charge Madame Dupont, if any accident happen to you, that she deliver the letter with her own hands. If it passes only through hers and yours, I shall have perfect confidence in its safety. Present her my most sincere respects, and accept yourself assurances of my constant affection, and my prayers, that a genial sky and propitious gales may place you, after a pleasant voyage, in the midst of your friends.

TO MR. BARLOW.

WASHINGTON, May 3, 1802.

DEAR SIR,—I have doubted whether to write to you, because yours of August 25th, received only March 27th, gives me reason to expect you are now on the ocean; however, as I know that voyages so important are often delayed, I shall venture a line by Mr. Dupont de Nemours. The Legislature rises this day. They have carried into execution, steadily almost, all the propositions submitted to them in my message at the opening of the session. Some few are laid over for want of time. The most material is the militia, the plan of which they cannot easily modify to their general approbation. Our majority in the House of Representatives has been about two to one; in the Senate, eighteen to fifteen. After another election it will be of two to one in the Senate, and it would not be for the public good to have it greater. A

respectable minority is useful as censors. The present one is not respectable, being the bitterest remains of the cup of federalism, rendered desperate and furious by despair. A small check in the tide of republicanism in Massachusetts, which has showed itself very unexpectedly at the last election, is not accounted for. Everywhere else we are becoming one. In Rhode Island the late election gives us two to one through the whole State. Vermont is decidedly with us. It is said and believed that New Hampshire has got a majority of republicans now in its Legislature; and wanted a few hundreds only of turning out their federal Governor. He goes assuredly the next trial. Connecticut is supposed to have gained for us about fifteen or twenty per cent. since the last election; but the exact issue is not yet known here; nor is it certainly known how we shall stand in the House of Representatives of Massachusetts. In the Senate there we have lost ground. The candid federalists acknowledge that their party can never more raise its head. The operations of this session of Congress, when known among the people at large, will consolidate them. We shall now be so strong that we shall certainly split again; for freemen, thinking differently and speaking and acting as they think, will form into classes of sentiment. But it must be under another name. That of federalism is become so odious that no party can rise under it. As the division into whig and tory is founded in the nature of man; the weakly and nerveless, the rich and the corrupt, seeing more safety and accessibility in a strong executive; the healthy, firm, and virtuous, feeling a confidence in their physical and moral resources, and willing to part with only so much power as is necessary for their good government; and, therefore, to retain the rest in the hands of the many, the division will substantially be into whig and tory, as in England formerly. As yet no symptoms show themselves, nor will, till after another election. I am extremely happy to learn that you are so much at your ease, that you can devote the rest of your life to the information of others. The choice of a place of residence is material. I do not think you can do better than to fix here for awhile, till you can become again Americanized, and understand the map of the country. This may be considered as a pleasant country residence, with a number of neat little villages scattered around within the distance of a mile and a half, and furnishing a plain and substantially good society. They have begun their buildings in about four or five different points, at each of which there are buildings enough to be considered as a village. The whole population is about six thousand. Mr. Madison and

myself have cut out a piece of work for you, which is to write the history of the United States, from the close of the war downwards. We are rich ourselves in materials, and can open all the public archives to you; but your residence here is essential, because a great deal of the knowledge of things is not on paper, but only within ourselves, for verbal communication. John Marshall is writing the life of General Washington from his papers. It is intended to come out just in time to influence the next presidential election. It is written, therefore, principally with a view to electioneering purposes. But it will consequently be out in time to aid you with information, as well as to point out the perversions of truth necessary to be rectified. Think of this, and agree to it; and be assured of my high esteem and attachment.

P. S. There is a most lovely seat adjoining this city, on a high hill, commanding a most extensive view of the Potomac, now for sale. A superb house, gardens, &c., with thirty or forty acres of ground. It will be sold under circumstances of distress, and will probably go for the half of what it has cost. It was built by Gustavus Scott, who is dead bankrupt.

TO MR. GALLATIN.

June 19, 1802.

With respect to the bank of Pennsylvania, their difficulties proceed from excessive discounts. The \$3,000,000 due to them comprehend doubtless all the desperate debts accumulated since their institution. Their buildings should only be counted at the value of the naked ground belonging to them; because, if brought to market, they are worth to private builders no more than their materials, which are known by experience to be worth no more than the cost of pulling down and removing them. Their situation then is

They owe		\$2,200,000
They have of good money	\$710,000	
	250,000	
Ground worth perhaps	5,000	965,000
		\$1,235,000

To pay which \$1,235,000, they depend on \$3,000,000 of debts due to them, the amount of which shows they are of long standing, a part desperate, a part not commandable. In this situation it does not seem safe to deposit public money with them, and the effect would only be to enable them to nourish their disease by continuing their excessive discounts, the checking of which is the only means of saving themselves from bankruptcy. The getting them to pay the Dutch debt, is but a deposit in another though a safer form. If we can with propriety recommend indulgence to the bank of the United States, it would be attended with the least danger to us of any of the measures suggested, but it is in fact asking that bank to lend to the one of Pennsylvania, that they may be enabled to continue lending to others. The monopoly of a single bank is certainly an evil. The multiplication of them was intended to cure it; but it multiplied an influence of the same character with the first, and completed the supplanting the precious metals by a paper circulation. Between such parties the less we meddle the better.

TO DOCTOR PRIESTLEY.

WASHINGTON, June 19, 1802.

DEAR SIR,—Your favor of the 12th has been duly received, and with that pleasure which the approbation of the good and the wise must ever give. The sentiments it impresses are far beyond my merits or pretensions; they are precious testimonies to me however, that my sincere desire to do what is right and just is viewed with candor. That it should be handed to the world under the authority of your name is securing its credit with posterity. In the great work which has been effected in America, no individual has a right to take any great share to himself. Our people in a body are wise, because they are under the unrestrained and unperverted operation of their own understanding. Those whom they have assigned to the direction of their affairs, have stood with a pretty even front. If any one of them was withdrawn, many others entirely equal, have been ready to fill his place with as good abilities. A nation, composed of such materials, and free in all its members from distressing wants, furnishes hopeful implements for the interesting experiment of self-government; and we feel that we are acting

under obligations not confined to the limits of our own society. It is impossible not to be sensible that we are acting for all mankind; that circumstances denied to others, but indulged to us, have imposed on us the duty of proving what is the degree of freedom and self-government in which a society may venture to leave its individual members. One passage, in the paper you enclosed me, must be corrected. It is the following, "and all say it was yourself more than any other individual, that planned and established it," *i. e.* the Constitution. I was in Europe when the Constitution was planned, and never saw it till after it was established. On receiving it I wrote strongly to Mr. Madison, urging the want of provision for the freedom of religion, freedom of the press, trial by jury, habeas corpus, the substitution of militia for a standing army, and an express reservation to the States of all rights not specifically granted to the Union. He accordingly moved in the first session of Congress for these amendments, which were agreed to and ratified by the States as they now stand. This is all the hand I had in what related to the Constitution. Our predecessors made it doubtful how far even these were of any value; for the very law which endangered your personal safety, as well as that which restrained the freedom of the press, were gross violations of them. However, it is still certain that though written constitutions may be violated in moments of passion or delusion, yet they furnish a text to which those who are watchful may again rally and recall the people; they fix too for the people the principles of their political creed. We shall all absent ourselves from this place during the sickly season; say from about the 22d of July to the last of September. Should your curiosity lead you hither either before or after that interval, I shall be very happy to receive you, and shall claim you as my guest. I wish the advantages of a mild over a winter climate had been tried for you before you were located where you are. I have ever considered this as a public as well as personal misfortune. The choice you made of our country for your asylum was honorable to it; and I lament that for the sake of your happiness and health its most benign climates were not selected. Certainly it is a truth that climate is one of the sources of the greatest sensual enjoyment. I received in due time the letter of April 10th referred to in your last, with the pamphlet it enclosed, which I read with the pleasure I do everything from you. Accept assurances of my highest veneration and respect.

TO RUFUS KING.

WASHINGTON, July 13, 1802.

DEAR SIR,—The course of things in the neighboring islands of the West Indies, appear to have given a considerable impulse to the minds of the slaves in different parts of the United States. A great disposition to insurgency has manifested itself among them, which, in one instance, in the State of Virginia, broke out into actual insurrection. This was easily suppressed; but many of those concerned (between twenty and thirty, I believe) fell victims to the law. So extensive an execution could not but excite sensibility in the public mind, and begat a regret that the laws had not provided for such cases, some alternative, combining more mildness with equal efficacy. The Legislature of the State at a subsequent meeting took the subject into consideration, and have communicated to me through the Governor of the State, their wish that some place could be provided, out of the limits of the United States, to which slaves guilty of insurgency might be transported; and they have particularly looked to Africa as offering the most desirable receptacle. We might, for this purpose, enter into negotiations with the natives, on some part of the coast, to obtain a settlement; and, by establishing an African company, combine with it commercial operations, which might not only reimburse expenses, but procure profit also. But there being already such an establishment on that coast by the English Sierra Leone company, made for the express purpose of colonizing civilized blacks to that country, it would seem better, by incorporating our emigrants with theirs, to make one strong, rather than two weak colonies. This would be the more desirable because the blacks settled at Sierra Leone having chiefly gone from the States, would often receive among those we should send, their acquaintances and relatives. The object of this letter therefore is to ask the favor of you to enter into conference with such persons private and public as would be necessary to give us permission to send thither the persons under contemplation. It is material to observe that they are not felons, or common malefactors, but persons guilty of what the safety of society, under actual circumstances, obliges us to treat as a crime, but which their feelings may represent in a far different shape. They are such as will be a valuable acquisition to the settlement already existing there, and well calculated to co-operate in the plan of civilization.

As the expense of so distant a transportation would be very heavy, and might weigh unfavorably in deciding between the modes of punishment, it is very desirable that it should be lessened as much as practicable. If the regulations of the place would permit these emigrants to dispose of themselves, as the Germans and others do who come to this country poor, by giving their labor for a certain time to some one who will pay their passage; and if the master of the vessel could be permitted to carry articles of commerce from this country and take back others from that, which might yield him a mercantile profit sufficient to cover the expenses of the voyage, a serious difficulty would be removed. I will ask your attention therefore to arrangements necessary for this purpose.

The consequences of permitting emancipations to become extensive, unless the condition of emigration be annexed to them, furnish also matter of solicitation to the Legislature of Virginia, as you will perceive by their resolution enclosed to you. Although provision for the settlement of emancipated negroes might perhaps be obtainable nearer home than Africa, yet it is desirable that we should be free to expatriate this description of people also to the colony of Sierra Leone, if considerations respecting either themselves or us should render it more expedient. I will pray you therefore to get the same permission extended to the reception of these as well as the first mentioned. Nor will there be a selection of bad subjects; the emancipations, for the most part, being either of the whole slaves of the master, or of such individuals as have particularly deserved well: the latter is most frequent.

The request of the Legislature of Virginia having produced to me the occasion of addressing you, I avail myself of it to assure you of my perfect satisfaction with the manner in which you have conducted the several matters confided to you by us; and to express my hope that through your agency we may be able to remove everything inauspicious to a cordial friendship between this country and the one in which you are stationed; a friendship dictated by too many considerations not to be felt by the wise and the dispassionate of both nations. It is therefore with the sincerest pleasure I have observed on the part of the British government various manifestations of just and friendly disposition towards us. We wish to cultivate peace and friendship with all nations, believing that course most conducive to the welfare of our own. It is natural that these friendships

should bear some proportion to the common interests of the parties. The interesting relations between Great Britain and the United States, are certainly of the first order; and as such are estimated, and will be faithfully cultivated by us. These sentiments have been communicated to you from time to time in the official correspondence of the Secretary of State; but I have thought it might not be unacceptable to be assured that they perfectly concur with my own personal convictions, both in relation to yourself and the country in which you are. I pray you to accept assurances of my high consideration and respect.

TO GOVERNOR MONROE.

WASHINGTON, July 15, 1802.

DEAR SIR,—Your favor of the 7th has been duly received. I am really mortified at the base ingratitude of Callendar. It presents human nature in a hideous form. It gives me concern, because I perceive that relief, which was afforded him on mere motives of charity, may be viewed under the aspect of employing him as a writer. When the Political Progress of Britain first appeared in this country, it was in a periodical publication called the Bee, where I saw it. I was speaking of it in terms of strong approbation to a friend in Philadelphia, when he asked me if I knew that the author was then in the city, a fugitive from prosecution on account of that work, and in want of employ for his subsistence. This was the first of my learning that Callendar was the author of the work. I considered him as a man of science fled from persecution, and assured my friend of my readiness to do whatever could serve him. It was long after this before I saw him; probably not till 1798. He had, in the meantime, written a second part of the Political Progress, much inferior to the first, and his History of the United States. In 1798, I think, I was applied to by Mr. Lieper to contribute to his relief. I did so. In 1799, I think, S. T. Mason applied for him. I contributed again. He had, by this time, paid me two or three personal visits. When he fled in a panic from Philadelphia to General Mason's, he wrote to me that he was a fugitive in want of employ, wished to know if he could get into a counting-house or a school, in my neighborhood or in that of Richmond; that he had

materials for a volume, and if he could get as much money as would buy the paper, the profit of the sale would be all his own. I availed myself of this pretext to cover a mere charity, by desiring him to consider me a subscriber for as many copies of his book as the money enclosed (fifty dollars) amounted to; but to send me two copies only, as the others might lay till called for. But I discouraged his coming into my neighborhood. His first writings here had fallen far short of his original Political Progress, and the scurrilities of his subsequent ones began evidently to do mischief. As to myself, no man wished more to see his pen stopped; but I considered him still as a proper object of benevolence. The succeeding year, he again wanted money to buy paper for another volume. I made his letter, as before, the occasion of giving him another fifty dollars. He considers these as proofs of my approbation of his writings, when they were mere charities, yielded under a strong conviction that he was injuring us by his writings. It is known to many that the sums given to him were such, and even smaller than I was in the habit of giving to others in distress, of the federal as well as the republican party, without attention to political principles. Soon after I was elected to the government, Callendar came on here, wishing to be made postmaster at Richmond. I knew him to be totally unfit for it; and however ready I was to aid him with my own charities, (and I then gave him fifty dollars,) I did not think the public offices confided to me to give away as charities. He took it in mortal offence, and from that moment has been hauling off to his former enemies, the federalists. Besides the letter I wrote him in answer to the one from General Mason's, I wrote him another, containing answers to two questions he addressed to me. 1. Whether Mr. Jay received salary as Chief Justice and Envoy at the same time; and 2, something relative to the expenses of an embassy to Constantinople. I think these were the only letters I ever wrote him in answer to volumes he was perpetually writing to me. This is the true state of what has passed between him and me. I do not know that it can be used without committing me in controversy, as it were, with one too little respected by the public to merit that notice. I leave to your judgment what use can be made of these facts. Perhaps it will be better judged of, when we see what use the tories will endeavor to make of their new friend. I shall leave this on the 21st, and be at Monticello probably on the 24th, or within two or three days of that, and shall hope, ere long, to see you there.

Accept assurances of my affectionate attachment.

TO GOVERNOR MONROE.

WASHINGTON, July 17, 1802.

DEAR SIR,—After writing you on the 15th, I turned to my letter file to see what letters I had written to Callendar, and found them to have been of the dates of 1798, October the 11th, and 1799, September the 6th, and October the 6th; but on looking for the letters, they were not in their places, nor to be found. On recollection, I believe I sent them to you a year or two ago. If you have them, I shall be glad to receive them at Monticello, where I shall be on this day se'nnight. I enclose you a paper which shows the tories mean to pervert these charities to Callendar as much as they can. They will probably first represent me as the patron and support of the Prospect before us, and other things of Callender's; and then picking out all the scurrilities of the author against General Washington, Mr. Adams, and others, impute them to me. I, as well as most other republicans who were in the way of doing it, contributed what I could afford to the support of the republican papers and printers, paid sums of money for the Bee, the Albany Register, &c., when they were staggering under the sedition law; contributed to the fines of Callendar himself, of Holt, Brown and others, suffering under that law. I discharged, when I came into office, such as were under the persecution of our enemies, without instituting any prosecutions in retaliation. They may, therefore, with the same justice, impute to me, or to every republican contributor, everything which was ever published in those papers or by those persons. I must correct a fact in mine of the 15th. I find I did not enclose the fifty dollars to Callendar himself while at General Mason's, but authorized the general to draw on my correspondent at Richmond, and to give the money to Callendar. So the other fifty dollars of which he speaks were by order on my correspondent at Richmond.

Accept assurances of my affectionate esteem and respect.

TO ROBERT R. LIVINGSTON.

WASHINGTON, October 10, 1802.

DEAR SIR,—The departure of Madame Brugnard for France furnishes me a safe conveyance of a letter, which I cannot avoid embracing, although I have nothing particular for the subject of it. It is well, however, to be able to inform you, generally, through a safe channel, that we stand completely corrected of the error, that either the government or the nation of France has any remains of friendship for us. The portion of that country which forms an exception, though respectable in weight, is weak in numbers. On the contrary, it appears evident, that an unfriendly spirit prevails in the most important individuals of the government, towards us. In this state of things, we shall so take our distance between the two rival nations, as, remaining disengaged till necessity compels us, we may haul finally to the enemy of that which shall make it necessary. We see all the disadvantageous consequences of taking a side, and shall be forced into it only by a more disagreeable alternative; in which event, we must countervail the disadvantages by measures which will give us splendor and power, but not as much happiness as our present system. We wish, therefore, to remain well with France. But we see that no consequences, however ruinous to them, can secure us with certainty against the extravagance of her present rulers. I think, therefore, that while we do nothing which the first nation on earth would deem crouching, we had better give to all our communications with them a very mild, complaisant, and even friendly complexion, but always independent. Ask no favors, leave small and irritating things to be conducted by the individuals interested in them, interfere ourselves but in the greatest cases, and then not push them to irritation. No matter at present existing between them and us is important enough to risk a breach of peace; peace being indeed the most important of all things for us, except the preserving an erect and independent attitude. Although I know your own judgment leads you to pursue this line identically, yet I thought it just to strengthen it by the concurrence of my own. You will have seen by our newspapers, that with the aid of a lying renegade from republicanism, the federalists have opened all their sluices of calumny. They say we lied them out of power, and openly avow they will do the same by us. But it was not lies or arguments on our part which dethroned them, but their own foolish acts, sedition laws, alien laws, taxes, extravagances and heresies. Porcupine,

their friend, wrote them down. Callendar, their new recruit, will do the same. Every decent man among them revolts at his filth; and there cannot be a doubt, that were a Presidential election to come on this day, they would certainly have but three New England States, and about half a dozen votes from Maryland and North Carolina; these two States electing by districts. Were all the States to elect by a general ticket, they would have but three out of sixteen States. And these three are coming up slowly. We do, indeed, consider Jersey and Delaware as rather doubtful. Elections which have lately taken place there, but their event not yet known here, will show the present point of their varying condition.

My letters to you being merely private, I leave all details of business to their official channel.

Accept assurances of my constant friendship and high respect.

P. S. We have received your letter announcing the arrival of Mr. Dupont.

TO ALBERT GALLATIN.

October 13, 1802.

You know my doubts, or rather convictions, about the unconstitutionality of the act for building piers in the Delaware, and the fears that it will lead to a bottomless expense, and to the greatest abuses. There is, however, one intention of which the act is susceptible, and which will bring it within the Constitution; and we ought always to presume that the real intention which is alone consistent with the Constitution. Although the power to regulate commerce does not give a power to build piers, wharves, open ports, clear the beds of rivers, dig canals, build warehouses, build manufacturing machines, set up manufactories, cultivate the earth, to all of which the power would go if it went to the first, yet a power to provide and maintain a navy, is a power to provide receptacles for it, and places to cover and preserve it. In choosing the places where this money should be laid out, I should be much disposed, as far as contracts will permit, to confine it to such place or places as the ships of war may lie at, and be protected from

ice; and I should be for stating this in a message to Congress, in order to prevent the effect of the present example. This act has been built on the exercise of the power of building light houses, as a regulation of commerce. But I well remember the opposition, on this very ground, to the first act for building a light house. The utility of the thing has sanctioned the infraction. But if on that infraction we build a second, on that second a third, &c., any one of the powers in the Constitution may be made to comprehend every power of government. Will you read the enclosed letters on the subject of New Orleans, and think what we can do or propose in the case?

Accept my affectionate salutations.

TO LEVI LINCOLN.

WASHINGTON, October 25, 1802.

DEAR SIR,—Your favor of the 16th is received, and that of July the 24th had come to hand while I was at Monticello. I sincerely condole with you on the sickly state of your family, and hope this will find them re-established with the approach of the cold season. As yet, however, we have had no frost in this place, and it is believed the yellow fever still continues in Philadelphia, if not in Baltimore. We shall all be happy to see you here whenever the state of your family admits it. You will have seen by the newspapers that we have gained ground generally in the elections, that we have lost ground in not a single district of the United States, except Kent county in Delaware, where a religious dissension occasioned it. In Jersey the elections are always carried by small majorities, consequently the issue is affected by the smallest accidents. By the paper of the last night we have a majority of three in their Council, and one in their House of Representatives; another says it is only of one in each House: even the latter is sufficient for every purpose. The opinion I originally formed has never been changed, that such of the body of the people as thought themselves federalists, would find that they were in truth republicans, and would come over to us by degrees; but that their leaders had gone too far ever to change. Their bitterness increases with their desperation. They are trying slanders now which nothing could prompt but a gall which blinds their judgments as well as their consciences.

I shall take no other revenge, than, by a steady pursuit of economy and peace, and by the establishment of republican principles in substance and in form, to sink federalism into an abyss from which there shall be no resurrection for it. I still think our original idea as to office is best: that is, to depend, for the obtaining a just participation, on deaths, resignations, and delinquencies. This will least affect the tranquillity of the people, and prevent their giving into the suggestion of our enemies, that ours has been a contest for office, not for principle. This is rather a slow operation, but it is sure if we pursue it steadily, which, however, has not been done with the undeviating resolution I could have wished. To these means of obtaining a just share in the transaction of the public business, shall be added one other, to wit, removal for electioneering activity, or open and industrious opposition to the principles of the present government, legislative and executive. Every officer of the government may vote at elections according to his conscience; but we should betray the cause committed to our care, were we to permit the influence of official patronage to be used to overthrow that cause. Your present situation will enable you to judge of prominent offenders in your State, in the case of the present election. I pray you to seek them, to mark them, to be quite sure of your ground, that we may commit no error or wrong, and leave the rest to me. I have been urged to remove Mr. Whittemore, the surveyor of Gloucester, on grounds of neglect of duty and industrious opposition. Yet no facts are so distinctly charged as to make the step sure which we should take in this. Will you take the trouble to satisfy yourself on this point? I think it not amiss that it should be known that we are determined to remove officers who are active or open mouthed against the government, by which I mean the legislature as well as the executive. Accept assurances of my sincere friendship and high respect.

TO THOMAS COOPER, ESQ.

WASHINGTON, November 29, 1802.

DEAR SIR,—Your favor of October 25th was received in due time, and I thank you for the long extract you took the trouble of making from Mr.

Stone's letter. Certainly the information it communicates as to Alexander kindles a great deal of interest in his existence, and strong spasms of the heart in his favor. Though his means of doing good are great, yet the materials on which he is to work are refractory. Whether he engages in private correspondences abroad, as the King of Prussia did much, and his grandfather sometimes, I know not; but certainly such a correspondence would be very interesting to those who are sincerely anxious to see mankind raised from their present abject condition. It delights me to find that there are persons who still think that all is not lost in France: that their retrogradation from a limited to an unlimited despotism, is but to give themselves a new impulse. But I see not how or when. The press, the only tocsin of a nation, is completely silenced there, and all means of a general effort taken away. However, I am willing to hope, and as long as anybody will hope with me; and I am entirely persuaded that the agitations of the public mind advance its powers, and that at every vibration between the points of liberty and despotism, something will be gained for the former. As men become better informed, their rulers must respect them the more. I think you will be sensible that our citizens are fast returning, from the panic into which they were artfully thrown to the dictates of their own reason; and I believe the delusions they have seen themselves hurried into will be useful as a lesson under similar attempts on them in future. The good effects of our late fiscal arrangements will certainly tend to unite them in opinion, and in confidence as to the views of their public functionaries, legislative and executive. The path we have to pursue is so quiet that we have nothing scarcely to propose to our Legislature. A noiseless course, meddling with the affairs of others, unattractive of notice, is a mark that society is going on in happiness. If we can prevent the government from wasting the labors of the people, under the pretence of taking care of them, they must become happy. Their finances are now under such a course of application as nothing could derange but war or federalism. The gripe of the latter has shown itself as deadly as the jaws of the former. Our adversaries say we are indebted to their providence for the means of paying the public debt. We never charged them with the want of foresight in providing money, but with the misapplication of it after they had provided it. We say they raised not only enough, but too much; and that after giving back the surplus we do more with a part than they did with the whole.

Your letter of November 18th is also received. The places of midshipman are so much sought that (being limited) there is never a vacancy. Your son shall be set down for the 2d, which shall; the 1st being anticipated. We are not long generally without vacancies happening. As soon as he can be appointed you shall know it. I pray you to accept assurances of my great attachment and respect.

TO GOVERNOR MONROE.

WASHINGTON, January 13, 1803.

DEAR SIR,—I dropped you a line on the 10th, informing you of a nomination I had made of you to the Senate, and yesterday I enclosed you their approbation, not then having time to write. The agitation of the public mind on occasion of the late suspension of our right of deposit at New Orleans is extreme. In the western country it is natural, and grounded on honest motives. In the sea ports it proceeds from a desire for war, which increases the mercantile lottery: in the federalists, generally, and especially those of Congress, the object is to force us into war if possible, in order to derange our finances, or if this cannot be done, to attach the western country to them, as their best friends, and thus get again into power. Remonstrances, memorials, &c., are now circulating through the whole of the western country, and signed by the body of the people. The measures we have been pursuing, being invisible, do not satisfy their minds. Something sensible, therefore, has become necessary; and indeed our object of purchasing New Orleans and the Floridas is a measure liable to assume so many shapes, that no instructions could be squared to fit them. It was essential then, to send a minister extraordinary, to be joined with the ordinary one, with discretionary powers; first, however, well impressed with all our views, and therefore qualified to meet and modify to these every form of proposition which could come from the other party. This could be done only in full and frequent oral communications. Having determined on this, there could not be two opinions among the republicans as to the person. You possessed the unlimited confidence of the administration and of the western people; and generally of the republicans everywhere; and were you to refuse to go, no

other man can be found who does this. The measure has already silenced the federalists here. Congress will no longer be agitated by them; and the country will become calm fast as the information extends over it. All eyes, all hopes are now fixed on you; and were you to decline, the chagrin would be universal, and would shake under your feet the high ground on which you stand with the public. Indeed, I know nothing which would produce such a shock. For on the event of this mission depend the future destinies of this republic. If we cannot by a purchase of the country, insure to ourselves a course of perpetual peace and friendship with all nations, then as war cannot be distant, it behooves us immediately to be preparing for that course, without, however, hastening it; and it may be necessary (on your failure on the continent) to cross the channel. We shall get entangled in European politics, and figuring more, be much less happy and prosperous. This can only be prevented by a successful issue to your present mission. I am sensible after the measures you have taken for getting into a different line of business, that it will be a great sacrifice on your part, and presents from the season and other circumstances serious difficulties. But some men are born for the public. Nature by fitting them for the service of the human race on a broad scale, has stamped them with the evidences of her destination and their duty.

But I am particularly concerned, that, in the present case, you have more than one sacrifice to make. To reform the prodigalities of our predecessors is understood to be peculiarly our duty, and to bring the government to a simple and economical course. They, in order to increase expense, debt, taxation and patronage, tried always how much they could give. The outfit given to ministers resident to enable them to furnish their house, but given by no nation to a temporary minister, who is never expected to take a house or to entertain, but considered on the footing of a *voyageur*, they gave to their extraordinary ministers by wholesale. In the beginning of our administration, among other articles of reformation in expense, it was determined not to give an outfit to ministers extraordinary, and not to incur the expense with any minister of sending a frigate to carry or bring him. The Boston happened to be going to the Mediterranean, and was permitted, therefore, to take up Mr. Livingston, and touch in a port of France. A frigate was denied to Charles Pinckney, and has been refused to Mr. King for his return. Mr. Madison's friendship and mine to you being so well known, the

public will have eagle eyes to watch if we grant you any indulgences out of the general rule; and on the other hand, the example set in your case will be more cogent on future ones, and produce greater approbation to our conduct. The allowance, therefore, will be in this, and all similar cases, all the expenses of your journey and voyage, taking a ship's cabin to yourself, nine thousand dollars a year from your leaving home till the proceedings of your mission are terminated, and then the quarter's salary for the expenses of your return, as prescribed by law. As to the time of your going, you cannot too much hasten it, as the moment in France is critical. St. Domingo delays their taking possession of Louisiana, and they are in the last distress for money for current purposes. You should arrange your affairs for an absence of a year at least, perhaps for a long one. It will be necessary for you to stay here some days on your way to New York. You will receive here what advance you choose.

Accept assurances of my constant and affectionate attachment.

TO M. DUPONT.

WASHINGTON, February 1, 1803.

DEAR SIR,—I have to acknowledge the receipt of your favors of August the 16th and October the 4th. The latter I received with peculiar satisfaction; because, while it holds up terms which cannot be entirely yielded, it proposes such as a mutual spirit of accommodation and sacrifice of opinion may bring to some point of union. While we were preparing on this subject such modifications of the propositions of your letter of October the 4th, as we could assent to, an event happened which obliged us to adopt measures of urgency. The suspension of the right of deposit at New Orleans, ceded to us by our treaty with Spain, threw our whole country into such a ferment as imminently threatened its peace. This, however, was believed to be the act of the Intendant, unauthorized by his government. But it showed the necessity of making effectual arrangements to secure the peace of the two countries against the indiscreet acts of subordinate agents. The urgency of the case, as well as the public spirit, therefore induced us to make a more solemn appeal to the justice and judgment of our neighbors, by sending a

minister extraordinary to impress them with the necessity of some arrangement. Mr. Monroe has been selected. His good dispositions cannot be doubted. Multiplied conversations with him, and views of the subject taken in all the shapes in which it can present itself, have possessed him with our estimates of everything relating to it, with a minuteness which no written communication to Mr. Livingston could ever have attained. These will prepare them to meet and decide on every form of proposition which can occur, without awaiting new instructions from hence, which might draw to an indefinite length a discussion where circumstances imperiously oblige us to a prompt decision. For the occlusion of the Mississippi is a state of things in which we cannot exist. He goes, therefore, joined with Chancellor Livingston, to aid in the issue of a crisis the most important the United States have ever met since their independence, and which is to decide their future character and career. The confidence which the government of France reposes in you, will undoubtedly give great weight to your information. An equal confidence on our part, founded on your knowledge of the subject, your just views of it, your good dispositions towards this country, and my long experience of your personal faith and friendship, assures me that you will render between us all the good offices in your power. The interests of the two countries being absolutely the same as to this matter, your aid may be conscientiously given. It will often perhaps, be possible for you, having a freedom of communication, *omnibus horis*, which diplomatic gentlemen will be excluded from by forms, to smooth difficulties by representations and reasonings, which would be received with more suspicion from them. You will thereby render great good to both countries. For our circumstances are so imperious as to admit of no delay as to our course; and the use of the Mississippi so indispensable, that we cannot hesitate one moment to hazard our existence for its maintenance. If we fail in this effort to put it beyond the reach of accident, we see the destinies we have to run, and prepare at once for them. Not but that we shall still endeavor to go on in peace and friendship with our neighbors as long as we can, *if our rights of navigation and deposit are respected*; but as we foresee that the caprices of the local officers, and the abuse of those rights by our boatmen and navigators, which neither government can prevent, will keep up a state of irritation which cannot long be kept inactive, we should be criminally improvident not to take at once eventual measures for strengthening ourselves for the contest. It may be said, if this object be so

all-important to us, why do we not offer such a sum to as to insure its purchase? The answer is simple. We are an agricultural people, poor in money, and owing great debts. These will be falling due by instalments for fifteen years to come, and require from us the practice of a rigorous economy to accomplish their payment; and it is our principle to pay to a moment whatever we have engaged, and never to engage what we cannot, and mean not faithfully to pay. We have calculated our resources, and find the sum to be moderate which they would enable us to pay, and we know from late trials that little can be added to it by borrowing. The country, too, which we wish to purchase, except the portion already granted, and which must be confirmed to the private holders, is a barren sand, six hundred miles from east to west, and from thirty to forty and fifty miles from north to south, formed by deposition of the sands by the Gulf Stream in its circular course round the Mexican Gulf, and which being spent after performing a semicircle, has made from its last depositions the sand bank of East Florida. In West Florida, indeed, there are on the borders of the rivers some rich bottoms, formed by the mud brought from the upper country. These bottoms are all possessed by individuals. But the spaces between river and river are mere banks of sand; and in East Florida there are neither rivers, nor consequently any bottoms. We cannot then make anything by a sale of the lands to individuals. So that it is peace alone which makes it an object with us, and which ought to make the cession of it desirable to France. Whatever power, other than ourselves, holds the country east of the Mississippi becomes our natural enemy. Will such a possession do France as much good, as such an enemy may do her harm? And how long would it be hers, were such an enemy, situated at its door, added to Great Britain? I confess, it appears to me as essential to France to keep at peace with us, as it is to us to keep at peace with her; and that, if this cannot be secured without some compromise as to the territory in question, it will be useful for both to make some sacrifices to effect the compromise.

You see, my good friend, with what frankness I communicate with you on this subject; that I hide nothing from you, and that I am endeavoring to turn our private friendship to the good of our respective countries. And can private friendship ever answer a nobler end than by keeping two nations at peace, who, if this new position which one of them is taking were rendered innocent, have more points of common interest, and fewer of collision, than

any two on earth; who become natural friends, instead of natural enemies, which this change of position would make them. My letters of April the 25th, May the 5th, and this present one have been written, without any disguise, in this view; and while safe in your hands they can never do anything but good. But you and I are now at that time of life when our call to another state of being cannot be distant, and may be near. Besides, your government is in the habit of seizing papers without notice. These letters might thus get into hands, which, like the hornet which extracts poison from the same flower that yields honey to the bee, might make them the ground of blowing up a flame between our two countries, and make our friendship and confidence in each other effect exactly the reverse of what we are aiming at. Being yourself thoroughly possessed of every idea in them, let me ask from your friendship an immediate consignment of them to the flames. That alone can make all safe, and ourselves secure.

I intended to have answered you here, on the subject of your agency in the transacting what money matters we may have at Paris, and for that purpose meant to have conferred with Mr. Gallatin. But he has, for two or three days, been confined to his room, and is not yet able to do business. If he is out before Mr. Monroe's departure, I will write an additional letter on that subject. Be assured that it will be a great additional satisfaction to me to render services to yourself and sons by the same acts which shall at the same time promote the public service. Be so good as to present my respectful salutations to Madame Dupont, and to accept yourself assurances of my constant and affectionate friendship and great respect.

TO CHANCELLOR LIVINGSTON.

WASHINGTON, February 3, 1803.

DEAR SIR,—My last to you was by Mr. Dupont. Since that I received yours of May 22d. Mr. Madison supposes you have written a subsequent one which has never come to hand. A late suspension by the Intendant of New Orleans of our right of deposit there, without which the right of navigation is impracticable, has thrown this country into such a flame of hostile disposition as can scarcely be described. The western country was

peculiarly sensible to it as you may suppose. Our business was to take the most effectual pacific measures in our power to remove the suspension, and at the same time to persuade our countrymen that pacific measures would be the most effectual and the most speedily so. The opposition caught it as a plank in a shipwreck, hoping it would enable them to tack the Western people to them. They raised the cry of war, were intriguing in all quarters to exasperate the Western inhabitants to arm and go down on their own authority and possess themselves of New Orleans, and in the meantime were daily reiterating, in new shapes, inflammatory resolutions for the adoption of the House. As a remedy to all this we determined to name a minister extraordinary to go immediately to Paris and Madrid to settle this matter. This measure being a visible one, and the person named peculiarly proper with the Western country, crushed at once and put an end to all further attempts on the Legislature. From that moment all has become quiet; and the more readily in the Western country, as the sudden alliance of these new federal friends had of itself already began to make them suspect the wisdom of their own course. The measure was moreover proposed from another cause. We must know at once whether we can acquire New Orleans or not. We are satisfied nothing else will secure us against a war at no distant period; and we cannot press this reason without beginning those arrangements which will be necessary if war is hereafter to result. For this purpose it was necessary that the negotiators should be fully possessed of every idea we have on the subject, so as to meet the propositions of the opposite party, in whatever form they may be offered; and give them a shape admissible by us without being obliged to await new instructions hence. With this view, we have joined Mr. Monroe with yourself at Paris, and to Mr. Pintency at Madrid, although we believe it will be hardly necessary for him to go to this last place. Should we fail in this object of the mission, a further one will be superadded for the other side of the channel. On this subject you will be informed by the Secretary of State, and Mr. Monroe will be able also to inform you of all our views and purposes. By him I send another letter to Dupont, whose aid may be of the greatest service, as it will be divested of the shackles of form. The letter is left open for your perusal, after which I wish a wafer stuck in it before it be delivered. The official and the verbal communications to you by Mr. Monroe will be so full and minute, that I need not trouble you with an inofficial repetition of them. The future destinies of our country hang on the

event of this negotiation, and I am sure they could not be placed in more able or more zealous hands. On our parts we shall be satisfied that what you do not effect, cannot be effected. Accept therefore assurances of my sincere and constant affection and high respect.

TO MR. PICTET.

WASHINGTON, February 5, 1803.

DEAR SIR,—It is long since I might have acknowledged your favor of May 20, 1801, which however I did not receive till January, 1802. My incessant occupations on matters which will not bear delay, occasion those which can be put off to lie often for a considerable time. I rejoice that the opinion which I gave you on the removal hither proved useful. I knew it was not safe for you to take such a step until it would be done on sure ground. I hoped at that time that some canal shares, which were at the disposal of General Washington, might have been applied towards the establishment of a good seminary of learning; but he had already proceeded too far on another plan to change their direction. I have still had constantly in view to propose to the legislature of Virginia the establishment of one on as large a scale as our present circumstances would require or bear. But as yet no favorable moment has occurred. In the meanwhile I am endeavoring to procure materials for a good plan. With this view I am to ask the favor of you to give me a sketch of the branches of science taught in your college, how they are distributed among the professors, that is to say, how many professors there are, and what branches of science are allotted to each professor, and the days and hours assigned to each branch. Your successful experience in the distribution of business will be a valuable guide to us, who are without experience. I am sensible I am imposing on your goodness a troublesome task; but I believe every son of science feels a strong and disinterested desire of promoting it in every part of the earth, and it is the consciousness as well as confidence in this which emboldens me to make the present request.

In the line of science we have little new here. Our citizens almost all follow some industrious occupation, and therefore have little time to devote to

abstract science. In the arts, and especially in the mechanical arts, many ingenious improvements are made in consequence of the patent-right giving exclusive use of them for fourteen years. But the great mass of our people are agricultural; and the commercial cities, though, by the command of newspapers, they make a great deal of noise, have little effect in the direction of the government. They are as different in sentiment and character from the country people as any two distinct nations, and are clamorous against the order of things established by the agricultural interest. Under this order, our citizens generally are enjoying a very great degree of liberty and security in the most temperate manner. Every man being at his ease, feels an interest in the preservation of order, and comes forth to preserve it at the first call of the magistrate. We are endeavoring too to reduce the government to the practice of a rigorous economy, to avoid burthening the people, and arming the magistrate with a patronage of money, which might be used to corrupt and undermine the principles of our government. I state these general outlines to you, because I believe you take some interest in our fortune, and because our newspapers for the most part, present only the caricatures of disaffected minds. Indeed the abuses of the freedom of the press here have been carried to a length never before known or borne by any civilized nation. But it is so difficult to draw a clear line of separation between the abuse and the wholesome use of the press, that as yet we have found it better to trust the public judgment, rather than the magistrate, with the discrimination between truth and falsehood. And hitherto the public judgment has performed that office with wonderful correctness. Should you favor me with a letter, the safest channel of conveyance will be the American minister at Paris or London. I pray you to accept assurances of my great esteem, and high respect and consideration.

TO GENERAL JACKSON.

WASHINGTON, February 16, 1803.

DEAR SIR,—Your favor of the 14th was received on the same day, and will be duly attended to in the course of our affairs with the Creeks. In keeping agents among the Indians, two objects are principally in view: 1. The

preservation of peace; 2. The obtaining lands. Towards effecting the latter object, we consider the leading the Indians to agriculture as the principal means from which we can expect much effect in future. When they shall cultivate small spots of earth, and see how useless their extensive forests are, they will sell, from time to time, to help out their personal labor in stocking their farms, and procuring clothes and comforts from our trading houses. Towards the attainment of our two objects of peace and lands, it is essential that our agent acquire that sort of influence over the Indians which rests on confidence. In this respect, I suppose that no man has ever obtained more influence than Colonel Hawkins. Towards the preservation of peace, he is omnipotent; in the encouragement of agriculture, he is indefatigable and successful. These are important portions of his duty. But doubts are entertained by some whether he is not more attached to the interests of the Indians than of the United States; whether he is willing they should cede lands, when they are willing to do it. If his own solemn protestations can command any faith, he urges the ceding lands as far as he finds it practicable to induce them. He only refuses to urge what he knows cannot be obtained. He is not willing to destroy his own influence by pressing what he knows cannot be obtained. This is his representation. Against this I should not be willing to substitute suspicion for proof; but I shall always be open to any proofs that he obstructs cessions of land which the Indians are willing to make; and of this, Sir, you may be assured, that he shall be placed under as strong a pressure from the executive to obtain cessions as he can feel from any opposite quarter to obstruct. He shall be made sensible that his value will be estimated by us in proportion to the benefits he can obtain for us. I am myself alive to the obtaining lands from the Indians by all *honest and peaceable means*, and I believe that the honest and peaceable means adopted by us will obtain them as fast as the expansion of our settlements, with due regard to compactness, will require. The war department, charged with Indian affairs, is under the impression of these principles, and will second my views with sincerity. And, in the present case, besides the official directions which will go to Colonel Hawkins, immediately to spare no efforts from which any success can be hoped to obtain the residue of the Oconee and Oakmulgee fork, I shall myself write to Colonel Hawkins, and possess him fully of my views and expectations; and this with such explanations as I trust will bring him cordially into them,

as they are unquestionably equally for the interest of the Indians and ourselves.

I have availed myself of the occasion furnished by your letter of explaining to you my views on this subject with candor, and of assuring you they shall be pursued unremittingly. When speaking of the Oakmulgee fork, I ought to have added, that we shall do whatever can be done properly in behalf of Wafford's settlement; and that as to the South-Eastern road, it will be effected, as we consider ourselves entitled, on principles acknowledged by all men, to an innocent passage through the lands of a neighbor, and to admit no refusal of it. Accept assurances of my great esteem and high consideration.

TO COLONEL HAWKINS.

WASHINGTON, February 18, 1803.

DEAR SIR,—Mr. Hill's return to you offers so safe a conveyance for a letter, that I feel irresistibly disposed to write one, though there is but little to write about. You have been so long absent from this part of the world, and the state of society so changed in that time, that details respecting those who compose it are no longer interesting or intelligible to you. One source of great change in social intercourse arose while you were with us, though its effects were as yet scarcely sensible on society or government. I mean the British treaty, which produced a schism that went on widening and rankling till the years '98, '99, when a final dissolution of all bonds, civil and social, appeared imminent. In that awful crisis, the people awaked from the phrenzy into which they had been thrown, began to return to their sober and ancient principles, and have now become five-sixths of one sentiment, to wit, for peace, economy, and a government bottomed on popular election in its legislative and executive branches. In the public counsels the federal party hold still one-third. This, however, will lessen, but not exactly to the standard of the people; because it will be forever seen that of bodies of men even elected by the people, there will always be a greater proportion aristocratic than among their constituents. The present administration had a task imposed on it which was unavoidable, and could not fail to exert the

bitterest hostility in those opposed to it. The preceding administration left ninety-nine out of every hundred in public offices of the federal sect. Republicanism had been the mark on Cain which had rendered those who bore it exiles from all portion in the trusts and authorities of their country. This description of citizens called imperiously and justly for a restoration of right. It was intended, however, to have yielded to this in so moderate a degree as might conciliate those who had obtained exclusive possession; but as soon as they were touched, they endeavored to set fire to the four corners of the public fabric, and obliged us to deprive of the influence of office several who were using it with activity and vigilance to destroy the confidence of the people in their government, and thus to proceed in the drudgery of removal farther than would have been, had not their own hostile enterprises rendered it necessary in self-defence. But I think it will not be long before the whole nation will be consolidated in their ancient principles, excepting a few who have committed themselves beyond recall, and who will retire to obscurity and settled disaffection.

Although you will receive, through the official channel of the War Office, every communication necessary to develop to you our views respecting the Indians, and to direct your conduct, yet, supposing it will be satisfactory to you, and to those with whom you are placed, to understand my personal dispositions and opinions in this particular, I shall avail myself of this private letter to state them generally. I consider the business of hunting as already become insufficient to furnish clothing and subsistence to the Indians. The promotion of agriculture, therefore, and household manufacture, are essential in their preservation, and I am disposed to aid and encourage it liberally. This will enable them to live on much smaller portions of land, and indeed will render their vast forests useless but for the range of cattle; for which purpose, also, as they become better farmers, they will be found useless, and even disadvantageous. While they are learning to do better on less land, our increasing numbers will be calling for more land, and thus a coincidence of interests will be produced between those who have lands to spare, and want other necessities, and those who have such necessities to spare, and want lands. This commerce, then, will be for the good of both, and those who are friends to both ought to encourage it. You are in the station peculiarly charged with this interchange, and who have it peculiarly in your power to promote among the Indians a sense of the

superior value of a little land, well cultivated, over a great deal, unimproved, and to encourage them to make this estimate truly. The wisdom of the animal which amputates and abandons to the hunter the parts for which he is pursued should be theirs, with this difference, that the former sacrifices what is useful, the latter what is not. In truth, the ultimate point of rest and happiness for them is to let our settlements and theirs meet and blend together, to intermix, and become one people. Incorporating themselves with us as citizens of the United States, this is what the natural progress of things will of course bring on, and it will be better to promote than to retard it. Surely it will be better for them to be identified with us, and preserved in the occupation of their lands, than be exposed to the many casualties which may endanger them while a separate people. I have little doubt but that your reflections must have led you to view the various ways in which their history may terminate, and to see that this is the one most for their happiness. And we have already had an application from a settlement of Indians to become citizens of the United States. It is possible, perhaps probable, that this idea may be so novel as that it might shock the Indians, were it even hinted to them. Of course, you will keep it for your own reflection; but, convinced of its soundness, I feel it consistent with pure morality to lead them towards it, to familiarize them to the idea that it is for their interest to cede lands at times to the United States, and for us thus to procure gratifications to our citizens, from time to time, by new acquisitions of land. From no quarter is there at present so strong a pressure on this subject as from Georgia for the residue of the fork of Oconee and Oakmulgee; and indeed I believe it will be difficult to resist it. As it has been mentioned that the Creeks had at one time made up their minds to sell this, and were only checked in it by some indiscretion of an individual, I am in hopes you will be able to bring them to it again. I beseech you to use your most earnest endeavors; for it will relieve us here from a great pressure, and yourself from the unreasonable suspicions of the Georgians which you notice, that you are more attached to the interests of the Indians than of the United States, and throw cold water on their willingness to part with lands. It is so easy to excite suspicion, that none are to be wondered at; but I am in hopes it will be in your power to quash them by effecting the object.

Mr. Madison enjoys better health since his removal to this place than he had done in Orange. Mr. Giles is in a state of health feared to be irrecoverable, although he may hold on for some time, and perhaps be re-established. Browze Trist is now in the Mississippi territory, forming an establishment for his family, which is still in Albemarle, and will remove to the Mississippi in the spring. Mrs. Trist, his mother, begins to yield a little to time. I retain myself very perfect health, having not had twenty hours of fever in forty-two years past. I have sometimes had a troublesome headache, and some slight rheumatic pains; but now sixty years old nearly, I have had as little to complain of in point of health as most people. I learn you have the gout. I did not expect that Indian cookery or Indian fare would produce that; but it is considered as a security for good health otherwise. That it may be so with you, I sincerely pray, and tender you my friendly and respectful salutations.

TO —.

WASHINGTON, February 25, 1803.

SIR,—In compliance with a request of the House of Representatives of the United States, as well as with a sense of what is necessary, I take the liberty of urging on you the importance and indispensable necessity of vigorous exertions, on the part of the State governments, to carry into effect the militia system adopted by the national Legislature, agreeable to the powers reserved to the States respectively, by the Constitution of the United States, and in a manner the best calculated to ensure such a degree of military discipline, and knowledge of tactics, as will under the auspices of a benign providence, render the militia a sure and permanent bulwark of national defence.

None but an armed nation can dispense with a standing army; to keep ours armed and disciplined, is therefore at all times important, but especially so at a moment when rights the most essential to our welfare have been violated, and an infraction of treaty committed without color or pretext; and although we are willing to believe that this has been the act of a subordinate agent only, yet is it wise to prepare for the possibility that it may have been

the leading measure of a system. While, therefore, we are endeavoring, and with a considerable degree of confidence, to obtain by friendly negotiation a peaceable redress of the injury, and effectual provision against its repetition, let us array the strength of the nation, and be ready to do with promptitude and effect whatever a regard to justice and our future security may require.

In order that I may have a full and correct view of the resources of our country in all its different parts, I must desire you, with as little delay as possible, to have me furnished with a return of the militia, and of the arms and accoutrements of your State, and of the several counties, or other geographical divisions of it.

Accept assurances of my high consideration and respect.

TO DR. BARTON.

WASHINGTON, February 27, 1803.

DEAR SIR,—I enclose to you a copy of two discourses sent you by Mr. Lalepida through the hands of Mr. Paine, who delivered them with some sent me. What follows in that letter is strictly confidential. You know we have been many years wishing to have the Missouri explored, and whatever river, heading with that, runs into the western ocean. Congress, in some secret proceedings, have yielded to a proposition I made them for permitting me to have it done. It is to be undertaken immediately, with a party of about ten, and I have appointed Captain Lewis, my Secretary, to conduct it. It was impossible to find a character who, to a complete science in Botany, Natural History, Mineralogy and Astronomy, joined the firmness of constitution and character, prudence, habits adapted to the woods, and familiarity with the Indian manners and character, requisite for this undertaking. All the latter qualifications Captain Lewis has. Although no regular botanist, &c., he possesses a remarkable store of accurate observation on all the subjects of the three kingdoms, and will therefore readily single out whatever presents itself new to him in either; and he has qualified himself for taking the observations of longitude and latitude

necessary to fix the geography of the line he passes through. In order to draw his attention at once, to the objects most desirable, I must ask the favor of you to prepare for him a note of those in the lines of botany, zoology, or of Indian history, which you think most worthy of enquiry and observation. He will be with you in Philadelphia in two or three weeks, and will wait on you, and receive thankfully on paper, and any verbal communications which you may be so good as to make to him. I make no apology for this trouble, because I know that the same wish to promote science which has induced me to bring forward this proposition, will induce you to aid in promoting it. Accept assurances of my friendly esteem and high respect.

TO GOVERNOR HARRISON.

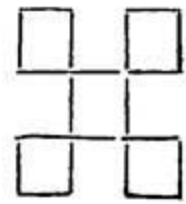
WASHINGTON, February 27, 1803.

DEAR SIR,—While at Monticello in August last I received your favor of August 8th, and meant to have acknowledged it on my return to the seat of government at the close of the ensuing month, but on my return I found that you were expected to be on here in person, and this expectation continued till winter. I have since received your favor of December 30th.

In the former you mentioned the plan of the town which you had done me the honor to name after me, and to lay out according to an idea I had formerly expressed to you. I am thoroughly persuaded that it will be found handsome and pleasant, and I do believe it to be the best means of preserving the cities of America from the scourge of the yellow fever, which being peculiar to our country, must be derived from some peculiarity in it. That peculiarity I take to be our cloudless skies. In Europe, where the sun does not shine more than half the number of days in the year which it does in America, they can build their town in a solid block with impunity; but here a constant sun produces too great an accumulation of heat to admit that. Ventilation is indispensably necessary. Experience has taught us that in the open air of the country the yellow fever is not only not generated, but ceases to be infectious. I cannot decide from the drawing you sent me, whether you have laid off streets round the squares thus: or only the

diagonal streets therein marked. The former was my idea, and is, I imagine, most convenient.

You will receive herewith an answer to your letter as President of the Convention; and from the Secretary of War you receive from time to time information and instructions as to our Indian affairs. These communications being for the public records, are restrained always to particular objects and occasions; but this letter being unofficial and private, I may with safety give you a more extensive view of our policy respecting the Indians, that you may the better comprehend the parts dealt out to you in detail through the official channel, and observing the system of which they make a part, conduct yourself in unison with it in cases where you are obliged to act without instruction. Our system is to live in perpetual peace with the Indians, to cultivate an affectionate attachment from them, by everything just and liberal which we can do for them within the bounds of reason, and by giving them effectual protection against wrongs from our own people. The decrease of game rendering their subsistence by hunting insufficient, we wish to draw them to agriculture, to spinning and weaving. The latter branches they take up with great readiness, because they fall to the women, who gain by quitting the labors of the field for those which are exercised within doors. When they withdraw themselves to the culture of a small piece of land, they will perceive how useless to them are their extensive forests, and will be willing to pare them off from time to time in exchange for necessaries for their farms and families. To promote this disposition to exchange lands, which they have to spare and we want, for necessaries, which we have to spare and they want, we shall push our trading uses, and be glad to see the good and influential individuals among them run in debt, because we observe that when these debts get beyond what the individuals can pay, they become willing to lop them off by a cession of lands. At our trading houses, too, we mean to sell so low as merely to repay us cost and charges, so as neither to lessen or enlarge our capital. This is what private traders cannot do, for they must gain; they will consequently retire from the competition, and we shall thus get clear of this pest without giving offence or umbrage to the Indians. In this way our settlements will gradually circumscribe and approach the Indians, and they will in time either incorporate with us as citizens of the United States, or remove beyond the Mississippi. The former is certainly the termination of their history most happy for themselves; but, in the whole course of this, it



is essential to cultivate their love. As to their fear, we presume that our strength and their weakness is now so visible that they must see we have only to shut our hand to crush them, and that all our liberalities to them proceed from motives of pure humanity only. Should any tribe be foolhardy enough to take up the hatchet at any time, the seizing the whole country of that tribe, and driving them across the Mississippi, as the only condition of peace, would be an example to others, and a furtherance of our final consolidation.

Combined with these views, and to be prepared against the occupation of Louisiana by a powerful and enterprising people, it is important that, setting less value on interior extension of purchases from the Indians, we bend our whole views to the purchase and settlement of the country on the Mississippi, from its mouth to its northern regions, that we may be able to present as strong a front on our western as on our eastern border, and plant on the Mississippi itself the means of its own defence. We now own from 31' to the Yazoo, and hope this summer to purchase what belongs to the Choctaws from the Yazoo up to their boundary, supposed to be about opposite the mouth of Acanza. We wish at the same time to begin in your quarter, for which there is at present a favorable opening. The Cahokias extinct, we are entitled to their country by our paramount sovereignty. The Piorias, we understand, have all been driven off from their country, and we might claim it in the same way; but as we understand there is one chief remaining, who would, as the survivor of the tribe, sell the right, it is better to give him such terms as will make him easy for life, and take a conveyance from him. The Kaskaskias being reduced to a few families, I presume we may purchase their whole country for what would place every individual of them at his ease, and be a small price to us,—say by laying off for each family, whenever they would choose it, as much rich land as they could cultivate, adjacent to each other, enclosing the whole in a single fence, and giving them such an annuity in money or goods forever as would place them in happiness; and we might take them also under the protection of the United States. Thus possessed of the rights of these tribes, we should proceed to the settling their boundaries with the Poutewatamies and Kickapoos; claiming all doubtful territory, but paying them a price for the relinquishment of their concurrent claim, and even prevailing on them, if possible, to *cede*, for a price, such of their own unquestioned territory as

would give us a convenient northern boundary. Before broaching this, and while we are bargaining with the Kaskaskies, the minds of the Poutewatamies and Kickapoos should be soothed and conciliated by liberalities and sincere assurances of friendship. Perhaps by sending a well-qualified character to stay some time in Decoigne's village, as if on other business, and to sound him and introduce the subject by degrees to his mind and that of the other heads of families, inculcating in the way of conversation, all those considerations which prove the advantages they would receive by a cession on these terms, the object might be more easily and effectually obtained than by abruptly proposing it to them at a formal treaty. Of the means, however, of obtaining what we wish, you will be the best judge; and I have given you this view of the system which we suppose will best promote the interests of the Indians and ourselves, and finally consolidate our whole country to one nation only; that you may be enabled the better to adapt your means to the object, for this purpose we have given you a general commission for treating. The crisis is pressing: whatever can now be obtained must be obtained quickly. The occupation of New Orleans, hourly expected, by the French, is already felt like a light breeze by the Indians. You know the sentiments they entertain of that nation; under the hope of their protection they will immediately stiffen against cessions of lands to us. We had better, therefore, do at once what can now be done.

I must repeat that this letter is to be considered as private and friendly, and is not to control any particular instructions which you may receive through official channel. You will also perceive how sacredly it must be kept within your own breast, and especially how improper to be understood by the Indians. For their interests and their tranquillity it is best they should see only the present age of their history. I pray you to accept assurances of my esteem and high consideration.

TO DR. PRIESTLEY.

WASHINGTON, April 9, 1803.

DEAR SIR,—While on a short visit lately to Monticello, I received from you a copy of your comparative view of Socrates and Jesus, and I avail myself

of the first moment of leisure after my return to acknowledge the pleasure I had in the perusal of it, and the desire it excited to see you take up the subject on a more extended scale. In consequence of some conversation with Dr. Rush, in the year 1798-99, I had promised some day to write him a letter giving him my view of the Christian system. I have reflected often on it since, and even sketched the outlines in my own mind. I should first take a general view of the moral doctrines of the most remarkable of the ancient philosophers, of whose ethics we have sufficient information to make an estimate, say Pythagoras, Epicurus, Epictetus, Socrates, Cicero, Seneca, Antoninus. I should do justice to the branches of morality they have treated well; but point out the importance of those in which they are deficient. I should then take a view of the deism and ethics of the Jews, and show in what a degraded state they were, and the necessity they presented of a reformation. I should proceed to a view of the life, character, and doctrines of Jesus, who sensible of incorrectness of their ideas of the Deity, and of morality, endeavored to bring them to the principles of a pure deism, and juster notions of the attributes of God, to reform their moral doctrines to the standard of reason, justice and philanthropy, and to inculcate the belief of a future state. This view would purposely omit the question of his divinity, and even his inspiration. To do him justice, it would be necessary to remark the disadvantages his doctrines had to encounter, not having been committed to writing by himself, but by the most unlettered of men, by memory, long after they had heard them from him; when much was forgotten, much misunderstood, and presented in every paradoxical shape. Yet such are the fragments remaining as to show a master workman, and that his system of morality was the most benevolent and sublime probably that has been ever taught, and consequently more perfect than those of any of the ancient philosophers. His character and doctrines have received still greater injury from those who pretend to be his special disciples, and who have disfigured and sophisticated his actions and precepts, from views of personal interest, so as to induce the unthinking part of mankind to throw off the whole system in disgust, and to pass sentence as an impostor on the most innocent, the most benevolent, the most eloquent and sublime character that ever has been exhibited to man. This is the outline; but I have not the time, and still less the information which the subject needs. It will therefore rest with me in contemplation only. You are the person of all others would do it best, and most promptly. You have all the materials at

hand, and you put together with ease. I wish you could be induced to extend your late work to the whole subject. I have not heard particularly what is the state of your health; but as it has been equal to the journey to Philadelphia, perhaps it might encourage the curiosity you must feel to see for once this place, which nature has formed on a beautiful scale, and circumstances destine for a great one. As yet we are but a cluster of villages; we cannot offer you the learned society of Philadelphia; but you will have that of a few characters whom you esteem, and a bed and hearty welcome with one who will rejoice in every opportunity of testifying to you his high veneration and affectionate attachment.

TO EDWARD DOWSE, ESQ.

WASHINGTON, April 19, 1803.

DEAR SIR,—I now return the sermon you were so kind as to enclose me, having perused it with attention. The reprinting it by me, as you have proposed, would very readily be ascribed to hypocritical affectation, by those who, when they cannot blame our acts, have recourse to the expedient of imputing them to bad motives. This is a resource which can never fail them, because there is no act, however virtuous, for which ingenuity may not find some bad motive. I must also add that though I concur with the author in considering the moral precepts of Jesus as more pure, correct, and sublime than those of the ancient philosophers, yet I do not concur with him in the mode of proving it. He thinks it necessary to libel and decry the doctrines of the philosophers; but a man must be blinded indeed by prejudice, who can deny them a great degree of merit. I give them their just due, and yet maintain that the morality of Jesus, as taught by himself, and freed from the corruptions of latter times, is far superior. Their philosophy went chiefly to the government of our passions, so far as respected ourselves, and the procuring our own tranquillity. In our duties to others they were short and deficient. They extended their cares scarcely beyond our kindred and friends individually, and our country in the abstract. Jesus embraced with charity and philanthropy our neighbors, our countrymen, and the whole family of mankind. They confined themselves to actions; he

pressed his sentiments into the region of our thoughts, and called for purity at the fountain head. In a pamphlet lately published in Philadelphia by Dr. Priestley, he has treated, with more justice and skill than Mr. Bennet, a small portion of this subject. His is a comparative view of Socrates only with Jesus. I have urged him to take up the subject on a broader scale.

Every word which goes from me, whether verbally or in writing, becomes the subject of so much malignant distortion, and perverted construction, that I am obliged to caution my friends against admitting the possibility of my letters getting into the public papers, or a copy of them to be taken under any degree of confidence. The present one is perhaps of a tenor to silence some calumniators, but I never will, by any word or act, bow to the shrine of intolerance, or admit a right of inquiry into the religious opinions of others. On the contrary, we are bound, you, I, and every one, to make common cause, even with error itself, to maintain the common right of freedom of conscience. We ought with one heart and one hand to hew down the daring and dangerous efforts of those who would seduce the public opinion to substitute itself into that tyranny over religious faith which the laws have so justly abdicated. For this reason, were my opinions up to the standard of those who arrogate the right of questioning them, I would not countenance that arrogance by descending to an explanation. Accept my friendly salutations and high esteem.

TO MR. GALLATIN.

April 21, 1803.

The Act of Congress 1789, c. 9, assumes on the General Government the maintenance and repair of all lighthouses, beacons, buoys, and public piers then existing, and provides for the building a new lighthouse. This was done under the authority given by the Constitution "to regulate commerce," was contested at the time as not within the meaning of these terms, and yielded to only on the urgent necessity of the case. The Act of 1802, c. 20, f. 8, for repairing and erecting public piers in the Delaware, does not take any new ground—it is in strict conformity with the Act of 1789. While we pursue, then, the construction of the Legislature, that the repairing and erecting

lighthouses, beacons, buoys, and piers, is authorized as belonging to the regulation of commerce, we must take care not to go ahead of them, and strain the meaning of the terms still further to the clearing out the channels of all the rivers, &c. of the United States. The removing a sunken vessel is not the repairing of a pier.

How far the authority "to levy taxes to provide for the common defence," and that "for providing and maintaining a navy," may authorize the removing obstructions in a river or harbor, is a question not involved in the present case.

TO DOCTOR BENJAMIN RUSH.

WASHINGTON, April 21, 1803.

DEAR SIR,—In some of the delightful conversations with you, in the evenings of 1798-99, and which served as an anodyne to the afflictions of the crisis through which our country was then laboring, the Christian religion was sometimes our topic; and I then promised you, that one day or other, I would give you my views of it. They are the result of a life of inquiry and reflection, and very different from that anti-Christian system imputed to me by those who know nothing of my opinions. To the corruptions of Christianity I am indeed opposed; but not to the genuine precepts of Jesus himself. I am a Christian, in the only sense in which he wished any one to be; sincerely attached to his doctrines, in preference to all others; ascribing to himself every *human* excellence; and believing he never claimed any other. At the short intervals since these conversations, when I could justifiably abstract my mind from public affairs, the subject has been under my contemplation. But the more I considered it, the more it expanded beyond the measure of either my time or information. In the moment of my late departure from Monticello, I received from Doctor Priestley, his little treatise of "Socrates and Jesus compared." This being a section of the general view I had taken of the field, it became a subject of reflection while on the road, and unoccupied otherwise. The result was, to arrange in my mind a syllabus, or outline of such an estimate of the comparative merits of Christianity, as I wished to see executed by some one

of more leisure and information for the task, than myself. This I now send you, as the only discharge of my promise I can probably ever execute. And in confiding it to you, I know it will not be exposed to the malignant perversions of those who make every word from me a text for new misrepresentations and calumnies. I am moreover averse to the communication of my religious tenets to the public; because it would countenance the presumption of those who have endeavored to draw them before that tribunal, and to seduce public opinion to erect itself into that inquisition over the rights of conscience, which the laws have so justly proscribed. It behoves every man who values liberty of conscience for himself, to resist invasions of it in the case of others; or their case may, by change of circumstances, become his own. It behoves him, too, in his own case, to give no example of concession, betraying the common right of independent opinion, by answering questions of faith, which the laws have left between God and himself. Accept my affectionate salutations.

Syllabus of an Estimate of the Merit of the Doctrines of Jesus, compared with those of others.

In a comparative view of the Ethics of the enlightened nations of antiquity, of the Jews and of Jesus, no notice should be taken of the corruptions of reason among the ancients, to wit, the idolatry and superstition of the vulgar, nor of the corruptions of Christianity by the learned among its professors.

Let a just view be taken of the moral principles inculcated by the most esteemed of the sects of ancient philosophy, or of their individuals; particularly Pythagoras, Socrates, Epicurus, Cicero, Epictetus, Seneca, Antoninus.

I. Philosophers. 1. Their precepts related chiefly to ourselves, and the government of those passions which, unrestrained, would disturb our tranquillity of mind. ^[17] In this branch of philosophy they were really great.

2. In developing our duties to others, they were short and defective. They embraced, indeed, the circles of kindred and friends, and inculcated

patriotism, or the love of our country in the aggregate, as a primary obligation: towards our neighbors and countrymen they taught justice, but scarcely viewed them as within the circle of benevolence. Still less have they inculcated peace, charity and love to our fellow men, or embraced with benevolence the whole family of mankind.

II. Jews. 1. Their system was Deism; that is, the belief in one only God. But their ideas of him and of his attributes were degrading and injurious.

2. Their Ethics were not only imperfect, but often irreconcilable with the sound dictates of reason and morality, as they respect intercourse with those around us; and repulsive and anti-social, as respecting other nations. They needed reformation, therefore, in an eminent degree.

III. Jesus. In this state of things among the Jews, Jesus appeared. His parentage was obscure; his condition poor; his education null; his natural endowments great; his life correct and innocent: he was meek, benevolent, patient, firm, disinterested, and of the sublimest eloquence.

The disadvantages under which his doctrines appear are remarkable.

1. Like Socrates and Epictetus, he wrote nothing himself.

2. But he had not, like them, a Xenophon or an Arrian to write for him. I name not Plato, who only used the name of Socrates to cover the whimsies of his own brain. On the contrary, all the learned of his country, entrenched in its power and riches, were opposed to him, lest his labors should undermine their advantages; and the committing to writing his life and doctrines fell on unlettered and ignorant men; who wrote, too, from memory, and not till long after the transactions had passed.

3. According to the ordinary fate of those who attempt to enlighten and reform mankind, he fell an early victim to the jealousy and combination of the altar and the throne, at about thirty-three years of age, his reason having not yet attained the *maximum* of its energy, nor the course of his preaching, which was but of three years at most, presented occasions for developing a complete system of morals.

4. Hence the doctrines which he really delivered were defective as a whole, and fragments only of what he did deliver have come to us mutilated,

misstated, and often unintelligible.

5. They have been still more disfigured by the corruptions of schismatizing followers, who have found an interest in sophisticating and perverting the simple doctrines he taught, by engrafting on them the mysticisms of a Grecian sophist, frittering them into subtleties, and obscuring them with jargon, until they have caused good men to reject the whole in disgust, and to view Jesus himself as an impostor.

Notwithstanding these disadvantages, a system of morals is presented to us, which, if filled up in the style and spirit of the rich fragments he left us, would be the most perfect and sublime that has ever been taught by man.

The question of his being a member of the Godhead, or in direct communication with it, claimed for him by some of his followers, and denied by others, is foreign to the present view, which is merely an estimate of the intrinsic merits of his doctrines.

1. He corrected the Deism of the Jews, confirming them in their belief of one only God, and giving them juster notions of his attributes and government.

2. His moral doctrines, relating to kindred and friends, were more pure and perfect than those of the most correct of the philosophers, and greatly more so than those of the Jews; and they went far beyond both in inculcating universal philanthropy, not only to kindred and friends, to neighbors and countrymen, but to all mankind, gathering all into one family, under the bonds of love, charity, peace, common wants and common aids. A development of this head will evince the peculiar superiority of the system of Jesus over all others.

3. The precepts of philosophy, and of the Hebrew code, laid hold of actions only. He pushed his scrutinies into the heart of man; erected his tribunal in the region of his thoughts, and purified the waters at the fountain head.

4. He taught, emphatically, the doctrines of a future state, which was either doubted, or disbelieved by the Jews; and wielded it with efficacy, as an important incentive, supplementary to the other motives to moral conduct.

TO DOCTOR HUGH WILLIAMSON.

WASHINGTON, April 30, 1803.

DEAR SIR,—I thank you for the information on the subject of navigation of the Heruille contained in yours of the 10th. In running the late line between the Choctaws and us, we found the Amite to be about thirty miles from the Mississippi where that line crossed it, which was but a little northward of our southern boundary. For the present we have a respite on that subject, Spain having without delay restored our infracted right, and assured us it is expressly saved by the instrument of her cession of Louisiana to France. Although I do not count with confidence on obtaining New Orleans from France for money, yet I am confident in the policy of putting off the day of contention for it till we have lessened the embarrassment of debt accumulated instead of being discharged by our predecessors, till we obtain more of that strength which is growing on us so rapidly, and especially till we have planted a population on the Mississippi itself sufficient to do its own work without marching men fifteen hundred miles from the Atlantic shores to perish by fatigue and unfriendly climates. This will soon take place. In the meantime we have obtained by a peaceable appeal to justice, in four months, what we should not have obtained under seven years of war, the loss of one hundred thousand lives, an hundred millions of additional debt, many hundred millions worth of produce and property lost for want of market, or in seeking it, and that demoralization which war superinduces on the human mind. To have seized New Orleans, as our federal maniacs wished, would only have changed the character and extent of the blockade of our western commerce. It would have produced a blockade, by superior naval force, of the navigation of the river as well as of the entrance into New Orleans, instead of a paper blockade from New Orleans alone while the river remained open, and I am persuaded that had not the deposit been so quickly rendered we should have found soon that it would be better now to ascend the river to Natchez, in order to be clear of the embarrassments, plunderings, and irritations at New Orleans, and to fatten by the benefits of the dépôt a city and citizens of our own, rather than those of a foreign nation. Accept my friendly and respectful salutations.

P. S. Water line of the Herville, Amite, and to Ponchartrain, becoming a boundary between France and Spain, we have a double chance of an acknowledgment of our right to use it on the same ground of national right on which we claim the navigation of the Mobile and other rivers heading in our territory and running through the Floridas.

TO MR NICHOLSON.

WASHINGTON, May 13, 1803.

DEAR SIR,—I return you the letter of Captain Jones, with thanks for the perusal. While it is well to have an eye on our enemy's camp it is not amiss to keep one for the movements in our own. I have no doubt that the agitation of the public mind on the continuance of tories in office is excited in some degree by those who want to get in themselves. However, the mass of those affected by it can have no views of that kind. It is composed of such of our friends as have a warm sense of the former intolerance and present bitterness of our adversaries, and they are not without excuse. While it is best for our own tranquillity to see and hear with apathy the atrocious calumnies of the presses which our enemies support for the purpose of calumny, it is what we have no right to expect; nor can we consider the indignation they excite in others as unjust, or strongly censure those whose temperament is not proof against it. Nor are they protected in their places by any right they have to more than a just proportion of them, and still less by their own examples while in power; but by considerations respecting the public mind. This tranquillity seems necessary to predispose the candid part of our fellow-citizens who have erred and strayed from their ways, to return again to them, and to consolidate once more that union of will, without which the nation will not stand firm against foreign force and intrigue. On the subject of the particular schism at Philadelphia, a well-informed friend says, "The fretful, turbulent disposition which has manifested itself in Philadelphia, originated, in some degree, from a sufficient cause, which I will explain when I see you. A re-union will take place, and in the issue it will be useful. Their resolves will be so tempered as to remove most of the unpleasant feelings which have been experienced." I shall certainly be glad

to receive the explanation and modification of their proceedings; for they were taking a form which could not be approved on true principles. We laid down our line of proceedings on mature inquiry and consideration in 1801, and have not departed from it. Some removals, to wit, sixteen to the end of our first session of Congress were made on political principles alone, in very urgent cases; and we determined to make no more but for delinquency, or active and bitter opposition to the order of things which the public will had established. On this last ground nine were removed from the end of the first to the end of the second session of Congress; and one since that. So that sixteen only have been removed in the whole for political principles, that is to say, to make room for some participation for the republicans. These were a mere fraud not suffered to go into effect. Pursuing our object of harmonizing all good people of whatever description, we shall steadily adhere to our rule, and it is with sincere pleasure I learn that it is approved by the more moderate part of our friends.

We have received official information that, in the instrument of cession of Louisiana to France, were these words, "Saving the rights acquired by other powers in virtue of treaties made with them by Spain;" and cordial acknowledgments from this power for our temperate forbearance under the misconduct of her officer. The French prefect too has assured Governor Claiborne that if the suspension is not removed before he takes his place he will remove it. But the Spanish Intendant has before this day received the positive order of his government to do it, sent here by a vessel of war, and forwarded by us to Natchez.

Although there is probably no truth in the stories of war actually commenced, yet I believe it inevitable. England insists on a re-modification of the affairs of Europe, so much changed by Bonaparte since the treaty of Amiens. So that we may soon expect to hear of hostilities. You must have heard of the extraordinary charge of Chace to the Grand Jury at Baltimore. Ought this seditious and official attack on the principles of our Constitution, and on the proceedings of a State, to go unpunished? and to whom so pointedly as yourself will the public look for the necessary measures? I ask these questions for your consideration, for myself it is better that I should not interfere. Accept my friendly salutations and assurances of great esteem and respect.

TO GOVERNOR CLAIBORNE.

WASHINGTON, May 24, 1803.

DEAR SIR,—The within being for communication to your House of Representatives, when it meets, I enclose it in this which is of a private character. The former I think had better be kept up until the meeting of the Representatives, lest it should have any effect on the present critical state of things beyond the Atlantic. Although I have endeavored to make it as inoffensive there as was compatible with the giving an answer to the Representatives. Pending a negotiation, and with a jealous power, small matters may excite alarm, and repugnance to what we are claiming. I consider war between France and England as unavoidable. The former is much averse to it, but the latter sees her own existence to depend on a remodification of the face of Europe, over which France has extended its sway much farther since than before the treaty of Amiens. That instrument is therefore considered as insufficient for the general security; in fact, as virtually subverted, by the subsequent usurpations of Bonaparte on the powers of Europe. A remodification is therefore required by England, and evidently cannot be agreed to by Bonaparte, whose power, resting on the transcendent opinion entertained of him, would sink with that on any retrograde movement. In this conflict, our neutrality will be cheaply purchased by a cession of the island of New Orleans and the Floridas; because taking part in the war, we could so certainly seize and securely hold them and more. And although it would be unwise in us to let such an opportunity pass by of obtaining the necessary accession to our territory even by force, if not obtainable otherwise, yet it is infinitely more desirable to obtain it with the blessing of neutrality rather than the curse of war. As a means of increasing the security, and providing a protection for our lower possessions on the Mississippi, I think it also all important to press on the Indians, as steadily and strenuously as they can bear, the extension of our purchases on the Mississippi from the Yazoo upwards; and to encourage a settlement along the whole length of that river, that it may possess on its own banks the means of defending itself, and presenting as strong a frontier on our western as we have on our eastern border. We have therefore recommended to Governor Dickinson taking on the Tombigbee only as much as will cover our actual settlements, to transfer the purchase from the Choctaws to their lands westward of the Big Black, rather than the fork of

Tombigbee and Alabama, which has been offered by them in order to pay their debt to Ponton and Leslie. I have confident expectations of purchasing this summer a good breadth on the Mississippi, from the mouth of the Illinois down to the mouth of the Ohio, which would settle immediately and thickly; and we should then have between that settlement and the lower one, only the uninhabited lands of the Chickasaws on the Mississippi; on which we could be working at both ends. You will be sensible that the preceding views, as well those which respect the European powers as the Indians, are such as should not be formally declared, but be held as a rule of action to govern the conduct of those within whose agency they lie; and it is for this reason that instead of having it said to you in an official letter, committed to records which are open to many, I have thought it better that you should learn my views from a private and confidential letter, and be enabled to act upon them yourself, and guide others into them. The elections which have taken place this spring, prove that the spirit of republicanism has repossessed the whole mass of our country from Connecticut southwardly and westwardly. The three New England States of New Hampshire, Massachusetts and Connecticut, alone hold out. In these, though we have not gained the last year as much as we had expected, yet we are gaining steadily and sensibly. In Massachusetts we have gained three senators more than we had the last year, and it is believed our gain in the lower House will be in proportion. In Connecticut we have rather lost in their Legislature, but in the mass of the people, where we had on the election of Governor the last year, but twenty-nine republican out of every hundred votes, we this year have thirty-five out of every hundred; with the phalanx of priests and lawyers against us, republicanism works up slowly in that quarter; but in a year or two more we shall have a majority even there. In the next House of Representatives there will be about forty-two federal and a hundred republican members. Be assured that, excepting in this north-eastern and your south-western corner of the Union, monarchism, which has been so falsely miscalled federalism, is dead and buried, and no day of resurrection will ever dawn upon that; that it has retired to the two extreme and opposite angles of our land, from whence it will have ultimately and shortly to take its final flight. While speaking of the Indians, I omitted to mention that I think it would be good policy in us to take by the hand those of them who have emigrated from ours to the other side of the Mississippi, to furnish them generously with arms, ammunition, and other essentials, with a view

to render a situation there desirable to those they have left behind, to toll them in this way across the Mississippi, and thus prepare in time an eligible retreat for the whole. We have not as yet however began to act on this. I believe a considerable number from all the four southern tribes have settled between the St. Francis and Akanza, but mostly from the Cherokees. I presume that with a view to this object we ought to establish a factory on the eastern bank of the Mississippi, where it would be most convenient for them to come and trade. We have an idea of running a path in a direct line from Knoxville to Natchez, believing it would save 200 miles in the carriage of our mail. The consent of the Indians will be necessary, and it will be very important to get individuals among them to take each a white man into partnership, and to establish at every nineteen miles a house of entertainment, and a farm for its support. The profits of this would soon reconcile the Indians to the practice, and extend it, and render the public use of the road as much an object of desire as it is now of fear; and such a horsepath would soon, with their consent, become a wagon-road. I have appointed Isaac Briggs of Maryland, surveyor of the lands south of Tennessee. He is a Quaker, a sound republican, and of a pure and unspotted character. In point of science, in astronomy, geometry and mathematics, he stands in a line with Mr. Ellicot, and second to no man in the United States. He set out yesterday for his destination, and I recommend him to your particular patronage; the candor, modesty and simplicity of his manners cannot fail to gain your esteem. For the office of surveyor, men of the first order of science in astronomy and mathematics are essentially necessary. I am about appointing a similar character for the north-western department, and charging him with determining by celestial observations the longitude and latitude of several interesting points of lakes Michigan and Superior, and an accurate survey of the Mississippi, from St. Anthony's Falls to the mouth of the Ohio, correcting his admeasurements by observations of longitude and latitude. From your quarter Mr. Briggs will be expected to take accurate observations of such interesting points as Mr. Ellicot has omitted, so that it will not be long before we shall possess an accurate map of the outlines of the United States. Your country is so abundant in everything which is good, that one does not know what there is here of that description which you have not, and which could be offered in exchange for a barrel of fresh peccans every autumn. Yet I will venture to propose such an exchange, taking information of the article most acceptable from home,

either from yourself or such others as can inform me. I pray you to accept my friendly salutations and assurances of great esteem and respect.

TO SIR JOHN SINCLAIR.

WASHINGTON, June 30, 1803.

DEAR SIR,—It is so long since I have had the pleasure of writing to you, that it would be vain to look back to dates to connect the old and the new. Yet I ought not to pass over my acknowledgments to you for various publications received from time to time, and with great satisfaction and thankfulness. I send you a small one in return, the work of a very unlettered farmer, yet valuable, as it relates plain facts of importance to farmers. You will discover that Mr. Binns is an enthusiast for the use of gypsum. But there are two facts which prove he has a right to be so: 1. He began poor, and has made himself tolerably rich by his farming alone. 2. The county of Loudon, in which he lives, had been so exhausted and wasted by bad husbandry, that it began to depopulate, the inhabitants going Southwardly in quest of better lands. Binns' success has stopped that emigration. It is now becoming one of the most productive counties of the State of Virginia, and the price given for the lands is multiplied manifold.

We are still uninformed here whether you are again at war. Bonaparte has produced such a state of things in Europe as it would seem difficult for him to relinquish in any sensible degree, and equally dangerous for Great Britain to suffer to go on, especially if accompanied by maritime preparations on his part. The events which have taken place in France have lessened in the American mind the motives of interest which it felt in that revolution, and its amity towards that country now rests on its love of peace and commerce. We see, at the same time, with great concern, the position in which Great Britain is placed, and should be sincerely afflicted were any disaster to deprive mankind of the benefit of such a bulwark against the torrent which has for some time been bearing down all before it. But her power and powers at sea seem to render everything safe in the end. Peace is our passion, and the wrongs might drive us from it. We prefer trying *ever* other just principles, right and safety, before we would recur to war.

I hope your agricultural institution goes on with success. I consider you as the author of all the good it shall do. A better idea has never been carried into practice. Our agricultural society has at length formed itself. Like our American Philosophical Society, it is voluntary, and unconnected with the public, and is precisely an execution of the plan I formerly sketched to you. Some State societies have been formed heretofore; the others will do the same. Each State society names two of its members of Congress to be their members in the Central society, which is of course together during the sessions of Congress. They are to select matter from the proceedings of the State societies, and to publish it; so that their publications may be called *l'esprit des sociétés d'agriculture*, &c. The Central society was formed the last winter only, so that it will be some time before they get under way. Mr. Madison, the Secretary of State, was elected their President.

Recollecting with great satisfaction our friendly intercourse while I was in Europe, I nourish the hope it still preserves a place in your mind; and with my salutations, I pray you to accept assurances of my constant attachment and high respect.

TO CAPTAIN MERIWETHER LEWIS.

WASHINGTON, United States of America, July 4, 1803.

DEAR SIR,—In the journey which you are about to undertake, for the discovery of the course and source of the Missouri, and of the most convenient water communication from thence to the Pacific Ocean, your party being small, it is to be expected that you will encounter considerable dangers from the Indian inhabitants. Should you escape those dangers, and reach the Pacific Ocean, you may find it imprudent to hazard a return the same way, and be forced to seek a passage round by sea, in such vessels as you may find on the Western coast; but you will be without money, without clothes, and other necessaries, as a sufficient supply cannot be carried from hence. Your resource, in that case, can only be in the credit of the United States; for which purpose I hereby authorize you to draw on the Secretaries of State, of the Treasury, of War, and of the Navy of the United States, according as you may find your draughts will be most negociable, for the

purpose of obtaining money or necessities for yourself and men; and I solemnly pledge the faith of the United States, that these draughts shall be paid punctually at the date at which they are made payable. I also ask of the consuls, agents, merchants, and citizens of any nation with which we have intercourse or amity, to furnish you with those supplies which your necessities may call for, assuring them of honorable and prompt retribution; and our own consuls in foreign parts, where you may happen to be, are hereby instructed and required to be aiding and assisting to you in whatsoever may be necessary for procuring your return back to the United States. And to give more entire satisfaction and confidence to those who may be disposed to aid you, I, Thomas Jefferson, President of the United States of America, have written this letter of general credit for you with my own hand, and signed it with my name.

TO EARL OF BUCHAN.

WASHINGTON, July 10, 1803.

MY LORD,—I received, through the hands of Mr. Lenox, on his return to the United States, the valuable volume you were so good as to send me on the life and writings of Fletcher, of Saltoun. The political principles of that patriot were worthy the purest periods of the British Constitution; they are those which were in vigor at the epoch of the American emigration. Our ancestors brought them here, and they needed little strengthening to make us what we are. But in the weakened condition of English whigism at this day, it requires more firmness to publish and advocate them than it then did to act on them. This merit is peculiarly your Lordship's; and no one honors it more than myself. While I freely admit the right of a nation to change its political principles and constitution at will, and the impropriety of any but its own citizens censuring that change, I expect your Lordship has been disappointed, as I acknowledge I have been, in the issue of the convulsions on the other side the channel. This has certainly lessened the interest which the philanthropist warmly felt in those struggles. Without befriending human liberty, a gigantic force has risen up which seems to threaten the world. But it hangs on the thread of opinion, which may break from one day

to another. I feel real anxiety on the conflict to which imperious circumstances seem to call your nation, and bless the Almighty Being, who, in gathering together the waters under the heavens into one place, divided the dry land of your hemisphere from the dry lands of ours, and said, at least be there peace. I hope that peace and amity with all nations will long be the character of our land, and that its prosperity under the Charter will react on the mind of Europe, and profit her by the example. My hope of preserving peace for our country is not founded in the greater principles of non-resistance under every wrong, but in the belief that a just and friendly conduct on our part will procure justice and friendship from others. In the existing contest, each of the combatants will find an interest in our friendship. I cannot say we shall be unconcerned spectators of this combat. We feel for human sufferings, and we wish the good of all. We shall look on, therefore, with the sensations which these dispositions and the events of the war will produce.

I feel a pride in the justice which your Lordship's sentiments render to the character of my illustrious countryman, Washington. The moderation of his desires, and the strength of his judgment, enabled him to calculate correctly, that the road to that glory which never dies is to use power for the support of the laws and liberties of our country, not for their destruction; and his will accordingly survives the wreck of everything now living.

Accept, my lord, the tribute of esteem, from one who renders it with warmth to the disinterested friend of mankind, and assurances of my high consideration and respect.

TO GENERAL GATES.

WASHINGTON, July 11, 1803.

DEAR GENERAL,—I accept with pleasure, and with pleasure reciprocate your congratulations on the acquisition of Louisiana; for it is a subject of mutual congratulation, as it interests every man of the nation. The territory acquired, as it includes all the waters of the Missouri and Mississippi, has more than doubled the area of the United States, and the new parts is not

inferior to the old in soil, climate, productions and important communications. If our Legislature dispose of it with the wisdom we have a right to expect, they may make it the means of tempting all our Indians on the east side of the Mississippi to remove to the west, and of condensing instead of scattering our population. I find our opposition is very willing to pluck feathers from Monroe, although not fond of sticking them into Livingston's coat. The truth is, both have a just portion of merit; and were it necessary or proper, it would be shown that each has rendered peculiar services, and of important value. These grumblers, too, are very uneasy lest the administration should share some little credit for the acquisition, the whole of which they ascribe to the accident of war. They would be cruelly mortified could they see our files from May, 1801, the first organization of the administration, but more especially from April, 1802. They would see, that though we could not say when war would arise, yet we said with energy what would take place when it should arise. We did not, by our intrigues, produce the war; but we availed ourselves of it when it happened. The other party saw the case now existing, on which our representations were predicated, and the wisdom of timely sacrifice. But when these people make the war give us everything, they authorize us to ask what the war gave us in their day? They had a war; what did they make it bring us? Instead of making our neutrality the ground of gain to their country, they were for plunging into the war. And if they were now in place, they would now be at war against the atheists and disorganizers of France. They were for making their country an appendage to England. We are friendly, cordially and conscientiously friendly to England. We are not hostile to France. We will be rigorously just and sincerely friendly to both. I do not believe we shall have as much to swallow from them as our predecessors had.

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Present me respectfully to Mrs. Gates, and accept yourself my affectionate salutations, and assurances of great respect and esteem.

TO M. CABANIS.

WASHINGTON, July 12, 1803.

DEAR SIR,—I lately received your friendly letter of 28 Vendem. an. 11, with the two volumes on the relations between the physical and moral faculties of man. This has ever been a subject of great interest to the inquisitive mind, and it could not have got into better hands for discussion than yours. That thought may be a faculty of our material organization, has been believed in the gross; and though the "modus operandi" of nature, in this, as in most other cases, can never be developed and demonstrated to beings limited as we are, yet I feel confident you will have conducted us as far on the road as we can go, and have lodged us within reconnoitering distance of the citadel itself. While *here*, I have time to read nothing. But our annual recess for the months of August and September is now approaching, during which time I shall be at the Montrials, where I anticipate great satisfaction in the presence of these volumes. It is with great satisfaction, too, I recollect the agreeable hours I have past with yourself and M. de La Roche, at the house of our late excellent friend, Madame Helvetius, and elsewhere; and I am happy to learn you continue your residence there. Antevil always appeared to me a delicious village, and Madame Helvetius's the most delicious spot in it. In those days how sanguine we were! and how soon were the virtuous hopes and confidence of every good man blasted! and how many excellent friends have we lost in your efforts towards self-government, *et cui bono*? But let us draw a veil over the dead, and hope the best for the living. If the hero who has saved you from a combination of enemies, shall also be the means of giving you as great a portion of liberty as the opinions, habits and character of the nation are prepared for, progressive preparation may fit you for progressive portions of that first of blessings, and you may in time attain what we erred in supposing could be hastily seized and maintained, in the present state of political information among your citizens at large. In this way all may end well.

You are again at war, I find. But we, I hope, shall be permitted to run the race of peace. Your government has wisely removed what certainly endangered collision between us. I now see nothing which need ever interrupt the friendship between France and this country. Twenty years of peace, and the prosperity so visibly flowing from it, have but strengthened our attachment to it, and the blessings it brings, and we do not despair of being always a peaceable nation. We think that peaceable means may be devised of keeping nations in the path of justice towards us, by making

justice their interest, and injuries to react on themselves. Our distance enables us to pursue a course which the crowded situation of Europe renders perhaps impracticable there.

Be so good as to accept for yourself and M. de La Roche, my friendly salutations, and assurances of great consideration and respect.

TO DANIEL CLARKE, ESQ.

WASHINGTON, July 17, 1803.

DEAR SIR,—You will be informed by a letter from the Secretary of State of the terms and the extent of the cession of Louisiana by France to the United States, a cession which I hope will give as much satisfaction to the inhabitants of that province as it does to us, and the more as the title being lawfully acquired and with consent of the power conveying, can never be hereafter reclaimed under any pretense of force. In order to procure a ratification in good time, I have found it necessary to convene Congress as early as the 17th of October. It is essential that before that period we should obtain all the information respecting the province which may be necessary to enable Congress to make the best arrangements for its tranquillity, security and government. It is only on the spot that this information can be obtained, and to obtain it there, I am obliged to ask your agency; for this purpose I have proposed a set of questions, now enclosed, answers to which in the most exact terms practicable, I am to ask you to procure. It is probable you may be able to answer some of them yourself; however, it will doubtless be necessary for you to distribute them among the different persons best qualified to answer them respectively. As you will not have above six weeks, from the receipt of them till they should be sent off to be here by the meeting of Congress, it will be the more necessary to employ different persons on different parts of them. This is left to your own judgment, and your best exertions to obtain them in time are desired. You will be so good as to engage the persons who undertake them, to complete them in time, and to accept such recompense as you shall think reasonable, which shall be paid on your draft on the Secretary of State. We rely that the friendly dispositions of the Spanish government will give such access to the

archives of the province as may facilitate information, equally desirable by Spain on parting with her ancient subjects, as by us on receiving them. This favor therefore will, I doubt not, be granted on your respectful application.

Accept my salutations and assurances of esteem and respect.

TO MR. BRECKENRIDGE.

MONTICELLO, August 12, 1803.

DEAR SIR,—The enclosed letter, though directed to you, was intended to me also, and was left open with a request, that when forwarded, I would forward it to you. It gives me occasion to write a word to you on the subject of Louisiana, which being a new one, an interchange of sentiments may produce correct ideas before we are to act on them.

Our information as to the country is very incomplete; we have taken measures to obtain it full as to the settled part, which I hope to receive in time for Congress. The boundaries, which I deem not admitting question, are the high lands on the western side of the Mississippi enclosing all its waters, the Missouri of course, and terminating in the line drawn from the northwestern point of the Lake of the Woods to the nearest source of the Mississippi, as lately settled between Great Britain and the United States. We have some claims, to extend on the sea coast westwardly to the Rio Norte or Bravo, and better, to go eastwardly to the Rio Perdido, between Mobile and Pensacola, the ancient boundary of Louisiana. These claims will be a subject of negotiation with Spain, and if, as soon as she is at war, we push them strongly with one hand, holding out a price in the other, we shall certainly obtain the Floridas, and all in good time. In the meanwhile, without waiting for permission, we shall enter into the exercise of the natural right we have always insisted on with Spain, to wit, that of a nation holding the upper part of streams, having a right of innocent passage through them to the ocean. We shall prepare her to see us practise on this, and she will not oppose it by force.

Objections are raising to the eastward against the vast extent of our boundaries, and propositions are made to exchange Louisiana, or a part of it, for the Floridas. But, as I have said, we shall get the Floridas without, and I would not give one inch of the waters of the Mississippi to any nation, because I see in a light very important to our peace the exclusive right to its navigation, and the admission of no nation into it, but as into the Potomac or Delaware, with our consent and under our police. These federalists see in this acquisition the formation of a new confederacy, embracing all the waters of the Mississippi, on both sides of it, and a separation of its eastern waters from us. These combinations depend on so many circumstances which we cannot foresee, that I place little reliance on them. We have seldom seen neighborhood produce affection among nations. The reverse is almost the universal truth. Besides, if it should become the great interest of those nations to separate from this, if their happiness should depend on it so strongly as to induce them to go through that convulsion, why should the Atlantic States dread it? But especially why should we, their present inhabitants, take side in such a question? When I view the Atlantic States, procuring for those on the eastern waters of the Mississippi friendly instead of hostile neighbors on its western waters, I do not view it as an Englishman would the procuring future blessings for the French nation, with whom he has no relations of blood or affection. The future inhabitants of the Atlantic and Mississippi States will be our sons. We leave them in distinct but bordering establishments. We think we see their happiness in their union, and we wish it. Events may prove it otherwise; and if they see their interest in separation, why should we take side with our Atlantic rather than our Mississippi descendants? It is the elder and the younger son differing. God bless them both, and keep them in union, if it be for their good, but separate them, if it be better. The inhabited part of Louisiana, from Point Coupée to the sea, will of course be immediately a territorial government, and soon a State. But above that, the best use we can make of the country for some time, will be to give establishments in it to the Indians on the east side of the Mississippi, in exchange for their present country, and open land offices in the last, and thus make this acquisition the means of filling up the eastern side, instead of drawing off its population. When we shall be full on this side, we may lay off a range of States on the western bank from the head to the mouth, and so, range after range, advancing compactly as we multiply.

This treaty must of course be laid before both Houses, because both have important functions to exercise respecting it. They, I presume, will see their duty to their country in ratifying and paying for it, so as to secure a good which would otherwise probably be never again in their power. But I suppose they must then appeal to *the nation* for an additional article to the Constitution, approving and confirming an act which the nation had not previously authorized. The Constitution has made no provision for our holding foreign territory, still less for incorporating foreign nations into our Union. The executive in seizing the fugitive occurrence which so much advances the good of their country, have done an act beyond the Constitution. The Legislature in casting behind them metaphysical subtleties, and risking themselves like faithful servants, must ratify and pay for it, and throw themselves on their country for doing for them unauthorized, what we know they would have done for themselves had they been in a situation to do it. It is the case of a guardian, investing the money of his ward in purchasing an important adjacent territory; and saying to him when of age, I did this for your good; I pretend to no right to bind you: you may disavow me, and I must get out of the scrape as I can: I thought it my duty to risk myself for you. But we shall not be disavowed by the nation, and their act of indemnity will confirm and not weaken the Constitution, by more strongly marking out its lines.

We have nothing later from Europe than the public papers give. I hope yourself and all the western members will make a sacred point of being at the first day of the meeting of Congress; for *vestra res regitur*.

Accept my affectionate salutations and assurances of esteem and respect.

TO THE SECRETARY OF STATE.

MONTICELLO, August 25, 1803.

DEAR SIR,—Your two favors of the 18th and 20th were received on the 21st. The letters of Livingston and Monroe were sent to Mr. Gallatin as you proposed. That of Simpson to Mr. Smith for the purpose of execution. All of them will be returned. Thornton's, Clarke's, Charles's, Picnau's, Appleton's,

Davis's, Newton's, and Dericure's letters are now enclosed. With respect to the impressment of our seamen I think we had better propose to Great Britain to act on the stipulations which had been agreed to between that Government and Mr. King, as if they had been signed. I think they were, that they would forbid impressments at sea, and that we should acquiesce in the search in their harbors necessary to prevent concealments of their citizens. Mr. Thornton's attempt to justify his nation in using our ports as cruising stations on our friends and ourselves, renders the matter so serious as to call, I think, for answer. That we ought, in courtesy and friendship, to extend to them all the rights of hospitality is certain, that they should not use our hospitality to injure our friends or ourselves is equally enjoined by morality and honor. After the rigorous exertions we made in Genet's time to prevent this abuse on his part, and the indulgencies extended by Mr. Adams to the British cruisers even after our pacification with France, by ourselves also from an unwillingness to change the course of things as the war was near its close, I did not expect to hear from that quarter charges of partiality. In the Mediterranean we need ask from no nation but the permission to refresh and repair in their ports. We do not wish our vessels to lounge in their ports. In the case at Gibraltar, if they had disapproved, our vessels ought to have left the port. Besides, although nations have treated with the piratical States, they have not, in malice, ever been considered as entitled to all the favors of the laws of nations. Thornton says they watch our trade only to prevent contraband. We say it is to plunder under pretext of contraband, for which, though so shamefully exercised, they have given us no satisfaction but by confessing the fact in new modifying their courts of Admiralty. Certainly the evils we experience from it, and the just complaints which France may urge, render it indispensable that we restrain the English from abusing the rights of hospitality to their prejudice as well as our own.

Graham's letter manifests a degree of imprudence, which I had not expected from him. His pride has probably been hurt at some of the regulations of that court, and has had its part in inspiring the ill temper he shows. If you understand him as serious in asking leave to return, I see no great objection to it. At the date of your letter you had not received mine on the subject of Dovieux's claim. I still think the limits therein stated reasonable. I think a guinea a day till he leaves Washington would be as low an allowance as we

could justify, and should not be opposed to anything not exceeding the allowance to Dawson. Fix between these as you please. I suppose Monroe will touch on the limits of Louisiana only incidentally, inasmuch as its extension to Perdido curtails Florida, and renders it of less worth. I have used my spare moments to investigate, by the help of my books here, the subject of the limits of Louisiana. I am satisfied our right to the Perdido is substantial, and can be opposed by a quibble on form only; and our right westwardly to the Bay of St. Bernard, may be strongly maintained. I will use the first leisure to make a statement of the facts and principles on which this depends. Further reflection on the amendment to the Constitution necessary in the case of Louisiana, satisfies me it will be better to give general powers, with specified exceptions, somewhat in the way stated below. Mrs. Madison promised us a visit about the last of this month. I wish you could have met with General Page here, whom, with his family, I expect in a day or two, and will pass a week with us. But in this consult your own convenience, as that will increase the pleasure with which I shall or may see you here. Accept my affectionate salutations and constant attachment.

P. S. Louisiana, as ceded by France to the United States, is made a part of the United States. Its white inhabitants shall be citizens, and stand, as to their rights and obligations, on the same footing with other citizens of the United States in analogous situations.

Save only that as to the portion thereof lying north of the latitude of the mouth of Oreansa river, no new State shall be established, nor any grants of land made therein, other than to Indians, in exchange for equivalent portions of land occupied by them, until amendment to the Constitution shall be made for these purposes.

Florida also, whensoever it may be rightfully obtained, shall become a part of the United States. Its white inhabitants shall thereupon be citizens, and shall stand, as to their rights and obligations, on the same footing with other citizens of the United States in analogous circumstances.

TO LEVI LINCOLN.

MONTICELLO, August 30, 1803.

DEAR SIR,—The enclosed letter came to hand by yesterday's post. You will be sensible of the circumstances which make it improper that I should hazard a formal answer, as well as of the desire its friendly aspect naturally excites, that those concerned in it should understand that the spirit they express is friendly viewed. You can judge also from your knowledge of the ground, whether it may be usefully encouraged. I take the liberty, therefore, of availing myself of your neighborhood to Boston, and of your friendship to me, to request you to say to the captain and others verbally whatever you think would be proper, as expressive of my sentiments on the subject. With respect to the day on which they wish to fix their anniversary, they may be told, that disapproving myself of transferring the honors and veneration for the great birthday of our republic to any individual, or of dividing them with individuals, I have declined letting my own birthday be known, and have engaged my family not to communicate it. This has been the uniform answer to every application of the kind.

On further consideration as to the amendment to our Constitution respecting Louisiana, I have thought it better, instead of enumerating the powers which Congress may exercise, to give them the same powers they have as to other portions of the Union generally, and to enumerate the special exceptions, in some such form as the following:

"Louisiana, as ceded by France to the United States, is made a part of the United States, its white inhabitants shall be citizens, and stand, as to their rights and obligations, on the same footing with other citizens of the United States in analogous situations. Save only that as to the portion thereof lying north of an east and west line drawn through the mouth of Arkansas river, no new State shall be established, nor any grants of land made, other than to Indians, in exchange for equivalent portions of land occupied by them, until an amendment of the Constitution shall be made for these purposes.

"Florida also, whensoever it may be rightfully obtained, shall become a part of the United States, its white inhabitants shall thereupon be citizens, and shall stand, as to their rights and obligations, on the same footing with other citizens of the United States, in analogous situations."

I quote this for your consideration, observing that the less that is said about any constitutional difficulty, the better; and that it will be desirable for Congress to do what is necessary, *in silence*. I find but one opinion as to the necessity of shutting up the country for some time. We meet in Washington the 25th of September to prepare for Congress. Accept my affectionate salutations, and great esteem and respect.

TO WILSON C. NICHOLAS.

MONTICELLO, September 7, 1803.

DEAR SIR,—Your favor of the 3d was delivered me at court; but we were much disappointed at not seeing you here, Mr. Madison and the Governor being here at the time. I enclose you a letter from Monroe on the subject of the late treaty. You will observe a hint in it, to do without delay what we are bound to do. There is reason, in the opinion of our ministers, to believe, that if the thing were to do over again, it could not be obtained, and that if we give the least opening, they will declare the treaty void. A warning amounting to that has been given to them, and an unusual kind of letter written by their minister to our Secretary of State, direct. Whatever Congress shall think it necessary to do, should be done with as little debate as possible, and particularly so far as respects the constitutional difficulty. I am aware of the force of the observations you make on the power given by the Constitution to Congress, to admit new States into the Union, without restraining the subject to the territory then constituting the United States. But when I consider that the limits of the United States are precisely fixed by the treaty of 1783, that the Constitution expressly declares itself to be made for the United States, I cannot help believing the intention was not to permit Congress to admit into the Union new States, which should be formed out of the territory for which, and under whose authority alone, they were then acting. I do not believe it was meant that they might receive England, Ireland, Holland, &c. into it, which would be the case on your construction. When an instrument admits two constructions, the one safe, the other dangerous, the one precise, the other indefinite, I prefer that which is safe and precise. I had rather ask an enlargement of power from the

nation, where it is found necessary, than to assume it by a construction which would make our powers boundless. Our peculiar security is in the possession of a written Constitution. Let us not make it a blank paper by construction. I say the same as to the opinion of those who consider the grant of the treaty making power as boundless. If it is, then we have no Constitution. If it has bounds, they can be no others than the definitions of the powers which that instrument gives. It specifies and delineates the operations permitted to the federal government, and gives all the powers necessary to carry these into execution. Whatever of these enumerated objects is proper for a law, Congress may make the law; whatever is proper to be executed by way of a treaty, the President and Senate may enter into the treaty; whatever is to be done by a judicial sentence, the judges may pass the sentence. Nothing is more likely than that their enumeration of powers is defective. This is the ordinary case of all human works. Let us go on then perfecting it, by adding, by way of amendment to the Constitution, those powers which time and trial show are still wanting. But it has been taken too much for granted, that by this rigorous construction the treaty power would be reduced to nothing. I had occasion once to examine its effect on the French treaty, made by the old Congress, and found that out of thirty odd articles which that contained, there were one, two, or three only which could not now be stipulated under our present Constitution. I confess, then, I think it important, in the present case, to set an example against broad construction, by appealing for new power to the people. If, however, our friends shall think differently, certainly I shall acquiesce with satisfaction; confiding, that the good sense of our country will correct the evil of construction when it shall produce ill effects.

No apologies for writing or speaking to me freely are necessary. On the contrary, nothing my friends can do is so dear to me, and proves to me their friendship so clearly, as the information they give me of their sentiments and those of others on interesting points where I am to act, and where information and warning is so essential to excite in me that due reflection which ought to precede action. I leave this about the 21st, and shall hope the District Court will give me an opportunity of seeing you.

Accept my affectionate salutations, and assurances of cordial esteem and respect.

TO DOCTOR BENJAMIN RUSH.

WASHINGTON, October 4, 1803.

DEAR SIR,—No one would more willingly than myself pay the just tribute due to the services of Captain Barry, by writing a letter of condolence to his widow, as you suggest. But when one undertakes to administer justice, it must be with an even hand, and by rule; what is done for one, must be done for every one in equal degree. To what a train of attentions would this draw a President? How difficult would it be to draw the line between that degree of merit entitled to such a testimonial of it, and that not so entitled? If drawn in a particular case differently from what the friends of the deceased would judge right, what offence would it give, and of the most tender kind? How much offence would be given by accidental inattentions, or want of information? The first step into such an undertaking ought to be well weighed. On the death of Dr. Franklin, the King and Convention of France went into mourning. So did the House of Representatives of the United States: the Senate refused. I proposed to General Washington that the executive department should wear mourning; he declined it, because he said he should not know where to draw the line, if he once began that ceremony. Mr. Adams was then Vice President, and I thought General Washington had his eye on him, whom he certainly did not love. I told him the world had drawn so broad a line between himself and Dr. Franklin, on the one side, and the residue of mankind, on the other, that we might wear mourning for them, and the question still remain new and undecided as to all others. He thought it best, however, to avoid it. On these considerations alone, however well affected to the merit of Commodore Barry, I think it prudent not to engage myself in a practice which may become embarrassing.

Tremendous times in Europe! How mighty this battle of lions and tigers! With what sensations should the common herd of cattle look on it? With no partialities, certainly. If they can so far worry one another as to destroy their power of tyrannizing, the one over the earth, the other the waters, the world may perhaps enjoy peace, till they recruit again.

Affectionate and respectful salutations.

TO M. DUPONT DE NEMOURS.

WASHINGTON, November 1, 1803.

MY DEAR SIR,—Your favors of April the 6th, and June the 27th, were duly received, and with the welcome which everything brings from you. The treaty which has so happily sealed the friendship of our two countries, has been received here with general acclamation. Some inflexible federalists have still ventured to brave the public opinion. It will fix their character with the world and with posterity, who, not descending to the other points of difference between us, will judge them by this fact, so palpable as to speak for itself in all times and places. For myself and my country, I thank you for the aids you have given in it; and I congratulate you on having lived to give those aids in a transaction replete with blessings to unborn millions of men, and which will mark the face of a portion on the globe so extensive as that which now composes the United States of America. It is true that at this moment a little cloud hovers in the horizon. The government of Spain has protested against the right of France to transfer; and it is possible she may refuse possession, and that this may bring on acts of force. But against such neighbors as France there, and the United States here, what she can expect from so gross a compound of folly and false faith, is not to be sought in the book of wisdom. She is afraid of her enemies in Mexico; but not more than we are. Our policy will be, to form New Orleans, and the country on both sides of it on the Gulf of Mexico, into a State; and, as to all above that, to transplant our Indians into it, constituting them a Marechaussée to prevent emigrants crossing the river, until we shall have filled up all the vacant country on this side. This will secure both Spain and us as to the mines of Mexico, for half a century, and we may safely trust the provisions for that time to the men who shall live in it.

I have communicated with Mr. Gallatin on the subject of using your house in any matters of consequence we may have to do at Paris. He is impressed with the same desire I feel to give this mark of our confidence in you, and the sense we entertain of your friendship and fidelity. Mr. Behring informs him that none of the money which will be due from us to him, as the assignee of France, will be wanting at Paris. Be assured that our dispositions are such as to let no occasion pass unimproved of serving you, where occurrences will permit it.

Present my respects to Madame Dupont, and accept yourself assurances of my constant and warm friendship.

TO ROBERT R. LIVINGSTON.

WASHINGTON, November 4, 1803.

DEAR SIR,—A report reaches us this day from Baltimore, (on probable, but not certain grounds,) that Mr. Jerome Bonaparte, brother of the First Consul, was yesterday^[18] married to Miss Patterson, of that city. The effect of this measure on the mind of the First Consul, is not for me to suppose; but as it might occur to him, *primâ facie*, that the Executive of the United States ought to have prevented it, I have thought it advisable to mention the subject to you, that, if necessary, you may by explanations set that idea to rights. You know that by our laws, all persons are free to enter into marriage, if of twenty-one years of age, no one having a power to restrain it, not even their parents; and that under that age, no one can prevent it but the parent or guardian. The lady is under age, and the parents, placed between her affections, which were strongly fixed, and the considerations opposing the measure, yielded with pain and anxiety to the former. Mr. Patterson is the President of the Bank of Baltimore, the wealthiest man in Maryland, perhaps in the United States, except Mr. Carroll; a man of great virtue and respectability; the mother is the sister of the lady of General Samuel Smith; and, consequently, the station of the family in society is with the first of the United States. These circumstances fix rank in a country where there are no hereditary titles.

Your treaty has obtained nearly a general approbation. The federalists spoke and voted against it, but they are now so reduced in their numbers as to be nothing. The question on its ratification in the Senate was decided by twenty-four against seven, which was ten more than enough. The vote in the House of Representatives for making provision for its execution was carried by eighty-nine against twenty-three, which was a majority of sixty-six, and the necessary bills are going through the Houses by greater majorities. Mr. Pichon, according to instructions from his government, proposed to have added to the ratification a protestation against any failure in time or other

circumstances of execution, on our part. He was told, that in that case we should annex a counter protestation, which would leave the thing exactly where it was. That this transaction had been conducted, from the commencement of the negociation to this stage of it, with a frankness and sincerity honorable to both nations, and comfortable to the heart of an honest man to review; that to annex to this last chapter of the transaction such an evidence of mutual distrust, was to change its aspect dishonorably for us both, and contrary to truth as to us; for that we had not the smallest doubt that France would punctually execute its part; and I assured Mr. Pichon that I had more confidence in the word of the First Consul than in all the parchment we could sign. He saw that we had ratified the treaty; that both branches had passed, by great majorities, one of the bills for execution, and would soon pass the other two; that no circumstances remained that could leave a doubt of our punctual performance; and like an able and an honest minister, (which he is in the highest degree,) he undertook to do what he knew his employers would do themselves, were they here spectators of all the existing circumstances, and exchanged the ratifications purely and simply: so that this instrument goes to the world as an evidence of the candor and confidence of the nations in each other, which will have the best effects. This was the more justifiable, as Mr. Pichon knew that Spain had entered with us a protestation against our ratification of the treaty, grounded, first, on the assertion that the First Consul had not executed the conditions of the treaties of cession; and, secondly, that he had broken a solemn promise not to alienate the country to any nation. We answered, that these were private questions between France and Spain, which they must settle together; that we derived our title from the First Consul, and did not doubt his guarantee of it; and we, four days ago, sent off orders to the Governor of the Mississippi territory and General Wilkinson to move down with the troops at hand to New Orleans, to receive the possession from Mr. Laussat. If he is heartily disposed to carry the order of the Consul into execution, he can probably command a volunteer force at New Orleans, and will have the aid of ours also, if he desires it, to take the possession, and deliver it to us. If he is not so disposed, we shall take the possession, and it will rest with the government of France, by adopting the act as their own, and obtaining the confirmation of Spain, to supply the non-execution of their stipulation to deliver, and to entitle themselves to the complete execution of our part of the agreements. In the meantime, the

Legislature is passing the bills, and we are preparing everything to be done on our part towards execution; and we shall not avail ourselves of the three months' delay after possession of the province, allowed by the treaty for the delivery of the stock, but shall deliver it the moment that possession is known here, which will be on the eighteenth day after it has taken place.

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Accept my affectionate salutations, and assurances of my constant esteem and respect.

TO DAVID WILLIAMS.

WASHINGTON, November 14, 1803.

SIR,—I have duly received the volume on the claims of literature, which you did me the favor to send me through Mr. Monroe, and have read with satisfaction the many judicious reflections it contains, on the condition of the respectable class of literary men. The efforts for their relief, made by a society of private citizens, are truly laudable; but they are, as you justly observe, but a palliation of an evil, the cure of which calls for all the wisdom and the means of the nation. The greatest evils of populous society have ever appeared to me to spring from the vicious distribution of its members among the occupations called for. I have no doubt that those nations are essentially right, which leave this to individual choice, as a better guide to an advantageous distribution than any other which could be devised. But when, by a blind concourse, particular occupations are ruinously overcharged, and others left in want of hands, the national authorities can do much towards restoring the equilibrium. On the revival of letters, learning became the universal favorite. And with reason, because there was not enough of it existing to manage the affairs of a nation to the best advantage, nor to advance its individuals to the happiness of which they were susceptible, by improvements in their minds, their morals, their health, and in those conveniences which contribute to the comfort and embellishment of life. All the efforts of the society, therefore, were directed to the increase of learning, and the inducements of respect, ease, and profit

were held up for its encouragement. Even the charities of the nation forgot that misery was their object, and spent themselves in founding schools to transfer to science the hardy sons of the plough. To these incitements were added the powerful fascinations of great cities. These circumstances have long since produced an overcharge in the class of competitors for learned occupation, and great distress among the supernumerary candidates; and the more, as their habits of life have disqualified them for re-entering into the laborious class. The evil cannot be suddenly, nor perhaps ever entirely cured: nor should I presume to say by what means it may be cured.

Doubtless there are many engines which the nation might bring to bear on this object. Public opinion, and public encouragement are among these. The class principally defective is that of agriculture. It is the first in utility, and ought to be the first in respect. The same artificial means which have been used to produce a competition in learning, may be equally successful in restoring agriculture to its primary dignity in the eyes of men. It is a science of the very first order. It counts among its handmaids the most respectable sciences, such as Chemistry, Natural Philosophy, Mechanics, Mathematics generally, Natural History, Botany. In every College and University, a professorship of agriculture, and the class of its students, might be honored as the first. Young men closing their academical education with this, as the crown of all other sciences, fascinated with its solid charms, and at a time when they are to choose an occupation, instead of crowding the other classes, would return to the farms of their fathers, their own, or those of others, and replenish and invigorate a calling, now languishing under contempt and oppression. The charitable schools, instead of storing their pupils with a lore which the present state of society does not call for, converted into schools of agriculture, might restore them to that branch qualified to enrich and honor themselves, and to increase the productions of the nation instead of consuming them. A gradual abolition of the useless offices, so much accumulated in all governments, might close this drain also from the labors of the field, and lessen the burthens imposed on them. By these, and the better means which will occur to others, the surcharge of the learned, might in time be drawn off to recruit the laboring class of citizens, the sum of industry be increased, and that of misery diminished.

Among the ancients, the redundance of population was sometimes checked by exposing infants. To the moderns, America has offered a more humane

resource. Many, who cannot find employment in Europe, accordingly come here. Those who can labor do well, for the most part. Of the learned class of emigrants, a small portion find employments analogous to their talents. But many fail, and return to complete their course of misery in the scenes where it began. Even here we find too strong a current from the country to the towns; and instances beginning to appear of that species of misery, which you are so humanely endeavoring to relieve with you. Although we have in the old countries of Europe the lesson of their experience to warn us, yet I am not satisfied we shall have the firmness and wisdom to profit by it. The general desire of men to live by their heads rather than their hands, and the strong allurements of great cities to those who have any turn for dissipation, threaten to make them here, as in Europe, the sinks of voluntary misery. I perceive, however, that I have suffered my pen to run into a disquisition, when I had taken it up only to thank you for the volume you had been so kind as to send me, and to express my approbation of it. After apologizing, therefore, for having touched on a subject so much more familiar to you, and better understood, I beg leave to assure you of my high consideration and respect.

TO CAPTAIN LEWIS.

WASHINGTON, November 16, 1803.

DEAR SIR,—I have not written to you since the 11th and 15th of July, since which yours of July 18, 22, 25, September 8, 13, and October 3, have been received. The present has been long delayed by an expectation daily of getting the enclosed account of Louisiana through the press. The materials are received from different persons, of good authority. I enclose you also copies of the treaties for Louisiana, the act for taking possession, a letter from Dr. Wistar, and some information obtained by myself from Truteau's journal in MS., all of which may be useful to you. The act for taking possession passed with only some small verbal variations from that enclosed, of no consequence. Orders went from hence signed by the King of Spain and the first consul of France, so as to arrive at Natchez yesterday evening, and we expect the delivery of the province at New Orleans will

take place about the close of the ensuing week, say about the 26th instant. Governor Claiborne is appointed to execute the powers of Commandant and Intendant, until a regular government shall be organized here. At the moment of delivering over the ports in the vicinity of New Orleans, orders will be despatched from thence to those in upper Louisiana to evacuate and deliver them immediately. You can judge better than I can when they may be expected to arrive at these ports, considering how much you have been detained by the low waters, how late it will be before you can leave Cahokia, how little progress up the Missouri you can make before the freezing of the river; that your winter might be passed in gaining much information, by making Cahokia or Caskaskia your head quarters, and going to St. Louis and the other Spanish forts, that your stores, &c. would thereby be spared for the winter, as your men would draw their military rations. All danger of Spanish opposition avoided, we are strongly of opinion here that you had better not enter the Missouri till the spring. But as you have a view of all circumstances on the spot, we do not pretend to enjoin it, but leave it to your own judgment in which we have entire confidence. One thing, however, we are decided in; that you must not undertake the winter excursion which you propose in yours of October 3d. Such an excursion will be more dangerous than the main expedition up the Missouri, and would by an accident to you, hazard our main object, which, since the acquisition of Louisiana, interests everybody in the highest degree. The object of your mission is single, the direct water communication from sea to sea formed by the bed of the Missouri, and perhaps the Oregon; by having Mr. Clarke with you we consider the expedition as double manned, and therefore the less liable to failure; for which reason neither of you should be exposed to risks by going off of your line. I have proposed in conversation, and it seems generally assented to, that Congress shall appropriate ten or twelve thousand dollars for exploring the principal waters of the Mississippi and Missouri. In that case, I should send a party up the Red river to its head, then to cross over to the head of the Arkansas, and come down that. A second party for the Pani and Padouca rivers, and a third, perhaps, for the Morsigona and St. Peter's. As the boundaries of interior Louisiana are the high lands enclosing all the waters which run into the Mississippi or Missouri directly or indirectly, with a quarter breadth on the Gulf of Mexico, it becomes interesting to fix with precision by celestial observations the longitude and latitude of the sources

of these rivers, so providing points in the contour of our new limits. This will be attempted distinctly from your mission, which we consider as of major importance, and therefore, not to be delayed or hazarded by any episodes whatever.

The votes of both Houses on ratifying and carrying the treaties into execution, have been precisely party votes, except that General Dayton has separated from his friends on these questions, and voted for the treaties. I will direct the Aurora National Intelligencer to be forwarded to you for six months at Cadokie or Kaskaskia, on the presumption you will be there. Your friends and acquaintances here, and in Albemarle, are all well, so far as I have heard; and I recollect no other small news worth communicating. Present my friendly salutations to Mr. Clarke, and accept them affectionately yourself.

TO JOHN RANDOLPH.

WASHINGTON, December 1, 1803.

DEAR SIR,—The explanations in your letter of yesterday were quite unnecessary to me. I have had too satisfactory proofs of your friendly regard, to be disposed to suspect anything of a contrary aspect. I understood perfectly the expressions stated in the newspaper to which you allude, to mean, that "though the proposition came from the *republican quarter* of the House, yet you should not concur with it." I am aware that in parts of the Union, and even with persons to whom Mr. Eppes and Mr. Randolph are unknown, and myself little known, it will be presumed from their connection, that what comes from them comes from me. No men on earth are more independent in their sentiments than they are, nor any one less disposed than I am to influence the opinions of others. We rarely speak of politics, or of the proceedings of the House, but merely historically, and I carefully avoid expressing an opinion on them, in their presence, that we may all be at our ease. With other members, I have believed that more unreserved communications would be advantageous to the public. This has been, perhaps, prevented by mutual delicacy. I have been afraid to express opinions unasked, lest I should be suspected of wishing to direct the

legislative action of members. They have avoided asking communications from me, probably, lest they should be suspected of wishing to fish out executive secrets. I see too many proofs of the imperfection of human reason, to entertain wonder or intolerance at any difference of opinion on any subject; and acquiesce in that difference as easily as on a difference of feature or form; experience having long taught me the reasonableness of mutual sacrifices of opinion among those who are to act together for any common object, and the expediency of doing what good we can, when we cannot do all we would wish.

Accept my friendly salutations, and assurances of great esteem and respect.

TO MR. GALLATIN.

WASHINGTON, December 13, 1803.

The Attorney General having considered and decided that the prescription in the law for establishing a bank, that the officers in the subordinate offices of discount and deposit, shall be appointed "on the same terms and in the same manner practised in the principal bank," does not extend to them the principle of rotation, established by the Legislature in the body of directors in the principal bank, it follows that the extension of that principle has been merely a voluntary and prudential act of the principal bank, from which they are free to depart. I think the extension was wise and proper on their part, because the Legislature having deemed rotation useful in the principal bank constituted by them, there would be the same reason for it in the subordinate banks to be established by the principal. It breaks in upon the *esprit du corps* so apt to prevail in permanent bodies; it gives a chance for the public eye penetrating into the sanctuary of those proceedings and practices, which the avarice of the directors may introduce for their personal emolument, and which the resentments of excluded directors, or the honesty of those duly admitted, might betray to the public; and it gives an opportunity at the end of the year, or at other periods, of correcting a choice, which, on trial, proves to have been unfortunate; an evil of which themselves complain in their distant institutions. Whether, however, they have a power to alter this, or not, the executive has no right to decide; and

their consultation with you has been merely an act of complaisance, or from a desire to shield so important an innovation under the cover of executive sanction. But ought we to volunteer our sanction in such a case? Ought we to disarm ourselves of any fair right of animadversion, whenever that institution shall be a legitimate subject of consideration? I own, I think the most proper answer would be, that we do not think ourselves authorized to give an opinion on the question.

From a passage in the letter of the President, I observe an idea of establishing a branch bank of the United States in New Orleans. This institution is one of the most deadly hostility existing, against the principles and form of our Constitution. The nation is, at this time, so strong and united in its sentiments, that it cannot be shaken at this moment. But suppose a series of untoward events should occur, sufficient to bring into doubt the competency of a republican government to meet a crisis of great danger, or to unhinge the confidence of the people in the public functionaries; an institution like this, penetrating by its branches every part of the Union, acting by command and in phalanx, may, in a critical moment, upset the government. I deem no government safe which is under the vassalage of any self-constituted authorities, or any other authority than that of the nation, or its regular functionaries. What an obstruction could not this bank of the United States, with all its branch banks, be in time of war? It might dictate to us the peace we should accept, or withdraw its aids. Ought we then to give further growth to an institution so powerful, so hostile? That it is so hostile we know, 1, from a knowledge of the principles of the persons composing the body of directors in every bank, principal or branch; and those of most of the stockholders: 2, from their opposition to the measures and principles of the government, and to the election of those friendly to them: and 3, from the sentiments of the newspapers they support. Now, while we are strong, it is the greatest duty we owe to the safety of our Constitution, to bring this powerful enemy to a perfect subordination under its authorities. The first measure would be to reduce them to an equal footing only with other banks, as to the favors of the government. But, in order to be able to meet a general combination of the banks against us, in a critical emergency, could we not make a beginning towards an independent use of our own money, towards holding our own bank in all the deposits where it is received, and letting the treasurer give

his draft or note, for payment at any particular place, which, in a well-conducted government, ought to have as much credit as any private draft, or bank note, or bill, and would give us the same facilities which we derive from the banks? I pray you to turn this subject in your mind, and to give it the benefit of your knowledge of details; whereas, I have only very general views of the subject. Affectionate salutations.

TO GOVERNOR CLINTON.

WASHINGTON, December 31, 1803.

DEAR SIR,—I received last night your favor of the 22d, written on the occasion of the libellous pamphlet lately published with you. I began to read it, but the dulness of the first page made me give up the reading for a dip into here and there a passage, till I came to what respected myself. The falsehood of that gave me a test for the rest of the work, and considering it always useless to read lies, I threw it by. As to yourself, be assured no contradiction was necessary. The uniform tenor of a man's life furnishes better evidence of what he has said or done on any particular occasion than the word of an enemy, and of an enemy too who shows that he prefers the use of falsehoods which suit him to truths which do not. Little squibs in certain papers had long ago apprized me of a design to sow tares between particular republican characters, but to divide those by lying tales whom truths cannot divide, is the hackneyed policy of the gossips of every society. Our business is to march straight forward to the object which has occupied us for eight and twenty years, without either turning to the right or left. My opinion is that two or three years more will bring back to the fold of republicanism all our wandering brethren whom the cry of "wolf" scattered in 1798. Till that is done, let every man stand to his post, and hazard nothing by change. And when that is done, you and I may retire to the tranquillity which our years begin to call for, and revise with satisfaction the efforts of the age we happened to be born in, crowned with complete success. In the hour of death we shall have the consolation to see established in the land of our fathers the most wonderful work of wisdom and disinterested patriotism that has ever yet appeared on the globe.

In confidence that you will not be weary in well doing, I tender my wishes that your future days may be as happy as your past ones have been useful, and pray you to accept my friendly salutations and assurances of high consideration and respect.

TO CAPTAIN MERIWETHER LEWIS.

WASHINGTON, January 22, 1804.

DEAR SIR,—My letters since your departure have been of July 11th and 15th, November 16th, and January 13th. Yours received are of July 8th, 15th, 22d, and 25th, September 25th and 30th, and October 3d. Since the date of the last we have no certain information of your movements. With mine of November 16th, I sent you some extracts made by myself from the journal of an agent of the trading company of St. Louis up the Missouri. I now enclose a translation of that journal in full for your information. In that of the 13th instant I enclosed you a map of a Mr. Evans, a Welshman, employed by the Spanish government for that purpose, but whose original object I believe had been to go in search of the Welsh Indians, said to be up the Missouri. On this subject a Mr. Rees, of the same nation, established in the western part of Pennsylvania, will write to you. New Orleans was delivered to us on the 20th of December, and our garrisons and government established there. The orders for the delivery of the upper ports were to leave New Orleans on the 28th, and we presume all those ports will be occupied by our troops by the last day of the present month. When your instructions were penned, this new position was not so authentically known as to affect the complexion of your instructions. Being now become sovereigns of the country, without, however, any diminution of the Indian rights of occupancy, we are authorized to propose to them in direct terms the institution of commerce with them. It will now be proper you should inform those through whose country you will pass, or whom you may meet, that their late fathers, the Spaniards, have agreed to withdraw all their troops from all the waters and country of the Mississippi and Missouri. That they have surrendered to us all their subjects, Spanish and French, settled there and all their posts and lands; that henceforward we become their

fathers and friends, and that we shall endeavor that they shall have no cause to lament the change; that we have sent you to inquire into the nature of the country and the nations inhabiting it, to know at what places and times we must establish stores of goods among them, to exchange for their peltries; that as soon as you return with the necessary information, we shall prepare supplies of goods and persons to carry them, and make the proper establishments; that in the meantime the same traders who reside among us visit them, and who now are a part of us, will continue to supply them as usual; that we shall endeavor to become acquainted with them as soon as possible; and that they will find in us faithful friends and protectors. Although you will pass through no settlements of the Sioux (except seceders) yet you will probably meet with parties of them. On that nation we wish most particularly to make a friendly impression, because of their immense power, and because we learn that they are very desirous of being on the most friendly terms with us.

I enclose you a letter, which I believe is from some one on the part of the Philosophical Society. They have made you a member, and your diploma is lodged with me; but I suppose it safest to keep it here and not to send it after you. Mr. Harvie departs to-morrow for France, as the bearer of the Louisiana stock to Paris. Captain William Brent takes his place with me. Congress will probably continue in session through the month of March. Your friends here and in Albemarle, as far as I recollect, are well. Trist will be the collector of New Orleans, and his family will go to him in the spring. Dr. Bache is now in Philadelphia, and probably will not return to New Orleans. Accept my friendly salutations, and assurances of affectionate esteem and respect.

TO TIMOTHY BLOODWORTH, ESQ.

WASHINGTON, January 29, 1804.

DEAR SIR,—I thank you for the seed of the fly-trap. It is the first I have ever been able to obtain, and shall take great care of it. I am well pleased to hear of the progress of republicanism with you. To do without a land tax, excise, stamp tax and the other internal taxes, to supply their place by economies,

so as still to support the government properly, and to apply \$7,300,000 a year steadily to the payment of the public debt; to discontinue a great portion of the expenses on armies and navies, yet protect our country and its commerce with what remains; to purchase a country as large and more fertile than the one we possessed before, yet ask neither a new tax, nor another soldier to be added, but to provide that that country shall by its own income, pay for itself before the purchase money is due; to preserve peace with all nations, and particularly an equal friendship to the two great rival powers France and England, and to maintain the credit and character of the nation in as high a degree as it has ever enjoyed, are measures which I think must reconcile the great body of those who thought themselves our enemies; but were in truth only the enemies of certain Jacobinical, atheistical, anarchical, imaginary caricatures, which existed only in the land of the raw head and bloody bones, beings created to frighten the credulous. By this time they see enough of us to judge our characters by what we do, and not by what we never did, nor thought of doing, but in the lying chronicles of the newspapers. I know indeed there are some characters who have been too prominent to retract, too proud and impassioned to relent, too greedy after office and profit to relinquish their longings, and who have covered their devotion to monarchism under the mantle of federalism, who never can be cured of their enmities. These are incurable maniacs, for whom the hospitable doors of Bedlam are ready to open, but they are permitted to walk abroad while they refrain from personal assault.

The applications for Louisiana are so numerous that it would be immoral to give a hope to the friends you mention. The rage for going to that country seems universal. Accept my affectionate salutations, and assurances of great esteem and respect.

TO DOCTOR PRIESTLEY.

WASHINGTON, January 29, 1804.

DEAR SIR,—Your favor of December the 12th came duly to hand, as did the second letter to Doctor Linn, and the treatise on Phlogiston, for which I pray you to accept my thanks. The copy for Mr. Livingston has been

delivered, together with your letter to him, to Mr. Harvie, my secretary, who departs in a day or two for Paris, and will deliver them himself to Mr. Livingston, whose attention to your matter cannot be doubted. I have also to add my thanks to Mr. Priestley, your son, for the copy of your Harmony, which I have gone through with great satisfaction. It is the first I have been able to meet with, which is clear of those long repetitions of the same transaction, as if it were a different one because related with some different circumstances.

I rejoice that you have undertaken the task of comparing the moral doctrines of Jesus with those of the ancient Philosophers. You are so much in possession of the whole subject, that you will do it easier and better than any other person living. I think you cannot avoid giving, as preliminary to the comparison, a digest of his moral doctrines, extracted in his own words from the Evangelists, and leaving out everything relative to his personal history and character. It would be short and precious. With a view to do this for my own satisfaction, I had sent to Philadelphia to get two testaments (Greek) of the same edition, and two English, with a design to cut out the morsels of morality, and paste them on the leaves of a book, in the manner you describe as having been pursued in forming your Harmony. But I shall now get the thing done by better hands.

I very early saw that Louisiana was indeed a speck in our horizon which was to burst in a tornado; and the public are unapprised how near this catastrophe was. Nothing but a frank and friendly development of causes and effects on our part, and good sense enough in Bonaparte to see that the train was unavoidable, and would change the face of the world, saved us from that storm. I did not expect he would yield till a war took place between France and England, and my hope was to palliate and endure, if Messrs. Ross, Morris, &c. did not force a premature rupture, until that event. I believed the event not very distant, but acknowledge it came on sooner than I had expected. Whether, however, the good sense of Bonaparte might not see the course predicted to be necessary and unavoidable, even before a war should be imminent, was a chance which we thought it our duty to try; but the immediate prospect of rupture brought the case to immediate decision. The *denouement* has been happy; and I confess I look to this duplication of area for the extending a government so free and economical as ours, as a great achievement to the mass of happiness which

is to ensue. Whether we remain in one confederacy, or form into Atlantic and Mississippi confederacies, I believe not very important to the happiness of either part. Those of the western confederacy will be as much our children and descendants as those of the eastern, and I feel myself as much identified with that country, in future time, as with this; and did I now foresee a separation at some future day, yet I should feel the duty and the desire to promote the western interests as zealously as the eastern, doing all the good for both portions of our future family which should fall within my power.

Have you seen the new work of Malthus on population? It is one of the ablest I have ever seen. Although his main object is to delineate the effects of redundancy of population, and to test the poor laws of England, and other palliations for that evil, several important questions in political economy, allied to his subject incidentally, are treated with a masterly hand. It is a single octavo volume, and I have been only able to read a borrowed copy, the only one I have yet heard of. Probably our friends in England will think of you, and give you an opportunity of reading it. Accept my affectionate salutations, and assurances of great esteem and respect.

TO MR. SAY.

WASHINGTON, February 1, 1804.

DEAR SIR,—I have to acknowledge the receipt of your obliging letter, and with it, of two very interesting volumes on Political Economy. These found me engaged in giving the leisure moments I rarely find, to the perusal of Malthus' work on population, a work of sound logic, in which some of the opinions of Adam Smith, as well as of the economists, are ably examined. I was pleased, on turning to some chapters where you treat the same questions, to find his opinions corroborated by yours. I shall proceed to the reading of your work with great pleasure. In the meantime, the present conveyance, by a gentlemen of my family going to Paris, is too safe to hazard a delay in making my acknowledgments for this mark of attention, and for having afforded to me a satisfaction, which the ordinary course of literary communications could not have given me for a considerable time.

The differences of circumstance between this and the old countries of Europe, furnish differences of fact whereon to reason, in questions of political economy, and will consequently produce sometimes a difference of result. There, for instance, the quantity of food is fixed, or increasing in a slow and only arithmetical ratio, and the proportion is limited by the same ratio. Supernumerary births consequently add only to your mortality. Here the immense extent of uncultivated and fertile lands enables every one who will labor to marry young, and to raise a family of any size. Our food, then, may increase geometrically with our laborers, and our births, however multiplied, become effective. Again, there the best distribution of labor is supposed to be that which places the manufacturing hands alongside the agricultural; so that the one part shall feed both, and the other part furnish both with clothes and other comforts. Would that be best here? Egoism and first appearances say yes. Or would it be better that all our laborers should be employed in agriculture? In this case a double or treble portion of fertile lands would be brought into culture; a double or treble creation of food be produced, and its surplus go to nourish the now perishing births of Europe, who in return would manufacture and send us in exchange our clothes and other comforts. Morality listens to this, and so invariably do the laws of nature create our duties and interests, that when they seem to be at variance, we ought to suspect some fallacy in our reasonings. In solving this question, too, we should allow its just weight to the moral and physical preference of the agricultural, over the manufacturing, man. My occupations permit me only to ask questions. They deny me the time, if I had the information, to answer them. Perhaps, as worthy the attention of the author of the *Traité d'Economie Politique*, I shall find them answered in that work. If they are not, the reason will have been that you wrote for Europe; while I shall have asked them because I think for America. Accept, Sir, my respectful salutations, and assurances of great consideration.

TO RUFUS KING, ESQ.

WASHINGTON, February 17, 1804.

DEAR SIR,—I now return you the manuscript history of Bacon's rebellion, with many thanks for the communication. It is really a valuable morsel in the history of Virginia. That transaction is the more marked, as it was the only rebellion or insurrection which had ever taken place in the colony before the American Revolution. Neither its cause nor course have been well understood, the public records containing little on the subject. It is very long since I read the several histories of Virginia, but the impression remaining on my mind was not at all that which the writer gives; and it is impossible to refuse assent to the candor and simplicity of history. I have taken the liberty of copying it, which has been the reason of the detention of it. I had an opportunity, too, of communicating it to a person who was just putting into the press a history of Virginia, but all in a situation to be corrected. I think it possible that among the ancient manuscripts I possess at Monticello, I may be able to trace the author. I shall endeavor to do it the first visit I make to that place, and if with success, I will do myself the pleasure of communicating it to you. From the public records there is no hope, as they were destroyed by the British, I believe, very completely, during their invasion of Virginia. Accept my salutations, and assurances of high consideration and respect.

TO THE SECRETARY OF THE TREASURY.

February 19, 1804.

Doctor Stevens having been sent by the preceding administration, in 1798, to St. Domingo, with the commission of consul-general, and also with authorities as an agent additional to the consular powers, under a stipulation that his expenses should be borne; an account of these is now exhibited to the Secretary of State, and the questions arise whether the payment can be authorized by the Executive, and out of what fund?

The Constitution has made the Executive the organ for managing our intercourse with foreign nations. It authorizes him to appoint and receive ambassadors, other public ministers, and consuls. The term minister being applicable to other agents as well as diplomatic, the constant practice of the government, considered as a commentary, established this broad meaning;

and the public interest approves it; because it would be extravagant to employ a diplomatic minister for a business which a mere rider would execute. The Executive being thus charged with the foreign intercourse, no law has undertaken to prescribe its specific duties. The permanent act of 1801, however, first, where he uses the agency of a minister plenipotentiary, or chargé, restricts him in the sums to be allowed for outfit, salary, return, and a secretary; and second, when any law has appropriated a sum for the *contingent* expenses of foreign intercourse, leaves to his discretion to dispense with the exhibition of the vouchers of its expenditure in the public offices. Under these two standing provisions there is annually a sum appropriated for the expenses of intercourse with foreign nations. The *purposes* of the appropriation being expressed by the *law*, in terms as general as the *duties* are by the *Constitution*, the application of the money is left as much to the discretion of the Executive, as the performance of the duties, saving always the provisions of 1801.

It is true that this appropriation is usually made on an estimate, given by the Secretary of State to the Secretary of the Treasury, and by him reported to Congress. But Congress, aware that too minute a specification has its evil as well as a too general one, does not make the estimate a part of their law, but gives a sum in gross, trusting the Executive discretion for that year and that sum only; so in other departments, as of war for instance, the estimate of the Secretary specifies all the items of clothing, subsistence, pay, &c., of the army. And Congress throws this into such masses as they think best, to wit, a sum in gross for clothing, another for subsistence, a third for pay, &c., binding up the Executive discretion only by the sum, and the object generalized to a certain degree. The minute details of the estimate are thus dispensed with in point of obligation, and the discretion of the officer is enlarged to the limits of the classification, which Congress thinks it best for the public interest to make. In the case before us, then, the sum appropriated may be applied to any agency with a foreign nation, which the Constitution has made a part of the duty of the President, as the organ of foreign intercourse.

The sum appropriated is generally the exact amount of the estimate, but not always. In the present instance the estimate, being for 1803, was only of \$62,550, (including two outfits,) and the appropriation was of \$75,562, leaving a difference of \$13,012. If indeed, there be not enough of this

appropriation left to pay Dr. Stevens' just demands, they cannot be paid until Congress shall make some appropriation applicable to them. I say his *just* demands, because by the undertaking of the then administration to pay his expenses, justice as well as law will understand his *reasonable* expenses. These must be tried by the scale which law and usage have established, whereon the Minister, Chargé, and Secretary, are given as fixed terms of comparison. The undefined agency of Dr. Stevens must be placed opposite to that term of the scale, with which it may fairly be thought to correspond; and if he has gone beyond that, his expenses should be reduced to it. I think them beyond it, and suppose that Dr. Stevens, viewing himself as a merchant, as well as a public agent, found it answer his purposes as a merchant to apply a part of his receipts in that character in addition to what he might reasonably expect from the public, not then meaning to charge to his public character the extraordinary style of expense which he believed at the time he could afford out of his mercantile profits.

[*Statement of Dr. Stevens' case, referred to in preceding letter.*]

The Constitution having provided that the President should appoint ambassadors, other public ministers and consuls, and all other officers which shall be established by law, the first Congress which met passed a law (July 1, 1790) authorizing him to draw from the treasury \$40,000 annually for the support of such persons as he shall commission to serve the United States in foreign parts, and for the expense incident to the business in which they may be employed; with a proviso that, exclusive of an outfit to a Minister Plenipotentiary or Chargé, not exceeding a year's salary, he should allow to any Minister Plenipotentiary not more than \$9,000 a year, for all his personal services and other expenses; to a Chargé not more than \$4,500; to a Secretary not more than \$1,350; and with a second proviso as to the mode of settlement. This act, which was temporary, was continued by those of 1793, February 9, 1794, March 20, 1796, May 30, 1798, March 19, till 1800, May 10, when they turned the two provisos into enacting clauses, and made them permanent, and the appropriating clause which made the body of the law before, is now annually inserted in the general appropriating law. See 1800, May 7, 1801, March 3, 1802, May 1, 1803, March 2, and 1804, March —. As Congress, in order to limit the discretion of officers as far as is safe, is in the practice of throwing the objects of appropriations into groups, *e. g.* to the Secretary of State, and clerks, and

other persons in that department so much; Secretary of Treasury, &c., so much; clothing for the army so much; subsistence so much; pay so much, &c. So they might have analysed the foreign appropriation by allowing for outfits of ministers so much; salaries of ministers so much; contingent expenses so much, &c. But they chose to throw it all into one mass, only providing that no outfit should exceed a year's salary, and no salary of a minister be more than \$9,000; of a Chargé \$4,500; Secretary \$1,350, &c.; leaving the President free to give them less if he chose, and to give to Ambassadors, Envoys, and other agents, what he thought proper. From the origin of the present government to this day, the construction of the laws, and the practice under them, has been to consider the whole fund (with only the limitations before mentioned) as under the discretion of the President as to the persons he should commission to serve the United States in foreign parts, and all the expenses incident to the business in which they may be employed. The grade consequently or character in which they should be employed, their allowance, &c. Thus Governor Morris was appointed by General Washington informally and without a commission to confer with the British ministers, and was allowed for eight months (I think) \$1,000. Colonel Humphreys was appointed in 1790, to go as an agent to Madrid, and was allowed at the rate of \$2,250 per annum. Dumas was kept at the Hague many years as an agent at \$1,300 a year. Mr. Cutting was allowed disbursements for sailors in London in 1791, \$233 33. Presents were made to the Chevalier Luzerne, on taking leave, worth \$1,062. Van Berkel \$697. Du Moustier \$555, in 1791. Mr. Short was sent to Amsterdam as an agent in 1792, and allowed \$444 43. James Blake was sent as agent to Madrid in 1793, and received an advance of \$800. I know not how much afterwards, as I left the office of Secretary of State at the close of that year. In 1794, Mr. Jay was appointed Envoy Extraordinary, a grade not particularly named in the Constitution, or any law, yet General Washington fixed his allowance. During the present administration Mr. Dawson and Lieutenant Leonard have been sent on special agencies. From the beginning of the government it has been the rule when one of our ministers is ordered to another place on a special business, to allow his expenses on that special mission, his salary going on at his residence where his family remains. Mr. Short's mission from Paris to Amsterdam, from Paris to Madrid; Mr. Pinckney from London to Madrid; Mr. Murray's from the Hague to Paris, and others not recollected by me, are instances of this. These facts are stated to show that it has been

the uniform opinion and practice that the whole foreign fund was placed by the Legislature on the footing of a contingent fund, in which they undertake no specifications, but leave the whole to the discretion of the President. The whole is but from forty to sixty or seventy thousand dollars. After the establishment of the general fund for foreign intercourse, Congress found it necessary to make a separate branch for the Barbary powers. This was done covertly in the beginning, to wit, in 1792, they gave \$50,000 additional to the foreign fund, in 1794, \$1,000,000 additional without limiting it to Barbary. Yet it was secretly understood by the President, and his discretion was trusted. In 1796, they gave \$260,000 for treaties with the Mediterranean powers, in 1797, \$280,259 03, for the expenses of negotiation with Algiers. They did not undertake a more minute analysis or specification, but left it to the President. The laws of 1796, May 6, 1797, March 3, 1799, March 2, give sums for specific purposes because these purposes were simple and understood by the Legislature. But in general, in this branch of the foreign expenses, as in the former one, the Legislature has thought that to cramp the public service by too minute specifications in cases which they could not foresee, might do more evil than a temporary trust to the President, which could be put an end to if abused.

In our western governments, heretofore established, they were so well understood by Congress, that they could and did specify every item of expense, except a very small residuum for which they made contingent appropriations. But when they came to provide at this session for the Louisiana government, with which they were not acquainted, they gave twenty thousand dollars for compensation to the officers of the government employed by the President, and for other civil expenses under the direction of the President. And their first step towards the acquisition of that country was to confide to the President two millions of dollars under the general appropriation for foreign intercourse. These facts show that so far from having experienced evil from confiding the forty thousand dollars foreign fund to the discretion of the executive without a specific analysis of its application, they have continued it on that footing, and in many other great cases where analysis was difficult or inexpedient they have given the sums in mass, and left the analysis to him, only requiring an account to be rendered.

This statement has been made in order to place on its true ground the case of Doctor Stevens. He was employed by Mr. Adams as Agent to St. Domingo, and was to be allowed his expenses, though these were not limited, yet the law limits them in such case to what were reasonable. Doubts have arisen at the treasury whether the executive had a right to make such a contract, and whether there be any fund out of which it can be paid? Some doubt has been expressed whether an appropriation law gives authority to pay for the purpose of the appropriation without some particular law authorizing it. If this be the case, the forty thousand dollar fund has been paid away without authority from its first establishment; for it never has been given but by a clause of appropriation. The executive believes this sufficient authority, and so we presume did the Legislature, or they would have given authority in some other sufficient form. And where is the rule of legal construction to be found which ascribes less effect to the words of an appropriation law, than of any other law? It is also doubted whether the estimate on which an appropriation is founded does not restrain the application to the specific articles, their number and amount as stated in the estimate? Were an appropriation law to come before a judge would he decide its meaning from its text, or would he call on the officer to produce their estimates as being a part of the law? On the whole, the following questions are to be determined: 1. Whether the laws do not justify the construction which has been uniformly given, either strictly, or at least so ambiguously, that, as in judiciary cases, the decisions which have taken place have fixed their meaning and made it law? 2. Whether they are so palpably against law that the practice must be arrested? 3. Whether it shall be arrested retrospectively as to moneys engaged but not yet actually paid, or only as to future contracts? 4. Whether any circumstances take Dr. Stevens' case out of the conditions and rights of other foreign agencies?

March 23, 1804.

TO MR. LATROBE.

WASHINGTON, February 28, 1804.

DEAR SIR,—I am sorry the explanations attempted between Dr. Thornton and yourself, on the manner of finishing the chamber of the House of Representatives, have not succeeded. At the original establishment of this place advertisements were published many months offering premiums for the best plans for a Capitol and a President's house. Many were sent in. A council was held by General Washington with the board of Commissioners, and after very mature examination two were preferred, and the premiums given to their authors, Doctor Thornton and Hobens, and the plans were decided on. Hobens' has been executed. On Doctor Thornton's plan of the Capitol the north wing has been extended, and the south raised one story. In order to get along with any public undertaking it is necessary that some stability of plan be observed—nothing impedes progress so much as perpetual changes of design. I yield to this principle in the present case more willingly because the plan begun for the Representative room will, in my opinion, be more handsome and commodious than anything which can now be proposed on the same area. And though the spheroidical dome presents difficulties to the executor, yet they are not beyond his art; and it is to overcome difficulties that we employ men of genius. While however I express my opinion that we had better go through with this wing of the Capitol on the plan which has been settled, I would not be understood to suppose there does exist sufficient authority to control the original plan in any of its parts, and to accommodate it to changes of circumstances. I only mean that it is not advisable to change that of this wing in its present stage. Though I have spoken of a spheroidical roof, that will not be correct by the figure. Every rib will be a portion of a circle of which the radius will be determined by the span and rise of each rib. Would it not be best to make the internal columns of well-burnt brick, moulded in portions of circles adapted to the diminution of the columns? 2d. Burlington, in his notes on Palladio, tells us that he found most of the buildings erected under Palladio's direction, and described in his architecture, to have their columns made of brick in this way and covered over with stucco. I know an instance of a range of six or eight columns in Virginia, twenty feet high, well proportioned and properly diminished, executed by a common bricklayer. The bases and capitols would of course be of hewn stone. I suggest this for your consideration, and tender you my friendly salutations.

TO ELBRIDGE GERRY.

WASHINGTON, March 3, 1804.

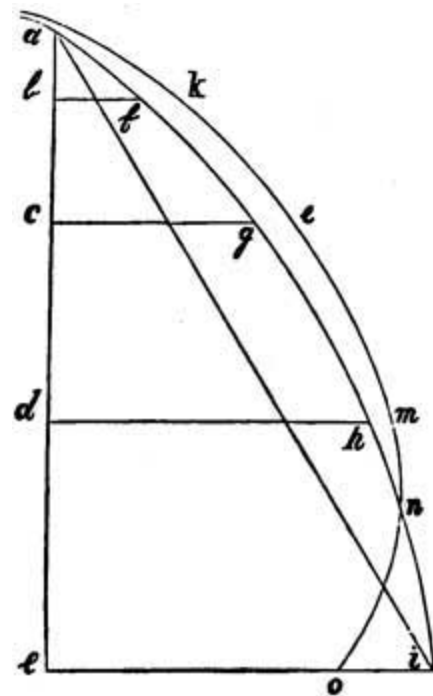
DEAR SIR,—Although it is long since I received your favor of October the 27th, yet I have not had leisure sooner to acknowledge it. In the middle and southern States, as great an union of sentiment has now taken place as is perhaps desirable. For as there will always be an opposition, I believe it had better be from avowed monarchists than republicans. New York seems to be in danger of republican division; Vermont is solidly with us; Rhode Island with us on anomalous grounds; New Hampshire on the verge of the republican shore; Connecticut advancing towards it very slowly, but with steady step; your State only uncertain of making port at all. I had forgotten Delaware, which will be always uncertain, from the divided character of her citizens. If the amendment of the Constitution passes Rhode Island, (and we expect to hear in a day or two,) the election for the ensuing four years seems to present nothing formidable. I sincerely regret that the unbounded calumnies of the federal party have obliged me to throw myself on the verdict of my country for trial, my great desire having been to retire, at the end of the present term, to a life of tranquillity; and it was my decided purpose when I entered into office. They force my continuance. If we can keep the vessel of State as steadily in her course for another four years, my earthly purposes will be accomplished, and I shall be free to enjoy, as you are doing, my family, my farm, and my books. That your enjoyments may continue as long as you shall wish them, I sincerely pray, and tender you my friendly salutations, and assurances of great respect and esteem.

TO WILLIAM DUNBAR, ESQ.

WASHINGTON, March 13, 1804.

DEAR SIR,—Your favor of January 28 has been duly received, and I have read with great satisfaction your ingenuous paper on the subject of the Mississippi, which I shall immediately forward to the Philosophical Society, where it will be duly prized. To prove the value I set on it, and my wish that it may go to the public without any imperfection about it, I will take the

liberty of submitting to your consideration the only passage which I think may require it. You say, page 9, "The velocity of rivers is greatest at the surface, and gradually diminishes downwards." And this principle enters into some subsequent parts of the paper, and has too much effect on the phenomena of that river not to merit mature consideration. I can but suppose it at variance with the law of motion in rivers. In strict theory, the velocity of water at any given depth in a river is (in addition to its velocity at its surface) whatever a body would have acquired by falling through a space equal to that depth. If, in the middle of a river, we drop a vertical line, $a e$, from its surface to its bottom, and (using a perch, or rather a measure of 16.125 feet, for our unit of measure) we draw, at the depths, $b c d e$, (which suppose = 1.4 9.16 perch ordinates in the direction of the stream, equal to the odd numbers, 3, 5, 7, 9 perch, these ordinates will represent the additional velocities of the water per second of time, at the depth of their respective abscissæ, and will terminate in a curve, $a f g h i$,) which will represent the velocity of their current in every point, and the whole mass of water passing on in a second of time. ^[19] This would be the theory of the motion of rivers, were there no friction; but the bottom being rough, its friction with the lower sheet or lamina of water will retard that lamina; the friction or viscosity of the particles of which, again, with those of the one next above, will retard that somewhat less, the 2d retard the 3d, the 3d the 4th, and so on upwards, diminishing till the retardation becomes insensible; and the theoretic curve will be modified by that cause, as at $n o$, removing the maximum of motion from the bottom somewhere upwardly. Again, the same circumstances of friction and viscosity of the particles of water among themselves, will cause the lamina at the surface to be accelerated by the quicker motion of the one next below it, the 2d still more by the 3d, the 3d by the 4th, and so on downwards, the acceleration always increasing till it reached the lamina of greatest motion. The exact point of the maximum of motion cannot be



calculated, because it depends on friction; but it is probably much nearer the bottom than top, because the greater power of the current there sooner overcomes the effect of the friction. Ultimately, the curve will be sensibly varied by being swelled outwardly above, and retracted inwardly below, somewhat like *a k l m n o*, in the preceding diagram.

Indulging corollaries on this theory, let us suppose a plane surface, as a large sheet of cast-iron, let down by a cable from a boat, and made to present its surface to the current by a long vane fixed on its axis in the direction of the current. Would not the current below, laying hold of this plate, draw the boat down the stream with more rapidity than that with which it otherwise moves on the surface of the water? Again, at the cross current of the surface which flows into the Chafaleya, and endangers the drawing boats into that river, as you mention, page 18, would not the same plane surface, if let down into the under current, which moves in the direction of the bed of the main river, have the effect of drawing the vessel across the lateral current prevailing at its surface, and conduct the boat with safety along the channel of the river?

The preceding observations are submitted to your consideration. By drawing your attention to the subject, they will enable you, on further reflection, to confirm or correct your first opinion. If the latter, there would be time, before we print a volume, to make any alterations or additions to your paper which you might wish. We were much indebted for your communications on the subject of Louisiana. The substance of what was received from you, as well as others, was digested together and printed, without letting it be seen from whom the particulars came, as some were of a nature to excite ill-will. Of these publications I sent you a copy. On the subject of the limits of Louisiana, nothing was said therein, because we thought it best first to have explanations with Spain. In the first visit, after receiving the treaty, which I paid to Monticello, which was in August, I availed myself of what I have there, to investigate the limits. While I was in Europe, I had purchased everything I could lay my hands on which related to any part of America, and particularly had a pretty full collection of the English, French and Spanish authors, on the subject of Louisiana. The information I got from these was entirely satisfactory, and I threw it into a shape which would easily take the form of a memorial. I now enclose you a copy of it. One single fact in it was taken from a publication in a newspaper,

supposed to be written by Judge Bay, who had lived in West Florida. This asserted that the country from the Iberville to the Perdido was to this day called Louisiana, and a part of the government of Louisiana. I wrote to you to ascertain that fact, and received the information you were so kind as to send me; on the receipt of which, I changed the form of the assertion, so as to adapt it to what I suppose to be the fact, and to reconcile the testimony I have received, to wit, that though the name and division of West Florida have been retained; and in strictness, that country is still called by that name; yet it is also called Louisiana in common parlance, and even in some authentic public documents. The fact, however, is not of much importance. It would only have been an *argumentum ad hominem*. Although I would wish the paper enclosed never to be seen by anybody but yourself, and that it should not even be mentioned that the facts and opinions therein stated are founded in public authority, yet I have no objections to their being freely advanced in conversation, and as private and individual opinion, believing it will be advantageous that the extent of our rights should be known to the inhabitants of the country; and that however we may compromise on our Western limits, we never shall on the Eastern.

I formerly acquainted you with the mission of Captain Lewis up the Missouri, and across from its head to the Pacific. He takes about a dozen men with him, is well provided with instruments, and qualified to give us the geography of the line he passes along with astronomical accuracy. He is now huddled opposite the mouth of the Missouri, ready to enter it on the opening of the season. He will be at least two years on the expedition. I propose to charge the Surveyor-general N. of Ohio, with a survey of the Mississippi from its source to the mouth of the Ohio, and with settling some other interesting points of geography in that quarter. Congress will probably authorize me to explore the greater waters on the western side of the Mississippi and Missouri, to their sources. In this case I should propose to send one party up the Panis river to its source, thence along the highlands to the source of the Radoneas river and down it to its mouth, giving the whole course of both parties, corrected by astronomical observation. These several surveys will enable us to prepare a map of Louisiana, which in its contour and main waters will be perfectly correct, and will give us a skeleton to be filled up with details hereafter. For what lies north of the Missouri, we suppose British industry will furnish that. As you live so near to the point of

departure of the lowest expedition, and possess and can acquire so much better the information, which may direct that to the best advantage, I have thought, if Congress should authorize the enterprise, to propose to you the unprofitable trouble of directing it. The party would consist of ten or twelve picked soldiers, volunteers with an officer, under the guidance of one or two persons qualified to survey and correct by observations of latitude and longitude, the latter lunar, and as well informed as we can get them in the departments of botany, natural history, and mineralogy. I am told there is a Mr. Walker in your town, and a Mr. Gillespie in North Carolina, possessing good qualifications. As you know them both, you can judge whether both are qualified, should two persons go, or which is best, should but one be sent, or whether there is any other person better qualified than either. Their pay would probably not exceed \$1000 a year, to which would be added their subsistence. All preparations would be to be made at Natchez and New Orleans on your order. Instructions similar to those of Captain Lewis would go from here, to be added to by what should occur to yourself, and you would be the centre for the communications from the party to the government. Still this is a matter of speculation only, as Congress are hurrying over their business for adjournment, and may leave this article of it unfinished. In that case what I have said will be as if I had not said it.

There is such a difference of opinion in Congress as to the government to be given to Louisiana, that they may continue the present one another year. I hope and urge their not doing it, and the establishment of a government on the spot capable of meeting promptly its own emergencies. Accept my friendly salutations, and assurances of great esteem and respect.

TO GIDEON GRANGER.

MONTICELLO, April 16, 1804.

DEAR SIR,—* * * * *

In our last conversation you mentioned a federal scheme afloat, of forming a coalition between the federalists and republicans, of what they called the seven eastern States. The idea was new to me, and after time for reflection I

had no opportunity of conversing with you again. The federalists know, that *eo nomine*, they are gone forever. Their object, therefore, is how to return into power under some other form. Undoubtedly they have but one means, which is to divide the republicans, join the minority, and barter with them for the cloak of their name. I say, *join the minority*; because the majority of the republicans not needing them, will not buy them. The minority, having no other means of ruling the majority, will give a price for auxiliaries, and that price must be principle. It is true that the federalists, needing their numbers also, must also give a price, and principle is the coin they must pay in. Thus a bastard system of federo-republicanism will rise on the ruins of the true principles of our revolution. And when this party is formed, who will constitute the majority of it, which majority is then to dictate? Certainly the federalists. Thus their proposition of putting themselves into gear with the republican minority, is exactly like Roger Sherman's proposition to add Connecticut to Rhode Island. The idea of forming seven eastern States is moreover clearly to form the basis of a separation of the Union. Is it possible that real republicans can be gulled by such a bait? And for what? What do they wish that they have not? Federal measures? That is impossible. Republican measures? Have they them not? Can any one deny, that in all important questions of principle, republicanism prevails? But do they want that their individual will shall govern the majority? They may purchase the gratification of this unjust wish, for a little time, at a great price; but the federalists must not have the passions of other men, if, after getting thus into the seat of power, they suffer themselves to be governed by their minority. This minority may say, that whenever they relapse into their own principles, they will quit them, and draw the seat from under them. They may quit them, indeed, but, in the meantime, all the venal will have become associated with them, and will give them a majority sufficient to keep them in place, and to enable them to eject the heterogeneous friends by whose aid they get again into power. I cannot believe any portion of real republicans will enter into this trap; and if they do, I do not believe they can carry with them the mass of their States, advancing so steadily as we see them, to an union of principle with their brethren. It will be found in this, as in all other similar cases, that crooked schemes will end by overwhelming their authors and coadjutors in disgrace, and that he alone who walks strict and upright, and who, in matters of opinion, will be contented that others should be as free as himself, and acquiesce when his opinion is fairly

overruled, will attain his object in the end. And that this may be the conduct of us all, I offer my sincere prayers, as well as for your health and happiness.

TO MR. GALLATIN.

May 30, 1804.

Although I know that it is best generally to assign no reason for a removal from office, yet there are also times when the declaration of a principle is advantageous. Such was the moment at which the New Haven letter appeared. It explained our principles to our friends, and they rallied to them. The public sentiment has taken a considerable stride since that, and seems to require that they should know again where we stand. I suggest therefore for your consideration, instead of the following passage in your letter to Bowen, "I think it due to candor at the same time to inform you, that I had for some time been determined to remove you from office, although a successor has not yet been appointed by the President, nor the precise time fixed for that purpose communicated to me;" to substitute this, "I think it due to candor at the same time to inform you, that the President considering that the patronage of public office should no longer be confided to one who uses it for active opposition to the national will, had, some time since, determined to place your office in other hands. But a successor not being yet fixed on, I am not able to name the precise time when it will take place."

My own opinion is, that the declaration of this principle will meet the entire approbation of all moderate republicans, and will extort indulgence from the warmer ones. Seeing that we do not mean to leave arms in the hands of active enemies, they will care the less at our tolerance of the inactive. Nevertheless, if you are strongly of opinion against such a declaration, let the letter go as you had written it.

TO BARON DE HUMBOLDT.

June 9, 1804

Thomas Jefferson asks leave to observe to Baron de Humboldt that the question of limits of Louisiana, between Spain and the United States is this. They claim to hold to the river Mexicana or Sabine, and from the head of that northwardly along the heads of the waters of the Mississippi, to the head of the Red river and so on. We claim to the North river from its mouth to the source either of its eastern or western branch, thence to the head of Red river, and so on. Can the Baron inform me what population may be between those lines, of white, red, or black people? And whether any and what mines are within them? The information will be thankfully received. He tenders him his respectful salutations.

TO MRS. ADAMS.

WASHINGTON, June 13, 1804.

DEAR MADAM,—The affectionate sentiments which you have had the goodness to express in your letter of May the 20th, towards my dear departed daughter, have awakened in me sensibilities natural to the occasion, and recalled your kindnesses to her, which I shall ever remember with gratitude and friendship. I can assure you with truth, they had made an indelible impression on her mind, and that to the last, on our meetings after long separations, whether I had heard lately of you, and how you did, were among the earliest of her inquiries. In giving you this assurance I perform a sacred duty for her, and, at the same time, am thankful for the occasion furnished me, of expressing my regret that circumstances should have arisen, which have seemed to draw a line of separation between us, The friendship with which you honored me has ever been valued, and fully reciprocated; and although events have been passing which might be trying to some minds, I never believed yours to be of that kind, nor felt that my own was. Neither my estimate of your character, nor the esteem founded in that, has ever been lessened for a single moment, although doubts whether it would be acceptable may have forbidden manifestations of it.

Mr. Adams' friendship and mine began at an earlier date. It accompanied us through long and important scenes. The different conclusions we had drawn from our political reading and reflections, were not permitted to lessen personal esteem; each party being conscious they were the result of an honest conviction in the other. Like differences of opinion existing among our fellow citizens, attached them to one or the other of us, and produced a rivalry in their minds which did not exist in ours. We never stood in one another's way; for if either had been withdrawn at any time, his favorers would not have gone over to the other, but would have sought for some one of homogeneous opinions. This consideration was sufficient to keep down all jealousy between us, and to guard our friendship from any disturbance by sentiments of rivalry; and I can say with truth, that one act of Mr. Adams' life, and one only, ever gave me a moment's personal displeasure. I did consider his last appointments to office as personally unkind. They were from among my most ardent political enemies, from whom no faithful co-operation could ever be expected; and laid me under the embarrassment of acting through men whose views were to defeat mine, or to encounter the odium of putting others in their places. It seems but common justice to leave a successor free to act by instruments of his own choice. If my respect for him did not permit me to ascribe the whole blame to the influence of others, it left something for friendship to forgive, and after brooding over it for some little time, and not always resisting the expression of it, I forgave it cordially, and returned to the same state of esteem and respect for him which had so long subsisted. Having come into life a little later than Mr. Adams, his career has preceded mine, as mine is followed by some other; and it will probably be closed at the same distance after him which time originally placed between us. I maintain for him, and shall carry into private life, an uniform and high measure of respect and good will, and for yourself a sincere attachment.

I have thus, my dear Madam, opened myself to you without reserve, which I have long wished an opportunity of doing; and without knowing how it will be received, I feel relief from being unbosomed. And I have now only to entreat your forgiveness for this transition from a subject of domestic affliction, to one which seems of a different aspect. But though connected with political events, it has been viewed by me most strongly in its unfortunate bearings on my private friendships. The injury these have

sustained has been a heavy price for what has never given me equal pleasure. That you may both be favored with health, tranquillity and long life, is the prayer of one who tenders you the assurance of his highest consideration and esteem.

TO GOVERNOR PAGE.

WASHINGTON, June 25, 1804.

Your letter, my dear friend, of the 25th ultimo, is a new proof of the goodness of your heart, and the part you take in my loss marks an affectionate concern for the greatness of it. It is great indeed. Others may lose of their abundance, but I, of my want, have lost even the half of all I had. My evening prospects now hang on the slender thread of a single life. Perhaps I may be destined to see even this last cord of parental affection broken! The hope with which I had looked forward to the moment, when, resigning public cares to younger hands, I was to retire to that domestic comfort from which the last great step is to be taken, is fearfully blighted. When you and I look back on the country over which we have passed, what a field of slaughter does it exhibit! Where are all the friends who entered it with us, under all the inspiring energies of health and hope? As if pursued by the havoc of war, they are strewn by the way, some earlier, some later, and scarce a few stragglers remain to count the numbers fallen, and to mark yet, by their own fall, the last footsteps of their party. Is it a desirable thing to bear up through the heat of the action, to witness the death of all our companions, and merely be the last victim? I doubt it. We have, however, the traveller's consolation. Every step shortens the distance we have to go; the end of our journey is in sight, the bed wherein we are to rest, and to rise in the midst of the friends we have lost. "We sorrow not then as others who have no hope;" but look forward to the day which "joins us to the great majority." But whatever is to be our destiny, wisdom, as well as duty, dictates that we should acquiesce in the will of Him whose it is to give and take away, and be contented in the enjoyment of those who are still permitted to be with us. Of those connected by blood, the number does not depend on us. But friends we have, if we have merited them. Those of our

earliest years stand nearest in our affections. But in this too, you and I have been unlucky. Of our college friends (and they are the dearest) how few have stood with us in the great political questions which have agitated our country; and these were of a nature to justify agitation. I did not believe the Lilliputian fetters of that day strong enough to have bound so many. Will not Mrs. Page, yourself and family, think it prudent to seek a healthier region for the months of August and September? And may we not flatter ourselves that you will cast your eye on Monticello? We have not many summers to live. While fortune places us then within striking distance, let us avail ourselves of it, to meet and talk over the tales of other times.

Present me respectfully to Mrs. Page, and accept yourself my friendly salutations, and assurances of constant affection.

TO JUDGE TYLER.

WASHINGTON, June 28, 1801.

DEAR SIR,—Your favor of the 10th instant has been duly received. Amidst the direct falsehoods, the misrepresentations of truth, the calumnies and the insults resorted to by a faction to mislead the public mind, and to overwhelm those entrusted with its interests, our support is to be found in the approving voice of our conscience and country, in the testimony of our fellow citizens, that their confidence is not shaken by these artifices. When to the plaudits of the honest multitude, the sober approbation of the sage in his closet is added, it becomes a gratification of an higher order. It is the sanction of wisdom superadded to the voice of affection. The terms, therefore, in which you are so good as to express your satisfaction with the course of the present administration cannot but give me great pleasure. I may err in my measures, but never shall deflect from the intention to fortify the public liberty by every possible means, and to put it out of the power of the few to riot on the labors of the many. No experiment can be more interesting than that we are now trying, and which we trust will end in establishing the fact, that man may be governed by reason and truth. Our first object should therefore be, to leave open to him all the avenues to truth. The most effectual hitherto found, is the freedom of the press. It is

therefore, the first shut up by those who fear the investigation of their actions. The firmness with which the people have withstood the late abuses of the press, the discernment they have manifested between truth and falsehood, show that they may safely be trusted to hear everything true and false, and to form a correct judgment between them. As little is it necessary to impose on their senses, or dazzle their minds by pomp, splendor, or forms. Instead of this artificial, how much surer is that real respect, which results from the use of their reason, and the habit of bringing everything to the test of common sense.

I hold it, therefore, certain, that to open the doors of truth, and to fortify the habit of testing everything by reason, are the most effectual manacles we can rivet on the hands of our successors to prevent their manacling the people with their own consent. The panic into which they were artfully thrown in 1798, the frenzy which was excited in them by their enemies against their apparent readiness to abandon all the principles established for their own protection, seemed for awhile to countenance the opinions of those who say they cannot be trusted with their own government. But I never doubted their rallying; and they did rally much sooner than I expected. On the whole, that experiment on their credulity has confirmed my confidence in their ultimate good sense and virtue.

I lament to learn that a like misfortune has enabled you to estimate the afflictions of a father on the loss of a beloved child. However terrible the possibility of such another accident, it is still a blessing for you of inestimable value that you would not even then descend childless to the grave. Three sons, and hopeful ones too, are a rich treasure. I rejoice when I hear of young men of virtue and talents, worthy to receive, and likely to preserve the splendid inheritance of self-government, which we have acquired and shaped for them.

The complement of midshipmen for the Tripoline squadron, is full; and I hope the frigates have left the Capes by this time. I have, however, this day, signed warrants of midshipmen for the two young gentlemen you recommended. These will be forwarded by the Secretary of the Navy. He tells me that their first services will be to be performed on board the gun boats.

Accept my friendly salutations, and assurances of great esteem and respect.

TO J. MADISON.

July 5, 1804.

We did not collect the sense of our brethren the other day by regular questions, but as far as I could understand from what was said, it appeared to be,—1. That an acknowledgment of our right to the Perdido, is a *sine qua non*, and no price to be given for it. 2. No absolute and perpetual relinquishment of right is to be made of the country east of the Rio Bravo del Norte, even in exchange for Florida. [I am not quite sure that this was the opinion of all.] 3. That a country may be laid off within which no further settlement shall be made by either party for a given time, say thirty years. This country to be from the North river eastwardly towards the Colorado, or even to, but not beyond the Mexican or Sabine river. To whatever river it be extended, it might from its source run north-west, as the most eligible direction; but a due north line would produce no restraint that we should feel in twenty years. This relinquishment, and two millions of dollars, to be the price of all the Floridas east of the Perdido, or to be apportioned to whatever part they will cede.

But on entering into conferences, both parties should agree that, during their continuance, neither should strengthen their situation between the Iberville, Mississippi, and Perdido, nor interrupt the navigation of the rivers therein. If they will not give such an order instantly, they should be told that we have for peace sake only, forbore till they could have time to give such an order, but that as soon as we receive notice of their refusal to give the order we shall intermit the exercise of our right of navigating the Mobile, and protect it, and increase our force there *pari passu* with them.

TO GOVERNOR CLAIBORNE.

WASHINGTON, July 7, 1804.

DEAR SIR,—In a letter of the 17th of April, which I wrote you from Monticello, I observed to you that as the legislative council for the territory of Orleans, was to be appointed by me, and our distance was great, and early communication on the subject was necessary, that it ought to be composed of men of integrity, of understanding, of clear property and influence among the people, well acquainted with the laws, customs, and habits of the country, and drawn from the different parts of the territory, whose population was considerable. And I asked the favor of you to inform me of the proper characters, with short sketches of the material outlines for estimating them; and I observed that a majority should be of sound American characters long established and esteemed there, and the rest of French or Spaniards, the most estimable and well affected. When in daily expectation of an answer from you, I received your favor of May 29th, whereby I perceive that my letter to you has never got to hand. I must therefore, at this late day, repeat my request to you, and ask an early answer, because after receiving it, I may perhaps have occasion to consult you again before a final determination. A letter *written* any time in August will find me at Monticello, near Milton, and had better be so directed. A blank commission for a Surveyor and Inspector for the port of Bayou St. John, will be forwarded to you to be filled up with any name you approve. I would prefer a native Frenchman, if you can find one proper and disposed to co-operate with us in extirpating that corruption which has prevailed in those offices under the former government, and had so familiarized itself as that men, otherwise honest, could look on that without horror. I pray you to be alive to the suppression of this odious practice, and that you bring to punishment and brand with eternal disgrace every man guilty of it, whatever be his station.

TO P. MAZZEI.

WASHINGTON, July 18, 1804.

MY DEAR SIR,—It is very long, I know, since I wrote you. So constant is the pressure of business that there is never a moment, scarcely, that something of public importance is not waiting for me. I have, therefore, on a principle

of conscience, thought it my duty to withdraw almost entirely from all private correspondence, and chiefly the trans-Atlantic; I scarcely write a letter a year to any friend beyond sea. Another consideration has led to this, which is the liability of my letters to miscarry, be opened, and made ill use of. Although the great body of our country are perfectly returned to their ancient principles, yet there remains a phalanx of old Tories and monarchists, more envenomed, as all their hopes become more desperate. Every word of mine which they can get hold of, however innocent, however orthodox even, is twisted, tormented, perverted, and, like the words of holy writ, are made to mean everything but what they were intended to mean. I trust little, therefore, unnecessarily in their way, and especially on political subjects. I shall not, therefore, be free to answer all the several articles of your letters.

On the subject of treaties, our system is to have none with any nation, as far as can be avoided. The treaty with England has therefore not been renewed, and all overtures for treaty with other nations have been declined. We believe, that with nations as with individuals, dealings may be carried on as advantageously, perhaps more so, while their continuance depends on a voluntary good treatment, as if fixed by a contract, which, when it becomes injurious to either, is made, by forced constructions, to mean what suits them, and becomes a cause of war instead of a bond of peace. We wish to be on the closest terms of friendship with Naples, and we will prove it by giving to her citizens, vessels and goods all the privileges of the most favored nation; and while we do this voluntarily, we cannot doubt they will voluntarily do the same for us. Our interests against the Barbary States being also the same, we have little doubt she will give us every facility to insure them, which our situation may ask and hers admit. It is not, then, from a want of friendship that we do not propose a treaty with Naples, but because it is against our system to embarrass ourselves with treaties, or to entangle ourselves at all with the affairs of Europe. The kind offices we receive from that government are more sensibly felt, as such, than they would be, if rendered only as due to us by treaty.

Five fine frigates left the Chesapeake the 1st instant for Tripoli, which, in addition to the force now there, will, I trust, recover the credit which Commodore Morris' two years' sleep lost us, and for which he has been broke. I think they will make Tripoli sensible, that they mistake their

interest in choosing war with us; and Tunis also, should she have declared war as we expect, and almost wish.

Notwithstanding this little diversion, we pay seven or eight millions of dollars annually of our public debt, and shall completely discharge it in twelve years more. That done, our annual revenue, now thirteen millions of dollars, which by that time will be twenty-five, will pay the expenses of any war we may be forced into, without new taxes or loans. The spirit of republicanism is now in almost all its ancient vigor, five-sixths of the people being with us. Fourteen of the seventeen States are completely with us, and two of the other three will be in one year. We have now got back to the ground on which you left us. I should have retired at the end of the first four years, but that the immense load of tory calumnies which have been manufactured respecting me, and have filled the European market, have obliged me to appeal once more to my country for a justification. I have no fear but that I shall receive honorable testimony by their verdict on those calumnies. At the end of the next four years I shall certainly retire. Age, inclination and principle all dictate this. My health, which at one time threatened an unfavorable turn, is now firm. The acquisition of Louisiana, besides doubling our extent, and trebling our quantity of fertile country, is of incalculable value, as relieving us from the danger of war. It has enabled us to do a handsome thing for Fayette. He had received a grant of between eleven and twelve thousand acres north of Ohio, worth, perhaps, a dollar an acre. We have obtained permission of Congress to locate it in Louisiana. Locations can be found adjacent to the city of New Orleans, in the island of New Orleans and in its vicinity, the value of which cannot be calculated. I hope it will induce him to come over and settle there with his family. Mr. Livingston having asked leave to return, General Armstrong, his brother-in-law, goes in his place: he is of the first order of talents.

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Remarkable deaths lately, are, Samuel Adams, Edmund Pendleton, Alexander Hamilton, Stephens Thompson Mason, Mann Page, Bellini, and Parson Andrews. To these I have the inexpressible grief of adding the name of my youngest daughter, who had married a son of Mr. Eppes, and has left two children. My eldest daughter alone remains to me, and has six children. This loss has increased my anxiety to retire, while it has dreadfully lessened

the comfort of doing it. Wythe, Dickinson, and Charles Thompson are all living, and are firm republicans. You informed me formerly of your marriage, and your having a daughter, but have said nothing in your late letters on that subject. Yet whatever concerns your happiness is sincerely interesting to me, and is a subject of anxiety, retaining as I do, cordial sentiments of esteem and affection for you. Accept, I pray you, my sincere assurances of this, with my most friendly salutations.

TO MRS. ADAMS.

WASHINGTON, July 22, 1804.

DEAR MADAM,—Your favor of the 1st instant was duly received, and I would not have again intruded on you, but to rectify certain facts which seem not to have been presented to you under their true aspect. My charities to Callendar are considered as rewards for his calumnies. As early, I think, as 1796, I was told in Philadelphia that Callendar, the author of the *Political Progress of Britain*, was in that city, a fugitive from persecution for having written that book, and in distress. I had read and approved the book; I considered him as a man of genius, unjustly persecuted. I knew nothing of his private character, and immediately expressed my readiness to contribute to his relief, and to serve him. It was a considerable time after, that, on application from a person who thought of him as I did, I contributed to his relief, and afterwards repeated the contribution. Himself I did not see till long after, nor ever more than two or three times. When he first began to write, he told some useful truths in his coarse way; but nobody sooner disapproved of his writing than I did, or wished more that he would be silent. My charities to him were no more meant as encouragements to his scurrilities, than those I give to the beggar at my door are meant as rewards for the vices of his life, and to make them chargeable to myself. In truth, they would have been greater to him, had he never written a word after the work for which he fled from Britain. With respect to the calumnies and falsehoods which writers and printers at large published against Mr. Adams, I was as far from stooping to any concern or approbation of them, as Mr. Adams was respecting those of Porcupine, Fenno, or Russel, who published

volumes against me for every sentence vended by their opponents against Mr. Adams. But I never supposed Mr. Adams had any participation in the atrocities of these editors, or their writers. I knew myself incapable of that base warfare, and believed him to be so. On the contrary, whatever I may have thought of the acts of the administration of that day, I have ever borne testimony to Mr. Adams' personal worth; nor was it ever impeached in my presence, without a just vindication of it on my part. I never supposed that any person who knew either of us, could believe that either of us meddled in that dirty work. But another fact is, that I "liberated a wretch who was suffering for a libel against Mr. Adams." I do not know who was the particular wretch alluded to; but I discharged every person under punishment or prosecution under the sedition law, because I considered, and now consider, that law to be a nullity, as absolute and as palpable as if Congress had ordered us to fall down and worship a golden image; and that it was as much my duty to arrest its execution in every stage, as it would have been to have rescued from the fiery furnace those who should have been cast into it for refusing to worship the image. It was accordingly done in every instance, without asking what the offenders had done, or against whom they had offended, but whether the pains they were suffering were inflicted under the pretended sedition law. It was certainly possible that my motives for contributing to the relief of Callendar, and liberating sufferers under the sedition law, might have been to protect, encourage, and reward slander; but they may also have been those which inspire ordinary charities to objects of distress, meritorious or not, or the obligation of an oath to protect the Constitution, violated by an unauthorized act of Congress. Which of these were my motives, must be decided by a regard to the general tenor of my life. On this I am not afraid to appeal to the nation at large, to posterity, and still less to that Being who sees himself our motives, who will judge us from his own knowledge of them, and not on the testimony of Porcupine or Fenno.

You observe, there has been one other act of my administration personally unkind, and suppose it will readily suggest itself to me. I declare on my honor, Madam, I have not the least conception what act was alluded to. I never did a single one with an unkind intention. My sole object in this letter being to place before your attention, that the acts imputed to me are either such as are falsely imputed, or as might flow from good as well as bad

motives, I shall make no other addition, than the assurances of my continued wishes for the health and happiness of yourself and Mr. Adams.

TO JAMES MADISON.

MONTICELLO, August 15, 1804.

DEAR SIR,—Your letter dated the 7th should probably have been of the 14th, as I received it only by that day's post. I return you Monroe's letter, which is of an awful complexion; and I do not wonder the communications it contains made some impression on him. To a person placed in Europe, surrounded by the immense resources of the nations there, and the greater wickedness of their courts, even the limits which nature imposes on their enterprises are scarcely sensible. It is impossible that France and England should combine for any purpose; their mutual distrust and deadly hatred of each other admit no co-operation. It is impossible that England should be willing to see France re-possess Louisiana, or get footing on our continent, and that France should willingly see the United States re-annexed to the British dominions. That the Bourbons should be replaced on their throne and agree to any terms of restitution, is possible; but that they and England joined, could recover us to British dominion, is impossible. If these things are not so, then human reason is of no aid in conjecturing the conduct of nations. Still, however, it is our unquestionable interest and duty to conduct ourselves with such sincere friendship and impartiality towards both nations, as that each may see unequivocally, what is unquestionably true, that we may be very possibly driven into her scale by unjust conduct in the other. I am so much impressed with the expediency of putting a termination to the right of France to patronize the rights of Louisiana, which will cease with their complete adoption as citizens of the United States, that I hope to see that take place on the meeting of Congress. I enclosed you a paragraph from a newspaper respecting St. Domingo, which gives me uneasiness. Still I conceive the British insults in our harbor as more threatening. We cannot be respected by France as a neutral nation, nor by the world ourselves as an independent one, if we do not take effectual measures to support, at every risk, our authority in our own harbors. I shall write to Mr. Wagner directly

(that a post may not be lost by passing through you) to send us blank commissions for Orleans and Louisiana, ready sealed, to be filled up, signed and forwarded by us. Affectionate salutations and constant esteem.

TO GOVERNOR CLAIBORNE.

MONTICELLO, August 13, 1804.

DEAR SIR,—Various circumstances of delay have prevented my forwarding till now, the general arrangements of the government of the territory of Orleans. Enclosed herewith you will receive the commissions. Among these is one for yourself as Governor. With respect to this I will enter into frank explanations. This office was originally destined for a person^[20] whose great services and established fame would have rendered him peculiarly acceptable to the nation at large. Circumstances, however, exist, which do not now permit his nomination, and perhaps may not at any time hereafter. That, therefore, being suspended and entirely contingent, your services have been so much approved as to leave no desire to look elsewhere to fill the office. Should the doubts you have sometimes expressed, whether it would be eligible for you to continue, still exist in your mind, the acceptance of the commission gives you time to satisfy yourself by further experience, and to make the time and manner of withdrawing; should you ultimately determine on that, agreeable to yourself. Be assured that whether you continue or retire, it will be with every disposition on my part to be just and friendly to you.

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I salute you with friendship and respect.

TO THE SECRETARY OF THE TREASURY.

MONTICELLO, September 8, 1804.

DEAR SIR,—As we shall have to lay before Congress the proceedings of the British vessels at New York, it will be necessary for us to say to them with certainty which specific aggressions were committed within the common law, which within the admiralty jurisdiction, and which on the high seas. The rule of the common law is that wherever you can see from land to land, all the water within the line of sight is in the body of the adjacent county and within common law jurisdiction. Thus, if in this curvature  you can see from *a* to *b*, all the water within the line of sight is within common law jurisdiction, and a murder committed at *c* is to be tried as at common law. Our coast is generally visible, I believe, by the time you get within about twenty-five miles. I suppose that at New York you must be some miles out of the Hook before the opposite shores recede twenty-five miles from each other. The three miles of maritime jurisdiction is always to be counted from this line of sight. It will be necessary we should be furnished with the most accurate chart to be had of the shores and waters in the neighborhood of the Hook; and that we may be able to ascertain on it the spot of every aggression. I presume it would be within the province of Mr. Gelston to procure such a chart, and to ascertain the positions of the offending vessels. If I am right in this, will you be so good as to instruct him so to do?

I think the officers of the federal government are meddling too much with the public elections. Will it be best to admonish them privately or by proclamation? This for consideration till we meet. I shall be at Washington by the last day of the month. I salute you with affection and respect.

TO MRS. ADAMS.

MONTICELLO, September 11, 1804.

Your letter, Madam, of the 18th of August has been some days received, but a press of business has prevented the acknowledgment of it: perhaps, indeed, I may have already trespassed too far on your attention. With those who wish to think amiss of me, I have learned to be perfectly indifferent; but where I know a mind to be ingenuous, and to need only truth to set it to rights, I cannot be as passive. The act of personal unkindness alluded to in

your former letter, is said in your last to have been the removal of your eldest son from some office to which the judges had appointed him. I conclude then he must have been a commissioner of bankruptcy. But I declare to you, on my honor, that this is the first knowledge I have ever had that he was so. It may be thought, perhaps, that I ought to have inquired who were such, before I appointed others. But it is to be observed, that the former law permitted the judges to name commissioners occasionally only, for every case as it arose, and not to make them permanent officers. Nobody, therefore, being in office, there could be no removal. The judges, you well know, have been considered as highly federal; and it was noted that they confined their nominations exclusively to federalists. The Legislature, dissatisfied with this, transferred the nomination to the President, and made the offices permanent. The very object in passing the law was, that he should correct, not confirm, what was deemed the partiality of the judges. I thought it therefore proper to inquire, not whom they had employed, but whom I ought to appoint to fulfil the intentions of the law. In making these appointments, I put in a proportion of federalists, equal, I believe, to the proportion they bear in numbers through the Union generally. Had I known that your son had acted, it would have been a real pleasure to me to have preferred him to some who were named in Boston, in what was deemed the same line of politics. To this I should have been led by my knowledge of his integrity, as well as my sincere dispositions towards yourself and Mr. Adams.

You seem to think it devolved on the judges to decide on the validity of the sedition law. But nothing in the Constitution has given them a right to decide for the executive, more than to the executive to decide for them. Both magistrates are equally independent in the sphere of action assigned to them. The judges, believing the law constitutional, had a right to pass a sentence of fine and imprisonment; because the power was placed in their hands by the Constitution. But the executive, believing the law to be unconstitutional, were bound to remit the execution of it; because that power has been confided to them by the Constitution. That instrument meant that its coordinate branches should be checks on each other. But the opinion which gives to the judges the right to decide what laws are constitutional, and what not, not only for themselves in their own sphere of action, but for the Legislature and executive also, in their spheres, would

make the judiciary a despotic branch. Nor does the opinion of the unconstitutionality, and consequent nullity of that law, remove all restraint from the overwhelming torrent of slander, which is confounding all vice and virtue, all truth and falsehood, in the United States. The power to do that is fully possessed by the several State Legislatures. It was reserved to them, and was denied to the General Government, by the Constitution, according to our construction of it. While we deny that Congress have a right to control the freedom of the press, we have ever asserted the right of the States, and their exclusive right, to do so. They have accordingly, all of them, made provisions for punishing slander, which those who have time and inclination, resort to for the vindication of their characters. In general, the State laws appear to have made the presses responsible for slander as far as is consistent with its useful freedom. In those States where they do not admit even the truth of allegations to protect the printer, they have gone too far.

The candor manifested in your letter, and which I ever believed you to possess, has alone inspired the desire of calling your attention, once more, to those circumstances of fact and motive by which I claim to be judged. I hope you will see these intrusions on your time to be, what they really are, proofs of my great respect for you. I tolerate with the utmost latitude the right of others to differ from me in opinion without imputing to them criminality. I know too well the weakness and uncertainty of human reason to wonder at its different results. Both of our political parties, at least the honest part of them, agree conscientiously in the same object—the public good; but they differ essentially in what they deem the means of promoting that good. One side believes it best done by one composition of the governing powers; the other, by a different one. One fears most the ignorance of the people; the other, the selfishness of rulers independent of them. Which is right, time and experience will prove. We think that one side of this experiment has been long enough tried, and proved not to promote the good of the many; and that the other has not been fairly and sufficiently tried. Our opponents think the reverse. With whichever opinion the body of the nation concurs, that must prevail. My anxieties on this subject will never carry me beyond the use of fair and honorable means, of truth and reason; nor have they ever lessened my esteem for moral worth, nor alienated my affections from a single friend, who did not first withdraw

himself. Whenever this has happened, I confess I have not been insensible to it; yet have ever kept myself open to a return of their justice. I conclude with sincere prayers for your health and happiness, that yourself and Mr. Adams may long enjoy the tranquillity you desire and merit, and see in the prosperity of your family what is the consummation of the last and warmest of human wishes.

TO J. F. MERCER, ESQ.

WASHINGTON, October 9, 1804.

DEAR SIR,—Your favor of September 28th, in behalf of Mr. Harwood, was duly received; the grounds on which one of the competitors stood, set aside of necessity all hesitation. Mr. Hall's having been a member of the Legislature, a Speaker of the Representatives, and a member of the Executive Council, were evidences of the respect of the State towards him, which our respect for the State could not neglect. You say you are forcibly led to say something on another subject very near your heart, which you defer to another opportunity. I presume it to be on your political situation, and perhaps the degree in which it may bear on our friendship. In the first case I declare to you that I have never suffered political opinion to enter into the estimate of my private friendships; nor did I ever abdicate the society of a friend on that account till he had first withdrawn from mine. Many have left me on that account, but with many I still preserve affectionate intercourse, only avoiding to speak on politics, as with a Quaker or Catholic I would avoid speaking on religion. But I do not apply this to you; for however confidently it has been affirmed, I have not supposed that you have changed principles. What in fact is the difference of principle between the two parties here? The one desires to preserve an entire independence of the executive and legislative branches on each other, and the dependence of both on the same source—the free election of the people. The other party wishes to lessen the dependence of the Executive and of one branch of the Legislature on the people, some by making them hold for life, some hereditary, and some even for giving the Executive an influence by patronage or corruption over the remaining popular branch, so

as to reduce the elective franchise to its minimum. I shall not believe you gone over to the latter opinions till better evidence than I have had. Yet were it the case, I repeat my declaration that exclusive of political coincidence of opinion, I have found a sufficiency of other qualities in you to value and cherish your friendship.

TO MR. LITHSON.

WASHINGTON, January 4, 1805.

DEAR SIR,—Your favor of December 4th has been duly received. Mr. Duane informed me that he meant to publish a new edition of the Notes on Virginia, and I had in contemplation some particular alterations which would require little time to make. My occupations by no means permit me at this time to revise the text, and make those changes in it which I should now do. I should in that case certainly qualify several expressions in the nineteenth chapter, which have been construed differently from what they were intended. I had under my eye when writing, the manufacturers of the great cities in the old countries, at the time present, with whom the want of food and clothing necessary to sustain life, has begotten a depravity of morals, a dependence and corruption, which renders them an undesirable accession to a country whose morals are sound. My expressions looked forward to the time when our own great cities would get into the same state. But they have been quoted as if meant for the present time here. As yet our manufacturers are as much at their ease, as independent and moral as our agricultural inhabitants, and they will continue so as long as there are vacant lands for them to resort to; because whenever it shall be attempted by the other classes to reduce them to the minimum of subsistence, they will quit their trades and go to laboring the earth. A first question is, whether it is desirable for us to receive at present the dissolute and demoralized handicraftsmen of the old cities of Europe? A second and more difficult one is, when even good handicraftsmen arrive here, is it better for them to set up their trade, or go to the culture of the earth? Whether their labor in their trade is worth more than their labor on the soil, increased by the creative energies of the earth? Had I time to revise that chapter, this

question should be discussed, and other views of the subject taken, which are presented by the wonderful changes which have taken place here since 1781, when the Notes on Virginia were written. Perhaps when I retire, I may amuse myself with a serious review of this work; at present it is out of the question. Accept my salutations and good wishes.

TO J. TAYLOR, ESQ.

WASHINGTON, January 6, 1805.

DEAR SIR,—Your favor of December 26th has been duly received, as a proof of your friendly partialities to me, of which I have so often had reason to be sensible. My opinion originally was that the President of the United States should have been elected for seven years, and forever ineligible afterwards. I have since become sensible that seven years is too long to be irremovable, and that there should be a peaceable way of withdrawing a man in midway who is doing wrong. The service for eight years, with a power to remove at the end of the first four, comes nearly to my principle as corrected by experience; and it is in adherence to that, that I determine to withdraw at the end of my second term. The danger is that the indulgence and attachments of the people will keep a man in the chair after he becomes a dotard, that re-election through life shall become habitual, and election for life follow that. General Washington set the example of voluntary retirement after eight years. I shall follow it. And a few more precedents will oppose the obstacle of habit to any one after awhile who shall endeavor to extend his term. Perhaps it may beget a disposition to establish it by an amendment of the Constitution. I believe I am doing right therefore in pursuing my principle. I had determined to declare my intention, but I have consented to be silent on the opinion of friends, who think it best not to put a continuance out of my power in defiance of all circumstances. There is, however, but one circumstance which could engage my acquiescence in another election; to wit, such a division about a successor, as might bring in a monarchist. But that circumstance is impossible. While, therefore, I shall make no formal declaration to the public of my purpose, I have freely let it be understood in private conversation. In this I am persuaded yourself and my friends

generally will approve of my views. And should I, at the end of a second term, carry into retirement all the favor which the first has acquired, I shall feel the consolation of having done all the good in my power, and expect with more than composure the termination of a life no longer valuable to others or of importance to myself. Accept my affectionate salutations and assurances of great esteem and respect.

TO MR. GALLATIN.

January 26, 1805.

The question arising on Mr. Simons' letter of January 10th is whether sea-letters shall be given to the vessels of citizens neither born nor residing in the United States. Sea-letters are the creatures of treaties. No act of the ordinary Legislature requires them. The only treaties now existing with us, and calling for them, are those with Holland, Spain, Prussia, and France. In the two former we have stipulated that when the other party shall be at war, the vessels belonging to our people shall be furnished with sea-letters; in the two latter that the *vessels of the neutral* party shall be so furnished. France being now at war, the sea-letter is made necessary for our vessels; and consequently it is our duty to furnish them. The laws of the United States confine registers to *home-built* vessels belonging to citizens; but they do not make it unlawful for citizens to own foreign-built vessels; and the treaties give the right of sea-letters to all vessels belonging to citizens.

But who are citizens? The laws of registry consider a citizenship obtained by a foreigner who comes merely for that purpose, and returns to reside in his own country, as fraudulent, and deny a register to such an one, even owning home-built vessels. I consider the distinction as sound and safe, and that we ought not to give sea-letters to a vessel belonging to such a pseudo-citizen. It compromises our peace, by lending our flag to cover the goods of one of the belligerents to the injury of the other. It produces vexatious searches on the vessels of our real citizens, and gives to others the participation of our neutral advantages, which belong to the real citizen only. And inasmuch as an uniformity of rule between the different branches of the government is convenient and proper, I would propose as a rule that

sea-letters be given to all vessels *belonging* to citizens under whose ownership of a registered vessel such vessel would be entitled to the benefits of her register. Affectionate salutations.

TO MR. NICHOLSON.

WASHINGTON, January 29, 1805.

DEAR SIR,—Mr. Eppes has this moment put into my hands your letter of yesterday, asking information on the subject of the gunboats proposed to be built. I lose no time in communicating to you fully my whole views respecting them, premising a few words on the system of fortifications. Considering the harbors which, from their situation and importance, are entitled to defence, and the estimates we have seen of the fortifications planned for some of them, this system cannot be completed on a moderate scale for less than fifty millions of dollars, nor manned in time of war, with less than fifty thousand men, and in peace, two thousand. And when done they avail little; because all military men agree, that wherever a vessel may pass a fort without tacking under her guns, which is the case at all our seaport towns, she may be annoyed more or less, according to the advantages of the position, but can never be prevented. Our own experience during the war proved this on different occasions. Our predecessors have, nevertheless, proposed to go into this system, and had commenced it. But no law requiring us to proceed, we have suspended it.

If we cannot hinder vessels from entering our harbors, we should turn our attention to the putting it out of their power to lie, or come to, before a town, to injure it. Two means of doing this may be adopted in aid of each other. 1. Heavy cannon on travelling carriages, which may be moved to any point on the bank or beach most convenient for dislodging the vessel. A sufficient number of these should be lent to each seaport town, and their militia trained to them. The executive is authorized to do this; it has been done in a small degree, and will now be done more competently.

2. Having cannon on floating batteries or boats, which may be so stationed as to prevent a vessel entering the harbor, or force her, after entering, to

depart. There are about fifteen harbors in the United States which ought to be in a state of substantial defence. The whole of these would require, according to the best opinions, two hundred and forty gun-boats. Their cost was estimated by Captain Rogers at two thousand dollars each; but we had better say four thousand dollars. The whole would cost one million of dollars. But we should allow ourselves ten years to complete it, unless circumstances should force it sooner. There are three situations in which the gun-boat may be. 1. Hauled up under a shed, in readiness to be launched and manned by the seamen and militia of the town on short notice. In this situation she costs nothing but an enclosure, or a sentinel to see that no mischief is done to her. 2. Afloat, and with men enough to navigate her in harbor and take care of her, but depending on receiving her crew from the town on short warning. In this situation, her annual expense is about two thousand dollars, as by an official estimate at the end of this letter. 3. Fully manned for action. Her annual expense in this situation is about eight thousand dollars, as per estimate subjoined. When there is general peace, we should probably keep about six or seven afloat in the second situation; their annual expense twelve to fourteen thousand dollars; the rest all hauled up. When France and England are at war, we should keep, at the utmost, twenty-five in the second situation; their annual expense, fifty thousand dollars. When we should be at war ourselves, some of them would probably be kept in the third situation, at an annual expense of eight thousand dollars; but how many, must depend on the circumstances of the war. We now possess ten, built and building. It is the opinion of those consulted, that fifteen more would enable us to put every harbor under our view into a respectable condition; and that this should limit the views of the present year. This would require an appropriation of sixty thousand dollars; and I suppose *that* the best way of limiting it, without declaring the number, as perhaps that sum would build more. I should think it best not to give a detailed report, which exposes our policy too much. A bill, with verbal explanations, will suffice for the information of the House. I do not know whether General Wilkinson would approve the printing his paper. If he would, it would be useful.

Accept affectionate and respectful salutations.

TO MR. VOLNEY.

WASHINGTON, February 8, 1805.

DEAR SIR,—Your letter of November the 26th came to hand May the 14th; the books some time after, which were all distributed according to direction. The copy for the East Indies went immediately by a safe conveyance. The letter of April the 28th, and the copy of your work accompanying that, did not come to hand till August. That copy was deposited in the Congressional library. It was not till my return here from my autumnal visit to Monticello, that I had an opportunity of reading your work. I have read it, and with great satisfaction. Of the first part I am less a judge than most people, having never travelled westward of Staunton, so as to know anything of the face of the country; nor much indulged myself in geological inquiries, from a belief that the skin-deep scratches which we can make or find on the surface of the earth, do not repay our time with as certain and useful deductions as our pursuits in some other branches. The subject of our winds is more familiar to me. On that, the views you have taken are always great, supported in their outlines by your facts; and though more extensive observations, and longer continued, may produce some anomalies, yet they will probably take their place in this first great canvas which you have sketched. In no case, perhaps, does habit attach our choice or judgment more than in climate. The Canadian glows with delight in his sleigh and snow; the very idea of which gives me the shivers. The comparison of climate between Europe and North America, taking together its corresponding parts, hangs chiefly on three great points. 1. The changes between heat and cold in America are greater and more frequent, and the extremes comprehend a greater scale on the thermometer in America than in Europe. Habit, however, prevents these from affecting us more than the smaller changes of Europe affect the European. But he is greatly affected by ours. 2. Our sky is always clear; that of Europe always cloudy. Hence a greater accumulation of heat here than there, in the same parallel. 3. The changes between wet and dry are much more frequent and sudden in Europe than in America. Though we have double the rain, it falls in half the time. Taking all these together, I prefer much the climate of the United States to that of Europe. I think it a more cheerful one. It is our cloudless sky which has eradicated from our constitutions all disposition to hang ourselves, which we might otherwise have inherited from our English

ancestors. During a residence of between six and seven years in Paris, I never, but once, saw the sun shine through a whole day, without being obscured by a cloud in any part of it; and I never saw the moment, in which, viewing the sky through its whole hemisphere, I could say there was not the smallest speck of a cloud in it. I arrived at Monticello, on my return from France, in January; and during only two months' stay there, I observed to my daughters, who had been with me to France, that, twenty odd times within that term, there was not a speck of a cloud in the whole hemisphere. Still I do not wonder that an European should prefer his gray to our azure sky. Habit decides our taste in this, as in most other cases.

The account you give of the yellow fever, is entirely agreeable to what we then knew of it. Further experience has developed more and more its peculiar character. Facts appear to have established that it is originated here by a local atmosphere, which is never generated but in the lower, closer, and dirtier parts of our large cities, in the neighborhood of the water: and that, to catch the disease, you must enter the local atmosphere. Persons having taken the disease in the infected quarter, and going into the country, are nursed and buried by their friends, without an example of communicating it. A vessel going from the infected quarter, and carrying its atmosphere in its hold into another State, has given the disease to every person who there entered her. These have died in the arms of their families, without a single communication of the disease. It is certainly, therefore, an epidemic, not a contagious disease; and calls on the chemists for some mode of purifying the vessel by a decomposition of its atmosphere, if ventilation be found insufficient. In the long scale of bilious fevers, graduated by many shades, this is probably the last and most mortal term. It seizes the native of the place equally with strangers. It has not been long known in any part of the United States. The shade next above it, called the stranger's fever, has been coëval with the settlement of the larger cities in the Southern parts, to wit, Norfolk, Charleston, New Orleans. Strangers going to these places in the months of July, August, or September, find this fever as mortal as the genuine yellow fever. But it rarely attacks those who have resided in them some time. Since we have known that kind of yellow fever which is no respecter of persons, its name has been extended to the stranger's fever, and every species of bilious fever which produces a black vomit, that is to say, a discharge of very dark bile. Hence we hear of yellow fever on the

Alleghany mountains, in Kentucky, &c. This is a matter of definition only; but it leads into error those who do not know how loosely and how interestedly some physicians think and speak. So far as we have yet seen, I think we are correct in saying, that the yellow fever, which seizes on all indiscriminately, is an ultimate degree of bilious fever never known in the United States till lately, nor farther South, as yet, than Alexandria; and that what they have recently called the yellow fever in New Orleans, Charleston and Norfolk, is what has always been known in those places as confined chiefly to strangers, and nearly as mortal *to them*, as the other is to *all* its subjects. But both grades are local; the stranger's fever less so, as it sometimes extends a little into the neighborhood; but the yellow fever rigorously so, confined within narrow and well-defined limits, and not communicable out of those limits. Such a constitution of atmosphere being requisite to originate this disease as is generated only in low, close, and ill-cleansed parts of a town, I have supposed it practicable to prevent its generation by building our cities on a more open plan. Take, for instance, the chequer board for a plan. Let the black squares only be building squares, and the white ones be left open, in turf and trees. Every square of houses will be surrounded by four open squares, and every house will front an open square. The atmosphere of such a town would be like that of the country, insusceptible of the miasmata which produce yellow fever. I have accordingly proposed that the enlargements of the city of New Orleans, which must immediately take place, shall be on this plan. But it is only in ease of enlargements to be made, or of cities to be built, that this means of prevention can be employed.

The *genus irritabile vatum* could not let the author of the Ruins publish a new work, without seeking in it the means of discrediting that puzzling composition. Some one of those holy calumniators has selected from your new work every scrap of a sentence, which, detached from its context, could displease an American reader. A cento has been made of these, which has run through a particular description of newspapers, and excited a disapprobation even in friendly minds, which nothing but the reading of the book will cure. But time and truth will at length correct error.

Our countrymen are so much occupied in the busy scenes of life, that they have little time to write or invent. A good invention here, therefore, is such a rarity as it is lawful to offer to the acceptance of a friend. A Mr. Hawkins

of Frankford, near Philadelphia, has invented a machine which he calls a polygraph, and which carries two, three, or four pens. That of two pens, with which I am now writing, is best; and is so perfect that I have laid aside the copying-press, for a twelve month past, and write always with the polygraph. I have directed one to be made, of which I ask your acceptance. By what conveyance I shall send it while Havre is blockaded, I do not yet know. I think you will be pleased with it, and will use it habitually as I do; because it requires only that degree of mechanical attention which I know you to possess. I am glad to hear that M. Cabanis is engaged in writing on the reformation of medicine. It needs the hand of a reformer, and cannot be in better hands than his. Will you permit my respects to him and the Abbe de la Roche to find a place here?

A word now on our political state. The two parties which prevailed with so much violence when you were here, are almost wholly melted into one. At the late Presidential election I have received one hundred and sixty-two votes against fourteen only. Connecticut is still federal by a small majority; and Delaware on a poise, as she has been since 1775, and will be till Anglomany with her yields to Americanism. Connecticut will be with us in a short time. Though the people in mass have joined us, their leaders had committed themselves too far to retract. Pride keeps them hostile; they brood over their angry passions, and give them vent in the newspapers which they maintain. They still make as much noise as if they were the whole nation. Unfortunately, these being the mercantile papers, published chiefly in the sea-ports, are the only ones which find their way to Europe, and make very false impressions there. I am happy to hear that the late derangement of your health is going off, and that you are re-established. I sincerely pray for the continuance of that blessing, and with my affectionate salutations, tender you assurances of great respect and attachment.

P. S. The sheets which you receive are those of the copying-pen of the polygraph, not of the one with which I have written.

TO JUDGE TYLER.

MONTICELLO, March 29, 1805.

DEAR SIR,—Your favor of the 17th found me on a short visit to this place, and I observe in it with great pleasure a continuance of your approbation of the course we are pursuing, and particularly the satisfaction you express with the last inaugural address. The first was, from the nature of the case, all profession and promise. Performance, therefore, seemed to be the proper office of the second. But the occasion restricted me to mention only the most prominent heads, and the strongest justification of these in the fewest words possible. The crusade preached against philosophy by the modern disciples of steady habits, induced me to dwell more in showing its effect with the Indians than the subject otherwise justified.

The war with Tripoli stands on two grounds of fact. 1st. It is made known to us by our agents with the three other Barbary States, that they only wait to see the event of this, to shape their conduct accordingly. If the war is ended by additional tribute, they mean to offer us the same alternative. 2dly. If peace was made, we should still, and shall ever, be obliged to keep a frigate in the Mediterranean to overawe rupture, or we must abandon that market. Our intention in sending Morris with a respectable force, was to try whether peace could be forced by a coercive enterprise on their town. His inexecution of orders baffled that effort. Having broke him, we try the same experiment under a better commander. If in the course of the summer they cannot produce peace, we shall recall our force, except one frigate and two small vessels, which will keep up a perpetual blockade. Such a blockade will cost us no more than a state of peace, and will save us from increased tributes, and the disgrace attached to them. There is reason to believe the example we have set, begins already to work on the dispositions of the powers of Europe to emancipate themselves from that degrading yoke. Should we produce such a revolution there, we shall be amply rewarded for what we have done. Accept my friendly salutations, and assurances of great respect and esteem.

TO DOCTOR LOGAN.

WASHINGTON, May 11, 1805.

DEAR SIR,—* * * * *

I see with infinite pain the bloody schism which has taken place among our friends in Pennsylvania and New York, and will probably take place in other States. The main body of both sections mean well, but their good intentions will produce great public evil. The minority, whichever section shall be the minority, will end in coalition with the federalists, and some compromise of principle; because these will not sell their aid for nothing. Republicanism will thus lose, and royalism gain, some portion of that ground which we thought we had rescued to good government. I do not express my sense of our misfortunes from any idea that they are remediable. I know that the passions of men will take their course, that they are not to be controlled but by despotism, and that this melancholy truth is the pretext for despotism. The duty of an upright administration is to pursue its course steadily, to know nothing of these family dissensions, and to cherish the good principles of both parties. The war *ad internecionem* which we have waged against federalism, has filled our latter times with strife and unhappiness. We have met it, with pain indeed, but with firmness, because we believed it the last convulsive effort of that Hydra, which in earlier times we had conquered in the field. But if any degeneracy of principle should ever render it necessary to give ascendancy to one of the rising sections over the other, I thank my God it will fall to some other to perform that operation. The only cordial I wish to carry into my retirement, is the undivided good will of all those with whom I have acted.

Present me affectionately to Mrs. Logan, and accept my salutations, and assurances of constant friendship and respect.

TO JUDGE SULLIVAN.

WASHINGTON, May 21, 1805.

DEAR SIR,—An accumulation of business, which I found on my return here from a short visit to Monticello, has prevented till now my acknowledgment of your favor of the 14th ultimo. This delay has given time to see the result of the contest in your State, and I cannot but congratulate you on the advance it manifests, and the certain prospect it offers that another year restores Massachusetts to the general body of the nation. You have indeed received the federal unction of lying and slandering. But who has not? Who will ever again come into eminent office, unanointed with this chrism? It seems to be fixed that falsehood and calumny are to be their ordinary engines of opposition; engines which will not be entirely without effect. The circle of characters equal to the first stations is not too large, and will be lessened by the voluntary retreat of those whose sensibilities are stronger than their confidence in the justice of public opinion. I certainly have known, and still know, characters eminently qualified for the most exalted trusts, who could not bear up against the brutal hackings and hewings of these heroes of Billingsgate. I may say, from intimate knowledge, that we should have lost the services of the greatest character of our country, had he been assailed with the degree of abandoned licentiousness now practised. The torture he felt under rare and slight attacks, proved that under those of which the federal bands have shown themselves capable, he would have thrown up the helm in a burst of indignation. Yet this effect of sensibility must not be yielded to. If we suffer ourselves to be frightened from our post by mere lying, surely the enemy will use that weapon; for what one so cheap to those of whose system of politics morality makes no part? The patriot, like the Christian, must learn that to bear revilings and persecutions is a part of his duty; and in proportion as the trial is severe, firmness under it becomes more requisite and praiseworthy. It requires, indeed, self-command. But that will be fortified in proportion as the calls for its exercise are repeated. In this I am persuaded we shall have the benefit of your good example. To the other falsehoods they have brought forward, should they add, as you expect, insinuations of want of confidence in you from the administration generally, or myself particularly, it will, like their other falsehoods, produce in the public mind a contrary inference.

* * * * *

I tender you my friendly and respectful salutations.

TO MR. DUNBAR.

WASHINGTON, May 25, 1805.

DEAR SIR,—Your several letters, with the portions of your journals, forwarded at different times, have been duly received; and I am now putting the journal into the hands of a person properly qualified to extract the results of your observations, and the various interesting information contained among them, and bring them into such a compass as may be communicated to the Legislature. Not knowing whether you might not intend to make a map yourself, of the course of the river, he will defer that to the last part of his work, on the possibility that we may receive it from yourself. Your observations on the difficulty of transporting baggage from the head of the Red river to that of the Arkansas, with the dangers from the seceding Osages residing on the last river, have determined me to confine the ensuing mission to the ascent of the Red river to its source, and to descend the same river again, which will give an opportunity of better ascertaining that which, in truth, next to the Missouri, is the most interesting water of the Mississippi. You will accordingly receive instructions to this effect, from the Secretary of War. Dr. Hunter does not propose to take a part in this mission, and we suppose that Mr. George Davis, a deputy of Mr. Briggs, will be the fittest person to take the direction of the expedition, and Col. Freeman as an assistant, and successor, in case of accident, to the principal. Still, these propositions are submitted to your control, as being better acquainted with both characters. I write to Gov. Claiborne, to endeavor to get a passport from the Marquis of Casa-Calvo, for our party, as a protection from any Spaniards who may be fallen in with on the route. We offer to receive one or two persons, to be named by him, and subsisted by us into the party, as a proof that the expedition is merely scientific, and without any views to which Spain could take exception. The best protection against the Indians will be the authority to confer with them on the subject of commerce. Such conferences should be particularly held with the Arkansas and Panis, residing on the Red river, and everything possible be done to attach them to us affectionately. In the present state of things between Spain and us, we should spare nothing to secure the friendship of the Indians within reach of her. While Capt. Lewis' mission was preparing, as it was understood that his reliance for his longitudes must be on the lunar observations taken, as at sea, with the aid of a time-keeper, and I knew that

a thousand accidents might happen to that in such a journey as his, and thus deprive us of the principal object of the expedition, to wit, the ascertaining the geography of that river, I set myself to consider whether in making observations at land, that furnishes no resource which may dispense with the time-keeper, so necessary at sea. It occurred to me that as we can always have a meridian at land, that would furnish what the want of it at sea obliges us to supply by the time-keeper. Supposing Capt. Lewis then furnished with a meridian, and having the requisite tables and nautical almanac with him,—first, he might find the right ascension of the moon, when on the meridian of Greenwich, on any given day; then find by observation when the moon should attain that right ascension (by the aid of a known star), and measure her distance in that moment from his meridian. This distance would be the difference of longitude between Greenwich and the place of observation. Or secondly, observe the moon's passage over his meridian, and her right ascension at that moment. See by the tables the time at Greenwich when she had that right ascension. That gives her distance from the meridian of Greenwich, when she was on his meridian. Or thirdly, observe the moon's distance from his meridian at any moment, and her right ascension at that moment; and find from the tables her distance from the meridian of Greenwich, when she had that right ascension, which will give the distance of the two meridians. This last process will be simplified by taking, for the moment of observation, that of an appulse of the moon and a known star, or when the moon and a known star are in the same vertical. I suggested this to Mr. Briggs, who considered it as correct and practicable, and proposed communicating it to the Philosophical Society; but I observed that it was too obvious not to have been thought of before, and supposed it had not been adopted in practice, because of no use at sea, where a meridian cannot be had, and where alone the nations of Europe had occasion for it. Before his confirmation of the idea, however, Capt. Lewis was gone. In conversation afterwards with Baron Humboldt, he observed that the idea was correct, but not new; that I would find it in the third volume of Delalande. I received two days ago the third and fourth volumes of Montucla's History of Mathematics, finished and edited by Delalande; and find, in fact, that Morin and Vanlangren, in the seventeenth century, proposed observations of the moon on the meridian, but it does not appear whether they meant to dispense with the time-keeper. But a meridian at sea being too impracticable, their idea was not pursued. The purpose of

troubling you with these details, is to submit to your consideration and decision whether any use can be made of them advantageously in our future expeditions, and particularly that up the Red river.

Your letter on the current of the Mississippi, and paper on the same subject, corrected at once my doubts on your theory of the currents of that river. Constant employment in a very different line permits me to turn to philosophical subjects only when some circumstance forces them on my attention. No occurrence had called my mind to this subject, particularly since I had first been initiated into the original Torricellian doctrine of the velocities at different depths, being in the sub-duplicate ratio of the depths. And though Buat had given me his book while at Paris, your letter was the first occasion of my turning to it, and getting my mind set to rights to a certain degree. There is a subsequent work by Bernard, which is said to have furnished corrections and additions to Buat; but I have never seen it.

The work we are now doing is, I trust, done for posterity, in such a way that they need not repeat it. For this we are much indebted to you, not only for the labor and time you have devoted to it, but for the excellent method of which you have set the example, and which I hope will be the model to be followed by others. We shall delineate with correctness the great arteries of this great country. Those who come after us will extend the ramifications as they become acquainted with them, and fill up the canvas we begin. With my acknowledgments for your zealous aid in this business, accept my friendly salutations, and assurances of great esteem and respect.

TO DOCTOR SIBLEY.

WASHINGTON, May 27, 1805.

DEAR SIR,—I have been some time a debtor for your letters of March 20th and September 2d, of the last year. A constant pressure of things which will not admit delay, prevents my acknowledging with punctuality the letters I receive, although I am not insensible to the value of the communications, and the favor done me in making them. To these acknowledgments I propose to add a solicitation of a literary kind, to which I am led by your

position, favorable to this object, and by a persuasion that you are disposed to make to science those contributions which are within your convenience. The question whether the Indians of America have emigrated from another continent, is still undecided. Their vague and imperfect traditions can satisfy no mind on that subject. I have long considered their languages as the only remaining monument of connection with other nations, or the want of it, to which we can now have access. They will likewise show their connections with one another. Very early in life, therefore, I formed a vocabulary of such objects as, being present everywhere, would probably have a name in every language; and my course of life having given me opportunities of obtaining vocabularies of many Indian tribes, I have done so on my original plan, which though far from being perfect, has the valuable advantage of identity, of thus bringing the languages to the same points of comparison. A letter from you to General Dearborne, giving valuable information respecting the Indians west of the Mississippi and south of the Arkansas, presents a much longer list of tribes than I had expected; and the relations in which you stand with them, and the means of intercourse these will furnish, induce me to hope you will avail us of your means of collecting their languages for this purpose. I enclose you a number of my blank vocabularies, to lessen your trouble as much as I can. I observe you mention several tribes which, having an original language of their own, nevertheless have adopted some other, common to other tribes. But it is their original languages I wish to obtain. I am in hopes you will find persons situated among or near most of the tribes, who will take the trouble of filling up a vocabulary. No matter whether the orthography used be English, Spanish, French, or any other, provided it is stated what the orthography is. To save unnecessary trouble, I should observe that I already possess the vocabularies of the Attacapas and Chetimachas, and no others within the limits before mentioned. I have taken measures for obtaining those north of the Arcansa, and already possess most of the languages on this side the Mississippi. A similar work, but on a much greater scale, has been executed under the auspices of the late empress of Russia, as to the red nations of Asia, which, however, I have never seen. A comparison of our collection with that will probably decide the question of the sameness or difference of origin, although it will not decide which is the mother country, and which the colony. You will receive from Gen. Dearborne some important instructions with respect to the Indians. Nothing must be spared

to convince them of the justice and liberality we are determined to use towards them, and to attach them to us indissolubly. Accept my apologies for the trouble I am giving you, with my salutations and assurances of respect.

TO THOMAS PAINE.

WASHINGTON, June 5, 1805.

DEAR SIR,—Your letters, Nos. 1, 2, 3, the last of them dated April the 20th, were received April the 26th. I congratulate you on your retirement to your farm, and still more that it is of a character so worthy of your attention. I much doubt whether the open room on your second story will answer your expectations. There will be a few days in the year in which it will be delightful, but not many. Nothing but trees, or Venetian blinds, can protect it from the sun. The semi-cylindrical roof you propose will have advantages. You know it has been practised on the cloth market at Paris. De Lorme, the inventor, shows many forms of roofs in his book to which it is applicable. I have used it at home for a dome, being one hundred and twenty degrees of an oblong octagon, and in the capitol we unite two quadrants of a sphere by a semi-cylinder; all framed in De Lorme's manner. How has your planing machine answered? Has it been tried and persevered in by any workmen?

France has become so jealous of our conduct as to St. Domingo (which in truth is only the conduct of our merchants), that the offer to become a mediator would only confirm her suspicions. Bonaparte, however, expressed satisfaction at the paragraph in my message to Congress on the subject of that commerce. With respect to the German redemptioners, you know I can do nothing unless authorized by law. It would be made a question in Congress, whether any of the enumerated objects to which the Constitution authorizes the money of the Union to be applied, would cover an expenditure for importing settlers to Orleans. The letter of the revolutionary sergeant was attended to by General Dearborne, who wrote to him informing him how to proceed to obtain his land.

Doctor Eustis' observation to you, that "certain paragraphs in the National Intelligencer" respecting my letter to you, "supposed to be under Mr. Jefferson's direction, had embarrassed Mr. Jefferson's friends in Massachusetts; that they appeared like a half denial of the letter, or as if there was something in it not proper to be owned, or that needed an apology," is one of those mysterious half confidences difficult to be understood. That tory printers should think it advantageous to identify me with that paper, the Aurora, &c., in order to obtain ground for abusing me, is perhaps fair warfare. But that any one who knows me personally should listen one moment to such an insinuation, is what I did not expect. I neither have, nor ever had, any more connection with those papers than our antipodes have; nor know what is to be in them until I see it in them, except proclamations and other documents sent for publication. The friends in Massachusetts who could be embarrassed by so weak a weapon as this, must be feeble friends indeed. With respect to the letter, I never hesitated to avow and to justify it in conversation. In no other way do I trouble myself to contradict anything which is said. At that time, however, there were certain anomalies in the motions of some of our friends, which events have at length reduced to regularity.

It seems very difficult to find out what turns things are to take in Europe. I suppose it depends on Austria, which, knowing it is to stand in the way of receiving the first hard blows, is cautious of entering into a coalition. As to France and England we can have but one wish, that they may disable one another from injuring others.

Accept my friendly salutations, and assurances of esteem and respect.

TO MR. MADISON.

MONTICELLO, August 7, 1805.

DEAR SIR,—On a view of our affairs with Spain, presented me in a letter from C. Pinckney, I wrote you on the 23d of July, that I thought we should offer them the *status quo*, but immediately proposed provincial alliance with England. I have not yet received the whole correspondence. But the

portion of the papers now enclosed to you, confirm me in the opinion of the expediency of a treaty with England, but make the offer of the *status quo* more doubtful. The correspondence will probably throw light on that question; from the papers already received I infer a confident reliance on the part of Spain on the omnipotence of Bonaparte, but a desire of procrastination till peace in Europe shall leave us without an ally. General Dearborne has seen all the papers. I will ask the favor of you to communicate them to Mr. Gallatin and Mr. Smith. From Mr. Gallatin I shall ask his first opinion, preparatory to the stating formal questions for our ultimate decision. I am in hopes you can make it convenient to see and consult with Mr. Smith and General Dearborne, unless the latter should come on here where I can do it myself. On the receipt of your own ideas, Mr. Smith's and the other gentlemen, I shall be able to form points for our final consideration and determination.

I enclose you some communications from the Mediterranean. They show Barron's understanding in a very favorable view. When you shall have perused them, be so good as to enclose them to the Secretary of the Navy. Accept my fervent wishes for the speedy recovery of Mrs. Madison, and your speedy visit to this quarter.

TO MR. MADISON.

MONTICELLO, August 25, 1805.

DEAR SIR,—I confess that the enclosed letter from General Turreau excites in me both jealousy and offence in undertaking, and without apology, to say in what manner to receive and treat Moreau within our own country. Had Turreau been here longer he would have known that the national authority pays honors to no foreigners. That the State authorities, municipalities and individuals, are free to render whatever they please, voluntarily, and free from restraint, by us; and he ought to know that no part of the criminal sentence of another country can have any effect here. The style of that government in the Spanish business, was calculated to excite indignation; but it was a case in which that might have done injury. But the present is a case which would justify some notice in order to let them understand we are

not of those powers who will receive and execute mandates. I think the answer should show independence as well as friendship. I am anxious to receive the opinions of our brethren after their review and consideration of the Spanish papers. I am strongly impressed with a belief of hostile and treacherous intentions against us on the part of France, and that we should lose no time in securing something more than a mutual friendship with England.

Not having heard from you for some posts, I have had a hope you were on the road, and consequently that Mrs. Madison was re-established. We are now in want of rain, having had none in the last ten days. In your quarter I am afraid they have been much longer without it. We hear great complaints from F. Walker's, Lindsay's, Maury's, &c., of drought. Accept affectionate salutations, and assurances of constant friendship.

P. S. I suppose Kuhn, at Genoa, should have new credentials.

TO THE SECRETARY OF STATE.

MONTICELLO, August 27, 1805.

DEAR SIR,—Yours of the 20th has been received, and in that a letter from Casinore, and another from Mrs. Ciracchi; but those from Turreau and to Upryo were not enclosed. Probably the former was what came to me by the preceding post, respecting Moreau; if so, you have my opinion on it in my last. Considering the character of Bonaparte, I think it material at once to let him see that we are not of the powers who will receive his orders.

I think you have misconceived the nature of the treaty I thought we should propose to England. I have no idea of committing ourselves immediately or independently of our further will to the war. The treaty should be provisional only, to come into force on the event of our being engaged in war with either France or Spain during the present war in Europe. In that event we should make common cause, and England should stipulate not to make peace without our obtaining the objects for which we go to war, to

wit, the acknowledgment by Spain of the rightful boundaries of Louisiana (which we should reduce to our minimum by a secret article) and 2, indemnification for spoliations, for which purpose we should be allowed to make reprisal on the Floridas and *retain them* as an indemnification. Our co-operation in the war (if we should actually enter into it) would be sufficient consideration for Great Britain to engage for its object; and it being generally known to France and Spain that we had entered into treaty with England, would probably ensure us a peaceable and immediate settlement of both points. But another motive much more powerful would indubitably induce England to go much further. Whatever ill-humor may at times have been expressed against us by individuals of that country, the first wish of every Englishman's heart is to see us once more fighting by their sides against France; nor could the king or his ministers do an act so popular as to enter into an alliance with us. The nation would not weigh the consideration by grains and scruples. They would consider it as the price and pledge of an indissoluble friendship. I think it possible that for such a provisional treaty their general guarantee of Louisiana and the Floridas. At any rate we might try them. A failure would not make our situation worse. If such a one could be obtained we might await our own convenience for calling up the *casus fæderis*. I think it important that England should receive an overture as early as possible, as it might prevent her listening to terms of peace. If I recollect rightly, we had instructed Moreau, when he went to Paris, to settle the deposit; if he failed in that object to propose a treaty to England immediately. We could not be more engaged to secure the deposit then than we are the country now, after paying fifteen millions for it. I do expect, therefore, that, considering the present state of things as analogous to that, and virtually within his instructions, he will very likely make the proposition to England. I write my thoughts freely, wishing the same from the other gentlemen, that seeing and considering the ground of each others opinions we may come as soon as possible to a result. I propose to be in Washington by the 2d of October. By that time I hope we shall be ripe for some conclusion.

I have desired Mr. Barnes to pay my quota of expenses relating to the Marseilles cargo, whatever you will be so good as to notify him that it is. I wish I could have heard that Mrs. Madison's course of recovery were more speedy. I now fear we shall not see you but in Washington. Accept for her

and yourself my affectionate salutations, and assurances of constant esteem and respect.

TO MR. MADISON.

MONTICELLO, September 16, 1805.

DEAR SIR,—The enclosed letter from General Armstrong furnishes matter for consideration. You know the French considered themselves entitled to the Rio Bravo, and that Laussal declared his orders to be to receive possession to that limit, but not to Perdido; and that France has to us been always silent as to the western boundary, while she spoke decisively as to the eastern. You know Turreau agreed with us that neither party should strengthen themselves in the disputed country during negotiation; and Armstrong, who says Monroe concurs with him, is of opinion, from the character of the Emperor, that were we to restrict ourselves to taking the posts on the west side of the Mississippi, and threaten a cessation of intercourse with Spain, Bonaparte would interpose efficiently to prevent the quarrel from going further. Add to these things the fact that Spain has sent five hundred colonists to St. Antonio, and one hundred troops to Nacogdoches, and probably has fixed or prepared a post at the Bay of St. Bernard, at Matagordo. Supposing, then, a previous alliance with England to guard us in the worst event, I should propose that Congress should pass acts, 1, authorizing the executive to suspend intercourse with Spain at discretion; 2, to dislodge the new establishments of Spain between the Mississippi and Bravo; and 3, to appoint commissioners to examine and ascertain all claims for spoliation that they might be preserved for future indemnification. I commit these ideas merely for consideration, and that the subject may be matured by the time of our meeting at Washington, where I shall be myself on the 2d of October. I have for some time feared I should not have the pleasure of seeing you either in Albemarle or Orange, from a general observation of the slowness of surgical cases. However, should Mrs. Madison be well enough for you to come to Orange, I will call on you on my way to Washington, if I can learn you are at home. General Dearborne is

here. His motions depend on the stage. Accept for Mrs. Madison and yourself affectionate salutations.

P. S. I am afraid Bowdoin's journey to England will furnish a ground for Pinckney's remaining at Madrid. I think he should be instructed to leave it immediately, and Bowdoin might as well, perhaps, delay going there till circumstances render it more necessary.

TO MR. GALLATIN.

WASHINGTON, October 18, 1805.

DEAR SIR,—I had detained the letter of Mr. Merry on Foster's claims of freedom from importing duties, in expectation that Mr. Madison's return would enable him, you and myself, to confer on it. If the case presses, I will express my opinion on it. Every person diplomatic *in his own right*, is entitled to the privileges of the law of nations, in his own right. Among these is the receipt of all packages unopened and unexamined by the country which receives him. The usage of nations has established that this shall liberate whatever is imported *bonâ fide* for his own use, from paying any duty. A government may control the number of diplomatic characters it will receive; but if it receives them it cannot control their rights while *bonâ fide* exercised. Thus Dr. Franklin, Mr. Adams, Colonel Humphreys, and myself, all residing at Paris at the same time, had all of us our importation duty free. Great Britain had an ambassador and a minister plenipotentiary there, and an ambassador extra for several years; all three had their entries free. In most countries this privilege is permanent. Great Britain is niggardly, and allows it only on the first arrival. But in this as she treats us only as *she does* the most favored nations, so we should treat her as *we do* the most favored nations. If these principles are right, Mr. Foster is duty free. If you concur, let it be so settled. If you think differently, let it lie for Madison's opinion. Colonel Monroe, in a letter of May, from Madrid, expressed impatience to get back to London that he might get to America before the equinox. It was the first I had heard of his having any thought of coming here, and though equivocally expressed, I thought he meant only a visit. In subsequent letters from Paris and London, down to August 16, he

says nothing of coming; on the contrary, he has re-opened a particular negotiation. The motives which led him to wish to arrive before the equinox would prevent his venturing between the equinox and winter. I think, therefore, he has no fixed idea of coming away. Accept affectionate salutations.

TO DOCTORS ROGERS AND SLAUGHTER.

WASHINGTON, March 2, 1806.

GENTLEMEN,—I have received the favor of your letter of February the 2d, and read with thankfulness its obliging expressions respecting myself. I regret that the object of a letter from persons whom I so much esteem, and patronized by so many other respectable names, should be beyond the law which a mature consideration of circumstances has prescribed for my conduct. I deem it the duty of every man to devote a certain portion of his income for charitable purposes; and that it is his further duty to see it so applied as to do the most good of which it is capable. This I believe to be best insured, by keeping within the circle of his own inquiry and information the subjects of distress to whose relief his contributions shall be applied. If this rule be reasonable in private life, it becomes so necessary in my situation, that to relinquish it would leave me without rule or compass. The applications of this kind from different parts of our own, and from foreign countries, are far beyond any resources within my command. The mission of Serampore, in the East Indies, the object of the present application, is but one of many items. However disposed the mind may feel to unlimited good, our means having limits, we are necessarily circumscribed by them. They are too narrow to relieve even the distresses under my own eye; and to desert these for others which we neither see nor know, is to omit doing a certain good for one which is uncertain. I know, indeed, there have been splendid associations for effecting benevolent purposes in remote regions of the earth. But no experience of their effect has proved that more good would not have been done by the same means employed nearer home. In explaining, however, my own motives of action, I must not be understood as impeaching those of others. Their views are

those of an expanded liberality. Mine may be too much restrained by the law of usefulness. But it is a law to me, and with minds like yours, will be felt as a justification. With this apology, I pray you to accept my salutations, and assurances of high esteem and respect.

TO MR. DUANE.

WASHINGTON, March 22, 1806.

I thank you, my good Sir, cordially, for your letter of the 12th, which however I did not receive till the 20th. It is a proof of sincerity, which I value above all things; as, between those who practise it, falsehood and malice work their efforts in vain. There is an enemy somewhere endeavoring to sow discord among us. Instead of listening first, then doubting, and lastly believing anile tales handed round without an atom of evidence, if my friends will address themselves to me directly, as you have done, they shall be informed with frankness and thankfulness. There is not a truth on earth which I fear or would disguise. But secret slanders cannot be disarmed, because they are secret. Although you desire no answer, I shall give you one to those articles admitting a short answer, reserving those which require more explanation than the compass of a letter admits, to conversation on your arrival here. And as I write this for your personal satisfaction, I rely that my letter will, under no circumstances, be communicated to any mortal, because you well know how every syllable from me is distorted by the ingenuity of my political enemies.

In the first place, then, I have had less communication, directly or indirectly, with the republicans of the east, this session, than I ever had before. This has proceeded from accidental circumstances, not from design. And if there be any coolness between those of the south and myself, it has not been from me towards them. Certainly there has been no other reserve than to avoid taking part in the divisions among our friends. That Mr. R. has openly attacked the administration is sufficiently known. We were not disposed to join in league with Britain, under any belief that she is fighting for the liberties of mankind, and to enter into war with Spain, and consequently France. The House of Representatives were in the same

sentiment, when they rejected Mr. R.'s resolutions for raising a body of regular troops for the western service. We are for a peaceable accommodation with all those nations, if it can be effected honorably. This, perhaps, is not the only ground of his alienation; but which side retains its orthodoxy, the vote of eighty-seven to eleven republicans may satisfy you; but you will better satisfy yourself on coming here, where alone the true state of things can be known, and where you will see republicanism as solidly embodied on all essential points, as you ever saw it on any occasion.

That there is only one minister who is not opposed to me, is totally unfounded. There never was a more harmonious, a more cordial administration, nor ever a moment when it has been otherwise. And while differences of opinion have been always rare among us, I can affirm, that as to present matters, there was not a single paragraph in my message to Congress, or those supplementary to it, in which there was not a unanimity of concurrence in the members of the administration. The fact is, that in ordinary affairs every head of a department consults me on those of his department, and where anything arises too difficult or important to be decided between us, the consultation becomes general.

That there is an ostensible cabinet and a concealed one, a public profession and concealed counteraction, is false.

That I have denounced republicans by the epithet of Jacobins, and declared I would appoint none but those called moderates of both parties, and that I have avowed or entertain any predilection for those called the third party, or Quids, is in every tittle of it false.

That the expedition of Miranda was countenanced by me, is an absolute falsehood, let it have gone from whom it might; and I am satisfied it is equally so as to Mr. Madison. To know as much of it as we could was our duty, but not to encourage it.

Our situation is difficult; and whatever we do is liable to the criticisms of those who wish to represent it awry. If we recommend measures in a public message, it may be said that members are not sent here to obey the mandates of the President, or to register the edicts of a sovereign. If we express opinions in conversation, we have then our Charles Jenkinsons, and back-door counsellors. If we say nothing, "we have no opinions, no plans,

no cabinet." In truth it is the fable of the old man, his son and ass, over again.

These are short facts which may suffice to inspire you with caution, until you can come here and examine for yourself. No other information can give you a true insight into the state of things; but you will have no difficulty in understanding them when on the spot. In the meantime, accept my friendly salutations and cordial good wishes.

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FOOTNOTES

[1] [A copy of the preceding letter was sent, enclosed by the Secretary of State, to Mr. Genet.]

[2] See p. 31.

[3] [Probably to Mr. Madison.]

[4] [The first part of this letter is on private business, and is therefore omitted.]

[5] [Here, in the margin of the copy, is written, apparently at a later date, "General H. Lee."]

[6] [A few lines are here illegible.]

[7] [The places in this letter where the asterisks are inserted, are blanks in the original.]

[8] [Here, in the margin of the copy filed, is written by the author, in pencil, "Mr. Adams."]

[9] [Address lost.]

[10] [Shortly before, Mr. Jefferson had obtained passports for General Kosciusko, under an assumed name, from the foreign ministers in this country. The annexed is the note addressed to Mr. Liston, soliciting one from him.

"Thomas Jefferson presents his respects to Mr. Liston, and asks the favor of the passport for his friend Thomas Kanberg, of whom he spoke to him yesterday. He is a native of the north of Europe, (perhaps of Germany,) has been known to Thomas Jefferson these twenty years in America, is of a most excellent character, stands in no relation whatever to any of the belligerent powers, as to whom Thomas Jefferson is not afraid to be responsible for his political innocence, as he goes merely for his private affairs. He will sail from Baltimore, if he finds there a good opportunity for France; and if not, he will come on here. March 27, 1798."]

[11] [Here, and in almost every other case where the name is omitted, it is omitted in the original.]

[12] The Legislature of Virginia.

[13] [This vocabulary is missing.]

[14] [In the margin is written by the author, "Alien law."]

[15] [The manuscript here is illegible.]

[16] Venice and Genoa.

[17] To explain, I will exhibit the heads of Seneca's and Cicero's philosophical works, the most extensive of any we have received from the ancients. Of ten heads in Seneca, seven relate to ourselves, viz. *de ira, consolatio, de tranquillitate, de constantia sapientis, de otio sapientis, de vita beata, de brevitae vitae*; two relate to others, *de elementia, de beneficiis*; and one relates to the government of the world, *de providentia*. Of eleven tracts of Cicero, five respect ourselves, viz. *de finibus, Tusculana, academica, paradoxa, de Senectute*; one, *de officiis*, relates partly to ourselves, partly to others; one, *de amicitia*, relates to others; and four are on different subjects, to wit, *de natura deorum, de divinatione, de fato, and somnium Scipionis*.

[18] November 8. It is now said that it did not take place on the 3d, but will this day.

[19] These ordinates are arithmetical progressionals, each of which is double the root of its abscissa, plus unit. The equation, therefore, expressing the law of the curve is $y = 2 \sqrt{x} + 1$; that is, the velocity of the water of any depth will be double the root of that depth, plus unit. Were the line *a e a* wall, and *b f e g d h e i* troughs, along which water spouted from apertures at *b c d e*, their intersections with the curve at *f g h i* would mark the point in each trough to which the water would flow in a second of time, abating for friction.

[20] [In the margin is written by the author, "La Fayette."]

*** END OF THE PROJECT GUTENBERG EBOOK THE WRITINGS
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